

COUNCIL RESOLUTIONS AND DECLARATIONS

Last amended on 19 January 2026

PREFACE

This publication, which you can consult at any time on the EUMETSAT website www.eumetsat.int, contains all Resolutions adopted by the EUMETSAT Council and Declarations on Optional Programmes, excluding those that have been abolished. It is structured according to the year in which the corresponding Resolution or Declaration was adopted and divided in 2 volumes (from 1986 to 2011 and from 2012 onwards). Further updates will be issued regularly.

Should you have any queries or comments on these documents, please do not hesitate to contact the EUMETSAT Legal Affairs Division legalaffairs@eumetsat.int.

DOCUMENT CHANGE RECORD

Year of the resolutions	Resolution Number	Page Number	Date of Publication	Reason for Change
-	-	Cover page	February 2026	Change of publication date.
-	-	Table of Contents	February 2026	- Change of publication date. - Update to include the date of adoption of Resolution EUM/C/105/24/Res. I.
2024	EUM/C/105/24/Res. I	1	February 2026	Insertion of the date of adoption of the resolution, on the 19 January 2026.

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¹ **Numbering of Resolutions:** Starting with EUM/C/92/Res. I a new numbering system was adopted as follows: EUM/C/yy/Res. n where yy represents the year in which the Resolution was adopted and n is the serial number (roman numeral) of the Resolution within each year.

² Adopted at the 25th Council meeting/22-24 June 1994

³ Adopted at the 25th Council meeting/22-24 June 1994

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⁴ Adopted at the 42nd Council meeting/22-24 June 1999

⁵ Adopted at the 39th Council meeting/7 September 1998

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⁶ Adopted at the 55th Council meeting/22-23 June 2004

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⁷ Entered into force on 7 October 2004.

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⁸ **Numbering of Resolutions:** Starting with EUM/C/57/05/Res. I a new numbering system was adopted as follows: EUM/C/xx/yy/Res. n where xx represents the meeting number in which the Resolution was adopted, yy represents the year in which the Resolution was adopted, and n is the serial number (roman numeral) of the Resolution within each year.

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¹⁰ EUM/C/69/10/Res. I Meteosat Third Generation (MTG) Programme	69 th Council 26/3/10	1 of 40
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¹⁰ Adopted on 25 February 2011.

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EUM/C/70/10/Res. II New Pension Scheme for New Entrants	70 th Council 21-22/6/10	15 of 40
EUM/C/70/10/Res. III Amendments to the Meteosat Implementing Rules	70 th Council 21-22/6/10	17 of 40
EUM/C/70/10/Res. IV Amendments to the Meteosat Implementing Rules (regarding EUMETSAT fees for access to non-essential Meteosat data by commercial users)	70 th Council 21-22/6/10	Abolished
EUM/C/70/10/Res. V Amendments to the Meteosat Implementing Rules on Data Policy – Access to Meteosat MDD Material and DCP Channels	70 th Council 21-22/6/10	Abolished
EUM/C/70/10/Res. VI Amendments to the Meteosat Implementing Rules (regarding EUMETSAT fees applicable to NMSs of non-Member States for Official Duty Use)	70 th Council 21-22/6/10	Abolished
EUM/C/70/10/Res. VII Special Payment Arrangement concerning the Contribution of the United Kingdom to the Optional EUMETSAT Jason-3 Altimetry Programme	70 th Council 21-22/6/10	29 of 40
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¹¹ EUM/C/71/10/Res. I Authorisation to Proceed with the Meteosat Third Generation Programme	71 th Council 30/11-1/12/10	35 of 40
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EUM/C/71/10/Res. III Preparation of a Third Party Programme for the Establishment of User Requirements for Future Oceanography Systems on Behalf of the EC	71 th Council 30/11-1/12/10	39 of 40

¹¹ Adopted on 24 January 2011.

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EUM/C/72/11/Res. IX Amendments to the Meteosat Implementing Rules on Data Policy – Access to Meteosat MDD Material and DCP Channels	72 nd Council 28-29/06/11	39 of 47
¹² EUM/C/73/11/Res. I The EUMETSAT Polar System Second Generation Preparatory Programme (EPS-SG PP)	73 rd Council 05/10/11	42 of 47

¹² Adopted at the 77th Council meeting on 15 November 2012.

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EUM/C/75/12/Res. I The Scope of The EUMETSAT Polar System Second Generation (EPS-SG) Space Segment	75 th Council 30-31/01/12	1 of 30
EUM/C/75/12/Res. II Measures for Planning The EPS-SG Programme taking into Account the Exceptionally Critical Economic Situation Of Greece	75 th Council 30-31/01/12	5 of 30
EUM/C/76/12/Res. I Authorisation to proceed with EPS-SG preparatory programme	76 th Council 5-6/07/2012	7 of 30
EUM/C/76/12/Res. II A savings target for the preparation of the EUMETSAT Polar System Second Generation (EPS-SG) Programme	76 th Council 5-6/07/2012	9 of 30
EUM/C/76/12/Res. III Preparation of a Jason Continuity of Service (Jason CS) optional programme	76 th Council 5-6/07/2012	11 of 30
EUM/C/76/12/Res. IV Financing of the extension of the EUMETSAT headquarters by a new office building including a canteen	76 th Council 5-6/07/2012	15 of 30
EUM/C/76/12/Res. V Update of the annual fees applicable to NMSs of non-member states	76 th Council 5-6/07/2012	17 of 30
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¹³ EUM/C/79/13/Res. IV Second Extension of the Optional Jason-2 Altimetry Programme	79 th Council 26-27/11/2013	43 of 44

¹³ Entered into force on 15 September 2014.

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Resolutions 2014		
¹⁴ EUM/C/80/14/Res. I EUMETSAT Polar System Second Generation Programme (EPS-SG Programme)	80 th Council 01/07/2014	1 of 55
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EUM/C/81/14/Res. I Third party programme on EUMETSAT activities in support of the implementation of the Copernicus programme in the period 2014-2021	81 st Council 15/10/2014	27 of 55
¹⁵ EUM/C/82/14/Dcl. I Declaration on the Optional EUMETSAT Jason-CS Programme	82 nd Council 26/11/2014	31 of 55
EUM/C/82/14/Res. I Authorisation to proceed with the EPS-SG Programme	82 nd Council 26/11/2014	51 of 55
¹⁶ EUM/C/82/14/Res. II Enabling Resolution on the Optional EUMETSAT Jason-CS Programme	82 nd Council 26/11/2014	53 of 55
EUM/C/82/14/Res. III Ceiling of the General Budget 2016-2020	82 nd Council 26/11/2014	55 of 55

¹⁴ Entered into force on 1 January 2016.

¹⁵ Replaced by EUM/C/83/15/Dcl. I presented for adoption at the 83rd Council meeting on 23-24 June 2015.

¹⁶ Replaced by EUM/C/83/15/Res. II adopted at the 83rd Council meeting on 23-24 June 2015.

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EUM/C/83/15/Res. II Enabling Resolution on the Optional EUMETSAT Jason-CS Programme	83 rd Council 23-24/06/2015	23 of 26
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EUM/C/85/16/Res. I Update of the annual fees applicable to NMSs of non-member States	85 th Council 28-29/06/2016	1 of 16
EUM/C/85/16/Res. II Amendments to the Data Policy Meteosat and Metop implementing rules	85 th Council 28-29/06/2016	9 of 16
EUM/C/85/16/Res. III Extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme	85 th Council 28-29/06/2016	13 of 16
¹⁷ EUM/C/86/16/Res. I Amendment to the EUMETSAT Treasury Risk Reduction	86 th Council 6-7/12/2016	Repealed
¹⁸ EUM/C/86/16/Res. II Financing facility for smoothing out contribution peaks in view of the exceptional situation created by the alignment of the MTG and EPS-SG development schedules and expenditure profile	86 th Council 6-7/12/2016	Repealed

¹⁷ Adopted on 16 December 2016. Repealed at the 87th Council meeting on 27-28 June 2017.

¹⁸ Adopted on 16 December 2016. Repealed at the 87th Council meeting on 27-28 June 2017.

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¹⁹ EUM/C/86/16/Res. III Third extension of the Optional Jason-2 Altimetry Programme	86 th Council 6-7/12/2016	15 of 16
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²⁰ EUM/C/87/17/Res. I Extension of the Period of Subscription to the EUMETSAT Jason-CS Optional Programme	87 th Council 27/06/2017	1 of 14
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EUM/C/88/17/Res. I Extension of the duration of the EPS programme	88 th Council 5-6 December 2017	5 of 14
²¹ EUM/C/88/17/Res. II Increase of the financial envelope of the EPS programme	88 th Council 5-6 December 2017	7 of 14
²² EUM/C/88/17/Res. III Increase of the financial envelope of the MSG programme	88 th Council 5-6 December 2017	9 of 14
EUM/C/88/17/Res. IV Extension of the period of subscription to the EUMETSAT Jason-CS optional programme	88 th Council 5-6 December 2017	11 of 14
EUM/C/88/17/Res. V Accession of Serbia to the EUMETSAT Convention	88 th Council 5-6 December 2017	Repealed
EUM/C/88/17/Res. VI Participation of Serbia to the optional Jason-2 altimetry programme	88 th Council 5-6 December 2017	Repealed
EUM/C/88/17/Res. VII Participation of Serbia to the optional Jason-CS altimetry programme	88 th Council 5-6 December 2017	Repealed
EUM/C/88/17/Res. VIII Continued access to EUMETSAT data by Serbia during the accession process	88 th Council 5-6 December 2017	13 of 14

¹⁹ Adopted on 11 July 2017.

²⁰ Adopted on 30 June 2017.

²¹ Adopted on 10 February 2020.

²² Adopted on 10 February 2020.

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EUM/C/91/19/Res. II Approval of the Increase of the Financial Envelope of the EPS Programme	91 st Council 25-26 June 2019	9 of 13
²³ EUM/C/91/19/Res. III Fourth Extension of the Optional Jason-2 Altimetry Programme	91 st Council 25-26 June 2019	11 of 13
EUM/C/92/19/Res. I Ceiling of the General Budget 2021-2025	92 nd Council 3-4 December 2019	13 of 13

²³ Presented for adoption at the 91st Council meeting and withdrawn at the 92nd Council meeting.

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EUM/C/93/20/Res. I Extension of the Jason-3 Optional Programme	93 rd Council 30 June 2020	1 of 14
EUM/C/93/20/Res. II Updates of the Annual Fees Applicable to NMSs of Non-EUMETSAT Member States for Official Duty Use of Non-Essential Meteosat Data with a Latency of Less than Three Hours for the Period 2021-2022	93 rd Council 30 June 2020	3 of 14
EUM/C/94/20/Res. I Third Party Programme on EUMETSAT Activities in Support of Copernicus in the Period 2021-2027	94 th Council 22 October 2020	9 of 14
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EUM/C/97/21/Res. I Third Party Programme on EUMETSAT Activities in Support of the Implementation of the Copernicus Component of the Space Programme of the European Union in the period 2021-2028	97 th Council 1-2 July 2021	1 of 9
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EUM/C/98/21/Res. I Third Party Programme on EUMETSAT Activities in Support of the Implementation of the Destination Earth Initiative of the European Union in the Period 2021-2027	98 th Council 2 November 2021	7 of 9
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EUM/C/101/22/Res. I Amendments to the Implementing Rules for Meteosat Data and Products	101 st Council 30 June – 1 July 2022	1 of 16
EUM/C/101/22/Res. II Updates of the Annual Fees Applicable to NMSs of Non-EUMETSAT Member States for Official Duty Use of Non-Essential Meteosat Data with a Latency of Less than Three Hours for the Period 2023-2024	101 st Council 30 June – 1 July 2022	3 of 16

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²⁴ EUM/C/102/22/Res. I Ceiling of the General Budget 2021-2025	102 nd Council 6-7 December 2022	9 of 16
EUM/C/102/22/Res. II Authorisation to proceed with the phase B activities of EPS-Sterna and EPS-Aeolus	102 nd Council 6-7 December 2022	11 of 16
EUM/C/102/22/Res. III Mandatory nature of a future altimetry programme	102 nd Council 6-7 December 2022	13 of 16
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EUM/C/104/23/Res. I Financial envelope of the EUMETSAT Meteosat Third Generation Programme	104 th Council 28-29 November 2023	3 of 10
EUM/C/104/23/Res. II Financial envelope of the EUMETSAT Polar System Second Generation Programme	104 th Council 28-29 November 2023	7 of 10
EUM/C/104/23/Res. III Destination Earth Third Party Programme in the Period 2021-2027	104 th Council 28-29 November 2023	9 of 10

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²⁵ EUM/C/105/24/Res. I EUMETSAT Polar System Sterna Programme (EPS-Sterna Programme)	105 th Council 26-27 June 2024	1 of 9
EUM/C/106/24/Res. I Ceiling of the General Budget 2026-2030	106 th Council 3-4 December 2024	8 of 9

²⁴ Presented for adoption at the 102nd Council on 6-7 December 2022 meeting and adopted on 29 November 2023.

²⁵ Presented for adoption at the 105th Council meeting on 26-27 June 2024 and adopted on 19 January 2026.

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²⁶ EUM/C/108/25/Res. I Authorisation to proceed with the EPS-Sterna Programme	108 th Council 1-2 July 2025	1 of 11
EUM/C/109/25/Res. I Amending resolution on the Authorisation to proceed with the EPS-Sterna Programme	109 th Council 2 nd September 2025	3 of 11
²⁷ EUM/C/110/25/Res. I Authorisation to proceed with the EPS-Sterna Programme	110 th Council 24-25 November 2025	5 of 11
EUM/C/110/25/Res. II Amending resolution on the Authorisation to proceed with the EPS-Sterna Programme	110 th Council 24-25 November 2025	7 of 11
EUM/C/110/25/Res. III Destination Earth Third Party Programme in the period 2021-2028	110 th Council 24-25 November 2025	9 of 11
EUM/C/110/25/Res. IV Recategorisation of IASI and IASI-NG level-1 data as “Core”	110 th Council 24-25 November 2025	11 of 11

²⁶ Presented for adoption at the 108th Council meeting on 1-2 July 2025 and adopted on 9 July 2025.

²⁷ Presented for adoption at the 110th Council meeting on 24-25 November 2025 and adopted on 9 January 2026.

RESOLUTION ON
AN AMENDMENT TO ANNEX II OF THE CONVENTION
(SCALE OF CONTRIBUTIONS)

Adopted at the 1st meeting of the EUMETSAT Council
on 19 June 1986

The EUMETSAT Council,

CONSIDERING the existing structural deficit of 14.07% of the total costs remaining to be covered until the end of the Meteosat Operational Programme,

CONSIDERING that the persistence of this structural deficit would seriously jeopardize the execution of the Meteosat Operational Programme,

HAVING REGARD to Article 17, paragraph 3 of the EUMETSAT Convention,

WISHING to execute the Meteosat Operational Programme in its entirety and to provide the necessary financial means,

WISHING to solve the problem of the structural deficit as soon as possible,

TAKING NOTE that Finland, France, Ireland, Spain, Switzerland and the United Kingdom have indicated their willingness to increase their contributions pro rata relative to the structural deficit of 14.07%,

TAKING NOTE that Germany has indicated its willingness to increase contributions by 5.39%,

TAKING NOTE that Belgium and Italy have indicated their willingness to increase their contributions by a further 0.4 and 1% respectively and to undertake to examine ways of increasing their contribution pro rata as well,

TAKING FURTHER NOTE that Denmark, the Netherlands, Sweden, Norway and Turkey undertake to examine ways to increase their percentage of contribution in a similar fashion,

AGREES to amend Annex II of the EUMETSAT Convention as follows:

Paragraph 2 of Annex II is replaced by the following with effect from 1 January 1987:

The Member States shall contribute to the remaining expenditure of the Meteosat Operational Programme including costs of the Secretariat associated with this programme and the contingency associated with this programme as of 1 January 1987 in accordance with the following scale of contributions.

MEMBER STATES	% CONTRIBUTIONS
Belgium	4.4
Denmark	0.5
Finland	0.35
France	25.60
Germany	26.39
Greece	0.30
Ireland	0.11
Italy	12.00
Netherlands	3.00
Norway	0.50
Portugal	0.30
Spain	5.24
Sweden	0.93
Switzerland	3.03
Turkey	0.50
United Kingdom	16.76
Not covered	0.09
TOTAL	100.00

INVITES Governments of Member States not yet in a position to increase their contributions pro rata relative to the structural deficit of 14.07%, to make all efforts to propose an increase in their contributions as soon as possible, so that the total costs can be shared more equitably;

INVITES Governments of States which are in the process of ratification of the EUMETSAT Convention to make all efforts to increase their percentage of contributions pro rata after having completed their ratification procedure.

RESOLUTION ON
A LOAN FACILITY FOR FRENCH CONTRIBUTIONS

**Adopted at the 4th meeting of the EUMETSAT Council
on 23 - 24 April 1987**

The EUMETSAT Council,

CONSIDERING the special circumstances of the payment of contributions by France until the end of the Meteosat Operational Programme: France has established the internal budgetary provision for level payments during the course of the MOP and had previously arranged loans with ESA to cover the peak costs during the early years of the programme. France wished to apply the same procedure for the remaining years of the MOP,

NOTING that France, through its prior arrangements with ESA, had made efforts to discharge its liabilities in a responsible manner before the due dates for payment,

CONSIDERING that France will take over full responsibility for any loan contracted by EUMETSAT on its behalf, including reimbursement of all associated costs (administrative charges, interest payments, EUMETSAT overheads),

CONSIDERING that in practice the commercial banks are prepared to support such loans and accept that France is responsible for the loan, EUMETSAT being an intermediate,

CONSIDERING that this will not increase the programme cost-to-completion,

RECOGNISING that this special case is not covered by the EUMETSAT Financial Rules (Art. 12(6) of the Financial Rules),

NOTING that this differs from the circumstances in which EUMETSAT, when a contribution is not paid, levies a 1% premium of standard interest rates (Art. 12(7) of the Financial Rules),

RECOGNISING that this resolution requires, in accordance with the Convention Article 5.2(b) (iv), a two-thirds majority of the Member States present and voting, representing also at least two-thirds of the total amount of contributions,

RECOGNISING that this is an exceptional case in view of the fact that the interim phase of the MOP has been governed by the Financial Rules of ESA, which allow the taking over of loans by ESA on behalf of Member States,

AUTHORISES the Director of EUMETSAT to obtain a loan for France with the sole objective of enabling France to provide contributions to the initial programme of EUMETSAT on the due date.

RESOLUTION ON
SPECIAL PAYMENT ARRANGEMENTS FOR SOME MEMBER STATES

**Adopted at the 4th meeting of the EUMETSAT Council
on 23 - 24 April 1987**

The EUMETSAT Council,

CONSIDERING the special circumstances of the payment of contributions by Sweden, Denmark, Finland and Ireland for the period until the end of the Meteosat Operational Programme. All of these countries have established internal budgetary provision for level payments during the course of the MOP and had previously arranged a corresponding payment procedure with ESA for contributions due during the early years of the programme. The Council had, at its previous meeting, requested the Secretariat to define, in cooperation with the States concerned, payment procedures for consideration by Council. The draft payment procedures are given in EUM/C/87/10,

CONSIDERING that Sweden had declared its position regarding level payments when signing the Convention,

NOTING that the PB-OM, in anticipation of the EUMETSAT Council, has accepted special payment arrangements with Denmark and Finland,

AGREES that this is a special case where Art. 12(6) and (7) of the EUMETSAT Financial Rules shall not apply,

NOTING with pleasure that Denmark is now able to offer an increased contribution, from 0.5 to 0.58%, during remaining years of the programme in support of the efforts to solve the shortfall problem,

AGREES to the payment procedures for the Member States mentioned under paragraph 1 as described in EUM/C/87/10 in accordance with the Convention, Article 5.2 (b) (iv).

RESOLUTION ON
THE PREPARATION OF METEOSAT SECOND GENERATION

**Adopted at the 5th meeting of the EUMETSAT Council
on 16 and 17 September 1987**

The EUMETSAT Member States,

RECALLING the primary objective of EUMETSAT to establish, maintain and exploit European Systems of operational meteorological satellites,

RECALLING that the initial programme of geostationary satellites (Meteosat Operational Programme) will expire in 1995,

BEARING IN MIND that geostationary satellites have become an indispensable part of modern meteorology,

CONSIDERING the necessity to provide for continuity in the utilisation of geostationary satellites,

NOTING the EUMETSAT Long Term Plan defining the major elements of possible future EUMETSAT activities,

RECALLING that the Congress of WMO urges the continuation of the meteorological satellite system as a contribution to the World Weather Watch,

NOTING that the European Space Agency (ESA) started in 1984 to consider requirements for a Meteosat Second Generation,

NOTING that ESA within the framework of the Earth Observation Preparatory Programme is conducting a number of studies for the development of a Meteosat Second Generation,

NOTING that the Long Term Plan of ESA to be considered by ESA's ministerial meeting in November 1987 provides a programme proposal for the development of Meteosat Second Generation by ESA in the context of development of advanced space technology,

NOTING that this proposal assumes a participation of EUMETSAT in the development and operation of the Meteosat Second Generation,

CONSIDERING the advantages of a cooperation between EUMETSAT and the European Space Agency in the development of an advanced design of geostationary satellites capable of meeting requirements into the second decade of the next century,

AGREE:

- I** to consider the development and operation of geostationary satellites beyond the initial Meteosat Operational Programme as an issue of utmost priority,
- II** in principle that EUMETSAT shall cooperate with the European Space Agency in this field in order to define the requirements for a second Meteosat generation, and in order to prepare for the development and the operations of these satellites,
- III** to use part of the resources (personnel, studies) approved within the EUMETSAT support activities to start cooperating with ESA in phase A and pre-phase A activities (definition of requirements),
- IV** to request the Director of EUMETSAT to submit to Council a detailed programme proposal in 1989, defining a follow on programme to MOP, the costs, a scale of contributions and the legal basis for the programme within the EUMETSAT Convention.

**RESOLUTION ON
HEADQUARTERS AGREEMENT**

**Adopted at the 6th meeting of the EUMETSAT Council
on 2 and 3 December 1987**

The EUMETSAT Council,

RECALLING that the EUMETSAT Council at its 1st meeting on 19 June 1986 decided to locate EUMETSAT's Headquarters in Darmstadt, following the invitation of the Federal Republic of Germany to host EUMETSAT,

RECALLING that the Protocol on Privileges and Immunities has been opened for signature on 1 December 1986,

BEARING IN MIND that the negotiations with the Federal Republic of Germany on a draft text of a Headquarters Agreement have been completed on 23 June 1987,

- I EXPRESSES** its deep concern that there is still no finalisation of the Headquarters Agreement,
- II EXPRESSES** the wish that EUMETSAT should have the same legal status as other international organisations in general and as other international organisations in the Federal Republic of Germany in particular,
- III EXPRESSES** furthermore the wish to start the construction of a Headquarters building without delay,
- IV INVITES** the Federal Republic of Germany to do its utmost to expedite the necessary internal arrangements for finalising the Headquarters Agreement as soon as possible.

**RESOLUTION ON
HEADQUARTERS BUILDING**

**Adopted at the 6th meeting of the EUMETSAT Council
on 2 and 3 December 1987**

The EUMETSAT Member States,

RECALLING that the EUMETSAT Council at its 1st meeting on 19 June 1986 decided to locate EUMETSAT's Headquarters in Darmstadt, Germany,

RECALLING that the town of Darmstadt provided for provisional accommodation until a final Headquarters building has been found,

RECALLING that the Federal Republic of Germany offered at the 1st EUMETSAT Council meeting to provide for EUMETSAT Headquarters in Darmstadt at no cost for EUMETSAT referring to Headquarters requirements submitted to the Operational Meteorological Programme Board (ESA/PB-OM(85)9),

BEARING IN MIND that the EUMETSAT Council has agreed at its 5th meeting on 16/17 September 1987 on the Long Term Plan as a basic document for reference and guidance on EUMETSAT's future activities,

RECOGNISING that the accommodation requirements for EUMETSAT Headquarters in the Long Term Plan relate to activities of EUMETSAT subject to approval by the Council,

WISHING to have a sound basis for the construction of a Headquarters building,

EMPHASISING the need for the finalisation of the Headquarters Agreement,

AGREE:

- I** to invite the Federal Republic of Germany to submit in close cooperation with the Secretariat a proposal for the implementation of its offer to provide for a Headquarters building,
- II** a Headquarters building shall be set up in accordance with the requirements to be decided by the Council taking into account the Long Term Plan (cf. EUM/C/87/Rev. 2),
- III** to choose an adequate site and to design a modular building with a potential for growth,
- IV** the objective shall be to have the building completed in 1990,
- V** a procedure for the planning and the construction of the building shall be submitted by the Director at the next the Council meeting.

RESOLUTION ON
THE INVITATION TO AUSTRIA TO ACCEDE TO
THE EUMETSAT CONVENTION
Adopted at the 7th meeting of the EUMETSAT Council
on 22 - 24 March 1988

The EUMETSAT Council,

RECALLING EUMETSAT's role as the European Organisation for the Exploitation of Meteorological Satellites,

RECALLING that Austria has currently observer status in the EUMETSAT Council,

RECALLING the principles of data distribution agreed by the EUMETSAT Council on 23 March 1988, which give full access to EUMETSAT's data, products and services exclusively to Member States,

NOTING that the Meteosat system is already used extensively in Austria,

EMPHASISING that only EUMETSAT Member States have the right to charge national bodies for the use of Meteosat data,

RECALLING that Meteosat Second Generation (MSG) will be developed together with ESA,

RECOGNISING that Austria has become a full member of ESA, thus also becoming involved in Meteosat activities at the development stage,

CONSIDERING that Meteosat Second Generation will be of paramount importance for providing basic meteorological data in Europe over the next decades,

BEARING IN MIND the importance of meteorological satellites within the World Weather Watch of the WMO and in particular to developing countries of Africa,

WISHING to strengthen the European cooperation in space technology and its application,

EXPRESSES the wish that the Federal Republic of Austria should accede to the EUMETSAT Convention and become a full member of EUMETSAT. The Chairman of the Council is invited to transmit this resolution to the Federal Republic of Austria.

RESOLUTION ON
THE PREPARATION OF FUTURE SATELLITE PROGRAMMES

Adopted at the 8th meeting of the EUMETSAT Council
on 22 - 23 June 1988

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention and in particular to Article 2.1, which states as the primary objective of EUMETSAT to establish, maintain and exploit European systems of operational meteorological satellites,

RECALLING that the initial programme of geostationary satellites (Meteosat Operational Programme) will expire in 1995,

BEARING IN MIND the EUMETSAT Long Term Plan defining major elements of possible future EUMETSAT activities (EUM/C/87/2 Rev.2), and the outline of future major programmes (EUM/C/88/24 Rev.1),

HAVING REGARD to Council Resolution EUM/C/Res. IV adopted at the 5th Council meeting on 16 and 17 September 1987, concerning the preparation of Meteosat Second Generation,

HAVING REGARD to Council Resolution EUM/C/Res. X adopted at the 8th Council on 22 and 23 June 1988, concerning the preparation of a EUMETSAT contribution to Polar Orbiting Systems,

DESIRING to define new programmes soon as possible,

- I** **AGREE** to undertake preparatory activities with regard to future programmes as described in EUM/C/88/23 Rev. 1 and in the Annex to this Resolution. The preparatory activities shall start on 1 January 1989,
- II** **RECOGNISE** that preparatory activities are part of the core tasks of the EUMETSAT Secretariat as agreed in Article 2 of the EUMETSAT Convention,
- III** **AGREE** to discuss a General Budget with a view to funding all EUMETSAT prospective and core activities in 1990 and subsequent years. The GNP shall form the basis for the discussion of the Scale of Contributions to the General Budget,
- IV** **AUTHORISE** the Director to fund the preparatory activities for 1989 using part of the budgetary surplus 1987 on the basis of the MOP scale and to recruit the necessary minimum of staff to take up duties by January 1989.

DESCRIPTION OF THE EUMETSAT PREPARATORY ACTIVITIES

1 General

The EUMETSAT Preparatory Activities provide the necessary framework for preparations for new major programmes of EUMETSAT. These preparations include the initial studies establishing requirements and technical feasibility, followed by the development of specific programme proposals for new EUMETSAT activities.

2 Future Programmes

The planned future programmes of EUMETSAT include:

- the main programme for Meteosat Second Generation (MSG), due to start in 1990,
- the main programme for the first EUMETSAT Polar System (EPS1), due to start in 1990,
- the main programme for the second EUMETSAT Polar System (EPS2), due to start in 1994,
- an extension to the present ESA MOP programme, due start in 1995,
- a General Budget to cover Secretariat and core costs from late 1990.

The major programmes of immediate concern are Meteosat Second Generation (MSG) and the first EUMETSAT Polar System (EPS1). Preparation of these two programmes will be the first and major tasks of the Preparatory Activities. Preparation of the other programmes will also be initiated and carried out to the extent that resources permit.

3 Objectives

The Preparatory Activities will provide for each of the programmes studied:

- a detailed statement of requirements, supported by justifications, for endorsement by Council as a basis for the new programme proposal,
- feasibility analyses, to ensure that the requirements can be met in a cost effective way,
- outline designs, to provide a base-line for further study and to satisfy delegates that a sensible solution is envisaged,
- system specifications suitable for presentation to ESA, Industry or other partners, against which costed proposals can be made,
- an implementation schedule giving the planning for the new programme,
- a Programme Proposal, for consideration by Council,
- resources needed to initiate the new programme without delay, after programme approval.

4 Staffing Principles

The main assumption regarding staffing is that EUMETSAT certainly needs staff to manage and coordinate activities. The actual execution of future programmes remains an open issue, subject to further study during the Preparatory Activities. Execution of new ground system activities will continue to be examined even during the early stages of the main MSG and EPS programmes.

Therefore EUMETSAT staffing policy during the Preparatory Activities will be to build up management expertise which can be applied also during the period of later programmes.

As regards technical staff, it is noted that the initial system of EUMETSAT, the Meteosat Operational Programme (MOP), has an approved technical management staff complement of four posts for this mature programme. The new MSG and EPS programmes will each require at least this number of technical management staff. The technical management to be established within the Preparatory Activities will take this perspective into account.

Concerning administrative staff, it is noted that EUMETSAT does not have a large infrastructure and cannot absorb additional tasks of a supporting administrative nature. In particular the organisation presently lacks a Contracts staff and Finance staff free to concentrate on new programmes. The development of this supportive infrastructure is also to be considered.

5 Schedule

The Preparatory Activities will start on 1st January 1989. A 4-year period is foreseen for the preparation of MSG and EPS. This period is chosen in order to be able to recruit suitable experienced and qualified staff and offer them a three or four year contract. During the period of the Preparatory Activities the resources required will vary, reaching a peak in the early part of the programme and then declining as the new programmes are established.

6 Control

Control will be exercised through the existing mechanisms of EUMETSAT, as defined by the Convention and the Financial Rules. The Preparatory Activities will form part of the annual budget 1989, defining resources (including person-years of internal effort) needed for that year. From 1990 on it is envisaged to carry out the Preparatory Activities, within the EUMETSAT General Budget based on a Scale of Contributions yet to be agreed. When new programmes are authorised the number of person-years assigned to the Preparatory Activities will decline as the resources needed for new programmes increases.

The number of EUMETSAT posts will also continue to be considered each

year by the Council. There will be one list of actual posts, covering all approved EUMETSAT activities.

By this means the Council will continue to be able to control the number of posts and the resources assigned to each activity whilst facilitating the necessary flexibility between activities as they evolve.

**RESOLUTION ON
THE PREPARATION OF POLAR SYSTEMS**

**Adopted at the 8th meeting of the EUMETSAT Council
on 22 - 23 June 1988**

The EUMETSAT Member States,

RECALLING that the EUMETSAT Convention states that the primary objectives of the organisation are to establish, maintain and exploit European systems of operational meteorological satellites,

NOTING with concern that the USA will not continue its programme of satellites in the morning polar orbit beyond about 1995,

BEARING IN MIND that polar satellites in both morning and afternoon orbits are essential for operational meteorology and that the morning orbit is of particular importance for Europe for geographic reasons,

EMPHASISING the necessity to provide for continuity in the utilisation of polar satellites,

NOTING the EUMETSAT Long Term Plan defining the major elements of future EUMETSAT activities,

RECALLING that the Congress of WMO urges the continuation of both the polar and geostationary meteorological satellite systems as a contribution to the World Weather Watch,

NOTING that the USA is planning a major Earth Observation System using a Polar Platform in afternoon orbit to meet both operational and research needs,

NOTING that the European Space Agency (ESA) is studying a polar platform programme which would complement the US programme,

CONSIDERING the advantages of a cooperation between EUMETSAT and the European Space Agency in the development of a design of polar satellites capable of meeting requirements into the second decade of the next century,

I **AGREE** to consider the development of EUMETSAT plans concerning instruments, facilities and ground systems for the ESA platforms and subject to technical compatibility for the US platform,

II **AGREE** to inform ESA and the relevant USA authorities of this decision,

- III** **AGREE** on the attached text of the letter to ESA and NOAA,
- IV** **AGREE** to use part of the resources (personnel, studies) approved for the preparatory activities to start this work,
- V** **AGREE** to request the Director of EUMETSAT to submit to the ninth meeting of Council a preliminary programme proposal containing an outline of programme contents, estimated costs, keys of contributions,
- VI** **AGREE** to request the Director of EUMETSAT to submit to Council a detailed programme proposal in 1989, defining an initial Polar System, the costs, scales of contributions and the legal basis for the programme within the EUMETSAT Convention.

Letter

To the Chairman of the ESA Council

Dear Dr

I have the honour to inform you that the EUMETSAT Council has now agreed to seek for the means to prepare, in cooperation with NOAA, a European contribution to the future system of polar meteorological satellites. This contribution would become effective in the mid 1990's as a continuation of the present series of operational NOAA satellites.

The EUMETSAT Council is aware that ESA is working with NASA to define a joint system of Polar Platforms which could satisfy both operational and research requirements over a period of many years. Furthermore the ESA Directorate of Earth Observation and Microgravity is exploring payloads for this platform, including the provision of research instruments. Meanwhile NOAA is working with NASA to evaluate the use of Polar Platforms for operational purposes as a coherent part of the wide ranging Earth Observation System.

There is clearly a strong common basis for these activities and decisions. The EUMETSAT Council wishes to state that Earth Observation for meteorological purposes is an activity which requires operational continuity. A core meteorological payload on a Polar Platform would be an essential element in any comprehensive scheme for earth observation from space, as the data from these instruments are relevant to the work of many disciplines.

A contribution by EUMETSAT to the system of ESA Polar Platforms would strengthen the role of ESA in developing a long term strategy for Earth Observation. Therefore continuation of the current operational systems should be a vital component of ESA's plans.

EUMETSAT and ESA already have a sound basis for cooperation in respect of the geostationary meteorological satellites systems, through the agreement already reached on the Meteosat Operational Programme and the preparations for Meteosat Second Generation. I hope that this cooperation can be extended into the polar systems through use of the ESA Polar Platform.

However, it first has to be established that ESA's Platform will fully meet, in a cost efficient manner, the operational requirements of EUMETSAT and NOAA.

I must stress that the primary requirement is for a long term system carrying the meteorological payload with high reliability. If these needs can be satisfied by the ESA system, then the EUMETSAT Council is fully prepared to seek ways and means to participate as a user in the definition of a long term Polar programme developed by ESA and to contribute to this programme through the provision of a meteorological payload.

The details of the meteorological requirements now need to be elaborated through joint discussions. The EUMETSAT Council is concerned to ensure that the operational meteorological needs are fully taken into account in the ESA planning and I therefore hope that you will arrange for this to be done.

I hope that you will endorse these views and look forward to hearing from you in order to establish a coherent long-term strategy for earth observation from polar orbit.

Yours faithfully,

Dr. A. Junod
Chairman of the EUMETSAT Council

Draft letter from the Chairman of the EUMETSAT Council

To Mr. Thomas N. Pyke,
Assistant Administrator for Satellite and Information Services, NOAA

Dear Mr. Pyke,

At its eighth meeting, the Council discussed future activities of EUMETSAT, with particular reference to possible contributions to future polar systems. Council members strongly endorse the importance of the operational meteorological satellite systems and are willing to seek ways and means to provide a specific European contribution to the polar systems beyond the current NOAA plans for satellites until NOAA K, L, M.

To this end the Council have agreed that the Director should prepare a new EUMETSAT programme which would tentatively include the provision of AMSU-B type instrument for flight on both the morning and afternoon satellites, together with a meteorological communications package for the morning satellite and an associated ground system. The communications package would include continuous broadcast of meteorological instrument data, acquisition of global data in a timely fashion and exchange of global data with NOAA. In preparation of this programme the Director would also begin preliminary discussions with NOAA on the legal framework for this contribution.

The complexity and cost of satellite programmes necessitates increased cooperation between potential contributors to ensure the continuity of these vital systems. I look forward to an era in which Europe can make an important contribution to polar satellites in addition to its current support for the geostationary system.

I am, yours faithfully,

Dr. A. Junod
Chairman of the EUMETSAT Council

**RESOLUTION ON
THE OUTLINE PROPOSAL FOR AN EUMETSAT GENERAL BUDGET**

**Adopted at the 9th meeting of the EUMETSAT Council
on 29 November - 1 December 1988**

The EUMETSAT Member States,

RECALLING Council Resolution EUM/C/Res. IX adopted at the 8th Council on 22-23 June 1988 concerning the preparation of future satellite programmes,

NOTING that in that Resolution the Council agreed to discuss a General Budget with a view to funding all EUMETSAT prospective and core activities in 1990 and subsequent years,

NOTING that the Council agreed that the GNP shall form the basis for the discussion of the scale of contribution to the General Budget,

CONSIDERING that the financial amounts needed are small in relation to satellite programme budgets,

BEARING IN MIND the extreme urgency of the situation and the need to assure the continuity of satellite programmes beyond 1995,

- I** **AGREE** on the principle of a General Budget embracing core and prospective activities as set out in document EUM/C/88/48,
- II** **REQUEST** the Director to submit a detailed proposal concerning the General Budget for 1990 at the tenth meeting of the Council,
- III** **AGREE** to adopt the attached scale of contributions which refers to GNP for several Member States for the General Budget 1990,
- IV** **AGREE** that the scale defined under III is to be regarded as interim and to be reviewed while discussing future programmes in order to provide for full financial coverage of the General Budget.

**General Budget 1990
Scale of Contributions**

<u>Resolution XI</u>			<u>For comparison</u>	
	Committed contribution (%)	Indicative amount (ECU)	GNP (%)	Indicative amount corresponding to GNP (ECU)
Germany	22.38	604,350	22.38	604,350
France	18.07	487,970	18.07	487,970
U.K.	15.69	423,692	15.69	423,692
Italy	12.00	324,048	14.54	392,638
Spain	5.49	148,250	5.49	148,250
Belgium	2.81	75,880	2.81	75,880
Switzerland	3.47	93,703	3.47	93,703
Netherlands	3.00	81,013	4.51	121,788
Sweden	0.93	25,114	3.29	88,843
Denmark	0.58	15,662	1.89	51,037
Norway	0.50	13,502	1.83	49,417
Turkey	0.50	13,502	1.81	48,877
Finland	0.35	9,450	1.78	48,067
Greece	0.30	8,100	1.20	32,404
Portugal	0.30	8,100	0.67	18,092
Ireland	0.11	2,970	0.57	15,392
		2,335,306	100.00	2,700,400
Not covered	13.52	365,094		
		2,700,400		

RESOLUTION

CONCERNING THE FUTURE OF THE EUMETSAT GENERAL BUDGET

**Adopted at the 9th meeting of the EUMETSAT Council
on 29 November - 1 December 1988**

The EUMETSAT Member States,

NOTING the serious situation regarding future budgets which will arise if agreement is not reached,

URGE all Member States to seek with the utmost urgency to contribute to the General Budget at the level of GNP.

**RESOLUTION ON
SPECIAL PAYMENT ARRANGEMENTS WITH GREECE**

**Adopted at the 9th meeting of the EUMETSAT Council
on 29 November - 1 December 1988**

The EUMETSAT Council,

CONSIDERING the ratification by Greece of the EUMETSAT Convention on 28 June 1988,

NOTING that Greece has offered to pay its full contribution in equal instalments during the remaining period of the Meteosat Operational Programme and that therefore no special payment towards the investments made for setting up the initial system in accordance with Art. 16.5 of the Convention is required,

AGREES to the payment procedure for Greece as described in EUM/C/88/68.

**RESOLUTION ON
HEADQUARTERS REQUIREMENTS**

**Adopted at the 9th Meeting of the EUMETSAT Council
on 29 November - 1 December 1988**

The EUMETSAT Member States,

HAVING REGARD to the Resolution EUM/C/Res. VI of 2/3 December 1987, in which the Council formally agreed that a Headquarters building shall be set up in accordance with the requirements to be decided by the Council,

RECALLING that these requirements shall take into account the Long Term Plan (EUM/C/87/2 Rev. 2),

RECALLING furthermore that the modular building to be established shall have a potential for growth,

RECOGNISING that the Secretariat has submitted Draft Building Requirements (EUM/C/88/61 Annex 1) for Phase 1 of the building, which cover core and prospective activities over the next years,

BEARING IN MIND that the 6th Administrative and Finance Group on 26-28 October 1988 considered these requirements and decided unanimously to recommend the Council to approve them,

EMPHASISING the need for a clear legal basis as regards the building requirements,

AGREE:

- I** the EUMETSAT Headquarters building, Phase 1, shall be set up in accordance with the requirements as defined in EUM/C/88/61 Annex 1. These requirements were established with a view to provide the necessary building for the current and prospective activities already agreed by the Council and to include a realistic potential for growth during the construction period of Phase 1 of the building. The building requirements shall in no way prejudice any future Council decisions on new programmes or new staff.
- II** the Director of EUMETSAT is authorised to negotiate with the Federal Republic of Germany the agreement by which the Federal Republic of Germany implements its offer to provide a Headquarters building at no cost for EUMETSAT on the basis of the building requirements agreed above. The agreement shall also include equipment and maintenance of the building.
- III** the construction of the building has become a matter of extreme urgency. All measures shall be undertaken to start the building works as soon as possible and not later than end of 1989.

**RESOLUTION ON
A EUROPEAN POLAR SYSTEM**

**Adopted at the 10th meeting of the EUMETSAT Council
on 19 - 20 June 1989**

The EUMETSAT Member States,

RECALLING Resolution X, concerning the preparation of polar systems, adopted at the 8th EUMETSAT Council on 22 - 23 June 1988,

NOTING that the European Space Agency has defined a strategy consisting of a number of polar satellites, with a phased implementation plan starting with a commitment for the first satellite,

NOTING with appreciation the European Space Agency Resolution ESA/PB-EO/XIII/Res. 1 concerning the Operational Meteorological Package,

NOTING with appreciation the intention of NOAA to continue the afternoon polar orbiter series,

EXPRESSING great concern that the cost to the European meteorological community of any morning polar orbiter system should be affordable and justified by the benefits,

STRESSING the necessity of meteorological data continuity over extended periods of time, from at least one of the polar orbiters,

NOTING the increasing importance of monitoring the earth's climate from space,

AGREEING that meteorological satellite data makes an important contribution to climate monitoring,

BEARING IN MIND the need of potential partners to receive further confirmation of EUMETSAT intentions, so that their own plans may develop in parallel,

AGREE:

- I** to consider with ESA and other partners the possibility of a second platform which would complement the first ESA platform and help provide data continuity in the event of launch or instrument failure,
- II** to prepare alternative and independent plans, including the possibility of a joint programme with NOAA, for a system of satellites designed to ensure data continuity in the morning polar orbit,

- III** to continue to develop plans for instrument provision to the morning satellites and, subject to technical compatibility, to the afternoon NOAA satellites and first NASA platform,
- IV** to inform ESA, NOAA and NASA on these matters.

**RESOLUTION ON
ATLANTIC DATA COVERAGE**

**Adopted at the 10th meeting of the EUMETSAT Council
on 19 - 20 June 1989**

The EUMETSAT Member States,

RECALLING EUMETSAT's responsibility in the operation of a global satellite system,

HAVING REGARD to the urgent need to provide meteorological satellite data over the Atlantic following the failure of GOES-6,

BEARING IN MIND the generosity offered by the United States in making GOES-4 available when needed by Europe,

DESIRING to promote an operable global observation system,

AGREE:

- I** to ask ESA to move Meteosat-3 to about 50 degrees West and to provide the pre-processing of the satellite data and dissemination of High Resolution Formats from ESOC,
- II** to accept an offer by France to provide a complementary WEFAX service,
- III** to retain full control over Meteosat-3 and to move it back to its previous position if needed,
- IV** to limit the activity to a period not exceeding three years (31 October 1992),
- V** to consider shorter periods of operation, taking into account the current status of satellite systems, at future meetings of Council,
- VI** to fund this activity by using structural savings from the Meteosat Operational Programme.

**RESOLUTION ON
THE USE OF METEOSAT TO PROVIDE
ATLANTIC DATA COVERAGE**

**Adopted at the 11th Meeting of the EUMETSAT Council
on 5 - 6 December 1989**

The EUMETSAT Council,

RECOGNISING EUMETSAT's objective to provide meteorological satellite data covering its zones of interest,

CONSIDERING the need of EUMETSAT and its Member States to preserve access to meteorological geostationary data over the Atlantic Ocean during the absence of an American satellite in that position,

WISHING to contribute to global coverage of satellite data,

BEARING IN MIND that Meteosat-4 is providing data coverage over Europe and that Meteosat-3 is available as an in-orbit spare satellite,

RECALLING the Resolution by the 10th Council to move Meteosat-3 to about 50 degrees West to provide coverage over the Atlantic for a limited period (EUM/C/Res. XVI) and that this Resolution was not approved by all Member States,

CONSIDERING that Art. 5.2 (a) v of the Convention enables the Council to decide by unanimous vote on the modalities of systems matching the objectives of EUMETSAT,

DESIRING to have unanimous approval for this activity by all Member States,

AGREE:

- I** to share the cost of the activities related to Atlantic Data Coverage on the basis of the attached scale of contributions. The financial envelope of the activity shall be limited to 16 MECU,
- II** that the elements concerning the execution of Atlantic Data Coverage already defined in EUM/C/Res. XVI form an integral part of this decision.

ATLANTIC DATA COVERAGE

SCALE OF CONTRIBUTIONS

The Scale of Contributions referred to in I in the Resolution shall be as follows:

MEMBER STATES	% CONTRIBUTIONS
Germany	26.39
France	18.07
United Kingdom	16.76
Italy	12.00
Spain	5.24
Belgium	4.40
Switzerland	3.03
Netherlands	3.00
Sweden	0.93
Denmark	0.58
Norway	0.50
Turkey	0.50
Finland	0.35
Greece	0.30
Portugal	0.30
Ireland	0.11
Deficit	7.54 ¹
TOTAL	100.00

Special payment arrangements for some Member States contributing to ADC in accordance with the MOP-Scale remain valid.

¹ Deficit to be met by cuts in expenditure.

RESOLUTION ON
A PROGRAMME PROPOSAL FOR A EUMETSAT GENERAL BUDGET

**Adopted at the 11th meeting of the EUMETSAT Council
on 5 - 6 December 1989**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

NOTING that the current Meteosat Operational Programme is not defined in such a way to accommodate all core and prospective activities of EUMETSAT,

BEARING IN MIND the wish of the Council to embrace all core and prospective activities of EUMETSAT in a single General Budget,

RECALLING Council Resolution EUM/C/Res. IX concerning the preparation of new programmes,

RECALLING Council Resolution EUM/C/Res. XI containing the in principle agreement on a General Budget and the agreement on a scale of contributions for 1990,

RECALLING furthermore Council Resolution EUM/C/Res. XII, urging all Member States to seek with utmost urgency to contribute to the General Budget at the level of GNP,

HAVING REGARD to Art. 17.3 of the EUMETSAT Convention,

AGREE:

- I** to set up a General Budget as of 1 January 1990,
- II** to fund the General Budget on a GNP scale of contributions,
- III** to limit these contributions to a multi-year ceiling. For the period 1990 to 1995 the maximum amount is agreed to be 24 MECU at 1989 economic conditions,
- IV** that in addition, until 1995, an annual transfer of not more than 1.7 MECU at 1989 economic conditions plus any surplus authorised by Council, is made from MOP to the General Budget (partial cost of Secretariat),
- V** to amend Annexes I and II of the EUMETSAT Convention as defined in the attachment to this Resolution.

ANNEX I of the Convention will be amended as follows:

The current "System Description" remains unchanged but will become Chapter "A" with the headline "Meteosat Operational Programme".

Under a new Chapter "B" the activities associated with the General Budget will be defined as follows:

B GENERAL BUDGET

The General Budget will constitute the programmatic frame for all EUMETSAT core and prospective activities in 1990 and subsequent years.

Core activities shall be defined as those which are not linked to a specific programme. They represent the basic technical and administrative infrastructure of EUMETSAT including core staff, buildings and equipment.

Prospective activities mean preliminary activities authorised by Council in preparation of future programmes which are not yet approved.

ANNEX II of the Convention will be amended as follows:

The current paragraphs 1. and 2. remain unchanged, but will become Chapter "A" with the headline "Funding of the Meteosat Operational Programme". A new section "B" will be inserted with the following text:

B FUNDING OF THE GENERAL BUDGET

1 FUNDING

Part of the General Budget is funded until 1995 by regular transfer from the MOP budget to cover part of the cost of the Secretariat. The remaining financial envelope of the General Budget is subject to a multi-year ceiling agreed by the Council. This part of the General Budget is funded by the Member States in accordance with the following scale of contributions.

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the General Budget in accordance with the following scale of contributions:

MEMBER STATES	% CONTRIBUTIONS
Belgium	2.81
Denmark	1.89
Finland	1.78
France	18.07
Germany	22.38
Greece	1.20
Ireland	0.57
Italy	14.54
Netherlands	4.51
Norway	1.83
Portugal	0.67
Spain	5.49
Sweden	3.29
Switzerland	3.47
Turkey	1.81
United Kingdom	15.69
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1983-1985, applicable for the period 1988-1990. The scale will be updated in tri-annual intervals, starting 1 January 1991.

RESOLUTION ON
MODALITIES FOR THE IMPLEMENTATION OF RESOLUTION XVIII

**Adopted at the 11th meeting of the EUMETSAT Council
on 5 - 6 December 1989**

The EUMETSAT Member States,

HAVING REGARD to Res. XVIII and the setting up of the EUMETSAT General Budget as from 1990,

BEARING IN MIND the difficulties incurred by some Member States to immediately meet the financial requirements set up in the General Budget,

WISHING to secure the full funding of the General Budget as soon as possible,

AGREE that:

- I** Italy, Denmark and Portugal adapt to the GNP-scale over a period of 2 years in two steps starting from 1991,
- II** Greece, Finland, Norway, Spain, Sweden, Switzerland and Turkey adapt to the GNP-scale over a period of 3 years in incremental steps of 1/3 starting from 1990,
- III** The Netherlands and Greece fund their contributions with the reserve that the amount dedicated to meteorological satellite programmes until 1995 cannot be exceeded unless separately agreed (for the Netherlands: see reserve made when signing the Convention),
- IV** available 1988 surpluses from the MOP will be used as far as possible to cover any deficit that might occur in the transition period of 2 years starting in 1990.

**RESOLUTION ON
STAFF REQUIREMENTS 1990**

**Adopted at the 11th meeting of the EUMETSAT Council
on 5 - 6 December 1989**

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT as defined in its Convention, namely establishing, maintaining and exploiting European systems of meteorological satellites,

HAVING REGARD to the tasks of the Secretariat to implement the decisions taken by the Council and to execute the tasks assigned to EUMETSAT,

BEARING IN MIND the Council's decision regarding the exploitation of the current Meteosat Operational Programme and the preparation of a number of major future programmes relating to T-MOP, MSG and EUMETSAT Polar Systems, representing a financial volume of more than 2 billion ECU,

BEARING IN MIND the need to make sufficient staff available for a proper preparation of future programmes and supporting activities,

BEARING IN MIND also that the Scientific and Technical Group fully endorsed the staff request by the Director as being mandatory for the accomplishment of the tasks,

NOTING the general agreement in the AFG that the tasks described in the staff requirements are in accordance with the tasks entrusted to the Secretariat and have to be carried out,

STRESSING that the benefits to be expected from most of the staff proposed (in terms of cost/effective future programmes) by far exceed their cost,

CONSIDERING that decisions have to be taken now in view of the length of the recruitment procedure (sometimes more than a year is needed before a recruitment can be finalised),

AGREE:

- I** that for 1990 the Director should be authorised to issue vacancy notices for the 12 posts defined in Doc. EUM/C/89/31,
- II** that for 1990 the Director should be authorised to recruit 6 new staff members (4 A-grades, 2 B-Grades),

- III** that the Director shall set the priorities regarding which 6 posts of the staff complement to be filled in 1990,
- IV** that the Director should be invited, when setting priorities, to take especially into account those posts which may contribute most directly to safeguard cost-effectiveness for future programmes,
- V** that the 6 posts not filled by the Director are automatically blocked until the Council decides about an unblocking in 1990.

RESOLUTION ON
COMPONENT PROCUREMENT FOR
THE METEOSAT TRANSITION PROGRAMME (MTP)

Adopted at the 12th meeting of the EUMETSAT Council
on 31 May - 1 June 1990

The EUMETSAT Member States,

RECALLING the primary objectives of the Organisation to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING the end of the Meteosat Operational Programme in November 1995,

WISHING to ensure a continuous operational service as regards data from geostationary satellites,

BEARING IN MIND the urgency to ensure availability of electronic components for the space segment of MTP,

AGREE:

- I** on component procurement as from 1 July 1990 in order to safeguard the implementation of a later Meteosat Transition Programme,
- II** the measures to be taken for component procurement are defined in the document EUM/C/90/4,
- III** the maximum cost for the component procurement relating to one satellite amounts to 14.5 MECU,
- IV** for 1990 the expenditure shall be limited to 3 MECU. This amount shall be pre-financed from the surplus 1989 of MOP. It shall be refunded to MOP in 1991 within the MTP budget to be agreed,
- V** the Scale of Contributions of a new Meteosat Transition Programme remains open until a decision is taken,
- VI** this decision on component procurement does not prejudice a decision on the new Meteosat Transition Programme.

**RESOLUTION ON
THE TECHNICAL OPTION TO BE CHOSEN FOR
METEOSAT SECOND GENERATION**

**Adopted at the 12th meeting of the EUMETSAT Council
on 31 May - 1 June 1990**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

BEARING IN MIND that for the accomplishment of this objective in geostationary orbit, a second generation of Meteosat satellites should be available as soon as possible after expiration of the Meteosat Operational Programme (MOP),

NOTING the output of the feasibility studies for the spinning concept, which presents the minimum cost and development risk, whilst potentially able to provide a significant improvement in mission performance,

NOTING that a Programme Proposal for Meteosat Second Generation starting in 1991 shall be submitted to the 13th Council Meeting,

AGREE that the technical content of this programme would consist of a series of **spin-stabilised satellites**, the main characteristics of which are described in the Attachment to this Resolution.

TECHNICAL CONTENT OF THE MSG SPACE SEGMENT PROGRAMME

The Meteosat Second Generation Programme would consist of a series of **spin-stabilised satellites**,

The core payload to be studied during Phase A will comprise a visible and infra-red imaging capability with a high resolution visible channel, and include a capability for improved wind measurement accuracy and monitoring of atmospheric instability,

The platform would have a growth potential for additional scientific or pre-operational instruments, which would not be design drivers for the telecommunications payload, nor cost drivers for the entire system.

RESOLUTION
CONCERNING THE USE OF THE ESA POLAR PLATFORM

**Adopted at the 12th meeting of the EUMETSAT Council
on 31 May - 1 June 1990**

The EUMETSAT Member States,

HAVING REGARD for the EUMETSAT requirement for operational meteorological data in the morning polar orbit, which are of particular value to European meteorological services,

BEING AWARE that from about 1997 the USA will concentrate on provision of data from the afternoon polar orbit, which are of particular value to the Americas,

NOTING the ESA Programme Proposal for a first Polar Platform,

TAKING INTO ACCOUNT the published ESA Strategy for earth observation,

WELCOMING the offer by ESA to provide a flight opportunity for operational instruments on the first ESA Polar Platform,

HAVING REGARD to the EUMETSAT requirements for long term data continuity which are not met by the single ESA platform,

NOTING that the complexity of the large ESA Polar Platform could cause economic constraints on the possibility of reflight following a potential premature failure of the meteorological operational payload,

NOTING the recommendation by the EUMETSAT Scientific and Technical Group at its 11th meeting on 20 - 22 March 1990,

AGREE:

- I** to instruct EUMETSAT urgently to negotiate with ESA with the aim of reaching a satisfactory solution to EUMETSAT's requirements before the end of September 1990,
- II** that the Director be instructed to inform ESA that use of the Polar Platform will be considered by EUMETSAT if EUMETSAT's operational requirements can be met,

- III** that the essential requirements of EUMETSAT are:
- i. continuity and reliability of the operational observations,
 - ii. compatibility in payload, data and reliability with the NOAA operational missions,
 - iii. appropriate priority for the operational payload in technical and programme aspects,
- IV** that EUMETSAT has a strong need for the inclusion in the operational payload of an advanced infra-red sounder,
- V** that the desired strategy to meet EUMETSAT requirements for data continuity would be for ESA to take a binding commitment to prepare, with the cooperation of EUMETSAT, a series of Polar Platforms on which the operational payload could be carried at suitable intervals,
- VI** that a satellite concept suited to EUMETSAT needs would be such that it could be adapted for use and affordable by EUMETSAT independently should ESA not be able to proceed beyond the first platform,
- VII** that, in order to achieve EUMETSAT's requirements, ESA should consider combining the operational meteorological payload with the emerging operational requirements for monitoring other components of the climate system on missions which are operational in character,
- VIII** that EUMETSAT shall continue to seek alternative means to achieve its requirements for observations from polar orbit.

**RESOLUTION ON
AMENDMENTS TO THE EUMETSAT CONVENTION**

**Adopted at the 12th meeting of the EUMETSAT Council
on 31 May - 1 June 1990**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention in force since 19 June 1986,

RECALLING that the EUMETSAT Convention, although allowing to exploit several satellite programmes, was originally conceived to manage the initial Meteosat Operational Programme,

NOTING that during the implementation of the Convention a number of deficiencies were identified,

CONSIDERING that EUMETSAT is currently preparing major investments into its future,

EMPHASISING that the envisaged Meteosat Transition Programme, Meteosat Second Generation and EUMETSAT Polar System are future programmes of high importance to the whole European Meteorological Community and should therefore be core programmes of EUMETSAT funded by all Member States,

REALISING the need for EUMETSAT to have an appropriate legal frame for an efficient management of its future programmes,

BEARING IN MIND the urgency to set up the new programmes without any delay,

AGREE:

I to consider a number of points in the EUMETSAT Convention for amendments:

- inclusion of core and optional programmes,
- voting procedures which should distinguish between the basic management of the Convention (voting procedures as in the current Convention) and the management of a programme (voting procedures linked to contributions),
- mechanism for determining the financial ceilings of programmes and reviewing them in special cases as necessary (e.g. excessive

expenditure),

- review of other aspects which have been found deficient and not adapted to requirements of EUMETSAT (e.g. management of several budgets and ownership of data),

II to invite the Secretariat to submit to the next Council through PAC a draft proposal for amendments to the Convention,

III to prepare new programmes and amendments of the Convention in parallel. The basic elements of amendments should be agreed by Council before the main programme proposals are adopted. Any amendments agreed would then undergo the formal procedure of acceptance by the Member States without delaying the setting up of new programmes, at the same time ensuring that the major elements of the amendments might become relevant already for the implementation of any new programme.

**RESOLUTION ON
THE METEOSAT TRANSITION PROGRAMME (MTP)**

**Adopted at the 13th meeting of the EUMETSAT Council
on 27 - 29 November 1990**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that the activities under the Meteosat Operational Programme (MOP) will end in November 1995,

NEEDING to ensure a continuous operational service to provide data from geostationary satellites, and to fill the gap between MOP and MSG,

BEARING IN MIND the urgency of the development schedules of the space and ground segments to enable continuation of operations from December 1995,

AGREE:

- I** to establish a Meteosat Transition Programme in order to provide an operational service from the end of the Meteosat Operational Programme in November 1995 until December 2000,
- II** that the Meteosat Transition Programme shall include:
 - the manufacture and launch of one new satellite with a scheduled launch date in the last quarter of 1995,
 - advance activities in order to ensure the possibility of a future decision to manufacture a second new satellite,
 - the development of a ground segment to take over operations of the MOP and MTP satellites from December 1995,
 - the necessary operations of the ground segment until December 2000,
 - the necessary programme management and technical resources for the space and ground segments,
 - technical protection of data according to the EUMETSAT data policy,

- III** that the programme will be implemented in two slices.

The first slice includes the manufacture of one new satellite, advance activities for a possible second satellite, definition of the ground segment and programme management.

The second slice includes the implementation of the ground segment, the satellite launch and the operation of space and ground segments for 5 years,

- IV** to authorise the implementation of the first slice of activities as from 1st January 1991, within the financial envelope of 110 MECU at 1989 economic conditions,
- V** to consider the authorisation of the second slice of activities after relevant results become available from the first slice, however, within an overall programme ceiling of 280 MECU at 1989 economic conditions,
- VI** to fund the Meteosat Transition Programme on a Scale of Contributions based on the Gross National Product of the Member States,
- VII** to amend Annexes I and II of the EUMETSAT Convention as defined in the attachment to this Resolution.

ANNEX I of the Convention will be amended as follows:

The current "System Description", as amended by EUM/C/Res. XVIII remains unchanged, but under a new Chapter "C" the activities associated with the MTP will be defined as follows:

C - METEOSAT TRANSITION PROGRAMME

1 INTRODUCTION

The Meteosat Transition Programme will ensure the continuation of the service provided by meteorological satellites in geostationary orbit after 30 November 1995, until 1 December 2000.

2 THE GROUND SEGMENT

A ground segment will be developed to take over operations of the MOP and MTP satellites in December 1995. The ground segment will be used to provide routine operations support until 1 December 2000.

3 SPACE SEGMENT

The MTP space segment consists of a single new satellite of the same design as the latest Meteosat satellite (MOP-3), with a launch date scheduled for late 1995. In addition, advance activities will be performed to ensure the possibility of a future decision to manufacture a second new satellite.

4 IMPLEMENTATION PLAN

That the programme will be implemented in two slices. The first slice includes the manufacture of one new satellite, advance activities for a possible second satellite, definition of the ground segment and programme management.

The second slice includes the implementation of the ground segment, the satellite launch and the operation of space and ground segments for 5 years.

The authorisation to proceed with the second slice of activities will take into account relevant results from the first slice.

ANNEX II of the Convention will be amended as follows:

The current Chapters A ("Funding of the Meteosat Operational Programme") and B ("Funding of the General Budget") remain unchanged, but a new Chapter "C" will be inserted with the following text:

C - FUNDING OF THE METEOSAT TRANSITION PROGRAMME,

1 FINANCIAL ENVELOPES

The first slice of activities defined in Annex 1, Chapter C ("Meteosat Transition Programme") will have a financial envelope of 110 MECU at 1989 economic conditions. The overall programme envelope (first + second slices) shall not exceed 280 MECU at 1989 economic conditions.

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the Meteosat Transition Programme Budget in accordance with the following scale of contributions:

MEMBER STATES	SCALE (%)
Germany	22.76
France	18.03
Italy	15.33
United Kingdom	14.63
Spain	5.99
Netherlands	4.33
Switzerland	3.63
Sweden	3.30
Belgium	2.87
Denmark	1.98
Finland	1.83
Norway	1.68
Turkey	1.39
Greece	0.96
Portugal	0.74
Ireland	0.55
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1986-1988 applicable for the period 1991-93. The scale will be updated in tri-annual intervals, starting 1 January 1994.

**RESOLUTION ON
THE METEOSAT SECOND GENERATION PREPARATORY PROGRAMME
(MSG/PP), PHASE A**

**Adopted at the 13th meeting of the EUMETSAT Council
on 27 - 29 November 1990**

The EUMETSAT Member States,

RECALLING the primary objectives of the Organisation, as defined in the EUMETSAT Convention, to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that the programme of geostationary satellites (Meteosat Operational Programme) will expire in November 1995,

BEARING IN MIND the necessity to ensure the continuity of a meteorological coverage over Europe and Africa after that date, taking into account an advanced space technology,

NOTING with satisfaction the positive results of feasibility studies related to a system of advanced geostationary spin satellites, which have been completed under ESA responsibility,

RECALLING the Council Resolution EUM/C/Res. XXIII on the Council objectives for continuity of a meteorological mission in geostationary orbit,

IN CONFORMITY WITH Article 17.3 of the EUMETSAT Convention,

AGREE:

- I** To establish a Preparatory Programme for Meteosat Second Generation (MSG/PP), Phase A, for a period of one year as from the 1 January 1991,
- II** This MSG Preparatory Programme, Phase A, will correspond to the preparation of a meteorological observation geostationary spin satellite series, to be positioned at 0°N-0°E after 1998. The Programme contents and the provisional total programme cost are described in Doc. EUM/C/90/27,
- III** To fund this Preparatory Programme on the basis of the GNP scale of contributions of the Member States within a cost envelope of 4 MECU,
- IV** To later consider the extension of this Preparatory Programme to a Phase B for the MSG system definition in the light of the results of Phase A. At the end of Phase B the full Programme Proposal shall be decided,

V To amend as follows the Annexes to the EUMETSAT Convention:

ANNEX I of the Convention will be completed by a new chapter "D":

D PREPARATORY PROGRAMME FOR METEOSAT SECOND GENERATION: PHASE A

Phase A of the MSG Preparatory Programme corresponds to the definition of a geostationary satellite system to ensure operational continuity of the present Meteosat system.

This phase is foreseen for one year, starting from the 1 January 1991.

Phase A, in 1991, will study the feasibility of a spin satellite system embarking a visible and infra-red imaging radiometer (SEVIRI) in support of a multi-spectral high resolution imagery mission and of an atmospheric instability monitoring mission as well as complementary instruments which will neither become design drivers nor cost drivers for the system as described in the Annex to this Resolution.

The results of a System Concept Review, to be carried out at completion of Phase A, will allow Council to take a decision on the extension of this Programme to a Phase B.

Phase B, in 1992, will refine and review the concepts studied during Phase A and will lead to the final definition of the system and its architecture.

At the end of Phase B, a decision on the full Programme Proposal will be considered.

ANNEX II of the Convention shall be completed with a next section "D":

D MSG/PP OVERALL ENVELOPE AND SCALE OF CONTRIBUTIONS:

The budgetary envelope for the MSG/PP Programme is estimated at 4 MECU for the financial year 1991, with a scale of contribution based on GNP:

MEMBER STATES	SCALE (%)
Germany	22.76
France	18.03
Italy	15.33
United Kingdom	14.63
Spain	5.99
Netherlands	4.33
Switzerland	3.63
Sweden	3.30
Belgium	2.87
Denmark	1.98
Finland	1.83
Norway	1.68
Turkey	1.39
Greece	0.96
Portugal	0.74
Ireland	0.55
TOTAL	100.00

METEOSAT SECOND GENERATION REQUIREMENTS FOR PHASE A

1 SYSTEM DESCRIPTION

- 1 The MSG space segment will consist of a series of spin-stabilised satellites in geostationary orbit at 0 Degree N-0 Degree E and operable between the limits of ± 45 Degree longitude.
- 2 This system, based on two satellites in orbit simultaneously (one operational and one back-up) will be designed for a 12 year operation period after commissioning of the first flight model.
- 3 In accordance with EUM/C/Res. XXIII, all satellites will carry a core payload, consisting of the following sub-systems:
 - a) An imaging radiometer, referred to as SEVIRI (Spinning Enhanced Visible and Infra-Red Imager), in support of both basic and high resolution imagery missions as well as of air mass analysis.
 - b) Meteorological communication payload (MCP) for dissemination and relay of images as well as meteorological and environmental data and products.
- 4 A complementary payload, experimental or operational, which should not become a design driver for the system.
- 5 MSG Ground Segment will comprise the following functional elements:
 - a) satellite and mission control facilities,
 - b) image processing and dissemination facilities,
 - c) meteorological product extraction facilities,
 - d) a central archive.

2 PHASE A: CONTENT

Therefore, in 1991 phase A activities should concentrate on the definition of

- 1 a baseline SEVIRI with the set of channels which has been defined by SGATC and STG as meeting Council requirements stated in EUM/C/Res. XXIII,
- 2 a baseline MCP with raw data downlink and pre-processed data dissemination using the same frequency bands as MOP,
- 3 the complementary payload, after review of a call for ideas,
- 4 meteorological data and products to be disseminated,
- 5 ground segment architecture concepts,
- 6 the legal framework.

**RESOLUTION ON
TECHNICAL PROTECTION OF EUMETSAT DATA**

**Adopted at the 13th meeting of the EUMETSAT Council
on 27 - 29 November 1990**

The EUMETSAT Member States,

RECALLING that the primary objective of EUMETSAT is to exploit European systems of meteorological satellites,

RECALLING the EUMETSAT Distribution and Charging Policy as defined by the EUMETSAT Council in EUM/C/Res. VII,

NOTING that any efficient distribution policy requires the possibility of control of access to the data,

NOTING that legal instruments alone cannot properly ensure a control of the EUMETSAT distribution policy,

REALISING that an efficient control of data can only be guaranteed by technical means,

NOTING the need to evaluate the cost of technical control,

AGREE:

- I** that access to EUMETSAT's satellite data shall be properly controlled through adequate technical means,
- II** to invite the Secretariat to submit as soon as possible a proposal and a time-schedule with regard to the implementation of the principle of technical control of access to digital image data in current and future programmes,
- III** to invite the Secretariat to prepare, with the STG, detailed schedules of meteorological data to be transmitted over the MDD mission within the framework of the system of MDD technical control now in preparation.

**RESOLUTION ON
STAFF REQUIREMENTS 1991**

**Adopted at the 13th meeting of the EUMETSAT Council
on 27 - 29 November 1990**

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT as defined in its Convention, namely establishing, maintaining and exploiting European systems of meteorological satellites,

HAVING REGARD to the tasks of the Secretariat to implement the decisions taken by the Council and to execute the tasks assigned to EUMETSAT,

BEARING IN MIND the Council's decisions on the Meteosat Transition Programme, a Preparatory Programme for MSG, and preparatory activities for EPS,

BEARING IN MIND the need to make sufficient staff available for a proper execution of all EUMETSAT programmes and the preparation of the new programmes,

BEARING IN MIND that the Scientific and Technical Group fully endorsed the staff requirements for the new programmes as set out in Doc. EUM/C/90/31,

NOTING that the Policy Advisory Committee and the Administrative and Finance Group requested to set up a priority list for the 40 staff requested in Doc. EUM/C/90/31,

NOTING that the staff bid raises important issues for the future of EUMETSAT,

AGREE:

- I** to authorise an immediate increase in staff complement by twenty posts in 1991, advising the Director that the immediate priorities are:
 - adequate staff for programme management,
 - staff needed to prepare future ground systems,
 - essential support staff in the Administrative Department,
- II** to request the PAC to make a close examination of the longer term priorities and to recommend an overall policy, especially with respect to the space segment and relationship with ESA,
- III** to re-examine the question at the 14th meeting of Council.

RESOLUTION ON
MODALITIES FOR THE IMPLEMENTATION OF THE
METEOSAT TRANSITION PROGRAMME (MTP)

Adopted at the 13th meeting of the EUMETSAT Council
on 27 - 29 November 1990

The EUMETSAT Member States,

HAVING REGARD to the Res. XXVII and the setting up of the Meteosat Transition Programme as from 1991,

BEARING IN MIND the difficulties incurred by some Member States to immediately meet the requirements of the agreed scale of contributions (GNP),

WISHING to secure the full funding of the MTP Programme as soon as possible,

AGREE that:

Finland and Ireland adapt to the GNP-scale over a period of three years in incremental steps of 1/3 starting from 1991.

**RESOLUTION ON
COMPONENT PROCUREMENT
FOR THE METEOSAT TRANSITION PROGRAMME (MTP)**

**Adopted at the 13th meeting of the EUMETSAT Council
on 27 - 29 November 1990**

The EUMETSAT Member States,

RECALLING the primary objectives of the Organisation to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING the end of the Meteosat Operational Programme in November 1995,

WISHING to ensure a continuous operational service as regards data from geostationary satellites,

BEARING IN MIND the urgency to ensure availability of electronic components for the space segment of MTP,

AGREE:

- I** on component procurement as from 1 July 1990 in order to safeguard the implementation of a later Meteosat Transition Programme,
- II** the measures to be taken for component procurement are defined in documents EUM/C/90/4 and EUM/C/90/33,
- III** the maximum cost for the component procurement amounts to 22.5 MECU,
- IV** for 1990 the expenditure shall be limited to 3 MECU. This amount shall be pre-financed from the surplus 1989 of MOP. It shall be refunded to MOP in 1991 within the MTP budget to be agreed,
- V** the scale of contributions of a new Meteosat Transition Programme remains open until a decision is taken,
- VI** this decision on component procurement does not prejudice a decision on the new Meteosat Transition Programme.

**RESOLUTION ON
SPECIAL PAYMENT ARRANGEMENTS
FOR THE METEOSAT TRANSITION PROGRAMME (MTP)**

**Adopted at the 15th meeting of the EUMETSAT Council
on 4 - 5 June 1991**

The EUMETSAT Member States,

HAVING REGARD to the Meteosat Transition Programme (MTP) adopted by the EUMETSAT Member States with effect of 23 April 1991,

NOTING that Denmark and Greece declared their position regarding level payments when adopting the Meteosat Transition Programme,

RECALLING that level payments to the Meteosat Operational Programme (MOP) were agreed by the 4th Council Meeting on 23 - 24 April 1987 (EUM/C/Res. III) for several EUMETSAT Member States,

BEARING IN MIND the internal budgetary procedures for payments in Denmark and Greece,

AGREE:

- I** that Denmark pays its contributions in equal instalments over the whole period of the Meteosat Transition Programme (10 years from 1991 to year 2000 inclusive),
- II** that Greece starts to pay its contributions in equal instalments once it has reached the full GNP scale in 1993,
- III** that equal instalments refer to the MTP financial envelope as fixed in the programme proposal EUM/C/90/26 (280 MECU at 1989 prices),
- IV** that the contributions are subject to an annual update according to the latest economic conditions approved by Council.

RESOLUTION ON
MODALITIES FOR THE IMPLEMENTATION
OF THE METEOSAT TRANSITION PROGRAMME (MTP)

Adopted at the 15th meeting of the EUMETSAT Council
on 4 - 5 June 1991

The EUMETSAT Member States,

HAVING REGARD to the Res. XXVII and the setting up of the Meteosat Transition Programme as from 1991,

BEARING IN MIND the difficulties incurred by some Member States to immediately meet the requirements of the agreed scale of contributions (GNP),

HAVING REGARD to the Res. XXXI on payment arrangements as regards Finland and Ireland,

WISHING to secure the full funding of the MTP Programme as soon as possible,

AGREE that:

Greece adapts to the GNP-scale over a period of three years in incremental steps of 1/3 starting from 1991.

RESOLUTION ON
THE IMPLEMENTATION OF THE
METEOSAT TRANSITION PROGRAMME (MTP) AND
THE METEOSAT SECOND GENERATION, PREPARATORY PHASE
(MSG/PP)

Adopted at the 14th (extraordinary) meeting of the EUMETSAT Council
on 23 April 1991

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that all Member States wish to participate in both the MTP and the MSG/PP in order to ensure the continuity of the European meteorological satellite programmes needed to provide essential data for meteorology and climate monitoring,

NOTING that the services provided by the current Meteosat Operational Programme will end in 1995 and can be continued without interruption only if these follow-up programmes (MTP and MSG/PP) are started without further delay,

NOTING further that the limit of validity of the industrial offers for MTP has been reached and that further delays would significantly increase the programme costs,

RECALLING that after intensive efforts aimed at achieving the required unanimity, 15 out of the 16 Member States have agreed to participate in both the MTP and MSG/PP on the basis of financial contributions proportional to GNP,

STRESSING that these 15 Member States are not in a position to accept any deviation from the GNP contribution scales,

FEARING that failure to reach agreement would be a very serious threat to European cooperation in meteorology, which has an outstanding record of success, and that such a failure would have negative consequences to related international programmes in earth observation and climate monitoring,

RECOGNISING the urgent necessity to reach agreement on both programmes at the earliest possible time in order to maintain the agreed financial envelope and the essential programme schedules,

URGE The Netherlands to reconsider its position with the utmost dispatch and to adopt the GNP scale, thus avoiding a crisis within EUMETSAT, allowing continued progress in European cooperation in the field of meteorology and enabling EUMETSAT to initiate these two programmes immediately in order to avoid cost increases due to further delays.

**RESOLUTION ON
AMENDMENTS TO THE CONVENTION**

**Adopted at the 15th meeting of the EUMETSAT Council
on 4 - 5 June 1991**

The EUMETSAT Council,

HAVING REGARD to the EUMETSAT Convention in force since 19 June 1986, and in particular to Article 17,

NOTING that during the implementation of the Convention a number of deficiencies were identified, in particular with regard to the establishment of new programmes,

CONSCIOUS of the need to evaluate future programmes within an adequate constitutional framework,

- I RECOMMENDS** to the Member States to accept the amendments to the Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites as set out in the "Amending Protocol" attached to this Resolution,
- II RECALLS** that the final date of formal entry into force of the amendments is determined by the receipt of "written declarations of acceptance" of the Member States in accordance with Article 17.2 of the Convention,
- III URGES** the Member States to accept the amendments to the Convention at the earliest possible date.

"AMENDING PROTOCOL"

AMENDMENTS TO THE CONVENTION FOR THE ESTABLISHMENT OF A
EUROPEAN ORGANISATION FOR THE EXPLOITATION OF
METEOROLOGICAL SATELLITES ("EUMETSAT"),
of 24 May 1983

The EUMETSAT Council in accordance with Article 17.1 of the EUMETSAT Convention recommends to accept the following amendments to the Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites ("EUMETSAT") of 24 May 1983, hereinafter referred to as "the Convention":

The **Considerata** of the Convention are amended as follows:

- A new paragraph is added under "Considering";
- All paragraphs under "Noting" are replaced by the following;
- The first paragraph under "Recognising" is replaced by the following;

"CONSIDERING that

- Meteorological Satellites, by virtue of their data coverage and operational characteristics, provide long term global data sets of vital importance for the monitoring of the earth and its climate, especially important for the detection of global change;

NOTING that:

- the World Meteorological Organization has recommended its members to improve meteorological data bases and strongly supported plans to develop and exploit a global satellite observation system in order to contribute to its programmes;
- the Meteosat satellites were successfully developed by the European Space Agency;
- the Meteosat Operational Programme (MOP) conducted by EUMETSAT has demonstrated Europe's capacity to assume its share of responsibility in the operation of a global satellite observation system;

RECOGNISING that:

- no other national or international organisation provides Europe with all the meteorological satellite data necessary to cover its zones of interest;"

Article 1

Article 1 of the Convention is amended as follows:

- The reference to Article 15.2 and 15.3 in paragraph 2 is replaced by a reference to Article 16.2 and 16.3.
- The word "Director" in paragraph 4 is replaced by "Director-General".
- Paragraph 5 is replaced by the following:

"The Headquarters of EUMETSAT shall be located in Darmstadt, Federal Republic of Germany, unless otherwise decided by Council in accordance with Article 5.2 (b) v."

Article 2

Article 2 of the Convention is amended as follows:

- The title and paragraphs 1 and 2 are replaced by the following;
- New paragraphs 4 - 9 are inserted;

"Article 2 - Objectives, Activities and Programmes

- 1** The primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization.

A further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes.

- 2** The definition of the initial system is contained in Annex I; further systems shall be established as defined in Article 3.
- 4** For the purpose of achieving its objectives EUMETSAT shall, as far as possible, and in conformity with meteorological tradition, cooperate with the Governments and national organisations of the Member States, as well as with Non-Member States and governmental and non-governmental international scientific and technical organisations whose activities are related to its objectives. EUMETSAT may conclude agreements to that end.
- 5** The General Budget comprises activities not linked to a specific programme. They shall represent the basic technical and administrative infrastructure of

EUMETSAT including basic staff, buildings and equipment as well as preliminary activities authorised by the Council in preparation of future programmes not yet approved.

- 6** The programmes of EUMETSAT shall include mandatory programmes in which all Member States participate and optional programmes with participation by those Member States that agree so to do.
- 7** Mandatory programmes are:
 - a) The Meteosat Operational Programme (MOP) as defined in Annex 1 of the Convention;
 - b) The basic programmes required to continue the provision of observations from geostationary and polar orbits;
 - c) Other programmes as defined as such by the Council.
- 8** Optional programmes are programmes within the objectives of EUMETSAT agreed as such by the Council.
- 9** EUMETSAT may, outside the programmes referred to in paragraphs 6, 7 and 8 above but not in conflict with the objectives of EUMETSAT, carry out activities requested by third parties and approved by the Council in accordance with Article 5.2 (a). The cost of such activities shall be borne by the third party concerned."

Article 3

Article 3 of the Convention is deleted and replaced by the following:

"Article 3 - Adoption of Programmes and the General Budget

- 1** Mandatory programmes and the General Budget are established through the adoption of a Programme Resolution by the Council in accordance with Article 5.2 (a), to which a detailed Programme Definition, containing all necessary programmatic, technical, financial, contractual, legal and other elements is attached.
- 2** Optional programmes are established through the adoption of a Programme Declaration by the Member States interested in accordance with Article 5.3 (a) to which a detailed Programme Definition, containing all necessary programmatic, technical, financial, contractual, legal and other elements is attached. Any optional programme shall fall within the objectives of EUMETSAT and be in accordance with the general framework of the Convention and the rules agreed by the Council for its application. The Programme Declaration shall be approved by the Council in an Enabling Resolution in accordance with Article 5.2 (d) iii.

Any Member State shall have the opportunity to participate in the preparation of a draft Programme Declaration and may become a Participating State of the optional programme within the time frame set out in the Programme Declaration.

Optional programmes take effect once at least one third of all EUMETSAT Member States have declared their participation by signing the Declaration within the time frame set out and the subscriptions of these Participating States have reached 90% of the total financial envelope."

Article 4

Article 4 of the Convention is amended as follows:

- In paragraph 1 the words "delegate of his country's meteorological service" are replaced by "delegate of the country's National Meteorological Service".
- In paragraph 4 the words "objectives of EUMETSAT" are replaced by "objectives and programmes of EUMETSAT".

Article 5

Article 5 of the Convention is amended as follows:

- Paragraph 2 is replaced by the following;
- A new paragraph 3 is inserted;
- Paragraphs 3 and 4 become paragraphs 4 and 5 and are amended;

2 The Council shall in particular be empowered,

- a) by a unanimous vote of all the Member States:
 - i. to decide on the accession of States referred to in Article 16, and on the terms and conditions governing such accession;
 - ii. to decide on the adoption of mandatory programmes and General Budget as referred to in Article 3.1;
 - iii. to decide on the ceiling of contributions for the General Budget for a period of five years one year before the end of the period or to revise such a ceiling;
 - iv. to decide on any measures of financing programmes, e.g. through loans;
 - v. to authorise any transfer from a budget of a mandatory programme to another mandatory programme;

- vi. to decide on any amendment of an approved Programme Resolution and Programme Definition as referred to in Article 3.1;
 - vii. to approve the conclusion of Cooperation Agreements with Non-Member States;
 - viii. to decide to dissolve or not to dissolve EUMETSAT in conformity with Article 20;
 - ix. to amend the Annexes to this Convention;
 - x. to approve cost overruns of more than 10% thereby increasing the original financial envelope or ceiling of mandatory programmes (except for MOP);
 - xi. to decide on activities to be carried out on behalf of third parties.
- b) by a two-thirds majority vote of the Member States present and voting representing also at least two-thirds of the total amount of GNP contributions (respectively MOP contributions for i. below):
- i. to adopt the annual budget for the MOP, together with the level of staff complements and the expenditure and income forecast for the following three years attached thereto;
 - ii. to adopt the Financial Rules as well as all other financial provisions;
 - iii. to decide on the way EUMETSAT will be dissolved pursuant to the provisions of Article 20.3 and 4;
 - iv. to decide on the exclusion of a Member State pursuant to the provisions of Article 14, and on the conditions of such exclusion;
 - v. to decide on any transfer of the EUMETSAT Headquarters;
 - vi. to adopt the Staff Rules;
 - vii. to decide on the distribution policy for satellite data for mandatory programmes.
- c) by a vote representing at least two-thirds of the total amount of contributions and one half of the Member States present and voting:
- i. to adopt the annual General Budget and the annual budgets for mandatory programmes (except for MOP), together with their level of staff complements and the expenditure and income forecast for the following three years attached thereto;
 - ii. to approve cost overruns of up to 10% thereby increasing the original financial envelope or ceiling (except for MOP);

- iii. to approve annually the accounts of the previous year, together with the balance sheet of the assets and liabilities of EUMETSAT, after taking note of the auditor's report, and give discharge to the Director-General in respect of the implementation of the budget;
 - iv. to decide on all other measures relating to mandatory programmes that have a financial impact on the Organisation;
- d) by a two-thirds majority of the Member States present and voting:
- i. to appoint the Director-General for a specific period, and terminate or suspend his appointment; in the case of suspension the Council shall appoint an Acting Director-General;
 - ii. to define the operational specifications of mandatory satellite programmes as well as the products and services;
 - iii. to decide that an envisaged optional programme falls within the objectives of EUMETSAT and that the programme is in accordance with the general framework of the Convention and the rules agreed by Council for its application;
 - iv. to approve the conclusion of any agreement with Member States, international governmental and non-governmental organisations, or national organisations of Member States;
 - v. to adopt recommendations to the Member States concerning amendments to this Convention;
 - vi. to adopt its own rules of procedure;
 - vii. to appoint the auditors and to decide the length of their appointments.
- e) by a majority of the Member States present and voting:
- i. to approve appointments and dismissals of senior staff;
 - ii. to decide on the setting-up of subsidiary bodies and working groups and define their terms of reference;
 - iii. to decide on any other measures not explicitly provided for in this Convention;

3 For optional programmes the following specific rules apply:

- a) The Programme Declaration shall be adopted by a two-thirds majority of Member States interested, present and voting.
- b) All measures for the implementation of an optional Programme shall be decided upon by a vote representing at least two-thirds of the contributions and one-third of the Participating States present and voting.

The coefficient of a Participating State is limited to 30%, even if the percentage of its financial contribution is higher.

- c) Any amendment of the Programme Declaration or any decision on accession requires unanimity of all Participating States.

4 Each Member State shall have one vote in the Council. However, a Member State shall have no vote in the Council if the amount of its arrears of contributions exceeds the assessed amount of its contributions for the current financial year. In such cases the Member State concerned may nevertheless be authorised to vote if a two-thirds majority of all the Member States entitled to vote considers that the non-payment is due to circumstances beyond its control. For the purpose of determining unanimity or the majorities provided for in the Convention, no account shall be taken of a Member State that is not entitled to vote. The above rules shall apply *mutatis mutandis* to optional programmes.

The expression "Member State present and voting" shall mean the Member States voting for or against. Member States that abstain shall be considered as not voting.

5 The presence of representatives of a majority of all the Member States entitled to vote shall be necessary to constitute a quorum. This rule shall be applied *mutatis mutandis* to optional programmes. Council decisions in respect of urgent matters may be secured by means of a written procedure in the interval between Council meetings."

Article 6

Article 6 of the Convention is amended as follows:

- The word "Director" is replaced by "Director-General" in the title of the Article and in paragraphs 1, 2 and 3.
- In paragraph 2, a new sub-paragraph d) is inserted. Consequently, sub-paragraphs d) to i) become e) to j). Sub-paragraph g) is amended to read "budgets" instead of budget.

"Article 6 - Director-General

1 The Director-General

2 The Director-General

- d) implement decisions of the Council regarding the financing of EUMETSAT;
- h) prepare and implement the budgets of EUMETSAT
implementation of the budgets

3 The Director-General"

Article 7

Article 7 of the Convention is amended as follows:

- In paragraph 1, the word "clause" is replaced by the word "Article".
- In paragraph 4, the reference to Article 5.2 (b) is replaced by a reference to Article 5.2 (e); in addition, in paragraphs 4 and 5, the word "Director" is replaced by "Director-General".

Article 8

A new Article 8 is inserted. Consequently, all the following Articles are shifted accordingly.

"Article 8 - Ownership and Distribution of Satellite Data

1 EUMETSAT shall have worldwide exclusive ownership of all data generated by EUMETSAT's satellites or instruments.

- 2 EUMETSAT shall make available sets of data agreed by the Council to the National Meteorological Services of Member States of the World Meteorological Organization.
- 3 The distribution policy regarding satellite data shall be decided in accordance with the rules laid down in Article 5.2 (b) for mandatory programmes and 5.3 (b) for optional programmes. EUMETSAT, through the Secretariat, and the Member States shall be responsible for the implementation of this policy."

Article 9

Article 8 of the Convention becomes Article 9 and it is amended as follows:

- In paragraph 2, the reference to Annex I to this Convention is deleted. Consequently, paragraph 2 ends after ".... the services provided".

Article 10

Article 9 of the Convention becomes Article 10 and it is amended as follows:

- Paragraphs 1, 3 and 4 are deleted;
 - Paragraph 2 becomes paragraph 1;
 - New paragraphs 2 to 7 are inserted;
 - Paragraphs 5 and 6 become paragraphs 8 and 9.
- "2 Each Member State shall pay to EUMETSAT an annual contribution to the General Budget and to the mandatory programmes (except for MOP) on the basis of the average Gross National Product (GNP) of each Member State for the three latest years for which statistics are available.

The update of the statistics shall be made every three years.

For MOP, each Member State shall pay to EUMETSAT an annual contribution on the basis of the scale contained in Annex II.

- 3 Member States are bound to pay their contributions to mandatory programmes (except MOP) up to a maximum of 110% if a decision is taken according to Art. 5.2 (c)(ii).
- 4 For optional programmes, each participating Member State shall pay to EUMETSAT an annual contribution on the basis of the scale agreed for the programme.

- 5 In the case an optional programme is not fully subscribed within one year after the date at which it has taken effect in accordance with Article 3.2 the existing participants are bound to accept a new scale of contributions whereby the deficit is distributed pro rata, unless they agree unanimously on a different solution.
- 6 All contributions shall be made in European Currency Units (ECU) as defined by the European Communities. For MOP, contributions may also be made in any convertible currency.
- 7 The methods of payment of the contributions, and the methods of updating the statistics for GNP, shall be determined in the Financial Rules."

Article 11

Article 10 of the Convention becomes Article 11 and it is amended as follows:

- The title is replaced by "Budgets".
 - Paragraph 1 is replaced by the following: "Budgets shall be established in terms of ECU".
 - In paragraph 3, the words "annual budget" are replaced by "budgets".
 - Paragraph 4 is replaced by the following:
- "4** The Council shall, in conformity with Article 5.2 (b) and (c), adopt the budget for MOP, the General Budget and the budgets for mandatory programmes for each financial year, as well as any supplementary and amending budgets. Member States participating in optional programmes shall adopt the budgets for these programmes in accordance with Article 5.3 (b)."
- In paragraph 5, the reference to the Council is deleted and the word "budget" is replaced by "budgets". The beginning of the paragraph therefore reads: "the adoption of the budgets shall constitute....". In sub-paragraph a) "budget" is also replaced by "budgets"; in sub-paragraph b) "Director" is replaced by "Director-General".
 - In paragraph 6, the reference to the Council is deleted, and "Director" is replaced by "Director-General". The beginning of paragraph 6 is therefore: "If a budget has not been adopted by the beginning of a financial year, the Director-General may make payments in each chapter of the corresponding budget...".
 - Paragraph 7 is replaced by the following:

"7 Member States shall pay each month, on a provisional basis and in accordance with the scale of contributions, the amounts necessary for the application of paragraph 6 of this Article."

Article 12

Article 11 of the Convention becomes Article 12 and is amended as follows:

- In paragraph 1, "budget" is replaced by "budgets";
- In paragraph 2, "Director" is replaced by "Director-General".

Article 13

Article 12 of the Convention becomes Article 13.

Article 14

Article 13 of the Convention becomes Article 14 and reads as follows:

"Article 14 - Non-Fulfilment of Obligations

- 1** A Member State that fails to fulfil its obligations under this Convention shall cease to be a member of EUMETSAT, if the Council so decides in conformity with the provisions of Article 5.2 (b), the State concerned not taking part in the vote on this issue. The decision shall take effect at a date decided by the Council.
- 2** If a Member State is excluded from the Convention, the scales of contributions for the General Budget and for the mandatory programmes shall be adjusted in accordance with Article 10.2. The Participating States shall, in accordance with the rules laid down in the Programme Declaration, decide about any adjustment of scales of contributions following the exclusion from optional programmes."

Article 15

Article 14 of the Convention becomes Article 15.

Article 16

Article 15 of the Convention becomes Article 16 and it is amended as follows:

- In paragraph 3, "Director" is replaced by "Director-General".
- New paragraphs 5 and 6 are inserted:

- "5 Accession to the EUMETSAT Convention means as a minimum participation in the General Budget and in all the mandatory programmes. Participation in optional programmes is subject to a decision of the Participating States in accordance with Article 5.3 (c). Any State that becomes a Party to the Convention shall make a special payment towards the investments already made taking into account the mandatory and optional programmes in which the State will participate. The amount of payment shall be determined in conformity with Article 5.2 (a) i. as regards mandatory programmes and in conformity with Article 5.3 (c) as regards the optional programmes.
- 6 If a State accedes to the Convention the scale of contributions for the General Budget and for the mandatory programmes shall be adjusted by the Council. The Participating States shall decide about any adjustment of scales of contributions following the accession to any optional programme."

Article 17

Article 16 of the Convention becomes Article 17 and it is amended as follows:

- In paragraph 1, the reference to Article 15.2 is changed to a reference to Article 16.2.
- Paragraph 5 is deleted.

Article 18

Article 17 of the Convention becomes Article 18 and it is amended as follows:

- In paragraph 1, "Director" is replaced by "Director-General"; the reference to Article 5.2 (c) is replaced by a reference to Article 5.2 (d) v.
- In paragraph 3, the beginning is deleted. The paragraph begins with: "The Council may, by a decision taken in conformity with Article 5.2 (a)".

Article 19

Article 18 of the Convention becomes Article 19 and reads as follows:

"Article 19 - Denunciation

- 1 After this Convention has been in force for six years any Member State may denounce it by notifying the depositary of the Convention, thereby leaving the General Budget, mandatory and optional programmes. The denunciation shall take effect for the General Budget at the end of the five year period for which the financial ceiling was decided and for the mandatory or optional programmes at the time of the expiration of the programmes.

- 2 The State concerned shall retain the rights it has acquired up to the date the denunciation takes effect with regard to the various programmes in which it was involved.
- 3 If a Member State ceases to be a party to the Convention the scale of contributions for the General Budget shall be adjusted in accordance with Article 10.2 for the five year period following the period in which the State concerned denounced the Convention."

Article 20

Article 19 of the Convention becomes Article 20 and it is amended as follows:

- Paragraph 2 is replaced by the following:
- "2 Unless the Council decides otherwise, EUMETSAT shall be dissolved if, as a result of the denunciation of this Convention by one or more Member States under the provision of Article 19.1 or as a result of an exclusion following Article 14.1, the contribution rate of each other Member State to the General Budget and to the mandatory programmes is increased by more than one fifth.

The decision on the dissolution shall be taken by the Council in conformity with Article 5.2 (a), a Member State having denounced the Convention or having been excluded not taking part in the vote on this issue."

Article 21

Article 20 of the Convention becomes Article 21 and it is amended as follows:

- In paragraph (c), the reference to Article 16 is replaced by a reference to Article 17.

Article 22

Article 21 of the Convention becomes Article 22 and it is replaced by the following:

"Article 22 - Registration

Upon the entry into force of this Convention, and of any amendments to it, the depositary shall register them with the Secretary General of the United Nations in accordance with Article 102 of the Charter of the United Nations."

Article 23

- 1** The Convention and the present Protocol constitute one single unique instrument called "Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites (EUMETSAT)".
- 2** The Annexes I and II to the Convention, including the System Description and the financial provisions relevant to the Meteosat Operational Programme (MOP), shall remain valid until the expiration of the programme at the end of 1995.

Upon the expiration of MOP, the Annexes will be considered as abrogated without requirement of further decision by the Member States of EUMETSAT.

In future no further Annexes to the Convention will be established.

- 3** The amendment shall enter into force in accordance with Article 17.2 of the EUMETSAT Convention.

**RESOLUTION ON
THE PROVISIONAL APPLICATION OF THE AMENDMENTS
TO THE CONVENTION**

**Adopted at the 17th meeting of the EUMETSAT Council
on 27 - 29 November 1991**

The EUMETSAT Council,

HAVING REGARD to its recommendation to the Member States expressed in Resolution EUM/C/Res. XXXVI regarding the amendments to the EUMETSAT Convention as set out in the "Amending Protocol" attached to the mentioned Resolution,

CONSCIOUS of the need to evaluate and approve future programmes within an adequate constitutional framework,

NOTING that 11 Member States¹ already at the 17th Council on 27-29 November 1991 were in a position to accept the provisional application, either unconditionally or ad referendum,

NOTING that provisional application requires the unanimous agreement of the Member States,

NOTING that provisional application shall be terminated if a State notifies its intention not to ratify the amendments to the Convention,

INVITES:

The Governments of the Member States not yet in a position to vote in favour of provisional application of the amendments to the Convention to be prepared to agree to such provisional application at the next ordinary meeting of Council.

¹ Delegations supporting the provisional application of the Amendments to the Convention:

Finland, Spain, The Netherlands, Germany, Ireland, United Kingdom, Denmark (ad referendum)
France (ad referendum), Norway (ad referendum), Portugal (ad referendum),
Switzerland (ad referendum).

RESOLUTION ON
A EUROPEAN STRATEGY TOWARDS EARTH OBSERVATION

Adopted at the 15th meeting of the EUMETSAT Council
on 4 - 5 June 1991

The EUMETSAT Council,

HAVING REGARD to the roles of EUMETSAT and ESA as defined in their respective Conventions,

RECALLING EUMETSAT Council Resolutions and actions concerning a European system of complementary polar and geostationary satellites,

BEARING IN MIND that polar satellites in both morning and afternoon orbits are highly important for operational meteorology and that the morning orbit is of particular importance to Europe for geographical reasons,

NOTING the efforts of ESA to establish a Long Term Plan in Earth Observation for polar and geostationary orbit,

STRESSING the importance of operational meteorological data to climate and environmental monitoring,

I RECOMMENDS to the ESA Council in defining its Long Term Plan to take into account:

- the requirements and continuity constraints of operational meteorology in developing the European Earth Observing System,
- EUMETSAT's capability and responsibility to ensure the continuity of the operational meteorological component of the system,
- the essential need to maintain and improve the meteorological geostationary satellite system,
- the necessity for Europe to maintain continuity of the operational meteorological Polar Orbiting System by the provision of a morning series of satellites,

II REQUESTS that EUMETSAT be invited to attend as an observer the 1991 ESA Council meeting at Ministerial level for the relevant agenda items.

RESOLUTION ON
THE EUMETSAT PROPOSALS TO THE ESA COUNCIL
CONCERNING THE LONG-TERM PLAN

Adopted at the 16th meeting of the EUMETSAT Council
on 30th October 1991

The EUMETSAT Council,

NOTING that the successful Meteosat Operational Programme (MOP) was initiated by ESA with the launch of the prototype in 1977,

REQUIRING continuation of geostationary satellites with advanced performance such as could be realised by a Meteosat Second Generation (MSG) as from 1998,

BEING aware that the financial provision considered by ESA for MSG would not allow the full coverage associated with the development and demonstration of a prototype,

REQUIRING also a long-term-commitment from EUMETSAT concerning Polar Systems in due course,

NEEDING data continuity in polar orbit which ESA's proposals presently do not provide,

REQUIRING therefore a prototype of a dedicated operational polar satellite, which could form the basis of a system which would ensure continuity,

BEARING IN MIND the offer of a flight opportunity on the first ESA polar platform in about 1998,

RECOGNISING the necessity to define clear responsibilities for both ESA and EUMETSAT, to ensure accountability and the efficient execution of programmes,

STRESSING the need for an advanced sounding instrument in polar orbit,

AGREE:

Concerning Geostationary Orbit:

- I** To request ESA to develop the prototype of Meteosat Second Generation under its own responsibility, within an ESA programme, in accordance with technical and schedule requirements established by EUMETSAT and in accordance with mutually agreed functional specifications. ESA shall make provision for the launch and in-orbit demonstration of this prototype. Funding shall be an ESA responsibility but EUMETSAT is prepared to make a fixed financial contribution to this activity and to prepare a follow-on programme ensuring long term data continuity.

- II** To request ESA to make a decision in 1992 to proceed beyond Phase A under the above assumptions, bearing in mind that the nominal launch schedule required by EUMETSAT is a first launch in 1998.

Concerning Polar Orbit:

- III** To request ESA, with a view to ensuring operational continuity, to develop the prototype of a polar satellite system under its own responsibility, within an ESA programme, in accordance with technical and schedule requirements established by EUMETSAT and in accordance with functional specifications to be mutually agreed. ESA shall make provision for the launch and in-orbit demonstration of this prototype. Funding shall be an ESA responsibility but EUMETSAT is prepared to consider a fixed financial contribution to this activity and to prepare a follow-on programme ensuring long term data continuity.

**RESOLUTION ON
THE METEOSAT TRANSITION PROGRAMME (MTP)**

**Adopted at the 17th meeting of the EUMETSAT Council
on 27 - 29 November 1991**

The EUMETSAT Member States,

HAVING REGARD to the Resolution XXVII in which the Meteosat Transition Programme was established to provide an operational service from the end of the Meteosat Operational Programme in November 1995 until December 2000,

BEARING IN MIND that Resolution XXVII authorised the implementation of the first slice of activities, within a financial envelope of 110 MECU at 1989 economic conditions,

RECOGNISING that the schedule for development of the ground segment is critical with respect to the required start date of the operational service,

NOTING that ANNEX I, Chapter C of the Convention defines a second slice to include the implementation of the ground segment, the satellite launch and the operation of the space and ground segments for 5 years,

NOTING that ANNEX II, Chapter C of the Convention identifies that the overall programme envelope (first + second slices) shall not exceed 280 MECU at 1989 economic conditions and identifies the scale of contributions of the Member States,

AGREE:

To authorise the implementation of the second slice of activities as from 1st January 1992, within the total financial envelope (first + second slices) of 280 MECU at 1989 economic conditions.

**RESOLUTION ON
THE EXTENSION OF THE PREPARATORY PROGRAMME
FOR MSG, PHASE A**

**Adopted at the 17th meeting of the EUMETSAT Council
on 27 - 29 November 1991**

The EUMETSAT Member States,

RECALLING Council Resolution EUM/C/Res. XXVIII concerning the definition of the Meteosat Second Generation Preparatory Programme, Phase A,

NOTING that the content of Phase B has to be defined as soon as possible,

AGREE:

- I** to extend the Meteosat Second Generation Preparatory Programme, Phase A to the year 1992,
- II** that the financial envelope of the Preparatory Programme is increased from 4.0 to 5.6 MECU, in order to cover the implementation of Phase A in 1992,
- III** to authorize commitment appropriations amounting to 0.5 MECU for the preparation of Phase B in 1992,
- IV** to amend the Annex I and II to the Convention as follows:
 - Annex I, Chapter D:
 - Para. 1, replace alinea 2 by:
"This Phase is foreseen for 2 years, starting from 1.1.1991"
 - In alinea 3, replace "1991" by "1991/1992".
 - Para. 4: Delete reference to 1992.
 - Annex II, Chapter D, is amended as follows:
 - Replace by:
"The budgetary envelope for the MSG/PP Programme is estimated at 5.6 MECU for the financial years 1991 and 1992 with a scale of contribution based on GNP".

RESOLUTION ON
THE MSG PRE-OPERATIONAL PROGRAMME
Adopted at the 18th meeting of the EUMETSAT Council
on 10 - 11 March 1992

The EUMETSAT Council,

RECALLING Council Resolution EUM/C/Res. XXXIX defining the EUMETSAT Council proposals to ESA's Council concerning the Long Term Plan,

NOTING with satisfaction the consideration of the MSG Programme in the ESA Long Term Plan, as defined in Resolution ESA/C-M/XCVII Res.2,

STRESSING the necessity to launch the first satellite of the MSG series before 1999:

- I** **INVITES** the ESA Executive to prepare a programme proposal covering the pre-operational phase of the MSG programme, for approval through an Enabling Resolution by the ESA Council before the end of 1992,
- II** **AGREES**, to facilitate this, to mandate the Director to negotiate with the ESA Executive, the programme content and a Cooperation Agreement according to the principles defined in the Appendix to this Resolution in order to present a programme proposal including a contribution to the ESA pre-operational programme for consideration at the 20th EUMETSAT Council Meeting.

PRINCIPLES FOR IMPLEMENTING
THE MSG PRE-OPERATIONAL PROGRAMME

- I** The EUMETSAT Meteosat Second Generation Programme shall be implemented in two phases, a demonstration pre-operational programme (MSG/A) and an operational programme (MSG/B).
- II** The Pre-operational Programme MSG/A will have following objectives:
- a) Development, assembling, testing, launch and in-orbit commissioning of the prototype satellite of the MSG series (MSG-1),
 - b) Development, assembling and testing of the ground infrastructure required for MSG system operation,
 - c) Procurement of a second flight model MSG-2, to be ready for launch in the framework of the follow-on operational programme or as a back-up in case of an MSG-1 failure,
 - d) Operations of the new system as a demonstration and transition with the MOP and MTP Programmes.
- III** The MSG/A Programme planning should be such as to enable the first flight model to be launched before 1999.
- IV** The MSG/A Programme will be developed jointly by EUMETSAT and ESA, with the following responsibilities:
- a) An ESA Programme (MSG/A/ESA) for the development, launch and commissioning of MSG-1, plus a set of spare parts,
 - b) A EUMETSAT Programme (MSG/A/EUM) covering development of the Ground System, provision of a launcher for MSG-1, manufacturing MSG-2 and system demonstration operations.

Both programmes will cover the period 1993-2002; the provisional estimation of expenditure amounts to 372 MECU for the ESA Programme and 264 MECU for the EUMETSAT Programme.

- V** The EUMETSAT Council is prepared to
- a) consider making a fixed financial contribution to the ESA Programme with an amount currently estimated at 90 MECU, the final amount being determined after a mutual agreement on the system specifications has been reached; such contribution to be considered in the expectation that property rights in the satellite after commissioning will be vested in EUMETSAT,
 - b) consider starting this contribution as from 1993 in order to ensure a first launch before 1999.
- VI** The Cooperation Agreement to be established between EUMETSAT and ESA for MSG/A implementation shall ensure an appropriate EUMETSAT participation in the relevant ESA bodies.

RESOLUTION ON
THE PROPOSED ESA POEM-1 FLIGHT OPPORTUNITY

**Adopted at the 18th meeting of the EUMETSAT Council
on 10 - 11 March 1992**

The EUMETSAT Council,

EXPRESSING satisfaction with the strong support for Earth Observation within the ESA Long Term Plan given by the ESA Council meeting at Ministerial level on 18 - 20 November 1991 in Munich,

NOTING Resolution ESA/C-M/XCVII Res. 2 (Final) adopted on 20 November 1991 by the ESA Council at Ministerial level, particularly:

- Article III.1 which approves the execution of the POEM-1 programme in two phases,
- Article III.2 which notes that a primary objective of POEM-1 is to provide a demonstration flight opportunity for a polar meteorological payload package provided by EUMETSAT,
- Article IV concerned with a future preparatory programme for follow-on missions,

NOTING the ESA Declaration on the POEM-1 programme expressed in ESA/PB-EO/XXVII/DEC1 drawn up on 27.02.92.

WELCOMING the offer to provide a flight opportunity for the operational meteorological instruments on POEM-1,

NOTING that EUMETSAT is requested to confirm its acceptance of this offer by 20 May 1992,

BEING AWARE that the final payload and configuration of POEM-1 remain open until the decision is taken on phase 2 at the end of 1992,

NOTING that an agreement is yet to be finalised with NOAA on the NOAA provided instruments on the ESA platform and the EUMETSAT provided instruments on the NOAA and NASA satellites,

NOTING that certain technical evolutions are still to be expected which may influence the final ESA decision regarding phase 2,

NOTING that ESA has not yet taken a final position on any of the EUMETSAT technical requirements including the confirmation of the flight of the IASI instrument and concerning vital operational aspects such as orbit and instrument duty cycles,

STRESSING that EUMETSAT's final decision can only be taken when these issues are decided, since they will affect the ultimate design, cost and usefulness of the EUMETSAT provided instruments,

RECALLING the request of the EUMETSAT Council, in Resolution XXXIX adopted on 30 October 1991, that ESA develop a prototype of Meteosat Second Generation as well as a prototype of a polar satellite system meeting EUMETSAT requirements,

BEING AWARE that the mix of operational and experimental instruments on POEM-1 leads to concerns about its viability as a long term solution for operational activities,

STRESSING again the absolute need for continuous provision of data for operational meteorology,

RECALLING the necessity to give consideration to the requirements of long term operational climate monitoring,

CONSIDERING that a METOP class of medium-sized satellite platforms could be defined which would be capable of carrying operational meteorological instruments as well as a suite of other instruments dedicated to operational climate monitoring,

WELCOMING ESA's consideration of a METOP variant of the POEM-1 platform concept, dedicated to operational payloads in polar orbit, which could be more consistent with EUMETSAT's operational and continuity requirements and which could be regarded as an operational prototype, for flight either subsequently to POEM-1 or in parallel with a version of POEM-1,

NOTING that because of EUMETSAT's requirements regarding operational viability and data continuity, it is believed that the necessary unanimous vote on a final agreement with ESA could only be achieved if ESA confirms its intention to work with EUMETSAT to develop a satellite of the METOP class as a prototype for a series of operational satellites,

AGREES:

- I** to respond favourably to the recent ESA statements at its Council Meeting at Ministerial level with regard to future cooperation with EUMETSAT on the development of polar orbiting satellite systems,

- II** to confirm EUMETSAT's intention to supply, in support of POEM-1 and at no cost to ESA, the operational meteorological instruments, the associated communications package and the related Ground Segment for processing, disseminating and archiving the data; on the understanding that there shall be an ESA Preparatory Programme to provide flight continuity beyond POEM-1 and that this will lead to the development by ESA, with a EUMETSAT financial contribution, of a prototype satellite of the METOP class,
- III** to request the Director to negotiate with ESA a Cooperation Agreement under the guidelines set out in II above,
- IV** to request the Director to propose urgent preparatory activities starting in 1993, for a EUMETSAT programme in polar orbit, including the continuation of the development of instruments and the preparatory activities needed for the associated ground segment,
- V** to request the Director to undertake urgent negotiations with NOAA with regard to the timely delivery of the US funded instruments, and with the appropriate authorities with regard to the early flight of IASI.
- VI** to review progress in all these matters before the end of 1992, with the intention of making a decision for a programme starting in 1993, taking into account possible changes to POEM-1 and the definition of the ESA POEM-1 follow-on Preparatory Programme.

STATEMENT BY FRANCE REGARDING EUM/C/92/RES. II

(Original: French)

La délégation française indique qu'elle vote contre, bien que la Résolution soit acceptable pour elle à l'exception uniquement du paragraphe AGREE II. Elle donne l'explication suivante de son vote:

La délégation française n'envisagera pas de contribuer à un programme d'EUMETSAT destiné à faire voler des instruments opérationnels dans le cadre d'un programme de l'ASE tant que celui-ci n'inclurera pas la réalisation du satellite prototype d'une série opérationnelle dont EUMETSAT pourrait assurer la continuité.

La délégation française demande que son explication de vote soit communiquée à l'ASE en même temps que la Résolution du Conseil, de manière à éviter un malentendu sur la signification de son vote.

TRANSLATION

The French delegation cannot support this Resolution and votes against it although it is acceptable for France with the exception of AGREE II.

The French delegation explains its vote as follows:

The French delegation shall not consider a commitment to a EUMETSAT Programme providing operational instruments to an ESA Programme as long as this programme does not include the implementation of the prototype of an operational series the continuity of which could be ensured by EUMETSAT.

The French delegation wants to have this explanation of vote sent to ESA together with the Council Resolution in order to avoid any misunderstanding which could arise from the significance of its vote.

**RESOLUTION ON
EUMETSAT'S LONG-TERM MANAGEMENT POLICY**

**Adopted at the 18th meeting of the EUMETSAT Council
on 10 - 11 March 1992**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

BEARING IN MIND the Council's decisions to ensure a continuous operational service after the end of the Meteosat Operational Programme in 1995 with regard to geostationary satellites (Meteosat Transition Programme, Meteosat Second Generation),

BEARING IN MIND the Council's decisions to consider a EUMETSAT Polar System,

NOTING the Council's decision for EUMETSAT to develop a ground segment and to take over operations of the MOP and MTP satellites from December 1995,

NOTING the general consensus in the 15th EUMETSAT Council Meeting on EUMETSAT taking responsibility for the continuity of the space segment and management of the ground segment of future programmes,

NOTING the available expertise, in Europe, in space agencies as well as in the meteorological services and in the private sector,

RECALLING the role of the European Space Agency in developing space technology,

EMPHASISING the need to set-up clear guidelines for EUMETSAT's future management in order to ensure the future of EUMETSAT on a coherent, clear and cost-effective basis,

AGREE :

- I** that the requirements for the Space Segment of new satellite systems such as MSG and EPS shall be defined by the EUMETSAT Council,
- II** that ESA shall be requested to develop a prototype under an ESA development programme and to prove in orbit its operational qualification in accordance with EUMETSAT's requirements,

- III** that EUMETSAT may contribute to the ESA development programme with a fixed contribution,
- IV** that EUMETSAT shall take overall responsibility for the space segment after the in-orbit commissioning of a prototype,
- V** to define EUMETSAT's requirements for a Ground Segment,
- VI** to establish a Ground Segment under EUMETSAT responsibility and to decide on its architecture and location, taking into account technical, management, cost and other relevant factors,
- VII** that the Secretariat shall act as the single Design Authority for the Ground Segment and shall exercise managerial control to be defined on a case by case basis of European funded facilities,
- VIII** to base in general all procurement actions on open tender in accordance with the EUMETSAT rules.

**RESOLUTION ON
THE ESA LONG TERM PLAN**

**Adopted at the 20th meeting of the EUMETSAT Council
on 22 - 23 September 1992**

The EUMETSAT Council,

CONSIDERING EUMETSAT's fundamental requirement to achieve continuity of observation from geostationary orbit whilst improving the performance of the current Meteosat system,

BEING AWARE of the necessity of a long term commitment to contribute to the polar system by providing observations from the morning orbit,

RECALLING Resolution EUM/C/Res. XXXIX concerning the ESA Long Term Plan submitted to the Chairman of the ESA Council at Ministerial level in November 1991,

RECALLING Resolutions EUM/C/Res/92/I and II adopted in March 1992 relating to the geostationary and polar systems respectively,

NOTING the complementary objectives of ESA and EUMETSAT concerning the development of space programmes and their operational exploitation,

BEING AWARE of the importance of the ESA Council at Ministerial level in Granada on 9 and 10th November 1992 for European Space Policy on Earth Observation,

BEING INFORMED of the proposals prepared by the ESA Director General for this Council meeting and subject to the satisfactory outcome of discussions on the financial contributions to be made by EUMETSAT and ESA members:

CONCERNING OBSERVATIONS FROM GEOSTATIONARY ORBIT

- I** Welcomes the progress accomplished by ESA in cooperation with EUMETSAT in developing the MSG Programme Proposal which meets the basic requirements of the EUMETSAT Member States for observations from a geostationary orbit,
- II** Confirms its intention to cooperate with ESA and to make a fixed financial contribution to the development of MSG on the basis of jointly agreed mission specifications and legal framework,

- III** Confirms its intention to develop a compatible Ground Segment and make provision for launch of the prototype,
- IV** Expresses its wish that the ESA Council at Ministerial level adopts an Enabling Resolution to start an MSG development programme in due time to launch the first flight model in 1999, or at the latest, 2000.
- V** Confirms its intention to implement an MSG operational programme based upon the experience gained during these development programmes,

CONCERNING OBSERVATIONS FROM POLAR ORBIT

- VI** Recalls that in order to meet the requirements of the EUMETSAT Member States, the polar platform developed by ESA shall be the prototype of an operational series,
- VII** Welcomes the proposal of the ESA Director General which foresees the development of a pre-operational METOP Programme intended to meet EUMETSAT requirements in polar orbit,
- VIII** Invites the ESA Council at Ministerial level to adopt an Enabling Resolution to this effect and to complete the definition of the METOP Mission in cooperation with EUMETSAT, taking particularly into account the recurrent cost constraints,
- IX** Plans to provide a contribution to ESA for such a Programme, the detailed specifications of which shall be established in common agreement between ESA and EUMETSAT, leading to the launch of the first flight model in 2000.

RESOLUTION ON
POLICY FOR EUMETSAT GROUND SYSTEMS
AND THE IMPLEMENTATION OF THE MTP GROUND SYSTEM

Adopted at the 21st meeting of the EUMETSAT Council
on 23 - 25 November 1992

The EUMETSAT Council,

WISHING to establish a longterm policy regarding EUMETSAT ground systems,

BEARING IN MIND that future EUMETSAT programmes are expected to greatly enlarge the scope of the processing of data and products which will encompass many different disciplines,

NOTING that a distributed configuration taking advantage of national specialized activities and centres of excellence is appropriate to such an enlarged scope,

NOTING also that the development of European expertise rests on the harmonious relationship between intergovernmental and national entities,

BEING AWARE of the importance of establishing a central facility with sufficient technical and scientific expertise to manage and control the total system effectively,

CONSIDERING that a centralized system has produced excellent results in specialized areas and that this positive experience should be transferred to the greatest extent possible to a new system,

NOTING that nevertheless, a fully centralized system may be limited as regards growth potential,

STRESSING the need for reliable and cost-efficient solutions,

CONSIDERING that implementation decisions regarding the Meteosat Transition Programme are now urgently required,

AGREES:

A: Concerning Policy Issues

- I** That the EUMETSAT Council establishes, as a policy for future EUMETSAT ground systems, the concept of a networked configuration comprising both distributed elements and a central facility having well defined key objectives,
- II** That the central facility shall be established in the EUMETSAT headquarters and shall perform centralized control and management tasks to achieve control

over the availability of agreed upon key products as well as those mature processing tasks which are not strongly dependent upon user interaction,

III That the distributed network elements shall include Satellite Application Facilities which shall be responsible for necessary research, development and operational activities not carried out by the central facility. Such Satellite Application Facilities shall be located within National Meteorological Services of EUMETSAT Member States or other agreed entities linked to a user community. Each Satellite Application Facility shall be established under a EUMETSAT contract which preserves EUMETSAT control and responsibility. Scientists from all Member States shall be able to participate in such EUMETSAT funded Satellite Application Facilities.

IV That the resulting products, intellectual property and proprietary technical data, including all algorithms and software, shall belong to EUMETSAT and be available to all Member States.

B: Concerning EUMETSAT Future Programmes (MSG and EPS)

V **AGREES** to implement the agreed policy as soon as possible in preparation for operations under future programmes.

VI **REQUESTS** the Director to prepare a proposal for a unified Ground Segment programme based on the agreed policy,

C: Concerning the Meteosat Transition Programme (MTP)

AGREES:

VII That the Mission Control Centre (Core Facility, User Station Display Facility) shall be established at the EUMETSAT Headquarters in Darmstadt,

VIII That the Primary Ground Station shall be established in Fucino, Italy,

IX That the Meteorological Product Extraction Facility (MPEF) for production of Cloud Track Winds and other existing products shall be established within the EUMETSAT Headquarters,

X That the Meteorological Archive and Retrieval Facility (MARF) may be located either within the EUMETSAT Headquarters or within the Primary Ground Station.

**RESOLUTION ON
THE METEOSAT SECOND GENERATION
PROGRAMME**

**Presented for Adoption at the 21st Meeting of the
EUMETSAT Council on 23 - 25 November 1992**

**Adopted at the 25th Meeting of the EUMETSAT Council
on 22 – 24 June 1994**

The EUMETSAT Member States

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that the activities under the Meteosat Operational Programme (MOP) as extended under the Meteosat Transition Programme (MTP) will end in December 2000,

NOTING the EUMETSAT Resolution on Policy for EUMETSAT Ground Systems and the Implementation of the MTP Ground System adopted at the 21st Council Meeting,

WELCOMING the Resolution by the ESA Council at Ministerial level held in Granada concerning the Meteosat Second Generation Programme,

REQUIRING to ensure a continuous operational service to provide data from geostationary satellites over Europe and Africa and adjacent ocean areas,

RECOGNISING the benefits to the operational service that can be derived from advances in technology,

BEARING IN MIND the urgency of the development schedules of the space and ground segments to enable continuation of operations beyond the Meteosat Transition Programme,

HAVING REGARD to Art. 17.3 of the EUMETSAT Convention,

AGREE:

- I** to establish a Meteosat Second Generation Programme (MSG) commencing in 1993, with a first launch at the latest in the year 2000 and with operations expected to last until 2012,
- II** that the Meteosat Second Generation Programme shall be undertaken in parallel with a corresponding ESA programme and shall include :

- a) participation to the detailed definition, development and demonstration of the MSG prototype satellite MSG-1, including associated equipment spares, by means of a fixed financial contribution of 162 MECU at 1992 economic conditions to the ESA MSG Programme,
- b) procurement of the launcher for the MSG prototype satellite,
- c) the detailed definition of the ground segment and associated products,
- d) the development, procurement and test of the ground segment for the operations of the MSG system,
- e) system commissioning following the launch of the prototype satellite,
- f) procurement of two recurring flight models, MSG-2 and MSG-3, and their launch, ensuring availability of equipment spares,
- g) system operations beginning not later than 2001 and lasting for 12 years;

III that the Programme will be implemented in two slices:

- a) the first slice, or MSG Demonstration Slice (MSG-D), includes the fixed financial contribution to the ESA prototype development programme, the procurement of a launcher for the prototype, the definition, development and procurement of the Ground Segment and system commissioning [items a) to e) under II],
- b) the second slice, or MSG Operational Slice (MSG-O), includes the procurement and launch of two further satellites and system operations, until 2012 [items f) and g) under II];

IV that the overall programme ceiling amounts to 1035 MECU at 1992 economic conditions, with an indicative payment profile as shown in the Annex to this Resolution;

V to establish a cooperation agreement with ESA, to be agreed by Council, regarding the joint execution of the complementary programmes;

VI to authorise the implementation of the Demonstration Slice as from 1993 within the financial envelope of 352 MECU at 1992 economic conditions;

- VII** to consider the authorization of the Operational Slice not later than 1995 by a vote taken by two-thirds majority of the Member States present and voting, representing also at least two-thirds of the total amount of contributions;
- VIII** to fund the Meteosat Second Generation Programme with a scale of contributions based on Gross National Product of the Member States;
- IX** by a vote representing at least two-thirds of the Member States present and voting, representing also at least two-thirds of the total amount of contributions, to approve possible cost overruns of up to 10% of the overall programme ceiling and financial envelope in respectively IV and VI above;

DECIDE to amend the Annexes to the EUMETSAT Convention as necessary, before the end of April 1993.

Year	ESA	EUMETSAT		
		MSG/D	MSG/O	TOTAL
1993		8*		8*
1994	2	37*		37*
1995	8	49	9	58
1996	27	73	20	93
1997	51	87	22	109
1998	78	57	33	90
1999	77	31	41	72
2000	70	10	65	75
2001			72	72
2002			68	68
2003			74	74
2004			81	81
2005			66	66
2006			50	50
2007			22	22
2008			12	12
2009			12	12
2010			12	12
2011			12	12
2012			12	12
TOTAL	313	352	683	1,035

Table 1: Indicative Payment Profiles in MECU at 1992 economic conditions.

* Including expenditure within the MSG Preparatory Programme in 1993 and 1994.

RESOLUTION ON
THE EXTENSION OF THE PREPARATORY PROGRAMME FOR MSG

**Adopted at the 21st meeting of the EUMETSAT Council
on 23 - 25 November 1992**

The EUMETSAT Member States,

RECALLING Council Resolution EUM/C/Res. XXVIII concerning the definition of the Meteosat Second Generation Preparatory Programme and Resolution EUM/C/Res. XLI concerning its Extension in 1992,

NOTING that the 21st Council Meeting could not achieve the unanimity required for the adoption of the full MSG Programme,

RECOGNISING the necessity to continue the definition activities of the MSG system until a final decision has been taken on the Programme,

AGREE:

- I** To extend the Meteosat Second Generation Preparatory Programme until 1994,
- II** that the financial envelope of this extension shall be limited to 1.640 MECU at 1991 economic conditions (1.805 MECU at 1993 economic conditions) in Commitment Appropriations, in order to perform the activities normally scheduled for the corresponding period in the full MSG Programme,
- III** to amend Annexes I and II of the Convention as follows:
 - * Annex I, Chapter D:
 - Para 1, replace alinea 2 by:
"This Phase is foreseen for 4 years, starting from 1.1.1991."
 - Para 1, alinea 3, replace "1991/1992" by "1991/1992/1993/1994".
 - * Annex II, Chapter D:
 - Replace by:
"The budgetary envelope for the MSG/PP Programme is fixed at 4.2 MECU at 1991 economic conditions for the financial years 1991, 1992, 1993 and 1994 with a scale of contribution based on the GNP of the Member States."

RESOLUTION ON
THE EUMETSAT POLAR SYSTEM PREPARATORY PROGRAMME

**Presented for adoption at the 21st Meeting of the EUMETSAT Council
on 23 - 25 November 1992**

**Adopted at the 25th Meeting of the EUMETSAT Council
on 22 - 24 June 1994**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

RECALLING the EUMETSAT Council Resolutions to establish a European polar system,

WELCOMING the Resolution by the ESA Council at Ministerial level held in Granada concerning the METOP mission,

BEARING IN MIND that polar satellites in both morning and afternoon orbits are essential for operational meteorology and that the morning orbit is of particular importance for Europe for geographical reasons,

RECOGNISING the importance of METOP for climate monitoring as well as for meteorological observations,

CONSIDERING that the USA freely provided meteorological data from the polar orbit to the rest of the world for more than 30 years,

NOTING with appreciation that the USA will provide operational meteorological observations from the morning polar orbit until the year 2000,

STRESSING the need to conclude negotiations with ESA on the provision of a prototype satellite of an operational series, for early missions compatible with EUMETSAT operational requirements,

RECOGNISING the benefit of performing the EPS Preparatory Programme for optimisation of the technical specifications leading to a more cost effective and affordable full EPS Programme.

IN CONFORMITY WITH Article 17.3 of the EUMETSAT Convention,

AGREE:

- I** To establish a Preparatory Programme for a EUMETSAT Polar System commencing in the first quarter of 1993 and lasting until the start of the full EPS Programme expected to be not later than 1996,
- II** That the Preparatory Programme shall include:
- detailed definition of the mission compliant with EUMETSAT requirements and cost constraints,
 - development and refinement of detailed specifications of payload elements for the Space Segment,
 - conduct of feasibility studies and detailed specification studies for the Ground Segment,
 - the necessary programme management and technical resources for the Space and Ground Segments,
 - the establishment of cooperation agreements with ESA and NOAA, to be agreed by Council, regarding the joint execution of the complementary programmes,
 - activities enabling the possible provision of a Microwave Humidity Sounder to NOAA for NOAA-N,
- III** That the financial envelope of the Preparatory Programme shall amount to 30 MECU at 1993 economic conditions, with an indicative payment profile of 3.2 MECU in 1993, 13.2 MECU in 1994 and 13.6 MECU in 1995.
- IV** To consider no later than December 1994 the implementation of a full EPS Programme to ensure continuity of industrial activities to meet project schedules and maintain maximum economy.
- V** To fund the Preparatory Programme on a scale of contributions based on the Gross National Product of the Member States.
- VI** To amend the Annexes to the EUMETSAT Convention as follows:

ANNEX I of the Convention will be completed by a new chapter "F".

F - PREPARATORY PROGRAMME FOR A EUMETSAT POLAR SYSTEM

The EPS Preparatory Programme covers initial Space Segment Payload and Ground Segment activities related to the development of a series of satellites to provide continuous meteorological observations from morning Polar Orbit.

The activities are broken down into three separate areas:

i) **Mission**

Detailed definition of the mission and payload, including climate monitoring objectives, in cooperation with ESA and NOAA leading to the establishment of cooperation agreements with both organisations.

ii) **Space Segment Payload**

Covering the development and refinement of the specifications of the Meteorological Communication Package and start of critical development activities for the Microwave Humidity Sounder.

iii) **Ground Segment**

Covering the conduct of feasibility studies and subsequently the establishment of detailed specifications of the Ground Segment.

ANNEX II of the Convention will be completed with a new chapter "F".

F - EUMETSAT POLAR SYSTEM PREPARATORY PROGRAMME (EPS/PP)
Overall Envelope and Scale of Contributions:

The budgetary envelope for the EPS/PP is estimated at 30 MECU at 1993 economic conditions with a scale of contributions based on Gross National Product:

MEMBER STATES	SCALE (%)
Germany	22.76
France	18.03
Italy	15.33
United Kingdom	14.63
Spain	5.99
Netherlands	4.33
Switzerland	3.63
Sweden	3.30
Belgium	2.87
Denmark	1.98
Finland	1.83
Norway	1.68
Turkey	1.39
Greece	0.96
Portugal	0.74
Ireland	0.55
TOTAL	100.00

The basis for the calculation of the contribution is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1986-1988 applicable for the period 1991-1993. The scale will be updated in triennial intervals, starting 1 January 1994.

**RESOLUTION ON
THE CEILING OF THE GENERAL BUDGET**

**Adopted at the 22nd Meeting of the EUMETSAT Council
on 2 April 1993**

The EUMETSAT Council,

RECALLING the Council decision to keep the Member States' contributions to the General Budget within a multi-year ceiling of 24 MECU at 1989 economic conditions (ec) for the period 1990 - 1995,

NOTING that the increase of activities within the General Budget requires financial means exceeding the agreed ceiling,

WELCOMING the recommendation made by the AFG in order to solve the problem of the ceiling of the General Budget,

AGREES:

- I** That the ceiling of the General Budget of 24 MECU at 1989 ec for the time period 1990 - 1995 shall not be exceeded,
- II** That the cost of additional core activities not foreseen when establishing this ceiling shall be covered as far as possible by the General Budget within the agreed ceiling, through savings and available income,
- III** That the EUMETSAT Mission Control Centre as part of the new Headquarters building shall be funded by the MTP budget with an amount of 2.6 MECU at 1989 ec,
- IV** That a complementary amount not higher than 6.1 MECU at 1989 ec shall be prefinanced until the Council has identified further savings or decided to charge MSG, EPS, or finally the General Budget for the period starting 1996, with the amounts mentioned below under V and VI,
- V** To consider a contribution of MSG at the level of 2.5 MECU (1989 ec), after firm approval of this programme, in order to reduce the cost supported until then by the General Budget,
- VI** To consider a contribution of EPS programme at the level of 3.6 MECU (1989 ec), after firm approval of the full programme, in order to reduce the cost supported until then by the General Budget,
- VII** To amend the MTP and General Budget sections 1993 in accordance with the above.

**RESOLUTION ON
CONTINGENCY MARGIN MANAGEMENT**

**Adopted at the 23rd EUMETSAT Council Meeting
on 28 - 30 June 1993**

The EUMETSAT Council,

NOTING the major contracts placed recently by EUMETSAT and the complexity and duration of these contracts,

NOTING that EUMETSAT can be expected to place even more contracts of this nature in the future,

RECOGNISING that EUMETSAT may need to change the contracts during their execution,

BEING AWARE that contract changes in some circumstances must be placed very quickly in order to minimise the cost-impact and to avoid delays,

AGREES:

- I** That contract changes to the extent possible shall be presented to Council for approval in advance, if need be by written procedure.
- II** That in case of urgent contract changes which cannot await prior Council approval, the following procedure will apply:
 - a) When a contract proposal making provision for potential changes to contracts within a given field of activity has been approved by Council.
 - b) The Director is authorised to place contract changes within the overall maximum amount included in the approved contract proposal, provided no change between successive meetings of Council exceeds 500 KECU on any contract.
 - c) Council shall receive a full explanation of such contract changes at each regular meeting.
 - d) Council will be presented with a new contract proposal when the funds of the earlier contract proposal have been exhausted.

RESOLUTION ON
ACCESSION OF AUSTRIA TO THE EUMETSAT CONVENTION

**Adopted at the 23rd EUMETSAT Council Meeting
on 28 - 30 June 1993**

The EUMETSAT Council,

CONSIDERING that, according to Article 15 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2 (a),

CONSIDERING the Invitation to Austria to accede to the EUMETSAT Convention expressed by the EUMETSAT Council in Resolution EUM/C/Res.VIII,

RECALLING that the EUMETSAT Council at its 5th meeting agreed to grant observer status to Austria, and that Austria has participated in the EUMETSAT Council meetings as an observer since December 1987,

WELCOMING the formal request by Austria to become a full member of EUMETSAT, expressed through the Austrian Minister for Foreign Affairs on 23 March 1993,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 15 and 16.4 of the EUMETSAT Convention,

AGREES:

- I** To the accession of Austria to the EUMETSAT Convention in accordance with Article 15.3 of the EUMETSAT Convention;
- II** To approve the accession agreement attached and to authorise the Director to sign it;
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Austria with regard to the investments already made for setting up the initial system as described in Annex I to the Convention at 6 MECU;
- IV** To amend Annex II to the Convention as follows:

**ATTACHMENT TO RESOLUTION ON
THE ACCESSION OF AUSTRIA TO THE EUMETSAT CONVENTION**

Annex II to the Convention shall be replaced by the following¹ :

ANNEX II : FUNDING OF THE PROGRAMMES

¹ **With the understanding that this amendment can only enter into force for those chapters which have already been approved.**

CHAPTER A

THE METEOSAT OPERATIONAL PROGRAMME

1 OVERALL ENVELOPE

The overall envelope for the initial system described in Annex I is estimated at 400 million accounting units (MAU) (mid-1982 prices and 1983 conversion rates) over the period 1983 to 1995, broken down as follows:

- Maximum amount of expenditure incurred by the Agency: 378 MAU
- EUMETSAT Secretariat (10.5 years): 10 MAU
- EUMETSAT contingency margin: 12 MAU

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the remaining expenditure of the METEOSAT Operational Programme including costs of the Secretariat associated with this programme and the contingency associated with this programme as of 1 January 1987 in accordance with the following scale of contributions:

MEMBER STATES	CONTRIBUTIONS (%)
as of 1 January 1994	
AUSTRIA	0.60
BELGIUM	4.37
DENMARK	0.58
FINLAND	0.35
FRANCE	25.45
GERMANY	26.23
GREECE	0.30
IRELAND	0.11
ITALY	11.93
NETHERLANDS	2.98
NORWAY	0.50
PORTUGAL	0.30
SPAIN	5.21
SWEDEN	0.92
SWITZERLAND	3.01
TURKEY	0.50
UNITED KINGDOM	16.66
TOTAL	100.00

CHAPTER B

THE GENERAL BUDGET

1 FUNDING

Part of the General Budget is funded until 1995 by regular transfer from the MOP budget to cover part of the cost of the Secretariat. The remaining financial envelope of the General Budget is subject to a multi-year ceiling agreed by the Council. This part of the General Budget is funded by the Member States in accordance with the following scale of contributions.

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the General Budget in accordance with the following scale of contributions:

MEMBER STATES	CONTRIBUTIONS (%)
AUSTRIA	2.23
BELGIUM	2.70
DENMARK	1.76
FINLAND	1.84
FRANCE	16.79
GERMANY	22.29
GREECE	0.95
IRELAND	0.54
ITALY	15.46
NETHERLANDS	4.03
NORWAY	1.47
PORTUGAL	0.86
SPAIN	6.96
SWEDEN	3.20
SWITZERLAND	3.33
TURKEY	1.50
UNITED KINGDOM	14.09
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1989-1991, applicable for the period 1994-1996. The scale will be updated in tri-annual intervals, starting 1 January 1997.

CHAPTER C

METEOSAT TRANSITION PROGRAMME

1 FINANCIAL ENVELOPES

The first slice of activities defined in Annex 1, Chapter C ("Meteosat Transition Programme") will have a financial envelope of 110 MECU at 1989 economic conditions. The overall programme envelope (first + second slices) shall not exceed 280 MECU at 1989 economic conditions.

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the Meteosat Transition Programme Budget in accordance with the following scale of contributions:

MEMBER STATES	CONTRIBUTIONS (%)
AUSTRIA	2.23
BELGIUM	2.70
DENMARK	1.76
FINLAND	1.84
FRANCE	16.79
GERMANY	22.29
GREECE	0.95
IRELAND	0.54
ITALY	15.46
NETHERLANDS	4.03
NORWAY	1.47
PORTUGAL	0.86
SPAIN	6.96
SWEDEN	3.20
SWITZERLAND	3.33
TURKEY	1.50
UNITED KINGDOM	14.09
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1989-1991 applicable for the period 1994-1996. The scale will be updated in tri-annual intervals, starting 1 January 1997.

CHAPTER D

MSG PREPARATORY PROGRAMME

1 FINANCIAL ENVELOPE

The budgetary envelope for the MSG/PP Programme is fixed at 4.2 MECU at 1991 economic conditions for the financial years 1991, 1992, 1993 and 1994.

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the Meteosat Second Generation Preparatory Programme in accordance with the following scale of contributions:

MEMBER STATES	CONTRIBUTIONS (%)
AUSTRIA	2.23
BELGIUM	2.70
DENMARK	1.76
FINLAND	1.84
FRANCE	16.79
GERMANY	22.29
GREECE	0.95
IRELAND	0.54
ITALY	15.46
NETHERLANDS	4.03
NORWAY	1.47
PORTUGAL	0.86
SPAIN	6.96
SWEDEN	3.20
SWITZERLAND	3.33
TURKEY	1.50
UNITED KINGDOM	14.09
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1989-1991 applicable for the period 1994-1996. The scale will be updated in tri-annual intervals, starting 1 January 1997.

CHAPTER E

METEOSAT SECOND GENERATION PROGRAMME

1 FINANCIAL ENVELOPE

The first slice of activities defined in Annex 1, Chapter E ("Meteosat Second Generation") will have a financial envelope of 352 MECU at 1992 economic conditions. The overall programme ceiling (first and second slice) shall not exceed 1035 MECU at 1992 economic conditions.

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the Meteosat Second Generation Programme Budget in accordance with the following scale of contributions:

MEMBER STATES	CONTRIBUTIONS (%)
AUSTRIA	2.23
BELGIUM	2.70
DENMARK	1.76
FINLAND	1.84
FRANCE	16.79
GERMANY	22.29
GREECE	0.95
IRELAND	0.54
ITALY	15.46
NETHERLANDS	4.03
NORWAY	1.47
PORTUGAL	0.86
SPAIN	6.96
SWEDEN	3.20
SWITZERLAND	3.33
TURKEY	1.50
UNITED KINGDOM	14.09
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1989-1991 applicable for the period 1994-1996. The scale will be updated in tri-annual intervals, starting 1 January 1997.

Possible cost overruns up to 10% of the financial envelope of the 1st slice and overall programme ceiling may be approved by Council by a vote representing at least two thirds of the Member States present and voting, representing also at least two-thirds of the total amount of contributions.

CHAPTER F

EUMETSAT POLAR SYSTEM PREPARATORY PROGRAMME (EPS/PP)

1 FINANCIAL ENVELOPE

The budgetary envelope for the EPS/PP is estimated at 30 MECU at 1993 economic conditions.

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the EPS/PP Budget in accordance with the following scale of contributions:

MEMBER STATES	CONTRIBUTIONS (%)
AUSTRIA	2.23
BELGIUM	2.70
DENMARK	1.76
FINLAND	1.84
FRANCE	16.79
GERMANY	22.29
GREECE	0.95
IRELAND	0.54
ITALY	15.46
NETHERLANDS	4.03
NORWAY	1.47
PORTUGAL	0.86
SPAIN	6.96
SWEDEN	3.20
SWITZERLAND	3.33
TURKEY	1.50
UNITED KINGDOM	14.09
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1989-1991 applicable for the period 1994-1996. The scale will be updated in tri-annual intervals, starting 1 January 1997.

DRAFT

AGREEMENT

**BETWEEN THE GOVERNMENT OF THE REPUBLIC OF AUSTRIA
AND THE EUROPEAN ORGANISATION FOR THE EXPLOITATION
OF METEOROLOGICAL SATELLITES (EUMETSAT)**

**CONCERNING THE ACCESSION OF AUSTRIA
TO THE CONVENTION FOR THE ESTABLISHMENT OF A
EUROPEAN ORGANISATION FOR THE EXPLOITATION
OF METEOROLOGICAL SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS**

The Government of the Republic of Austria (hereinafter referred to as "Austria")

and

the European Organisation for the Exploitation of Meteorological Satellites, created by the Convention opened for signature in Geneva on 24 May 1983 and which entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

CONSIDERING that, according to Article 15 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that Austria has applied to become a full member of EUMETSAT, and that the Council of EUMETSAT in the past has pronounced itself in favour of the accession of Austria (EUMETSAT Council Resolution EUM/C/Res. VIII),

RECALLING that the EUMETSAT Council at its 5th meeting on 16 and 17 September 1987 agreed to grant observer status to Austria, and that Austria has participated in the EUMETSAT Council meetings as an observer since December 1987,

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Member States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 15 and 16.4 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

ARTICLE 1

Austria accedes to the EUMETSAT Convention in accordance with Article 15.3 of the EUMETSAT Convention.

ARTICLE 2

- 1 As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all EUMETSAT programmes (METEOSAT Operational Programme, General Budget, METEOSAT Transition Programme, MSG Preparatory Programme, METEOSAT Second Generation Programme and EUMETSAT Polar System Preparatory Programme) shall be binding for Austria.

Austria shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, Austria shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.

- 2 Austria shall at the same time as the accession ratify the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI [it being noted that this Amending Protocol has not yet entered into force].
- 3 Austria shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention.
- 4 Austria shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

ARTICLE 3

- 1 In accordance with Article 16.5 of the EUMETSAT Convention, Austria shall make a special payment to EUMETSAT of 6 million ECU. This payment shall be made not later than 30 days after the date of deposit of its instrument of accession.
- 2 No further payments will be requested from Austria for the period up to the end of 1993.

ARTICLE 4

- 1 Austria shall with regard to the provision of Article 3.2 start to contribute to the EUMETSAT annual budget as from 1 January 1994.
- 2 Austria shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

ARTICLE 5

- 1 The present Agreement shall enter into force upon signature of both Parties.
- 2 In accordance with its Article 16.4, the EUMETSAT Convention shall become effective for Austria on the date when its instrument of accession is deposited with the Depositary of the Convention, the Government of the Swiss Confederation.

Done in on

in two originals, in the German, English and French languages, all texts being equally authentic.

For the Government of the
Republic of Austria

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

RESOLUTION ON
A COOPERATION AGREEMENT WITH ESA
REGARDING THE METEOSAT SECOND GENERATION PROGRAMME

Adopted at the 24th Meeting of the EUMETSAT Council
on 23 - 25 November 1993

The EUMETSAT Council,

RECALLING the Resolution EUM/C/92/Res.VI, which defines the contents of the EUMETSAT MSG programme,

RECALLING its decision to rely on ESA for the development of the prototype MSG satellite (MSG 1),

RECALLING the intention of ESA to fund the MSG satellite development work with a fixed financial contribution from EUMETSAT and to establish a corresponding MSG programme,

NOTING the need to agree a Cooperation Agreement with ESA covering payment of the fixed EUMETSAT contribution and ensuring full coordination of the separate MSG programmes of EUMETSAT and ESA,

NOTING the need for technical cooperation between ESA and EUMETSAT in particular to ensure coherence between the space and the ground segments, and to monitor the impact of the prototype on follow-on satellites (see EUM/C/93/75),

AGREES:

- I** That the Director is authorised to sign the Cooperation Agreement as set out in Annex I to this Resolution,
- II** That the Director should be satisfied that EUMETSAT will have adequate participation on the technical level in the ESA Programme before signing the Cooperation Agreement,
- III** That the signature by the Director shall be subject to the full approval of the EUMETSAT MSG programme.

**DRAFT
AGREEMENT
BETWEEN
THE EUROPEAN ORGANISATION FOR THE EXPLOITATION OF
METEOROLOGICAL SATELLITES
AND
THE EUROPEAN SPACE AGENCY
CONCERNING
THE METEOSAT SECOND GENERATION SYSTEM**

**Issue: 4
Date: 22.11.1993**

The European Organisation for the Exploitation of Meteorological Satellites established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT")

and

The European Space Agency established by the Convention opened for signature in Paris on 30 May 1975 and entered into force on 30 October 1980 (hereinafter referred to as "ESA"),

RECALLING that EUMETSAT's mission includes the establishment, maintenance and exploitation of European systems of operational meteorological satellites,

RECALLING that ESA's mission is to provide for and to promote, for exclusively peaceful purposes, cooperation among European States in space research and technology and their space applications, with a view to their being used for scientific purposes and for operational space applications systems,

RECALLING that the development of the first generation of Meteosat satellites was carried out by ESA and has led to the establishment of EUMETSAT for exploiting operational meteorological satellites,

RECALLING the fruitful cooperation between ESA and EUMETSAT in the Meteosat Operational Programme (MOP) and in the Meteosat Transition Programme (MTP) in which ESA acts as procurement agent to procure the satellites and (in the case of MOP) to launch and operate them,

RECALLING the Resolution on the Implementation of the European Long-Term Space Plan and Programmes (ESA/C-M/CIV/Res. 1 (Final)) adopted on 10 November 1992 by the ESA Council meeting at Ministerial level and in particular its chapters IV B and V,

RECALLING the Resolution on the EUMETSAT Meteosat Second Generation Programme (EUM/C/92/Res.VI, presented to the EUMETSAT Council for adoption at the 21st meeting on 23-25 November 1992,

RECALLING the Resolution adopted by the ESA Council on 15 December 1992 accepting that the ESA Meteosat Second Generation programme be undertaken within the framework of the Agency (ESA/C/CV/Res.5 (Final)),

RECOGNISING the advances in technology since the establishment of the Meteosat Operational Programme and subsequently the Meteosat Transition Programme,

CONSIDERING the need to maintain continuity of meteorological observations from geostationary orbit,

CONSIDERING the benefit to meteorological measurement techniques of utilising advanced technology on a second generation meteorological satellite series in geostationary orbit,

NOTING that ESA is implementing the ESA Meteosat Second Generation programme to develop a prototype satellite becoming the first in the series of Meteosat Second Generation satellites, in accordance with the terms of the Declaration [ESA/PB-EO/.../Dec. 1 (Final)],

NOTING that EUMETSAT is implementing the EUMETSAT Meteosat Second Generation programme, itself consisting of two slices, a Demonstration slice and an Operational slice, leading to a Meteosat Second Generation System comprising a ground segment, three satellites, their launches and in-orbit commissioning, and operations of the System until 2012,

HAVING REGARD to the frame contract on Ariane Procurement signed by Arianespace and EUMETSAT on ...

HAVING REGARD to Article XIV. 1 of the ESA Convention and Article 3 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

ARTICLE 1

Purpose

1. The purpose of this Agreement is to define the terms of cooperation between EUMETSAT and ESA relating to the establishment of the Meteosat Second Generation System which aims to fulfil the mission objectives as outlined in the document EUM/C/92/49,[rev....], Annex II, which ESA has received and acknowledged.
2. In particular, it defines the terms governing:
 - a) the coordination of and interfaces between the ESA Meteosat Second Generation programme and the EUMETSAT Meteosat Second Generation programme with a view to launching the prototype satellite in the year 2000 at the latest to ensure a coherent establishment of the Meteosat Second Generation System;
 - b) the EUMETSAT financial contribution to the ESA Meteosat Second Generation programme; and
 - c) other connected matters.

ARTICLE 2

ESA Activities

1. ESA, within its Meteosat Second Generation programme, will undertake to develop and deliver the prototype Meteosat Second Generation satellite, in accordance with the requirements agreed with EUMETSAT and which are defined in the programme proposal (ESA/PB-EO(92)57, rev.2), which EUMETSAT has received and acknowledged.
2. ESA within its Meteosat Second Generation programme will also:
 - a) provide man-power support to the launch campaign,
 - b) provide man-power support to EUMETSAT for the launch and early orbit phase (LEOP) and the in-orbit commissioning,
 - c) provide general post-launch man-power support to EUMETSAT for up to 6 months after successful launch.
3. ESA will be the procurement agent for the further MSG satellites if so requested by EUMETSAT in accordance with Article 10.
4. ESA rules and regulations will apply to the execution of the ESA Meteosat Second Generation programme.

ARTICLE 3

EUMETSAT Activities

1. EUMETSAT, within the Demonstration slice of its Meteosat Second Generation programme will:
 - a) undertake to develop the ground segment and provide the launch for the prototype Meteosat Second Generation satellite, commission the satellite in-orbit and operate the satellite and ground segment for a 6 month period following launch,
 - b) make a fixed financial contribution to the ESA programme in accordance with the provisions of Article 5.

2. EUMETSAT, within the Operational slice of its Meteosat Second Generation programme, will undertake to procure and launch further MSG satellites and provide system operations beyond 6 months after the successful launch of the prototype satellite.
3. EUMETSAT rules will apply to the execution of the EUMETSAT Meteosat Second Generation programme.

ARTICLE 4

Launcher Procurement

EUMETSAT has selected the Ariane launcher for the satellites of the MSG system as set out in the afore-mentioned framework contract between EUMETSAT and Arianespace.

ARTICLE 5

EUMETSAT Contribution to the ESA Programme

1. EUMETSAT will make a fixed financial contribution to the ESA Meteosat Second Generation programme of 162 million European Currency Units (MECU), at 1992 economic conditions, which for purposes of this Agreement are considered to be equivalent to 162 million accounting units (MAU) at 1992 prices and 1993 conversion rates.
2. The EUMETSAT contribution will be paid according to the following schedule (MECU at 1992 economic conditions):

1993	1994	1995	1996	1997	1998	1999	2000	TOTAL
3	33	44	45	38	11	1	-13	162

3. The annual contributions from 1993-1999 will be called up by ESA and will be paid by EUMETSAT according to the following schedule:
 - 1993:
 - 100% upon signature of this Agreement
 - for 1994-1999:
 - 40% on 31 January;
 - 40% on 30 June;
 - 20% on 31 October.

4. An amount of 13 MECU (at 1992 economic conditions) will be paid in 2000 by ESA to EUMETSAT according to the following schedule:
 - 40% on 31 January 2000
 - 40% on 30 June 2000
 - 20% on 31 October 2000
5. In the event of late receipt of the 1993-1999 EUMETSAT contributions, ESA will have the right to take out loans at EUMETSAT's expense according to Article 9 of the ESA Financial Rules.
6. In the event of late receipt of the year 2000 ESA payment, EUMETSAT will have the right to take out loans at ESA's expense according to Article 12 of the EUMETSAT Financial Rules.

ARTICLE 6

Procurement Policy

1. In applying its procurement policy, ESA will aim to use the EUMETSAT contribution to the ESA MSG programme to optimise cost efficiency and to minimise the recurrent costs which will be borne by EUMETSAT in the further establishment of the MSG system.

ARTICLE 7

Co-ordination

1. In order to ensure an effective performance of the respective ESA and EUMETSAT activities in Articles 2 and 3 above and with particular regard to the technical interfaces between these activities, addressed below in Article 8, the Parties will ensure close coordination.
2. Each Party will manage and have full responsibility over its respective programme.
3. Both Parties recognise the need for optimising the technical and schedule efficiency of and minimising the cost of the Meteosat Second Generation System and will take the appropriate measures in implementing their activities.
4. While the respective programme management structures remain independent, each Party agrees to consult with the other Party on matters under its control which may affect the implementation of the other Party's activities.

5. EUMETSAT will have observer status in the ESA Earth Observation Programme Board and its advisory group(s) when dealing with matters relating to the ESA Meteosat Second Generation programme.
6. ESA will have observer status in the EUMETSAT Council and its technical advisory group(s) when dealing with matters relating to the EUMETSAT Meteosat Second Generation programme.

ARTICLE 8

Implementation

1. Each Party will nominate a Project Manager responsible for the implementation of its own programme.
2. The two Project Managers will jointly establish the necessary technical documents associated with the interfaces of the ESA and EUMETSAT activities leading to the Meteosat Second Generation System. These documents will include:
 - a) a project implementation plan covering, inter alia:
 - definition of the services, equipment and technical documents to be exchanged by the two Parties,
 - participation in the activities, reviews and meetings of the other Party,
 - associated project schedules.
 - b) the satellite to ground segment technical interface;
 - c) the satellite launcher technical interface;
 - d) the modalities to permit satellite to ground compatibility testing prior to launch;
 - e) the modalities to permit in-orbit commissioning subsequent to launch.
3. Before the end of Phase B System Definition, a technical presentation to Delegations will jointly be given by ESA/EUMETSAT in order to demonstrate that the System Design will meet the System Requirements derived from the Mission Objectives.
4. In the event of major technical, schedule or other difficulties arising, which have an impact on at least one of the Parties and which cannot be resolved between the two project managers, the matter will be brought to a higher management level for a resolution which preserves the balance of the obligations in this agreement.

ARTICLE 9

Undertaking of the Parties

1. The activities described to be undertaken by the two parties will be carried out on a "best efforts" basis, except where otherwise provided.

ARTICLE 10

Other Activities

1. EUMETSAT may request support from ESA for any of the EUMETSAT activities of Article 3 or any further related activities. ESA agrees to consider any such request. Any agreement to provide such support will be covered either by an amendment to this Agreement or by a further Agreement as appropriate.

ARTICLE 11

Ownership of the prototype and data

1. EUMETSAT will become the owner of the prototype satellite developed under the ESA Meteosat Second Generation programme. EUMETSAT will notify the Secretary General of the United Nations of the launch of the MSG prototype satellite in accordance with the Convention on registration of objects launched into outer space, opened for signature in New-York on 14 January 1975.
2. Other equipment procured under the ESA Meteosat Second Generation programme in Article 2 above which may be of use on any further Meteosat Second Generation satellite procurements will be made available to EUMETSAT as appropriate.
3. EUMETSAT, as owner of the prototype satellite, will have the ownership to all data and products generated by the Meteosat Second Generation satellite.
4. EUMETSAT will provide satellite data from the Meteosat Second Generation System to ESA free of charge for ESA's own requirements in the field of space research and technology.

ARTICLE 12

Intellectual Property Rights

1. ESA grants a licence to EUMETSAT, including the right to grant sub-licences, without prejudice to third party rights, on any technology, whether or not it is protected by Intellectual Property Rights, developed under its MSG activities. This licence is granted for EUMETSAT's purposes within satellite meteorology and to facilitate the exploitation of the prototype satellite and the Meteosat Second Generation System by EUMETSAT.
2. When placing contracts, ESA will secure for EUMETSAT the same rights as are granted to ESA under the General clauses and conditions for ESA contracts.
3. ESA retains the rights to use Intellectual Property Rights (or any technology as described above) acquired under its activities for its own purposes in space research and technology.

ARTICLE 13

Information Release and Credits

1. Each Party may release to the public information regarding the activities of this agreement and its implementation, after ensuring that this information is fairly and accurately represented, in particular in respect of the roles of the two Parties.
2. ESA and EUMETSAT will acknowledge each other's role in developing the Meteosat Second Generation System, in particular in relations with the media.

ARTICLE 14

Liability

1. Each Party will bear the cost of compensation for damage or injury of any kind suffered by its personnel or property within the framework of the execution of this Agreement except in cases of gross negligence or wilful act or omission by one of the Parties.
2. Each Party will be liable to third parties for damage or injury attributable to the execution of its responsibilities under this Agreement.

ARTICLE 15

Settlement of Disputes

1. Any dispute in the interpretation or implementation of the terms of this Agreement will be referred to the Director of EUMETSAT and the Director General of ESA for settlement.
2. Any dispute which cannot be settled amicably will, at the request of either Party, be submitted to an arbitration tribunal. The Party which intends to submit the dispute to arbitration will notify the other Party.
3. The arbitration tribunal will consist of three members: one arbitrator designated by EUMETSAT, one arbitrator designated by ESA and a third arbitrator designated by the first two arbitrators and who will act as chairman. Should the first two arbitrators be unable to agree on the third within two months from their nomination, the latter will be designated at the request of either Party by the President of the International Court of Justice or, if there is no agreement between the Parties, by the Secretary General of the Permanent Court of Arbitration. Should one of the first two arbitrators not be designated within two months from the request of a Party for arbitration, he will, on the request of either Party, be nominated by the President of the International Court of Justice or, if there is- no agreement between the Parties, by the Secretary General of the Permanent Court of Arbitration.
4. The arbitration tribunal will determine its seat and its procedure.
5. The decision of the arbitration tribunal will be determined by a majority vote. The award will be final and binding on the Parties.

ARTICLE 16

Entry into Force, Duration and Amendments

1. This Agreement will enter into force upon signature by both Parties.
2. This Agreement will remain in force for the period covering the duration of the development, demonstration and operations of the Meteosat Second Generation System.
3. EUMETSAT and ESA may revise the provisions of this Agreement by mutual accord. Amendments will take effect on the date of signature of these amendments.

Done at on

in two originals in the English, French and German languages, each being equally authoritative for the purpose of interpretation.

For EUMETSAT For the European Space Agency

RESOLUTION ON
THE ENTRY INTO FORCE OF THE
METEOSAT SECOND GENERATION PROGRAMME

Adopted at the 24th Meeting of the EUMETSAT Council
on 23 - 25 November 1993

The EUMETSAT Member States,

RECALLING the Resolution EUM/C/92/Res.VI unanimously adopted at the 24th Council on 23 - 25 November 1993,

RECALLING the Resolution EUM/C/93/Res.V authorising the Director of EUMETSAT to sign the Cooperation Agreement with ESA,

NOTING that the votes of Greece, Italy, the United Kingdom and Spain are conditional with regard to the finalisation of national approval procedures,

EXPECTING that the delegations of Greece, United Kingdom and Spain will be able to lift their ad referendum within a short period of time,

BEARING IN MIND that all Member States have voted in favour of the MSG programme,

AGREE:

- I** that the necessary activities under the EUMETSAT MSG Programme will start as soon as the ESA programme has been established and that EUMETSAT, as a consequence, will pay the full 1993 and 1994 instalments of the fixed contribution to ESA,
- II** that Greece, Italy, United Kingdom and Spain will be legally obliged to contribute financially to the Programme only after finalisation of national approval procedures, and that their contribution would only become due then,
- III** that if Greece, Italy, United Kingdom or Spain would not be in a position to confirm finalisation of national approval procedures by 1 June 1994 at the latest, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken,
- IV** that in the budget 1994 an amount corresponding to the contribution from Greece, Italy, United Kingdom and Spain is blocked until the finalisation of national approval procedures has been notified to the EUMETSAT Secretariat.

RESOLUTION ON
THE ENTRY INTO FORCE OF THE
EUMETSAT POLAR SYSTEM PREPARATORY PROGRAMME

Adopted at the 24th Meeting of the EUMETSAT Council
on 23 - 25 November 1993

The EUMETSAT Member States,

RECALLING the Resolution EUM/C/92/Res.VIII unanimously adopted at the 24th Council on 23 - 25 November 1993,

NOTING that the votes of Greece, Italy, Portugal and Spain are conditional with regard to the finalisation of national approval procedures,

EXPECTING that the delegations of Greece, Portugal and Spain will be able to lift their ad referendum within a short period of time,

BEARING IN MIND that all Member States have voted in favour of the EPS preparatory programme,

AGREE:

- I** that the necessary activities under the EUMETSAT Polar System Preparatory Programme can start with effect from 1.1.1994,
- II** that Greece, Italy, Portugal and Spain will be legally obliged to contribute financially to the Programme only after finalisation of national approval procedures, and that their contribution would only become due then,
- III** that if Greece, Italy, Portugal or Spain would not be in a position to confirm finalisation of national approval procedures by 1 June 1994 at the latest, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken,
- IV** that in the budget 1994 an amount corresponding to the contribution from Greece, Italy, Portugal and Spain is blocked until the finalisation of national approval procedures has been notified to the EUMETSAT Secretariat.

RESOLUTION ON
THE COUNCIL APPROVAL PROCEDURE OF MAJOR PROCUREMENTS

Adopted at the 25th Meeting of the EUMETSAT Council
on 22 - 24 June 1994

The EUMETSAT Council,

CONSIDERING EUMETSAT's objective to act in an optimised manner in order to obtain best value for money;

BEING AWARE of the schedule constraints imposed by the requirement to submit procurement and contract proposals to Council via STG and AFG for procurements exceeding certain values;

NOTING that the efficiency of EUMETSAT also depends on the timeliness of EUMETSAT's requests for offers and conclusion of contracts;

WISHING to reduce the timing constraints which may impede EUMETSAT from acting in a sound manner;

AGREE:

That Article 23.7 of the Financial Rules is replaced by the following:

"(7) Procurement proposals estimated to exceed 500 KECU are subject to approval by the Council prior to the issue of the invitations to tender.

Contract proposals exceeding 500 KECU are subject to approval by the Council."

**RESOLUTION ON
THE EUMETSAT POLAR SYSTEM**

**Adopted at the 26th Meeting of the EUMETSAT Council
on 22 - 24 November 1994**

The EUMETSAT Council,

BEARING IN MIND that polar satellites in both morning and afternoon orbits are essential for operational meteorology and that the morning orbit is of particular importance to Europe for geographical reasons;

NOTING with appreciation that the USA will provide operational meteorological observations from the morning polar orbit until the year 2000 and that the USA will continue to provide the operational meteorological observations from the afternoon orbit;

TAKING NOTE of the US decision to establish a converged programme between NASA, NOAA and Department of Defense for a first converged mission in the 2004 time-frame;

CONSIDERING the European need to ensure continuity of observations from the morning polar orbit;

BEING AWARE of the resolution of the ESA Council at ministerial level held in Granada concerning the development by ESA of a meteorological platform (METOP 1 mission) for morning polar orbit;

WELCOMING the offer of the USA to provide instruments for the METOP mission;

RECALLING the mission objectives for METOP resulting from the Zürich Workshop;

RECOGNISING the important contribution to global meteorological and climate monitoring provided by the METOP mission, in particular in relation to WMO programmes;

RECOGNISING that the EPS programme represents the European contribution to a Joint Polar System, the other element of which will be provided by the USA;

RECALLING the Resolution EUM/C/92/Res.VIII concerning the EUMETSAT Polar System Preparatory Programme;

NOTING the complementary objectives of ESA and EUMETSAT concerning the development of space programmes and their operational exploitation;

BEING AWARE that the ESA Executive is preparing a Council meeting at ministerial level and the importance of such meeting for European space policy;

BEING AWARE of the establishment by ESA of the METOP Preparatory Programme and of the proposal being prepared by the ESA Executive in respect to the METOP-1 mission;

- I WELCOMES** the intention of the ESA Executive to present, for approval at the ESA Council meeting, a METOP programme to be implemented in cooperation with EUMETSAT, NOAA, CNES and ASI;
- II ENDORSES** the mission objectives established by the Zürich Workshop as a baseline for further study;
- III RE-ESTABLISHES** the Council Task Force to provide further guidance to the Secretariat for the definition of the EPS programme and to make recommendations to prepare the approval of the programme;
- IV EXPRESSES** EUMETSAT's intention to establish the EPS programme in a time- frame compatible with a launch of METOP 1 in the year 2001;
- V REQUESTS** ESA to continue to work with EUMETSAT to achieve the programme satisfying EUMETSAT's requirements and constraints;
- VI EXPRESSES** the willingness to study further opportunities for cooperation in this programme with the USA.

RESOLUTION ON
EUMETSAT STAFF CONTRACTS POLICY

Adopted at the 26th Meeting of the EUMETSAT Council
on 22 - 24 November 1994

The EUMETSAT Council,

RECALLING the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

NOTING that the EUMETSAT Convention entrusts the Director with the implementation of the decisions taken by Council and with the execution of the tasks assigned by EUMETSAT,

NOTING furthermore that the Director shall be supported by a Secretariat,

BEARING IN MIND that the fundamental conditions of service for EUMETSAT staff are set out in the Staff Rules as agreed by Council,

BEARING IN MIND that these Rules were initially established with a background of one satellite programme (MOP) which was expected to end 9 years after the entry into force of the EUMETSAT Convention and that therefore the overall duration of staff contracts was also limited in the Staff Rules to "normally" not beyond a total of 9 years,

RECALLING the recent programme decisions beyond the end of MOP in order to ensure a continuous operational service to provide data from geostationary satellites until at least the year 2012,

RECALLING the preparatory programme established to ensure also a long-term operational service to provide data from polar satellites,

WISHING to ensure now a long-term EUMETSAT Staff Contracts Policy in conformity with the long-term operational objectives and activities of EUMETSAT,

AGREES:

- I** that the main objective of the EUMETSAT Staff Contracts Policy is to ensure that all EUMETSAT activities are effectively and efficiently carried out by staff of the highest ability and integrity, account being taken of the international character of EUMETSAT,
- II** that in order to achieve this objective the EUMETSAT staff complement shall consist of a mix of experience and new talents. This requires on the one hand a constant review of the staff complement with regard to the need for rotation.

Rotation shall ensure the necessary dynamism and vitality as well as updating the knowledge-base of EUMETSAT. On the other hand it is necessary to offer qualified staff a long-term perspective and to ensure that their knowledge and experience continues to be available where needed.

III that the Director shall implement the EUMETSAT Staff Contracts Policy primarily on the basis of renewable contracts between 2 and 5-year duration. Indefinite contracts shall remain exceptional. The earlier limitation of contract duration to "normally" not beyond a total of 9 years is amended. To this extent the words "normally not renewed beyond a total of 9 years of service" in Art. 5 of the Staff Rules are deleted, and "Five" replaced by "Nine" in Art. 5.1 b) so that Art. 5 of the Staff Rules reads as follows:

"1 Two types of contracts may be awarded:

- a) fixed-term renewable 2 to 5 year contracts, ~~normally not renewed beyond a total of 9 years of service;~~
- b) contracts of indefinite duration. Contracts of type b) can only take effect after at least nine years of service under contracts of type a). The Director may award indefinite contracts only in exceptional cases with Council's approval.

2 In a letter of appointment it shall be mentioned for which function the staff member has been recruited, the grade and step, the starting date, the effective incremental date, the duration of the contract and the salary and allowances, to which the staff member is entitled. The letter of appointment shall furthermore specify that the appointment is subject to the provisions of these rules including any amendments which may be made thereto.

3 The Director shall inform a staff member in writing nine months before the termination of the contract of the staff member concerned whether or not he intends to offer him a further contract. However, if the second or subsequent contract is of nine months' duration or less, the notification to inform the staff member in writing nine months before the termination of the contract may be waived by the mutual consent of the Director and the staff member concerned."

IV that when considering renewal of a contract the Director shall consider i.a.

- past performance of staff and expected future performance,
- continued requirement in EUMETSAT for the kind of expertise offered by the staff member,
- overall balance of experience and new talents in the Secretariat.

V that the Director shall annually report to the Council about the implementation of the Staff Contracts Policy.

**RESOLUTION ON
COMPONENT PROCUREMENT
FOR THE METEOSAT SECOND GENERATION (MSG) PROGRAMME**

**Adopted at the 27th Meeting of the EUMETSAT Council
on 27-28 June 1995**

The EUMETSAT Member States,

RECALLING the Resolution to establish the MSG Programme and the implementation of the Demonstration Slice of the Programme which includes a financial contribution to the ESA programme for development of the MSG-1 satellite,

RECOGNISING that the MSG Programme will, subject to further authorisation of Council, include the manufacture of two follow-on satellites MSG-2 and MSG-3,

BEARING IN MIND the urgency to initiate the procurement of electronic components in order to safeguard the schedule and availability for launch of MSG-1,

WISHING to ensure the economic benefit to EUMETSAT in procuring the electronic components for MSG-2 and MSG-3 at the same time as those for MSG-1;

AGREE:

- I** to authorise the procurement of electronic components for MSG-2 and MSG-3, within a maximum limit of liability to EUMETSAT of 22.7 MECU at 1994 economic conditions,
- II** that the payment to ESA in 1995 for expenditure on procurement of electronic components for MSG-2 and MSG-3 shall not exceed 4.5 MECU and that this will be paid from funds available within the existing 1995 budget,
- III** that the limit of liability in I, above, is additional to the financial envelope of 352 MECU at 1992 economic conditions agreed for the Demonstration Slice of the MSG programme,
- IV** that this decision on component procurement does not prejudice a decision on the Operational Slice of the MSG programme.

**RESOLUTION ON
THE APPLICABLE GNP SCALE
OF CONTRIBUTIONS FOR THE PERIOD 1994 - 1996.**

**Adopted at the 27th meeting of the EUMETSAT Council
on 27-28th June 1995**

The EUMETSAT Council,

RECALLING Resolution EUM/C/93/Res III on the Accession of Austria to the EUMETSAT Convention adopted at the 23rd Council meeting on 28 - 30 June 1993,

NOTING that the GNP scale of contributions contained in Resolution EUM/C/93/Res. III was based on preliminary GNP figures provided by OECD,

TAKING INTO ACCOUNT that the final figures provided by OECD have as a consequence a modification in the French and Greek rates of contributions applicable from 1 January 1994,

WISHING to confirm the correct applicable rates of contributions for Greece and France,

AGREES:

- I** That the correct GNP rate of contribution applicable to Greece for the period 1994-1996 is 0.96%.
- II** That the correct GNP rate of contribution applicable to France for the period 1994-1996 is 16.78%.
- III** To amend Chapters B, C, D, E and F of Annex II to the Convention as set out in Resolution EUM/C/93/Res. III in accordance with these corrected figures, with effect from 1 January 1994.

**RESOLUTION ON
THE EUMETSAT POLAR SYSTEM**

**Adopted at the 27th meeting of the EUMETSAT Council
on 27-28 June 1995**

The EUMETSAT Council,

BEARING IN MIND that polar satellites in both morning and afternoon orbits are essential for operational meteorology and that the morning orbit is of particular importance to Europe for geographical reasons;

NOTING with appreciation that the USA will provide operational meteorological observations from the morning polar orbit until the year 2000 and that the USA will continue to provide the operational meteorological observations from the afternoon orbit;

CONSIDERING the European need to ensure continuity of observations from the morning polar orbit;

BEING AWARE of the resolution of the ESA Council at ministerial level held in Granada concerning the development by ESA of a meteorological mission for morning polar orbit;

WELCOMING the offer of the USA and other European countries to provide instruments for the METOP mission;

RECOGNISING the important contribution to global meteorological and climate monitoring provided by the METOP series, in particular in relation to WMO programmes;

RECOGNISING that the METOP series represents the European contribution to a Joint Polar System, a second element of which will be provided by the USA;

RECALLING the Resolution EUM/C/92/Res.VIII concerning the EUMETSAT Polar System Preparatory Programme;

NOTING the complementary objectives of ESA and EUMETSAT concerning the development of space programmes and their operational exploitation;

BEING INFORMED of the ESA Executive's programme proposal ESA/PB-EO(94)100 rev 3 for the development of activities for the METOP series;

- I** Welcomes the progress made by the ESA Executive in conjunction with the EUMETSAT Secretariat in the preparatory activities leading to the establishment of the METOP series with the aim of launching the first satellite in 2001;
- II** Confirms its intention to cooperate with ESA in the development of the METOP series on the basis of the payload as defined in EUM/C/95/12. This is conditional on its feasibility being established, the mass and volume being compatible with dual launch on an Ariane 5, and schedule and cost forecasts being maintained;
- III** Confirms its intention to undertake its EPS Programme to provide operational instruments for accommodation on the METOP series, to develop a ground segment, to provide the launch services for the METOP series and to provide system commissioning and operations for 15 years;
- IV** Requests the EUMETSAT Secretariat to pursue negotiations with ESA, and for the two Agencies to jointly prepare a suitable legal framework and Mission Objectives setting out the responsibilities of the two Agencies to implement the above. The Mission Objectives shall be established on the basis that the EUMETSAT operational meteorological and climatological objectives take precedence throughout. Further objectives shall not impose constraints or risks to the Programme.

RESOLUTION ON
THE EUMETSAT POLAR SYSTEM PROGRAMME
Adopted at the 29th meeting of the EUMETSAT Council
on 29th November - 1st December 1995

The EUMETSAT Council,

RECOGNISING the contribution to global meteorological and climate monitoring provided by the EPS mission, in particular in relation to WMO programmes;

NOTING that the USA will provide operational observations from the morning polar orbit only until the year 2000 and considering the USA will continue to provide the operational polar observation from the afternoon orbit;

CONSIDERING the importance to Europe of routine observations from the morning orbit;

RECOGNISING that the EUMETSAT Polar System represents the European contribution in the morning orbit to a Joint Polar System, the other element of which will be provided by the USA;

BEING AWARE of the need to continue without interruption ongoing industrial design and development activities in order to reach a first launch of the European contribution to a Joint Polar System in 2001;

STRESSING the need for the first launch in 2001 in order to provide continuity of observations in the morning polar orbit within the initial Joint Polar System and to take benefit from a dual launch with the satellite SPOT 5;

EXPRESSING THE DESIRE that the activities defined in the EUMETSAT Polar System as contained in the annexed framework are started as a matter of urgency;

AGREES TO:

- I** pursue with ESA a programme of 3 satellites which represents a descoping from the Venice proposal. This revised programme proposal is for a basic imagery and sounding payload with a limited climate payload as set out in Annex 1,

- II** invite ESA to redirect its industrial Phase B activities in accordance with the revised programme proposal as set out in Annex 1 and to be consistent with a Phase C/D start in January 1997,
- III** task the Director with completing the details of the Annex 1 in the form of a programme proposal for submission to the June 1996 Council meeting and opening for adoption the revised Programme Resolution at this June meeting,
- IV** task the Director with negotiating the necessary Cooperation Agreements with EUMETSAT's partners for a first submission in June 1996 and for approval at the December 1996 meeting,
- V** invite ESA to confirm agreement to undertake a complementary ESA programme in accordance with the revised programme proposal set out in Annex 1, with EUMETSAT having overall mission and system responsibility, and to confirm such agreement by the 1st February 1996 and to further undertake to open a Declaration by 1st June 1996,
- VI** invite ESA Member States ready to contribute ASCAT and/or MIMR as Announcement of Opportunity (AO) Instruments on the 3 satellites to confirm their commitment by the 1st February 1996,
- VII** task the Director to take the necessary action to maintain as a fall back baseline a programme based on his proposal of 29th November 1995.

ANNEX
FRAMEWORK FOR
A
REVISED EPS PROGRAMME PROPOSAL

1 MISSION OBJECTIVES SUMMARY

The programme is established to respond to the following mission objectives:

Essential Missions

- Sounding,
- Imagery,
- Advanced Sounding,
- Data Collection.

Climate Monitoring Mission:

- Ozone monitoring.

Other Missions:

- Humanitarian,
- Space environment monitoring.

2 PAYLOAD

The following payload is considered to meet the above mentioned:

Essential Mission Objectives:

- AMSU,
- MHS,
- GPS,
- HIRS,
- AVHRR,
- IASI,
- DCS.

Climate Monitoring Mission:

- GOME.

Other Missions:

- S&R,
- SEM.

3 SPACE PLATFORM

The satellite will be based on the METOP Service Module and a Payload Module derived from the technology studied/evaluated during the Phase B and re-tailored to the new payload mentioned above.

4 PROGRAMME CONTENTS

4.1 Space Segment

The programme includes:

Provision of 3 integrated European satellites (M1, M2 & M3),
Provision of the payload for 3 European satellites through cooperation and/or direct EUMETSAT procurement,
Provision of 2 dual and 1 single launch.

The programme will benefit from the simplification of the space segment together with the risk reduction associated with a reduced and recurrent payload.

4.2 Ground Segment

The programme includes:

Ground Segment investment adapted to the reduced number of missions, including a financial provision for SAFs, i.e:

- Receiving stations (unchanged w.r.t previous programme assumptions)
- Mission and satellite control (slightly reduced w.r.t previous programme assumptions),
- Data pre-processing and archiving (slightly reduced w.r.t previous programme assumptions),
- IASI Ground Segment Element by CNES (unchanged w.r.t previous programme assumptions),
- Gateways with US/European Networks (unchanged w.r.t previous programme assumptions),
- Communications (slightly reduced w.r.t previous programme assumptions),

5 years of operations per satellite, including in orbit commissioning, until 2015.

5 COOPERATION

EUMETSAT will establish Cooperation Agreements with:

- ESA for the development and procurement of the 1st satellite and by agreement procurement of the 2nd and 3rd integrated satellites on behalf of EUMETSAT,
- NOAA for the establishment of an Initial Joint Polar System, precursor of a Joint Polar System, including the provision of AVHRR, AMSU, HIRS, SEM and Search and Rescue (no exchange of funds),
- CNES/ASI for the provision of the IASI,
- CNES for the provision of DCS/Argos (no exchange of funds),
- CNES for the coordination of dual launches (no exchange of funds),
- ESA for the provision of GOME & GPS for M1.

6 PROCUREMENTS

6.1 Space System

The strategy for the procurement of the Space system takes into account:

- A redirection and extension until December 96 of the ESA METOP Phase B activities including the necessary measures to secure the validity of the industrial C/D cost estimates,
- Award of a Phase C/D ESA contract to the pre-determined Industrial consortium in line with the METOP Phase B activities and results thereby securing benefits of heritage and continuity.

6.2 Payload

The procurement of the payload will be performed on a competitive Invitation To Tender basis and/or provision through international cooperation and/or national contribution.

6.3 Ground Segment

The procurement of the ground segment and the operations will be performed on a competitive Invitation To Tender basis.

**RESOLUTION ON
THE CEILING OF THE GENERAL BUDGET 1996-2000**

**Adopted at the 29th Meeting of the EUMETSAT Council
on 29th November 1995 - 1st December 1995**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, Annex I Chapter B stating that the General Budget will constitute the programmatic frame for all EUMETSAT core and prospective activities in 1990 and subsequent years,

RECALLING EUM/C/Res. XVIII establishing the first General Budget, a ceiling for the years 1990-1995 and contributions based on a GNP scale of contributions,

EXPRESSING the need to establish a new ceiling,

AGREE:

- I** to fix a new ceiling of the General Budget for the years 1996-2000,
- II** to link this ceiling to contributions from Member States on a GNP scale,
- III** to limit these contributions to 65.7 MECU at 1996 economic conditions.

**RESOLUTION ON
THE MHS PROJECT FUNDING**

**Adopted at the 29th Meeting of the EUMETSAT Council
on 29th November - 1st December 1995**

The EUMETSAT Member States,

NOTING with appreciation that the USA will provide operational meteorological observations from the morning polar orbit until the year 2000 and that the USA will continue to provide the operational meteorological observation from the afternoon orbit,

RECOGNISING the benefit of microwave humidity sounding to the meteorological community,

RECALLING the commitment of EUMETSAT to provide to the USA copies of the Microwave Humidity Sounder (MHS) in a time frame compatible with the launch of NOAA-N and N',

EXPRESSING the need to speed up activities related to the procurement of the MHS instrument in order to fulfil EUMETSAT's commitment in a timely and economical manner,

AGREE:

to contribute an amount of 21.8 MECU, at 1996 economic conditions, for an independent four years' development of the MHS instrument, to be exceptionally administrated as a distinct sub-envelope within the General Budget.

RESOLUTION ON
THE METEOSAT SECOND GENERATION
PROGRAMME SECOND (OPERATIONAL) SLICE

Adopted at the 29th Meeting of the EUMETSAT Council
on 29 November - 1 December 1995

The EUMETSAT Member States,

HAVING REGARD to the Meteosat Second Generation Programme as adopted by the EUMETSAT Member States through Resolution EUM/C/92/Res.VI,

NOTING that the Meteosat Second Generation is being implemented in two slices, a Demonstration Slice and an Operational Slice, and that Council authorisation has already been given to implement the Demonstration Slice as from 1993,

NOTING that the contents of the Operational Slice are defined in the Resolution EUM/C/92/Res.VI,

BEARING IN MIND the need for a timely decision on the procurement of the MSG-2 and MSG-3 satellites in order to minimise procurement costs and also to ensure the availability of the satellites for the planned launch dates,

AGREE:

to authorise the implementation of the Second (Operational) Slice of the Meteosat Second Generation Programme within the overall programme ceiling of 1035 MECU at 1992 economic conditions.

RESOLUTION ON
EUMETSAT PARTICIPATION TO THE CONVENTION
ON REGISTRATION OF OBJECTS LAUNCHED INTO OUTER SPACE

Adopted at the 29th Meeting of the EUMETSAT Council
on 29th November - 1st December 1995

The EUMETSAT Member States,

CONSIDERING the international cooperation in the space field;

CONSIDERING the usefulness of a registration system for space objects;

RECOGNISING the efforts of the United Nations regarding registration of spacecraft, as manifested by the Convention on Registration of Objects Launched into Outer Space and the resulting establishment of a central registry by the Secretary-General of the United Nations;

CONSIDERING that the European Space Agency has registered the already launched Meteosat Operational Programme satellites in the United Nations Registry on behalf of EUMETSAT;

CONSIDERING that the European Space Agency is not foreseen to register the Meteosat Transition Programme satellite on EUMETSAT's behalf;

CONSIDERING that a majority of the EUMETSAT Member States are Party to the Convention on Registration of Objects Launched into Outer Space and to the related Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies;

AGREE:

- I** That EUMETSAT declares its acceptance of the rights and obligations provided for in the Convention on Registration of Objects Launched into Outer Space in accordance with Article VII of said Convention and mandates the Director to undertake all necessary steps in this respect.
- II** That the Director sets up a registry within EUMETSAT covering satellites launched by EUMETSAT and that the Director informs the Secretary-General of the United Nations when such registry has been established.

RESOLUTION ON
THE FRAMEWORK APPROACH TOWARDS A
EUMETSAT POLAR SYSTEM (EPS) PROGRAMME

Adopted at the 30th meeting of the EUMETSAT Council
on 1 April 1996

The EUMETSAT Council,

RECOGNISING the important contribution to operational meteorology and climate monitoring provided by the EPS mission, in particular to WMO programmes;

NOTING that the USA will provide operational observations from the morning polar orbit only until the year 2001 and considering that the USA will continue to provide operational polar observation from the afternoon orbit;

CONSIDERING the paramount importance to Europe of routine observations from the morning orbit;

RECOGNISING that the EPS represents the European contribution in the morning orbit to the Joint Polar System, the other element of which will be provided by the USA;

BEING AWARE of the need to continue without interruption ongoing industrial design and development activities in order to reach a timely first launch of the European contribution to an Initial Joint Polar System by 2002;

RECALLING Resolution EUM/C/95/Res. IV, adopted at the 29th meeting of the EUMETSAT Council on 29th November - 1st December 1995, which agreed to pursue with ESA a programme of 3 satellites and tasked the Director with completing the details of a revised EPS Programme Proposal for submission to the June 1996 Council meeting with the expectation that the corresponding revised Programme Resolution would be opened for adoption at this June meeting;

NOTING the outcome of the Special ESA Council meeting on 26 February 1996, which endorsed the view that METOP is an Earth Watch type mission and, as such, should be developed by ESA in cooperation with EUMETSAT on the basis of mission/system requirements established by EUMETSAT as the User Organisation and utilising the management, technical, scientific and development skills of ESA;

AGREES TO:

- I** endorse the contents of document EUM/C/30/96/DOC/1, representing the revised framework approach for the EPS Programme, and in particular a joint space segment to be established by EUMETSAT and ESA. The inclusion of SEM and S&R in the payload is also endorsed,
- II** task the Director with the elaboration of the Programme Proposal and associated Programme Resolution and Cooperation Agreements in accordance with the concepts and schedule outlined in document EUM/C/30/96/DOC/1 for submission to the June 1996 Council meeting, bearing in mind also the need to satisfy various Member States motivations as expressed in the Council,
- III** task the Director to include in the programme concept 15 years of operations and to seek ways to achieve this within the financial envelope,
- IV** task the Director to explore the possibility of including MIMR in the EPS Programme on the basis of an Italian proposal, ensuring that this possibility is compatible with the overall financial envelope including 15 years of operations. The outcome of this exploration needs to be available by the end of May 1996,
- V** task the Director to define as soon as possible a contribution profile for EPS taking into account other EUMETSAT Programmes and endeavouring to make the consolidated contribution profile as flat as possible.
- VI** task the Director to investigate, through the advice of EUMETSAT STG and of ESA, the possibilities of including in the EPS within the overall financial envelope an ozone monitoring instrument that satisfies best user requirements within the EUMETSAT Member States.

**RESOLUTION ON
THE EUMETSAT POLAR SYSTEM**

**Adopted at the 31st meeting of the EUMETSAT Council
on 26-27 June 1996**

The EUMETSAT Council,

NOTING the considerable progress made on the preparation of a EUMETSAT Polar System;

NOTING with appreciation the steps taken by ESA in preparing for the approval of the ESA METOP-1 programme;

CONSIDERING the urgency to agree on the EPS/METOP programme proposal and start its implementation;

BEARING IN MIND the commitments made already by United States concerning an Initial Joint Polar System;

WISHING to strengthen the harmonious cooperation between all Member States of EUMETSAT,

BEARING IN MIND the view of the Council that national motivations consist of scientific, technical, economical and industrial interests;

AGREES:

- I** to meet in the EPS Programme, especially for the space segment, the national motivations taking into account the level of contributions;
- II** to the scientific and technical content of the EPS programme as defined in Document EUM/C/31/96/DOC/8 Rev.2 + Annexes;
- III** to postpone the decision on the choice of the ozone monitoring instrument until the December 1996 Council meeting in order to give the instrument providers the possibility to react on the evaluation and to reassess the identified risks while staying within the planned cost envelope for the ozone mission;

- IV** to consider the final approval of the EPS Programme and the associated cooperation agreements only after submission of the contract proposal for the space segment in accordance with the time schedule set out in Document EUM/C/31/96/DOC/8 Rev.2 + Annexes;

REQUESTS:

the Director to issue the Request for Quotation for the space segment and to undertake the necessary steps in order to prepare the contract proposal to be presented for approval to the June 1997 Council, taking into account national motivations as expressed above;

INVITES:

Member States to initiate their internal procedures allowing for the opening of the voting on the EPS Programme Resolution in the next Council meeting;

URGES:

ESA to open the ESA METOP-1 Programme Declaration for subscription as soon as possible, thereby also allowing the timely issue, together with EUMETSAT, of the space segment Request for Quotation.

RESOLUTION ON
THE CONTINUATION OF MHS ACTIVITIES
Adopted at the 31st Meeting of the EUMETSAT Council
on 26-27 June 1996

The EUMETSAT Member States,

RECALLING the Resolution EUM/C/95/Res. VII unanimously adopted at the 29th Council on 29th November - 1st December 1995,

NOTING that the vote of Italy is conditional with regard to the finalisation of national approval procedures related to the EPS programme,

EXPECTING that Italy will be able to lift its ad referendum within a short period of time,

BEARING IN MIND that all Member States have voted in favour of contributing an amount of 21.8 MECU, at 1996 economic conditions, for an independent development of the MHS instrument, to be exceptionally administered as a distinct sub-envelope within the General Budget,

AGREE:

- I** that the necessary tasks foreseen to be carried out under the extension of MHS activities can start with effect from 1 July 1996,
- II** that Italy will be legally obliged to contribute financially only after finalisation of national approval procedures, and that its contribution would only become due then,
- III** that if Italy would not be in a position to confirm finalisation of national approval procedures by 1 July 1997 at the latest, those Member States who have agreed unconditionally to contribute to the continuation of MHS will decide on the action to be taken,
- IV** that in the 1996 and 1997 budgets, an amount corresponding to the contribution of Italy is blocked until the finalisation of national approval procedures has been notified to the EUMETSAT Secretariat.

**RESOLUTION ON
THE EUMETSAT POLAR SYSTEM (EPS) PROGRAMME**

**Presented for Adoption at the 32nd meeting of the EUMETSAT Council
on 3 - 5 December 1996**

**Adopted at the 42nd meeting of the EUMETSAT Council
on 22-24 June 1999**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONFIRMING the EUMETSAT Council Resolutions expressing a wish to establish a European polar system, in particular the Resolution EUM/C/Res. II, which, with reference to the Programme Proposal in document EUM/C/31/DOC/8 Rev. 2, agreed to the scientific and technical content of the programme and addressed the need to satisfy the national motivations,

RECALLING Resolution EUM/C/92/Res.VIII establishing the EUMETSAT Polar System Preparatory Programme,

TAKING INTO ACCOUNT Resolutions EUM/C/95/Res.VII and EUM/C/96/Res. III on the MHS Project Funding,

TAKING INTO ACCOUNT Resolution EUM/C/96/Res.VI on the EPS Bridging Phase,

WELCOMING the Resolution Ref. ESA/C-M/CIV/Res.1, Final, by the ESA Council at Ministerial Level held in Granada on 9-10 November 1992 concerning inter alia the METOP mission,

BEARING IN MIND that polar satellites in both morning and afternoon orbits are essential for operational meteorology and that the morning orbit is of particular importance to Europe for geographical reasons,

RECOGNISING the importance of EPS for climate monitoring as well as for meteorological observations,

CONSIDERING that the USA freely provided meteorological data from the polar orbit to the rest of the world for more than 30 years,

NOTING with appreciation that the USA will provide operational meteorological observations from the morning polar orbit until the year 2001 and that the USA will continue to provide the operational meteorological observations from the afternoon orbit,

IN CONFORMITY WITH Article 17.3 of the EUMETSAT Convention,

AGREE:

I To establish a programme for a EUMETSAT Polar System with a first launch scheduled for 2002 and with operations expected to last until 2016.

II That the implementation of the EUMETSAT Polar System Programme will include:

a) A Space Segment which will consist of three METOP satellites accommodating the payload instruments identified under b) below.

The Space Segment will be established in cooperation with the European Space Agency as a Single Space Segment, according to the modalities defined in the Cooperation Agreement with ESA on the METOP Satellite Series.

b) The following instruments for flight on the METOP satellites:

- i) Advanced Microwave Sounding Unit-A (AMSU-A) replaced by a Microwave Temperature Sounder (NPOESS or MTS) if available for METOP-3;
- ii) Microwave Humidity Sounder (MHS);
- iii) High Resolution Infrared Sounder (HIRS);
- iv) Infrared Atmospheric Sounding Interferometer (IASI);
- v) Global Navigation Satellite Systems Receiver for Atmospheric Sounding (GRAS);
- vi) Advanced Very High Resolution Sounder (AVHRR) replaced by a Visible and Infrared Imager (NPOESS or VIRI) if available for METOP-3;
- vii) Data Collection System- Argos (DCS-Argos);
- viii) Global Ozone Monitoring Experiment (GOME-2) flying on METOP-1 and 2 and ImS being considered for METOP-3 assuming compatibility with the EPS financial envelope;
- ix) Advanced Wind Scatterometer (ASCAT);
- x) Space Environment Monitor (SEM);
- xi) Search and Rescue Service (S&R).

A Cooperation Agreement will be entered into with the United States National Oceanic and Atmospheric Administration (NOAA) for the provision of the instruments in i), iii), vi), x) and xi) above.

Cooperation Agreements will be entered into with the Centre National d'Etudes Spatiales (CNES) for the provision of the instruments in iv) and vii) above.

The instruments in v), viii) and ix) will be procured as part of the Single Space Segment in cooperation with the European Space Agency.

The instrument in ii) will be procured by EUMETSAT.

- c) Procurement of the launch services for the METOP satellites.
- d) Conclusion of a Cooperation Agreement with the Centre National d'Etudes Spatiales on a launch shared between METOP-1 and SPOT-5.
- e) Identification of a partner for a second, and possibly third, shared launch and conclusion of the corresponding agreement(s), or procurement of dedicated launch service(s) at a comparable cost.
- f) The development, procurement and test of the ground segment for the operations of the EPS System.
- g) System commissioning following the launch of the satellites.
- h) Operations for a period of 14 years.
- i) Conclusion of an Agreement with NOAA to provide the afternoon service of the Initial Joint Polar System (IJPS), and covering the provision of 2 Microwave Humidity Sounders (MHS) for the US satellites NOAA N and NOAA N'. The conclusion of any cooperation agreement with NOAA beyond the IJPS will be considered by Council in due course.
- j) Procurement of 2 MHSs for the US satellites NOAA N and NOAA N'.

III That the overall programme envelope amounts to 1464 MECU at 1994 economic conditions (1569 MECU at 1996 economic conditions), with an indicative payment profile to be agreed by Council separately and unanimously. The overall programme envelope includes all activities for the development of MHS and for the EPS Bridging Phase undertaken in anticipation of the full approval of the EPS Programme.

IV To fund the EUMETSAT Polar System Programme with a scale of contributions based on the Gross National Product of Member States, based on OECD statistics.

- V** By a vote representing at least two-thirds of the Member States present and voting, representing also at least two-thirds of the total amount of contributions, to approve possible cost overruns of up to 10% of the overall programme envelope in III above.
- VI** To amend the Annexes to the EUMETSAT Convention as attached.

AMENDMENT TO ANNEX I OF THE CONVENTION

CHAPTER G

EUMETSAT POLAR SYSTEM PROGRAMME

SYSTEM DESCRIPTION AND PROGRAMME CONTENT

1 MISSIONS

The EUMETSAT Polar System (EPS) will provide for the development and operation of a system providing continuation and enhancement of observations from the morning polar orbit. This system will be designed to provide continuous observations from the end of the current service provided by the United States National Oceanic and Atmospheric Administration (NOAA), from 2002 until 2016. The EPS programme is a component of a Joint European/US Polar System comprising satellites with morning and afternoon (equatorial crossing time) orbits. Accordingly, the following main missions have been defined.

a) Operational Meteorology and Climate Monitoring

Global Sounding (incl. Advanced Sounding): provides vertical profiles of temperature and humidity to support the numerical forecasting models.

Global Imagery: provides cloud imagery for forecasting applications.

Used for the calculation of sea surface temperatures, vegetation indices, ice and snow cover, atmospheric aerosol content and radiation budget parameters. Also supports the global sounding mission through the identification of cloud free areas.

Data Collection/ Location: supports, amongst other activities, World Weather objectives by the reception and dissemination of in-situ meteorological observations from ocean buoys and other similar data collection platforms.

Wind Scatterometry: provides speed and direction of winds at the Ocean surface.

Climate Monitoring: provides *inter alia* information from Imagery and Sounding, Sea Ice coverage information, Ozone Observations.

b) Further Mission Capabilities

Provide Data on Cloud Distribution, Earth Missions, Atmospheric Minor Constituents, Stress at Ocean Surface.

These missions contribute to the Global Climate Observing System (GCOS), the World Climate Research Programme (WCRP) and the International Geosphere/Biosphere Programme (IGBP).

c) Data Services

Global Data Access: supports global scale forecasting by providing global data to users within 2 ¼ hours of the instant of observation.

Local Data Access: supports forecasting activities by the real-time transmission of data to local reception stations (via the LRPT and HRPT services).

d) Additional Services

Space Environment Monitoring: supports routine monitoring of the low earth orbit charged particle environment by a Space Environment Monitoring instrument (SEM).

Humanitarian: supports an international Search and Rescue service (S&R).

2 THE EUMETSAT POLAR SYSTEM

2.1 Space Segment

The space segment of the EUMETSAT Polar System is based on a series of three METOP satellites embarking the following payload:

- | | | |
|----|--|--|
| a) | Advanced Microwave Sounding Unit-A (AMSU-A) | Microwave sounder with 15 channels in the range 23-90 GHz (will be replaced by a Microwave Temperature Sounder (NPOESS or MTS), if available for METOP-3); |
| b) | Microwave Humidity Sounder (MHS) | Microwave sounder with five channels at 89,157 and around 183 GHz; |
| c) | High resolution Infra-Red Sounder (HIRS) | Sounder with 19 infrared channels in the range 3-15 microns, and one visible channel; |
| d) | Infrared Atmospheric Sounding Interferometer (IASI) | Infrared Michelson Interferometer covering the 3.4-15.5 microns range; |
| e) | Global Navigation Satellite Systems Receiver for Atmospheric Sounding (GRAS) | Receiver performing Radio Occultation measurements of the signals provided by the GPS or GLONASS navigation satellites; |
| f) | Advanced Very High Resolution Radiometer (AVHRR) | Imaging radiometer with six channels in the range 0.6-12 microns (will be replaced by a Visible and Infrared Imager (NPOESS or VIRI), if available for METOP-3); |
| g) | Data Collection System (DCS-Argos) | UHF receiver and signal processor; |
| h) | Global Ozone Monitoring Instrument | Global Ozone Monitoring Experiment (GOME-2) flying on METOP-1 and 2 and ImS being considered for METOP-3 assuming compatibility with the EPS financial envelope; |
| i) | Advanced Scatterometer (ASCAT) | Pulsed Doppler radar in C-band; |
| j) | Space Environment Monitor (SEM); | |
| k) | Search and Rescue (S&R). | |

2.2 Ground Segment

The EUMETSAT Polar System ground segment will consist of a network of functional facilities whose definition takes into account identified functional, communication and location constraints. The architecture of the ground segment takes due account of the EUMETSAT policy on the repartition of processing facilities amongst a central and national sites.

- a) The Polar Command and Data Acquisition (PCDA) station, to be located in Northern Europe, provides the receiving and transmission facilities for satellite monitoring, tracking and control and X-Band receiving facilities for the acquisition of the Global Data Stream recorded on-board. The PCDA is supplemented by a back-up station. During the LEOP phase and contingency operation, the PCDA will be complemented by a rented S-Band ground network.
- b) The centrally located Polar Satellite Control Centre (PSCC) performs the operation of the METOP satellite and monitors and controls the health and safety of the platform and the instruments.
- c) The centrally located Polar Mission Control Centre (PMCC) is responsible for the management of the overall EPS system. It establishes the work schedule for the METOP satellites, controls all elements of the Ground Segment and monitors the execution of the various tasks. The PMCC is responsible for the planning of the satellite payload activities and for the monitoring of all EPS missions execution.
- d) The centrally located Polar Data Ingestion Facility (PDIF) receives the global data received by the PCDA station and generates earth located, quality controlled, and calibrated data, which are then forwarded for product generation.
- e) The centrally located Polar Product Extraction Facility (PPEF) generates key meteorological products for general distribution. It also provides general support and expertise to the routine management of the system as a whole.
- f) Satellite Application Facilities (SAF) will be established in Member States to provide meteorological and environmental products not generated by the PPEF.

- g) The centrally located Polar Archive and Catalogue Facility (PACF) will archive at least all centrally generated measurements data and products from the METOP and, possibly, from the NOAA Initial Joint Polar System (IJPS) satellites. It will maintain a catalogue of all information in the archive and provide the appropriate tools for consultation and data retrieval.
- h) Data circulation networks ensure the distribution/exchange of data and the interfaces between the facilities.

3 PROGRAMME CONTENT

The EPS system will be implemented in cooperation with the United States National Oceanic and Atmospheric Administration (NOAA), the European Space Agency (ESA) and the Centre National d'Etudes Spatiales (CNES). The EPS Programme will include the following:

- a) A Space Segment which will consist of three METOP satellites accommodating the payload instruments identified under b) below.

The Space Segment will be established in cooperation with the European Space Agency, in the framework of a Single Space Segment, according to the modalities defined in the Cooperation Agreement.

- b) The following instruments for flight on the METOP satellites:
 - i) Advanced Microwave Sounding Unit-A (AMSU-A) replaced by a Microwave Temperature Sounder (NPOESS or MTS) if available for METOP-3;
 - ii) Microwave Humidity Sounder (MHS);
 - iii) High Resolution Infrared Sounder (HIRS);
 - iv) Infrared Atmospheric Sounding Interferometer (IASI);
 - v) Global Navigation Satellite Systems Receiver for Atmospheric Sounding (GRAS);
 - vi) Advanced Very High Resolution Sounder (AVHRR) replaced by a Visible and Infra-Red Imager (NPOESS or VIRI) if available for METOP-3;
 - vii) Data Collection System- Argos (DCS-Argos);
 - viii) Global Ozone Monitoring Experiment (GOME-2) flying on METOP-1 and 2 and ImS being considered for METOP-3 assuming compatibility with the EPS financial envelope;
 - ix) Advanced Wind Scatterometer (ASCAT);
 - x) Space Environment Monitor (SEM);
 - xi) Search and Rescue Service (S&R).

Cooperation Agreement will be entered into with the United States National Oceanic and Atmospheric Administration (NOAA) for the provision of the instruments in i), iii), vi), x) and xi) above.

Cooperation Agreements will be entered into with the Centre National d'Etudes Spatiales (CNES) for the provision of the instruments in iv) and vii) above.

The instruments in v), viii) and ix) will be procured as part of the Single Space Segment in cooperation with the European Space Agency.

The instrument in ii) will be procured by EUMETSAT.

- c) Procurement of the launch services for the METOP satellites.
- d) Conclusion of a Cooperation Agreement with the Centre National d'Etudes Spatiales on a launch shared between METOP-1 and SPOT-5.
- e) Identification of a partner for a second, and possibly third, shared launch and conclusion of the corresponding agreement(s), or procurement of dedicated launch service(s) at a comparable cost.
- f) The development, procurement and test of the Ground Segment for the operations of the EPS System.
- g) System commissioning following the launch of the satellites.
- h) Operations for a period of 14 years.
- i) Conclusion of an Agreement with NOAA to provide the afternoon service of the Initial Joint Polar System.
- j) Procurement of 2 Microwave Humidity Sounders (MHS) for the US satellites NOAA N and NOAA N'.

AMENDMENT TO ANNEX II OF THE CONVENTION

CHAPTER G

EUMETSAT POLAR SYSTEM PROGRAMME

ANNEX II of the Convention shall be complemented with a Chapter G

EUMETSAT POLAR SYSTEM PROGRAMME

1 FINANCIAL ENVELOPE

The activities in Annex I Chapter G (EUMETSAT Polar System Programme) will have a financial envelope of 1464 MECU at 1994 economic conditions (1569 MECU at 1996 economic conditions).

2 SCALE OF CONTRIBUTIONS

The Member States shall contribute to the EUMETSAT Polar System Programme in accordance with the following scale of contributions:

MEMBER STATES	% CONTRIBUTIONS
Austria	2.43
Belgium	2.85
Denmark	1.75
Finland	1.19
France	16.66
Germany	25.53
Greece	1.20
Ireland	0.57
Italy	13.64
Netherlands	4.16
Norway	1.53
Portugal	1.15
Spain	6.53
Sweden	2.61
Switzerland	3.27
Turkey	2.04
United Kingdom	12.89
TOTAL	100.00

The basis for the calculation of the contributions is the Gross National Product statistics issued by the OECD. The current scale of contributions is based on the reference period 1992-1994, applicable for the period 1997-1999. The scale will be updated in triennial intervals, starting 1 January 2000.

Possible cost overruns up to 10% of the financial envelope may be approved by Council by a vote representing at least two-thirds of the Member States present and voting, representing also at least two-thirds of the total amount of contributions.

**RESOLUTION ON
THE EPS BRIDGING PHASE**

**Presented for Adoption at the 32nd meeting of the EUMETSAT Council
on 3 - 5 December 1996**

Adopted on 22 August 1997

The EUMETSAT Member States,

NOTING the opening of the EPS Programme Resolution for voting by the 32nd EUMETSAT Council,

FIRMLY EXPECTING the voting on the EPS Programme Resolution to be completed, at the latest, by the 30th June 1997,

NOTING the Draft Resolution on the Continuation of EPS Activities, stating the expectation that the approval of the EPS Bridging Phase will be achieved by 31st January 1997 at the latest,

NOTING with appreciation that ESA has opened a METOP-1 Programme Declaration, including bridging activities within the overall METOP-1 Programme envelope.

RECALLING the spirit and the intention of the Cooperation Agreement between ESA and EUMETSAT on the METOP Satellite Series, to jointly finance and manage the industrial activities related to the Single Space Segment through single contracts with Industry,

EXPECTING ESA approval of the Cooperation Agreement between ESA and EUMETSAT on the METOP satellite series in the December 1996 ESA Council,

RECOGNISING the need for EUMETSAT to contribute to the funding of the critical bridging activities related to the Single Space Segment in order to safeguard the schedule and cost established in the EPS/METOP Programme Proposal,

AGREE:

- I** on an EPS Bridging Phase for essential EPS activities in Industry, prior to the approval of the full EPS Programme,
- II** to contribute an amount of 16.9 MECU, at 1997 economic conditions, for the EPS Bridging Phase, to be exceptionally administered as a distinct sub-envelope within the General Budget,

- III** that, by Council decision with simple majority, it shall be possible to discontinue the Bridging Phase on 30th June 1997,
- IV** that the Bridging Phase will automatically terminate on 31st October 1997 if, at that time, the approval of the EUMETSAT programme has not been achieved, in which case the total liability towards industry, including termination charges, shall not exceed 50% of the total cost.,
- V** that the activities to be undertaken with ESA under the EPS Bridging Phase shall be conducted along the lines of the Cooperation Agreement on the METOP Satellite Series,
- VI** that the activities and financial commitments undertaken by EUMETSAT in the context of the EPS Bridging Phase will, in the end, be wholly subsumed within the overall EPS Programme envelope.

RESOLUTION ON
THE CONTINUATION OF EPS ACTIVITIES
Adopted at the 32nd meeting of the EUMETSAT Council
on 3 - 5 December 1996

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that the amended Convention, which is expected to enter into force in the near future, stipulates that the mandatory programmes of EUMETSAT are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

RECALLING Europe's record of successful contribution to the World Weather Watch of the WMO,

BEARING IN MIND that the United States of America, until 2000, will provide satellite data from both the morning and afternoon polar orbit free of charge to Europe, but will no longer cover the need of observations from the morning polar orbit from the start of the next century and recalling the absolute necessity for Europe to secure coverage of this orbit for its own needs,

NOTING that the EPS Preparatory Programme will have exhausted its resources by the end of 1996,

NOTING that a programme resolution for the EPS Programme has been opened for voting in the 32nd Council, with the firm expectation that the voting will have been completed by 30th June 1997,

RECALLING that an EPS Bridging Phase is needed in order to cover the period between the expiry of the EPS Preparatory Programme and entry into force of the EPS Programme,

STRESSING that only by the approval of the Bridging Phase will it be possible to maintain the programmatic and financial baseline of the EPS Programme,

RECALLING that the voting on the EPS Bridging Phase Resolution was opened at the 32nd Council, with the expectation that the EPS Bridging Phase will be approved by 31st January 1997.

RECALLING that unanimity is required both for the EPS Bridging Phase and the EPS Programme,

FEARING that failure to reach agreement would be a very serious threat to European cooperation in application of space technology and meteorology and climate monitoring, which has an outstanding record of success, and that such a failure would endanger the cooperation with the United States of America in meteorology and climate monitoring in general and on polar orbiting systems in particular,

NOTING that the outcome of the voting in the 32nd Council was that 12 countries voted in favour of the EPS Bridging Phase Resolution, with Denmark and United Kingdom voting in favour ad referendum, and that Belgium, Greece, the Netherlands, Spain and Switzerland reserved their vote for subsequent communication to EUMETSAT,

AGREE:

to reconsider the situation in early February 1997 if, contrary to expectations, approval of the EPS Bridging Phase should not have been achieved by 31st January 1997.

**RESOLUTION ON
DATA POLICY FOR SAF DELIVERABLES**

**Adopted at the 33rd Meeting of the EUMETSAT Council
on 19 - 20 March 1997**

The EUMETSAT Council,

RECALLING the EUMETSAT Data Policy as defined by the EUMETSAT Council in Resolution EUM/C/Res.VII as amended by Resolutions EUM/C/Res.XXI and XXVI,

RECALLING the Policy for EUMETSAT Ground Systems and the Implementation of the MTP Ground System as defined by the EUMETSAT Council in Resolution EUM/C/92/Res.V,

RECALLING the Conditions of Access to Real Time EUMETSAT HRI Data Within and Outside the EUMETSAT Member States, as defined by the EUMETSAT Council in Resolution EUM/C/96/Res.IV,

NOTING the Cooperation Agreement for the SAF on "Support to Nowcasting and Very Short Range Forecasting" as agreed by Council at its 32nd meeting (on 3 - 5 December 1996),

WISHING to apply EUMETSAT's Data Policy principles also to the SAF deliverables,

AGREE:

- I** That all data, products and software deliverables under a SAF Cooperation Agreement, together with all related intellectual property rights, shall be owned by EUMETSAT and be subject to the relevant EUMETSAT Policies agreed by the EUMETSAT Council.
- II** That all data, products and software deliverables developed for distribution to users shall be available to all National Meteorological Services of EUMETSAT's Member States free of charge.
- III** That distribution to other users, of data, products and software deliverables developed for distribution shall be subject to the conditions of the relevant EUMETSAT policies agreed by the EUMETSAT Council. Due recognition shall be given to the respective roles of the SAF Host, the Cooperating Entities and EUMETSAT in the establishment of data, products and software distributed to users under EUMETSAT policy.

- IV** That certain pre-existing data, products and software owned by the SAF Host and/or the Cooperating Entities may be utilised in fulfilling the SAF Agreement. In such cases, the data, products and software will be listed in an annex to the Agreement. Ownership of such data, products and software shall not be transferred by virtue of the Agreement.
- V** That EUMETSAT shall have a free-of-charge, irrevocable, non-exclusive right to use, modify and copy such pre-existing data, products and software for its own purposes. Should such data, products or software be required to operate a software deliverable developed under the Agreement for distribution to users, EUMETSAT shall have the right to grant sub-licences to use such data, products and software in all its Member States.

**RESOLUTION ON
THE START OF THE EPS BRIDGING PHASE**

**Adopted at the 33rd meeting of the EUMETSAT Council
on 19 - 20 March 1997**

The EUMETSAT Member States,

RECALLING Resolution EUM/C/96/Res.VI presented for adoption at the 32nd Council on 3 - 5 December 1996,

EMPHASISING the importance of the Resolution EUM/C/96/Res.II adopted on 26 - 27 June 1996,

NOTING that Resolution EUM/C/96/Res.VI allows discontinuation of the Bridging Phase on 30 June 1997 by a Council decision with simple majority, and further that the Bridging Phase will automatically terminate on 31 October 1997 if, at that time, the approval of the EPS programme has not been achieved,

NOTING that the votes of Belgium, Greece and the Netherlands are conditional with regard to the finalisation of national approval procedures,

EXPECTING that Belgium, Greece and the Netherlands will be able to lift their ad referenda within a short period of time,

AGREE:

- I** That the necessary tasks foreseen to be carried out under the EPS Bridging Phase activities can start with effect from 20 March 1997, and that the appropriations foreseen in the 1997 EUMETSAT Budget for industrial and internal EPS Bridging Phase activities are released,
- II** That tasks related to the procurement of elements of the single space segment (e.g. long lead items) are undertaken in coordination with the according tasks in the ESA programme METOP-1,
- III** That Belgium, Greece and the Netherlands will be legally obliged to contribute financially after finalisation of national approval procedures, and that their contributions would become due 30 days after notification,

- IV** That if Belgium, Greece and the Netherlands would not be in a position to confirm finalisation of national approval procedures by 1 July 1997 at the latest, those Member States who have agreed unconditionally to contribute to the start of the EPS Bridging Phase will decide on the action to be taken,
- V** That in the 1997 budget, an amount corresponding to the contributions of Belgium, Greece and the Netherlands is blocked under Article 410 until the finalisation of national approval procedures has been notified to the EUMETSAT Secretariat,
- VI** That the time at which it shall be possible to discontinue the Bridging Phase by Council decision with simple majority shall be changed from 30 June 1997 to 31 August 1997,
- VII** That the time at which the Bridging Phase will automatically terminate, if the EPS programme is not approved, is changed from 31 October 1997 to 31 December 1997.

**RESOLUTION ON
THE EXTENSION OF THE EUMETSAT HEADQUARTERS**

**Adopted at the 34th meeting of the EUMETSAT Council
on 24 - 26 June 1997**

The EUMETSAT Council,

NOTING the need to extend the current EUMETSAT Headquarters building in order to accommodate the relevant control centres, EUMETSAT staff and associated personnel,

NOTING that the group of building experts from EUMETSAT's Member States set up by AFG in 1996 confirmed to Council that the building requirements as set out by the Secretariat in document EUM/C/32/96/DOC/39 are justified,

NOTING that the Council, at its 32nd Meeting on 3 - 5 December 1996, approved the Procurement Proposal for the extension of the EUMETSAT Headquarters building by a third phase,

CONSIDERING the urgent necessity to start the construction work in Summer 1997,

AGREES:

- I** To adopt Option 2 of the Contract Proposal for the extension of the EUMETSAT Headquarters building as set out in document EUM/C/34/97/DOC/30,
- II** To fund Option 2 (4.9 MECU) plus the associated planning and monitoring cost (0.6 MECU), from MSG (4 MECU) and from the General Budget (1.5 MECU),
- III** To add to the building contract a clause which permits EUMETSAT to opt for the full building at the November 1997 Council, taking into account further progress on the approval of EPS,
- IV** To redistribute the cost in the event that III is implemented as follows:
MSG 2.5 MECU; General Budget 1.5 MECU. The remaining part to be funded by EPS.

**RESOLUTION ON
THE EPS PROGRAMME APPROVAL**

**Adopted at the 36th meeting of the EUMETSAT Council
on 25-27 November 1997**

The EUMETSAT Council,

NOTING the presentation of the METOP Contract Proposal to the 36th Meeting of the EUMETSAT Council on 25-27 November 1997 and to the 161st Meeting of the Industrial Policy Committee of ESA on 26-27 November 1997,

NOTING with satisfaction that 11 Member States in the 36th Meeting of the EUMETSAT Council voted in favour of the EPS Programme Resolution, 5 of which were ad referendum,

NOTING that the above-mentioned EUMETSAT Member States having voted on the EPS Programme Resolution have the expectation that all EUMETSAT Member States will have voted in favour of the programme by 31 January 1998,

CONSIDERING that a tour de table on the METOP Contract Proposal showed that 12 delegations were positive without reservation, 2 were positive ad referendum and 3 were keeping their position open,

NOTING that Italy at the present time is not able to vote on the EPS Programme Resolution, stating this to be a result of the fact that, if it is assumed that Italy's motivation within EUMETSAT is met in the METOP Contract Proposal, then there is a lack of adherence to a provision of the ESA Resolution, ESA/C-M/CXXXIX/Res.1 (Final),

NOTING that Spain is also not in a position to vote on the EPS Programme Resolution, and not yet satisfied with the implementation of Agree I of EUM/C/96/Res.II,

NOTING that ESA and EUMETSAT intend to carry out jointly, in the framework of a Cooperation Agreement, the complementary METOP and EPS Programmes,

AGREE:

- I** to invite ESA as a matter of urgency to find a solution, together with EUMETSAT, to the issues raised by Italy and Spain without jeopardising the METOP/EPS Programmes and without producing any potential increase of costs,
- II** on the urgency of all EUMETSAT Member States completing the national procedures in respect of the EPS Programme.

**RESOLUTION ON
THE EXTENSION OF THE EPS BRIDGING PHASE**

**Presented for Adoption at the 36th meeting of the EUMETSAT Council
on 25-27 November 1997**

**Adopted at the 39th meeting of the EUMETSAT Council
on 7 September 1998**

The EUMETSAT Member States,

RECALLING that the EPS Programme Resolution was opened for voting by the 32nd EUMETSAT Council,

NOTING the present status of voting on the EPS Programme Resolution is that 11 Member States have voted in favour, of which 5 are ad referendum,

NOTING that the Contract Proposal for the METOP satellites has been presented to the 36th Council Meeting,

RECALLING Resolution EUM/C/96/Res. VI, adopted at the 32nd Meeting of the EUMETSAT Council on 3-5 December 1996, which established the EPS Bridging Phase,

RECALLING Resolution EUM/C/97/Res. II, adopted at the 33rd Meeting of the EUMETSAT Council on 19-20 March 1997, which agreed to start the EPS Bridging Phase,

RECOGNISING the need to maintain the momentum achieved on the EPS Programme through the continuation of the funding of critical activities related to the Single Space Segment and EUMETSAT internal costs,

AGREE:

- I** On a one-month extension of the EPS Bridging Phase for internal costs and essential activities in industry, this meaning that the EPS Bridging Phase and the extension will terminate on 31 January 1998,
- II** To carry forward the unused 1997 PA from the Bridging Phase industrial contract,
- III** To contribute an amount of MECU 7.527 CA and MECU 7.027 PA for this extension of the EPS Bridging Phase,
- IV** That the EPS Bridging Phase, including the extension, will continue to be administered as a distinct sub-envelope within the General Budget,
- V** That the MHS Project Funding will continue in parallel in accordance with Resolution EUM/C/95/Res. VII,
- VI** That the activities and financial commitments undertaken by EUMETSAT in the context of the EPS Bridging Phase and the extension will, in the end, be wholly subsumed within the overall EPS Programme envelope.

RESOLUTION ON
THE START OF THE EPS BRIDGING PHASE EXTENSION

**Adopted at the 36th Meeting of the EUMETSAT Council
on 25-27 November 1997**

The EUMETSAT Member States,

RECALLING the Resolution on the Extension of the EPS Bridging Phase presented for adoption at the 36th Council on 25-27 November 1997,

NOTING that the above Resolution was adopted unanimously, with, however, the votes of Denmark, Germany, Greece, Portugal, Spain and Turkey being ad referendum,

EXPECTING that Denmark, Germany, Greece, Portugal, Spain and Turkey will be able to lift their ad referenda within a short period of time,

AGREE:

- I** That the tasks foreseen to be carried out under the EPS Bridging Phase Extension can start with effect from 1 January 1998, and that the appropriations foreseen in the 1998 EUMETSAT Budget for the EPS Bridging Phase Extension are released,
- II** That Denmark, Germany, Greece, Portugal, Spain and Turkey will be legally obliged to contribute financially only after their ad referenda on the Resolution on the Extension of the EPS Bridging Phase have been lifted,
- III** That if Denmark, Germany, Greece, Portugal, Spain and Turkey would not be in a position to lift their ad referenda by 31 January 1998 at the latest, those Member States who have agreed unconditionally to contribute to the start of the EPS Bridging Phase Extension will decide on the action to be taken,
- IV** That in the 1998 budget on the EPS Bridging Phase Extension, an amount corresponding to the contributions of Denmark, Germany, Greece, Portugal, Spain and Turkey is blocked as long as the Member State in question has not lifted its ad referendum.

**RESOLUTION ON
THE EXTENSION OF THE METEOSAT TRANSITION PROGRAMME
(MTP)**

**Adopted at the 36th meeting of the EUMETSAT Council
on 25-27 November 1997**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that the MTP Programme was set up to ensure a continuous operational service to provide data from geostationary satellites, and to fill the gap between the Meteosat Operational Programme (MOP) and the Meteosat Second Generation Programme (MSG),

NOTING that the MTP Programme, established through Resolution EUM/C/Res.XXVII in November 1990, will end on 1 December 2000,

BEARING IN MIND that the launch of the first MSG satellite is currently scheduled for the autumn of 2000, and that it is unlikely that the MSG system will be ready to provide an operational system by 1 December 2000,

BEARING IN MIND that the MSG system will not provide for a hot back-up until the year 2002,

REQUIRING an overlap period with parallel MTP and MSG operations,

NOTING that the successful launch and commissioning of the MTP satellite has rendered it possible to extend MTP operations well beyond December 2000,

NOTING FURTHER that the EUMETSAT MTP Ground Segment allows for parallel operations of the MTP and MSG satellites,

AGREE:

- I** To extend the MTP Programme at least until 31 December 2004, in order to cover the extension of the MTP operational service at least until 31 December 2003 and subsequent close-out activities;

- II** To limit the funding of the extension of the Meteosat Transition Programme to stay within the overall programme envelope of 280 MECU at 1989 economic conditions;
- III** To amend Annex I, Chapter C of the EUMETSAT Convention as follows:
- In Section 1 (Introduction) replace third line *in fine* by "... at least until 31 December 2003";
 - In Section 2 (The Ground Segment) replace third line *in fine* by "... at least until 31 December 2003";
 - In Section 4 (Implementation Plan) replace second paragraph, second line *in fine* by "... at least for 8 years".

**RESOLUTION ON
THE START OF THE EPS ACTIVITIES**

**Adopted at the 37th Meeting of the EUMETSAT Council
on 28 January 1998**

The EUMETSAT Member States,

RECALLING Resolution EUM/C/95/Res. IV, adopted at the 29th Meeting of the EUMETSAT Council on 29 November – 1 December 1995, which agreed to pursue with ESA a Programme of 3 Polar Orbiting satellites,

RECALLING Resolution EUM/C/96/Res. I, adopted at the 30th Meeting of the EUMETSAT Council on 1 April 1996, which endorsed the revised framework approach for the EPS Programme, and in particular a joint space segment to be established by ESA and EUMETSAT,

RECALLING Resolution EUM/C/96/Res. II, adopted at the 31st Meeting of the EUMETSAT Council on 26-27 June 1996 which "**BEARING IN MIND** the view of the Council that national motivations consist of scientific, technical, economical and industrial interests" agreed "**I** to meet in the EPS Programme, especially for the space segment, the national motivations taking into account the level of contributions" and further "**IV** to consider the final approval of the EPS Programme and the associated cooperation agreements only after submission of the contract proposal for the Space Segment in accordance with the time schedule set out in Document EUM/C/31/96/DOC/8 Rev. 2 + Annexes" in that context requesting "the Director to issue the Request for Quotation for the Space Segment and to undertake the necessary steps in order to prepare the contract proposal to be presented for approval to the June 1997 Council, taking into account national motivations as expressed above",

RECALLING that the EPS Programme Resolution was opened for voting by the 32nd EUMETSAT Council on 3–5 December 1996,

NOTING that the ESA METOP-1 Programme Declaration was opened for subscription in December 1996, updated in May 1997, and subscribed by the ESA METOP-1 Participating States,

NOTING that the contract proposal for the Single Space Segment has been presented for approval to the 37th Council Meeting,

RECOGNISING the need to maintain the momentum achieved on the EPS Programme,

STRESSING the importance of beginning substantial industrial activities as soon as possible in order to safeguard the basic assumptions of the Programme,

BEARING IN MIND that all Member States have voted in favour of the EPS programme,

NOTING that the votes of some Member States are conditional with regard to the finalisation of national approval procedures and for Italy, also to a solution to the still outstanding respect of AGREE I of EUMETSAT Resolution EUM/C/97/Res. IV adopted at the 36th meeting of the EUMETSAT Council on the 25-27 November 1997,

RECOGNISING that Italy will be able to lift its ad referendum within a short period of time after the national expectations referred to in AGREE I of Resolution EUM/C/97/Res. IV above have been met,

NOTING that Germany will be in a position to make its vote unconditional in favour of the EPS Programme as soon as the German parliament has unblocked the related funds in the 1998 budget,

EXPECTING that the other remaining Member States which have voted in favour, ad referendum, will be able to lift their ad referenda within a short period of time,

AGREE:

- I** that preliminary industrial activities aiming at securing the possibility of ultimately entering into the EPS Programme are undertaken as a prospective activity within the framework of the General Budget within the framework of a ceiling of 30 MECU,
- II** that the above ceiling will cover industrial activities until the 30 September 1998,
- III** that the necessary industrial activities will start as soon as ESA will be in a position to provide its part of the funding, this to be done through a joint Authorisation to Proceed (ATP) to industry within an overall limit of liability of maximum 120 MECU at 1996 economic conditions, it being understood that the draft Cooperation Agreement with ESA shall apply mutatis mutandis to all initial activities,
- IV** that the Commitment Appropriations and Payment Appropriations of the General Budget for 1998 are increased by 30 MECU in Art. 452,
- V** that all revenue of EUMETSAT for the period 1996-2000 is attributed to the General Budget,
- VI** that the Director is authorised to modify the recharging keys to programmes regarding expenditure of the General Budget,
- VII** that financial liquidity required in addition to the agreed contributions to the General Budget would be pre-financed from the General Treasury of EUMETSAT and be paid back to the General Budget in future years,

- VIII** that Italy shall not be obliged to contribute to the General Budget for these activities as long as a solution to the issue on the AGREE I of EUMETSAT Resolution EUM/C/97/Res. IV has not been found by ESA, together with EUMETSAT, and that consequently Italy's proportional part of the 30 MECU for industrial activities shall be unblocked when Italy lifts its ad referendum,
- IX** that the amounts expended under this Resolution shall be subsumed in the EPS Programme when this is fully approved,
- X** that the MHS Project Funding, as established through the adoption of Resolution EUM/C/95/Res. VII, will continue until it can be wholly subsumed within the fully approved EPS Programme.

**RESOLUTION ON
THE FURTHER EXTENSION OF THE EPS BRIDGING PHASE**

**Adopted at the 37th meeting of the EUMETSAT Council
on 28 January 1998**

The EUMETSAT Member States,

RECALLING that the EPS Programme Resolution was opened for voting by the 32nd EUMETSAT Council,

NOTING the present status of voting on the EPS Programme Resolution is that all 17 Member States have voted in favour, of which 9 are ad referendum,

NOTING that the Contract Proposal for the METOP satellites has been presented to the 37th Council Meeting,

RECALLING Resolution EUM/C/96/Res. VI, adopted at the 32nd Meeting of the EUMETSAT Council on 3-5 December 1996, which established the EPS Bridging Phase,

RECALLING Resolution EUM/C/97/Res. II, adopted at the 33rd Meeting of the EUMETSAT Council on 19-20 March 1997, which agreed to start the EPS Bridging Phase,

RECALLING Resolutions EUM/C/97/Res. V and EUM/C/97/Res. VI on the Extension of the EPS Bridging Phase and the start thereof,

RECOGNISING the need to maintain the momentum achieved on the EPS Programme,

AGREE:

- I** On a further extension of 8 months of the EPS Bridging Phase, this meaning that the EPS Bridging Phase and its two extensions will terminate on 30 September 1998,
- II** That all other provisions of Resolutions EUM/C/97/Res. V and EUM/C/97/Res. VI remain valid and in force.

**RESOLUTION ON
FUNDING OF THE SATELLITE APPLICATION
FACILITY (SAF) ON CLIMATE MONITORING**

**Adopted at the 38th meeting of the EUMETSAT Council
on 1 – 3 July 1998**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that the amended EUMETSAT Convention currently undergoing final steps of ratification states that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic change,

CONSIDERING that the MTP Programme was set up to ensure a continuous operational service, and to fill the gap between the Meteosat Operational Programme (MOP) and the Meteosat Second Generation Programme (MSG),

NOTING that the MTP Programme, established through Resolution EUM/C/Res. XXVII, was extended through Resolution EUM/C/97/Res. VII in order to cover the extension of the MTP operational service at least until 31 December 2003 and subsequent close-out activities,

BEARING IN MIND that Resolution EUM/C/92/Res. V defines , as a policy for future EUMETSAT ground systems, the concept of a networked configuration comprising both distributed elements including SAFs and a central facility having well defined key objectives,

CONSIDERING the relevance of MTP and MSG data for Climate Monitoring,

WISHING to create already now the conditions for the optimum use of present and future EUMETSAT Satellite Data for Climate Monitoring,

AGREE:

- I** To allocate up to 2 MECU at 1996 economic conditions to the development of a SAF on Climate Monitoring.
- II** To fund this contribution within the approved MTP programme envelope of 280 MECU at 1989 economic conditions.

- III** To create an Article 450 for SAF in the 1998 EUMETSAT MTP Budget.
- IV** To transfer 2.08 MECU in Commitment Appropriations from Article 410 GB/OPS to Article 450 MTP in the 1998 EUMETSAT Budget.
- V** To foresee the required Payment Appropriations in the EUMETSAT MTP Budgets from 1999 onwards.

**RESOLUTION ON
EUMETSAT PRINCIPLES ON DATA POLICY**

**Adopted at the 38th meeting of the EUMETSAT Council
on 1 – 3 July 1998**

The EUMETSAT Member States,

RECALLING the EUMETSAT Principles on Distribution and Charging as defined by the EUMETSAT Council in Resolution EUM/C/Res. VII, as amended by Resolutions EUM/C/Res. XXI and EUM/C/Res. XXVI,

RECALLING that EUMETSAT holds full ownership and all Intellectual Property and utilisation rights to the EUMETSAT meteorological satellites and their data,

RECALLING Resolutions EUM/C/94/Res. I, EUM/C/94/Res. IV, EUM/C/95/Res. V and EUM/C/ 96/Res IV, as amended by Resolution EUM/C/97/Res. VIII, establishing Conditions of Access to Real Time EUMETSAT HRI Data Within and Outside the EUMETSAT Member States,

BEARING IN MIND that EUMETSAT's meteorological satellites represent an important contribution to the World Weather Watch of the World Meteorological Organization (WMO),

TAKING INTO ACCOUNT the WMO Policy and Practice for the Exchange of Meteorological and Related Data and Products including Guidelines on Relationships in Commercial Meteorological Activities, as laid down in WMO Resolution 40 (Cg-XII),

TAKING INTO ACCOUNT the long-standing close cooperation between EUMETSAT and the European Centre for Medium-Range Weather Forecasts (ECMWF),

RECOGNISING the increased interest in the commercial use of satellite data, products and services,

BEARING IN MIND the need to preserve the benefits of EUMETSAT membership,

RECOGNISING the need to consolidate the various elements of the EUMETSAT Data Policy as currently contained in the Resolutions listed above and in other decisions of the EUMETSAT Council,

WISHING to abolish such Council Resolutions and Council decisions and to introduce a comprehensive EUMETSAT Data Policy as contained in these Principles and the attached Implementing Rules,

AGREE THAT:

- I** The National Meteorological Services (“NMSs”) of the Member States will receive all EUMETSAT data, products and services for their Official Duty use at no cost except for the cost of decryption key units. Official Duty is defined as all activities which take place within the organisation of a NMS and external activities of a NMS resulting from legal, governmental or intergovernmental requirements relating to defence, civil aviation and the safety of life and property.
- II** The NMSs of the Member States shall act as Exclusive Licensing Agents on behalf and for the account of EUMETSAT for the purpose of granting access to real-time data to users receiving the data within their respective national territories. In doing so, the NMSs will apply the EUMETSAT fees and conditions, agreed by the EUMETSAT Council.
- III** Regarding their commercial activities, the NMSs of the Member States shall be treated in an equivalent way to Service Providers by EUMETSAT and its Exclusive Licensing Agents.
- IV** A set of data, products and services to be determined by Council will be available on a free and unrestricted basis as “Essential” data and products in accordance with WMO Resolution 40 (Cg-XII).
- V** A further set of data and products to be determined by Council will be made available to NMSs of non-Member States Without Charge for their Official Duty use.
- VI** A set of data, products and services to be determined by Council will be available Without Charge for Research Projects and Educational Use.
- VII** ECMWF will have access Without Charge to all data, products and services for its own use in support of its mission as defined in the ECMWF Convention.
- VIII** All other users may receive sets of data, products and services under conditions defined by Council. These conditions may involve the payment of fees. Council may waive such fees on a case by case basis for specific applications.
- IX** EUMETSAT is responsible for granting access to real-time data to international organisations, NMSs of non-Member States and to other users operating outside Member States. This access is given in accordance with the EUMETSAT fees and conditions agreed by Council.

- X** Furthermore EUMETSAT is responsible for granting access to the EUMETSAT Archived Data and Products, the telecommunication channels of EUMETSAT satellites, the derived products from the EUMETSAT ground segment and EUMETSAT developed software. This access is given in accordance with the EUMETSAT fees and conditions agreed by Council.
- XI** All efforts shall be undertaken to protect EUMETSAT's data, products and services against unauthorised use. Wherever necessary, methods of technical protection of data will be used by EUMETSAT and its Exclusive Licensing Agents.
- XII** The implementation of these Principles and the Catalogue of EUMETSAT data, products and services to which these Principles apply are laid down in implementing rules attached to these Principles as annexes. The annexes may be amended separately from the above Principles by Council.*

* The Annexes to this Resolution were abolished by Resolution EUM/C/99/Res. VII.

RESOLUTION ON
BUDGET FLEXIBILITY IN THE
EPS BRIDGING PHASE EXTENSIONS

Adopted at the 38th meeting of the EUMETSAT Council
on 1 – 3 July 1998

The EUMETSAT Member States,

CONSIDERING Resolutions EUM/C/97/Res.V, EUM/C/97/Res.VI and EUM/C/98/Res.II on the EPS Bridging Phase extensions,

NOTING that the present status of voting on the EPS Programme Resolution is that all Member States have voted in favour, however, 9 of these votes being ad referendum,

NOTING the need to maintain the EPS Staff in EUMETSAT and to undertake the strictly necessary activities in order to safeguard the residual possibility of undertaking an EPS Programme,

AGREE:

That the Director, as regards the funds mentioned in AGREEs II and III of Resolution EUM/C/97/Res.V, shall have budgetary flexibility to transfer funds from one chapter of the General Budget to another in accordance with EPS programmatic needs.

**RESOLUTION ON
THE RECOMMENDATIONS OF THE WORKING GROUP
ON PROCUREMENT PROCEDURES**

**Adopted at the 38th meeting of the EUMETSAT Council
on 1 – 3 July 1998**

The EUMETSAT Member States,

CONSIDERING the extensive procurement experience of EUMETSAT over the 11 years of its existence,

NOTING the rapid growth of EUMETSAT and EUMETSAT's role in operations since 1995,

BEARING IN MIND the challenging procurements to be undertaken in the future,

REALISING the need to capture experiences gained, to the benefit of future procurements,

BEARING IN MIND the recommendations of the Working Group on Procurement Procedures,

BEARING IN MIND that some issues, mostly related to potentially fundamental changes to EUMETSAT's procurement system, have remained unresolved in the Working Group on Procurement Procedures,

AGREE:

- I** That the current adjective marking scheme, but with explicit use of weighting factors, shall continue to be used by Tender Evaluation Boards. When presenting Contract Proposals to Delegate Bodies the adjective marks shall be given. In addition, a translation into numbers shall be given according to a numerical marking scheme which also captures price and which uses the same evaluation criteria and weighting factors as the adjective marking scheme both for baseline tasks and possible options. If the translation into numbers indicates a different result than the one arrived at with the adjective marks, the Director shall, nevertheless, make an appropriate recommendation on the winner;

II That the consequence of Council not following the recommendation in a Contract Proposal should be that the Director is tasked with defining a new recommendation in line with the specific guidance given by Council – and eliminating the reasons leading to the rejection in the first place.

III That Member States shall have the possibility to appoint an Industrial Focal Point to act as an interface between the industry of the Member State and EUMETSAT.

The Industrial Focal Point shall be given access to all procurement related information issued by EUMETSAT under the same conditions as Delegates. The Industrial Focal Point shall seek to generate interest in EUMETSAT procurement in industry, both in general and in relation to specific procurements. The Industrial Focal Point shall pass general and specific information on industrial capabilities to a focal point to be defined in the EUMETSAT Secretariat, and shall seek to add relevant bidders both in respect of specific procurements and in general, in the latter case by providing inputs to EUMETSAT's suppliers database. The Industrial Focal Point shall in no case seek to limit or narrow competition.

The Industrial Focal Point shall be considered, and act, as a governmental representative of the Member State in question.

IV That options in EUMETSAT procurements shall be described in the first instance in the Procurement Proposal and thereafter in the Contract Proposal. It shall be highlighted in the Contract Proposal if an option has been requested in the Invitation to Tender which was not described in the Procurement Proposal. The evaluation criteria communicated to bidders shall reflect options that may significantly affect the evaluation. In the Invitation to Tender options shall to the extent possible be described with the same degree of precision as baseline tasks.

V That the Financial Rules, Art. 23.4 is modified such that the threshold for when open tender is mandatory shall be ECU 50,000, it being noted that below this threshold as a rule at least three offers are required, it being further noted that the Contracts Procedures shall indicate that Initiators should go to full open tender whenever the procurement is of a study nature regardless of value involved.

VI The format for presentation of Contract Proposals to Delegate Bodies shall be as follows:

- 1 An Executive Summary which in brief describes the prominent features of each proposal, the evaluation procedure and its outcome;

- 2 An introduction in which the history of the procurement is recalled, where the proposals received are listed and where the evaluation criteria are stated. The nationalities of bidders shall be indicated, and similarly, in case of consortia, all consortium members shall be listed;
- 3 A substantive chapter on the evaluation of the proposals where first the technical and management proposals of each bidder are described in relation to each evaluation criterion, and where thereafter the conclusion of the technical and managerial evaluation is set out. The origin of major equipment shall be shown, in accordance with the statement of the bidders. The technical/management information shall be organised to show the context and relative importance and a proper risk analysis shall be included. This then to be followed in a similar fashion by a description of the evaluation of the financial proposals of each bidder. To the extent clarification or tender negotiation has been undertaken the process and its outcomes shall be fully described, particularly to demonstrate that absolute fairness and equality has been maintained;
- 4 A conclusion chapter, where the best-value-for-money trade-off between technical/managerial merit and contractual aspects/price is set out in detail and where the final recommendation is expressed. The best-value-for-money trade-off shall quantify the issues to the extent possible and shall be founded on specifics, wherever possible;
- 5 An annex setting out in tabular form the outcome of the marking, including a translation into numbers according to a numerical marking scheme, together with a table providing details on the prices, if these are of some complexity;
- 6 The summary Contract Proposal form.

VII That, in view of the positive results reached so far, the Working Group shall continue its activities in order to address those issues included in the Terms of Reference which have not yet been fully considered.

RESOLUTION ON
REGULARISATION OF SPECIAL PAYMENT ARRANGEMENTS
FOR THE METEOSAT TRANSITION PROGRAMME (MTP)

Adopted at the 38th meeting of the EUMETSAT Council
on 1 – 3 July 1998

The EUMETSAT Member States,

HAVING REGARD to the MTP Programme Resolution EUM/C/Res. XXVII adopted at the 13th Council meeting in November 1990, which entered into force on 23 April 1991,

TAKING INTO ACCOUNT that Resolution EUM/C/Res. XXVII establishes that the MTP Programme shall be funded by all Member States through a scale of contributions based on GNP,

RECALLING that Resolution EUM/C/Res. XXXI on Modalities for the Implementation of MTP, adopted at the 13th Council meeting, authorises Finland and Ireland to adapt to the GNP-scale over a period of three years in incremental steps of 1/3 starting from 1991,

RECALLING that Resolution EUM/C/Res. XXXIV on Modalities for the Implementation of MTP, adopted at the 15th Council meeting in June 1991, authorises Greece to adapt to the GNP-scale over a period of three years in incremental steps of 1/3 starting from 1991,

RECALLING Resolution EUM/C/Res. XXXIII on Special Payment Arrangements for the MTP Programme, adopted at the 15th Council meeting, which authorises Denmark and Greece to pay their contributions in equal instalments, whereby Denmark pays its contributions in equal instalments over the whole period of the MTP Programme (10 years from 1991 to year 2000 inclusive), and Greece starts to pay its contributions in equal instalments once it has reached the full GNP scale in 1993,

NOTING Resolution EUM/C/97/Res. VII on the Extension of the MTP Programme, adopted at the 36th Council meeting in November 1997, which extends the MTP Programme at least until 31 December 2004, while maintaining the overall programme envelope of 280 MECU at 1989 economic conditions,

TAKING INTO ACCOUNT that the main MTP space and ground segment costs have been finalised, that the remaining MTP costs are mainly of an operational nature, and that the degree of expenditure of the overall programme can now be predicted with increased accuracy,

WISHING to regularise the special payment arrangements agreed for Denmark, Finland, Greece and Ireland,

AGREE:

- I** That all the Member States shall contribute to the MTP Programme Budget on the basis of the GNP scale from 1 January 1999.
- II** That the adjustments to the contributions of Member States detailed in the table attached shall be effected on 1 January 1999.
- III** That these adjustments may be effected through the EUMETSAT Working Capital Fund.
- IV** That any surplus arising from the implementation of the EUMETSAT MTP Budget for 1998 onwards shall be redistributed to all Member States according to the GNP scales.

**CONTRIBUTION ADJUSTMENTS FOR THE
REGULARISATION OF SPECIAL PAYMENT ARRANGEMENTS
IN THE METEOSAT TRANSITION PROGRAMME (MTP)**

MEMBER STATE	Contribution Adjustment in 1998 e.c. ECU
Germany	(47,424)
France	8,458
United Kingdom	12,855
Italy	9,623
Spain	(13,789)
Belgium	(1,148)
Switzerland	2,893
Netherlands	58
Sweden	6,460
Denmark	610,407
Norway	1,379
Turkey	(9,204)
Finland	(424,854)
Greece	19,924
Portugal	(5,870)
Ireland	(133,029)
Austria	(36,739)
TOTAL	0

Figures in brackets represent amounts due from Member States, whereas positive figures are amounts due to Member States.

**RESOLUTION ON
THE START OF THE EPS PROGRAMME**

**Adopted at the 39th meeting of the EUMETSAT Council
on 7 September 1998**

The EUMETSAT Member States,

RECALLING Resolution EUM/C/95/Res. IV, adopted at the 29th Meeting of the EUMETSAT Council on 29th November – 1st December 1995, which agreed to pursue with ESA a Programme of 3 Polar Orbiting satellites,

RECALLING Resolution EUM/C/95/Res. VII, adopted at the 29th Meeting of the EUMETSAT Council, which agreed to carry out an independent four years' development of the MHS Instrument, to be exceptionally administrated as a distinct sub-envelope within the General Budget,

RECALLING Resolution EUM/C/96/Res. I, adopted at the 30th Meeting of the EUMETSAT Council on 1st April 1996, which endorsed the revised framework approach for the EPS Programme, and in particular a joint space segment to be established by ESA and EUMETSAT,

RECALLING that Resolution EUM/C/96 Res. II froze the scientific and technical content of the EPS programme,

RECALLING that the EPS Programme Resolution EUM/C/96/Res.V was opened for voting by the 32nd EUMETSAT Council on 3rd – 5th December 1996,

RECALLING Resolution EUM/C/96/Res. VI, adopted at the 32nd Council Meeting, on the EPS Bridging Phase, as extended through Resolution EUM/C/97/Res.V, adopted at the 36th Council Meeting,

RECALLING Resolution EUM/C/98/Res. I in which the start of the EPS activities were approved, with activities to continue in this framework until at the latest 30 September 1998,

NOTING that the ESA METOP-1 Programme Declaration was opened for subscription in December 1996, updated in May 1997, and subscribed by the ESA METOP-1 Participating States at a level of 63.94 %,

NOTING that the Contract Proposal for the Single Space Segment and the release of a METOP Authorisation To Proceed (ATP) was approved at the 37th Council Meeting,

NOTING that the IASI Contract Proposal and the revised draft of the IASI Cooperation Agreement between CNES and EUMETSAT was approved at the 38th Council Meeting,

NOTING that after the 30 September 1998, there is no legal instrument in EUMETSAT for the continuation of EPS activities and that without additional funding the EPS and METOP activities will automatically stop,

STRESSING the need to maintain the momentum achieved on the EPS Programme and the urgency to start the IASI development activities by beginning substantial industrial activities as soon as possible in order to safeguard the basic assumptions of the Programme,

BEARING IN MIND that all Member States have voted in favour of the EPS programme,

NOTING that the votes of some Member States are conditional with regard to the finalisation of national approval procedures,

EXPECTING that the Member States which have voted in favour, ad referendum, will be able to lift their ad referenda within a short period of time,

AGREE:

- I** That the EPS Programme activities will begin with immediate effect.
- II** To unblock the 1998 additional Commitment Appropriations (802.903 MECU) and Payment Appropriations corresponding to the 1998 additional PA (77.182 MECU) within the EPS budget section, resulting in a call up of 76.755 MECU, to be paid as soon as possible but at the latest on 4 December 1998.
- III** That the Member States voting in favour, ad referendum, of the EPS programme will be legally obliged to contribute financially to the programme only after finalisation of national approval procedures, and that their contributions would only become due 30 days after notification hereof, but no earlier than 4 December 1998.
- IV** That in the 1998 budget an amount corresponding to the Commitment Appropriations and Payment Appropriations of the Member States voting in favour, ad referendum, of the EPS programme remains blocked until the finalisation of national approval procedures has been notified to the EUMETSAT Secretariat.
- V** That if the Member States voting in favour, ad referendum, of the EPS programme would not be in a position to confirm finalisation of national approval procedures by the next ordinary Council at the latest, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken.

- VI** That the necessary industrial activities related to the single space segment in the EUMETSAT EPS Programme will continue on the condition that ESA is in a position to provide its part of the funding, accepting that EUMETSAT shall cover the shortfall in the ESA programme of 241.3 MECU at 1996 economic conditions without increase of the EPS financial envelope.
- VII** That the necessary industrial activities related to IASI in the EUMETSAT EPS Programme will start as soon as CNES is in a position to provide its part of the funding.
- VIII** That the MHS Project funding and the EPS Bridging Phase and its extensions are wholly subsumed within the EPS Programme and the corresponding budgets.

**RESOLUTION ON
THE EXTENSION OF THE EUMETSAT POLAR SYSTEM
PREPARATORY PROGRAMME**

**Adopted at the 39th meeting of the EUMETSAT Council
on 7 September 1998**

The EUMETSAT Member States,

RECALLING EUMETSAT Resolution EUM/C/92/Res. VIII on the EUMETSAT Polar System Preparatory Programme, presented for adoption at the 21st Council meeting and fully adopted at the 24th Council meeting on 23-25 November 1993,

RECALLING that the EPS Preparatory Programme was envisaged to last until the start of the full EPS Programme, expected to be not later than 1996,

TAKING INTO ACCOUNT that the financial envelope of the Preparatory Programme was expected to be exhausted in 1996,

NOTING that Resolution EUM/C/96/Res. V on the EUMETSAT Polar System (EPS) Programme, presented for adoption at the 32nd Council on 3-5 December 1996 has finally been fully adopted at the 39th Council meeting on 7 September 1998,

TAKING INTO ACCOUNT that the assumption for the envelope of the full EPS Programme was that the envelope of the EPS Preparatory Programme would be fully used,

NOTING that there are still a number of preparatory activities to be finalised in parallel with the activities under the full EPS Programme,

WISHING to make use of the amounts still available within the EPS Preparatory Programme envelope after the entry into force of the full EPS Programme,

AGREE:

- I** To extend the EPS Preparatory Programme until 31 December 2000.
- II** To maintain the financial envelope of the Preparatory Programme at the agreed level of 30 MECU at 1993 economic conditions.

**RESOLUTION ON
CLARIFICATION OF THE DATA POLICY FOR SAF DELIVERABLES**

**Adopted at the 40th meeting of the EUMETSAT Council
on 25-27 November 1998**

The EUMETSAT Council,

RECALLING the EUMETSAT Data Policy Principles as defined by the EUMETSAT Council in Resolution EUM/C/98/Res. IV,

RECALLING Resolution EUM/C/97/Res. I on Data Policy for SAF Deliverables,

WISHING to clarify the implications of the SAF Data Policy to the National Meteorological Services of EUMETSAT's Member States,

NOTING that such clarification is fully consistent with the above Data Policy provisions and does not constitute a substantial modification thereof,

AGREE:

I To amend the wording of Resolution EUM/C/97/Res. I through addition of the following sentence to AGREE V:

“Such sub-licences shall be granted free of charge to all National Meteorological Services of EUMETSAT's Member States for their Official Duty use.”

II That all other provisions of Resolution EUM/C/97/Res. I shall remain unchanged.

RESOLUTION ON

EPS MANAGEMENT AND RISK MARGIN

**Adopted at the 40th meeting of the EUMETSAT Council
on 25-27 November 1998**

The EUMETSAT Member States,

CONSIDERING the complexity of the EPS Programme and its numerous external interfaces,

NOTING the need for EUMETSAT to be able to approve unforeseen, necessary changes expeditiously in order to preserve the programmatic integrity of EPS and in order to minimise schedule impacts and cost consequences,

TAKING INTO ACCOUNT the experiences of margin management in the Meteosat Transition Programme and Meteosat Second Generation Programme,

DESIRING to ensure budgetary stability and to minimise surpluses,

AGREE:

- I** That the Director can approve unforeseen, necessary changes to the METOP and GOME contracts, the EPS Ground Segment contract and to the IASI instrument, provided each change has a cost to EUMETSAT of less than 750 KEUR.
- II** That the Payment Appropriations foreseen to cover changes as described in AGREE I above shall be consolidated in a dedicated revenue article in the yearly budget and shall not be called up in the related budget year, but that cash needs in the year would be pre-financed by the EUMETSAT treasury – and that the forwarded cash would be reimbursed to the EUMETSAT treasury the following year through corresponding call-ups, issued at the same time as the regular call-ups for the following year.
- III** That the Director shall be authorised to transfer Commitment Appropriations and Payment Appropriations between Articles 400, 410 and 412 of the EPS budget without restriction.
- IV** That Council, in each meeting, shall be informed of any changes approved in accordance with the above and of any corresponding transfer of Payment Appropriations between budget articles. Council shall furthermore immediately be informed in writing when changes are approved by the Director which are expected to lead to additional call-ups for the subsequent year in line with AGREE II above.

RESOLUTION ON

GERB-2/3

**Adopted at the 40th meeting of the EUMETSAT Council
on 25-27 November 1998**

The EUMETSAT Member States,

RECOGNISING the great scientific and operational value of the Geostationary Earth Radiation Budget (GERB) instrument,

NOTING that the GERB Instrument will be flown on MSG-1,

NOTING the draft Instrument Mission Implementation Agreement between the European Space Agency and the United Kingdom Natural Environment Research Council (NERC) on the flight of the GERB instrument on MSG-1 and the complementary Cooperation Agreement between NERC and EUMETSAT, approved by the EUMETSAT Council in its 36th and 40th meetings,

STRESSING the need for continuous operation of GERB instruments in order to achieve full operational and scientific value,

RECOGNISING that the second and third GERB instruments will have to be procured now, in order to ensure availability for MSG-2 and MSG-3 and in order to reduce cost to the minimum,

TAKING INTO ACCOUNT that the first GERB instrument is on schedule to be flown on MSG-1,

TAKING INTO ACCOUNT that the expenditure related to these GERB instruments is compatible with the overall financial envelope of the MSG Programme,

AGREE:

To include within the MSG Programme the procurement and operation of two GERB instruments for planned flight on the MSG-2 and MSG-3 spacecraft.

RESOLUTION ON
SPECIAL PAYMENT ARRANGEMENTS FOR 1999
Adopted at the 40th meeting of the EUMETSAT Council
on 25-27 November 1998

The EUMETSAT Member States,

CONSIDERING the significant increase in the level of contributions to EUMETSAT in 1999,

NOTING that the payment due dates for contributions laid down in Article 12 of the Financial Rules cause serious difficulties to a number of Member States in 1999,

WISHING to facilitate the provision of funds to EUMETSAT by those Member States as an exceptional measure in 1999,

TAKING INTO ACCOUNT that the proposed arrangements do not compromise the smooth execution of EUMETSAT's activities,

AGREE:

- I** That Member States shall, exceptionally, have the right to pay up to 20% of their annual contributions to EUMETSAT not later than 1 August 1999.
- II** That such delays will not incur the payment of interest charges by the relevant Member State as foreseen in Article 12.7 of the Financial Rules.
- III** That 20% of the contributions of those Member States who pay their full annual contributions according to the EUMETSAT budget in accordance with the deadlines defined in Article 12 of the Financial Rules (attached to this Resolution) will be credited, from the date of receipt and until 1 August 1999, to their respective Working Capital Fund accounts.

ARTICLE 12
PROVISION OF FUNDS

- 1** The Council's adoption of the budget shall constitute the obligation of each Member State to make available to EUMETSAT the financial contributions fixed in the budget. As soon as the budget is adopted, the Director will notify each Member State of the amount of its contribution. The annual contributions shall be transferred to EUMETSAT's accounts within the time limit expressed in paragraph 2.
- 2** As a rule, one half of the annual contributions shall be paid before 20 January if the Budget has been adopted before 1 January, or, within thirty days following the adoption of the Budget if it has not been adopted before 1 January; the second half shall be paid before 1 May or within thirty days following the adoption of the budget, if it has not been adopted before 1 May.

Exceptionally, Member States which are, for internal reasons, not in a position to pay the first instalment on 20 January, shall pay the full amount not later than 15 March. If the Budget has not been adopted before 15 February, payments shall be made within 30 days following the adoption of the Budget.

A change from one method of payment to the other shall be notified to EUMETSAT not later than 30 November of the preceding financial year.

Member States are invited to make a prepayment of contributions following adoption of the budget.
- 3** If a supplementary budget is adopted, the Member States shall make available any additional contribution which may be necessary within 60 days following adoption of the said budget.
- 4** Special payments under Art. 16 paragraph 5 of the Convention shall be made within the delay determined by the Council.
- 5** Each Member State shall pay its contributions in convertible currency.
- 6** Pending the receipt of such contributions, and if no EUMETSAT funds are available to cover payments, the Director may arrange bank advances or an overdraft for a period not exceeding one month. If this is not sufficient he may contract a loan after approval by the Chairman of the Council.
- 7** Any delay in the transfer of contributions due will incur the payment of interest charges by the Member State, at the rate of one percent over the Euro-Market.
- 8** The Director shall be authorised to make short term investments of funds not required for immediate needs, while keeping sufficient funds available to meet EUMETSAT's requirements and taking special care that these investments are secure.
- 9** The Director shall draw up quarterly and submit to the Member States a statement of finances and a statement showing the extent to which the Member States have paid their financial contributions.

RESOLUTION ON
THE INTRODUCTION OF THE EURO ON 1 JANUARY 1999

**Adopted at the 40th meeting of the EUMETSAT Council
on 25-27 November 1998**

The EUMETSAT Council,

HAVING REGARD to the Treaty on European Union (“The Maastricht Treaty”), signed on 7 February 1992, which entered into force in all Member States of the European Union on 1 October 1993,

HAVING REGARD to EU Council Regulation (EC) No. 1103/97, of 17 June 1997, On Certain Provisions Relating to the Introduction of the euro,

TAKING INTO ACCOUNT that, pursuant to the above EU provisions, the ECU will cease to exist, and will be replaced by the euro on 1 January 1999, at a rate of one euro to one ECU,

TAKING INTO ACCOUNT Article 10 of the EUMETSAT Convention, which establishes that the EUMETSAT Budget shall be established in terms of ECU,

TAKING INTO ACCOUNT Annex II of the Convention which defines the financial envelopes of EUMETSAT programmes in terms of ECU,

WISHING to replace the reference to the ECU by the euro in all EUMETSAT legal instruments from 1 January 1999,

AGREES:

- I** That all references to the ECU in the EUMETSAT Convention shall be deemed to refer to the euro from 1 January 1999, as defined in the relevant EU Regulations.
- II** To amend all relevant provisions in the EUMETSAT Financial Rules and Staff Rules as required to replace all references to ECU by references to euro.
- III** That all references to ECU in past Council Resolutions and Decisions still in force on 1 January 1999 shall be deemed to refer to the euro.
- IV** That all references to ECU in EUMETSAT Cooperation Agreements and Licence Agreements in force on 1 January 1999 can be deemed to refer to the euro.
- V** That any legal instrument set up by EUMETSAT after 1 January 1999 shall refer to the euro instead of the ECU.

RESOLUTION ON
THE OZONE MONITORING INSTRUMENT FOR METOP-3

**Adopted at the 40th meeting of the EUMETSAT Council
on 25-27 November 1998**

The EUMETSAT Member States,

BEARING IN MIND Council Resolution EUM/C/96/Res. V on the EUMETSAT Polar System (EPS) Programme and the statement contained therein on “Global Ozone Monitoring Experiment (GOME-2) flying on METOP-1 and 2 and ImS being considered for METOP-3 assuming compatibility with the EPS financial envelope”,

TAKING NOTE of the Procurement Proposal for the Ozone Monitoring Instruments, approved by Council at its 37th meeting on 28 January 1998, in which the above commitment is repeated verbatim,

TAKING NOTE of the advanced procurement of detectors already undertaken by EUMETSAT,

TAKING NOTE of the GOME Contract Proposal presented in document EUM/C/40/98/DOC/6 presented to the 40th meeting of Council, which included an option for GOME 203 on METOP-3, and which is subsequently updated in document EUM/C/40/98/DOC/6 Rev.1,

CONSIDERING to retain a “level playing field” for the choice of the Ozone Monitoring Instrument for METOP-3, in line with the above Resolution EUM/C/96/Res.V and to preserve the basic principle of best value-for-money,

AGREE:

- I** That EUMETSAT shall not provide funding for long lead items or other advanced procurements for the Ozone Monitoring Instrument for METOP-3 before a decision is made by Council on which instrument to fly.
- II** That a comparison between the GOME-203 instrument and the ImS instrument shall be made, based on the original requirements and based on a committing updated offer by Officine Galileo for GOME-203 and a committing offer by Fokker Space for ImS.
- III** That the Secretariat, in making the best value-for-money comparison between the two offers, shall consider and trade off all technical, managerial and financial aspects, as well as all aspects of the scientific and operational value, including the continuity of the observations for the whole EPS Programme, of each instrument.

- IV** That the maximum envelope for all three Ozone Monitoring Instruments shall be 44.15 MECU (at 1996 economic conditions) including the cost of the development of the pre-processing algorithm(s) and the prototype pre-processor(s), and possible additional cost of accommodation of the Ozone Monitoring Instrument on METOP-3.
- V** That the Director shall present a Contract Proposal for the Ozone Monitoring Instrument for METOP-3 at the June 1999 Council Meeting.

RESOLUTION ON
THE CONTINUATION OF THE EPS PROGRAMME
Adopted at the 40th meeting of the EUMETSAT Council
on 25-27 November 1998

The EUMETSAT Member States,

BEARING IN MIND that all Member States have voted in favour of the EPS Programme,

RECALLING Resolution EUM/C/98/Res.VIII, adopted at the 39th meeting of the EUMETSAT Council on 7 September 1998, which approved the start of the EPS Programme,

NOTING that the votes of some Member States are still conditional with regard to the finalisation of internal approval procedures,

EXPECTING that the Member States which have voted in favour, ad referendum, will be able to lift their referenda in the very near future,

CONVINCED about the need to continue programme activities,

AGREE:

- I** That EPS programme activities shall continue nominally.
- II** That the Member States voting in favour, ad referendum, of the EPS Programme, will be legally obliged to contribute financially to the Programme only after finalisation of national approval procedures, and that their contributions would only become due 30 days after notification thereof.
- III** That in the 1999 Budget, an amount corresponding to the Commitment Appropriations and Payment Appropriations of the Member States voting in favour, ad referendum, of the EPS Programme remains blocked until the finalisation of national approval procedures has been notified to the EUMETSAT Secretariat – as do the automatic carry-forwards of Commitment Appropriations and Payment Appropriations corresponding to these Member States' contributions to the EPS Programme in 1998.
- IV** That if the Member States voting in favour, ad referendum, of the EPS Programme would not be in a position to confirm finalisation of national approval procedures by 31 March 1999 at the latest, these Member States who have agreed unconditionally to contribute to the Programme will decide on the action to be taken.

RESOLUTION ON
THE FURTHER CONSIDERATION OF THE EPS PROGRAMME

**Adopted at the 41st meeting of the EUMETSAT Council
on 17 March 1999**

The EUMETSAT Member States,

BEARING IN MIND that all Member States have voted in favour of the EPS Programme,

RECALLING Resolution EUM/C/98/Res. VIII, adopted at the 39th meeting of the EUMETSAT Council on 7 September 1998, which approved the start of the EPS Programme,

RECALLING Resolution EUM/C/98/Res. XIX, adopted at the 40th meeting of the EUMETSAT Council on 25 – 27 November 1998, which approved the continuation of the EPS Programme,

NOTING that the votes of some Member States are still conditional with regard to the finalisation of internal approval procedures,

NOTING that there will not be any Council approval of major new EPS related procurement actions before 1 August 1999,

EXPECTING that the Member States which have voted in favour, ad referendum, will be able to lift their ad referenda in the very near future,

CONVINCED about the need to continue Programme activities,

AGREE:

- I** That EPS Programme activities shall continue nominally until 31 July 1999.
- II** That if the Member States voting in favour, ad referendum, of the EPS Programme are not expected to be in a position to confirm finalisation of their national approval procedure by 31 July 1999 at the latest, the Member States who have agreed unconditionally to contribute to the Programme will decide on the action to be taken.
- III** That the provisions of EUMETSAT Resolution EUM/C/98/Res. XIX shall remain valid and in force unless expressly modified by the present Resolution.
- IV** That this Resolution shall be automatically superseded by the EPS Programme Resolution, Resolution EUM/C/96/Res. V, when all Member States have voted unconditionally in its favour.

RESOLUTION ON
A BORROWING FACILITY
TO BE CONTRACTED BY EUMETSAT ON BEHALF OF FRANCE

Adopted at the 42nd meeting of the EUMETSAT Council
on 22-23 June 1999

The EUMETSAT Council,

CONSIDERING that France has repeatedly informed the Secretariat and the EUMETSAT Member States that it approved the EPS Programme despite the fact that the yearly payment profile was not in line with its yearly budgetary availability of funds,

NOTING that France has assured financing of the EPS Programme in the long term,

RECOGNISING that France will take over full responsibility for any borrowing under the facility by EUMETSAT on its behalf, including the reimbursement of the principal capital amount, all related interests and all other associated costs (such as administrative charges and fees),

CONSIDERING that under these circumstances EUMETSAT acts only as an intermediary between the financial institute and France,

AGREES:

That the Director be authorised to contract a borrowing facility on behalf of France as follows:

- Maximum amount to be drawn: 50 MEUR
- Earliest drawing: 2 August 1999
- Maximum duration: 10 years
- All interests, fees and charges: To be borne fully by France
- Guarantee: All debts guaranteed by France

The provisions of this borrowing facility and France's commitment to assume all liabilities will be confirmed through an exchange of letters between France and EUMETSAT.

RESOLUTION ON
PROCUREMENT FOR CRITICAL LONG LEAD ITEMS
FOR THE METEOSAT SECOND GENERATION (MSG) PROGRAMME
UNDER THE 1999 BUDGET

Adopted at the 42nd meeting of the EUMETSAT Council
on 22-23 June 1999

The EUMETSAT Member States,

RECALLING Resolution EUM/C/92/Res.VI on the MSG Programme, formally adopted at the 24th meeting of the EUMETSAT Council in November 1993, which includes the manufacture of 3 MSG Satellites,

RECALLING the Agreement with ESA signed in October 1996, which establishes ESA as EUMETSAT's Procurement Agent for the MSG Second and Third Satellites,

RECALLING that, under the above Agreement, ESA shall ensure availability of equipment spares and other items left over from MSG-1, to the extent that they are not consumed under the MSG-1 Programme,

BEARING IN MIND that only limited MSG-1 spares will therefore be available for MSG-2 and -3,

NOTING that Article 8 of the above Agreement with ESA establishes an Agreement Change Notice (ACN) procedure for activities not covered by the limit of financial liability defined in the Agreement,

WISHING to ensure the availability of relevant spares to secure the robustness of the MSG-2 and -3 Satellites, and the possible continuity into a future MSG follow-on programme,

BEARING IN MIND the urgency of initiating now the procurement of critical MSG Long Lead Items, some of which are becoming obsolete and will soon cease to be available on the market,

TAKING INTO ACCOUNT that the funds for this procurement are covered within the overall MSG Programme financial envelope,

AGREE:

- I** To authorise the procurement of Long Lead Items (obsolete parts) for MSG recurring satellites within a maximum limit of liability to EUMETSAT of 1.5 MEUR at 1999 economic conditions.

- II** That the Secretariat shall request ESA to carry out this procurement under a preliminary Authorisation to Proceed, to be formalised through an ACN to the Agreement on MSG-2 and -3, which will be presented for Council approval at the earliest opportunity.
- III** That the payment to ESA in 1999 for expenditure of Long Lead Items (obsolete parts) for MSG recurring satellites shall not exceed 1.5 MEUR and this will be paid from funds available within the existing 1999 budget.
- IV** That this decision on Long Lead Items (obsolete parts) does not prejudice a decision on the MSG follow-on programme.

RESOLUTION ON
PROCUREMENT OF
CRITICAL LONG LEAD ITEMS FOR
THE METEOSAT SECOND GENERATION (MSG) FOLLOW-ON

Adopted at the 43rd Meeting of the EUMETSAT Council
on 23-25 November 1999

The EUMETSAT Member States,

RECALLING Resolution EUM/C/92/Res. VI on the MSG Programme, formally adopted at the 24th meeting of the EUMETSAT Council in November 1993, which includes the manufacture of 3 MSG Satellites,

RECALLING the Agreement with ESA signed in October 1996, which establishes ESA as EUMETSAT's Procurement Agent for the MSG Second and Third Satellites,

RECALLING that, under the above Agreement, ESA shall ensure availability of equipment spares and other items left over from MSG-1, to the extent that they are not consumed under the MSG-1 Programme,

BEARING IN MIND that only limited MSG-1 spares will therefore be available for MSG-2 and -3,

NOTING that Article 8 of the above Agreement with ESA establishes an Agreement Change Notice (ACN) procedure for activities not covered by the limit of financial liability defined in the Agreement,

TAKING INTO ACCOUNT that the Council, in its 42nd meeting, approved the Resolution for procurement of critical Long Lead Items for the MSG Programme under the 1999 budget within a maximum Limit of Liability (LOL) of 1.5 MEUR at 1999 economic conditions,

WISHING to ensure the continuity of service beyond currently planned MSG satellites,

BEARING IN MIND the urgency of initiating now the continuing procurement of critical MSG Long Lead Items, some of which will soon cease to be available on the market,

TAKING INTO ACCOUNT that the funds for this procurement are foreseen within the EUMETSAT Budgets,

AGREE:

- I** To authorise the continuing procurement of Long Lead Items (obsolete parts) within a maximum limit of liability to EUMETSAT of 3.5 MEUR at 1999 economic conditions, in order to preserve the possibility to procure additional MSG satellites.
- II** That the Secretariat shall request ESA to carry out this procurement under an ACN to the MSG-2 and -3 Agreement.
- III** That the payment to ESA in 1999 and 2000 for expenditure of Long Lead Items shall be paid from funds available within the 1999 and 2000 Budgets.
- IV** That this decision on Long Lead Items (obsolete parts) does not prejudice a decision on the MSG follow-on activities.

RESOLUTION ON
THE CEILING OF THE GENERAL BUDGET 2001-2005

**Adopted at the 43rd Meeting of the EUMETSAT Council
on 23-25 November 1999**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, Annex I Chapter B stating that the General Budget will constitute the programmatic frame for all EUMETSAT core and prospective activities in 1990 and subsequent years,

RECALLING EUM/C/Res. XVIII establishing the first General Budget, a ceiling for the years 1990-1995 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/95/Res. VI establishing the second General Budget, a ceiling for the years 1996-2000 and contributions based on a GNP scale of contributions,

EXPRESSING the need to establish a new ceiling,

AGREE:

- I** to fix a new ceiling of the General Budget for the years 2001-2005.
- II** to link this ceiling to contributions from Member States on a GNP scale.
- III** to limit these contributions to 64 MEUR at 2001 economic conditions.

RESOLUTION ON
THE EUMETSAT SCALE OF CONTRIBUTIONS
Adopted at the 43rd meeting of the EUMETSAT Council
on 23-25 November 1999

The EUMETSAT Member States,

TAKING INTO ACCOUNT that the EUMETSAT scale of contributions laid down in Annex II of the Convention follows a mechanism for automatic updates in triennial intervals on the basis of statistics provided by the OECD,

CONSIDERING that the current scale of contributions is applicable until 31 December 1999,

AWARE that the OECD is currently in the process of amending the methodology for calculations of the relevant economic statistical figures,

AWARE that Member States need time to adjust to the new regime,

ACKNOWLEDGING that the result of the OECD review will not be finalised by the end of 1999,

WISHING to establish a clear legal basis for the EUMETSAT scale of contributions for the financial year 2000 and onwards,

AGREE:

- I** To adopt the scale of contributions attached as Annex to this Resolution for the period from 1 January to 31 December 2000.
- II** That the new scale of contributions for the period 2001-2002 will be established on the basis of the statistics issued by the OECD concerning the period 1995-1997.
- III** That thereafter the scale of contributions shall revert to three-year periods beginning with the period 2003-2005.
- IV** That the OECD statistics used to establish EUMETSAT scales of contributions for the period 2001-2002 and thereafter shall be those available at the Secretariat three weeks before the date of the ordinary autumn AFG meeting preceding the Council meeting to which a new scale of contributions is presented.

MEMBER STATE	SCALE %
AUSTRIA (A)	2.47
BELGIUM (B)	2.96
SWITZERLAND (CH)	3.34
GERMANY (D)	25.25
DENMARK (DK)	1.96
SPAIN (E)	6.15
FRANCE (F)	16.58
FINLAND (FIN)	1.33
UNITED KINGDOM (GB)	13.51
GREECE (GR)	1.35
ITALY (I)	12.66
IRELAND (IRL)	0.68
NORWAY (N)	1.69
NETHERLANDS (NL)	4.34
PORTUGAL (P)	1.16
SWEDEN (S)	2.53
TURKEY (TR)	2.04
TOTAL	100.00

COOPERATING STATE	SCALE %
HUNGARY (H)	0.48
SLOVAKIA (SK)	0.20
TOTAL	0.68

RESOLUTION ON
SPECIAL PAYMENT ARRANGEMENTS FOR 2000
Adopted at the 43rd meeting of the EUMETSAT Council
on 23-25 November 1999

The EUMETSAT Member States,

RECALLING Resolution EUM/C/98/Res. XVI on Special Payment Arrangements for 1999, adopted at the 40th meeting of the EUMETSAT Council on 25-27 November 1998,

NOTING that the payment due dates for contributions laid down in Article 12 of the Financial Rules continue to cause serious difficulties to a number of Member States,

CONSIDERING the ongoing discussions at AFG regarding a review of Article 12 of the Financial Rules,

WISHING to facilitate the provision of funds to EUMETSAT by Member States in 2000 while awaiting the results of the AFG discussions,

TAKING INTO ACCOUNT that the proposed arrangements do not compromise the smooth execution of EUMETSAT's activities,

AGREE:

- I** That Member States shall, exceptionally, have the right to pay up to 20% of their annual contributions to EUMETSAT not later than 1 August 2000.
- II** That such delays will not incur the payment of interest charges by the relevant Member State as foreseen in Article 12.7 of the Financial Rules.
- III** That 20% of the contributions of those Member States who pay their full annual contributions according to the EUMETSAT budget in accordance with the deadlines defined in Article 12 of the Financial Rules will be credited from the date of receipt and until 1 August 2000, to their respective Working Capital Fund accounts.

RESOLUTION ON
PROCUREMENT OF OBSOLETE PARTS FOR
THE METEOSAT SECOND GENERATION (MSG) FOLLOW-ON

Adopted at the 45th EUMETSAT Council Meeting
on 26-28 June 2000

The EUMETSAT Member States,

RECALLING Resolution EUM/C/92/Res. VI on the MSG Programme, formally adopted at the 24th meeting of the EUMETSAT Council in November 1993, which includes the manufacture of 3 MSG Satellites,

RECALLING the Agreement with ESA signed in October 1996, which establishes ESA as EUMETSAT's Procurement Agent for the MSG Second and Third Satellites,

RECALLING that, under the above Agreement, ESA shall ensure availability of equipment spares and other items left over from MSG-1, to the extent that they are not consumed under the MSG-1 Programme,

BEARING IN MIND that only limited MSG-1 spares will therefore be available for MSG-2 and -3,

NOTING that Article 8 of the above Agreement with ESA establishes an Agreement Change Notice (ACN) procedure for activities not covered by the limit of financial liability defined in the Agreement,

TAKING INTO ACCOUNT that Council, in its 42nd meeting, approved the Resolution for procurement of critical Long Lead Items for the MSG Programme under the 1999 budget within a maximum Limit of Liability (LOL) of 1.5 MEUR at 1999 economic conditions,

TAKING INTO ACCOUNT that Council, in its 43rd meeting, approved the Resolution for procurement of critical Long Lead Items for MSG Follow-On under the 1999 and 2000 budget within a maximum Limit of Liability (LOL) of 3.5 MEUR at 1999 economic conditions,

WISHING to ensure continuity of the EUMETSAT operational geostationary services,

RECOGNISING that this requires the procurement of at least a fourth MSG satellite, expected to be covered by an extension of the MSG Programme,

BEARING IN MIND the urgency of initiating now the continuing procurement of critical MSG Long Lead Items, some of which will soon cease to be available on the market,

TAKING INTO ACCOUNT that the funds for this procurement are available within the EUMETSAT Budgets,

AGREE:

- I** To authorise the procurement of a final set of Long Lead Items (obsolete parts) within a maximum limit of liability to EUMETSAT of 10.9 MEUR (Firm Fixed Price) in order to preserve the possibility to procure additional MSG satellites.
- II** To authorise related expenditures:
 - from the General Budget, Article 452, Prospective Activities for an amount of 3.5 MEUR;
 - from the MSG budget envelope, with a fixed ceiling of 7.4 MEUR, expected to be ultimately covered by the planned extension of the MSG Programme.
- III** That the Secretariat shall request ESA to carry out this procurement under an ACN to the Agreement between EUMETSAT and ESA concerning the MSG second and third satellites.
- IV** That the payment to ESA in 2000, 2001 and 2002 for obsolete parts procurements shall be paid from funds available within the 1999, 2000, 2001 and 2002 Budgets and within the ceiling of the General Budget for 2001-2005.
- V** That this decision on Long Lead Items (obsolete parts procurement) does not prejudice a decision on the procurement of additional MSG satellites.
- VI** That the Secretariat will report on a regular basis on the status of the procurement of obsolete parts under the agreed ceiling.

RESOLUTION ON
THE APPROVAL OF OPTIONAL PROGRAMMES
Adopted at the 48th Meeting of the EUMETSAT Council
on 25-26 June 2001

The EUMETSAT Council,

TAKING INTO ACCOUNT that the Amendments to the EUMETSAT Convention approved in Council Resolution EUM/C/Res. XXXVI, and subsequently accepted by all EUMETSAT Members States, entered into force on 19 November 2000,

TAKING INTO ACCOUNT that the Convention distinguishes between mandatory programmes in which all Member States participate and optional programmes with participation by those Member States that agree to do so,

AWARE that the legal framework established in the Convention needs to be completed by more detailed procedures on the approval of optional programmes,

WISHING to lay down a standard procedure to ensure consistency in approving EUMETSAT's future optional programmes,

HAVING DUE REGARD to Articles 2, 3, 5 and 10 of the EUMETSAT Convention,

I In approving future optional programmes, the following sequence of formal steps shall be undertaken:

- 1) the EUMETSAT Council shall approve a preliminary proposal for an optional programme through adoption of an "Initiating Resolution" in accordance with the majority established in Article 5.2 d) iii of the Convention;
- 2) the Potential Participating States shall adopt a Programme Declaration and attached Programme Definition in accordance with Article 5.3 a) of the Convention. The Programme Declaration shall indicate the timeframe during which Member States may formally declare participation to the programme by signing the Declaration;
- 3) the EUMETSAT Council shall approve the Programme Declaration and attached Programme Definition through adoption of an Enabling Resolution in accordance with Article 5.2 d) iii of the Convention;
- 4) the Programme Declaration shall be open for signature by interested Member States within the timeframe indicated in the Declaration;

- 5) the optional programme shall take effect once at least one third of all EUMETSAT Member States have signed the Declaration within the established timeframe and the subscriptions of the Participating States have reached 90% of the total financial envelope for the programme.

- II** The Director-General shall be entrusted with the preparation of the documentation required to accomplish the steps described above. This mandate shall include the organisation of meetings of Potential Participating States as required.

RESOLUTION ON
THE PREPARATION OF AN OPTIONAL PROGRAMME ON ALTIMETRY

**Adopted at the 48th Meeting of the EUMETSAT Council
on 25-26 June 2001**

The EUMETSAT Council,

TAKING INTO ACCOUNT that the Amendments to the EUMETSAT Convention approved in Council Resolution EUM/C/Res. XXXV, and subsequently accepted by all Member States, entered into force on 19 November 2000,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT agreed as such by Council,

AWARE that the Jason mission will provide essential data in support of marine meteorology, operational seasonal forecasting, operational oceanographic services and the operational monitoring of climate,

HAVING REGARD to the preliminary programme proposal on Altimetry as an Optional Programme contained in document EUM/C/48/01/DOC/17,

HAVING REGARD to Articles 2, 3, 5 and 10 of the EUMETSAT Convention,

AGREES:

- I** That the proposed programme on Altimetry is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention.
- II** To invite all Member States to express their interest in participating in the proposed programme, thereby becoming Potential Participating States, on the understanding that this indication will not commit any of these Member States to formally participate in the programme.
- III** To task the Director-General to draw up a Programme Declaration and Programme Definition in consultation with Potential Participating States, to be submitted for Council approval in an Enabling Resolution.

- IV** To task the Director-General to prepare the necessary cooperation agreements with CNES and NOAA, to be agreed by Council, regarding the respective contributions to the altimetry programme.

RESOLUTION ON
THE APPROVAL OF THE EUMETSAT STAFF COMPLEMENT

**Adopted at the 48th Meeting of the EUMETSAT Council
on 25-26 June 2001**

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the Convention entrusts the Director-General with the implementation of the decisions taken by the Council and with the execution of the tasks assigned to EUMETSAT,

NOTING that the Convention establishes that the Director-General shall be supported by the Secretariat, and that the Director-General shall have authority over the Secretariat staff as a whole,

TAKING INTO ACCOUNT that the staff constituting the Secretariat are composed of different categories, including staff members, local employees, consultants and contractors,

TAKING INTO ACCOUNT that the Protocol on Privileges and Immunities of EUMETSAT defines staff members as the Director-General and all persons employed by EUMETSAT holding permanent appointments and who are subject to its Staff Rules,

AWARE that, under the Convention, the Council adopts the annual budgets for the General Budget and mandatory programmes, together with their level of staff complements,

AWARE that, through adoption of the EUMETSAT Budgets the Council also approves the budgetary allocations for other categories of human resources,

ACKNOWLEDGING that, with EUMETSAT's increased activities it is necessary to provide the Director-General with the flexibility to manage the human resources of EUMETSAT, while maintaining sufficient visibility and control by Council,

AGREES:

- I** The Council shall provide to the Director-General the necessary human resources through approval of a global staff complement within the EUMETSAT Budgets.
- II** The financial appropriations for global staff complement shall be contained in Chapter 20 of each of the EUMETSAT Budgets.
- III** Within the global staff complement, the Director-General shall be entitled to decide the appropriate allocation of human resources among the different categories within the approved financial appropriations.
- IV** In allocating the human resources among the different categories, the Director-General shall take into account that staff member posts, which are subject to the Staff Rules, should only be established for core and support activities of a permanent nature.
- V** Concerning staff members subject to the EUMETSAT Staff Rules, the Director-General shall be authorised to establish a grading structure consistent with the relevant job descriptions, except for senior staff as defined in Article 1 of the Staff Rules.
- VI** Concerning senior staff, the Council will continue to approve each post and to decide upon individual appointments and dismissals.
- VII** To task the Director-General with the preparation of the required changes to the Financial and Staff Rules, to be submitted to Council for approval.

RESOLUTION ON
THE ACCESSION OF THE GRAND-DUCHY OF LUXEMBOURG TO
THE EUMETSAT CONVENTION

Adopted at the 48th Meeting of the EUMETSAT Council
on 25-26 June 2001

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

WELCOMING the formal request by Luxembourg to become a full member of EUMETSAT, expressed through a letter from the Minister of Foreign Affairs of Luxembourg on 10 November 2000,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of Luxembourg to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Luxembourg with regard to the investments already made at MEUR 2.
- IV** To amend the scale of Member State contributions for the year 2002 as attached in Annex II.
- V** That all legal and financial implications of Luxembourg's accession will formally enter into force at the date of deposit of Luxembourg's instrument of accession, with effect from 1 January 2002.

DRAFT

AGREEMENT

BETWEEN

THE GOVERNMENT OF

THE GRAND-DUCHY OF LUXEMBOURG

AND

THE EUROPEAN ORGANISATION

FOR THE

EXPLOITATION OF METEOROLOGICAL SATELLITES

(EUMETSAT)

CONCERNING THE ACCESSION OF

THE GRAND-DUCHY OF LUXEMBOURG TO THE

CONVENTION FOR THE ESTABLISHMENT OF A

EUROPEAN ORGANISATION FOR THE

EXPLOITATION OF METEOROLOGICAL SATELLITES

(EUMETSAT)

AND RELATED TERMS AND CONDITIONS

26 June 2001

Preamble

The Government of the Grand-Duchy of Luxembourg, (hereinafter referred to as “Luxembourg”),

and

the European Organisation for the Exploitation of Meteorological Satellites, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as “EUMETSAT”),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the “Amending Protocol”, attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that Luxembourg has applied to become a full member of EUMETSAT, and to accede to the EUMETSAT Convention through a letter dated 10 November 2000,

RECALLING that the EUMETSAT Council at its 48th meeting on 25-26 June 2001 agreed to welcome Luxembourg as a Member State through adoption of Resolution EUM/C/01/Res. IV,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

Luxembourg accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all approved mandatory programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and EUMETSAT Polar System Programme) shall be binding for Luxembourg.

Luxembourg shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, Luxembourg shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.

2. Luxembourg shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
3. Luxembourg shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention.
4. Luxembourg shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

1. In accordance with Article 16.5 of the EUMETSAT Convention, Luxembourg shall make a special payment to EUMETSAT of 2 million EUR. This payment shall be made no later than 30 days after the date of deposit of its instrument of accession.
2. No further payments will be requested from Luxembourg for the period up to the end of 2001.

Article 4

1. Luxembourg shall with regard to the provision of Article 3.2 above start to contribute to the EUMETSAT annual budget as from 1 January 2002.
2. Luxembourg shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

Article 5

1. The present Agreement shall enter into force on the date of deposit of Luxembourg's instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
2. In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for Luxembourg on the date referred to in Article 5.1 above.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in _____ on _____ in two originals, in the English and French languages, both texts being equally authentic.

for the Government of the Grand-Duchy
of Luxembourg

for the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Dr. Tillmann Mohr
Director-General

SCALE OF CONTRIBUTIONS 2002

MEMBER STATE	CONTRIBUTION (%)
AUSTRIA (A)	2.44
BELGIUM (B)	2.90
SWITZERLAND (CH)	3.29
GERMANY (D)	25.25
DENMARK (DK)	1.91
SPAIN (E)	6.36
FRANCE (F)	16.44
FINLAND (FIN)	1.34
UNITED KINGDOM (GB)	13.30
GREECE (GR)	1.36
ITALY (I)	12.58
IRELAND (IRL)	0.72
NORWAY (N)	1.66
NETHERLANDS (NL)	4.44
PORTUGAL (P)	1.18
SWEDEN (S)	2.62
TURKEY (TR)	2.00
LUXEMBOURG (L)	0.21

COOPERATING STATE	CONTRIBUTION (%)
HUNGARY (H)	0.45
POLAND (PL)	1.46
SLOVAK REPUBLIC (SK)	0.20

**RESOLUTION ON
PRINCIPLES OF PROCUREMENT**

**Adopted at the 48th Meeting of the EUMETSAT Council
on 25-26 June 2001**

The EUMETSAT Member States,

CONSIDERING EUMETSAT's mandate, laid down in the EUMETSAT Convention, to establish, maintain and exploit European systems of operational meteorological satellites and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

NOTING that EUMETSAT's success in meeting the goals laid down in its Convention has ultimately depended on the Member States showing common cause, and that the future success of EUMETSAT requires the collective pursuit of the common good in procurements,

BEARING IN MIND also the need for conducting procurements with maximum cost-efficiency in the face of ever-tighter national budgets,

BEARING IN MIND the requirement of the EUMETSAT Convention to "take maximum advantage of the technologies developed in Europe, in particular in the field of meteorological satellites by providing for operational continuation of the programmes that have proved technically successful and cost-effective,"

BEARING IN MIND the long history of international solidarity and common purpose in meteorology,

NOTING the difficult approval process of recent large procurements,

AGREE:

- I** That the principles of best value for money and open competition shall remain the all-pervasive foundation of the EUMETSAT procurement system.
- II** That the process of continuous improvement of the procurement system shall remain applicable – and that this process i.a. shall implement the recommendations formulated by the Special PAC in February 2000 (Appendix).
- III** That the EUMETSAT procurement system shall empower industry to the extent possible, compatible with sound management and cost-efficiency.
- IV** That EUMETSAT, whilst pursuing the highest degree of competition, shall facilitate involvement in procurements also of smaller enterprises in order to reach out to all centres of excellence.

APPENDIX

THE RECOMMENDATIONS OF THE SPECIAL PAC IN FEBRUARY 2000

- Look for improvements in the EUMITS system in order to stimulate more competition for contracts;
- Facilitate the role of the Industrial Focal Points (IFP), by enhancing the exchange of relevant information with due reference to EUMETSAT Resolution on IFPs (EUM/C/98/Res. VI);
- Continue with the current practice of having bidders' conferences;
- Inter alia facilitate a higher participation of Small and Medium Enterprises (SMEs) by including in ITTs an indication to the potential bidders of the importance of providing best value for money e.g. through the use of open competition in selecting sub-contractors. In addition, for large contracts, Austria, UK, Belgium and Spain wished to establish a percentage value that should be open to competition;
- Encourage the use of standardised items e.g. commercial off the shelf software (COTS).

RESOLUTION ON
PROCUREMENT OF SEVIRI MIRRORS AND OBSOLETE PARTS FOR
THE METEOSAT SECOND GENERATION (MSG) PROGRAMME AND
MSG FOLLOW-ON

Adopted at the 49th Meeting of the EUMETSAT Council
on 4-5 December 2001

The EUMETSAT Member States,

RECALLING Resolution EUM/C/92/Res. VI on the MSG Programme, formally adopted at the 24th meeting of the EUMETSAT Council in November 1993, which includes the manufacture of 3 MSG Satellites,

RECALLING the Agreement with ESA signed in October 1996, which establishes ESA as EUMETSAT's Procurement Agent for the MSG Second and Third Satellites,

RECALLING that, under the above Agreement, ESA shall ensure availability of equipment spares and other items left over from MSG-1, to the extent that they are not consumed under the MSG-1 Programme,

NOTING that Article 8 of the above Agreement with ESA establishes an Agreement Change Notice (ACN) procedure for activities not covered by the limit of financial liability defined in the Agreement,

WISHING to ensure continuity of the EUMETSAT operational geostationary services,

RECOGNISING that this requires the procurement of at least a fourth MSG recurrent satellite, expected to be covered by an extension of the MSG Programme,

RECALLING that the 45th Council approved the two Procurement Proposals for the purpose of obtaining cost estimates for the procurement of a fully recurrent MSG-4 satellite, these costs to be used for the preparation of a detailed proposal to Council for the extension of the MSG Programme,

TAKING INTO ACCOUNT that Council, at its 42nd meeting, approved Resolution EUM/C/99/Res.III on Procurement of Critical Long Lead Items for the MSG Programme under the 1999 Budget within a maximum Limit of Liability (LOL) of 1.5 MEUR at 1999 economic conditions,

TAKING INTO ACCOUNT that Council, at its 43rd meeting, approved Resolution EUM/C/99/Res.IV on Procurement of Critical Long Lead Items for MSG Follow-On under the 1999 and 2000 budget within a maximum Limit of Liability (LOL) of 3.5 MEUR at 1999 economic conditions,

TAKING INTO ACCOUNT that Council, at its 45th meeting, approved Resolution EUM/C/00/Res.I on Procurement of Obsolete Parts for the MSG Follow-On under the 1999, 2000, 2001 and 2002 budgets within a maximum limit of liability (LOL) of 10.9 MEUR Firm Fixed Price (FFP) and within the ceiling of the General Budget for 2001 - 2005,

CONSIDERING the planned termination of manufacturing of MSG SEVIRI mirrors by the current MSG contractor, the resulting risks affecting both the MSG-3 de-storage and the planned procurement of MSG-4,

TAKING INTO ACCOUNT that the funds for the procurement of one complete set of SEVIRI mirrors are available within the EUMETSAT Budgets,

AGREES:

- I** To authorise the procurement of one complete set of mirrors for one SEVIRI plus spare parts within a limit to EUMETSAT of 4.4 MEUR (Firm Fixed Price) in order to protect the existing Programme and to preserve the possibility to procure one additional MSG satellite.
- II** To authorise related expenditures from the MSG budget envelope, of 4.4 MEUR, to be ultimately covered by the planned extension of the MSG Programme.
- III** That the Director General shall request ESA to carry out this procurement under an Agreement Change Notice (ACN) to the Agreement between EUMETSAT and ESA concerning the MSG second and third satellites.
- IV** That the payments to ESA in 2002 and 2003 for obsolete parts procurements shall be paid from funds available within the 2002 and 2003 MSG Budgets.
- V** That this decision on Long Lead Items (obsolete parts procurement) does not prejudice a decision on the procurement of additional MSG satellites.
- VI** That the Secretariat will report on a regular basis on the status of the procurement of obsolete parts under the agreed ceiling.

ENABLING RESOLUTION ON
THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

**Adopted at the 49th Meeting of the EUMETSAT Council
on 4-5 December 2001**

The EUMETSAT Council,

TAKING INTO ACCOUNT that the Amendments to the EUMETSAT Convention approved in Council Resolution EUM/C/Res. XXXVI, and subsequently accepted by all Member States, entered into force on 19 November 2000,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT agreed as such by Council,

HAVING REGARD to Resolution EUM/C/01/Res. II on the Preparation of an Optional Programme on Altimetry, in which Council agreed that the proposed Programme on Altimetry is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

HAVING REGARD to Declaration EUM/C/01/Decl. I and attached Programme Definition on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by interested Member States on 4-5 December 2001,

NOTING that any Member State shall have the opportunity to become a Participating State of the Optional EUMETSAT Jason-2 Altimetry Programme through signature of the Declaration within the timeframe set out therein,

AWARE that the Optional EUMETSAT Jason-2 Altimetry Programme will take effect once at least one third of all EUMETSAT Member States have declared their participation by signing the Declaration within the timeframe set out and the subscriptions of these Participating States have reached 90% of the total financial envelope,

IN CONFORMITY WITH Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Council Resolution EUM/C/01/Res. I on the Approval of Optional Programmes,

AGREES:

- I** To approve the execution, within the framework of the EUMETSAT Convention, of an Optional EUMETSAT Jason-2 Altimetry Programme on the basis of the Declaration and Programme Definition attached thereto referred to in the Preamble of this Resolution.
- II** To invite Participating States to sign the Declaration within the timeframe set out therein.
- III** To task the Director-General with the preparation of the necessary cooperation agreements with the international partners contributing to the overall Ocean Surface Topography Mission (OSTM), to be submitted for Council approval.
- IV** To task the Director-General with the execution of the EUMETSAT Jason-2 Altimetry Programme in accordance with EUMETSAT's Rules and Procedures.
- V** To authorise Participating States to consider, if feasible, a possible extension of the EUMETSAT Jason-2 Altimetry Programme operations beyond the five-year period covered by the Declaration, it being understood that this extension shall require unanimous approval by those Participating States wishing to continue.
- VI** To authorise Participating States to establish terms and conditions for possible contributions to the EUMETSAT Jason-2 Altimetry Programme by Cooperating States, on the understanding that any resulting agreements with Cooperating States will require Council approval.

**RESOLUTION ON
SAF OPERATIONS FUNDING**

**Adopted at the 49th Meeting of the EUMETSAT Council
on 4-5 December 2001**

The EUMETSAT Council,

HAVING REGARD TO the EUMETSAT Convention, as amended by the Amending Protocol attached to Council Resolution EUM/C/Rex. XXXVI,

TAKING INTO ACCOUNT the long-term policy regarding EUMETSAT Ground Systems established through Resolution EUM/C/92/Res. V, adopted at the 21st meeting of the EUMETSAT Council in November 1992,

NOTING that Resolution EUM/C/92/Res. V establishes the concept of a networked configuration comprising both distributed elements and a central facility having well defined key objectives,

RECALLING that the distributed network elements of the EUMETSAT Applications Ground Segment shall include Satellite Application Facilities (SAF) which shall be responsible for necessary research, development and operational activities not carried out by the central facility,

CONSIDERING that Resolution EUM/C/92/Res. VI on the Meteosat Second Generation (MSG) Programme, unanimously adopted by all EUMETSAT Member States in November 1993, establishes that the MSG Applications Ground Segment shall include a network of SAF in charge of the operational generation of SAF products as agreed by Council following analysis of user requirements,

CONSIDERING that Resolution EUM/C/96/Res. V on the EUMETSAT Polar System (EPS) Programme, unanimously adopted by all EUMETSAT Member States in June 1999, foresees the establishment of SAFs to provide meteorological and environmental products not generated by the centrally located Polar Product Extraction Facility (PPEF),

RECALLING that the EUMETSAT SAF Strategy recognises the need to foresee for a start of operations of the first pilot SAFs, with initial operations being primarily based on exploitation of MSG data until acceptance of EPS-dedicated upgrades, as well as covering the delta development needed to implement these upgrades,

IN LINE WITH the decisions on SAF operations funding taken by Council at its 48th meeting held in June 2001,

AGREES:

- I** That the first phase of SAF operations covering the period 2002 to 2007 shall be funded from within the agreed financial envelope of the MSG Programme, with the expectation that the required funds will ultimately be covered by the planned extension of the MSG Programme.
- II** That individual decisions to fund SAF activities beyond the currently agreed development phases will be taken by Council in line with the two-step procedure established in the SAF Strategy.
- III** To decide in due course on the adequate mandatory funding framework for SAF operations beyond 2007, on the basis of relevant proposals to be elaborated by the Director-General.

DECLARATION ON
THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

**Adopted by Potential Participating States on 4-5 December 2001 at the
49th Meeting of the EUMETSAT Council.**

The Potential Participating States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

TAKING INTO ACCOUNT the requirement for satellite ocean altimetry observations expressed by the WMO, the Global Ocean Data Assimilation Experiment (GODAE), the Global Ocean Observing System (GOOS), the Ocean Observations Programme Committee (OOPC) and the Integrated Global Observing Strategy Partnership (IGOS-P),

BEARING IN MIND that the Topex/Poseidon and Jason-1 missions established by the Centre National d'Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) have proven the value of altimetry observations in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and the monitoring of the climate,

CONSIDERING that, after Jason-1, there is a requirement to continue these services on an operational basis, and that the above agencies cannot justify a follow-on mission without a contribution from operational partners,

CONSIDERING the desirability in the long-term of having a single global altimetry system covering both the non-synchronous and the sun-synchronous orbits, with common technology being used to the extent possible, to which at least Europe and the US would contribute,

WISHING to capitalise on the European investments already made in the development and operations of Topex/Poseidon and Jason-1, and in the development of operational applications of precise altimetry data,

BEARING IN MIND that Article 2 of the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT and agreed as such by the Council,

HAVING REGARD to Resolution EUM/C/01/Res. II on the Preparation of an Optional Programme on Altimetry, in which Council agreed that the proposed programme on Altimetry is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

TAKING INTO ACCOUNT the Programme Proposal on the Optional EUMETSAT Jason-2 Altimetry Programme contained in Document EUM/C/49/01/DOC/61,

IN CONFORMITY WITH Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Council Resolution EUM/C/01/Res. I on the Approval of Optional Programmes,

AGREE:

- I** To establish an optional EUMETSAT Jason-2 Altimetry Programme within the framework of the EUMETSAT Convention as described in the EUMETSAT Jason-2 Altimetry Programme Proposal referred to in the Preamble.
- II** That the System Description and Implementation Plan of the EUMETSAT Jason-2 Altimetry Programme shall be as described in the EUMETSAT Jason-2 Altimetry Programme Definition attached as Annex I to this Declaration.
- III** That the EUMETSAT Jason-2 Altimetry Programme shall constitute a contribution to the joint Ocean Surface Topography Mission (OSTM) established in conjunction with the Centre National d'Etudes Spatiales (CNES), the United States National Aeronautics and Space Administration (NASA) and the United States National Oceanic and Atmospheric Administration (NOAA).
- IV** That EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) shall be subject to the conclusion of cooperation agreements with the above international partners. The conclusion of any cooperation agreement will require separate approval by the EUMETSAT Council.
- V** That the overall financial envelope for the EUMETSAT Jason-2 Altimetry Programme amounts to a maximum of 30 MEUR at 2001 economic conditions, with an indicative payment profile as contained in Annex II to this Declaration. All efforts shall be made to keep actual expenditure below this figure.
- VI** To participate in the EUMETSAT Jason-2 Altimetry Programme in accordance with a scale of contributions as set out in Annex II to this Declaration.
- VII** To consider, if feasible, a possible extension of EUMETSAT Jason-2 Altimetry Programme operations beyond the 5-year period covered by the EUMETSAT Jason-2 Altimetry Programme Proposal, it being understood that this extension shall require unanimous approval by those EUMETSAT Participating States wishing to continue.

- VIII** To invite the EUMETSAT Member States interested in participating in this EUMETSAT Jason-2 Altimetry Programme to sign this Declaration as soon as possible and no later than 30 November 2002, thereby becoming Participating States.
- IX** To invite EUMETSAT Cooperating States to contribute to the EUMETSAT Jason-2 Altimetry Programme under terms to be agreed by the EUMETSAT Participating States.

This Declaration has been signed by the following Participating States:

Participating State	Date

EUMETSAT JASON-2 ALTIMETRY PROGRAMME DEFINITION

1 GENERAL

The primary objective of the EUMETSAT Jason-2 Altimetry Programme will be to ensure that the EUMETSAT user community continues to receive precise altimetry data on an operational basis. To meet this need, Jason-2 will be an Earth orbiting satellite in a 66° orbit equipped with a radar altimeter and other instruments to directly measure sea surface elevation along a fixed grid of sub-satellite groundtracks. Jason-2 will, for an estimated period of five years, continue the data collection started with Topex/Poseidon and continued with Jason-1. The intention is for EUMETSAT to be an equal partner in the Ocean Surface Topography Mission (OSTM) alongside NOAA, NASA and CNES. Both NASA and CNES have confirmed that a decision by their authorities to proceed with support for OSTM is dependent on the financial involvement of the operational agencies EUMETSAT and NOAA.

2 MISSION OBJECTIVES

The main focus of OSTM is to pursue the unique accuracy, continuity and coverage of the Topex/Poseidon and Jason-1 missions in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and the monitoring of the climate and for describing and understanding the ocean circulation, its variability on all scales, and its influence on climate.

The basic missions to be addressed by OSTM are described below.

2.1 Marine meteorology

The two parameters measured by altimetry that have meteorological applications are wind speed and significant waveheight (SWH). Sea-state is a parameter with rapid short timescale changes of a few hours. Sea-state prediction models are forced by NWP forecasts of surface winds, but dense and frequent measurements on short time-scales are needed to constrain the models efficiently, and this is beyond the scope of in-situ networks. Real time wind speed and SWH as measured by the Jason-2 altimeter will be of value in data assimilation into models. Operational systems are already running in several meteorological centres providing reliable 12-24 hours forecasts.

2.2 Mesoscale oceanography

Three dimensional mesoscale structures have horizontal spatial scales of 30-300 km and time-scales of 20-90 days. They are mainly associated with the formation and propagation of eddies which are very energetic, have a key role in heat transport from low to high latitudes, and need to be forecast to support fisheries and other applications.

2.3 Seasonal Forecasts and Climate

Seasonal and Interannual variability is known to be significantly impacted by the El Niño and this has a consequential impact on a wide range of economic and social activities of countries affected by these events. To date altimetric data assimilation runs have significantly improved the quality of the seasonal and interannual forecasting (6 months to 1 year in advance), and Jason-2 will continue to contribute and enhance this service.

OSTM will have a major contribution to the observation of large spatial variability (intra-seasonal to interannual) thanks to the expected low error budget and a very precise orbit determination. The OSTM observations will allow an improved characterisation of the seasonal cycle and its geographic dependence as well as better understanding of the associated ocean-atmosphere interactions. The accurate knowledge of the seasonal cycle is especially important to evaluate and to adjust at a first order the ocean models and climate models. OSTM will also continue to contribute to our understanding of mean sea level trends

2.4 Other Applications

Altimetry is also useful for many applications in geodesy, geophysics, glaciology and hydrology.

The observations from OSTM will continue to contribute to our improved knowledge of tides. Water vapour content as measured by the radiometers on-board altimetric satellites can be useful to monitor atmosphere characteristics in the troposphere and to constrain operational weather models. Precipitation is another parameter that may be derived from the dual-frequency radar altimeter and the radiometer and be used by meteorologists to complete their data sets.

Despite the inappropriate technical design and orbit geometry, interesting results have been obtained with Topex/Poseidon data by scientists studying sea-ice, enclosed seas, lakes, large rivers and flat continental topography.

3 OCEAN SURFACE TOPOGRAPHY MISSION (OSTM) SYSTEM DESCRIPTION

3.1 Overview

The OSTM end to end system includes a satellite, launch, and a full ground system. The task sharing between the four partners will ensure a coherent overall system. The overall system described below is the total system that will be jointly provided by the four partners. Section 4 deals with the specific EUMETSAT activities.

3.2 Space Segment

The Jason-2 payload consists of a:

- Two-frequency altimeter called Poseidon-2 and its antenna
- Three-frequency radiometer and its antenna
- Doppler Orbitography and Radiopositioning Integrated by Satellite (Doris) on board package;
- Laser retroreflector array;
- Turbo Rogue Space Receiver (TRSR) GPS space receiver and up to two (2) antennas.

The Jason-2 satellite bus will be the PROTEUS (Plateforme Reconfigurable pour l'Observation de la terre, les Telecommunications et les Utilisations Scientifiques) platform developed for Jason-1.

NASA will provide the launch of the Jason-2 satellite.

3.3 Ground System Description

The ground system consists of a control ground system and a mission ground system distributed between the US and Europe and between the four partners.

3.3.1 Control Ground System

The Control Ground System comprises:

- a. **A Satellite Control Centre (SCC)** located in Toulouse to monitor the satellite during the complete mission lifetime. Satellite control and operations are also executed from this centre until the end of the assessment phase.
- b. **A Project Operation Control Centre (POCC)** expected to be located in Pasadena California under NOAA/NASA control. This centre will be operational from the end of the assessment phase and will control the satellite and the associated instruments for the remainder of the mission.
- c. **An Earth Terminal Network** to provide command transmission and data acquisition. There will be at least three Earth Terminals, one of which will be in Europe to provide global coverage.

3.3.2 Mission Ground System

The Mission Ground System comprises:

- a. **The EUMETSAT Mission Centre(EMC)** to provide:
 - Data reception and primary processing for real time products;
 - User interfaces;
 - Real time data distribution and archiving.

b. **The CNES Mission System Centre** comprises the Segment Sol Multimission Altimétrie et Orbitographie (SSALTO) and a DORIS system beacon network. The functions are:

- Instrument programming and monitoring (altimeter and DORIS)
- Commands requests generation (altimeter and DORIS)
- Mission management and operation plan definition
- Precise Orbit Determination (POD)
- Algorithm definition and POD data production and validation
- Offline altimeter data processing and validation of altimetry product
- Offline data distribution and archiving
- Network of ground beacons

c. **A NASA/NOAA Mission Centre** (expected to be part of the JPL POCC) whose functions are:

- Instrument programming and monitoring (Radiometer and TRSR)
- Command requests generation (Radiometer and TRSR).
- Offline altimeter data processing and validation of altimetry product in parallel with the EUMETSAT, CNES mission centre
- Real Time altimeter data processing
- Real time and offline data distribution and archiving

3.4 Data Products and Services

3.4.1 Geophysical Products

The basic data services proposed for OSTM are a continuation of the services provided for Jason-1. The products are:

- **A three hour real time Operational Sensor Data Record (OSDR)**, mainly for marine meteorological applications. The aim is to have 75% of the data available within three hours and 95% within five hours, but every effort will be made to improve upon this aim for European regional data. The wind wave accuracy will be better than 2m/s or 10% with an orbit accuracy of better than 50cm and a range accuracy of better than 4.5cm.
- **A three day Interim Geophysical Data Record (IGDR)** for oceanography. The aim is to have 95% of the products available. The wind wave accuracy will be better than 1.7m/s or 10% with an orbit accuracy of better than 4cm and a range accuracy of better than 3.3cm.
- **A thirty day Geophysical Data Record (GDR)** for off-line science. The wind wave accuracy will be better than 1.7m/s or 10% with an orbit accuracy of better than 2cm and a range accuracy of better than 3.3cm.

3.4.2 Other Products

In addition there will be a set of specialist products, such as the combined products making effective use of OSTM and Envisat altimetry data, designed for expert users who wish to undertake certain analysis. These primarily concern orbit parameters and cross over products as well as the radiometer data.

3.4.3 Data Dissemination

The OSDR will be distributed using the GTS network, and such other networks (e.g. the World Wide Web) as may be agreed by EUMETSAT Participating States. EUMETSAT will be responsible for receiving data within Europe and making the data available to users on a routine basis in a way that ensures all EUMETSAT Participating States gain access to them in an optimum manner. NOAA/NASA will have a similar responsibility within the USA.

The IGDR will be distributed using the GTS network, and such other networks (e.g. the World Wide Web) as may be available. Within Europe the primary centre for processing the IGDR will be the SSALTO based in Toulouse. They will receive and archive all the data from both the European and US based Earth Terminals.

Within Europe the primary centre for processing and distributing the GDR will be the SSALTO based in Toulouse. They will receive and archive all the data from both the European and US based Earth Terminals. These data will be available on request.

3.4.4 Data Policy

It is recommended that all data available through this programme be made available in accordance with WMO Resolution 40 (Cg-XII) and that all OSTM data are classified as “essential”.

4 THE EUMETSAT JASON-2 ALTIMETRY PROGRAMME CONTENT

The EUMETSAT Jason-2 Altimetry Programme covers the EUMETSAT contribution to the US-European OSTM and aims at providing a five-year OSTM operational data service to Member States and other users. The main elements of the EUMETSAT Programme are:

- a.** A financial contribution by EUMETSAT to CNES. This, along with the CNES, NASA, and NOAA funds will ensure the supply of the satellite, launcher and all ground segment and operations not specifically provided by EUMETSAT
- b.** Acquisition, installation, operations and maintenance of a EUMETSAT Earth Terminal to receive data from the satellite and uplink the commands to the satellite. The preferred location is Darmstadt.
- c.** The algorithms for the processing of the real time data in EUMETSAT will be provided by the SSALTO based on the Jason-1 activities. Associated with this will be the need for a computing hardware and data dissemination chain.

d. The operational role of EUMETSAT shall be to:

- Receive via the EUMETSAT Earth Terminal all data scheduled for reception in Europe;
- Process these raw data to produce the OSDR products;
- Transmit all the received raw data to the SSALTO and the NASA/NOAA Mission Centre for archiving and offline processing;
- Receive the OSDR products generated in the US from their reception site (TBC);
- Distribute the OSDR products to users;
- Maintain a rolling archive to ensure data are safely archived at the long term archives;
- Provide a user interface for enquiries on data formats, quality availability etc;
- Contribute to activities related to scientific Announcements of Opportunity and visiting scientists;
- Engage in other activities as agreed, to optimise the data service provided to EUMETSAT Member States and other users.

e. Management of the Cooperation with CNES, and the US partners.

5 IMPLEMENTATION

OSTM is a four party activity with clear and distinct responsibilities being allocated to each party. A four party Memorandum of Understanding and associated bilateral Agreements will set out these roles in detail.

An OSTM Joint Steering Group (OSG) will be established to provide direction and to review project implementation status. The OSG will establish a Project Plan. This plan will contain detailed statements as to how the cooperative project is to be carried out. It will include all aspects of the mission. This Project Plan will form the basis for the EUMETSAT/CNES activities.

Each party will also establish its own OSTM Project Office to provide for its project planning and management. Each office will be responsible for ensuring that its role is fulfilled.

EUMETSAT will implement the EUMETSAT Jason-2 Altimetry Programme in a single slice. Jason-2 has to be ready for launch in December 2004. The actual launch date is dependent upon the successful launch and operations of Jason-1. The expected period of operations of 5 years. It is intended that agreement will be sought to extend operations if the performance of the satellite remains satisfactory towards the end of this period. This will require a separate decision by all EUMETSAT Participating States wishing to continue.

EUMETSAT JASON-2 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

PARTICIPATING STATE	CONTRIBUTION ¹ %
Austria	[0 – 2.44]
Belgium	[2.91]
Denmark	[1.91]
Finland	[0 – 1.35]
France	[16.48]
Germany	[0 – 25.30]
Ireland	[0.72]
Italy	[0 – 12.60]
Netherlands	[4.45]
Norway	[1.66]
Portugal	[1.18]
Spain	[0 – 6.37]
Sweden	[2.62]
Switzerland	[3.29]
United Kingdom	[0 - 13.33]
Shortfall	[64.77 – 3.38]
TOTAL	[100.00]

¹ The above scale of contributions is indicative. A definitive scale of contributions will be established on the basis of the final indications by Participating Member States when signing the Declaration.

EUMETSAT JASON-2 ALTIMETRY PROGRAMME
VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

PARTICIPATING STATE	% voting coefficient
Austria	
Belgium	
Denmark	
Finland	
France	
Germany	
Ireland	
Italy	
Netherlands	
Norway	
Portugal	
Spain	
Sweden	
Switzerland	
United Kingdom	
TOTAL	100.00

RESOLUTION ON
THE EXTENSION OF THE METEOSAT TRANSITION PROGRAMME
(MTP)

Adopted at the 50th Meeting of the EUMETSAT Council
on 24-25 June 2002

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites,

CONSIDERING that the MTP Programme was set up to ensure a continuous operational service to provide data from geostationary satellites, and to fill the gap between the Meteosat Operational Programme (MOP) and the Meteosat Second Generation Programme (MSG),

NOTING that the MTP Programme, established through Resolution EUM/C/Res. XXVII in November 1990, was extended through Resolution EUM/C/97/Res. VII in November 1997, in accordance to which the MTP Programme was extended until at least 31 December 2004, in order to cover the extension of the MTP operational service at least until 31 December 2003 and its subsequent close-out activities,

TAKING INTO ACCOUNT that the launch of the first MSG satellite is currently scheduled for summer 2002, and that it is unlikely that the MSG system will be ready to provide an operational system before mid 2003,

TAKING INTO ACCOUNT that the MSG system will not provide for a hot backup until mid-2005,

TAKING INTO ACCOUNT that the Meteosat 0° Longitude dissemination services are required to continue for a period of time that allows completion of migration to HRUDS/LRUS user stations both in Europe and outside,

WISHING to ensure a continuation of the Meteosat Indian Ocean Data Coverage (IODC) services until a viable alternative for providing equivalent operational data to Member States is established,

REQUIRING therefore an overlap period with parallel MTP and MSG Operations,

AGREE:

- I** To extend the MTP Programme at least until 31 December 2006, in order to cover the extension of the MTP operational service at least until 31 December 2005, and subsequent close-out activities in 2006.
- II** To limit the funding of the extension of the Meteosat Transition Programme to stay within the overall programme envelope of MEUR 280 at 1989 economic conditions.

RESOLUTION ON
PROCUREMENT OF ADDITIONAL OBSOLESCEMENT AND
LONG-LEAD ITEMS FOR THE METEOSAT SECOND
GENERATION (MSG) PROGRAMME AND MSG FOLLOW-ON

Adopted at the 51st Meeting of the EUMETSAT Council
on 26-27 November 2002

The EUMETSAT Member States,

RECALLING Resolution EUM/C/92/Res. VI on the MSG Programme, formally adopted at the 24th meeting of the EUMETSAT Council in November 1993, which includes the manufacture of 3 MSG Satellites,

RECALLING the Agreement with ESA signed in October 1996, which establishes ESA as EUMETSAT's Procurement Agent for the MSG Second and Third Satellites,

RECALLING that, under the above Agreement, ESA shall ensure availability of equipment spares and other items left over from MSG-1, to the extent that they are not consumed under the MSG-1 Programme,

NOTING that Article 8 of the above Agreement with ESA establishes an Agreement Change Notice (ACN) procedure for activities not covered by the limit of financial liability defined in the Agreement,

WISHING to ensure continuity of the EUMETSAT operational geostationary services,

RECOGNISING that this requires the procurement of a fourth MSG recurrent satellite, expected to be covered by an extension of the MSG Programme,

RECALLING that the 45th Council approved the two Procurement Proposals for the purpose of obtaining cost estimates for the procurement of a fully recurrent MSG-4 satellite, these costs to be used for the preparation of a detailed proposal to Council for the extension of the MSG Programme,

TAKING INTO ACCOUNT that Council, at its 42nd meeting, approved Resolution EUM/C/99/Res.III on Procurement of Critical Long Lead Items for the MSG Programme under the 1999 Budget within a maximum Limit of Liability (LOL) of 1.5 MEUR at 1999 economic conditions within the MSG Programme financial envelope,

TAKING INTO ACCOUNT that Council, at its 43rd meeting, approved Resolution EUM/C/99/Res.IV on Procurement of Critical Long Lead Items for MSG Follow-On under the 1999 and 2000 budgets within a maximum Limit of Liability (LOL) of 3.5 MEUR at 1999 economic conditions within the ceiling of the General Budget,

TAKING INTO ACCOUNT that Council, at its 45th meeting, approved Resolution EUM/C/00/Res.I on Procurement of Obsolete Parts for the MSG Follow-On under the 1999, 2000, 2001 and 2002 budgets within a maximum limit of liability (LOL) of 10.9 MEUR Firm Fixed Price (FFP) of which an amount of 7.4 MEUR were within the MSG Programme financial envelope and the remaining 3.5 MEUR within the relevant ceiling of the General Budget,

TAKING INTO ACCOUNT that Council, at its 49th meeting, approved Resolution EUM/C/01/Res.VI on Procurement of SEVIRI Mirrors and Obsolete Parts for the Meteosat Second Generation (MSG) Programme and MSG Follow-on under the 2002 and 2003 budgets within a maximum limit of liability (LOL) of 4.4 MEUR Firm Fixed Price (FFP) within the MSG Programme financial envelope,

CONSIDERING the planned start of MSG-4 activities, the industrial re-start costs associated with the discontinuity of the existing contractors and the severe implications associated with an inefficient satellite schedule, with resulting risks affecting both the MSG-3 de-storage and the planned procurement of MSG-4.

TAKING INTO ACCOUNT that the necessary Commitment Appropriations and Payment Appropriations for the procurement are available within the EUMETSAT Budgets in 2002 and 2003,

AGREE:

- I** To authorise the procurement of additional obsolescent and long lead items within a limit to EUMETSAT of MEUR 7.1 (Firm Fixed Price) in order to preserve the possibility to procure one additional MSG satellite at a competitive price, also protecting the existing Programme.
- II** To authorise related expenditures from the MSG budget envelope, of MEUR 7.1, with the expectation that the required funds will ultimately be accounted against the planned extension of the MSG Programme.
- III** That the Director General shall request ESA to carry out this procurement under an Agreement Change Notice (ACN) to the Agreement between EUMETSAT and ESA concerning the MSG second and third satellites.
- IV** That the payments to ESA in 2002 and 2003 for obsolete parts procurements shall be paid from funds available within the 2002 and 2003 MSG Budgets and the EUMETSAT treasury.
- V** That the Secretariat will report on a regular basis on the status of the procurement of obsolete parts under the agreed ceiling.

RESOLUTION ON
THE EXTENSION OF THE TIMEFRAME FOR SIGNATURE
OF THE OPTIONAL JASON-2 PROGRAMME DECLARATION

Adopted by the Potential Participating States
on 26-27 November 2002

The Potential Participating States,

TAKING INTO ACCOUNT that 16 Member States have indicated their interest in participating in the Optional Jason-2 Programme (Austria, Belgium, Denmark, Finland, France, Germany, Ireland, Italy, Luxembourg, Norway, Netherlands, Portugal, Spain, Sweden, Switzerland, United Kingdom),

TAKING INTO ACCOUNT the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001,

TAKING INTO ACCOUNT that the Declaration was approved by the EUMETSAT Council at its 49th meeting on 4-5 December 2001 through Enabling Resolution EUM/C/01/Res. VII on the Optional EUMETSAT Jason-2 Altimetry Programme,

NOTING that the above Declaration invites the EUMETSAT Member States interested in participating in the EUMETSAT Jason-2 Altimetry Programme to sign the Declaration as soon as possible and no later than 30 November 2002, thereby becoming Participating States,

AWARE that nine out of the 16 Potential Participating States have signed the Declaration by 27 November 2002 (Belgium, Finland, France, Germany (ad ref.), Ireland, Italy, The Netherlands, Norway, Switzerland),

NOTING that the remaining Potential Participating States will make every effort to sign the Declaration in the near future,

HAVING DUE REGARD to Articles 3.2 and 5.3 of the Convention,

AGREE:

- I** To extend the timeframe for signature of the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme set out in AGREE VIII of the Declaration until *30 June 2003*.
- II** That if the Declaration has not entered into force by *30 June 2003* the Potential Participating States will decide on the action to be taken.

RESOLUTION ON
THE METEOSAT SECOND GENERATION PROGRAMME EXTENSION

**Presented for adoption at the 52nd Meeting of the EUMETSAT Council
on 4 March 2003**

**Adopted at the 55th Meeting of the EUMETSAT Council
on 22-23 June 2004**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/92/Res. VI establishing the Meteosat Second Generation (MSG) Programme, formally adopted at the 24th meeting of the EUMETSAT Council on 23-25 November 1993,

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

TAKING INTO ACCOUNT that MSG is a mandatory EUMETSAT programme to which all Member States contribute on the basis of a GNI based scale of contributions,

TAKING INTO ACCOUNT that the MSG Programme includes the procurement, launch and operations of three MSG satellites, and that MSG operations are expected to last until 2014,

TAKING INTO ACCOUNT the essential need to preserve continuity of the EUMETSAT Geostationary service beyond the third MSG satellite,

TAKING INTO ACCOUNT EUMETSAT's basic policy to maintain a back-up satellite in orbit at all times,

AWARE that, in order to preserve continuity and the concept of in-orbit back-up, there will be a need to have a fourth MSG satellite ready for launch in 2010,

BEARING IN MIND the procurement of critical long lead items and obsolescent parts already agreed under Resolutions EUM/C/99/Res. IV, EUM/C/00/Res. I, EUM/C/01/Res. VI, EUM/C/02/Res. II,

NOTING that the EUMETSAT Council, at its 50th meeting, agreed that, as a goal, the planning of MSG launches should maintain the availability of the MSG system above the threshold of 90%, and that Council at the same meeting agreed indicative launch

dates for MSG-3 and MSG-4 with the understanding that it would decide actual launch dates in due time having considered the in-orbit status of MSG satellites,

CONSCIOUS that the schedule constraints do not allow for sufficient time to specify, design and build a new generation satellite system, in a timeframe compatible with the required availability and continuity of the operational geostationary service,

WISHING to ensure a cost-effective procurement of the MSG follow-on satellite by ensuring the maximum possible synergy with the procurement of the MSG-1, -2 and -3 satellites,

CONVINCED that an extension of the MSG Programme by a fourth MSG satellite is the optimum approach for the continuity of a reliable EUMETSAT operational geostationary service and for the transition towards a new generation system,

PLANNING to take the necessary steps to replace the MSG satellites beyond the fourth MSG satellite by a new generation system in due course,

TAKING INTO ACCOUNT the Programme Proposal for the Extension of the MSG Programme contained in document EUM/C/52/03/DOC/4,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention,

AGREE:

- I** To extend the MSG Programme to cover the following additional elements:
- a) The procurement of an MSG-4 satellite with the same capability as MSG-1, -2 and -3, including a geostationary Search and Rescue Transponder (GEOSAR),
 - b) the procurement of a fourth GERB instrument and related data services through the British Council for the Central Laboratory of the Research Councils (CLRC/RAL),
 - c) the procurement of the associated launch and LEOP services,
 - d) satellite procurement support from ESA, to be covered by an Agreement,
 - e) EUMETSAT internal management and support activities,
 - f) the necessary maintenance and upgrades of the MSG Ground Segment,
 - g) extended MSG system operations and maintenance, including GERB operations, lasting until at least 2018.
- II** That the overall MSG Programme financial envelope shall be increased from MEUR 1282 at 2003 economic conditions to MEUR 1673 at 2003 economic conditions (equivalent to an increase from MEUR 1035 at 1992 economic conditions to MEUR 1330 at 1992 economic conditions).
- III** That the indicative MSG expenditure profile shall be amended as shown in the Programme Proposal for the Extension of the MSG Programme.

- IV** That the MSG System Description and Implementation Plan described in document EUM/C/92/49 Rev. 4 shall be amended and replaced by the Programme Definition as shown in the Annex to this Resolution.
- V** That the 10% cost overrun provision contained in Resolution EUM/C/92/Res. VI shall be replaced by the standard provision contained in Article 10.3 of the Convention.
- VI** That all other elements of the MSG Programme Resolution shall remain valid and in force.

METEOSAT SECOND GENERATION PROGRAMME INCLUDING EXTENSION FOR MSG-4

PROGRAMME DEFINITION

1 MISSIONS

The Meteosat Second Generation (MSG) Programme will provide for the development, demonstration and operation of a new system of geostationary meteorological satellites. This system will be designed for the continuation and upgrade of meteorological observations from the geostationary orbit over Europe and Africa and adjacent oceanic areas after the end of the Meteosat Transition Programme (MTP), from 2003 until 2018. Accordingly, the following missions have been defined.

a) The Multispectral Imaging Mission

The multispectral imaging mission will exploit atmospheric windows to provide images of clouds and land/sea surfaces. The use of a radiometer with channels having spectral characteristics similar to those of the AVHRR flown on the US polar orbiting satellites is required for consistency, with the advantage of more frequent observations.

b) The Air Mass Analysis Mission

The air mass analysis mission will be used to monitor the thermodynamic characteristics of the atmosphere. The additional spectral channels to be used will be responsive in the water vapour, carbon dioxide and ozone absorption bands. Their spectral characteristics have been selected based on experience gained in Meteosat and GOES-VAS operations.

c) The High Resolution Imaging Mission

The high resolution visible imaging mission will be used to monitor small scale features such as convective cloud evolution, with a resolution at nadir of approximately 1 km. It will use a channel in the same visible band as the existing Meteosat.

d) The Product Extraction Mission

The product extraction mission will derive meteorological and other products from the basic image data. Its outputs will provide information pertinent to products such as:

- winds,
- sea and land surface temperatures,
- air mass instability indices,
- cloud description,
- fog,
- albedo,
- vegetation indices,
- precipitable water,
- tropopause height and structure,
- climate data sets, etc...

It will rely on the existing expertise within EUMETSAT Member States.

e) The Data Collection Mission

The data collection mission will continue the collection of environmental data from data collection platform.

f) The Dissemination Mission

The dissemination mission will provide image data and meteorological data to the user community. A primary objective of the mission is to deliver selected image data for nowcasting within a few minutes of the end of acquisition of each image, because the timeliness of data delivery is of the utmost importance. Access to dissemination links will be controlled through the employment of encryption schemes by EUMETSAT.

The dissemination mission will operate in two distinct modes:

- i) a High Rate Information Transmission (HRIT) mode, disseminating at least the full set of image data on the European area and a reduced set on the southern part of the Earth disk, together with other data, to major users and to product extraction centres having access to the appropriate receiving stations.
- ii) a Low Rate Information Transmission (LRIT) mode, disseminating a reduced set of image and other data, to users operating lower cost receiving stations.

The Meteorological Data Distribution (MDD) Mission and the Data Collection Platform Relay Service (DCPRS) of the first generation Meteosat programmes will be integrated with the MSG dissemination mission.

- g)** The MSG system may support additional operational or research missions not affecting the performance of the main missions, provided they do not have a significant impact on overall system complexity and **they are not cost drivers and are affordable to EUMETSAT**. Such missions could include a Search and Rescue support capability and/or a dedicated instrument for monitoring components of the Earth Radiation Budget (**GERB**).

2 THE MSG SYSTEM

2.1 Space Segment

The space segment of the Meteosat Second Generation system will be based on a series of **four** spin-stabilised satellites of an advanced design with the following payload:

- a) The Spinning Enhanced Visible and Infra-Red Imaging radiometer (SEVIRI), supporting the multispectral imaging, air mass analysis and high resolution visible imaging missions. The SEVIRI will use 12 channels, as follows:
 - seven imaging channels within the visible band and the infra-red windows,
 - four channels to measure infra-red emissions within the water vapour, carbon dioxide and ozone bands,

- one broad band visible channel at finer spatial resolution.

The sampling distance of the SEVIRI will be 3 km at sub satellite point, except for the broad band visible channel, for which it will be 1 km. Full Earth images in all these spectral channels will be produced at 15-minute intervals.

- b) The Geostationary Meteorological Communication Payload (GMCP), supporting the data dissemination and the data collection missions.
- c) Additional payloads (to the extent that these can be accommodated without significant impact on satellite size or complexity and **that they are not cost drivers and are affordable** to EUMETSAT), such as a small Scientific Instrument and/or a Geostationary Search and Rescue (GEOSAR) transponder **and/or GERB**.

2.2 Ground Segment

The Meteosat Second Generation ground segment will consist of a network of ground based facilities, established with the need of long term continuity in mind, with a central node located at the EUMETSAT Headquarters.

2.2.1 EUMETSAT System Ground Segment

- a) A Primary Ground Station (PGS), under the control of the satellite operator (EUMETSAT), for the acquisition of telemetry and raw instrument data and for the support of general system operations.
- b) A Back-up Ground Station (BGS) for emergency command operations, which could be co-located with an SGS or located at a station with existing satellite control functions.
- c) One or more Support Ground Stations (SGS) to be used for the acquisition and pre-processing of data from other meteorological satellites and their relay to the Central Facility.
- d) A Central Facility at the EUMETSAT Headquarters, for satellite and mission control, as well as for processing the raw image data from the satellites into level 1.5 data to be made available to users, and including three main functional elements:
 - i) Satellite Control Centre (SCC),
 - ii) Mission Control Centre (MSS),
 - iii) Data Processing Centre (DPC) in support of the imaging missions and data circulation.
- e) A MSG Archive and Retrieval capability, part of the Unified Meteorological Archive and Retrieval Facility (U-MARF), for the long-term archive and retrieval of the image data, and some meteorological products. The configuration and location (which may be distributed) are to be determined.

2.2.2 EUMETSAT Applications Ground Segment

The applications ground segment will include all the ground infrastructure involved in product extraction from image data:

- a) A Meteorological Products Extraction Facility (MPEF) shall be established in the EUMETSAT Headquarters and shall perform centralized control and management tasks to achieve control over the availability of agreed key products as well as those mature processing tasks which are not strongly dependent upon user interaction. Typically the tasks of the MPEF will consist of the operational production at synoptic scale (grid size around 100 km) of products such as wind vectors and (multipurpose) cluster analyses based upon multi-spectral processing of the complete image data, as a basis for products mentioned in paragraph 1 d).
- b) A network of Satellite Application Facilities (SAF), located at national weather services of EUMETSAT Member States or other agreed entities linked to a user community, such as ECMWF, for the extraction of products outside the scope of the MPEF. The nature of these products will be agreed by Council following analysis of user requirements. The implementation of each SAF will be the subject of a competitive Announcement of Opportunity and subsequent **agreements** covering relevant research and development as well as agreed operations.

The further refinement of the list of the products to be extracted from MSG images is a key activity during the detailed system definition phase (phase B), as is the elaboration of the criteria and procedures for allocation to MPEF and SAFs.

2.2.3 User Ground Segment

Receive-only ground stations will be operated by the users to acquire the data disseminated through the MSG System:

- a) High Rate User Stations (HRUS), for the acquisition of data through the High Rate Information Transmission (HRIT) scheme,
- b) Low Rate User Stations (LRUS), for the acquisition of data through the Low Rate Information Transmission (LRIT) scheme.

The transmission of raw instrument data from the satellite towards the Earth is not part of the MSG dissemination mission. However, if a Member State decides to procure a station capable of receiving the raw image data, then the Member State shall have timely access to the relevant image processing parameters derived at the central site, in accordance with the provisions of the EUMETSAT Data Policy.

3 PROGRAMME CONTENT

The MSG system will be implemented in co-operation with the European Space Agency. The EUMETSAT MSG programme will include the following tasks:

- a) A fixed financial contribution to the ESA MSG Programme (with participation in the detailed definition, design, development and demonstration of the MSG prototype satellite MSG-1).
- b) Procurement of the launcher for the MSG prototype satellite MSG-1, ready for a target launch date of mid-2000.
- c) Detailed definition of the ground segment, for a final decision by Council on the ground facilities network configuration.
- d) Development, procurement and test of the ground segment for the operations of the MSG system.
- e) System commissioning following the launch of MSG-1.
- f) Provision and launch of **three** additional flight models:
 - i) MSG-2 to be ready for launch within 18 months of the launch of MSG-1,
 - ii) MSG-3 and MSG-4 to be ready for launch **as required to keep predicted MSG system availability above the 90% threshold.**
- g) System operations for a period of at least **15** years after the commissioning of MSG-1.

4 IMPLEMENTATION PLAN

The Programme will be implemented in two slices:

- a) The first slice, or MSG demonstration slice, includes the fixed financial contribution to the ESA prototype development programme, the procurement of a launcher for the prototype, the development and procurement of the ground segment, and the system commissioning [items a) to e) under 3]. This slice will start in 1993 and end in **2003**.
- b) The second slice, or MSG operational slice, includes the procurement and launch of **three** further satellites and systems operations for at least **15** years, from **2002 until 2018** [items f) and g) under 3].

RESOLUTION ON
THE PRELIMINARY START OF MSG-4 INDUSTRIAL ACTIVITIES

**Adopted at the 52nd Meeting of the EUMETSAT Council
on 4 March 2003**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/92/Res. VI establishing the Meteosat Second Generation (MSG) Programme, formally adopted at the 24th meeting of the EUMETSAT Council on 23-25 November 1993,

TAKING INTO ACCOUNT that the MSG Programme includes the procurement, launch and operation of three MSG satellites,

TAKING INTO ACCOUNT that MSG is a mandatory EUMETSAT programme to which all Member States contribute on the basis of a GNI based scale of contributions,

TAKING INTO ACCOUNT that the overall MSG Programme envelope currently amounts to MEUR 1,035 at 1992 economic conditions,

CONSIDERING that the EUMETSAT Council, at its 52nd meeting on 4 March 2003, unanimously agreed on the contents of the programme proposal for the extension of the MSG Programme as contained in document EUM/C/52/03/DOC/04,

CONSIDERING that the MSG Programme extension covers, i.a., the procurement of a fourth MSG satellite with the same capabilities as MSG-1, -2 and -3, and an extension of the MSG Programme envelope by MEUR 391 at 2003 economic conditions,

NOTING that the EUMETSAT Council, at its 52nd meeting, unanimously agreed to open the voting on Resolution EUM/C/03/Res. I on the Meteosat Second Generation Programme Extension,

NOTING that, although all Member States have voted in favour of the above Resolution, the votes of 9 Member States are conditional with regard to the finalisation of national approval procedures, and that the Resolution will only formally enter into force upon approval by all Member States,

FIRMLY EXPECTING that the formal entry into force of the Resolution on the MSG Programme Extension will take place, at the latest, by 30 November 2003,

NOTING that a draft agreement covering ESA's role as EUMETSAT procurement agent for MSG-4 has been finalised and is ready for signature,

RECOGNISING the need for EUMETSAT to fund preliminary critical industrial activities relating to the procurement of MSG-4 in order to safeguard the schedule and cost established in the MSG Extension Programme Proposal,

NOTING that Resolution EUM/C/92/Res. VI on the MSG Programme allows, by a vote representing at least two-thirds of the Member States present and voting, representing also at least two-thirds of the total amount of contributions, to approve possible cost-overruns of up to 10 % of the overall programme envelope, and that the costs related to the activities proposed in this Resolution remains below such 10%,

NOTING that all Member States desire to retain the integrity of the industrial offers by an early start of the preliminary industrial activities and have voted in favour of this Resolution, but that 9 Member States (Austria, Germany, Greece, Luxembourg, Netherlands, Spain, Sweden, Turkey, United Kingdom) have qualified their positive votes by an ad referendum, the other Member States, however, being willing to let activities proceed as long as unconditional votes represent at least 70% of the amounts covered by this Resolution,

NOTING that the United Kingdom is expecting to be able to partially lift its ad referendum on this Resolution by 31 March 2003 for an amount corresponding to 6.5% of the total amounts covered by this Resolution,

AGREE:

- I** That preliminary industrial activities aiming at securing the possibility of ultimately procuring a fourth MSG Satellite and a fourth GERB instrument are undertaken within a ceiling of MEUR 102 at 2003 economic conditions.
- II** That the above ceiling will cover the cost of ESA, industrial and RAL activities from 1 April 2003 until 30 June 2004.
- III** That ESA will be requested to start the necessary MSG 4 activities through a Preliminary Authorisation to Proceed (PATP) to industry within an overall limit of liability of a maximum of MEUR 98 at 2003 economic conditions, it being understood that the draft Cooperation Agreement with ESA on MSG-4 shall apply mutatis mutandis to all initial activities.
- IV** That RAL will be requested to start the necessary GERB-4 activities through a PATP within an overall limit of liability of a maximum of MEUR 4 at 2003 economic conditions, it being understood that the draft Cooperation Agreement with RAL on GERB-4 shall apply mutatis mutandis to all initial activities.
- V** That a condition for the request to ESA and RAL to initiate the above preliminary activities shall be that the contributions corresponding to those Member States having agreed unconditionally to this Resolution amount to at least 70% of the total amount of the PATP by the end of March 2003.

- VI** That in the PATPs thus released to ESA and RAL those amounts corresponding to those Member States that will not have yet made their vote unconditional shall be blocked (CA and PA) and shall be successively released by EUMETSAT as and when the individual Member States lift their ad referendum.
- VII** To unblock MEUR 102 Commitment Appropriations and MEUR 20 Payment Appropriations foreseen for “MSG-4” in the EUMETSAT Budget 2003 and to transfer Payment Appropriations of MEUR 13.7 from the MSG budget for use for “MSG-4”.
- VIII** As a result of the above “unblocking”, to call up a total of MEUR 7.7 from Member States and KEUR 93 from Cooperating States. The call-up for these contributions shall be made on 1st July 2003 and the contributions will be payable as soon as possible, but not later than 31st December 2003. For contributions paid until 20 January 2004, no interest for late payment shall be charged.
- IX** That Austria, Germany, Greece, Luxembourg, Netherlands, Spain, Sweden, Turkey and the United Kingdom will be legally obliged to contribute financially to the preliminary start of MSG-4 activities only after finalisation of national approval procedures, and that their contributions would only become due 30 days after notification hereof, but not earlier than 31 December 2003.
- X** That the United Kingdom shall be free to lift its ad referendum on this Resolution in two steps, the first expected to occur by 31 March 2003 and corresponding to a contribution of 6.5% of the total amounts covered by this Resolution, the remainder (9.73%) expected to be released within 12 months.
- XI** That in the budget 2003 an amount corresponding to the CA and PA of Austria, Germany, Greece, Luxembourg, Netherlands, Spain, Sweden, Turkey and the United Kingdom remains blocked until the finalisation of national approval procedures has been notified to the EUMETSAT Secretariat.
- XII** That the activities and financial commitments undertaken by EUMETSAT in the context of this Resolution will, in the end, be wholly subsumed within the extended overall MSG Programme envelope.
- XIII** That the PATPs covered by this Resolution will automatically terminate on 30 June 2004 if, at that time, the full approval of the Resolution on the MSG Programme Extension has not been achieved. In such a case, only termination and run down costs shall accrue in the period after 30 June 2004 and those Member States who have agreed unconditionally to contribute to the preliminary start of MSG-4 activities will decide on the action to be taken.

RESOLUTION ON
FURTHER SUBSCRIPTIONS TO THE
OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

Adopted by the Potential Participating States on 25 June 2003

The Potential Participating States,

TAKING INTO ACCOUNT that 16 Member States have indicated their interest in participating in the Optional Jason-2 Programme (Belgium, Denmark, Finland, France, Germany, Greece, Ireland, Italy, Luxembourg, Netherlands, Norway, Portugal, Spain, Sweden, Switzerland, United Kingdom),

TAKING INTO ACCOUNT the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001,

TAKING INTO ACCOUNT that the Declaration was approved by the EUMETSAT Council at its 49th meeting on 4-5 December 2001 through Enabling Resolution EUM/C/01/Res. VII on the Optional EUMETSAT Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT that, in accordance with Article 3.2 of the Convention the Optional EUMETSAT Jason-2 Altimetry Programme will only enter into force once 90% of the total financial envelope has been subscribed,

AWARE that 13 out of 16 Potential Participating States have subscribed the Declaration by 25 June 2003 (Belgium, Denmark (ad referendum), Finland, France, Germany, Ireland, Italy, Netherlands, Norway, Spain, Sweden, Switzerland, United Kingdom (ad referendum), and that there are indications that the 90% of the funding required for an entry into force of the Programme is expected to be reached in the very near future,

AWARE that Greece during the 53rd Council, indicated its willingness to participate in the Programme (ad referendum), with a contribution up to 1.38%,

CONSCIOUS that the Optional EUMETSAT Jason-2 Altimetry Programme might enter into force without being fully subscribed,

HAVING DUE REGARD to Articles 3.2, 5.3(c), and 10.5 of the Convention,

UNANIMOUSLY AGREE:

- I** After entry into force of the Optional Jason-2 Programme, to continue to accept further subscriptions by Member States until the level of 100% of the total financial envelope is reached.
- II** To reconsider the funding situation of the programme at the latest one year after the date at which it has taken effect.
- III** To task the Director-General to continue his efforts in addressing the contribution to this Programme by those Member States which have not yet indicated their wish to participate.

RESOLUTION ON
THE PRE-FINANCING OF THE EXTENSION OF THE EUMETSAT
HEADQUARTERS BUILDING

Adopted at the 54th Meeting of the EUMETSAT Council
on 25-26 November 2003

The EUMETSAT Council,

RECALLING that Council at its 43rd meeting on 23-25 November 1999 approved a ceiling of the General Budget for the period 2001-2005 of M€ 64 at 2001 e.c.,

TAKING INTO ACCOUNT that Council approved at its 53rd meeting on 24-25 June 2003 in principle the requirement for an extension of the EUMETSAT Headquarters Building,

TAKING INTO ACCOUNT that Council approved, at its 54th meeting on 25-26 November 2003, the Procurement Proposal for the Extension of the Headquarters Building and to the canteen,

AWARE that the need for the extension of the Headquarters Building was not foreseen at the time when the calculations of the General Budget ceiling for the time period of 2001-2005 were undertaken,

WISHING therefore to pre-finance the expenditure for the extension of the EUMETSAT Headquarters Building,

AGREES:

- I** That the ceiling of the General Budget of M€ 64 for the time period 2001-2005 shall not be exceeded.
- II** That an amount not higher than M€ 9.4 at 2004 economic conditions, shall be pre-financed from the EUMETSAT treasury under the cover of the General Budget, until Council has identified further sources of revenue, or decided to reimburse it partially or entirely from future ceilings of the General Budget.

RESOLUTION ON
THE FINANCIAL ENVELOPE OF THE EPS PROGRAMME

**Adopted at the 55th Meeting of the EUMETSAT Council
on 22-23 June 2004**

The EUMETSAT Member States

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/96/Res.V establishing the EUMETSAT Polar System (EPS) Programme, formally adopted at the 42nd meeting of the EUMETSAT Council on 22-24 June 1999,

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

TAKING INTO ACCOUNT that EPS is a mandatory EUMETSAT programme to which all Member States contribute on the basis of a GNI based scale of contributions,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/54/03/DOC/05, have materialised and that the financial envelope defined in the EPS Programme Resolution will not be sufficient to complete all activities of the approved EPS Programme,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/54/03/DOC/05, remain to be resolved and that, therefore, the final amount necessary to complete all activities of the approved EPS programme can not be established fully today,

RECOGNISING the need to continue and complete the activities of the EPS Programme, including the operations of the EPS Central Ground Segment and the Satellite Applications Facilities as required to deliver agreed data and products to users and to introduce improvements in response to evolving needs of Member States,

STRESSING THE NEED to implement cost-effective solutions and to ensure that the EPS Programme represents best value for money for the users,

RECALLING AGREE V of the EPS Programme Resolution, which establishes that Member States may approve possible cost overruns of up to 10% of the overall programme envelope by a vote representing at least two-thirds of the Member States present and voting, representing also at least two-thirds of the total amounts of contributions,

AGREE:

- I** That the overall EPS Programme financial envelope of 1464 M€ at 1994 economic conditions will be insufficient to complete all activities of the approved EPS Programme.
- II** That the Director-General will be authorised to reassign the minimum necessary up to 146.4 M€ at 1994 economic conditions, presently assigned to support EPS spacecraft and ground segment operations, to cover
- contingencies arising from presently known cost overruns and unresolved risks
 - SAF operations for the period 2007 to 2012
- and that all elements of the EPS Programme Resolution shall remain valid and in force.
- III** That the Director-General shall, once operational status of the first METOP satellite is achieved, review the technical status and financial situation of the EPS Programme and shall bring to the Council, when necessary in due course, a proposal to extend the Programme Envelope by the minimum necessary amount to cover for the remaining activities until the end of life of the EPS system. Such proposal will be submitted to Council in a draft Resolution to be voted upon in accordance with the relevant provisions of the Convention.
- IV** That the indicative EPS expenditure profile relating to the original Programme Envelope shall be amended accordingly following the review mentioned under AGREE III above, and provided to Council in due course.

RESOLUTION ON
A FURTHER EXTENSION OF THE
METEOSAT TRANSITION PROGRAMME (MTP)

Presented for adoption at the 55th Meeting of the EUMETSAT Council
on 22-23 June 2004, entered into force on 7 October 2004

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

CONSIDERING that the MTP Programme was set up to ensure a continuous operational service to provide data from geostationary satellites, and to fill the gap between the Meteosat Operational Programme (MOP) and the Meteosat Second Generation Programme (MSG),

CONSIDERING the Council decision to fund the Initial Period of the EARS Service under the MTP Programme envelope (EUM/C/48/01/DOC/20) and the proposal to extend the EARS Service until 31 December 2008 (EUM/C/55/04/DOC/14),

NOTING that the MTP Programme, established through Resolution EUM/C/Res. XXVII in November 1990 and extended through Resolutions EUM/C/97/Res. VII and EUM/C/02/Res.I, will end on 31 December 2006,

TAKING INTO ACCOUNT that nominal operations of the first MSG satellite started in February 2004, and that the MSG system will not provide for a hot backup until mid-2005 at the earliest,

TAKING INTO ACCOUNT that the MSG System will not provide for a fully redundant DCP service until the completion of MSG-3 commissioning, which is not expected earlier than 2008,

HAVING REGARD to the very positive impact that the Meteosat Indian Ocean Data Coverage (IODC) Services have had on operational meteorology and on climate monitoring since 1998,

WISHING to ensure a continuation of the IODC Services until a viable alternative for providing equivalent operational data to Member States is established,

REQUIRING therefore a further extension of the MTP Operations,

AGREE:

- I** To extend the MTP Programme at least until 31 December 2009, in order to cover the extension of the MTP operational service at least until 31 December 2008, and subsequent close-out activities.
- II** That the extension of the MTP operations shall cover at least the following services:
 - half-hourly imaging from 63°E using Meteosat-7;
 - direct HRI dissemination from 63° using Meteosat-7;
 - meteorological products from 63°E;
 - half-hourly IODC image data dissemination using EUMETCast;
 - extension of the EARS service.
- III** To limit the funding of the extension of the Meteosat Transition Programme to stay within the overall programme envelope of M€ 280 at 1989 economic conditions.

RESOLUTION ON
THE EUMETSAT CONTRIBUTION TO GMES IN 2004 - 2008

**Adopted at the 55th Meeting of the EUMETSAT Council
on 22-23 June 2004**

The EUMETSAT Member States,

TAKING INTO ACCOUNT that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climate changes,

RECALLING that the Initiative on Global Monitoring for Environment and Security (GMES) was launched in May 1998 and adopted by the ESA and EU Councils respectively in June and November 2001,

RECALLING that European countries have shown a keen interest in GMES by hosting several high-level conferences and workshops for further progress on the GMES definition,

RECALLING further that initiative to improve global cooperation on Earth Observation (Group on Earth Observations, GEO) initiated at an Earth Observation Summit in Washington in July 2003, has led to the preparation of a 10 year GEO implementation plan to be submitted to a summit to be held in Brussels in February 2005,

TAKING INTO ACCOUNT that the Communication from the European Commission to the European Parliament and the European Council on GMES (COM (2004) 65 final) proposes a way forward for GMES activities in the period 2004-2008,

TAKING INTO ACCOUNT that the GMES Initial Period Report explicitly refers to EUMETSAT activities as one of the most prominent European achievements in Earth Observation,

TAKING INTO ACCOUNT that EUMETSAT and its Member States have also taken a very active role in developing the GEO framework document and the 10 year implementation plan,

AWARE that the earth observation activities planned within the GMES framework will be complementary in nature to EUMETSAT's mandatory programmes, defined as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

AWARE that the GMES activities will require an operational suite, and that EUMETSAT's framework for optional programmes and third party activities would provide the necessary legal basis for EUMETSAT's involvement,

AGREE:

- I** That EUMETSAT remains an active player in both GMES and GEO initiatives, in consistency with the EUMETSAT Strategy.
- II** That therefore the main aims of EUMETSAT's involvement should be:
- that EUMETSAT data, products and services are recognised and exploited to the maximum extent;
 - that the GMES and GEO planning take into account EUMETSAT planned programmes and related opportunities;
 - that the GMES and GEO planning reflect the EUMETSAT ambition;
 - that EUMETSAT is considered as a partner, and that the political profile of Earth Observation is raised.
- III** That EUMETSAT shall contribute to the short term GMES objectives by
- Ensuring that EUMETSAT data and products can be utilised by the research community;
 - Providing access to third party data to GMES users;
 - Making EUMETCAST available for dissemination of GMES relevant non-EUMETSAT data;
 - Supporting the incorporation of PUMA and AMESD as an African component of GMES.
- IV** That EUMETSAT shall contribute to the longer term GMES objectives by:
- seeking the inclusion of satellite missions relevant to EUMETSAT in the GMES plans; and by
 - facilitating the availability of new non-EUMETSAT funding for such missions.
- V** That, in order to achieve the above, EUMETSAT detaches a staff member to work at the EU Commission in Brussels and to support the next phase of development of GMES. This person will retain the EUMETSAT reporting line and will be charged with assisting the Director-General in ensuring that the EUMETSAT goals are incorporated into GMES and GEO planning.
- VI** That, in preparation of the ESA Council at Ministerial Level to be held in June 2005, the Secretariat works with ESA to ensure that the proposed ESA GMES activities specifically cite EUMETSAT as the operational agency for:
- missions for atmospheric chemistry monitoring, including instruments providing continuity to ERS and ENVISAT-class data streams,
 - missions for global operational ocean monitoring capabilities that complement the existing programmes Jason-2 and METOP,
 - a multi-spectral optical imaging satellite at medium resolution for global applications.
- VII** That any necessary financial implications will be submitted to Council and approved separately.

RESOLUTION ON
ACCESSION OF THE SLOVAK REPUBLIC TO
THE EUMETSAT CONVENTION

Adopted at the 55th Meeting of the EUMETSAT Council
on 22-23 June 2004

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Slovak Republic and EUMETSAT signed a Cooperating State Agreement on 6 July 1999,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the fifth year following the entry into force of the Agreement, a formal review of the cooperation in view of a possible accession by the Slovak Republic to EUMETSAT as a full Member State,

WELCOMING the formal request by the Slovak Republic to become a full member of EUMETSAT, expressed through a letter from the Minister of Environment of Slovak Republic on 9 March 2004,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Slovak Republic to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Slovak Republic with regard to the investments already made at € 900,000.
- IV** To amend the scale of Member State contributions for the year 2005 as attached in Annex II.
- V** That all legal and financial implications of the accession of the Slovak Republic will formally enter into force at the date of deposit of the instrument of accession of the Slovak Republic, with effect from 1 January 2005.

DRAFT AGREEMENT

BETWEEN

THE GOVERNMENT OF THE SLOVAK REPUBLIC

AND

THE EUROPEAN ORGANISATION

FOR THE EXPLOITATION OF

METEOROLOGICAL SATELLITES

(EUMETSAT)

CONCERNING

THE ACCESSION OF THE SLOVAK REPUBLIC

TO THE CONVENTION FOR THE

ESTABLISHMENT

OF A EUROPEAN ORGANISATION

FOR THE EXPLOITATION OF

METEOROLOGICAL SATELLITES

(EUMETSAT)

AND RELATED TERMS AND CONDITIONS

Preamble

The **Government of the Slovak Republic**, (hereinafter referred to as "the Slovak Republic"),

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that the Slovak Republic and EUMETSAT signed a Cooperating State Agreement on 6 July 1999,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the fifth year following the entry into force of the Agreement, a formal review of the cooperation in view of a possible accession by the Slovak Republic to EUMETSAT as a full Member State,

FOLLOWING the wish expressed by the Slovak Republic to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed through a letter from the Minister of Environment of the Slovak Republic dated 9 March 2004.

RECALLING that the EUMETSAT Council at its ... Meeting on ... June 2004 agreed to welcome the Slovak Republic as a Member State through adoption of Council Resolution EUM/C/04/Res. ...,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

The Slovak Republic accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all approved mandatory programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension and EUMETSAT Polar System Programme) shall be binding for the Slovak Republic. Participation in approved optional Programmes will require a separate decision by the Slovak Republic and is subject to agreement by the Participating States.
2. As from the date of accession, the Slovak Republic shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, the Slovak Republic shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. The Slovak Republic shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
4. The Slovak Republic shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
5. The Slovak Republic shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

1. In accordance with Article 16.5 of the EUMETSAT Convention, the Slovak Republic shall make a special payment to EUMETSAT of 900.000 EUR. This payment shall be made no later than 31 January 2005.
2. No further payments will be requested from the Slovak Republic for the period up to the end of 2004.

Article 4

1. The Slovak Republic shall with regard to the provision of Article 3.2 above start to contribute to the EUMETSAT annual budgets as from 1 January 2005.
2. The Slovak Republic shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

Article 5

1. The present Agreement shall enter into force on the date of deposit of the Slovak Republic's instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
2. In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for the Slovak Republic on the date referred to in Article 5.1 above.
3. In accordance with its Article 24.4, the EUMETSAT Protocol on Privileges and Immunities shall become effective for the Slovak Republic thirty days after the date referred to in Article 5.1 above.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in, on.....in two originals, in the English and Slovak languages, both texts being equally authentic.

For the Government
of the Slovak Republic

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Dr. Tillmann Mohr
Director-General

SCALE OF CONTRIBUTIONS 2005

MEMBER STATE	CONTRIBUTION (%)
AUSTRIA (AT)	2.24
BELGIUM (BE)	2.78
SWITZERLAND (CH)	3.07
GERMANY (DE)	22.68
DENMARK (DK)	1.87
SPAIN (ES)	6.46
FINLAND (FI)	1.38
FRANCE (FR)	15.77
UNITED KINGDOM (GB)	16.20
GREECE (GR)	1.37
IRELAND (IE)	0.90
ITALY (IT)	12.76
LUXEMBOURG (LU)	0.21
NETHERLANDS (NL)	4.32
NORWAY (NO)	1.71
PORTUGAL (PT)	1.22
SWEDEN (SE)	2.62
SLOVAK REPUBLIC (SK)	0.23
TURKEY (TR)	2.21
TOTAL	100.00

COOPERATING STATE	CONTRIBUTION (%)
CROATIA (HR)	0.22
HUNGARY (HU)	0.47
POLAND (PL)	1.69
ROMANIA (RO)	0.41
SLOVENIA (SI)	0.21

RESOLUTION ON
THE CEILING OF THE GENERAL BUDGET 2006-2010

**Adopted at the 57th Meeting of the EUMETSAT Council
on 5-6 July 2005**

The EUMETSAT Member States,

HAVING REGARD to Article 2.3 of the EUMETSAT Convention, which establishes that the General Budget comprises activities not linked to a specific programme. They shall represent the basic technical and administrative infrastructure of EUMETSAT including core staff, buildings and equipment as well as preliminary activities authorised by the Council in preparation of future programmes, not yet approved,

RECALLING EUM/C/Res. XVIII establishing the first General Budget, a ceiling for the years 1990-1995 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/95/Res. VI establishing the second General Budget, a ceiling for the years 1996-2000 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/99/Res. V establishing the third General Budget, a ceiling for the years 2001-2005 and contributions based on a GNP scale of contributions,

EXPRESSING the need to establish a new ceiling

AGREE:

- I** To fix a new ceiling of the General Budget for the years 2006-2010.
- II** To link this ceiling to contributions from Member States on a GNI scale.
- III** To limit these contributions to M€ 101.8 at 2006 economic conditions.

RESOLUTION ON
AN OVERALL FRAMEWORK FOR THE COOPERATION BETWEEN
EUMETSAT AND THE EUROPEAN COMMUNITY

Adopted at the 57th Meeting of the EUMETSAT Council
on 5-6 July 2005

The EUMETSAT Member States,

WHEREAS the European Community is jointly developing with the European Space Agency (ESA) an overall European Space policy, pursuant to the Framework Agreement signed between the European Community and the European Space Agency (ESA) on 25 November 2003,

TAKING INTO ACCOUNT the Preliminary Elements of the European Space Policy presented in the Communication from the European Commission to the European Parliament and the European Council (COM(2005) 208 final) on 23 May 2005,

AWARE of the orientations from the 2nd Space Council of 7 June 2005,

WHEREAS EUMETSAT's objectives under its Convention are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes, and that in this context associated environmental issues include the oceans, atmosphere, biosphere and natural disasters,

TAKING INTO ACCOUNT that, EUMETSAT has successfully established and operates European operational satellite systems for meteorology, climate and environment, and that the EUMETSAT assets are part of the European Meteorological Infrastructure provided by the National Meteorological Services of European countries, by the European Centre for Medium-Range Weather Forecasts (ECMWF), and by Eumetnet,

RECALLING that the Communication on the Preliminary Elements of the European Space Policy recognises the role of EUMETSAT in the operational exploitation of meteorological, climate and environmental monitoring satellites and its contribution to International Cooperation initiatives with satellite operators of other continents and within the framework of the Global Earth Observation System of Systems (GEOSS),

NOTING that the orientations from the 2nd Space Council of 7 June 2005 recognise that most Member States of the EC and of ESA are already investing in operational infrastructures through their membership of EUMETSAT and will consider EUMETSAT's role and experience in relation to wider operational services,

RECALLING that the Initiative on Global Monitoring for Environment and Security (GMES) was launched in May 1998 and adopted by the European Council in November 2001,

AWARE that the Earth observation activities planned with the GMES framework will be complementary in nature to EUMETSAT's mandatory meteorological programmes that are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

AWARE that the sustainable GMES services will require an operational infrastructure for *inter alia* satellite observations, and that the EUMETSAT legal framework provides the necessary legal basis for EUMETSAT's involvement,

HAVING REGARD to the EUMETSAT Council Resolutions EUM/C/04/Res. III of June 2004 offering the EUMETSAT contribution to GMES,

WISHING to take advantage of the complementary roles of the European Commission, the European Space Agency and EUMETSAT for the benefit of a further enhancement and use of operational European satellite-based Earth observations,

AGREE:

- I** To task the Director-General to negotiate a Framework Agreement with the European Community, to be submitted for EUMETSAT Council approval at the earliest opportunity.
- II** That the main objectives of the above Framework Agreement shall be as follows:
 - To ensure increased efficiency in using current and future European space capacities in support of EC policies to the benefit of European citizens;
 - To foster in Europe the establishment of operational environmental information services based *inter alia* on Earth observing satellite systems, the broader utilisation of operational environmental satellite data, and the funding and carrying out of joint initiatives;
 - In the framework of the development of the European Space Policy, to ensure maximum use within Europe of the existing and planned operational satellite systems for meteorology, climate and environment, and the related operational infrastructures of EUMETSAT;
 - In the framework of the European Space Programme, and in particular GMES, to take advantage of EUMETSAT's experience in establishing and exploiting operational satellite systems for meteorology, climate and environment to support the development and exploitation of wider operational services, respecting the missions of national institutions within Member States.
- III** That the main fields of cooperation with the European Community shall be the following:
 - 1) Areas of cooperation based on existing capabilities:
 - Provision to the European Commission Services, in accordance with the EUMETSAT Data Policy, of data, products and services from

- EUMETSAT Satellites and related Ground Segment, and from satellite systems of EUMETSAT's international partners where feasible;
 - Capacity building in developing countries (ACP and ALA countries);
 - Provision of scientific and technical support by EUMETSAT to the EC on the optimum infrastructure for sustained operations of Earth Observation Satellites;
 - Electro-magnetic Spectrum policy related to space missions and instrumentation.
- 2) Areas of cooperation related to future capabilities:
- a) Management and operations by EUMETSAT on behalf of the EC of
 - operational Earth observations satellite systems focused on environmental issues that interact with, drive or are driven by weather and climate, established under the European Space Programme and in particular GMES, including provision and dissemination by EUMETSAT of data and products to users;
 - instruments that may be flown on behalf of the EC on future EUMETSAT satellites, including their management and operations;
 - b) Identification of potential flight opportunities, for EC provided operational instruments, on satellites from EUMETSAT's operational international partners.

IV That, concerning the areas of cooperation based on existing capabilities, the Director-General may agree to start these activities through signature of an exchange of letters, to be approved by Council, while the Framework Agreement is being negotiated.

V That the Director-General shall seek the approval of Council before initiating new cooperative activities with the European Community or significantly altering those that are already established, particularly in the case of those having financial implications.

RESOLUTION ON
AMENDED EUMETSAT PRINCIPLES ON DATA POLICY REGARDING
LICENSING OF EDUCATIONAL AND RESEARCH USERS

Adopted at the 57th Meeting of the EUMETSAT Council
on 5-6 July 2005

The EUMETSAT Member States,

RECALLING that Council Resolution EUM/C/98/Res. IV establishes the generic EUMETSAT Principles on Data Policy,

RECALLING that the EUMETSAT Principles on Data Policy determine that the NMSs of the Member States shall act as exclusive Licensing Agents on behalf and for account of EUMETSAT for the purpose of granting access to real-time data to users receiving the data within their respective territories, and that EUMETSAT is responsible for granting access to real-time data to international organisations, NMSs of non-Member States and to other users operating outside Member States,

CONSIDERING that according to the EUMETSAT Principles on Data Policy and the Consolidated Implementing Rules for Meteosat Data and Products contained in Council Resolution EUM/C/04/Res. V all EUMETSAT Meteosat Data and Products are available without charge for research projects and educational use, and that private individual users fall into the category of educational users,

WISHING to simplify and unify the licensing procedure for educational and research users, in order to enhance the efficiency of the EUMETSAT licensing procedures,

AGREE to amend Principle II of the EUMETSAT Principles on Data Policy, as adopted in Resolution EUM/C/98/Res. IV, as follows:

I Principle II shall read:

The NMSs of the Member States shall act as Licensing Agents on behalf and for the account of EUMETSAT for the purpose of granting access to real-time data to users, receiving the data within their respective national territories. In doing so, the NMSs will apply the EUMETSAT fees and conditions, agreed by the EUMETSAT Council. The NMSs of Member States may delegate to EUMETSAT the granting of access to real-time data for educational and research users within their respective territories.

II The above amendment shall take effect on 1 January 2006.

RESOLUTION ON
EUMETSAT'S DECLARATION OF ACCEPTANCE OF THE CONVENTION
ON INTERNATIONAL LIABILITY FOR DAMAGE CAUSED BY SPACE
OBJECTS

Adopted at the 57th Meeting of the EUMETSAT Council
on 5-6 July 2005

The EUMETSAT Member States,

CONSIDERING the international cooperation in the space field,

RECOGNIZING the liability of EUMETSAT with regard to the operation of its satellites in accordance with Article 9.3 of the EUMETSAT Convention and international law,

TAKING INTO ACCOUNT that according to Article 9.3 of the EUMETSAT Convention, the Council shall establish the procedures for the implementation of this paragraph,

CONSIDERING that the United Nations Convention on International Liability for Damage caused by Space Objects settles in detail who is responsible for a damage caused by a space object, for which kind of damage and to which extent, and that therefore this Convention could serve as a basis for the implementation of Article 9.3 of the EUMETSAT Convention,

CONSIDERING that a majority of the EUMETSAT Member States are Party to the Convention on International Liability for Damage caused by Space Objects,

CONSIDERING that according to Article XXII.2 of the Convention on International Liability for Damage caused by Space Objects, States members of any international intergovernmental organization which conducts space activities shall take all appropriate steps to ensure that the organization makes a declaration of acceptance of the rights and obligations provided for in this Convention,

AGREE

That EUMETSAT declares its acceptance of the rights and obligations provided for in the Convention on International Liability for Damage caused by Space Objects, in accordance with Article XXII, section 1, of said Convention and mandates the Director-General to undertake all necessary steps in this respect.

RESOLUTION ON
THE REVISED TERMS AND CONDITIONS FOR THE
ACCESSION OF THE SLOVAK REPUBLIC TO
THE EUMETSAT CONVENTION

Adopted at the 58th Meeting of the EUMETSAT Council
on 29-30 November 2005

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Slovak Republic and EUMETSAT signed a Cooperating State Agreement on 6 July 1999,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the fifth year following the entry into force of the Agreement, a formal review of the cooperation in view of a possible accession by the Slovak Republic to EUMETSAT as a full Member State,

WELCOMING the formal request by the Slovak Republic to become a full member of EUMETSAT, expressed through a letter from the Minister of Environment of Slovak Republic on 9 March 2004,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

TAKING INTO ACCOUNT that the formal decision to welcome the Slovak Republic as EUMETSAT Member State was taken in Council Resolution EUM/C/04/Res. IV, adopted at the 55th Council Meeting in June 2004,

WISHING to adapt the terms and conditions for the accession of the Slovak Republic agreed in Council Resolution EUM/C/04/Res. IV to an accession on 1 January 2006,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES

I to amend Agrees II, III, IV and V of Resolution EUM/C/04/Res. IV to read as follows:

“II To approve the draft protocol on financial requirements for the accession of the Slovak Republic to the EUMETSAT Convention attached to this Resolution as Annex I, and to authorise the Director-General to sign it.

- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Slovak Republic with regard to the investments already made at € 830,000.
 - IV** To amend the scale of Member State contributions for the years 2006-2008 as attached to this Resolution in Annex II.
 - V** That all legal and financial implications of the accession of the Slovak Republic will formally enter into force at the date of deposit of the instrument of accession of the Slovak Republic, with effect from 1 January 2006.”
- II** That, subject to the above amendments, all other provisions of Council Resolution EUM/C/04/Res. IV remain unchanged and valid.

DRAFT PROTOCOL
ON FINANCIAL REQUIREMENTS
CONCERNING
THE ACCESSION OF THE SLOVAK REPUBLIC
TO THE CONVENTION FOR THE
ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)

Preamble

The **Government of the Slovak Republic**, (hereinafter referred to as "the Slovak Republic"),

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that the Slovak Republic and EUMETSAT signed a Cooperating State Agreement on 6 July 1999,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the fifth year following the entry into force of the Agreement, a formal review of the cooperation in view of a possible accession by the Slovak Republic to EUMETSAT as a full Member State,

FOLLOWING the wish expressed by the Slovak Republic to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed through a letter from the Minister of Environment of the Slovak Republic dated 9 March 2004,

RECALLING that the EUMETSAT Council at its 55th Meeting on 22-23 June 2004 agreed to welcome the Slovak Republic as a Member State,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

1. As from the date of accession of the Slovak Republic to the EUMETSAT Convention, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all approved mandatory programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension and EUMETSAT Polar System Programme) shall be binding for the Slovak Republic. Participation in approved optional Programmes will require a separate decision by the Slovak Republic and is subject to agreement by the Participating States.
2. As from the date of accession, the Slovak Republic shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, the Slovak Republic shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.

Article 2

1. In accordance with Article 16.5 of the EUMETSAT Convention, the Slovak Republic shall make a special payment to EUMETSAT of 830,000 EUR. This payment shall be made no later than 31 January 2006.
2. No further payments will be requested from the Slovak Republic for the period up to the end of 2005.

Article 3

The Slovak Republic shall with regard to the provision of Article 2.2 above start to contribute to the EUMETSAT annual budgets as from 1 January 2006.

Article 4

The Protocol shall enter into force upon the day of signature.

IN WITNESS WHEREOF, the undersigned, being duly authorised, have signed this Protocol.

Done and signed in two originals, one for each Party to the Protocol, in the English and Slovak languages, both being equally valid.

In

In

On

On

for the Government
of the Slovak Republic

for EUMETSAT

.....

.....

Dr. Lars Prahm
Director-General

REVISED SCALE OF MEMBER STATE CONTRIBUTIONS FOR THE YEARS 2006 - 2008 BASED ON GNI OF 2001-2003. (1 September 2005)

MEMBER STATES

MEMBER STATES		Gross National Income (GNI) at market prices (in millions National Currency)			Exchange US Dollars/ National Currency			GNI in million US Dollars			TOTALS in million US Dollars	Contribution Scale 2006 - 2008 % based on the total of GNI 2001 - 2003
		2001	2002	2003	2001	2002	2003	2001	2002	2003	2001 - 2003	
AT	AUSTRIA	210,706.00	217,956.00	224,467.00	1.117500	1.062600	0.886000	188,551.23	205,115.75	253,348.76	647,015.74	2.2009
BE	BELGIUM	258,700.00	267,366.00	274,660.00	1.117500	1.062600	0.886000	231,498.88	251,614.91	310,000.00	793,113.79	2.6979
CH	SWITZERLAND	446,044.00	446,796.00	467,753.00	1.687600	1.558600	1.346700	264,306.71	286,664.96	347,332.74	898,304.41	3.0558
DE	GERMANY	2,092,150.00	2,120,860.00	2,147,260.00	1.117500	1.062600	0.886000	1,872,170.02	1,995,915.68	2,423,544.02	6,291,629.72	21.4022
DK	DENMARK	1,304,626.00	1,330,049.00	1,380,074.00	8.322800	7.894700	6.587700	156,753.26	168,473.66	209,492.54	534,719.46	1.8190
ES	SPAIN	668,025.00	717,434.00	768,191.00	1.117500	1.062600	0.886000	597,785.23	675,168.45	867,032.73	2,139,986.41	7.2796
FI	FINLAND	135,815.00	141,147.00	141,755.00	1.117500	1.062600	0.886000	121,534.68	132,831.73	159,994.36	414,360.77	1.4095
FR	FRANCE	1,514,916.00	1,552,792.00	1,592,399.00	1.117500	1.062600	0.886000	1,355,629.53	1,461,313.76	1,797,290.07	4,614,233.36	15.6962
GB	UNITED KINGDOM	1,004,939.00	1,070,230.00	1,128,272.00	0.694700	0.667200	0.612500	1,446,579.82	1,604,061.75	1,842,076.73	4,892,718.30	16.6435
GR	GREECE	131,437.00	141,745.00	153,434.00	1.117500	1.062600	0.886000	117,617.00	133,394.50	173,176.07	424,187.57	1.4430
IE	IRELAND	97,871.00	105,882.00	112,943.00	1.117500	1.062600	0.886000	87,580.31	99,644.27	127,475.17	314,699.75	1.0705
IT	ITALY	1,209,748.00	1,250,435.00	1,290,671.00	1.117500	1.062600	0.886000	1,082,548.55	1,176,769.25	1,456,739.28	3,716,057.08	12.6409
LU	LUXEMBOURG	20,499.00	20,873.00	21,206.00	1.117500	1.062600	0.886000	18,343.62	19,643.33	23,934.54	61,921.49	0.2106
NL	NETHERLANDS	426,273.00	438,862.00	447,701.00	1.117500	1.062600	0.886000	381,452.35	413,007.72	505,305.87	1,299,765.94	4.4214
NO	NORWAY	1,515,462.00	1,523,265.00	1,571,293.00	8.991700	7.983800	7.080200	168,540.10	190,794.48	221,927.77	581,262.35	1.9773
PT	PORTUGAL	119,338.00	126,492.00	128,755.00	1.117500	1.062600	0.886000	106,790.16	119,040.09	145,321.67	371,151.92	1.2625
SE	SWEDEN	2,248,568.00	2,346,225.00	2,438,066.00	10.329100	9.737100	8.086300	217,692.54	240,957.27	301,505.76	760,155.57	2.5858
SK	SLOVAKIA	1,009,872.00	1,097,135.00	1,200,286.00	48.35480	45.32670	36.77290	20,884.63	24,205.05	32,640.50	77,730.18	0.2644
TR	TURKEY	176,484.00	275,032.00	356,681.00	1.225600	1.507200	1.500900	143,998.04	182,478.77	237,644.75	564,121.56	1.9190
TOTALS								8,580,256.66	9,381,095.38	11,435,783.33	29,397,135.37	100.0000

RESOLUTION ON
EUMETSAT'S DECLARATION OF ACCEPTANCE OF THE AGREEMENT
ON THE RESCUE OF ASTRONAUTS, THE RETURN OF ASTRONAUTS
AND THE RETURN OF OBJECTS LAUNCHED INTO OUTER SPACE

Adopted at the 58th Meeting of the EUMETSAT Council
on 29-30 November 2005

The EUMETSAT Member States,

CONSIDERING the international cooperation in the space field,

RECOGNIZING that EUMETSAT launches satellites which may return to Earth and wishing that in this case assistance will be given to EUMETSAT in recovering its satellites,

EMPHASISING that EUMETSAT wishes to provide any necessary assistance to personnel of a spacecraft or to a launching authority whose space object or components thereof have landed accidentally on the EUMETSAT premises,

CONSIDERING that a majority of the EUMETSAT Member States are Party to the Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects launched into Outer Space and to the Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies,

AGREE

That EUMETSAT declares its acceptance of the rights and obligations provided for in the Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects launched into Outer Space, in accordance with Article 6 of said Agreement and mandates the Director-General to undertake all necessary steps in this respect.

RESOLUTION ON
EUMETSAT TREASURY RISK REDUCTION

**Adopted at the 58th Meeting of the EUMETSAT Council
on 29-30 November 2005**

The EUMETSAT Member States,

TAKING INTO ACCOUNT the need to ensure budgetary stability for EUMETSAT and affordable payment profiles for its Member States,

TAKING INTO ACCOUNT previous decisions on management risk margin for the EUMETSAT programmes,

AWARE that the above financial mechanisms may entail possible treasury shortages in periods towards the end of a given year up until the dates for payments of Member States contributions in the following year,

ASSUMING that the pattern of payments of Member and Co-operating States contributions in the past will continue, and that thus a number of large contributions will continue to be paid by 20th January of each year,

WISHING to establish a flexible mechanism which allows EUMETSAT to meet its contractual obligations at any given point in time,

HAVING due regard to Article 5.2(a)iv of the EUMETSAT Convention, and to Articles 14 and 16 of the Financial Rules,

AGREE:

- I** That the Director-General may make use of the monies related to the Working Capital Fund of Member States to cover short term shortages in the EUMETSAT Treasury, within the limit of 50% of the balance of the Working Capital Fund and up to a maximum of M€ 30.
- II** That this usage should be limited to the period from 1st November of a given year until 31st January of the following year.
- III** That this usage shall not be attributed to the Working Capital Fund of any individual Member State, and thus no written consent by individual Member States shall be necessary.
- IV** That the above measure shall not affect the administration and the legal status of the Working Capital Fund in accordance with Article 16 of the Financial Rules.
- V** That the Heads of Delegations should be notified in advance before the mechanism is used.

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF CROATIA TO
THE EUMETSAT CONVENTION

Adopted at the 59th Meeting of the EUMETSAT Council
on 3-4 July 2006

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Republic of Croatia and EUMETSAT signed a Cooperating State Agreement on 2 July 2001, and that this Agreement entered into force on 9 January 2002,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the third year following the entry into force of the Agreement, a formal review of the cooperation with a view to accession by Croatia to EUMETSAT as a full Member State,

WELCOMING the formal request by the Republic of Croatia to become a full member of EUMETSAT, expressed through letters from the Director of the Meteorological and Hydrological Service and from the Minister of Science, Education and Sports of the Republic of Croatia on 30 March and 20 April 2006,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Republic of Croatia to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Republic of Croatia with regard to the investments already made at EUR 500,000. This special payment comprises EUR 480,000 towards the investments made for the mandatory programmes and EUR 20,000 towards the investments made for the Optional Jason-2 Altimetry Programme.

- IV** To amend the scale of Member State contributions for mandatory programmes for the years 2007 and 2008 as attached to this Resolution in Annex II.
- V** That all legal and financial implications of the accession of the Republic of Croatia will formally enter into force at the date of deposit of the instrument of accession, with effect from 1 January 2007.

DRAFT AGREEMENT
BETWEEN
THE GOVERNMENT OF THE
REPUBLIC OF CROATIA
AND
THE EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
CONCERNING
THE ACCESSION OF THE REPUBLIC OF
CROATIA
TO THE CONVENTION FOR THE
ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS

Preamble

The **Government of the Republic of Croatia** (hereinafter referred to as “Croatia”)

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the “Cooperating State” status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that Croatia and EUMETSAT signed a Cooperating State Agreement on 2 July 2001

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the third year following the entry into force of the Agreement, a formal review of the cooperation in view of a possible accession by Croatia to EUMETSAT as a full Member State,

FOLLOWING the wish expressed by Croatia to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed through a letter from the Minister of Science, Education and Sports of the Republic of Croatia dated 11 April 2006.

RECALLING that the EUMETSAT Council at its 59th meeting on 3 and 4 July 2006 agreed to welcome Croatia as a Member State through adoption of Council Resolution EUM/C/59/06/Res. I,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

Croatia accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all currently approved programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension, EUMETSAT Polar System Programme, and EUMETSAT Jason-2 Altimetry Optional Programme) shall be binding for Croatia.
2. As from the date of accession, Croatia shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, Croatia shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. Croatia shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
4. Croatia shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.

Article 3

1. In accordance with Article 16.5 of the EUMETSAT Convention, Croatia shall make a special payment to EUMETSAT of 500,000 EUR. This special payment comprises 480,000 EUR towards the investments already made for the mandatory programmes, and 20,000 EUR towards the investments made to the Jason-2 Altimetry Optional Programme. This payment shall be made no later than 30 days after the date of deposit of its instrument of accession, but not earlier than 15 March 2007.
2. No further payments will be requested from Croatia for the period up to the end of 2006.

Article 4

1. Croatia shall with regard to the provision of Article 3.2 above start to contribute to the EUMETSAT annual budgets as from 1 January 2007. The rate of contribution by Croatia to the mandatory programme budgets shall be calculated in accordance with Articles 10.2 and 16.5 of the EUMETSAT Convention. The

rate of contribution to the EUMETSAT Jason-2 Altimetry Optional Programme budgets shall be 0.2233%.

2. Croatia shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

Article 5

1. The present Agreement shall enter into force on the date of deposit of the Croatian instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
2. In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for Croatia on the date referred to in Article 5.1 above.
3. In accordance with its Article 24.4, the EUMETSAT Protocol on Privileges and Immunities shall become effective for Croatia thirty days after the date referred to in Article 5.1 above.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in Zagreb, on.....2006 in two originals, in the English and Croatian languages, both texts being equally authentic. In case of any divergence in interpretation, the English text shall prevail.

For the Government
of the Republic of Croatia

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Dr. Lars Prahm
Director-General

**SCALE OF CONTRIBUTIONS FOR MANDATORY
PROGRAMMES 2007-2008**

MEMBER STATE	CONTRIBUTION (%)
AUSTRIA (AT)	2.1960
BELGIUM (BE)	2.6919
SWITZERLAND (CH)	3.0489
GERMANY (DE)	21.3545
DENMARK (DK)	1.8149
SPAIN (ES)	7.2633
FINLAND (FI)	1.4064
FRANCE (FR)	15.6611
UNITED KINGDOM (GB)	16.6064
GREECE (GR)	1.4397
CROATIA (HR)	0.2233
IRELAND (IE)	1.0681
ITALY (IT)	12.6127
LUXEMBOURG (LU)	0.2102
NETHERLANDS (NL)	4.4115
NORWAY (NO)	1.9729
PORTUGAL (PT)	1.2597
SWEDEN (SE)	2.5800
SLOVAK REPUBLIC (SK)	0.2638
TURKEY (TR)	1.9147
TOTAL	100.0000

COOPERATING STATE	CONTRIBUTION (%)
BULGARIA	0.1556
CZECH REPUBLIC	0.6991
HUNGARY	0.6118
LITHUANIA	0.1418
LATVIA	0.0926
POLAND	1.8844
ROMANIA	0.4456
SLOVENIA	0.2248

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF CROATIA TO
THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

**Adopted by the Participating States at the 59th Meeting of the EUMETSAT
Council on 3-4 July 2006**

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/59/06/Res. I on the Accession of the Republic of Croatia to the EUMETSAT Convention, unanimously adopted at the 59th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Croatia will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2007,

WELCOMING the wish expressed by Croatia to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.2233%,

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. IV adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions up to 22-23 June 2004,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the accession of Croatia to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Croatia with regard to the investments made for the Optional EUMETSAT Jason-2 Altimetry Programme until the end of 2006 at EUR 20,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Croatia shall contribute with a rate of 0.2233% to the annual Jason-2 budgets with effect from 1 January 2007, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.
- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Croatia will participate in the Programme with effect 1 January 2007.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II.

EUMETSAT JASON-2 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS ADJUSTED

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

PARTICIPATING STATE	ADJUSTED CONTRIBUTION %
Belgium	3.0831
Croatia	0.2233
Denmark	1.9756
Finland	1.4667
France	17.4310
Germany	26.7600
Greece	0.7284
Ireland	0.9579
Italy	13.5197
Luxembourg	0.2195
Netherlands	4.5798
Norway	1.8060
Portugal	1.2871
Spain	6.7349
Sweden	2.7738
Switzerland	3.4822
Turkey	2.3448
United Kingdom	10.6262
TOTAL	100.0000

EUMETSAT JASON-2 ALTIMETRY PROGRAMME VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

PARTICIPATING STATE	% VOTING COEFFICIENT
Belgium	3.0831
Croatia	0.2233
Denmark	1.9756
Finland	1.4667
France	17.4310
Germany	26.7600
Greece	0.7284
Ireland	0.9579
Italy	13.5197
Luxembourg	0.2195
Netherlands	4.5798
Norway	1.8060
Portugal	1.2871
Spain	6.7349
Sweden	2.7738
Switzerland	3.4822
Turkey	2.3448
United Kingdom	10.6262
TOTAL	100.0000

**RESOLUTION ON
THE EUMETSAT ROLE IN GMES**

**Adopted at the 59th Meeting of the EUMETSAT Council
on 3-4 July 2006**

The EUMETSAT Member States,

TAKING INTO ACCOUNT that EUMETSAT's objectives under its Convention are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes, and that in this context associated environmental issues include the oceans, atmosphere, biosphere and natural disasters,

HAVING REGARD to Council Resolution EUM/C/04/Res. III, on the EUMETSAT contribution to GMES in 2004-2008, adopted in June 2004, which agreed that EUMETSAT remains an active player in both GMES and GEO initiatives, in consistency with the EUMETSAT Strategy, and which established the main aims of EUMETSAT's involvement and EUMETSAT's contribution to the short term GMES objectives,

HAVING REGARD to Council Resolution EUM/C/57/05/Res. II, adopted in July 2005, in which Member States agreed on an overall framework for the cooperation between EUMETSAT and the European Community, and which tasked the Director-General to negotiate a Framework Agreement with the European Community,

TAKING INTO ACCOUNT that Council Resolution EUM/C/57/05/Res. II also agreed that, concerning the areas of cooperation based on existing capabilities, the Director-General may agree to start these activities through signature of an exchange of letters,

AWARE that, following approval at the 58th Council meeting in November 2005, the Director-General signed an Exchange of Letters with the EC Director-General for Enterprise and Industry on 25 January 2006,

NOTING WITH APPRECIATION the steps taken by the Director-General to start implementation of the activities foreseen in the above Exchange of Letters, and which have led to the creation of a Working Group between EUMETSAT and the newly established EC GMES Bureau,

AWARE that important decisions concerning the future architecture of GMES, including its space component and the development of GMES operational services, starting with three fast-tracks, will be taken in autumn 2006, and that these decisions require a clear vision on the respective roles to be played by EC, ESA and EUMETSAT,

CONFIRMING the wish to consider an implementation approach for the GMES Sentinels of relevance to EUMETSAT which takes due regard to the respective roles of ESA, as development Agency, and EUMETSAT, as an operational Agency,

FOLLOWING the request expressed by Member States at the 6th GMES Advisory Council, on 31 May 2006, that EUMETSAT and ESA develop a common position reflecting their respective roles in the development and operation of the space component of GMES,

AGREE:

- I** To task the Director-General to prepare the position of EUMETSAT in GMES, in accordance with the roles described in Council document EUM/C/59/06/DOC/54.
- II** To prepare a joint proposal with ESA, and to submit it to the next Council meeting for approval, or earlier if necessary.
- III** To present the above joint proposal to the EC in time for the upcoming decisions on the space component of GMES.
- IV** That in the proposal to be submitted to the EUMETSAT Council the full implications for EUMETSAT shall be detailed.

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF SLOVENIA TO
THE EUMETSAT CONVENTION

Adopted at the 60th Meeting of the EUMETSAT Council
on 30 November 2006 – 1 December 2006

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Republic of Slovenia and EUMETSAT signed a Cooperating State Agreement on 9 July 2003, and that this Agreement entered into force on 4 November 2003,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the third year following the entry into force of the Agreement, a formal review of the cooperation with a view to accession by Slovenia to EUMETSAT as a full Member State,

WELCOMING the formal request by the Republic of Slovenia to become a full member of EUMETSAT, expressed through a letter from the Minister of Environment and Spatial Planning on 23 August 2006,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Republic of Slovenia to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Republic of Slovenia with regard to the investments already made at EUR 619,000. This special payment comprises EUR 594,000 towards the investments made for the mandatory programmes and EUR 25,000 towards the investments made for the Optional Jason-2 Altimetry Programme.

- IV** To amend the scale of Member State contributions for mandatory programmes for the year 2008 as attached to this Resolution in Annex II.
- V** That all legal and financial implications of the accession of the Republic of Slovenia will formally enter into force at the date of deposit of the instrument of accession.

DRAFT AGREEMENT
BETWEEN
THE GOVERNMENT OF THE
REPUBLIC OF SLOVENIA
AND
THE EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
CONCERNING
THE ACCESSION OF THE REPUBLIC OF
SLOVENIA
TO THE CONVENTION FOR THE
ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS

Preamble

The **Government of the Republic of Slovenia** (hereinafter referred to as "Slovenia")
and

the **European Organisation for the Exploitation of Meteorological Satellites**,
established by the Convention opened for signature in Geneva on 24 May 1983 and
entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on
4 and 5 June 1991 recommended the Members States to accept Amendments to the
Convention as proposed in the "Amending Protocol", attached to Resolution
EUM/C/Res. XXXVI, and that these Amendments entered into force on
19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any
State may accede to the said Convention following a decision of the Council taken in
conformity with the provisions of Article 5.2(a),

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on
24-26 June 1997, has defined the "Cooperating State" status as an intermediate step
for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that Slovenia and EUMETSAT signed a Cooperating State
Agreement on 9 July 2003,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes
that the Agreement shall remain in force for a period of 5 years and that it requires,
during the third year following the entry into force of the Agreement, a formal review
of the cooperation in view of a possible accession by Slovenia to EUMETSAT as a
full Member State,

FOLLOWING the wish expressed by Slovenia to become a EUMETSAT Member
State within the framework conditions established by the EUMETSAT Convention,
expressed through a letter from the Minister of Environment and Spatial Planning of
the Republic of Slovenia dated 23 August 2006,

RECALLING that the EUMETSAT Council at its 60th meeting on 30 November -
1 December 2006 agreed to welcome Slovenia as a Member State through adoption of
Council Resolution EUM/C/60/06/Res. I,

CONVINCED that this accession will contribute to the achievement of the objectives
set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

Slovenia accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all EUMETSAT programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension, EUMETSAT Polar System Programme, Meteosat Third Generation Preparatory Programme, and the Optional EUMETSAT Jason-2 Altimetry Programme) shall be binding for Slovenia.
2. As from the date of accession, Slovenia shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, Slovenia shall abide by the principles and policies stemming there from, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. Slovenia shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
4. Slovenia shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.

Article 3

In accordance with Article 16.5 of the EUMETSAT Convention, Slovenia shall make a special payment to EUMETSAT of 619,000 EUR. This special payment comprises 594,000 EUR towards the investments already made for the mandatory programmes, and 25,000 EUR towards the investments made to the Optional EUMETSAT Jason-2 Altimetry Programme. This payment shall be made no later than 30 days after the date of deposit of its instrument of accession, but not earlier than 31 January 2008.

Article 4

1. Slovenia shall, with regard to the provision of Article 3 above, start to contribute to the EUMETSAT annual budgets as from 1 January 2008. The rate of contribution by Slovenia to the mandatory programme budgets shall be calculated in accordance with Articles 10.2 and 16.5 of the EUMETSAT Convention. The rate of contribution to the Optional EUMETSAT Jason-2 Altimetry Programme budgets shall be 0.2343%.
2. Slovenia shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

Article 5

1. The present Agreement shall enter into force on the date of deposit of the Slovenian instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
2. In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for Slovenia on the date referred to in Article 5.1 above.
3. In accordance with its Article 24.4, the EUMETSAT Protocol on Privileges and Immunities shall become effective for Slovenia thirty days after the date referred to in Article 5.1 above.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in Ljubljana, on.....in two originals, in the English and Slovenian languages, both texts being equally authentic. In case of any divergence in interpretation, the English text shall prevail.

For the Government of
The Republic of Slovenia

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Dr. Lars Prahm
Director-General

**SCALE OF CONTRIBUTIONS FOR MANDATORY
PROGRAMMES 2008**

MEMBER STATE	CONTRIBUTION (%)
AUSTRIA (AT)	2.1909
BELGIUM (BE)	2.6856
SWITZERLAND (CH)	3.0418
GERMANY (DE)	21.3042
DENMARK (DK)	1.8106
SPAIN (ES)	7.2463
FINLAND (FI)	1.4031
FRANCE (FR)	15.6245
UNITED KINGDOM (GB)	16.5675
GREECE (GR)	1.4364
CROATIA (HR)	0.2228
IRELAND (IE)	1.0656
ITALY (IT)	12.5831
LUXEMBOURG (LU)	0.2097
NETHERLANDS (NL)	4.4012
NORWAY (NO)	1.9682
PORTUGAL (PT)	1.2568
SWEDEN (SE)	2.5740
SLOVENIA (SI)	0.2343
SLOVAK REPUBLIC (SK)	0.2632
TURKEY (TR)	1.9102
TOTAL	100.0000

COOPERATING STATE	CONTRIBUTION (%)
BULGARIA (BG)	0.1555
CZECH REPUBLIC (CZ)	0.6986
HUNGARY (HU)	0.6113
ICELAND (IS)	0.0838
LITHUANIA (LT)	0.1417
LATVIA (LV)	0.0925
POLAND (PL)	1.8828
ROMANIA (RO)	0.4452

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF SLOVENIA TO
THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

**Adopted by the Participating States at the 60th Meeting of the EUMETSAT
Council on 30 November 2006 – 1 December 2006**

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/60/06/Res. I on the Accession of the Republic of Slovenia to the EUMETSAT Convention, unanimously adopted at the 60th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Slovenia will become a Member State of EUMETSAT, subject to ratification, with financial contributions to the EUMETSAT budgets from 1 January 2008,

WELCOMING the wish expressed by Slovenia to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.2343%,

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. IV adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the accession of Slovenia to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Slovenia with regard to the investments made for the Optional EUMETSAT Jason-2 Altimetry Programme until the end of 2007 at EUR 25,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Slovenia shall contribute with a rate of 0.2343% to the annual Jason-2 budgets with effect from 1 January 2008, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.

- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Slovenia will participate in the Programme with effect 1 January 2008.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II.

EUMETSAT JASON-2 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS ADJUSTED

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

PARTICIPATING STATE	ADJUSTED CONTRIBUTION %
Belgium	3.0759
Croatia	0.2228
Denmark	1.9710
Finland	1.4633
France	17.3902
Germany	26.6971
Greece	0.7267
Ireland	0.9557
Italy	13.4880
Luxembourg	0.2190
Netherlands	4.5691
Norway	1.8018
Portugal	1.2841
Slovenia	0.2343
Spain	6.7191
Sweden	2.7673
Switzerland	3.4740
Turkey	2.3393
United Kingdom	10.6013
TOTAL	100.0000

**EUMETSAT JASON-2 ALTIMETRY PROGRAMME VOTING
COEFFICIENT**

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

PARTICIPATING STATE	% VOTING COEFFICIENT
Belgium	3.0759
Croatia	0.2228
Denmark	1.9710
Finland	1.4633
France	17.3902
Germany	26.6971
Greece	0.7267
Ireland	0.9557
Italy	13.4880
Luxembourg	0.2190
Netherlands	4.5691
Norway	1.8018
Portugal	1.2841
Slovenia	0.2343
Spain	6.7191
Sweden	2.7673
Switzerland	3.4740
Turkey	2.3393
United Kingdom	10.6013
TOTAL	100.0000

RESOLUTION ON
THE PREPARATION OF THE METEOSAT THIRD GENERATION
PROGRAMME (MTG)

Adopted at the 61st Meeting of the EUMETSAT Council
on 23 April 2007

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT programmes are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the geostationary orbit, the first satellite of a third generation of Meteosat should be available for a launch in 2015,

TAKING INTO ACCOUNT that the way forward for the Phase A of the Meteosat Third Generation (MTG) Programme was unanimously endorsed at the 59th meeting of the EUMETSAT Council, with the understanding that, as a goal, an overall cost of the MTG Programme to Member States shall be comparable to that of MSG, for an equivalent lifetime,

TAKING INTO ACCOUNT that the descoping of the MTG requirements as presented in EUM/C/60/06/DOC/06 was endorsed at the 60th Council meeting,

WISHING to build on the results of the pre-phase A studies for the establishment of the MTG system,

TAKING INTO ACCOUNT that MTG preparatory activities are covered through the General Budget until the end of 2007, and that there is a need to ensure the continued funding of MTG activities from beginning of 2008,

FOLLOWING the roadmap for the approval of the MTG Preparatory Programme as agreed at the 60th Council meeting,

NOTING that the MTG payload complement to target in Phase B/C/D will be decided by Council by the end of the Phase A Industrial Studies,

AGREE:

- I** That the main missions of MTG should be met through a **twin** satellites configuration, respectively embarking, as main missions, the Imaging and Sounding mission, in a series of three-axis stabilised satellites, based on a common platform design.
- II** That, in order to improve the value for money of the MTG programme, every effort should be made during the preparation phase to ensure that the design lifetime of the satellites is maximised, and that overall flexibility regarding the schedule of launches is preserved.
- III** To urge ESA to initiate all necessary preparatory activities to obtain approval of their part of the programme in 2008 in order to secure data continuity in the geostationary orbit.
- IV** To task the Director-General with establishing a joint road map with ESA leading to a coordinated approval of the MTG programme by both Organisations.
- V** To task the Director-General with elaborating an MTG Preparatory Programme Proposal and related Programme Resolution, and to submit them for approval to the 62nd Council meeting in June 2007.

RESOLUTION ON
THE METEOSAT THIRD GENERATION PREPARATORY PROGRAMME

**Presented for adoption at the 62nd Meeting of the EUMETSAT Council
on 26-27 June 2007, entered into force on 25 June 2008**

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT programmes are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the geostationary orbit, the first satellite of a third generation of Meteosat should be available for a launch in 2015,

TAKING INTO ACCOUNT that the way forward for the Phase A of the Meteosat Third Generation (MTG) Programme was unanimously endorsed at the 59th meeting of the EUMETSAT Council, with the understanding that, as a goal, an overall cost of the MTG Programme to Member States shall be comparable to that of MSG, for an equivalent lifetime,

TAKING INTO ACCOUNT that the descoping of the MTG requirements as presented in EUM/C/60/06/DOC/06 was endorsed at the 60th Council meeting,

BEARING IN MIND that the potential accommodation on MTG of the GMES Sentinel 4 payload will be considered by the EUMETSAT Council in due course on the assumption that this accommodation is feasible within the MTG System design margins and at no additional cost to EUMETSAT,

TAKING INTO ACCOUNT the Council Resolution EUM/C/61/07/Res. I on the Preparation of the MTG Programme,

NOTING the progress of the phase A studies for the establishment of the MTG System,

RECALLING that the EUMETSAT MTG activities are covered through the General Budget until the end of 2007, and that there is a need to ensure the continued funding of MTG activities from beginning of 2008,

FOLLOWING the roadmap for the approval of the MTG Programme as agreed at the 60th Council meeting (EUM/C/60/06/DOC/07),

IN ACCORDANCE WITH the Programme Proposal for the MTG Preparatory Programme contained in document EUM/C/62/07/DOC/04,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention,

AGREE:

- I** To establish a Preparatory Programme for a Meteosat Third Generation (MTG) commencing in January 2008 and lasting until the start of the full MTG Programme expected to be no later than mid 2010.
- II** That the mission objectives, system description and Preparatory Programme content shall be as described in the EUMETSAT MTG Preparatory Programme Definition attached to this Resolution.
- III** That the financial envelope of the Preparatory Programme shall amount to 30.0 MEUR at 2007 economic conditions, with an indicative payment profile of 11.0 MEUR in 2008, 12.4 MEUR in 2009, and 6.6 MEUR in 2010.
- IV** That, in order to improve value for money of the MTG Programme, every effort should be made to ensure that the design lifetime of the satellites is maximised, and that overall flexibility regarding the schedule of launches is preserved.
- V** To task the Director-General to maintain close contact with ESA with a view to ensuring a coordinated approval process of the MTG programme by both organisations and their respective Delegate Bodies.
- VI** To task the Director-General with elaborating a Programme Proposal for the full MTG Programme and related Resolution, and to submit them for Council consideration no later than autumn 2009.

METEOSAT THIRD GENERATION

PREPARATORY PROGRAMME DEFINITION

1 GENERAL

The Meteosat Second Generation (MSG) system is the primary European source of geostationary observations over Europe and Africa and started routine operation services in January 2004. MSG is one of the key EUMETSAT contributions to the Global Observing System (GOS) of the World Meteorological Organization (WMO). The series of four MSG satellites will deliver observations and services at least until end of 2018 (MSG-4). According to availability analyses, the first in-orbit element of the Meteosat Third Generation (MTG) system needs to be available around 2015, to ensure continuity of the EUMETSAT imagery mission.

MTG preparatory activities started end of 2000 in cooperation with the European Space Agency (ESA), following the decision of the EUMETSAT Council to proceed with a EUMETSAT/Post-MSG User Consultation Process aimed at capturing the foreseeable needs of EUMETSAT users in the 2015-2025 timeframe. This process led to the definition of the mission requirements for the MTG candidate observation missions.

2 MISSION OBJECTIVES AND CANDIDATE MISSIONS

The MTG Mission Requirements baseline for the Phase A is the result of the user consultation process, the Mission Definition Review output (spring 2006), and the requirements descoping undertaken with the MTG Mission Team until end of 2006. The selected mission concept for the MTG Phase A encompasses four candidate observation missions, which are:

- **Full Disk High Spectral resolution Imagery (FDHSI)** mission, covering the full disk with a Basic Repeat Cycle (BRC) of 10 minutes with a spatial resolution of 1 / 2 km;
- **High spatial Resolution Fast Imagery (HRFI)** mission, looking at local scales with a BRC of 2.5 minutes and a spatial resolution of 0.5 / 1 Km;
- **InfraRed Sounding (IRS)** mission covering the full disk with a BRC of 30 minutes (goal – 60 minutes threshold) and a spatial resolution of 4 km, providing hyperspectral sounding information with a spectral resolution of 0.625 cm^{-1} in **Long Wave InfraRed** and **Mid Wave InfraRed**;
- **Lightning Imagery (LI)** mission, detecting lightning events linked to discharges taking place in clouds or between clouds and ground, over 80% of the full disk;

A priority ranking has been assigned to the MTG candidate missions with priority 1 for FDHSI and HRFI, both to be realized by one instrument, the so called Flexible Combined (FCI) imager, priority 2 for the IRS and priority 3 for the LI mission.

MTG SYSTEM CONCEPT

The MTG system concept encompasses the following characteristics:

- Space Segment based on a Twin-satellite in-orbit configuration (TSC):
 - TSC satellites (Imaging and Sounding) implemented using a common platform;
 - Use of 3-axis stabilised platforms for all required satellites;
- Development of satellites based on inheritance of commercial Geostationary platforms;
- Compatibility with more than one launcher (capability of vertical and horizontal processing);
- Maximum reuse of existing EUMETSAT Infrastructures;
- Distribution of the Ground Segment capabilities, including the assets of the EUMETSAT Satellite Application Facilities (SAF Network);
- Need to establish at EUMETSAT level (for the MTG era) a Ground Segment supporting parallel operations of the MSG and MTG Series;
- Interoperability, in terms of standardisation of the space to ground interface, supporting a possible integration into required international contexts (e.g. GEOS, GMES, etc.).

The MTG satellites will operate from the geostationary orbit at 0° longitude, this being the nominal position of the operational satellites, with additional orbital positions for the hot/active and spare satellites between 10° W and 10° E.

3 PREPARATORY PROGRAMME CONTENT

The MTG Preparatory Programme covers the EUMETSAT activities associated with the closeout of MTG Phase A in 2008 and contains for EUMETSAT the full MTG Phase B, up to the System Preliminary Design Review (PDR) planned for mid 2010.

It is assumed that all activities following the PDR will be covered under the MTG Development and Operational Programme.

Phase B will focus on consolidation of the requirements for the MTG system, and their justification via detailed analyses and trade-off, to derive necessary design elements, in line with programmatic constraints (schedule and costs). These activities will allow the system to be subsequently developed, produced, operated and maintained.

The requirements activities are formally closed by a Preliminary Design Review (PDR), which leads to the Development Configuration Baseline of the MTG system. The definition and justification activities start after the System Requirements Review (SRR) at which the system specification is baselined. Justification Files are generated by analyses, trade-offs, and Design Reports and will constitute an important element

of the documented project progress. An essential part of the work will be the analysis of risks on technical, costing and scheduling aspects.

At EUMETSAT level, the Phase B activities will encompass the overall MTG System, including the Ground Segment and all system interfaces. A further important element of the Phase B activities will consist in following-up and supporting the Space Segment activities performed by ESA.

During Phase B, the necessary cooperation agreement with ESA covering the Phase C/D of the Space Segment will be established and submitted to Council for approval.

A close interaction with users over the course of EUMETSAT Phase B activities through direct involvement of the MTG Mission Team and MTG User consultation Workshops as required will ensure the elaboration of a consolidated EURD (End User Requirements Document).

The duration of the Preparatory Programme is from 01 January 2008 until the start of the MTG Development and Operations Programme, which will cover for EUMETSAT the Phases C/D/E of the MTG Programme, assumed to be no later than mid 2010.

4 IMPLEMENTATION

The main activities planned during the MTG Preparatory Programme will consist of:

- Management and Quality Assurance (QA);
- System Engineering, as the main contribution to the planned effort and including:
 - End User/Mission Requirements baselining and Maintenance;
 - System Requirements & Design;
 - Functional Design;
 - Baselining and maintenance of Segment Level Specifications, external and internal element ICDs;
 - Operations Concept & Constraints;
 - Development Plans;
 - System Engineering Implementation;
 - System Analysis;
 - System and Segment level Reviews;
 - Prototyping of meteorological product S/W packages;
 - System Integration Verification & Validation planning.
- External System Support Studies, addressing technical and scientific topics;
- External Ground Segment Studies, related to the MTG Overall Ground Segment Architecture and its implementation approach.

RESOLUTION ON
A FOURTH EXTENSION OF THE
METEOSAT TRANSITION PROGRAMME (MTP)

Adopted at the 62nd Meeting of the EUMETSAT Council
on 26-27 June 2007

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

CONSIDERING that the MTP Programme was set up to ensure a continuous operational service to provide data from geostationary satellites, and to fill the gap between the Meteosat Operational Programme (MOP) and the Meteosat Second Generation Programme (MSG),

NOTING that the MTP Programme, established through Resolution EUM/C/Res. XXVII in November 1990 and extended through Resolutions EUM/C/97/Res. VII, EUM/C/02/Res. I and EUM/C/04/Res. II will end on 31 December 2009,

TAKING INTO ACCOUNT that nominal operations of the second MSG satellite started in April 2007, and that the full MSG system with its hot backup is providing the full primary EUMETSAT geostationary service from zero degrees longitude,

HAVING REGARD to the very positive impact that the Meteosat Indian Ocean Data Coverage (IODC) Services have had on operational meteorology and on climate monitoring since 1998 and to the significant contribution of the IODC satellites to the initial Indian Ocean Tsunami Warning Service, established following the Sumatra-Andaman Tsunami in December 2004,

WISHING to ensure a continuation of the IODC Services until a viable alternative for providing equivalent operational data to Member States is established,

BEARING IN MIND that existing space assets from the MTP Programme, and related ground segment infrastructure, allow for extended IODC operations,

EXPECTING that a dedicated licence fee structure for the IODC Services will generate a financial contribution from the wealthy non-Member States benefiting from these services,

WISHING therefore to further extend the MTP Operations,

IN CONFORMITY with Article 5.2(c)ii. of the Convention, which establishes that Member States may approve possible overruns of up to 10% of the overall programme envelope by a vote representing at least two-thirds of the total amount of contributions and one half of the Member States present and voting,

AGREE:

- I** To extend the MTP Programme at least until 31 December 2011, in order to cover the extension of the MTP operational service at least until 31 December 2010, and subsequent close-out activities.
- II** That the extension of the MTP operations shall cover at least the following services:
 - half-hourly imaging from 57,5°E using Meteosat-7;
 - half-hourly IODC image data dissemination;
 - Data Collection Platform acquisition support for selected projects;
 - meteorological products from 57,5°E generated by the MPEF;
 - archiving and retrieval using the UMARF.
- III** To increase the MTP Programme Envelope from 280 MEUR at 1989 economic conditions to 284,2 MEUR at 1989 economic conditions.
- IV** To task the Director-General to continue pursuing all possible avenues to identify a long-term alternative for providing and funding the IODC Services.

RESOLUTION ON
THE ENTRY INTO FORCE OF THE
METEOSAT THIRD GENERATION PREPARATORY PROGRAMME

Adopted at the 63rd Meeting of the EUMETSAT Council
on 6-7 December 2007

The EUMETSAT Member States,

CONSIDERING that the EUMETSAT Council, at its 62nd meeting on 26-27 June 2007, unanimously agreed on the contents of the programme proposal for the Meteosat Third Generation (MTG) Preparatory Programme as contained in document EUM/C/62/07/DOC/04 Rev.1,

CONSIDERING that the EUMETSAT Council, at its 62nd meeting, unanimously agreed to open the voting of Resolution EUM/C/62/07/Res.I on the MTG Preparatory Programme,

NOTING that, although all Member States have voted in favour of the above Resolution, the votes of Belgium and Spain are conditional with regard to the finalisation of national approval procedures, and that the above Resolution will only formally enter into force upon approval by all Member States,

EXPECTING that the Delegations of Belgium and Spain will be able to lift their *ad referendum* within a short period of time, and that the formal entry into force of the Resolution on the MTG Preparatory Programme will take place at the latest by 1 July 2008,

RECOGNISING the need to continue MTG preparatory activities from beginning of 2008,

AGREE:

- I** That the necessary activities under the MTG Preparatory Programme can start with effect from 1 January 2008.
- II** That Belgium and Spain will be legally obliged to contribute financially to the Programme only after finalisation of national approval procedures, and that their contributions would only become due 30 days after notification thereof.
- III** That in the MTG Preparatory Programme Budget 2008 an amount corresponding to the contributions from Belgium and Spain remains blocked until the finalisation of national procedures has been notified to the Director-General.
- IV** That if Belgium or Spain would not be in a position to confirm finalisation of national approval procedures by 1 July 2008 at the latest, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken.

RESOLUTION ON
THE REIMBURSEMENT OF THE PREFINANCING OF THE
HEADQUARTERS EXTENSION AND
A REVISION OF THE CEILING OF THE GENERAL BUDGET 2006-2010

Agreed at the 63rd Meeting of the EUMETSAT Council
on 6-7 December 2007

The EUMETSAT Member States,

HAVING REGARD to Article 2.5 of the Convention, which establishes that the General Budget comprises activities not linked to a specific programme, and that they shall represent the basic technical and administrative infrastructure of EUMETSAT including basic staff, buildings and equipment as well as preliminary activities authorised by Council in preparation of future programmes not yet approved,

RECALLING Resolution EUM/C/57/05/Res.I establishing the fourth ceiling of contributions for the General Budget for the period 2006-2010 at a level of M€ 101.8 at 2006 economic conditions (e.c.),

RECALLING that, in Resolution EUM/C/03/Res. VI on the pre-financing of the extension of the EUMETSAT Headquarters building, Council agreed to pre-finance an amount not higher than M€ 9.4 at 2004 e.c. from the EUMETSAT treasury under the cover of the General Budget, until Council had identified further sources of revenue, or decided to reimburse it partially or entirely from future ceilings of the General Budget,

CONSIDERING that the total amount effectively pre-financed of M€ 8.12 has been partially covered through unbudgeted revenue, as approved by Council, and that the currently outstanding amount to be reimbursed by Member States, as described in document EUM/C/63/07/DOC/34, is M€ 4.35,

CONSIDERING that the profile of planned Member States contributions to the Organisation would allow to budget the reimbursement of the outstanding amount already in 2008,

AWARE that the budgetary cover of the reimbursement requires an increase of the current contributions ceiling of the General Budget,

HAVING DUE REGARD to Article 5.2(a)iii of the Convention,

AGREE:

That the ceiling of contributions to the General Budget for the years 2006-2010 shall be increased to M€ 106.15 at 2006 economic conditions.

RESOLUTION ON
AMENDMENT TO THE EUMETSAT TREASURY RISK REDUCTION

**Adopted at the 63rd Meeting of the EUMETSAT Council
on 6-7 December 2007**

The EUMETSAT Member States,

RECALLING that Council, at its 58th meeting, established treasury risk reduction measures through adoption of Resolution EUM/C/58/05/Res.III,

TAKING INTO ACCOUNT that Council, at its 63rd meeting, has agreed to an amendment to Article 12 of the Financial Rules which may increase the risk of possible treasury shortages at EUMETSAT for a longer period during the annual cycle,

WISHING to enhance the mechanism established in Resolution EUM/C/58/05/Res.III through a slightly longer period of usage,

AGREE to amend AGREE II of Resolution EUM/C/58/05/Res.III as follows:

- II** “That this usage should be limited to the period from 1st November of a given year until **15 March** of the following year.”

RESOLUTION ON
THE PREPARATION OF A JASON
FOLLOW-ON OPTIONAL PROGRAMME

Adopted at the 64th Meeting of the EUMETSAT Council
on 1-2 July 2008

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy approved at the 59th Council meeting foresees continuity of the optional Jason-2 altimetry satellite series and that the EUMETSAT involvement in this programme needs to be resolved in the short term, by establishing a unified global altimetry system covering both the non-synchronous and the sun synchronous orbits, building upon the existing partnership with NOAA, NASA and CNES, and taking into account the need to extend the partnership to the EC,

TAKING INTO ACCOUNT that the EUMETSAT Council, at its 60th meeting, requested the Director-General to carry out a number of activities preparing EUMETSAT for its future role in operational oceanography missions, which included the definition of a EUMETSAT Jason Follow-on Programme,

TAKING INTO ACCOUNT the requirement for satellite ocean altimetry observations expressed by the WMO, the Global Ocean Data Assimilation Experiment (GODAE), the Global Ocean Observing System (GOOS), the Ocean Observations Programme Committee (OOPC), the Integrated Global Observing Strategy Partnership (IGOS-P) and the Global Climate Observing System Implementation Plan (GCOS-IP),

BEARING IN MIND that the Topex/Poseidon and Jason-1 missions established by the Centre National d'Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) have proven the value of altimetry observations in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and the monitoring of the climate,

CONSIDERING that the requirement to continue these services on a sustained operational basis and the recognition that EUMETSAT is the relevant European operational organisation led to the establishment of the Optional EUMETSAT Jason-2 Altimetry Programme through Declaration EUM/C/01/Decl.I,

RECALLING that 19 EUMETSAT Member States have agreed to participate in the Jason-2 Optional Programme,

TAKING INTO ACCOUNT the successful launch of the Jason-2 satellite in June 2008 and the operations planned to last until mid 2013,

CONSIDERING the requirements to preserve operational continuity to the ocean altimetry missions beyond Jason-2,

BEARING IN MIND, that the complete altimeter system requested by users consists of Jason-type altimeter missions as well as polar orbiting altimeters, which will be realized in the context of GMES Sentinel 3 and are based on the heritage of the ESA missions ERS and ENVISAT,

AWARE that continuity requires the availability of a Jason-2 follow on satellite ready for launch in late 2012, and that a Jason-3 satellite would meet the immediate operational continuity requirements,

AWARE that this Jason-3 satellite would aim at constituting the first element of a long term integrated European solution, to be complemented by a Jason-type satellite based on Cryosat heritage to be agreed with ESA in the 2011 time frame,

ANTICIPATING that the combination of Jason-3 and the follow-on Jason-type satellite to be agreed with ESA is intended to provide data continuity until 2022,

BEARING IN MIND that Article 2 of the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT and agreed as such by Council,

HAVING REGARD to the Preliminary Programme Proposal on Jason Follow-on as an optional programme contained in document EUM/C/64/08/DOC/07,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Resolution EUM/C/01/Res.1 on the Approval of Optional Programmes,

AGREES:

- I** That the proposed Jason Follow-on programme is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention.
- II** To invite all Member States to express their interest in participating in the proposed programme, thereby becoming Potential Participating States, on the understanding that this indication will not commit any of these Member States to formally participate in the programme.
- III** To task the Director-General with drawing up a Programme Declaration and Programme Definition in consultation with Potential Participating States, to be submitted for Council approval in an Enabling Resolution.
- IV** To task the Director General with seeking confirmation of the required contributions for Jason-3 from CNES, NOAA and the EC as a pre-requisite to the approval of the full programme, expected in mid 2009.
- V** To task the Director-General with preparing the necessary cooperation agreements with CNES, NOAA, the EC and ESA, to be agreed by Council, regarding the respective contributions to Jason-3 and the follow-on missions.

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF HUNGARY TO
THE EUMETSAT CONVENTION

Adopted at the 64th Meeting of the EUMETSAT Council
on 1-2 July 2008

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Republic of Hungary and EUMETSAT signed a Cooperating State Agreement on 7 July 1999, and that this Agreement has been amended in two instances establishing a duration until 31 December 2008,

BEARING IN MIND that Article 7 of the above-mentioned amended Agreement requires a formal review of the cooperation with a view to accession by Hungary to EUMETSAT as a full Member State,

WELCOMING the formal request by the Republic of Hungary to become a full member of EUMETSAT, expressed through a letter from the Minister of Environment and Water on 20 March 2008,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Republic of Hungary to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the terms and conditions of accession laid down in the Letter of Intent attached to this Resolution as Annex I.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Republic of Hungary with regard to the investments already made for the mandatory programmes at EUR 1,983,000.
- IV** To amend the scale of Member State contributions for mandatory programmes as attached to this Resolution in Annex II.
- V** That all legal and financial implications of the accession of the Republic of Hungary will formally enter into force at the date of deposit of the instrument of accession.



MINISTER OF ENVIRONMENT AND WATER
OF THE REPUBLIC OF HUNGARY

DG's OFFICE	
Received	20 March 2008
212	Copy
D/PBD	
D/A	☒
D/OPS	☐
FCO	☐
H/QAD	☐
H/SIR	☒
PA/DS	☐
To register	☐
To restrict	☐

Dr. Lars Prahm
Director-General
EUMETSAT
Am Kavalleriesand 31
D-64295 Darmstadt
Germany

Subject: letter of intent for accession to EUMETSAT

20 March 2008 Budapest
KJKF-53/6/2008.

Dear Sir,

I wish to refer to the negotiations held between the representatives of EUMETSAT and representatives from the Hungarian Government in Budapest on 24 January 2008.

During these negotiations, the successful cooperation between Hungary and EUMETSAT since the signature of the Cooperating State Agreement in July 1999 was noted, and the common objective of achieving the accession of Hungary to EUMETSAT as a full Member State as of 1 January 2009 was confirmed.

Having studied the provisions of the Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites (EUMETSAT) made in Geneva on 24 May 1983 and entered into force on 19 June 1986, and in particular Articles 16 and 17, I have the honour to inform you that Hungary wishes to become a Party to this Convention.

I herewith also confirm that the Hungarian Government agrees to the following terms and conditions for the accession of Hungary to EUMETSAT as a full Member State:

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all EUMETSAT mandatory programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension, EUMETSAT Polar System Programme, Meteosat Third Generation Preparatory Programme) shall be binding for Hungary.
2. As from the date of accession, Hungary shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, Hungary shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.

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Mailing Address: 1394 Budapest, Pf. 351.

e-mail: minister@mail.kvvm.hu

Phone: +36 1 457 3300
Fax: +36 1 201 3134

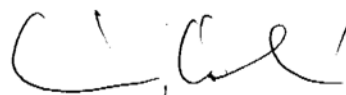
3. At the same time of the accession to the EUMETSAT Convention, Hungary shall also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI, which was adopted by the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991, and which entered into force on 19 November 2000.
4. At the same time of the accession to the EUMETSAT Convention, Hungary shall also accede to the EUMETSAT Protocol on Privileges and Immunities, opened for signature on 1 December 1986, and which entered into force on 5 January 1989. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
5. In accordance with Article 16.5 of the EUMETSAT Convention, Hungary shall make a special payment to EUMETSAT of 1,983,000 EUR towards the investments already made for the mandatory programmes. This payment shall be made no later than 30 days after the date of deposit of the instrument of accession, but not earlier than 31 January 2009.
6. Hungary shall start to contribute to the EUMETSAT annual budgets as full Member State from 1 January 2009.

Based on the above, I kindly request you to inform the EUMETSAT Member States of Hungary's wish and to seek a decision inviting Hungary to become a Party to the EUMETSAT Convention at the next EUMETSAT Council meeting in July 2008.

I am convinced that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention, and that it will provide to Hungary a unique opportunity to fully participate in the success of EUMETSAT'S programmes and related satellites systems.

I look forward to receiving your positive reply.

Yours sincerely



Gábor Fodor

**SCALE OF CONTRIBUTIONS FOR MANDATORY
PROGRAMMES 2006-2008 (including Hungary)**

MEMBER STATES	CONTRIBUTION (%)
AUSTRIA	2.1770
BELGIUM	2.6686
SWITZERLAND	3.0225
GERMANY	21.1694
DENMARK	1.7992
SPAIN	7.2004
FINLAND	1.3942
FRANCE	15.5255
UNITED KINGDOM	16.4625
GREECE	1.4273
CROATIA	0.2214
HUNGARY	0.6334
IRELAND	1.0589
ITALY	12.5034
LUXEMBOURG	0.2083
NETHERLANDS	4.3733
NORWAY	1.9558
PORTUGAL	1.2488
SWEDEN	2.5577
SLOVENIA	0.2328
SLOVAKIA	0.2615
TURKEY	1.8981
TOTAL	100.0000

COOPERATING STATES	CONTRIBUTION (%)
BULGARIA	0.1554
CZECH REPUBLIC	0.6981
ESTONIA	0.0678
ICELAND	0.0838
LITHUANIA	0.1416
LATVIA	0.0924
POLAND	1.8815
ROMANIA	0.4449

RESOLUTION ON
THE METEOSAT THIRD GENERATION (MTG) PAYLOAD
COMPLEMENT

Adopted at the 65th Meeting of the EUMETSAT Council
on 9 October 2008

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT programmes are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the geostationary orbit, the first satellite of a third generation of Meteosat should be available for a launch in 2015,

BEARING IN MIND that the way forward for the Phase A of the Meteosat Third Generation (MTG) Programme was unanimously endorsed at the 59th meeting of the EUMETSAT Council, with the understanding that, as a goal, an overall cost of the MTG Programme to Member States shall be comparable to that of MSG, for an equivalent lifetime,

TAKING INTO ACCOUNT that the accommodation of the Kopernikus (former GMES) Sentinel 4 payload on the two MTG sounding satellites was agreed at the 64th Council Meeting on the basis of the approach defined in document EUM/C/64/08/DOC/08,

TAKING INTO ACCOUNT the Council Resolution EUM/C/61/07/Res.I on the Preparation of the MTG Programme,

TAKING INTO ACCOUNT the Council Resolution EUM/C/62/07/Res.I on the Meteosat Third Generation Preparatory Programme, presented for adoption at the 62nd Council Meeting in June 2007 and finally adopted on 25 June 2008,

FOLLOWING the roadmap for the approval of the MTG Programme as agreed at the 60th Council meeting and as updated at the 65th Council Meeting (EUM/C/65/08/DOC/05),

AWARE that the joint roadmap agreed with ESA leading to a coordinated approval of the respective MTG programmes by both Organisations requires the establishment of a common baseline for the Phase B MTG activities in time for submission of the ESA MTG Space Segment Development Programme to the ESA Council at Ministerial level to be held in November 2008.

AGREE:

- I** To approve the MTG payload complement including the following instruments as baseline for the preparation of the full EUMETSAT MTG Programme Proposal, on the understanding that the final decision on the MTG payload complement will only be taken when approving the full Programme:
 - a. Flexible Combined Imager,
 - b. Infrared Sounder,
 - c. Lightning Imager,
 - d. The Kopernikus (former GMES) Sentinel 4 to be provided by ESA
- II** To task the Director-General to carry out the MTG Phase B activities covered under the MTG Preparatory Programme targeting a baseline system designed to cover up to 20 years of operational service for the Imagery Mission, including the related number of MTG-I and MTG-S satellites to be deployed.
- III** To task the Director-General, in conjunction with the Director General of ESA, to continue all efforts to achieve any possible cost saving and optimisation of the overall cost and expenditure profile of the Programme, to report on a regular basis to Council on the progress made, and to include a presentation of cost saving options as part of the full programme proposal.
- IV** That, in order to improve the value for money of the MTG programme, every effort should be made during the MTG Phase B to ensure that the design lifetime of the satellites is maximised, and that overall flexibility regarding the schedule of launches is preserved.
- V** To task the Director-General with confirming to ESA EUMETSAT's intention to approve a EUMETSAT MTG Development and Operations Programme in the 2010 timeframe.
- VI** To invite ESA to establish the corresponding MTG Space Segment Development Programme, covering the ESA Phases B and C/D of the prototype MTG-I-1 and MTG-S-1 satellites, on the basis of the baseline payload complement as defined in AGREE I.
- VII** To invite ESA Member States to approve the MTG Space Segment Development Programme at the ESA Council at Ministerial level in November 2008, thereby allowing a start of the ESA Phase B industrial activities in the beginning of 2009.
- VIII** To task the Director-General with finalising the negotiations of an MTG Agreement with ESA, whereby EUMETSAT will make a fixed contribution to the ESA Space Segment Development Programme, conceived to be equivalent to 30% of the ESA phase C/D development cost, as defined in the final version of the ESA Programme Declaration of the Ministerial Council 2008, and will task ESA to act as EUMETSAT's procurement agent for the recurrent MTG satellites.

**RESOLUTION ON
THE APPROVAL OF THIRD PARTY ACTIVITIES**

**Adopted at the 66th Meeting of the EUMETSAT Council
on 9-10 December 2008**

The EUMETSAT Council,

TAKING INTO ACCOUNT that the Convention foresees that EUMETSAT may, outside the mandatory and optional programmes, carry out activities not in conflict with the objectives of EUMETSAT requested and funded by third parties,

AWARE that the legal framework established in the Convention needs to be completed by more detailed procedures on the approval of third party activities,

WISHING to lay down a standard procedure to ensure consistency in approving EUMETSAT's future third party activities,

HAVING DUE REGARD to Articles 2.9 and 5.2 (a)xi of the EUMETSAT Convention,

AGREES:

- I** In approving future third party programmes, the following sequence of formal steps will be undertaken:
- 1) the EUMETSAT Council shall approve a preliminary proposal for a third party programme through adoption of an "Initiating Resolution" in accordance with the majority established in Article 5.2 (a)xi of the Convention;
 - 2) the EUMETSAT Council shall approve the full Programme Proposal and related cooperation agreement with the third party through adoption of a Resolution in accordance with Article 5.2 (a)xi of the Convention;
 - 3) the third party programme shall take effect upon signature of the cooperation agreement with the third party concerned, or at any other point in time defined in the agreement. Signature of the agreement will document the commitment by the third party to provide the necessary funding.
- II** The Director-General shall be entrusted with the preparation of the documentation required to accomplish the steps described above. This mandate shall include the negotiation of the cooperation agreement with the third party concerned.

RESOLUTION ON
THE PREPARATION OF A GMES/KOPERNIKUS SENTINEL-3 THIRD
PARTY PROGRAMME

Adopted at the 66th Meeting of the EUMETSAT Council
on 9-10 December 2008

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the “EUMETSAT Strategy: 2030” approved at the 59th Council Meeting in July 2006 foresees EUMETSAT becoming the operational agency for relevant GMES/Kopernikus missions that will complement EUMETSAT mandatory programmes, and that third party activities and optional programmes, consistent with EUMETSAT mandatory programmes and the Convention, will be the natural route for such new missions,

TAKING INTO ACCOUNT the ESA-EUMETSAT Working Assumptions on GMES/Kopernikus, including cooperation on the GMES/Kopernikus Sentinel-3 operations, captured in document EUM/C/60/06/DOC/24 endorsed by Council at its 60th meeting in November 2006,

BEARING IN MIND the approval, at the 64th Council meeting in July 2008, of the EUMETSAT involvement in GMES/Kopernikus Sentinel-3 activities including the way forward towards establishing the Sentinel-3 Third Party Programme proposed in document EUM/C/64/08/DOC/09,

CONSIDERING that the observational requirements expressed by the Fast-Track GMES/Kopernikus Marine Core Service, established to fulfil the clearly expressed need for operational systems by the oceanography user community, include altimetry, ocean colour and sea surface temperature, and that the GMES/Kopernikus Sentinel-3 mission is designed to fulfil these operational user requirements,

TAKING INTO ACCOUNT that the existing EUMETSAT satellite systems already provide data and products that are of high relevance to the GMES/Kopernikus Marine Core Service and are thus complementary to the observations to be provided by the Sentinel-3 mission,

TAKING FURTHER INTO ACCOUNT that satellite altimetry, ocean colour and sea surface temperature are elements of the observing system required for global operational oceanography,

CONSIDERING that the user communities for the GMES/Kopernikus Marine Core Service are coherent with the existing EUMETSAT user community and its objectives,

TAKING INTO ACCOUNT that the current and planned EUMETSAT missions and facilities will support the implementation of the space component of GMES/Kopernikus, alongside those of ESA and of national agencies,

CONSIDERING that the planned cooperation with ESA on Sentinel-3 is consistent with the roles of both Organisations as defined in their respective Conventions,

AWARE that the launch of the first Sentinel-3 satellite planned for October 2012 requires the involvement of EUMETSAT in Sentinel-3 activities from 2009 onwards,

BEARING IN MIND that Article 2 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties,

HAVING REGARD to the Preliminary Programme Proposal on a GMES/Kopernikus Sentinel-3 Third Party Programme contained in document EUM/C/66/08/DOC/10,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes,

AGREES:

- I** That the proposed GMES/Kopernikus Sentinel-3 programme is consistent with EUMETSAT's objectives and should be established and implemented as a Third Party Programme within the framework of the EUMETSAT Convention.
- II** To task the Director-General to draw up a full programme proposal, to be submitted for Council approval in summer 2009.
- III** To task the Director-General to prepare the necessary cooperation arrangement with ESA to be agreed by Council, regarding the respective roles, tasks and responsibilities to the Sentinel-3 programme.

RESOLUTION ON
PRE-FINANCING OF THE UPGRADE OF EUMETSAT'S
OPERATIONAL TECHNICAL INFRASTRUCTURES

Adopted at the 66th Meeting of the EUMETSAT Council
on 9-10 December 2008

The EUMETSAT Council,

RECALLING Resolution EUM/C/57/05/Res.I establishing the fourth ceiling of contributions for the General Budget for the period 2006-2010, as amended by Resolution EUM/C/63/07/Res.II, to a level of M€ 106.15 at 2006 economic conditions (e.c.),

RECALLING Resolution EUM/C/03/Res.VI on the Pre-financing of the Extension of the EUMETSAT Headquarters Building,

TAKING INTO ACCOUNT that Council agreed the setting up of a Working Group on the Upgrade of the Operational Technical Infrastructure in Preparation of Future Activities to explore and consider EUMETSAT's Headquarters Infrastructure requirements at its 63rd meeting on 6-7 December 2007,

TAKING INTO ACCOUNT that the Report of the above Working Group, contained in document EUM/C/66/08/DOC/33, confirms the need for an Upgrade of EUMETSAT's Operational Technical Infrastructures,

TAKING INTO ACCOUNT the Procurement Proposal for Upgrade of EUMETSAT's Operational Technical Infrastructures in document EUM/C/66/08/DOC/33, unanimously recommended for Council approval at the 40th Joint-STG-AFG meeting,

AWARE that the need for the Upgrade of EUMETSAT's Operational Technical Infrastructures was not foreseen at the time when the calculations of the General Budget ceiling for the time period of 2006-2010 were undertaken,

WISHING therefore to pre-finance the expenditure for the Upgrade of EUMETSAT's Operational Technical Infrastructures,

AGREES:

- I** That the ceiling of the General Budget of M€ 106.15 at 2006 e.c. for the period 2006-2010 shall not be exceeded.
- II** That an amount, not higher than M€ 11.2 at 2009 economic conditions shall be pre-financed from the EUMETSAT treasury under the cover of the General Budget until Council has identified further sources of revenue, or decided to reimburse it partially or entirely from the ceiling of the General Budget for the period 2016-2020 or from other sources.
- III** That if Council opts for the reimbursement from General Budget, it shall be carried out in five annual instalments, starting in 2016, unless Council decides otherwise.

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF POLAND TO
THE EUMETSAT CONVENTION

Adopted at the 66th Meeting of the EUMETSAT Council
on 9-10 December 2008

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Republic of Poland and EUMETSAT signed a Cooperating State Agreement on 15 December 1999, and that this Agreement has been amended in two instances establishing a duration until 31 December 2009,

BEARING IN MIND that Article 7 of the above-mentioned amended Agreement requires a formal review of the cooperation with a view to accession by Poland to EUMETSAT as a full Member State,

WELCOMING the formal request by the Republic of Poland to become a full member of EUMETSAT, expressed through a letter from the Secretary of State, deputy Minister of Environment on 3 September 2008,

NOTING with satisfaction that the Government of the Republic of Poland has decided that Poland should become a Party to the EUMETSAT Convention, as confirmed by the Letter of Accession attached to this Resolution as Annex I.

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Republic of Poland to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the terms and conditions of accession laid down in the Letter of Accession attached to this Resolution as Annex I, on the understanding that the Republic of Poland will accede to the EUMETSAT Protocol on Privileges and Immunities as soon as possible.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Republic of Poland with regard to the investments already made towards mandatory programmes at EUR 5,934,000, on the understanding that Poland shall start to contribute to the EUMETSAT annual budgets as a full Member State from 1 January 2009, and that the entry fee will be paid at the earliest opportunity.

- IV** To amend the scale of Member State contributions for mandatory programmes for the years 2009 to 2011 as attached to this Resolution in Annex II.
- V** That all legal and financial implications of the accession of the Republic of Poland will formally enter into force at the date of deposit of the instrument of accession.



Warsaw, 2 December, 2008

SECRETARY OF STATE
IN THE MINISTRY OF ENVIRONMENT

Stanisław Gawłowski

DWZ/BP/ 081 //922/2008

Mr Lars Prahm
Director General
EUMETSAT
Am Kavalleriesand 31
D - 64295 Darmstadt
Germany

Dear Director General,

Pursuant to Article 16(3) of the Convention establishing the European Organisation for the Exploitation of Meteorological Satellites (EUMETSAT) drawn up in Geneva on 24 May 1983, which entered into force on 19 June 1986 and was amended by the Protocol in force since 19 November 2000, I have the pleasure to announce that the Government of the Republic of Poland decided that Poland should become a Party to this Convention.

To this end I would like to confirm that as of the date of acceding to the Convention on full member rights, Poland shall abide by the Convention provisions along with the decisions made by the Council, covering all EUMETSAT obligatory programmes (General Budget, Meteosat Transition Programme, Programme for Meteosat Second Generation and its extension, EUMETSAT Polar System Programme, Preparatory Programme for Meteosat Third Generation). I would also like to confirm that as per the decisions, judgments, resolutions and other actions made by the Council or its subsidiary body under Agreements entered by

EUMETSAT, Poland, as well as other Member States, the principles and policies contained therein shall apply.

At the same time of the accession to the EUMETSAT Convention, Poland shall also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI, which was adopted by the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991, and which entered into force on 19 November 2000.

Poland shall also accede to the EUMETSAT Protocol on Privileges and Immunities, opened for signature on 1 December 1986, and which entered into force on 5 January 1989. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.

I would also like to advise that Poland, in line with Article 16.5 of the Convention, is prepared to make a one-off accession fee (investment) and pay the membership fee to EUMETSAT.

Considering the above, I hereby kindly request for a decision to admit Poland as a Party to the Convention establishing the European Organisation for the Exploitation of Meteorological Satellites on the next meeting of the EUMETSAT Council to be held in December 2008.

I am positive that Poland's accession will contribute to delivery of the objectives defined in the EUMETSAT Convention and that it will provide Poland with a unique opportunity to fully participate in successfully delivered programmes of this organisation and in their associated satellite systems.

Looking forward to your positive reply, I remain,

Yours sincerely,

A handwritten signature in black ink, consisting of a large, stylized 'G' followed by a vertical line and a small horizontal stroke at the bottom.

**SCALE OF CONTRIBUTIONS FOR MANDATORY
PROGRAMMES 2009-2011**

MEMBER STATE	CONTRIBUTION (%)
AUSTRIA (AT)	2.0859
BELGIUM (BE)	2.6135
SWITZERLAND (CH)	2.7902
GERMANY (DE)	19.4932
DENMARK (DK)	1.8042
SPAIN (ES)	7.6717
FINLAND (FI)	1.3699
FRANCE (FR)	14.9167
UNITED KINGDOM (GB)	15.8531
GREECE (GR)	1.6764
CROATIA (HR)	0.2509
HUNGARY (HU)	0.6987
IRELAND (IE)	1.1830
ITALY (IT)	12.2198
LUXEMBOURG (LU)	0.2183
NETHERLANDS (NL)	4.4478
NORWAY (NO)	2.0573
POLAND (PL)	1.9780
PORTUGAL (PT)	1.2478
SWEDEN (SE)	2.5655
SLOVENIA (SI)	0.2331
SLOVAK REPUBLIC (SK)	0.3244
TURKEY (TR)	2.3006
TOTAL	100.0000

COOPERATING STATE	CONTRIBUTION (%)
BULGARIA	0.1797
CZECH REPUBLIC	0.8013
ESTONIA	0.0859
ICELAND	0.0983
LITHUANIA	0.1563
LATVIA	0.1047
ROMANIA	0.5630

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF LATVIA TO
THE EUMETSAT CONVENTION

Adopted at the 66th Meeting of the EUMETSAT Council
on 9-10 December 2008

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Republic of Latvia and EUMETSAT signed a Cooperating State Agreement on 21 July 2004, and that this Agreement entered into force on the same date,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the third year following the entry into force of the Agreement, a formal review of the cooperation with a view to accession by Latvia to EUMETSAT as a full Member State,

WELCOMING the formal request by the Republic of Latvia to become a full member of EUMETSAT one year earlier than foreseen in the Cooperating State Agreement, expressed through letter from the Minister of Environment of the Republic of Latvia on 14 August 2008,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Republic of Latvia to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Republic of Latvia with regard to the investments already made at EUR 123,377. This special payment comprises EUR 63,863 towards the investments made for the mandatory programmes and EUR 59,514 towards the investments made for the Optional Jason-2 Altimetry Programme.

- IV** To amend the scale of Member State contributions for mandatory programmes for the years 2009 to 2011 as attached to this Resolution in Annex II.
- V** That all legal and financial implications of the accession of the Republic of Latvia will formally enter into force at the date of deposit of the instrument of accession.

DRAFT AGREEMENT
BETWEEN
THE GOVERNMENT OF THE
REPUBLIC OF LATVIA
AND
THE EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
CONCERNING
THE ACCESSION OF THE
REPUBLIC OF LATVIA
TO THE CONVENTION FOR THE
ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS

Preamble

The **Government of the Republic of Latvia**, (hereinafter referred to as "Republic of Latvia"),

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a) of the Convention,

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that the Republic of Latvia and EUMETSAT signed a Cooperating State Agreement on 21 July 2004,

BEARING IN MIND that Article 7 of the above mentioned Agreement establishes that the Agreement shall remain in force until 31 December 2009, unless the Republic of Latvia becomes a full Member State of EUMETSAT earlier, and that, during the third year following the entry into force of this Agreement, the Parties shall proceed to a formal review of their cooperation with a view to accession by the Republic of Latvia to EUMETSAT as a full Member States,

FOLLOWING the wish expressed by the Republic of Latvia to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed through a letter from its Minister of Environment dated 14 August 2008,

RECALLING that the EUMETSAT Council at its 66th meeting on 9-10 December 2008 agreed to welcome the Republic of Latvia as a Member State through adoption of Council Resolution EUM/C/66/08/Res. VI,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention, and that it will give the Republic of Latvia a unique opportunity to fully participate in the Meteosat Third Generation Programme from the outset,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

The Republic of Latvia accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all EUMETSAT programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension, EUMETSAT Polar System Programme, Meteosat Third Generation Preparatory Programme, and the Optional EUMETSAT Jason-2 Altimetry Programme) shall be binding for the Republic of Latvia.
2. As from the date of accession, the Republic of Latvia shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, the Republic of Latvia shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. The Republic of Latvia shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
4. The Republic of Latvia shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
5. The Republic of Latvia shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

In accordance with Article 16.5 of the EUMETSAT Convention, the Republic of Latvia shall make a special payment to EUMETSAT of 123,377 EUR. This special payment comprises 63,863 EUR towards the investments already made for the mandatory programmes, and 59,514 EUR towards the investments made for the Optional Jason-2 Altimetry Programme. This payment shall be made no later than 30 days after the date of deposit of the instrument of accession, but not earlier than 31 January 2009.

Article 4

1. The Republic of Latvia shall with regard to the provision of Article 3 above start to contribute to the EUMETSAT annual budgets as from 1 January 2009. The rate of contribution by the Republic of Latvia to the mandatory programme budgets shall be calculated in accordance with Articles 10.2 and 16.5 of the EUMETSAT Convention. The rate of contribution to the Optional EUMETSAT Jason-2 Altimetry Programme Budgets shall be 0,0966%.
2. The Republic of Latvia shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

Article 5

1. The present Agreement shall enter into force on the date of deposit of the Republic of Latvia's instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
2. In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for the Republic of Latvia on the date referred to in Article 5.1 above.
3. In accordance with its Article 24.4, the EUMETSAT Protocol on Privileges and Immunities shall become effective for the Republic of Latvia thirty days after the date referred to in Article 5.1 above.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in, on.....in two originals, in the English and Latvian languages, both texts being equally authentic.

For the Government
of the Republic of Latvia

For the European Organisation for
the Exploitation of Meteorological
Satellites (EUMETSAT)

Dr. Lars Prahm
Director-General

**SCALE OF CONTRIBUTIONS FOR MANDATORY
PROGRAMMES 2009-2011**

MEMBER STATE	CONTRIBUTION (%)
AUSTRIA (AT)	2.1256
BELGIUM (BE)	2.6634
SWITZERLAND (CH)	2.8434
GERMANY (DE)	19.8648
DENMARK (DK)	1.8386
SPAIN (ES)	7.8180
FINLAND (FI)	1.3961
FRANCE (FR)	15.2011
UNITED KINGDOM (GB)	16.1554
GREECE (GR)	1.7084
CROATIA (HR)	0.2557
HUNGARY (HU)	0.7120
IRELAND (IE)	1.2056
ITALY (IT)	12.4528
LUXEMBOURG (LU)	0.2225
LATVIA (LV)	0.1089
NETHERLANDS (NL)	4.5326
NORWAY (NO)	2.0965
PORTUGAL (PT)	1.2716
SWEDEN (SE)	2.6144
SLOVENIA (SI)	0.2375
SLOVAK REPUBLIC (SK)	0.3306
TURKEY (TR)	2.3445
TOTAL	100.0000

COOPERATING STATE	CONTRIBUTION (%)
BULGARIA	0.1797
CZECH REPUBLIC	0.8013
ESTONIA	0.0859
ICELAND	0.0983
LITHUANIA	0.1563
POLAND	1.9386
ROMANIA	0.5630

RESOLUTION ON
THE ACCESSION OF THE REPUBLIC OF LATVIA TO
THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

**Adopted by the Participating States at the 66th Meeting of the EUMETSAT
Council on 9-10 December 2008**

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/66/08/Res. VI on the Accession of the Republic of Latvia to the EUMETSAT Convention, unanimously adopted at the 66th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Latvia will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2009,

WELCOMING the wish expressed by Latvia to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.0966%,

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. IV adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the accession of Latvia to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Latvia with regard to the investments made for the Optional EUMETSAT Jason-2 Altimetry Programme until the end of 2008 at EUR 59,514.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Latvia shall contribute with a rate of 0.0966% to the annual Jason-2 budgets with effect from 1 January 2009, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.
- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Latvia will participate in the Programme with effect 1 January 2009.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II.

EUMETSAT JASON-2 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS ADJUSTED

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

PARTICIPATING STATE	ADJUSTED CONTRIBUTION %
BELGIUM (BE)	3.0729
SWITZERLAND (CH)	3.4706
GERMANY (DE)	26.6712
DENMARK (DK)	1.9691
SPAIN (ES)	6.7126
FINLAND (FI)	1.4619
FRANCE (FR)	17.3734
UNITED KINGDOM (GB)	10.5911
GREECE (GR)	0.7260
CROATIA (HR)	0.2226
IRELAND (IE)	0.9548
ITALY (IT)	13.4750
LUXEMBOURG (LU)	0.2188
LATVIA (LV)	0.0966
NETHERLANDS (NL)	4.5647
NORWAY (NO)	1.8001
PORTUGAL (PT)	1.2829
SWEDEN (SE)	2.7646
SLOVENIA (SI)	0.2341
TURKEY (TR)	2.3370
TOTAL	100.0000

EUMETSAT JASON-2 ALTIMETRY PROGRAMME VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

PARTICIPATING STATE	VOTING COEFFICIENT %
BELGIUM (BE)	3.0729
SWITZERLAND (CH)	3.4706
GERMANY (DE)	26.6712
DENMARK (DK)	1.9691
SPAIN (ES)	6.7126
FINLAND (FI)	1.4619
FRANCE (FR)	17.3734
UNITED KINGDOM (GB)	10.5911
GREECE (GR)	0.7260
CROATIA (HR)	0.2226
IRELAND (IE)	0.9548
ITALY (IT)	13.4750
LUXEMBOURG (LU)	0.2188
LATVIA (LV)	0.0966
NETHERLANDS (NL)	4.5647
NORWAY (NO)	1.8001
PORTUGAL (PT)	1.2829
SWEDEN (SE)	2.7646
SLOVENIA (SI)	0.2341
TURKEY (TR)	2.3370
TOTAL	100.0000

RESOLUTION ON
THE ACCESSION OF THE CZECH REPUBLIC TO
THE EUMETSAT CONVENTION

Adopted through Written Vote
by the EUMETSAT Council on 4 June 2009

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Czech Republic and EUMETSAT signed a Cooperating State Agreement on 31 May 2004 and that this Agreement entered into force on 21 March 2005,

BEARING IN MIND that Article 8 of the above-mentioned Agreement establishes that the Agreement shall remain in force until 31 December 2009 and that it requires, during the third year following the entry into force of the Agreement, a formal review of the cooperation with a view to accession by the Czech Republic to EUMETSAT as a full Member State,

WELCOMING the formal request by the Czech Republic to become a full member of EUMETSAT, expressed through a letter from the Deputy Prime Minister and Minister of the Environment on 5 February 2009,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Czech Republic to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Czech Republic with regard to the investments already made towards mandatory programmes at EUR 5,076,000.

- IV** To amend the scale of Member State contributions for mandatory programmes for the years 2010 to 2011 as attached to this Resolution in Annex II.
- V** That all legal and financial implications of the accession of the Czech Republic will formally enter into force at the date of deposit of the instrument of accession.

DRAFT AGREEMENT
BETWEEN
THE CZECH REPUBLIC
AND
THE EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
CONCERNING
THE ACCESSION OF THE CZECH REPUBLIC
TO THE CONVENTION
FOR THE ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF
METEOROLOGICAL
SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS

Preamble

The Czech Republic,

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that the Czech Republic and EUMETSAT signed a Cooperating State Agreement on 31 May 2004 which entered into force on 21 March 2005,

BEARING IN MIND that Article 8 of the above mentioned Agreement establishes that the Agreement shall remain in force until 31 December 2009, unless the Czech Republic becomes a full Member State of EUMETSAT earlier, and that, during the third year following the entry into force of this Agreement, the Parties shall proceed to a formal review of their cooperation with a view to accession by the Czech Republic to EUMETSAT as a full Member State,

FOLLOWING the wish expressed by the Czech Republic to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed through a letter from its Minister of dated.....,

RECALLING that the EUMETSAT Council at itsmeeting on agreed to welcome the Czech Republic as a Member State through adoption of Council Resolution EUM/C/...../Res.....,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention, and that it will give the Czech Republic a unique opportunity to fully participate in the Meteosat Third Generation Programme from the outset,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

The Czech Republic accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all EUMETSAT mandatory programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension, EUMETSAT Polar System Programme, Meteosat Third Generation Preparatory Programme) shall be binding for the Czech Republic.
2. As from the date of accession, the Czech Republic shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, the Czech Republic shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. The Czech Republic shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
4. The Czech Republic shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
5. The Czech Republic shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

1. In accordance with Article 16.5 of the EUMETSAT Convention, the Czech Republic shall make a special payment to EUMETSAT of 5,076,000 EUR towards the investments already made for the mandatory programmes.
2. The special payment referred to in paragraph 1 above shall be made in four instalments:

1,269,000 EUR no later than 30 days after the date of deposit of the instrument of accession, but not earlier than 15 March 2010;

1,269,000 EUR no later than 15 March 2011;

1,269,000 EUR no later than 15 March 2012;

1,269,000 EUR no later than 15 March 2013.

3. The payment pattern referred to in paragraph 2 above shall not attract interest for EUMETSAT.

Article 4

1. The Czech Republic shall, with regard to the provision of Article 3 above, start to contribute to the EUMETSAT annual budgets as from 1 January 2010.
2. The Czech Republic shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.

Article 5

1. The present Agreement shall enter into force on the date of deposit of the Czech Republic's instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
2. In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for the Czech Republic on the date referred to in paragraph 1.
3. In accordance with its Article 24.4, the EUMETSAT Protocol on Privileges and Immunities shall become effective for the Czech Republic thirty days after the date referred to in paragraph 1.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in, on.....in two originals, in the Czech and English languages, both texts being equally authentic.

For the Czech Republic

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Dr. Lars Prahm
Director-General

**SCALE OF CONTRIBUTIONS FOR MANDATORY
PROGRAMMES 2010-2011 (including Czech Republic)**

MEMBER STATE	CONTRIBUTION (%)
AUSTRIA (AT)	2.1103
BELGIUM (BE)	2.6442
SWITZERLAND (CH)	2.8229
CZECH REPUBLIC (CZ)	0.8271
GERMANY (DE)	19.7223
DENMARK (DK)	1.8254
SPAIN (ES)	7.7618
FINLAND (FI)	1.3860
FRANCE (FR)	15.0918
UNITED KINGDOM (UK)	16.0392
GREECE (GR)	1.6961
CROATIA (HR)	0.2539
HUNGARY (HU)	0.7069
IRELAND (IE)	1.1969
ITALY (IT)	12.3632
LUXEMBOURG (LU)	0.2209
NETHERLANDS (NL)	4.5000
NORWAY (NO)	2.0814
PORTUGAL (PT)	1.2625
SWEDEN (SE)	2.5956
SLOVENIA (SI)	0.2358
SLOVAK REPUBLIC (SK)	0.3282
TURKEY (TR)	2.3276
TOTAL	100.0000

COOPERATING STATE	CONTRIBUTION (%)
BULGARIA	0.1797
ESTONIA	0.0859
ICELAND	0.0983
LITHUANIA	0.1563
LATVIA*	0.1047
POLAND*	1.9386
ROMANIA	0.5630

* to become full Member States during 2009

RESOLUTION ON
AN INCREASE OF THE FINANCIAL ENVELOPE OF
THE EPS PROGRAMME BY 10%

Adopted at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009

The EUMETSAT Member States

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/96/Res.V establishing the EUMETSAT Polar System (EPS) Programme, formally adopted at the 42nd meeting of the EUMETSAT Council on 22-24 June 1999,

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

TAKING INTO ACCOUNT that EPS is a mandatory EUMETSAT programme to which all Member States contribute on the basis of a GNI based scale of contributions,

AWARE that, on the basis of document EUM/C/54/03/DOC/05 Rev.1, the EUMETSAT Council adopted, at its 55th meeting on 22-23 June 2004, Resolution EUM/C/04/Res.I on the Financial Envelope of the EPS Programme,

AWARE that the detailed review of the technical status and financial situation of the EPS Programme after achieving operational status of Metop-A as contained in document EUM/C/67/09/DOC/04 has confirmed that the financial envelope defined in the EPS Programme Resolution is not sufficient to complete all activities of the approved EPS Programme,

RECOGNISING the need to continue and complete the activities of the EPS Programme, including the operations of the EPS central Ground Segment and the Satellite Applications Facilities as required to deliver all agreed data and products to users and to introduce improvements in response to evolving needs of Member States,

STRESSING THE NEED to implement cost-effective solutions and to ensure that the EPS Programme represents best value for money for the users,

IN CONFORMITY WITH AGREE V of the EPS Programme Resolution, which establishes that Member States may approve possible cost overruns of up to 10% of the overall programme envelope by a vote representing at least two-thirds of the Member States present and voting, representing also at least two-thirds of the total amounts of contributions,

AGREE:

- I** That the overall EPS Programme financial envelope shall be increased from M€1464 at 1994 economic conditions to M€1610.4 at 1994 economic conditions, to cover:
 - The completion of EPS programme activities, including the coverage of the identified major risks and issues;
 - The funding of up to 5 years of Continuous Development and Operations Phase between March 2007 and February 2012 for the approved SAFs, within a limit of M€29.7 at 1994 economic conditions;
- II** That all other elements of the EPS Programme Resolution shall remain valid and in force.

RESOLUTION ON
THE GMES SENTINEL-3 THIRD PARTY PROGRAMME

**Adopted at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009**

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the “EUMETSAT Strategy: 2030” approved at the 59th Council Meeting in July 2006 foresees EUMETSAT becoming the operational agency for relevant GMES (Kopernikus) missions that will complement EUMETSAT mandatory programmes, and that third party activities and optional programmes, consistent with EUMETSAT mandatory programmes and the Convention, will be the natural route for such new missions,

RECALLING the ESA-EUMETSAT Working Assumptions on GMES (Kopernikus), including cooperation on the GMES (Kopernikus) Sentinel-3 operations, captured in document EUM/C/60/06/DOC/24 endorsed by Council at its 60th meeting in November 2006,

BEARING IN MIND the approval, at the 64th Council meeting in July 2008, of the EUMETSAT involvement in GMES (Kopernikus) Sentinel-3 activities including the way forward towards establishing the Sentinel-3 Third Party Programme proposed in document EUM/C/64/08/DOC/09,

BEARING IN MIND that the EUMETSAT Council, at its 66th meeting in December 2008, unanimously approved the Initiating Resolution EUM/C/66/08/Res. III, on the Preparation of a GMES (Kopernikus) Sentinel-3 Third Party Programme, thereby tasking the Director-General to draw up a full programme proposal, and to prepare the necessary cooperation arrangement with ESA, to be agreed by Council,

CONSIDERING that the observational requirements expressed by the Fast-Track GMES (Kopernikus) Marine Core Service, established to fulfil the clearly expressed need for operational systems by the oceanography user community, include altimetry, ocean colour and sea surface temperature, and that the GMES (Kopernikus) Sentinel-3 mission is designed to fulfil these operational user requirements,

TAKING INTO ACCOUNT that the existing EUMETSAT satellite systems already provide data and products that are of high relevance to the GMES (Kopernikus) Marine Core Service and are thus complementary to the observations to be provided by the Sentinel-3 mission,

TAKING INTO ACCOUNT that satellite altimetry, ocean colour and sea surface temperature are elements of the observing system required for global operational oceanography,

TAKING INTO ACCOUNT that the user communities for the GMES (Kopernikus) Marine Core Service are coherent with the existing EUMETSAT user community and its objectives,

CONSIDERING that the current and planned EUMETSAT missions and facilities will support the implementation of the space component of GMES (Kopernikus), alongside those of ESA and of national agencies,

CONSIDERING that the planned cooperation with ESA on Sentinel-3 is consistent with the roles of both Organisations as defined in their respective Conventions,

BEARING IN MIND that Article 2 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties,

HAVING REGARD to the Programme Proposal on a GMES (Kopernikus) Sentinel-3 Third Party Programme contained in document EUM/C/67/09/DOC/14,

HAVING REGARD to the draft EUMETSAT/ESA Framework Agreement concerning the cooperation on the GMES Space Component contained in document EUM/C/67/09/DOC/13,

HAVING REGARD to the draft EUMETSAT/ESA Implementing Arrangement concerning cooperation on GMES Sentinel-3 contained in document EUM/C/67/09/DOC/15,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes,

AGREES:

- I** To establish a GMES Sentinel-3 Third Party Programme within the framework of the EUMETSAT Convention as described in the Programme Proposal on a GMES Sentinel-3 Third Party Programme referred to in the Preamble.
- II** That the GMES Sentinel-3 Third Party Programme shall be carried out on behalf of ESA in its role as the Implementing Agency for the GMES Space Component (GSC), in accordance with the EUMETSAT/ESA Implementing Arrangement concerning cooperation on GMES Sentinel-3 referred to in the Preamble.
- III** That the overall cost to EUMETSAT for the development phase of the GMES Sentinel-3 Programme amounting to a maximum of M€22.5 at 2008 economic conditions shall be fully covered by ESA.
- IV** That the Programme shall enter into force upon signature of the Implementing Arrangement referred to in Agree II.
- V** To consider an extension of the GMES Sentinel-3 Third Party Programme to cover the routine operations of the GMES Sentinel-3 mission, subject to availability of related ESA/EC funding, it being understood that this extension shall require unanimous approval by Council in accordance with Article 5.2 (a)xi of the Convention.

RESOLUTION ON
THE CEILING OF THE GENERAL BUDGET 2011-2015

**Adopted at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009**

The EUMETSAT Member States,

HAVING REGARD to Article 2.3 of the EUMETSAT Convention, which establishes that the General Budget comprises activities not linked to a specific programme. They shall represent the basic technical and administrative infrastructure of EUMETSAT including core staff, buildings and equipment as well as preliminary activities authorised by the Council in preparation of future programmes, not yet approved,

RECALLING EUM/C/Res. XVIII establishing the first General Budget, a ceiling for the years 1990-1995 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/95/Res. VI establishing the second General Budget, a ceiling for the years 1996-2000 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/99/Res. V establishing the third General Budget, a ceiling for the years 2001-2005 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/57/05/Res. I establishing the fourth General Budget, a ceiling for the years 2006-2010 and contributions based on a GNI scale of contributions,

EXPRESSING the need to establish a new ceiling

AGREE:

- I** To fix a new ceiling of the General Budget for the years 2011-2015,
- II** To link this ceiling to contributions from Member States on a GNI scale,
- III** To limit these contributions to M€ 90 at 2010 economic conditions.

ENABLING RESOLUTION ON
THE OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME

**Adopted at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009**

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT agreed as such by Council,

HAVING REGARD to Resolution EUM/C/64/08/Res. I on the Preparation of a Jason follow-on Optional Programme, in which Council agreed that the proposed Programme is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

HAVING REGARD to the Declaration and attached Programme Definition on the Optional EUMETSAT Jason-3 Altimetry Programme adopted by interested Member States on 1 July 2009,

NOTING that any Member State shall have the opportunity to become a Participating State of the Optional EUMETSAT Jason-3 Altimetry Programme through signature of the Declaration within the timeframe set out therein,

AWARE that the Optional EUMETSAT Jason-3 Altimetry Programme will take effect once at least one third of all EUMETSAT Member States have declared their participation by signing the Declaration within the timeframe set out and the subscriptions of these Participating States have reached 90% of the total financial envelope,

IN CONFORMITY WITH Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Council Resolution EUM/C/01/Res. I on the Approval of Optional Programmes,

AGREE:

- I** To approve the execution, within the framework of the EUMETSAT Convention, of the Optional EUMETSAT Jason-3 Altimetry Programme on the basis of the Declaration and Programme Definition attached thereto referred to in the Preamble of this Resolution.
- II** To invite Participating States to sign the Declaration within the timeframe set out therein.
- III** To task the Director-General with the preparation of the necessary cooperation agreements with the international partners contributing to the overall Jason-3 mission, to be submitted for Council approval.
- IV** To task the Director-General with the execution of the Optional EUMETSAT Jason-3 Altimetry Programme in accordance with EUMETSAT's Rules and Procedures.
- V** To authorise Participating States to consider, if feasible, a possible extension of the EUMETSAT Jason-3 Altimetry Programme operations beyond the five-year period covered by the Declaration, it being understood that this extension shall require unanimous approval by those Participating States wishing to continue.

RESOLUTION ON
A FIFTH EXTENSION OF THE
METEOSAT TRANSITION PROGRAMME (MTP)

Adopted at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

CONSIDERING that the MTP Programme was set up to ensure a continuous operational service to provide data from geostationary satellites, and to fill the gap between the Meteosat Operational Programme (MOP) and the Meteosat Second Generation Programme (MSG),

NOTING that the MTP Programme, established through Resolution EUM/C/Res. XXVII in November 1990 and extended through Resolutions EUM/C/97/Res. VII, EUM/C/02/Res.I, EUM/C/04/Res. II and EUM/C/62/07/Res.II will end on 31 December 2011,

TAKING INTO ACCOUNT that nominal operations of the second MSG satellite started in April 2007, and that the full MSG system with its hot backup is providing the full primary EUMETSAT geostationary service from zero degrees longitude,

HAVING REGARD to the very positive impact that the Meteosat Indian Ocean Data Coverage (IODC) Services have had on operational meteorology and on climate monitoring since 1998 and to the significant contribution of the IODC satellites to the initial Indian Ocean Tsunami Warning Service, established following the Sumatra-Andaman Tsunami in December 2004.

BEING AWARE that no IODC-equivalent service, providing a fully adequate level of quality and availability similar to Meteosat, will exist in the near future,

WISHING to ensure a continuation of the IODC Services until a viable alternative for providing equivalent operational data to Member States is established,

BEARING IN MIND that existing space assets from the MTP Programme, and related ground segment infrastructure, allow for extended IODC operations at reduced cost,

WISHING therefore to further extend the MTP Operations,

AGREE:

- I** To extend the MTP Programme at least until 31 December 2014, in order to cover the extension of the MTP operational service at least until 31 December 2013, and subsequent close-out activities.
- II** That the extension of the MTP operations shall cover at least the following services:
 - half-hourly imaging from 57,5°E using Meteosat-7;
 - half-hourly IODC image data dissemination using EUMETCast;
 - Data Collection Platform acquisition support for selected projects;
 - meteorological products from 57,5°E generated by the MPEF;
 - archiving and retrieval using the UMARF.
- III** To limit the funding of the extension of the Meteosat Transition Programme to stay within the overall programme envelope of M€ 280 at 1989 economic conditions*.

* Typographical error; should read 284,2 M€ as established in Council Resolution EUM/C/62/07/Res II

RESOLUTION ON
THE ACCESSION OF ROMANIA TO
THE EUMETSAT CONVENTION

Adopted at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009

The EUMETSAT Council,

TAKING INTO ACCOUNT that the Convention for the Establishment of a European Organisation of the Exploitation of Meteorological Satellites (EUMETSAT), which was opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986,

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the “Amending Protocol”, attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

TAKING INTO ACCOUNT the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, including the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

WELCOMING the formal request by Romania to become a full Member State of EUMETSAT as of 1 January 2010, expressed through a letter from the Minister of Environment on 20 March 2009, as communicated to EUMETSAT Member States on 24 March 2009,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of Romania to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** That at the same time of the accession to the EUMETSAT Convention, Romania shall also accede to the EUMETSAT Protocol on Privileges and Immunities.

- III** That from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all EUMETSAT programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension, EUMETSAT Polar System Programme, Meteosat Third Generation Preparatory Programme, and the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programmes) shall be binding for Romania.
- IV** That Romania shall start to contribute to the EUMETSAT budgets as a full Member State from 1 January 2010.
- V** That Romania shall contribute to the mandatory programme budgets at a rate calculated in accordance with Article 10.2 of the EUMETSAT Convention.
- VI** That Romania shall contribute to the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programmes Budgets at a rate of 0.5827%.
- VII** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Romania with regard to the investments already made for the approved EUMETSAT Programmes at EUR 4,536,000.
- VIII** That the special payment shall be made in four instalments as follows:
- 1,134,000 EUR no later than 30 days after the date of deposit of the instrument of accession, but not earlier than 31 January 2010;
 - 1,134,000 EUR no later than 31 January 2011;
 - 1,134,000 EUR no later than 31 January 2012;
 - 1,134,000 EUR no later than 31 January 2013.
- IX** That all legal and financial implications of the accession of Romania will formally enter into force at the date of deposit of the instrument of accession.

**RESOLUTION ON THE
ACCESSION OF ROMANIA TO THE OPTIONAL EUMETSAT
JASON-2 ALTIMETRY PROGRAMME**

**Adopted by the Participating States at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009**

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/67/09/Res. VI on the Accession of Romania to the EUMETSAT Convention, unanimously adopted at the 67th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Romania will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2010,

WELCOMING the wish expressed by Romania to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.5827%,

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. IV adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the accession of Romania to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Romania with regard to the investments made for the Optional EUMETSAT Jason-2 Altimetry Programme until the end of 2009 at EUR 64,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Romania shall contribute with a rate of 0.5827% to the annual Jason-2 budgets with effect from 1 January 2010, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.
- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Romania will participate in the Programme with effect 1 January 2010.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II

EUMETSAT JASON-2 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS ADJUSTED

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

PARTICIPATING STATE	ADJUSTED CONTRIBUTION %
BELGIUM (BE)	3.0580
SWITZERLAND (CH)	3.4538
GERMANY (DE)	26.5415
DENMARK (DK)	1.9595
SPAIN (ES)	6.6799
FINLAND (FI)	1.4548
FRANCE (FR)	17.2889
UNITED KINGDOM (GB)	10.5395
GREECE (GR)	0.7225
CROATIA (HR)	0.2215
IRELAND (IE)	0.9501
ITALY (IT)	13.4094
LUXEMBOURG (LU)	0.2177
NETHERLANDS (NL)	4.5425
NORWAY (NO)	1.7913
PORTUGAL (PT)	1.2766
ROMANIA (RO)	0.5827
SWEDEN (SE)	2.7512
SLOVENIA (SI)	0.2329
TURKEY (TR)	2.3257
TOTAL	100.0000

EUMETSAT JASON-2 ALTIMETRY PROGRAMME

VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

PARTICIPATING STATE	VOTING COEFFICIENT %
BELGIUM (BE)	3.0580
SWITZERLAND (CH)	3.4538
GERMANY (DE)	26.5415
DENMARK (DK)	1.9595
SPAIN (ES)	6.6799
FINLAND (FI)	1.4548
FRANCE (FR)	17.2889
UNITED KINGDOM (GB)	10.5395
GREECE (GR)	0.7225
CROATIA (HR)	0.2215
IRELAND (IE)	0.9501
ITALY (IT)	13.4094
LUXEMBOURG (LU)	0.2177
NETHERLANDS (NL)	4.5425
NORWAY (NO)	1.7913
PORTUGAL (PT)	1.2766
ROMANIA (RO)	0.5827
SWEDEN (SE)	2.7512
SLOVENIA (SI)	0.2329
TURKEY (TR)	2.3257
TOTAL	100.0000

RESOLUTION ON
EUMETSAT ACTIVITIES IN SUPPORT TO CLIMATE MONITORING

**Adopted at the 67th Meeting of the EUMETSAT Council
on 30 June – 1 July 2009**

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT based on its Convention is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

TAKING INTO ACCOUNT that the understanding of climate change and the prediction of future climatic changes constitutes an important component of the strategies of the WMO and of the European Meteorological Services,

RECALLING that the “EUMETSAT Strategy: 2030” approved at the 59th Council Meeting in July 2006 recognises that the almost 30 year EUMETSAT data record can make an important contribution to the efforts to better understand climate change,

TAKING INTO ACCOUNT that the very nature of EUMETSAT’s operational programmes with their frequent global observations guaranteed over long periods of time leads to the availability of long-term data records,

RECOGNISING the role of the EUMETSAT Central Facilities and of the EUMETSAT Network of Satellite Application Facilities (SAF) in providing these long-term data records,

TAKING INTO ACCOUNT that the user consultation process for the establishment of future EUMETSAT programmes such as MTG and post-EPS has fully captured climate monitoring requirements as a part of EUMETSAT’s user requirements,

TAKING INTO ACCOUNT EUMETSAT’s commitment to support the objectives of the Global Climate Observing System (GCOS) and of the WMO Global Space-Based Inter-Calibration System (GSICS), and also the EUMETSAT involvement in the WMO initiative for the Sustained and Coordinated Processing of Environmental Satellite Data for Climate Monitoring (SCOPE-CM),

AGREES:

- I** That taking into account the climate-specific requirements in the planning of new programmes including activities of the SAF Network is a specific responsibility of EUMETSAT, and that this constitutes a major contribution of EUMETSAT in support of climate monitoring needs.
- II** That the generation of Fundamental Climate Data Records (FCDR) at EUMETSAT's Central Facility and through its Satellite Application Facility Network should be the main focus of EUMETSAT activities to support climate monitoring.
- III** That the generation of Thematic Climate Data Records (TCDR), making best use of the expertise available in the EUMETSAT SAF Network, should be the second focus of EUMETSAT activities in support of climate monitoring.
- IV** To encourage all EUMETSAT SAFs to take into account climate monitoring needs in their proposals for the planned SAF CDOP-2 phase.
- V** To task the Director-General with the coordination of EUMETSAT's contribution to climate monitoring at international level with the aim of preserving the visibility, interests and assets of EUMETSAT and of the European Meteorological Infrastructure (EMI).
- VI** To task the Director-General with the elaboration and maintenance of an implementation plan covering the activities to be carried out by EUMETSAT in support of climate monitoring, to be reported to the EUMETSAT Council on a regular basis.

**DECLARATION ON
THE OPTIONAL EUMETSAT JASON-3
ALTIMETRY PROGRAMME**

**Adopted by the Potential Participating States on 1 July 2009
at the 67th Meeting of the EUMETSAT Council**

The Potential Participating States,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy approved at the 59th Council meeting foresees continuity of the optional Jason altimetry satellite series and that the EUMETSAT involvement in this programme needs to be resolved in the short term, by establishing a unified global altimetry system covering both the non-sun synchronous and the sun synchronous orbits, building upon the existing partnership with NOAA, NASA, CNES, ESA and the EC,

TAKING INTO ACCOUNT that the EUMETSAT Council, at its 60th meeting, requested the Director-General to carry out a number of activities preparing EUMETSAT for its future role in operational oceanography missions, which included the definition of a EUMETSAT Jason Follow-on Programme,

TAKING INTO ACCOUNT the requirement for satellite ocean altimetry observations expressed by the WMO, the Global Ocean Data Assimilation Experiment (GODAE), the Global Ocean Observing System (GOOS), the Ocean Observations Programme Committee (OOPC), the Integrated Global Observing Strategy Partnership (IGOS-P) and the Global Climate Observing System Implementation Plan (GCOS),

BEARING IN MIND that the Topex/Poseidon and Jason-1 missions established by the Centre National d'Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) have proven the value of altimetry observations in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and the monitoring of the climate,

CONSIDERING that the requirement to continue these services on a sustained operational basis and the recognition that EUMETSAT is the relevant European operational organisation led to the establishment of the Optional EUMETSAT Jason-2 Altimetry Programme through Declaration EUM/C/01/Decl.I,

RECALLING that 20 out of the 24 EUMETSAT Member States have agreed to participate in the Jason-2 Optional Programme,

TAKING INTO ACCOUNT the successful launch of the Jason-2 satellite in June 2008 and the operations planned to last until mid 2013,

BEARING IN MIND, that the complete altimeter system requested by users consists of a reference mission based on a Jason-type low inclination orbit as well as high inclination orbiting altimeters, which will be realized in Europe in the context of GMES Sentinel 3 and are based on the heritage of the ESA missions ERS and ENVISAT,

AWARE that the requirement to preserve operational continuity to the reference ocean altimetry mission beyond the expected end of life of the Jason-2 spacecraft requires the availability of a Jason-2 follow on satellite ready for launch in mid 2013,

AWARE that this Jason-3 programme is a first step towards an operational high precision altimetry Jason-CS programme consisting of a series of Jason-class satellites based on the Cryosat mission heritage, to be agreed with ESA in the 2011 timeframe,

ANTICIPATING that the combination of Jason-3 and this Jason-CS programme, is intended to provide data continuity in a long term operational perspective,

BEARING IN MIND that Article 2 of the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT and agreed as such by Council,

HAVING REGARD to Resolution EUM/C/64/08/Res.I on the Preparation of a Jason Follow-on Optional Programme, in which Council agreed that the proposed programme is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

TAKING INTO ACCOUNT the Programme Proposal on the Optional EUMETSAT Jason-3 Altimetry Programme contained in document EUM/C/67/09/DOC/09 Rev.1,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Resolution EUM/C/01/Res.1 on the Approval of Optional Programmes,

AGREE:

- I** To establish an Optional EUMETSAT Jason-3 Altimetry Programme within the framework of the EUMETSAT Convention as described in the EUMETSAT Jason-3 Altimetry Programme Proposal referred to in the Preamble.
- II** That the System Description and Implementation Plan of the Optional EUMETSAT Jason-3 Altimetry Programme shall be as described in the Programme Definition attached as Annex I to this Declaration.
- III** That the Optional EUMETSAT Jason-3 Altimetry Programme shall constitute a contribution to a joint mission established in conjunction with the United

States National Oceanic and Atmospheric Administration (NOAA), to which also the Centre National d'Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) will make significant contributions.

- IV** That EUMETSAT's contribution to the joint mission shall be defined in detail in cooperation agreements with the above international partners.
- V** That the financial envelope for the EUMETSAT Jason-3 Altimetry Programme amounts to a maximum of M€63.6 at 2009 e.c. (M€60 at 2007 e.c.) . All efforts shall be made to keep actual expenditure below this figure.
- VI** That the overall cost of the Programme shall be M€97.5 at 2009 e.c. (M€92 at 2007 e.c.), it being understood that the difference between the financial envelope and the overall cost shall be provided by the European Space Agency (ESA) and the European Commission (EC) and that EUMETSAT shall not be liable for any funding difficulties at ESA or the EC.
- VII** That the funds to be provided by ESA and the EC, as detailed in the Programme Proposal, shall be secured through dedicated agreements and that if, contrary to expectations, these funds could not be obtained, the Participating States will unanimously decide on the action to be taken.
- VIII** That the conclusion of any agreement will require separate approval by the EUMETSAT Council.
- IX** To participate in the Optional EUMETSAT Jason-3 Altimetry Programme in accordance with an indicative payment profile and the scale of contributions as set out in Annex II to this Declaration.
- X** To consider, if feasible, a possible extension of the Optional EUMETSAT Jason-3 Altimetry Programme operations beyond the 5-year period covered by the Optional EUMETSAT Jason-3 Altimetry Programme Proposal, it being understood that this extension shall require unanimous approval by those EUMETSAT Participating States wishing to continue.
- XI** To invite the EUMETSAT Member States wishing to participate in this Optional EUMETSAT Jason-3 Altimetry Programme to sign this Declaration as soon as possible and no later than *31 December 2009*, thereby becoming Participating States.
- XII** To invite EUMETSAT Cooperating States to contribute to the Optional EUMETSAT Jason-3 Altimetry Programme under terms to be agreed by the EUMETSAT Participating States.
- XIII** To task the Director-General to prepare with ESA and other international partners for a Jason-CS precise Altimetry Programme providing data continuity in a long term operational perspective on the basis of the EUMETSAT-ESA cooperation model successfully used for operational meteorology.

This Declaration has been signed by the following Participating States:

PARTICIPATING STATES	DATE
BELGIUM (BE) SWITZERLAND (CH) GERMANY (DE) DENMARK (DK) SPAIN (ES) FINLAND (FI) FRANCE (FR) UNITED KINGDOM (GB) GREECE (GR) CROATIA (HR) HUNGARY (HU) IRELAND (IE) ITALY (IT) LUXEMBOURG (LU) NETHERLANDS (NL) NORWAY (NO) PORTUGAL (PT) ROMANIA (RO) ¹ SWEDEN (SE) SLOVENIA (SI) SLOVAKIA (SK) TURKEY (TR)	

¹ pending accession to full membership

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME DEFINITION

1 GENERAL

The primary objective of the Programme is to ensure that the user community continues to receive precise altimetry data on an operational basis while Europe prepares for a long term operational perspective. To meet this need, Jason-3 will be an Earth orbiting satellite in a 66° orbit equipped with a radar altimeter and other instruments to directly measure sea surface elevation along a fixed grid of sub-satellite ground tracks. Jason-3 will thereby continue the data collection carried out by Topex/Poseidon, Jason-1 and Jason-2.

As an evolution of the Jason-2 OSTM Programme, the Optional EUMETSAT Jason-3 Altimetry Programme will rely on an international partnership between EUMETSAT, NOAA and CNES and NASA. In addition, it is expected that ESA and the European Commission will contribute. The increased role of NOAA and EUMETSAT as operational agencies reflects the ongoing transition from Research and Development towards full operations.

2. MISSION APPLICATIONS

The main focus of Jason-3 is to provide continuity to the unique accuracy, continuity and coverage of the Topex/Poseidon, Jason-1 and Jason-2 missions in support of operational applications related to extreme weather events and operational oceanography and climate applications and forecasting.

2.1 Operational Applications

2.1.1 Marine Meteorology

Meteorological centers run sea state forecast models to anticipate the evolution of waves and swells, which are superimposed, on all parts of the Earth, providing sailors and workers at sea with regular forecasts and special weather updates when weather conditions deteriorate. Such models (e.g. VAG at Météo-France, WAM at the ECMWF European Center) benefit greatly from real-time wave-height and wind speed altimetry products such as those issued within 3 hours from Jason-1 and 2, and ENVISAT.

2.1.2 Short, Medium Range and Seasonal Forecast

The assimilation of altimetry data into coupled atmosphere-ocean models has also proved to be very beneficial for short range, as well as medium range, monthly and seasonal forecasting, which are core activities of the National Meteorological Services. It has already been shown that coupled Atmospheric/Wave models allow to better estimate the flux at the interface between the atmosphere and the ocean, with some positive impact on numerical weather prediction. Also the actual heat content of the ocean mixed layer can have a decisive influence on the development and short range forecasting of high impact weather. In particular the derivation, from altimetry

measurements of the so called Tropical Heat Content Potential (THCP), allows an improved prediction of hurricane intensity as was first demonstrated in 2005 with Katrina and Rita, and now being run operationally at NOAA. Likewise, recent mesoscale simulations have demonstrated that, in September/October, an increase of 3°C over some depth in the Mediterranean sea can more than double cumulated rainfall over 6-12 hours, in those convective situations associated with severe floods and major losses in nearby areas.

On longer timescales, the assimilation of both satellite (altimetry and sea surface temperature) and in situ data in ocean models coupled with atmosphere models is key to improving monthly and seasonal forecast.

2.1.3 Ocean Modeling

Several global and regional models (e.g. MERCATOR, FOAM, ECCO...) have been developed and run in an experimental or pre-operational configuration, before entering the operational phase with the MyOcean project. They provide high resolution, high frequency 3D products which depict and forecast a few weeks in advance the very short scale nature of the ocean signal, including current positions and intensity, position and scales of eddies and thermal fronts. Because of the highly turbulent characteristics of this short range signal and its non-linear evolution, it is necessary to take advantage of global, dense, and accurate observations. Altimetry is especially powerful for monitoring in near-real time the mesoscale signal and adjusting regularly the models. The derived products satisfy many applications (e.g. marine safety, marine pollution, ship routing, navy needs, oil drilling, coastal forecasts, fish stock management...).

2.1.4 Coastal Applications

Another field of activity is that concerning coastal areas where there are many problems related to risk prevention and coastal development. High resolution models require as an input high accuracy products in the coastal band as well as at the deep ocean boundary. One example is the prediction of storm surges. Another example is the trajectory monitoring and forecasting of drifting polluted waters, ships, and objects lost at sea. In this domain too, altimetry products have a key role to assess and to constrain frequently the models, improving thus the forecasts.

2.1.5 Security Related Applications

Sound can propagate a long way under water and five times faster on average than it does in air. Variations in the speed of sound with depth determine how sound waves are propagated and are key parameter for security forces deployed at sea.

In the ocean, we encounter fronts, anticyclones, depressions, currents and hot and cold eddies. Each of these structures causes temperature, salinity and velocity profiles to vary. In such turbulent conditions, military oceanography aims to give forces the most accurate picture possible of the ocean so that systems can be employed effectively. In this respect, the advent of operational altimetry satellites has opened new horizons.

2.2 Climate Applications and Forecasting

2.2.1 Sea Level Rise and Climate Change

At the other end of the ocean variability spectrum, the secular mean sea level trend is a key indicator of global warming. Global sea level rise (GSLR) – the most obvious manifestation of climate change in the oceans – directly threatens critical coastal infrastructure through increased erosion and more frequent flooding. 146 million people live within 1 meter of mean high water worldwide.

Projections of GSLR for the end of this century as stated in the Third Assessment Report (TAR, 2001) of the Intergovernmental Panel on Climate Change (IPCC) ranged from 9 to 88 cm, while those in the Fourth Assessment Report (AR4, 2007) range from 18 to 59 cm. To evaluate how realistic these projections are, they will need to be compared with future direct observations of GSLR; and the only way to resolve the global variability inherent in sea level rise is to use observations to be collected by Jason-class altimeter missions, in a manner that is fully consistent with the series accumulated since 1992 by TOPEX/Poseidon, Jason-1 and Jason2.

The continuity of these high accuracy measurements is more crucial as there are major uncertainties on sea level rise, associated with major changes in the climate system. The AR4 report stated that...*models [of GSLR] used to date do not include uncertainties...[such as the] ...effects of changes in ice sheet flow.* Forced to ignore these uncertainties because existing climate models are unable to account for them, AR4 further states ...*the upper values of the ranges given are not to be considered upper bounds...for GSLR.* The recent U.S. Climate Change Science Program Synthesis and Assessment Report on Abrupt Climate Change goes even further stating that inclusion of these uncertainties ...*will likely lead to sea-level projections for the end of the 21st century that substantially exceed the projections presented in the IPCC AR4 report.*

The uncertainties are already showing in the available data sets, with the rise in global sea level (1.8 mm/yr averaged over the past century) increasing to 3.1 mm/yr over the past 1½ decades but decreasing to 2.5 mm/y in more recent years, with less contribution from thermal expansion of the upper ocean and more from melting of continental glaciers. Furthermore, the geographic distribution of sea level rise is even more difficult to predict. Under the scenario of a massive melting of the Greenland ice sheets, the anticipated sea level rise in Europe or South America would be quite different, and recent research results suggest that the assumed stability of the Greenland ice sheets may be very questionable. Reliable projections of regional sea level rise which is of great concerns to coastal zones around the world are crucially dependent on a global observing system. Therefore, it is essential that we maintain and extend our existing capability to collect direct observations of GSLR by satellite altimetry; these measurements have been made continuously since 1992 by a series of three satellites, the most recent, Jason-2, having been launched this past June.

The continuation of Jason type missions is a unique way to fulfill this objective of great importance and of general interest.

2.2.2 Research Topics

The ocean exhibits variability at different scales in time and space, affecting significantly mass and heat transport, exchanges with the atmosphere, and consequently the climate. Sea surface topography as measured by altimetry has proven its usefulness to understand the physics behind this variability. Model parameterization has been improved thanks to these new findings. But there is still more to do. Apart from the seasonal cycle, which leads to an increase or decrease in sea level in each hemisphere, exceeding 15 cm in some areas, there are significant variations from one year to the next which are not yet well understood.

The El Nino event, the North Atlantic Oscillation, the Pacific Decadal Oscillation, the planetary waves crossing the oceans over periods of months to years and even decades are among the mechanisms which need to be better characterized. The predictability of the coupled ocean-atmosphere system at decadal ranges is a subject of intensifying modeling research, with the control of the ocean state playing a key role.

Because of the long period of these phenomena, very long time series of altimeter observations are needed, requiring follow-on missions to Jason-2.

3. CORE PRODUCTS AND SERVICES

3.1 Products Description

The Jason-3 products will be based on the Jason-2 ones as described in the table below.

	Products	Main Variables	Frequency	Application Class
1	Operational Geophysical Data Record (OGDR)	Significant Wave Height (SWH) Surface Wind Speed (WIND) Sea Surface Height (SSH)	3 hours	Nowcasting Operational Wave Forecasting
2	Interim Geophysical Data Record (IGDR)	Sea Surface Height (SSH) Absolute Dynamic Topography (ADT) Ocean Geostrophic Velocities	Daily	Medium-Range Forecasting Seasonal Forecasting Ocean Weather
3	Geophysical Data Record (GDR)	Sea Surface Height (SSH)	10 daily (one repeat cycle)	Climate Monitoring Climate Modeling

It should be noted that some demonstration products will be evaluated on Jason-2, for instance, coastal or in land water products. If the performance and quality of those products are demonstrated, then they could become operational products for Jason-3, in which case they would be included in the Operational Service Specification.

3.2 Archiving and Dissemination

The Near Real Time products will be disseminated by EUMETSAT through Eumetcast and also on the GTS network. These products will also be archived in the UMARF. The longer latency IGDR and GDR products will be processed as for Jason-2, disseminated and archived by CNES in Europe and by NOAA in the US. In addition, EUMETSAT is also investigating the possibility to disseminate multi-mission altimetry products.

4. SYSTEM DESCRIPTION

4.1 Overview

The Jason-3 end to end system includes a satellite, launch, and a full ground system. The task sharing between the partners will ensure a coherent overall system. The overall system described below is the total system that will be jointly provided by all partners.

4.2 Space Segment

The satellite includes the satellite bus and the instruments constituting the payload. The total weight of the satellite will be around 550Kg. The satellite bus is made up of a platform based on the PROTEUS platform, a payload instrument module and a launcher adapter.

The Jason-3 payload consists of the following instruments:

- Two-frequency altimeter called Poseidon
- Three-frequency advance microwave radiometer
- Doppler Orbitography and Radiopositioning Integrated by Satellite (DORIS) on board package
- Global Positioning System Payload (GPS-P)
- Laser Reflector Array (LRA)

NOAA will provide the launch of the Jason-3 satellite.

4.3 Ground System

The ground segment, for satellite and instrument command and control, and for product generation, will be based on a maximum re-use of existing elements from Jason-2. This system is now operational for some months and is compliant with the needs. This ground segment is operated by both the US and Europe and makes extensive use of already existing assets. It has a robust design which includes several levels of redundancy. It comprises:

- **A Satellite Control Centre** provided by CNES. This centre monitors the satellite during the complete mission life time but is only used for satellite control in the early phases of the mission or in the case of a major anomaly during Operations;

- **A Satellite Operations Control Centre** provided by NOAA. After the initial phases of the mission, all nominal operations regarding satellite control and flight operations are executed from this centre;
- **An Earth Terminal/Stations Network:** the CNES control centre and the NOAA operation control centre rely (for command transmission and data acquisition) upon a ground terminal network of earth terminal/stations suitably located to allow the required orbit coverage compliant with the data latency requirement.

This network is based on:

- An earth terminal in Europe.
- Two earth terminals in the USA
- An additional set of S-band earth terminals for early mission phases and contingency purpose.

The exact location of these earth terminals needs to be further analyzed to cope with the constraints induced by the initial formation flying between Jason-2 and Jason-3 (both satellites flying one minute apart from each other) which prevents to use the same antennas as for Jason-2.

The operations set-up is based on that of Jason-2, with NOAA in charge of routine satellite operations and CNES leading the satellite expertise and operations in case of anomaly during the mission. With the view of keeping recurrence with Jason-2 and minimising the development costs and associated risks, the Jason-2 operations concept was retained.

5 COOPERATIVE FRAMEWORK AND SHARING OF RESPONSIBILITIES

Like the Jason-2 programme, it is proposed to base the Programme on international cooperation. In the case of Jason-3, and taking into account that this programme represents a further step in the transition towards a long term operational altimetry programme, the following Partners are involved.

From a funding stand point, NOAA, EUMETSAT, CNES, NASA, the European Commission and ESA contribute to the Programme. To avoid the complexity of a 6 partners' Agreement, and bearing in mind that only NOAA, EUMETSAT, CNES and NASA will be directly in charge of the development and the operations of the system, it is proposed to establish a four partner Memorandum of Understanding (MOU) and a set of bilateral Agreements or Arrangements including one between NOAA and NASA for the US contribution:

- Four-partite MOU (EUMETSAT, NOAA, CNES, NASA)
- Agreement between EUMETSAT and CNES
- Agreement between EUMETSAT and ESA
- Agreement between EUMETSAT and the European Commission (EC)

Taking into account the nature of the Jason-3 cooperative framework, it is proposed to adopt the same Data Policy as for the OSTM (Jason-2) cooperation. This means that all Jason-3 data products would be made available in accordance with WMO Resolution 40 (Cg-XII) and be classified as “Essential”.

Access to GMES Services and to ESA will be explicitly covered in the arrangements to be concluded with the EC and ESA regarding their funding contributions to the programme.

The operational agencies, EUMETSAT and NOAA, will take the lead on the programme, with CNES making a significant in kind contribution and acting at technical level as system coordinator. NASA will support with the other partners for scientific activities.

EUMETSAT will maintain the operational role already established for the Jason-2 Programme, ie it will operate the Earth Terminal, process, disseminate and archive the near real time products, provide the user services and conduct mission operations jointly with NOAA and CNES.

In addition, EUMETSAT will make payments to CNES to fund part of the CNES activities, and retain a fraction of the funding to prepare and perform its operational activities. EUMETSAT will not play a direct role in the procurements effected by CNES.

NOAA will join EUMETSAT in taking the lead on the programme. NOAA will also provide the launcher and launch services, the radiometer, GPS-P receiver and laser retroreflector and, together with CNES and EUMETSAT, operate the system after the end of commissioning along an equivalent scheme as for Jason-2.

CNES will make a significant in kind contribution, consisting mainly of the satellite bus and human resources. In addition, CNES will act as procurement agent on behalf of EUMETSAT, integrate all payload elements and operate the satellite after the launch.

All agreements will be on a “reasonable efforts” basis, and EUMETSAT will ensure that it does not assume any financial liability for elements or funding to be provided by Partners.

6 SCOPE OF EUMETSAT PROGRAMME AND IMPLEMENTATION

It should be recalled that the primary objective of the Programme and of the EUMETSAT involvement is to secure continuity of data services and that this Programme, recurrent from Jason-2, does not have the development aspects normally associated with the core EUMETSAT meteorological programmes.

The EUMETSAT Jason-3 Altimetry Programme covers the EUMETSAT contribution to the joint system established with the partners and aims at providing a five-year operational data service to Participating States and other users. The main elements of the EUMETSAT programme are:

- A financial contribution by EUMETSAT to CNES,
- Establishment, operations and maintenance of the EUMETSAT Earth Terminal (to be confirmed)
- Processing, dissemination and archive of the near real time products, provision of user services and conduct of mission operations jointly with NOAA and CNES

EUMETSAT will implement the Jason-3 Altimetry Programme in a single slice. Jason-3 has to be ready for launch in mid-2013. The expected period of operations is five years. It is intended that agreement will be sought to extend operations if the performance of the satellite remains satisfactory towards the end of this period. This will require a separate decision by all EUMETSAT Participating States wishing to continue.

7 LONG TERM OPERATIONAL PERSPECTIVE WITH A EUROPEAN JASON-CS PROGRAMME

The Jason-3 programme should be seen as the first intermediate step towards an operational high precision altimetry Jason-CS programme to be agreed with ESA in the 2011 timeframe. This programme would consist of a series of Jason-class satellites based on the Cryosat mission heritage, until a transition to a demonstrated new technology could be considered as an operational altimetry mission.

Following the positive decisions taken at the ESA Council at Ministerial Level in November 2008 (C-MIN 08), dedicated studies on Jason-CS have been approved. These studies should provide the necessary technical and programmatic input for a decision to develop a Jason-CS programme creating a long term operational perspective, at the latest by the ESA Council at Ministerial level currently planned in 2011.

This programme should be developed on the basis of the EUMETSAT-ESA cooperation model successfully used for operational meteorology. It is indeed essential to plan for a series of operational satellites developed along the principles used for operational meteorology in Europe.

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for the Optional EUMETSAT Jason-3 Altimetry Programme shall be limited to a maximum of M€63.6 at 2009 economic conditions (M€60 at 2007 economic conditions).

The indicative EUMETSAT payment profile, based upon a mid 2013 launch and five years of operations, is:

Year	2010	2011	2012	2013	2014	2015	2016	2017	2018
M€	20.9	26.2	13	3.5	0	0	0	0	0

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-3 Altimetry Programme in accordance with the following scale of contributions:

PARTICIPATING STATE	CONTRIBUTION %
BELGIUM (BE)	
SWITZERLAND (CH)	
GERMANY (DE)	
DENMARK (DK)	
SPAIN (ES)	
FINLAND (FI)	
FRANCE (FR)	
UNITED KINGDOM (GB)	
GREECE (GR)	
CROATIA (HR)	
HUNGARY (HU)	
IRELAND (IE)	
ITALY (IT)	
LUXEMBOURG (LU)	
NETHERLANDS (NL)	
NORWAY (NO)	
PORTUGAL (PT)	
ROMANIA (RO) ²	
SWEDEN (SE)	
SLOVENIA (SI)	
SLOVAKIA (SK)	
TURKEY (TR)	
TOTAL	100

² pending accession to full membership

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME
VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

PARTICIPATING STATE	% VOTING COEFFICIENT
BELGIUM (BE)	
SWITZERLAND (CH)	
GERMANY (DE)	
DENMARK (DK)	
SPAIN (ES)	
FINLAND (FI)	
FRANCE (FR)	
UNITED KINGDOM (GB)	
GREECE (GR)	
CROATIA (HR)	
HUNGARY (HU)	
IRELAND (IE)	
ITALY (IT)	
LUXEMBOURG (LU)	
NETHERLANDS (NL)	
NORWAY (NO)	
PORTUGAL (PT)	
ROMANIA (RO) ³	
SWEDEN (SE)	
SLOVENIA (SI)	
SLOVAKIA (SK)	
TURKEY (TR)	
TOTAL	100.0000

³ pending accession to full membership

RESOLUTION ON
THE EXTENSION OF THE TIMEFRAME FOR SIGNATURE
OF THE OPTIONAL JASON-3 PROGRAMME DECLARATION

Adopted by the Potential Participating States
on 2 December 2009

The Potential Participating States,

TAKING INTO ACCOUNT that 19 Member States have indicated their interest in participating in the Optional Jason-3 Programme (Belgium, Croatia, Denmark, Finland, France, Germany, Greece, Ireland, Italy, Luxembourg, Netherlands, Norway, Portugal, Slovenia, Spain, Sweden, Switzerland, Turkey, United Kingdom),

TAKING INTO ACCOUNT the Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme adopted by Potential Participating States on 1 July 2009,

TAKING INTO ACCOUNT that the Declaration was approved by the EUMETSAT Council at its 67th meeting on 30 June – 1 July 2009 through Enabling Resolution EUM/C/67/09/Res. IV on the Optional EUMETSAT Jason-3 Altimetry Programme,

NOTING that the above Declaration invites the EUMETSAT Member States wishing to participate in the Optional Jason-3 Altimetry Programme to sign the Declaration as soon as possible and no later than 31 December 2009, thereby becoming Participating States,

AWARE that 13 out of the 19 Potential Participating States have signed the Declaration by 2 December 2009,

NOTING that the remaining Potential Participating States will make every effort to sign the Declaration in the very near future,

AWARE that a delay in the Programme entry into force beyond January 2010 will have a significant impact on schedule, cost, the cooperative framework of the Programme and on those Member States that have already subscribed the Programme,

CONSCIOUS that the Optional EUMETSAT Jason-3 Altimetry Programme will enter into force once a 90% subscription level has been reached,

HAVING DUE REGARD to Articles 3.2 and 5.3 of the Convention,

AGREE:

- I** To extend the timeframe for signature of the Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme set out in AGREE XI of the Declaration until *31 January 2010*.
- II** That if the Declaration has not entered into force by *31 January 2010* the Potential Participating States will decide on the action to be taken.
- III** After entry into force of the Optional Jason-3 Programme, to continue to accept further subscriptions by Member States with a view to reaching a 100% subscription level.
- IV** To reconsider the funding situation of the Programme at the latest one year after the date at which it has taken effect.
- V** To request the Director-General to continue his efforts in addressing the contribution to this Programme by those Member States which have not yet indicated their wish to participate.

**RESOLUTION ON
EUMETSAT STAFF CONTRACTS POLICY**

**Adopted at the 68th Meeting of the EUMETSAT Council
on 1-2 December 2009**

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the Convention entrusts the Director-General with the implementation of the decisions taken by the Council and with the execution of the tasks assigned to EUMETSAT,

NOTING that the Convention establishes that the Director-General shall be supported by the Secretariat,

BEARING IN MIND that the fundamental conditions of service for EUMETSAT staff are set out in the Staff Rules agreed by Council,

BEARING IN MIND that the currently approved mandatory and optional programmes cover the provision of operational services from geostationary and high and low inclination polar orbits lasting until at least 2020,

BEARING IN MIND that EUMETSAT is currently preparing for the establishment of new programmes aimed at ensuring operational continuity of these services well into the next decades,

HAVING DUE REGARD to the EUMETSAT Strategy : 2030 approved by Council in 2006, which establishes that a key element of the strategy on human resources will be to develop and maintain an appropriate technical, management and scientific skill base within EUMETSAT so that the programmes defined by Council can be prepared and implemented in an efficient manner,

WISHING to offer highly qualified and performing staff a longer term career perspective to ensure their knowledge and experience continues to be available where needed,

WISHING to adjust the long-term EUMETSAT Staff Contracts Policy as set out in Resolution EUM/C/94/RES.V, to align with the maturing long-term operational objectives and activities of EUMETSAT,

AGREES:

- I** That the main objective of the EUMETSAT Staff Contracts Policy shall be to ensure that all EUMETSAT activities are effectively and efficiently carried out by staff of the highest ability and integrity, account being taken of the international character of EUMETSAT.
- II** That this objective shall be achieved through a variety of mechanisms including professional recruitment, a thorough appraisal system, career management and development, and natural turnover.
- III** That the Director-General shall implement the EUMETSAT Staff Contracts Policy primarily on the basis of fixed-term renewable contracts of up to five years duration. Indefinite contracts shall remain exceptional and be subject to Council approval.
- IV** That when considering whether to award a further contract the Director-General shall consider
- the recommendation of a Staff Contracts Review Board (SCRB) including an assessment of past performance of the staff member, the expected future performance and the requirement in EUMETSAT for the kind of expertise offered by the staff member, and
 - whether, in exceptional cases and in the interests of the Organisation, a different and documented decision is required to the one recommended by the SCRB.
- V** That the Staff Rules shall establish a maximum age limit for service, beyond which contracts are not renewed without Council decision. Below that age limit, the Director-General shall manage the retirement process and define a normal retirement age in the Staff instructions in the EUMETSAT Directory of Instructions.
- VI** That the Director-General shall report annually to the Council about the implementation of the Staff Contracts Policy.

**RESOLUTION ON
THE METEOSAT THIRD GENERATION (MTG) PROGRAMME**

**Presented for adoption at the 69th Meeting of the EUMETSAT Council
on 26 March 2010, adopted on 25 February 2011**

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT Programmes are the basic Programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the geostationary orbit, the first satellite of a third generation of Meteosat should be available for a launch in late 2016,

TAKING INTO ACCOUNT that the way forward for the Phase A of the Meteosat Third Generation (MTG) Programme was unanimously endorsed at the 59th meeting of the EUMETSAT Council, with the understanding that, as a goal, an overall cost of the MTG Programme to Member States shall be comparable to that of MSG, for an equivalent lifetime,

TAKING INTO ACCOUNT the Council Resolution EUM/C/61/07/Res.I on the Preparation of the MTG Programme which defined the space segment configuration of the MTG system,

TAKING INTO ACCOUNT the Resolution EUM/C/62/07/Res.I on the MTG Preparatory Programme, which established a programmatic framework for MTG preparatory activities commencing in 2008 and lasting until the start of the full MTG Programme expected to be no later than mid 2010,

TAKING INTO ACCOUNT that the Resolution EUM/C/62/07/Res.I on the MTG Preparatory Programme tasked the Director-General with elaborating a Programme Proposal for the full MTG Programme and related Resolution, and to submit them for Council consideration no later than autumn 2009,

TAKING INTO ACCOUNT the Resolution EUM/C/65/08/Res.I on the MTG payload complement, in which the EUMETSAT Member States approved the MTG payload including the following instruments as baseline for the preparation of the full EUMETSAT MTG Programme Proposal, on the understanding that the final decision on the MTG payload complement will only be taken when approving the full Programme: Flexible Combined Imager; Infrared Sounder; Lightning Imager; and the GMES Sentinel-4 to be provided by ESA as a part of the GMES Space Component (GSC) Programme co-funded by ESA and the EC,

NOTING that the draft cooperation agreement with ESA on the MTG System was agreed in principle at the 65th Council meeting in October 2008, on the understanding that the final text will be submitted for Council approval when the financial figures can be inserted;

AWARE that, as a result of the ESA Council at Ministerial level in November 2008 (ESA C-Min-08), the ESA Participating States approved the ESA Declaration on the MTG Space Segment Development Programme,

CONSCIOUS that the above ESA Declaration foresees a discontinuation of the MTG Space Segment development activities by the end of 2010 in case the EUMETSAT MTG Programme has not been approved by the EUMETSAT Council at that time,

NOTING that the Framework Agreement between EUMETSAT and ESA on GMES approved by Council at its 67th meeting was signed on 20 July 2009,

NOTING that, as one of the Implementing Arrangements established under the GMES Framework Agreement, the draft Implementing Arrangement on GMES Sentinel-4 was approved at the 68th Council meeting in December 2009, on the understanding that the arrangement will only be signed upon entry into force of the MTG Programme,

WISHING to capitalise on the successful completion of the Phases 0 and A and the progress achieved in Phase B activities for the establishment of the MTG System, and on the related investments made by European Governments through EUMETSAT and ESA,

FOLLOWING the roadmap for the approval of the MTG Programme as agreed at the 60th Council meeting, as updated for the 67th Council meeting (EUM/C/67/09/DOC/07),

TAKING INTO ACCOUNT the Programme Proposal on the MTG Programme contained in document EUM/C/69/10/DOC/02,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention,

AGREE:

- I** To establish a Programme for the Meteosat Third Generation (MTG) with a first imaging satellite planned to be available for launch in late 2016 and a first sounding satellite planned for launch in 2018, and with operations expected to last for at least 20 years.
- II** That the mission objectives, system description and Programme content shall be as described in the EUMETSAT MTG Programme Definition attached to this Resolution.
- III** That the financial envelope of the MTG Programme shall amount to 2,369 MEUR at 2008 economic conditions, with an indicative expenditure profile as described in the Programme Definition.

- IV** That, in order to improve value for money of the MTG Programme, every effort will be made to ensure that the lifetime of the satellites is maximised, and that overall flexibility regarding the schedule of launches is preserved with a view to a possible extension of the operational period of the programme.

METEOSAT THIRD GENERATION PROGRAMME DEFINITION

1 INTRODUCTION

The establishment of the MTG Programme derives from the EUMETSAT Convention, where the primary objective of EUMETSAT to establish, maintain and exploit European systems of operational meteorological satellites is stated, together with the further objective to contribute to the operational monitoring of the climate and the detection of global climatic changes.

2 MISSION OBJECTIVES AND MTG MISSIONS

MTG is the basic Programme required to continue the provision of observations from geostationary orbit following MSG and as such is a mandatory Programme. As successor of MSG, it has the capability and capacities to provide the geostationary satellite data needs to continue supporting and improving meteorological applications and services at Meteorological Centres. The Imagery mission provides substantially enhanced information compared to that currently delivered by SEVIRI on MSG to improve the Nowcasting (NWC) and regional/global Numerical Weather Prediction (NWP) systems. The novel Infrared sounding mission delivers unprecedented information on the dynamic features of atmospheric moisture and temperature profiles in high vertical, horizontal and temporal resolution, beyond serving emerging applications of operational chemistry and air pollution. Nowcasting applications are further supported by the lightning imaging mission delivering continuously and simultaneously information on total lightning (cloud to cloud and cloud to ground) over the full disc with a high timeliness and homogeneous data quality. Finally the Sentinel 4 mission of GMES will be implemented via MTG, supporting the need for continuous monitoring of the atmospheric composition and air quality.

2.1 Observation Missions

The nominal MTG system will be based upon two types of satellites, MTG-I, the imaging satellite, and MTG-S, the sounding satellite. MTG-I will embark an imaging radiometer, the Flexible Combined Imager (FCI), and an imaging lightning detection instrument, the Lightning Imager (LI). MTG-S will embark an imaging Fourier interferometer, the InfraRed Sounder (IRS), and a high resolution spectrometer, the Ultraviolet- Visible Near infrared (UVN) spectrometer, provided by ESA as a part of the GMES Space Component programme.

The MTG System is designed, in support to nowcasting (NWC) and Numerical Weather Prediction (NWP), to fulfil the objectives agreed for the following observation missions:

- the **F**ull **D**isk **H**igh Spectral resolution **I**magery (**FDHSI**) mission, which will be provided via measurements taken by the FCI. In FDHSI mission mode data

from the FCI will be provided over the full earth disc at a repeat cycle time of 10 minutes with a spatial resolution of 1 km;

- the **H**igh spatial **R**esolution **F**ast refresh **I**magery (**HRFI**) mission, which will be provided via measurements taken by the FCI. In HRFI mission mode data from 4 channels of the FCI will be provided on regional scales (e.g. about 1/4th or 1/3rd of the full disk seen from the geostationary position) at a repeat cycle rate of 2.5 or 3.3 minutes and a spatial resolution of 0.5 km and 1.0 km;
- the **I**nfra**R**ed Sounding (**IRS**) mission able scan the full earth disc within 60 minutes providing a spatial resolution of 4 km, and hyperspectral imaging and sounding information at a spectral resolution of 0.625 cm⁻¹ in two bands, a **L**ong **W**ave **I**nfra**R**ed (**LWIR**: 700 – 1210 cm⁻¹) and **M**id **W**ave **I**nfra**R**ed (**MWIR**: 1600 -2175 cm⁻¹) band;
- the **L**ightning **I**magery (**LI**) mission, continuously detecting optical pulses, over almost the full earth disc in view from the geostationary satellite position;

Moreover, the MTG missions comprise the accommodation of the GMES Sentinel -4 (**S4**) sounding mission, achieved through the **U**ltraviolet, **V**isible & **N**ear-infrared (**UVN**) Instrument, covering Europe every hour taking measurements in three spectral bands (UV: 305 - 400 nm; VIS: 400 - 500 nm, NIR: 750 - 775 nm) with a resolution around 8 km.

In addition, the MTG mission will make a major contribution to climate monitoring activities providing high quality radiances, reprocessed product supporting generation of Essential Climate Variables (ECVs), providing also stewardship of decadal geostationary data records of the First and Second Generation of Meteosat.

2.2 Other MTG System Functions

Besides the essential functions covering the optical observations, the MTG system includes essential support functions necessary to fulfil its operational services, including:

- The Level 2 product generation and extraction;
- The processing of data received from Data Collection System (DCS) platforms collecting data of in-situ observations gathered from the land beacons, buoys, ships, balloons or airplanes;
- The Foreign Satellite Dissemination, that collects selected data from other EUMETSAT and Third Party satellite systems for support to global applications;
- Delivery and Data services to users, including:
 - Near real-time and direct data distribution services;
 - Data stewardship and re-analysis support;
 - Off-line data delivery;
 - On line services to Users;
 - Data exploitation support, reach-out, training, and help desk;
- The Search and Rescue mission: similarly to MSG, the MTG system will accommodate a SAR terminal, enabling the operations of the mission under the aegis of the COSPAS-SARSAT system;

- Extension of the DCS capabilities to support the relay and delivery to Argos ground stations of messages transmitted by Argos platforms.

3 MTG SYSTEM DESCRIPTION

3.1 System Architecture

The operational architecture of the MTG system consists of a Space Segment made up by a nominal configuration of two MTG-I and one MTG-S satellites linked to a distributed Ground Segment comprising functional facilities at various sites.

The MTG system consists of the following main segments and services:

- Space Segment, embedding the protoflight and recurrent MTG-I and MTG-S satellites, ground support elements (Ground Support Equipments – GSE - and tools) and services used for the space segment development or delivered in support to the system development and verification (Satellite Simulator, TT&C Suitcase, Payload Data Generator, etc) ;
- Ground Segment, supporting the planning, management, control and monitoring of the missions and acquiring, processing, and distributing to the users the observations taken and the products extracted. To fulfil the functions required to meet the mission objectives, substantial new developments associated with the new MTG missions will be undertaken for the MTG Ground Segment. In addition, the Ground Segment will rely on maintained infrastructure from the current systems as Infrastructure Facilities and Multi Programme Facilities.
- Launch and LEOP Provider services.

3.2 Space Segment

The MTG Space Segment consists of four imaging satellites (MTG-I1 to 4) and two sounding satellites (MTG-S1 to 2) with the payload complements given below:

- MTG-I1 to 4: FCI, LI, DCS and SAR
- MTG-S1 to 2: IRS and UVN

3.2.1 Satellites

The imaging and sounding satellites are based on 3- axis stabilised platforms taking as much technological heritage from commercial communication satellites as is pertinent and safe to fulfil the MTG service requirements. The platform shall be based on a common architecture.

3.2.2 Payload Elements

3.2.2.1 Flexible Combined Imager (FCI)

The FCI simultaneously provides data for 16 FDHSI, 4 HRFI channels and 2 channels with an extended radiometric range for fire detection.

The FCI can be commanded to operate in either:

- a Full Disc Coverage (FDC) over a repeat cycle of 10 minutes with a mandatory coverage described by a circle of 17.7° diameter centred on the Sub-Satellite Point (SSP), and
- a Local Area Coverage (LAC) over a repeat cycle of 10/2, 10/3 or 10/4 minutes, with the coverage reduced proportionally. The LAC zone can be positioned anywhere over the FDC.

3.2.2.2 Infra-Red Sounder (IRS)

The IRS is a Fourier Transform Spectrometer (FTS) providing measurements in two bands mid-wave infrared (MWIR) and long-wave infrared (LWIR).

The IRS takes data according to a repeat sequence selected from four Local Area Coverage (LAC) zones. Each LAC zone covers a quarter of the Full Disc Coverage (FDC), described by a circle of 17.7° diameter centred on the Sub-Satellite Point (SSP) and can be positioned anywhere over the FDC. A LAC zone is scanned within 15 minutes.

3.2.2.3 Lightning Imager (LI)

The LI continuously monitors lightning flashes during day and night, covering an area of the earth disk within a circle of 16° in diameter subtended from the geo-stationary position and shifted northward to cover EUMETSAT Member States.

3.2.2.4 UVN – Sentinel 4 Spectrometer

The satellite will have the possibility to embark the UVN-Sentinel-4 instrument. The instrument will be developed as part of GMES in compliance with MTG interfaces and within the capabilities allocated to the satellites to fulfil the Sentinel-4 mission.

3.3 MTG Ground Segment

The Ground Segment contains the main ground elements necessary to support the mission.

They are logically decomposed in Facilities as follows:

- o Ground Station Facilities (GSTF);
- o Mission Operations Facility (MOF);
- o Instrument Data Processing Facility (IDPF);
- o Multi-Programme Facilities (MPF);
- o Infrastructure Facilities and Supporting Facilities;
- o and, as part of the Application Ground Processing System:
 - the Level 2 Processing Facility (L2PF),
 - the Satellite Application Facilities (SAF) network;

The Ground Station Facilities are made up of Telemetry Tracking & Command (TT&C) Ground Stations which include the functions to support acquisition of satellites housekeeping telemetry, transmission of telecommands, tracking and ranging. The Mission Data Acquisition (MDA) Ground Stations receive the scientific data from the satellite payload and interfaces with the front end applications of the IDPF.

The Mission Operations Facility will include the capability to command and control multiple MTG spacecraft.

The processing of the Instrument data will ingest the data and generate Level 1 and Level 2 products. The Level 1 products will be generated by the IDPF. The Level 2 products will be partially centrally generated via the L2PF and partially generated by the Satellite Application Facilities network. Tasks and outputs of the Satellite Application Facilities (SAF) network will be the subject of dedicated proposals for the Continuous Development and Operations Phase to be agreed by Council.

The MTG Ground Segment will make use of and extend as appropriate existing MPF for such aspects as dissemination and archiving/retrieval of products, following a continuity of maintenance and a credible upgrade path. MPF will include the EUMETSAT Data Centre, previously known as the Unified Meteorological Archive and Retrieval Facility (U-MARF) which receives and archives images and meteorological products from EUMETSAT satellites (METEOSAT and METOP), the EXGATE and INGATE to provide a secure file transfer service between operational environments within EUMETSAT and with remote locations through external network interfaces, and EUMETCast to disseminate data and products to the users.

The EUMETSAT Headquarters, the Central Site of the MTG Ground Segment will include the main components needed for mission operations and exploitation (e.g. MOF, IDPF, L2PF and MPF). It will also include other infrastructure and supporting facilities and possibly the prime MDA Ground Station.

In addition, the Ground Segment will include other sites, as follows:

- Backup Spacecraft Control Centre (BSCC), having same MOF functionality as the one in the Central Site in order to continue monitoring & control of the in-orbit spacecraft constellation;
- Diversity MDA Ground Station, to minimise impact of link outages caused by heavy precipitation;

- Prime and Secondary TT&C Ground Stations, with site diversity foreseen for availability and ranging considerations;
- EUMETCast uplink station, for satellite based dissemination.

Finally, the Satellite Application Facilities (SAF) network is not centrally hosted.

4 MTG IN-ORBIT DEPLOYMENT PLAN

The deployment of the MTG system is driven by the required duration of the operational services, associated availability and readiness of the prototype satellites. This has been defined to ensure the optimal continuity of MTG services to the User Community in-line with the definition of high system and spacecraft availability figures, as well as to ensure the continuity of the services provided by MSG in articulation with the deployment of the last MSG satellites and in preparation for the post-MTG satellites.

The resulting MTG satellite deployment scenario will take account of actual operational serviceability of MSG and MTG satellites to maximise the useful life of each satellite whilst maintaining the required operational availability, developing from a baseline of earliest launch dates:

- MTG-I1: Dec 2016
- MTG-S1: June 2018
- MTG-I2: Dec 2021
- MTG-I3: Jan 2025
- MTG-S2: June 2026
- MTG-I4: Dec 2029

Measures for allowing extended satellite in orbit lifetime will be implemented: in this respect, the propellant margin embarked on board the satellite will allow a possible scenario of 25 years of operational service for the imagery mission.

In support to this MTG satellites deployment, the Ground Segment infrastructure will be developed and deployed according to a staggered incremental approach (through a Ground Segment versioning concept).

5 SCOPE OF EUMETSAT PROGRAMME

The scope of the EUMETSAT MTG Programme encompasses the following main elements:

- A fixed financial contribution to the ESA MTG Space Segment Development Programme;
- Procurement of the four recurrent satellites and related activities;
- Procurement of Launch and LEOP services for all six MTG satellites;

- Establishment of a ground segment system to support the operation of the MTG System;
- At least twenty years of routine operations of the imagery mission, encompassing fifteen and half years of routine operations of the sounding mission;
- Ten years of continuous development and operations (CDOP) activities of the EUMETSAT SAFs;
- The management of the developments and procurements, and the conditioning of the infrastructure to host components of the system, including back-up services and related systems.

6 IMPLEMENTATION ARRANGEMENTS

6.1 Interaction with Users and Experts

The process for involvement of users and experts established during the initial phases of the MTG activities will continue during the development and operations phases. The MTG Mission Team which has been instrumental to integrate and consolidate the information base and help EUMETSAT Secretariat and the MTG Team to shape the discussions with Delegates, will continue to be involved in the implementation phases of the Programme.

A key result of the coordinated efforts is the end user requirements document (EURD) subject to approval by Council. A list of products to be generated centrally at EUMETSAT HQ is established for reference, design and sizing of the core functionality of the ground segment. The initial set products in the list emphasises the continuity of MSG services into the next generation and the most direct and essential derivatives from the new instruments.

Users support will still be needed in the implementation phase to ensure that optimum benefit is obtained from the observations and system under development. Further support from users will also be essential in preparing for and implementing the calibration and validation plans, and preparedness of user will be an objective of the efforts of the Programme.

6.2 Coordination Mechanisms between EUMETSAT and ESA

The roles of EUMETSAT and ESA are detailed in a dedicated Agreement with ESA on MTG to be approved by EUMETSAT Council, specifying, among others, the roles of EUMETSAT and ESA within the MTG, financial liabilities, procurement policy, implementation mechanisms, and ownerships of data.

6.3 Sentinel 4 Implementation

The implementation of the Sentinel 4 on the MTG-S satellites will be formalised through an “Implementing Arrangement” with ESA, to be signed upon entry into force of the MTG Programme. This Implementing Arrangement is based on the Framework Agreement between EUMETSAT and ESA on the cooperation on GMES signed on 20 July 2009. ESA is responsible for the GMES Space Component, and as

such will develop the Sentinel 4 mission and instrument, in compliance with MTG interfaces and within the capabilities allocated to the satellites to fulfil the Sentinel-4 mission

It is to be noted that the above Implementing Arrangement with ESA does not cover the funding of the operational cost of the mission which EUMETSAT Member States expect to be provided from a yet to be defined EC GMES operational Budget.

6.4 Coordination with SAFs

SAFs are part of EUMETSAT's multi-mission infrastructure and thus an integral part of the EUMETSAT Programmes and their ground segments, which together with the central level-2 product generation facilities constitute the Application Ground Processing System.

Through the development of the MTG system SAFs will enter the second 5-year slice of their Continuous Development and Operation Phase (CDOP), which will span from 2012 to 2017. Subsequently a third phase of CDOP for addition five years will be supported through MTG. Almost coincidentally with the start of the third CDOP slice SAFs will have to transition from using MSG observations to the use of MTG Imager data.

6.5 Other Partner Agencies

In order to continue the provision of support and services for Search and Rescue operations a cooperation scheme with COSPAS-SARSAT will be established.

Should the technical ongoing discussions with CNES conclude fruitfully with an agreement to support and supplement the ARGOS mission with a geostationary component, a dedicated agreement will be set up.

7 PROGRAMME ENVELOPE & INDICATIVE EXPENDITURE PROFILE

The proposed EUMETSAT MTG Programme envelope amounts to M€ 2,369 at 2008 economic conditions. It is equivalent to M€ 2,470 at 2010 e.c.

The following table shows the indicative expenditure profile of the MTG Programme:

Year	2011	2012	2013	2014	2015	2016	2017	2018	2019	2020	2021	2022	2023	2024	2025	2026	2027	2028	2029	2030	2031	2032	2033	2034	2035	2036	2037	Total
MEUR at 2008 e.c.	62	121	149	200	213	198	177	161	104	105	119	81	76	71	72	65	64	59	56	27	27	27	27	27	27	27	27	2369

Figure 7-1: Preliminary MTG expenditure profile

RESOLUTION ON
THE PREPARATION OF THE EPS SECOND GENERATION

**Adopted at the 70th Meeting of the EUMETSAT Council
on 21-22 June 2010**

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT programmes are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the low Earth orbit, the first satellite of an EPS Second Generation (EPS-SG) should be available for a launch in 2018,

TAKING INTO ACCOUNT that the Post-EPS Phase A Approach and Planning was endorsed at the 68th meeting of the EUMETSAT Council,

WISHING to build on the results of the pre-phase A studies for the establishment of Post-EPS,

TAKING INTO ACCOUNT that the Post-EPS preparatory activities are covered through the General Budget until the end of 2011, and that there is a need to ensure the continued funding of EPS-SG activities from beginning of 2012,

FOLLOWING the roadmap for the approval of the EPS-SG Preparatory Programme as submitted to the 68th Council meeting,

NOTING that the payload complement for the EPS-SG to be targeted in Phase B/C/D will be decided by Council by the end of the Phase A Industrial Studies, and that the related final in-orbit configuration will be consolidated in the same context,

NOTING that the number of satellites to be procured will be defined by Council during the Phase B of EPS-SG as an essential input for the preparation of the full programme proposal,

NOTING the progress made in the negotiations with EUMETSAT's international partners ESA, NOAA, DLR and CNES,

AGREE:

- I** That the satellite configuration to be targeted in the Phase A activities of EPS-SG should be a **two** satellites configuration. The first satellite would embark, as main missions, the Imaging, Infrared and Microwave Sounding, Aerosol, Radio Occultation and host the GMES Sentinel-5. The second satellite would embark, as main missions, Microwave Imaging, Scatterometry and Radio Occultation. Both satellites series would be based on common design elements.
- II** That, in order to improve the value for money of the EPS-SG, every effort should be made during the preparation phase to ensure that the design lifetime of the satellites is maximised, and that overall flexibility regarding the schedule of launches is preserved.
- III** To task the Director-General with coordinating with ESA the initiation of all necessary preparatory activities to obtain a timely approval of their part of the programme by the end of Phase A in the 2011 timeframe in order to secure data continuity in the low earth orbit.
- IV** To task the Director-General with consolidating a joint road map with ESA, taking into account the contributions of other partners, leading to a coordinated approval of the EPS-SG programmes by both Organisations.
- V** To task the Director-General with elaborating an EPS Second Generation Preparatory Programme Proposal and related Programme Resolution, and to submit them for approval to Council at the earliest opportunity.
- VI** To task the Director-General with negotiating the required cooperation agreements with EUMETSAT's international partners ESA, NOAA, DLR and CNES.

RESOLUTION ON
A NEW PENSION SCHEME FOR NEW ENTRANTS

**Adopted at the 70th Meeting of the EUMETSAT Council
on 21-22 June 2010**

The EUMETSAT Council

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the Convention entrusts the Director-General with the implementation of the decisions taken by the Council and with the execution of the tasks assigned to EUMETSAT,

RECALLING that the conditions of service at EUMETSAT should be defined in such a way as to ensure EUMETSAT attracts staff of the highest ability and integrity, account being taken of the international character of EUMETSAT,

RECALLING Member States' commitment in the Protocol on the Privileges and Immunities of EUMETSAT to providing EUMETSAT staff with adequate social security benefits, thereby enabling EUMETSAT to discharge the obligations of intergovernmental international organisations in terms of social protection, as an employer, but also as a public body substituting for state legislators responsible for social policy and guaranteeing social minima,

HAVING REGARD to Article 28 of the Staff Rules and its Annex VI laying down the Pension Scheme Rules, adopted by Council at its 2nd meeting,

CONSIDERING that the Pension Scheme Rules provide that benefits paid shall be charged to the budgets of EUMETSAT,

TAKING INTO ACCOUNT that the Pension Scheme Rules provide that EUMETSAT Member States shall jointly guarantee the payment of the EUMETSAT pension benefits,

TAKING INTO ACCOUNT the changes to pension schemes over recent years at international organisations, and notably at certain Coordinated Organisations, including ESA,

CONCERNED to take measures to ensure long-term cost control of the pension expenditure charged to EUMETSAT's budgets, and desiring to adopt a new Pension Scheme for new entrants that is not fundamentally different from the original Pension Scheme currently in force,

RECALLING Council's unanimous endorsement at its 68th meeting of the proposed principles for the establishment of a new Pension Scheme to be applied to new entrants and approval of the main elements of such new Pension Scheme,

HAVING DUE REGARD to Article 5.2(b)(vi) of the Convention,

AGREES:

- I** to adopt the new Pension Scheme Rules for new entrants, the text of which is attached as Annex 2 to EUM/C/70/10/DOC/27, which constitute the "2011 Pension Scheme";
- II** that these Rules shall take effect on 1 January 2011;
- III** that whenever it is proposed to amend the original Pension Scheme Rules, the same amendments shall be implemented in the new Pension Scheme Rules in so far as this is compatible with its fundamental principles;
- IV** that the Member States shall collectively guarantee to contribute to funding the EUMETSAT Pension Schemes and to payment of the related benefits until the cessation of entitlement of the last beneficiary.
- V** that the collective obligation to contribute to funding both Pension Schemes and to payment of the related benefits shall continue even in the event of EUMETSAT's dissolution under Article 20 of the Convention and shall not be affected by a Member State denouncing the Convention;
- VI** to amend Article 9 of the Staff Rules and Article 9 of Annex V to the Staff Rules, the text of which is attached as Annex 3 to EUM/C/70/10/DOC/27, so as to reflect the introduction of the new Pension Scheme in the Staff Rules.

RESOLUTION ON
AMENDMENTS TO THE METEOSAT IMPLEMENTING RULES

**Adopted at the 70th Meeting of the EUMETSAT Council
on 21-22 June 2010**

The EUMETSAT Member States,

RECALLING that the current consolidated Meteosat Implementing Rules were adopted by Council at its 56th meeting in December 2004 through Resolution EUM/C/04/Res. V, as amended by Resolution EUM/C/64/08/Res. II at the 64th Council meeting in July 2008 and Resolution EUM/C/66/08/Res. I at the 66th Council meeting in December 2008,

TAKING INTO ACCOUNT that one of the objectives of the EUMETSAT Data Policy is to extend the use of Meteosat Data and Products,

CONSIDERING that, at its 67th Council meeting, the EUMETSAT Council adopted the Oslo Declaration which aims to offer more and better products and services whilst continuing to protect the underlying digital data and products,

CONSIDERING that at its 68th meeting, the EUMETSAT Council agreed to increase the Essential data set to include Three-hourly data and to expand the data provided without charge to National Meteorological Services of Non-Member States to include Hourly data,

WISHING to implement such decisions,

AGREE to abolish Resolutions EUM/C/64/08/Res. II and EUM/C/04/Res. V and replace them as follows:

- I** The Implementing Rules for Meteosat Data and Products shall be replaced by the updated version attached as Annex I to this Resolution.
- II** The Meteosat Catalogue shall be replaced by the updated version attached as Annex II to this Resolution;
- III** The EUMETSAT Fees for Access to Non-Essential Meteosat Data by Commercial and Other Users shall be replaced by the updated version attached as Annex III to this Resolution;
- IV** This Resolution shall take effect on 1 July 2010.

IMPLEMENTING RULES FOR METEOSAT DATA AND PRODUCTS

1 THE METEOSAT CATALOGUE

For the purpose of distribution, dissemination and commercial application, a list of data, products and services is contained in the Meteosat Catalogue attached hereto as Annex II.

2 DEFINITIONS

"Archived Data and Products": image data, older than 24 hours, generated by a Meteosat satellite, hardcopy image prints and other meteorological products stored and/or supplied by EUMETSAT's Archive and Retrieval Facility, as listed in the Meteosat Catalogue.

"Broadcasters": those users who disseminate an item from the Meteosat Catalogue or images based on Meteosat Data through electronic public information systems including, but not limited to, Internet, terrestrial and satellite transmissions.

"Educational Use"*: any use of an item from the Meteosat Catalogue by a school, university, scientific institute or similar (private or institutional), solely for educational purposes, without transmission or redistribution of these data, products and services to any further third party, or use of them to generate a Value Added Service.

"End Users"*: those users who use an item from the Meteosat Catalogue for their own commercial, industrial or personal purposes and do not pass on such item to any further user or use it to generate a Value Added Service.

"Essential Meteosat Data and Products": Meteosat Data and Products which are declared "Essential" in accordance with WMO Resolution 40 (Cg-XII), as agreed by Council.

"Exclusive Licensing Agent": a NMS of a Member State exclusively representing EUMETSAT within that State for the purpose of licensing Meteosat Data.

"Half-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to each clock hour and 30 minutes after each clock hour (UTC).

"Hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to each clock hour (UTC).

"High Rate SEVIRI Data ": high rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

"HRI Data": high resolution image data generated by a Meteosat First Generation satellite.

* For the purposes of direct reception of Meteosat data, personal use by private individuals shall be treated under the definition of "Educational Use". In such cases the same conditions apply as for educational users.

"Low Rate SEVIRI Data ": low rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

"Member States": the States which are parties to the Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites.

"Meteosat Catalogue": the list of Meteosat Data and Products and Services attached hereto as Annex II.

"Meteosat Data": all HRI Data and High Rate/Low Rate SEVIRI Data generated by the Meteosat First and Second Generation satellites.

"Meteosat Derived Products": products generated by the EUMETSAT ground segment from Meteosat Data and transmitted to users within 24 hours, as listed in the Meteosat Catalogue.

"Meteosat Internet Service": Certain Meteosat Data and Meteosat Derived Products as defined in the Meteosat Catalogue, retransmitted by EUMETSAT via the Internet.

"National Territory": the national territory of a state, including its internal waters, its archipelagic waters, its territorial sea and its exclusive economic zone, as defined in the United Nations Convention on the Law of the Sea (UNCLOS) signed in Montego Bay on 10 December 1982 and having entered into force on 16 November 1994.

"NMS" (National Meteorological Service): service responsible at national level, in conformity with its legal status, for the gathering, classification and production of meteorological information in the national interest, and responsible at international level for participating in WMO programmes.

"Official Duty": all activities which take place within the organisation of a NMS and external activities of a NMS resulting from legal, governmental or intergovernmental requirements relating to defence, civil aviation and the safety of life and property.

"Quarter-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to each clock hour and 15 minutes, 30 minutes and 45 minutes after each clock hour (UTC).

"Rapid Scanning Data": those Meteosat Data acquired by scanning of a certain geographical area within the footprint of a Meteosat satellite in more frequent time intervals than the nominal full disk repeat cycles. For the purposes of access conditions, Rapid Scanning Data shall be provided only in conjunction with the full set of Meteosat Data.

"Research Project": any project organised by a University, a scientific research institute or similar (private or institutional), for non-commercial research purposes only. A necessary condition for the recognition of non-commercial purposes is that all the results obtained are openly available at delivery costs only, without any delay linked to commercial objectives, and that the research itself is submitted for open publication.

"Service Providers": those users who acquire an item from the Meteosat Catalogue in order to supply Value Added Services under specific licence conditions to Third Parties who are clearly identified and known to the Service Provider.

"Six-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to the main synoptic hours of 00, 06, 12 and 18 UTC.

"Standard Licence Agreement": the standard terms and conditions pursuant to which items in the Meteosat Catalogue must be licensed to users.

"Third Party": any party external to a licence agreement between EUMETSAT or one of its Exclusive Licensing Agents and a user.

"Three-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to the synoptic hours of 00, 03, 06, 09, 12, 15, 18 and 21 UTC.

"Value Added Services (VAS)": all meteorological services specifically conceived for the needs of users and made available under specific licence conditions.

"Without Charge": at no more than the cost of reproduction and delivery (including the cost of distribution media, documentation, software licences, transmission, direct labour cost and cost of any decryption key units), but without charge for the data and products themselves.

3 OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

- 1 EUMETSAT holds the full ownership and Intellectual Property Rights to the Meteosat Data and Products.
- 2 The Intellectual Property Rights to images based on Meteosat Data are shared between EUMETSAT and the Service Provider generating the images.
- 3 The Intellectual Property Rights to Value Added Services other than images based on Meteosat Data are considered to be owned by the Service Provider generating the Value Added Service.

4 "ESSENTIAL" METEOSAT DATA AND PRODUCTS

EUMETSAT shall make its Three-hourly and Six-hourly Meteosat Data, the Meteosat Derived Products and the data offered through its Meteosat Internet Service available to all users world-wide on a free and unrestricted basis as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).

5 LICENSING FOR NON-ESSENTIAL METEOSAT DATA AND ARCHIVED DATA AND PRODUCTS

- 1 The NMSs of Member States, acting as Exclusive Licensing Agents on behalf and for the account of EUMETSAT, shall have the responsibility for licensing non-Essential Meteosat Data to users receiving the data within their respective National Territories.
- 2 Acting as EUMETSAT's Exclusive Licensing Agents, the NMSs shall apply the EUMETSAT fees and conditions defined in Rules 8 and 10 below and shall sign licences applying the EUMETSAT standard licensing conditions with their users. The NMSs shall inform EUMETSAT of the signing of such licences.

- 3 The NMSs shall retain 25% of the fees received and allocate the remaining 75% to EUMETSAT.
- 4 Licensing for access to non-Essential Meteosat Data received outside Member States shall always be through a Standard Licence Agreement between the User and EUMETSAT according to the guidelines detailed in Rules 7, 8, 9 and 10 below.
- 5 EUMETSAT shall be responsible for the licensing of Archived Data and Products.

6 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF MEMBER STATES

- 1 The NMSs of Member States will receive non-Essential Meteosat Data for Official Duty use at no cost except for the cost of decryption key units.
- 2 Insofar as required for Official Duty use, the NMSs may grant access to other Departments within their respective National Administrations, subject to arrangements in accordance with national legislation, but all conditions defined in these Rules remain attached to the use of the data. Further distribution and all commercial applications of the Meteosat Data are subject to Rules 8, 10 and 11 below.

7 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF NON-MEMBER STATES

- 1 The NMSs of non-Member States will have access Without Charge to Hourly Meteosat Data for Official Duty use.
- 2 NMSs of non-Member States will have access to Half-hourly and Quarter-hourly Meteosat Data for Official Duty use in accordance with the conditions specified in Annex III.
- 3 NMSs of non-Member States which provide EUMETSAT with equivalent satellite data will be provided data under conditions to be agreed by the EUMETSAT Council on a case by case basis.
- 4 For limited periods, to support the monitoring of disasters or emergencies and in accordance with relevant UN resolutions, the full set of Meteosat Data will be made available Without Charge.
- 5 For Official Duty use by NMSs of non-Member States subject to tropical cyclones, the full set of Meteosat Data will be made available Without Charge.
- 6 Regarding their commercial activities, the NMSs of non-Member States shall be treated in the same way as Service Providers, in accordance with the fees and conditions listed in Annex IV.

- 7 EUMETSAT will inform the NMSs of non-Member States of licences signed with other users receiving non-Essential Meteosat Data within their respective territories.

8 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY RESEARCH PROJECTS AND FOR EDUCATIONAL USE

Research Projects and Educational Users are given access Without Charge to non-Essential Meteosat Data, in accordance with standard EUMETSAT licensing conditions.

9 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY ECMWF

ECMWF is given access Without Charge to non-Essential Meteosat Data for its own use in support of its mission, as defined in the ECMWF Convention. This use shall only cover activities carried out within the ECMWF Secretariat and shall not include retransmission of Meteosat Data to other users, including its Member States.

10 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY COMMERCIAL USERS AND OTHER USERS

Commercial and other users shall be given access to non-Essential Meteosat Data against fees and under the conditions laid down in Annex IV.

11 COMMERCIAL ACTIVITIES OF NMSs OF MEMBER STATES

- 1 The fees and conditions laid down in Annex IV shall apply in the relationship between the commercial activities of the NMSs of Member States and the NMSs when acting as EUMETSAT's Exclusive Licensing Agents.
- 2 In these cases, the NMSs acting as EUMETSAT's Exclusive Licensing Agents, shall be entitled to retain 25% of the fees due and shall allocate the balance to EUMETSAT.
- 3 The originating NMSs of Member States in their commercial activities shall be free to establish the prices to their users when supplying Value Added Services.
- 4 The NMSs of Member States shall in their commercial activities have the right to make their Value Added Services available to users within and outside Member States.

12 CONDITIONS OF ACCESS TO ARCHIVED DATA AND PRODUCTS

- 1 All categories of users will receive Archived Meteosat Data and Products in accordance with this Rule at no cost to such users.
- 2 The volume of Archived Data and Products that may be ordered from the EUMETSAT Archive and Retrieval Facility through a single order or through successive orders is limited to avoid an unmanageable load and a consequential degraded level of service.

13 FINANCIAL MATTERS

- 1 All income arising from the implementation of these Implementing Rules shall be included under a separate budget line into the annual EUMETSAT Budget on the basis of an estimate and shall be treated in accordance with the EUMETSAT Financial Rules.
- 2 EUMETSAT shall not be liable for the cost of procuring the necessary receiving equipment of any user. All users shall be required to reimburse EUMETSAT for the cost of providing them with decryption key units for the reception of non-Essential Meteosat Data.

THE METEOSAT CATALOGUE

1 INTRODUCTION

This Catalogue is intended for the purpose of information to NMSs, other organisations, the scientific research and education community, end users, service providers and the meteorological user community at large.

Any use of data or products listed in this Catalogue may be subject to the terms and conditions of a standard Licence Agreement to be concluded on a case by case basis with EUMETSAT or an Exclusive Licensing Agent, in accordance with the Data Policy established by the EUMETSAT Council.

Every care has been exercised in the preparation of this Catalogue and, to the best of EUMETSAT's belief, it is accurate as at the date of its issue. Changes, additions and deletions may, however, be made without notice. This Catalogue will be updated periodically to make new information available.

2 METEOSAT IMAGE DATA

These image data consist of geographical arrays of various sizes of image pixels, each pixel containing 8 data bits (Meteosat HRI Data) or 10 data bits (Meteosat High Rate and Low Rate SEVIRI Data), representing the received radiation from the earth and its atmosphere in the following spectral channels:

a) Meteosat High Resolution Image (HRI) Data:

- Infra-red band (IR) centred on 11µm
- Water-vapour band (WV) centred on 6 µm
- Visible band (VIS) centred on 0.7 µm

For the IR and WV spectral channels the pixel array size is 2500 x 2500 whereas for the VIS channel the pixel array size is 5000 x 5000.

b) Meteosat High Rate and Low Rate SEVIRI Data:

- Visible band centred on 0.6µm – Channel 1 (VIS 0.6)
- Visible band centred on 0.8µm – Channel 2 (VIS 0.8)
- Near-infra-red band centred on 1.6µm – Channel 3 (NIR 1.6)
- Infra-red band centred on 3.9µm – Channel 4 (IR 3.9)
- Water Vapour band centred on 6.2µm – Channel 5 (WV 6.2)
- Water Vapour band centred on 7.3µm – Channel 6 (WV 7.3)
- Infra-red band centred on 8.7µm – Channel 7 (IR 8.7)
- Ozone band centred on 9.7µm – Channel 8 (IR 9.7-O3)
- Infra-red band centred on 10.8µm – Channel 9 (IR 10.8)
- Infra-red band centred on 12.0µm – Channel 10 (IR 12.0)
- Carbon Dioxide band centred on 13.4µm – Channel 11 (IR 13.4 – CO2)
- Broadband high-resolution visible band – Channel 12 (HRV)

For all spectral channels the pixel array size is 3712 x 3712 except for the HRV channel for which the pixel array size is 11136 x 5568 (N/S x E/W).

All disseminated Meteosat High Rate and Low Rate SEVIRI Data are processed to level 1.5 by the EUMETSAT Ground Segment. For a description of this format, please refer to the EUMETSAT website at www.eumetsat.int.

For the current dissemination schedule, please turn to the EUMETSAT website at www.eumetsat.int.

2.1 Meteosat HRI and High Rate SEVIRI Data

These image data, from all spectral bands, are disseminated in digital form via operational services in formats that represent full spatial coverage and at full spatial resolution.

2.2 Meteosat Low Rate SEVIRI Data

These image data, from the spectral bands listed below, are disseminated in digital form via operational services in formats that represent full spatial coverage and at full spatial resolution.

- Channel 1 (VIS 0.6)
- Channel 3 (NIR 1.6)
- Channel 4 (IR 3.9)
- Channel 5 (WV 6.2)
- Channel 9 (IR 10.8)

Note: All data are subject to lossy compression.

2.3 Meteosat Internet Service

Certain Meteosat High Rate and Low Rate SEVIRI Data are freely distributed via the Internet. This service contains:

- all “essential” image data from all available channels in real-time;
- hourly (Europe domain) and three-hourly data (full-disk domain) from four spectral channels in real-time;
- image size reduced to 800 x 800 pixels;
- graphical format using lossy compression to ensure that data is only suitable for qualitative applications;
- effective spatial resolution after compression in the order of 15 km;
- image animation loops, image colouring, addition of coastlines/grids.

2.4 Rapid Scanning Service

The Rapid Scanning Service consists of quasi-permanent rapid scan imaging of a certain geographical sub-area of the full Earth disc which is performed by the Meteosat satellites for a certain period and more frequently than the nominal full disc imaging, and it is then interrupted for a short time. The period between rapid scanning sessions is used to perform full Earth scanning, needed to derive navigation information for the image processing system.

3 METEOSAT DERIVED PRODUCTS

These meteorological products are derived from level 1.5 Meteosat Data and they are disseminated to users in formats corresponding to WMO coding requirements that represent full spatial coverage. This includes the products generated by the EUMETSAT Satellite Application Facilities (SAFs).

For a complete list of availability of the Meteosat Derived Products please turn to the EUMETSAT website at www.eumetsat.int. This list includes the products generated by the EUMETSAT Satellite Application Facilities (SAFs) and which can be ordered via EUMETSAT.

4 METEOSAT ARCHIVED DATA AND PRODUCTS

Meteosat Data and Derived Products older than 24 hours are distributed on request from the EUMETSAT Data Archive in digital and graphical form via the associated operational service in formats which represent both full and partial spatial coverage as well as both full and partial spatial resolution.

For a complete list of the archived Meteosat Data and Derived Products please turn to the EUMETSAT website at www.eumetsat.int. This list includes SAF products, which are archived at the relevant EUMETSAT SAFs and which can be ordered via the EUMETSAT Data Archive.

EUMETSAT FEES FOR ACCESS TO NON-ESSENTIAL METEOSAT DATA BY COMMERCIAL AND OTHER USERS

The attached Table contains the annual EUMETSAT fees applicable to commercial and other users for non-Essential HRI Data and High Rate SEVIRI Data. These fees will be reviewed by the EUMETSAT Council at regular intervals in light of experience.

The fees for the use of non-Essential Low Rate SEVIRI Data by commercial and other users shall be 75% of the corresponding fees for corresponding use of High Rate SEVIRI Data.

The fees are based on the following considerations:

- All Service Providers shall be charged a basic fee, in accordance with the attached Table.
- In cases where a Service Provider wishes to retransmit Meteosat Data without transformation to End Users, an additional fee shall be charged per end user equivalent to 75% of the End User fee for direct reception in accordance with the attached Table.
- In cases where a Service Provider wishes to broadcast or to supply for broadcasting Meteosat Data or images based on Meteosat Data, an additional fee shall be charged per channel or web site in accordance with the attached Table.
- For Broadcasters procuring Meteosat Data or images based on Meteosat Data from a Service Provider, no fee will be charged to the Broadcaster, as such fee is already included in the fee charged to the Service Provider.
- All Broadcasters receiving Meteosat Data directly shall be charged a basic fee in accordance with the attached Table.
- An additional fee will be charged per channel, depending on the size of the Actual Audience as defined in the attached Table. Should broadcasting consist of open-site Internet dissemination, the additional fee will be charged per web site containing images based on Meteosat Data. This fee shall depend on the number of page consultations made to the web site.
- Licences to Service Providers will allow redistribution of Meteosat Data to another Service Provider only if this other Service Provider has the appropriate licence with EUMETSAT or one of its Exclusive Licensing Agents.

FEES FOR ACCESS TO METEOSAT DATA

Data Frequency	User Categories					
	End User	Broadcaster		Service Provider		
		Basic fee	Additional fee for broadcasting images based on Meteosat Data	Basic fee	Additional fee for the right to re-transmit Meteosat Data without transformation to End Users	Additional fee for broadcasting images based on Meteosat Data or supplying to broadcasters Meteosat Data or images based on Meteosat Data
Full set (1/4 hourly)	12 KEUR	End User fee according to data frequency requested	a) Fee per channel: EUR 150 per 10,000 actual audience*** with a minimum of EUR 250 and a maximum of KEUR 30. b) Fee per Broadcaster running web site(s): EUR 150 per 10,000 page consultations**** accumulated over one year with a minimum of EUR 250 and a maximum of KEUR 60.	0.5% of Service Provider turnover** max. KEUR 36, min. KEUR 12	n* x 75% of the relevant end user fee	a) Fee per channel: EUR 150 per 10,000 actual audience*** with a minimum of EUR 250 and a maximum of KEUR 30. b) Fee per Service Provider or Broadcaster running web site(s): EUR 150 per 10,000 page consultations**** accumulated over one year with a minimum of EUR 250 and a maximum of KEUR 60.
1/2 hourly data	10 KEUR			0.5% of Service Provider turnover** max. KEUR 30, min. KEUR 10		
1 hourly data	8 KEUR			0.5% of Service Provider turnover** max. KEUR 24, min. KEUR 8		

* n = number of end users

** Turnover means the meteorological turnover, being the total annual revenue derived from the commercial activity in any way based on meteorological data and products acquired by the Service Provider (excluding revenue derived from services to civil aviation in accordance with the ICAO Convention, Annex III). Should the turnover figures not be available, the maximum fee will apply.

*** Actual audience is defined as the arithmetic average of the total actual audience (total audience except children under 3 years old), based on the full 24-hour period and over a period of approximately 1 year, expressed as average audience per day. The result of this calculation will be rounded up to the next 10,000. Should the audience figures not be available, the maximum fee will apply.

**** One page consultation is defined as any single "click" originated from one IP address on a web page containing images based on Meteosat Data. Should the number of page consultations not be available, the maximum fee will apply.

NOTE: The fees for access to Low Rate SEVIRI Data shall be 75% of the corresponding fees for High Rate SEVIRI Data according to this table.

RESOLUTION ON
SPECIAL PAYMENT ARRANGEMENT CONCERNING THE
CONTRIBUTION OF THE UNITED KINGDOM TO THE OPTIONAL
EUMETSAT JASON-3 ALTIMETRY PROGRAMME

Adopted at the 70th Meeting of the EUMETSAT Council
on 21-22 June 2010

The EUMETSAT Council,

HAVING REGARD to the Optional EUMETSAT Jason 3 Altimetry Programme entered into force on 1 February 2010,

NOTING that the United Kingdom declared its position regarding level payments when signing the Declaration EUM/C/67/09/Dcl.I on the Optional EUMETSAT Jason 3 Altimetry Programme,

ACKNOWLEDGING the efforts made by the United Kingdom in agreeing to participate to the Optional EUMETSAT Jason 3 Altimetry Programme and declaring a subscription rate within the timeframe and subscription levels necessary for a timely entry into force of the programme,

BEARING IN MIND, the funding constraints and internal budgetary procedures of the United Kingdom,

CONSIDERING that agreement to this special payment arrangement has no impact in the smooth execution of EUMETSAT's activities and in particular with regard to Treasury levels and stressing that this is an exceptional measure, and the low impact on the EUMETSAT Treasury is viable only because this measure is for one country, and, in overall EUMETSAT terms, for a relatively small amount.

AGREES:

- I** That UK pays its share to the Programme in equal instalments over the whole period of the Optional EUMETSAT Jason-3 Altimetry Programme.
- II** That UK shall bear any cost arising from this payment arrangement.

RESOLUTION ON
THE EUMETSAT CONTRIBUTION TO THE GOVERNANCE OF SPACE
ACTIVITIES IN EUROPE INCLUDING GMES

Adopted at the 70th Meeting of the EUMETSAT Council
on 21-22 June 2010

The EUMETSAT Member States,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the “EUMETSAT Strategy: 2030” approved at the 59th Council Meeting in July 2006 foresees EUMETSAT becoming the operational agency for relevant GMES missions that will complement EUMETSAT mandatory programmes,

CONSIDERING the value of the EUMETSAT contributions to the European Space Programme, which has been recognised in the Resolution on the European Space Policy adopted at the occasion of the 4th Space Council meeting in May 2007, and the Resolution Taking Forward the European Space policy adopted by the 5th Space Council in September 2008 which recalls that GMES is a user-driven initiative that should maximise the use of existing Earth observation centres, capacities and services in Europe, including EUMETSAT,

CONSIDERING that the Resolution adopted by the 6th Space Council meeting in May 2009 invited the EC and ESA to lead a dialogue with EU and ESA Member States and with EUMETSAT and its Member States to explore options for the role of EUMETSAT to coordinate the user requirements for space observations,

TAKING INTO ACCOUNT the decisions taken at the 64th and 67th EUMETSAT Council meetings in July 2008 and July 2009 to provide free access to all data, products and services from EUMETSAT satellites to the GMES Core Services, in the expectation that access to GMES data will be free of charge, on the understanding that each user within these services will sign a licence with EUMETSAT and subject to commitment from the European Union and national authorities to fund these Core services on a sustainable basis,

TAKING FURTHER INTO ACCOUNT that EUMETSAT Member States agreed, at the 64th Council meeting in July 2008, on the approach for implementation of GMES Sentinels 4 and 5 on EUMETSAT satellites, including a contribution by EUMETSAT to accommodate these instruments on EUMETSAT satellites, and also to the EUMETSAT involvement in GMES Sentinel 3 activities,

RECALLING the decision of the 68th EUMETSAT Council in December 2009 that encouraged EUMETSAT to participate in a working group with EC and ESA in charge of analysing how synergies could be developed between meteorology and GMES, taking into account the respective priorities of the different user communities, the lessons learned in operational meteorology and the particular constraints of GMES,

RECALLING that the same 68th Council meeting reaffirmed that EUMETSAT should support the EU in the preparation of user requirements for space observations related to operational oceanography and atmospheric composition monitoring, underlining that this role could also apply to Climate Monitoring and should encompass international cooperation elements,

NOTING that, with the entry into force of the Lisbon Treaty on 1 December 2009, the European Union has acquired an explicit competence to coordinate the exploration and exploitation of space, which is shared with Member States,

NOTING further that the Lisbon Treaty requires the EU to elaborate a space policy and to establish any appropriate relations with ESA, also enabling the EU to establish a space programme or any coordination measures for the exploration and exploitation of space,

AWARE that the above new competence of the EU has triggered a debate on governance of space activities among space actors in Europe,

AWARE that one strategic objective of the European Space Policy adopted in April 2007 is to deliver user-driven services in support to EU policies, and that this user-driven dimension has been reflected in the selection of Galileo and GMES as two flagship programmes aiming at delivery of operational services to a broad user community,

AWARE that long-term operational programmes developed in user governed entities such as EUMETSAT are also supporting the strategic objectives of the European Space Policy related to the competitiveness of European space industry and European independence on critical space technologies,

WISHING to support the EU in its new competence in accordance with the strategic objectives of the European Space Policy,

STRESSING that the role that EUMETSAT can play in support to the EU shall be complementary to the EUMETSAT mandatory programmes required by the EUMETSAT Convention to continue the provision of observations from geostationary and polar orbits,

AGREE:

- I** That in defining the scope of a future EU space programme and the related governance of space activities in Europe, the EU should also make effective use of the capacities and added-value of Organisations representing large and well-coordinated user communities like EUMETSAT.
- II** That such Organisations can play a unique role in the transition from research to operations of space missions as demonstrated by European Member States in the context of meteorology, launch services and telecommunications.
- III** That this is particularly important for GMES which is now entering into a deployment and operational phase which can profit from the involvement of user governed entities like EUMETSAT, with a proven track-record of establishing sustainable operational space programmes.
- IV** That EUMETSAT, on the basis of its demonstrated experience and competence, can play a major role for those parts of the GMES programme which are related to oceanography, atmospheric composition and climate monitoring, where EUMETSAT can support the EU in effectively preparing user requirements, considering the ever increasing interactions between the related user communities.
- V** That the role of EUMETSAT as a user governed entity responsible of ensuring the fulfilment of user needs in a sustained manner in support of the EU should include the following main aspects:
 - To establish and maintain continuous interfaces with user communities and to collect their requirements and priorities;
 - To translate agreed user requirements into end-to-end system specifications for operational space missions and ground infrastructures;
 - To cooperate with space development agencies for the development and procurement of the required space infrastructure and related services, based on a clear mandate from users;
 - To define and procure operational ground infrastructures;
 - To take responsibility for long term operations and continuous adaptation of the space and ground infrastructure to serve evolving user needs;
 - To deliver agreed data services to users.
- VI** To task the Council Chairman and the Director-General to communicate the position of the EUMETSAT Member States to the co-Chairs of the Space Council, i.e. to the EU and ESA Presidencies and their related Executives.

RESOLUTION ON
THE AUTHORISATION TO PROCEED WITH
THE METEOSAT THIRD GENERATION PROGRAMME

**Presented for adoption at the 71st Meeting of the EUMETSAT Council
on 30 November-1 December 2010, adopted on 24 January 2011**

The EUMETSAT Member States,

CONSIDERING that the EUMETSAT Council, at its 70th meeting on 21-22 June 2010, agreed on the contents of the programme proposal for the Meteosat Third Generation (MTG) as contained in document EUM/C/69/10/DOC/02,

CONSIDERING that the EUMETSAT Council, at its 70th meeting, agreed to open the voting of Resolution EUM/C/69/10/Res.I on the MTG Programme,

NOTING that, although 22 of the 26 Member States have voted in favour of the MTG Programme Resolution unconditionally, thus achieving a programme funding level of almost 86%, the votes of Belgium, Portugal, Spain and Switzerland are still to be confirmed,

NOTING that, due to the mandatory nature of the programme, the MTG Programme Resolution will only formally enter into force upon approval by all Member States,

EXPECTING that the above Delegations expect to be able to confirm their votes within a short period of time, and that the formal entry into force of the Resolution on the MTG Programme is expected to take place at the latest by 30 June 2011,

RECOGNISING the need to start the full MTG Programme activities from beginning of 2011 to avoid additional costs and programme risks,

AGREE:

- I** That the activities under the MTG Programme can start with effect from 1 January 2011.
- II** That Belgium, Portugal, Spain and Switzerland will be legally obliged to contribute financially to the Programme only after finalisation of national approval procedures, and that their contributions will only become due 30 days after notification thereof.
- III** That in the MTG Programme Budget 2011 an amount corresponding to the contributions from Belgium, Portugal, Spain and Switzerland remains blocked until the finalisation of national procedures has been notified to the Director-General.
- IV** That if Belgium, Portugal, Spain and Switzerland would not be in a position to confirm finalisation of national approval procedures by 30 June 2011 at the latest, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken.

RESOLUTION ON
THE EXTENSION OF THE METEOSAT THIRD GENERATION
PREPARATORY PROGRAMME

Adopted at the 71st Meeting of the EUMETSAT Council
on 30 November-1 December 2010

The EUMETSAT Member States,

RECALLING EUMETSAT Resolution EUM/C/62/07/Res.I on the Meteosat Third Generation (MTG) Preparatory Programme, presented for adoption at the 62nd Council meeting and entered into force on 25 June 2008,

RECALLING that the MTG Preparatory Programme was envisaged to last until the start of the full MTG Programme, expected to be not later than mid 2010,

TAKING INTO ACCOUNT that the financial envelope of the MTG Preparatory Programme was expected to be exhausted in 2010,

NOTING that Resolution EUM/C/69/10/Res.I on the Meteosat Third Generation (MTG) Programme, presented for adoption at the 69th Council on 26 March 2010 is expected to be fully adopted at the 71st Council meeting on 30 November – 1 December 2010,

TAKING INTO ACCOUNT that the assumption for the envelope of the full MTG Programme was that the envelope of the MTG Preparatory Programme would be fully used,

NOTING that there are still a number of preparatory activities to be finalised in parallel with the activities under the full MTG Programme,

WISHING to make use of the amounts still available within the MTG Preparatory Programme envelope after the entry into force of the full MTG Programme,

AGREE:

- I** To extend the MTG Preparatory Programme until 31 December 2011.
- II** To maintain the financial envelope of the MTG Preparatory Programme at the agreed level of 30 MEUR at 2007 economic conditions.

RESOLUTION ON
THE PREPARATION OF A THIRD PARTY PROGRAMME FOR THE
ESTABLISHMENT OF USER REQUIREMENTS FOR FUTURE
OCEANOGRAPHY SYSTEMS ON BEHALF OF THE EC

Adopted at the 71st Meeting of the EUMETSAT Council
on 30 November-1 December 2010

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the “EUMETSAT Strategy: 2030” approved at the 59th Council Meeting in July 2006 foresees EUMETSAT becoming the operational agency for relevant GMES missions that will complement EUMETSAT mandatory programmes, and that third party activities and optional programmes, consistent with EUMETSAT mandatory programmes and the Convention, will be the natural route for such new missions,

CONSIDERING the Communication of the European Commission COM(2008)748 Final, of 12 November 2008, which highlighted the role that EUMETSAT could play in interfacing with the user communities to compile requirements for global observations of atmosphere and oceans,

CONSIDERING that the Resolution adopted by the 6th Space Council meeting in May 2009 invited the EC and ESA to lead a dialogue with EU and ESA Member States and with EUMETSAT and its Member States to explore options for the role of EUMETSAT to coordinate the user requirements for space observations,

CONSIDERING the Communication of the European Commission COM(2009)589 Final, of 28 October 2009, which indicated the need for EUMETSAT to establish structures in order to adequately manage delegated tasks for and on behalf of the EC,

TAKING INTO ACCOUNT the decision of the 68th EUMETSAT Council in December 2009 that encouraged EUMETSAT to participate in a working group with EC and ESA in charge of analysing how synergies could be developed between meteorology and GMES, taking into account the respective priorities of the different user communities, the lessons learned in operational meteorology and the particular constraints of GMES,

TAKING INTO ACCOUNT that the same 68th Council meeting reaffirmed that EUMETSAT should support the EU in the preparation of user requirements for space observations related to operational oceanography and atmospheric composition monitoring, underlining that this role could also apply to Climate Monitoring and should encompass international cooperation elements,

TAKING INTO ACCOUNT the 70th EUMETSAT Council Resolution on the EUMETSAT Contribution to the Governance of Space Activities in Europe including GMES, which encourages EUMETSAT to support the EU in effectively preparing user requirements for oceanography, atmospheric composition and climate monitoring, considering the ever increasing interactions between the related user communities,

STRESSING that the role that EUMETSAT can play in support to the EU shall be complementary to the EUMETSAT mandatory programmes required by the EUMETSAT Convention to continue the provision of observations from geostationary and polar orbits and should not adversely impact such programmes,

BEARING IN MIND that Article 2 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties, and that the mechanism of third party programmes can adequately address the requirements of the EC,

HAVING REGARD to the Preliminary Programme Proposal for a Third Party Programme on User Requirements Definition Process for Future Oceanography Systems for Europe contained in document EUM/C/71/10/DOC/10,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes,

AGREES:

- I** That the proposed Third Party Programme for the establishment of user requirements for Future Oceanography Systems on behalf of the EC is consistent with EUMETSAT's objectives, with EUMETSAT role in GMES as defined by the EUMETSAT Council, and should be established and implemented as a Third Party Programme within the framework of the EUMETSAT Convention.
- II** To task the Director-General to draw up a full programme proposal, to be submitted for Council approval in 2011.
- III** To task the Director-General to prepare the necessary cooperation arrangement with EC to be agreed by Council, regarding the respective roles, tasks and responsibilities concerning this Third Party Programme.

RESOLUTION ON
THE ACCESSION OF LITHUANIA TO THE EUMETSAT CONVENTION

**Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011**

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that Republic of Lithuania and EUMETSAT signed a Cooperating State Agreement on 17 December 2004 which entered into force on 7 November 2005

RECALLING that the Cooperating State Agreement was formally amended on two occasions to extend the duration until 31 December 2013,

WELCOMING the formal request by the Republic of Lithuania to become a full member of EUMETSAT as of 1 January 2014, expressed through letter from the Minister of the Environment of Republic of Lithuania received on 9 March 2011,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Republic of Lithuania to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Republic of Lithuania with regard to the investments already made at EUR 900,000. This special payment comprises EUR 831,000 towards the investments made for the mandatory programmes and EUR 69,000 towards the investments made for the Optional Jason-2 and Jason-3 Altimetry Programmes.
- IV** To amend the scale of Member State contributions for mandatory programmes in accordance with Article 10.2 and 16.6 of the EUMETSAT Convention.
- V** That all legal and financial implications of the accession of the Republic of Lithuania will formally enter into force at the date of deposit of the instrument of accession, with effect from 1 January 2014.

DRAFT AGREEMENT
BETWEEN
THE REPUBLIC OF LITHUANIA
AND
THE EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF METEOROLOGICAL
SATELLITES (EUMETSAT)
CONCERNING
THE ACCESSION OF
THE REPUBLIC OF LITHUANIA
TO THE CONVENTION FOR THE ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF METEOROLOGICAL
SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS

22 June 2011 – Issue 6

Preamble

the Republic of Lithuania,

and

the **European Organisation for the Exploitation of Meteorological Satellites** (hereinafter referred to as "EUMETSAT"), established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "the Convention"),

TAKING INTO ACCOUNT that the EUMETSAT Council (hereinafter referred to as "the Council") at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a) of the Convention,

CONSIDERING further that the Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that the Republic of Lithuania and EUMETSAT signed a Cooperating State Agreement on 17 December 2004, entered into force on 7 November 2005 following completion of its national ratification process,

BEARING IN MIND that the above mentioned Agreement was amended in two occasions through Agreements on the Amendments of the Agreement to extend its duration until 31 December 2013,

FOLLOWING the wish expressed by the Republic of Lithuania to become a EUMETSAT Member State within the framework conditions established by the Convention, expressed through a letter from its Minister of Environment received on 9 March 2011,

RECALLING that the Council at its 72nd meeting on 28-29 June 2011 agreed to welcome the Republic of Lithuania as a Member State through adoption of Council Resolution EUM/C/72/11/Res. I,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the Convention,

HAVING REGARD to Articles 16 and 17 of the Convention,

HAVE AGREED AS FOLLOWS:

Article 1

The Republic of Lithuania accedes to the Convention in accordance with Article 16.3 of the Convention.

Article 2

1. As from the date of accession, the provisions of the Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all approved EUMETSAT mandatory and optional programmes shall be binding for the Republic of Lithuania.
2. As from the date of accession, the Republic of Lithuania shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, the Republic of Lithuania shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. The Republic of Lithuania shall at the same time as the accession to the Convention also accede to the Amending Protocol to the Convention attached to Resolution EUM/C/Res. XXXVI.
4. The Republic of Lithuania shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
5. The Republic of Lithuania shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

1. In accordance with Article 16.5 of the EUMETSAT Convention, the Republic of Lithuania shall make a special payment to EUMETSAT of 900,000 EUR. This special payment covers the investments already made for the approved EUMETSAT programmes.
2. The special payment referred to in paragraph 1 above shall be made in four instalments:
225,000 EUR no later than 30 days after the date of effectiveness of the EUMETSAT Convention as foreseen in Article 5.2 below, but not earlier than 31 January 2014;
225,000 EUR no later than 31 January 2015;
225,000 EUR no later than 31 January 2016;
225,000 EUR no later than 31 January 2017.

Article 4

1. The Republic of Lithuania shall with regard to the provision of Article 3 above start to contribute to the EUMETSAT annual budgets as from 1 January 2014. The rate of contribution by the Republic of Lithuania to the mandatory programme budgets shall be calculated in accordance with Articles 10.2 and 16.6 of the Convention. The rate of contribution to the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programme Budgets shall be 0.1568%.
2. The Republic of Lithuania shall acquire full voting rights at the Council from the date of effectiveness of the Convention as foreseen in Article 5.2 below.

Article 5

1. The present Agreement is subject to ratification by the Republic of Lithuania according to its national legislation and shall enter into force on the day of receipt by EUMETSAT of the formal notification of ratification.
2. The Convention shall become effective for the Republic of Lithuania in accordance with its Article 17.4, however, not earlier than on 1 January 2014.
3. The EUMETSAT Protocol on Privileges and Immunities shall become effective for the Republic of Lithuania in accordance with its Article 24.4, however, not earlier than on 1 January 2014.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done and signed in two originals, in the English and Lithuanian languages, both texts being equally authentic.

In.....

In.....

On.....

On.....

For the Republic of Lithuania

For EUMETSAT

.....
Gediminas Kazlauskas
Minister of Environment

.....
Dr. Lars Prahm
Director-General

RESOLUTION ON
THE PARTICIPATION OF THE REPUBLIC OF LITHUANIA TO
THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/72/11/Res. I on the Accession of the Republic of Lithuania to the EUMETSAT Convention, unanimously adopted at the 72nd Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, the Republic of Lithuania will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2014,

WELCOMING the wish expressed by Lithuania to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.1568%.

CONVINCED that this participation will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. IV adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the participation of the Republic of Lithuania to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Lithuania for the Optional EUMETSAT Jason-2 Altimetry Programme at EUR 8,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Lithuania shall contribute with a rate of 0.1568% to the annual Jason-2 budgets with effect from 1 January 2014, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.
- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Lithuania will participate in the Programme with effect 1 January 2014.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II.

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-2
BELGIUM (BE)	3.0476%
SWITZERLAND (CH)	3.4420%
GERMANY (DE)	26.4515%
DENMARK (DK)	1.9528%
ESTONIA (EE)	0.0861%
SPAIN (ES)	6.6572%
FINLAND (FI)	1.4498%
FRANCE (FR)	17.2302%
UNITED KINGDOM (GB)	10.5038%
GREECE (GR)	0.7201%
CROATIA (HR)	0.2208%
IRELAND (IE)	0.9469%
ITALY (IT)	13.3640%
LITHUANIA (LT)	0.1568%
LUXEMBOURG (LU)	0.2170%
LATVIA (LV)	0.0957%
NETHERLANDS (NL)	4.5271%
NORWAY (NO)	1.7853%
PORTUGAL (PT)	1.2723%
ROMANIA (RO)	0.5813%
SWEDEN (SE)	2.7418%
SLOVENIA (SI)	0.2321%
TURKEY (TR)	2.3178%
TOTAL	100.0000%

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME
VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	3.0476%
SWITZERLAND (CH)	3.4420%
GERMANY (DE)	26.4515%
DENMARK (DK)	1.9528%
ESTONIA (EE)	0.0861%
SPAIN (ES)	6.6572%
FINLAND (FI)	1.4498%
FRANCE (FR)	17.2302%
UNITED KINGDOM (GB)	10.5038%
GREECE (GR)	0.7201%
CROATIA (HR)	0.2208%
IRELAND (IE)	0.9469%
ITALY (IT)	13.3640%
LITHUANIA (LT)	0.1568%
LUXEMBOURG (LU)	0.2170%
LATVIA (LV)	0.0957%
NETHERLANDS (NL)	4.5271%
NORWAY (NO)	1.7853%
PORTUGAL (PT)	1.2723%
ROMANIA (RO)	0.5813%
SWEDEN (SE)	2.7418%
SLOVENIA (SI)	0.2321%
TURKEY (TR)	2.3178%
TOTAL	100.0000%

RESOLUTION ON
THE PARTICIPATION OF THE REPUBLIC OF LITHUANIA TO
THE OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME

Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/72/11/Res. I on the Accession of the Republic of Lithuania to the EUMETSAT Convention, unanimously adopted at the 72nd Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, the Republic of Lithuania will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2014,

WELCOMING the wish expressed by Lithuania to become a Participating State to the Optional EUMETSAT Jason-3 Altimetry Programme at the rate of 0.1568%.

CONVINCED that this participation will contribute to the successful completion of the EUMETSAT Optional Jason-3 Altimetry Programme,

HAVING REGARD to the Council Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme adopted by Potential Participating States on 1 July 2009 and which entered into force on 1 February 2010 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the accession of the Republic of Lithuania to the Optional EUMETSAT Jason-3 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Lithuania for the Optional EUMETSAT Jason-3 Altimetry Programme at EUR 61,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Lithuania shall contribute with a rate of 0.1568% to the annual Jason-3 budgets with effect from 1 January 2014, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.
- IV** To amend the Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme to reflect that Lithuania will participate in the Programme with effect 1 January 2014.

- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme as attached to this Resolution in Annexes I and II.

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for the Optional EUMETSAT Jason-3 Altimetry Programme shall be limited to a maximum of M€63.6 at 2009 economic conditions (M€60 at 2007 economic conditions).

The indicative EUMETSAT payment profile, based upon a mid 2013 launch and five years of operations, is:

Year	2010	2011	2012	2013	2014	2015	2016	2017	2018
M€	20.9	26.2	13	3.5	0	0	0	0	0

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-3 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-3
BELGIUM (BE)	2.8746%
SWITZERLAND (CH)	3.0689%
GERMANY (DE)	13.2131%
DENMARK (DK)	1.9845%
ESTONIA (EE)	0.0861%
SPAIN (ES)	8.4382%
FINLAND (FI)	1.5068%
FRANCE (FR)	22.0220%
UNITED KINGDOM (GB)	15.6906%
GREECE (GR)	0.9221%
CROATIA (HR)	0.2761%
IRELAND (IE)	1.3013%
ITALY (IT)	13.4408%
LITHUANIA (LT)	0.1568%
LUXEMBOURG (LU)	0.2401%
NETHERLANDS (NL)	4.8922%
NORWAY (NO)	2.2628%
PORTUGAL (PT)	1.3725%
ROMANIA (RO)	0.6416%
SWEDEN (SE)	2.8220%
SLOVENIA (SI)	0.2564%
TURKEY (TR)	2.5305%
TOTAL	100.0000%

**OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME
VOTING COEFFICIENT**

Pursuant to the scale of contributions contained in Annex II of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	2.8746%
SWITZERLAND (CH)	3.0689%
GERMANY (DE)	13.2131%
DENMARK (DK)	1.9845%
ESTONIA (EE)	0.0861%
SPAIN (ES)	8.4382%
FINLAND (FI)	1.5068%
FRANCE (FR)	22.0220%
UNITED KINGDOM (GB)	15.6906%
GREECE (GR)	0.9221%
CROATIA (HR)	0.2761%
IRELAND (IE)	1.3013%
ITALY (IT)	13.4408%
LITHUANIA (LT)	0.1568%
LUXEMBOURG (LU)	0.2401%
NETHERLANDS (NL)	4.8922%
NORWAY (NO)	2.2628%
PORTUGAL (PT)	1.3725%
ROMANIA (RO)	0.6416%
SWEDEN (SE)	2.8220%
SLOVENIA (SI)	0.2564%
TURKEY (TR)	2.5305%
TOTAL	100.0000%

RESOLUTION ON
THE ACCESSION OF ESTONIA TO THE EUMETSAT CONVENTION

**Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011**

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that the Republic of Estonia and EUMETSAT signed a Cooperating State Agreement on 19 December 2006, and that this Agreement entered into force on the same date,

BEARING IN MIND that Article 7 of the above-mentioned Agreement establishes that the Agreement shall remain in force for a period of 5 years and that it requires, during the third year following the entry into force of the Agreement, a formal review of the cooperation with a view to accession by Estonia to EUMETSAT as a full Member State,

WELCOMING the formal request by the Republic of Estonia to become a full member of EUMETSAT, expressed through letter from the Minister of the Environment of the Republic of Estonia dated 29 November 2010,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of the Republic of Estonia to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by the Republic of Estonia with regard to the investments already made at EUR 141,000. This special payment comprises EUR 97,000 for the mandatory programmes and EUR 44,000 for the Optional Jason-2 and Jason-3 Altimetry Programmes.
- IV** To amend the scale of Member State contributions for mandatory programmes in accordance with Article 10.2 and 16.6 of the EUMETSAT Convention.

- V** That all legal and financial implications of the accession of the Republic of Estonia will formally enter into force at the date of deposit of the instrument of accession, with effect from 1 January 2012.

DRAFT AGREEMENT
BETWEEN
THE REPUBLIC OF ESTONIA
AND
THE EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF METEOROLOGICAL
SATELLITES (EUMETSAT)
CONCERNING
THE ACCESSION OF THE
THE REPUBLIC OF ESTONIA
TO THE CONVENTION FOR THE ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF METEOROLOGICAL
SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS

11 May 2011 – Issue 4
EUM/LAD/CA/10/0151

Preamble

The **Republic of Estonia**, (hereinafter referred to as "Estonia"),

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a) of the Convention,

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that the Republic of Estonia and EUMETSAT signed a Cooperating State Agreement on 19 December 2006, which entered into force on the same day,

BEARING IN MIND that Article 7 of the above mentioned Agreement establishes that the Agreement shall remain in force until 31 December 2011, and that, during the third year following the entry into force of this Agreement, the Parties shall proceed to a formal review of their cooperation with a view to accession by Estonia to EUMETSAT as a full Member State,

FOLLOWING the wish expressed by Estonia to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed through a letter from its Minister of the Environment dated 29 November 2010,

RECALLING that the EUMETSAT Council at its meeting on agreed to welcome Estonia as a Member State through adoption of Council Resolution EUM/C/...../Res.....,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

Estonia accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all EUMETSAT programmes (General Budget, Meteosat Transition Programme, Meteosat Second Generation Programme and its Extension, EUMETSAT Polar System Programme, Meteosat Third Generation Preparatory Programme, Meteosat Third Generation Programme, EUMETSAT Polar System Second Generation Preparatory Programme, and the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programmes) shall be binding for Estonia.
2. As from the date of accession, Estonia shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, Estonia shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. Estonia shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
4. Estonia shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
5. Estonia shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

1. In accordance with Article 16.5 of the EUMETSAT Convention, Estonia shall make a special payment to EUMETSAT of 141,000 EUR. This payment shall be made no later than 30 days after the date of deposit of the instrument of accession, but not earlier than 31 January 2012.

Article 4

1. Estonia shall with regard to the provision of Article 3 above start to contribute to the EUMETSAT annual budgets as full Member State from 1 January 2012. The rate of contribution by Estonia to the mandatory programme budgets shall be calculated in accordance with Articles 10.2 and 16.6 of the EUMETSAT Convention. The rate of contribution to the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programmes Budgets shall be 0.0862%.
2. Estonia shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

Article 5

1. The present Agreement shall enter into force on the date of deposit of Estonia's instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
2. In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for Estonia on the date referred to in Article 5.1 above.
3. In accordance with its Article 24.4, the EUMETSAT Protocol on Privileges and Immunities shall become effective for Estonia thirty days after the date of deposit of the Estonia's instrument of acceptance of the Protocol with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in, on.....in two originals, in the English and Estonian languages, both texts being equally authentic. In case of divergence in interpretation the English shall prevail.

For the Government
of the Estonia

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Dr. Lars Prahm
Director-General

RESOLUTION ON
THE PARTICIPATION OF THE REPUBLIC OF ESTONIA TO
THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/72/11/Res. IV on the Accession of the Republic of Estonia to the EUMETSAT Convention, unanimously adopted at the 72nd Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, the Republic of Estonia will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2012,

WELCOMING the wish expressed by Estonia to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.0862%.

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. IV adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the participation of the Republic of Estonia to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Estonia for the Optional EUMETSAT Jason-2 Altimetry Programme at EUR 4,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Estonia shall contribute with a rate of 0.0862% to the annual Jason-2 budgets with effect from 1 January 2012, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.
- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Estonia will participate in the Programme with effect 1 January 2012.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II.

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME

FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-2
BELGIUM (BE)	3.0524%
SWITZERLAND (CH)	3.4474%
GERMANY (DE)	26.4930%
DENMARK (DK)	1.9559%
ESTONIA (EE)	0.0862%
SPAIN (ES)	6.6677%
FINLAND (FI)	1.4521%
FRANCE (FR)	17.2573%
UNITED KINGDOM (GB)	10.5203%
GREECE (GR)	0.7212%
CROATIA (HR)	0.2211%
IRELAND (IE)	0.9484%
ITALY (IT)	13.3850%
LUXEMBOURG (LU)	0.2173%
LATVIA (LV)	0.0959%
NETHERLANDS (NL)	4.5342%
NORWAY (NO)	1.7881%
PORTUGAL (PT)	1.2743%
ROMANIA (RO)	0.5822%
SWEDEN (SE)	2.7461%
SLOVENIA (SI)	0.2325%
TURKEY (TR)	2.3214%
TOTAL	100.0000%

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME

VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	3.0524%
SWITZERLAND (CH)	3.4474%
GERMANY (DE)	26.4930%
DENMARK (DK)	1.9559%
ESTONIA (EE)	0.0862%
SPAIN (ES)	6.6677%
FINLAND (FI)	1.4521%
FRANCE (FR)	17.2573%
UNITED KINGDOM (GB)	10.5203%
GREECE (GR)	0.7212%
CROATIA (HR)	0.2211%
IRELAND (IE)	0.9484%
ITALY (IT)	13.3850%
LUXEMBOURG (LU)	0.2173%
LATVIA (LV)	0.0959%
NETHERLANDS (NL)	4.5342%
NORWAY (NO)	1.7881%
PORTUGAL (PT)	1.2743%
ROMANIA (RO)	0.5822%
SWEDEN (SE)	2.7461%
SLOVENIA (SI)	0.2325%
TURKEY (TR)	2.3214%
TOTAL	100.0000%

RESOLUTION ON
THE PARTICIPATION OF THE REPUBLIC OF ESTONIA TO
THE OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME

Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/72/11/Res. IV on the Accession of the Republic of Estonia to the EUMETSAT Convention, unanimously adopted at the 72nd Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, the Republic of Estonia will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2012,

WELCOMING the wish expressed by Estonia to become a Participating State to the Optional EUMETSAT Jason-3 Altimetry Programme at the rate of 0.0862%.

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-3 Altimetry Programme,

HAVING REGARD to the Council Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme adopted by Potential Participating States on 1 July 2009 which entered into force on 1 February 2010 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the participation of the Republic of Estonia to the Optional EUMETSAT Jason-3 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Estonia for the Optional EUMETSAT Jason-3 Altimetry Programme at EUR 40,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Estonia shall contribute with a rate of 0.0862% to the annual Jason-3 budgets with effect from 1 January 2012, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.
- IV** To amend the Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme to reflect that Estonia will participate in the Programme with effect 1 January 2012.

- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme as attached to this Resolution in Annexes I and II.

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for the Optional EUMETSAT Jason-3 Altimetry Programme shall be limited to a maximum of M€63.6 at 2009 economic conditions (M€60 at 2007 economic conditions).

The indicative EUMETSAT payment profile, based upon a mid 2013 launch and five years of operations, is:

Year	2010	2011	2012	2013	2014	2015	2016	2017	2018
M€	20.9	26.2	13	3.5	0	0	0	0	0

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-3 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-3
BELGIUM (BE)	2.8791%
SWITZERLAND (CH)	3.0737%
GERMANY (DE)	13.2339%
DENMARK (DK)	1.9876%
ESTONIA (EE)	0.0862%
SPAIN (ES)	8.4515%
FINLAND (FI)	1.5092%
FRANCE (FR)	22.0566%
UNITED KINGDOM (GB)	15.7152%
GREECE (GR)	0.9235%
CROATIA (HR)	0.2765%
IRELAND (IE)	1.3033%
ITALY (IT)	13.4619%
LUXEMBOURG (LU)	0.2405%
NETHERLANDS (NL)	4.8999%
NORWAY (NO)	2.2664%
PORTUGAL (PT)	1.3747%
ROMANIA (RO)	0.6426%
SWEDEN (SE)	2.8264%
SLOVENIA (SI)	0.2568%
TURKEY (TR)	2.5345%
TOTAL	100.0000%

**OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME
VOTING COEFFICIENT**

Pursuant to the scale of contributions contained in Annex II of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	2.8791%
SWITZERLAND (CH)	3.0737%
GERMANY (DE)	13.2339%
DENMARK (DK)	1.9876%
ESTONIA (EE)	0.0862%
SPAIN (ES)	8.4515%
FINLAND (FI)	1.5092%
FRANCE (FR)	22.0566%
UNITED KINGDOM (GB)	15.7152%
GREECE (GR)	0.9235%
CROATIA (HR)	0.2765%
IRELAND (IE)	1.3033%
ITALY (IT)	13.4619%
LUXEMBOURG (LU)	0.2405%
NETHERLANDS (NL)	4.8999%
NORWAY (NO)	2.2664%
PORTUGAL (PT)	1.3747%
ROMANIA (RO)	0.6426%
SWEDEN (SE)	2.8264%
SLOVENIA (SI)	0.2568%
TURKEY (TR)	2.5345%
TOTAL	100.0000%

**RESOLUTION ON
AMENDMENTS TO THE METEOSAT IMPLEMENTING RULES**

**Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011**

The EUMETSAT Member States,

RECALLING that the current Meteosat Implementing Rules were adopted by Council at its 70th meeting in June 2010 through Resolution EUM/C/70/10/Res. III,

RECALLING that Annex III of the Meteosat Implementing Rules was amended by Council at its 70th meeting in June 2010 through Resolution EUM/C/70/10/Res. IV,

TAKING INTO ACCOUNT that one of the objectives of the EUMETSAT Data Policy is to extend the use of Meteosat Data and Products,

CONSIDERING that, at its 67th Council meeting, the EUMETSAT Council adopted the Oslo Declaration which aims to offer more and better products and services whilst continuing to protect the underlying digital data and products,

CONSIDERING that at its 68th and 70th meetings the EUMETSAT Council agreed to increase the Essential data set to include Three-hourly data and to expand the data provided without charge to National Meteorological Services of Non-Member States to include Hourly data,

CONSIDERING that at its 70th meeting, the EUMETSAT Council agreed to reduce the End User fees with consequential impact on the basic fees paid by Broadcasters and the minimum fees for Service Providers,

AGREE to abolish Resolution EUM/C/70/10/Res. IV and replace it as follows:

- I** The fees for access to non-essential Meteosat data by commercial and other users shall be replaced by the version attached to this Resolution in Annex I.
- II** This Resolution shall take effect on 1 January 2012.
- III** Subject to the above, Resolution EUM/C/70/10/Res. III remains unchanged.

EUMETSAT FEES FOR ACCESS TO NON-ESSENTIAL METEOSAT DATA BY COMMERCIAL AND OTHER USERS

The attached Table contains the annual EUMETSAT fees applicable to commercial and other users for non-Essential HRI Data and High Rate SEVIRI Data. These fees will be reviewed by the EUMETSAT Council at regular intervals in light of experience.

The fees for the use of non-Essential Low Rate SEVIRI Data by commercial and other users shall be 75% of the corresponding fees for corresponding use of High Rate SEVIRI Data.

The fees are based on the following considerations:

- All Service Providers shall be charged a basic fee, in accordance with the attached Table.
- In cases where a Service Provider wishes to retransmit Meteosat Data without transformation to End Users, an additional fee shall be charged per end user equivalent to 75% of the End User fee for direct reception in accordance with the attached Table.
- In cases where a Service Provider wishes to broadcast or to supply for broadcasting Meteosat Data or images based on Meteosat Data, an additional fee shall be charged per channel or Service Provider or Broadcaster running web site(s) in accordance with the attached Table.
- For Broadcasters procuring Meteosat Data or images based on Meteosat Data from a Service Provider, no fee will be charged to the Broadcaster, as such fee is already included in the fee charged to the Service Provider.
- All Broadcasters receiving Meteosat Data directly shall be charged a basic fee in accordance with the attached Table.
- An additional fee will be charged per channel, depending on the size of the Actual Audience as defined in the attached Table. Should broadcasting consist of open-site Internet dissemination, the additional fee will be charged per Broadcaster running web site(s) containing images based on Meteosat Data. This fee shall depend on the number of page consultations made to the web site.
- Licences to Service Providers will allow redistribution of Meteosat Data to another Service Provider only if this other Service Provider has the appropriate licence with EUMETSAT or one of its Exclusive Licensing Agents.

FEES FOR ACCESS TO METEOSAT DATA

Data Frequency	User Categories					
	End User	Broadcaster		Service Provider		
		Basic fee	Additional fee for broadcasting images based on Meteosat Data	Basic fee	Additional fee for the right to re-transmit Meteosat Data without transformation to End Users	Additional fee for broadcasting images based on Meteosat Data or supplying to broadcasters Meteosat Data or images based on Meteosat Data
Full set (1/4 hourly)	6 KEUR	End User fee according to data frequency requested	a) Fee per channel: EUR 75 per 10,000 actual audience*** with a minimum of EUR 250 and a maximum of KEUR 15. b) Fee per Broadcaster running web site(s): EUR 75 per 10,000 page consultations**** accumulated over one year with a minimum of EUR 250 and a maximum of KEUR 30.	0.5% of Service Provider turnover** max. KEUR 18, min. KEUR 6	n* x 75% of the relevant end user fee	a) Fee per channel: EUR 75 per 10,000 actual audience*** with a minimum of EUR 250 and a maximum of KEUR 15. b) Fee per Service Provider or Broadcaster running web site(s): EUR 75 per 10,000 page consultations**** accumulated over one year with a minimum of EUR 250 and a maximum of KEUR 30.
1/2 hourly data	4 KEUR			0.5% of Service Provider turnover** max. KEUR 12, min. KEUR 4		
1 hourly data	2 KEUR			0.5% of Service Provider turnover** max. KEUR 6, min. KEUR 2		

* n = number of end users

** Turnover means the meteorological turnover, being the total annual revenue derived from the commercial activity in any way based on meteorological data and products acquired by the Service Provider (excluding revenue derived from services to civil aviation in accordance with the ICAO Convention, Annex III). Should the turnover figures not be available, the maximum fee will apply.

*** Actual audience is defined as the arithmetic average of the total actual audience (total audience except children under 3 years old), based on the full 24-hour period and over a period of approximately 1 year, expressed as average audience per day. The result of this calculation will be rounded up to the next 10,000. Should the audience figures not be available, the maximum fee will apply.

**** One page consultation is defined as any single “click” originated from one IP address on a web page containing images based on Meteosat Data. Should the number of page consultations not be available, the maximum fee will apply.

NOTE: The fees for access to Low Rate SEVIRI Data shall be 75% of the corresponding fees for High Rate SEVIRI Data according to this table.

RESOLUTION ON
AMENDED EUMETSAT PRINCIPLES ON DATA POLICY REGARDING THE
POSSIBILITY TO DELEGATE LICENSING OF COMMERCIAL USERS

Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011

The EUMETSAT Member States,

RECALLING that Council Resolution EUM/C/98/Res. IV establishes the generic EUMETSAT Principles on Data Policy,

RECALLING that the EUMETSAT Principles on Data Policy determine that the NMSs of the Member States shall act as exclusive Licensing Agents on behalf and for account of EUMETSAT for the purpose of granting access to real-time data to users receiving the data within their respective territories, and that EUMETSAT is responsible for granting access to real-time data to international organisations, NMSs of non-Member States and to other users operating outside Member States,

RECALLING that the EUMETSAT Principles on Data Policy were amended by Council Resolution EUM/C/57/05/Res. III in order to offer the possibility to the NMSs to delegate the licensing of non-paying users in their territory to the Secretariat,

CONSIDERING that some NMSs have expressed their interest in delegating to the Secretariat the licensing of the commercial activities in their territory,

WISHING to simplify and unify the licensing procedure for users to enhance the efficiency of the EUMETSAT licensing,

AGREE to amend Principle II of the EUMETSAT Principles on Data Policy, as adopted in Resolution EUM/C/98/Res. IV and amended in Resolution EUM/C/57/05/Res. III, as follows:

I Principle II shall read:

The NMSs of the Member States shall act as Licensing Agents on behalf and for the account of EUMETSAT for the purpose of granting access to real-time data to users, receiving the data within their respective national territories. In doing so, the NMSs will apply the EUMETSAT fees and conditions, agreed by the EUMETSAT Council. The NMSs of Member States may delegate to EUMETSAT the granting of access to real-time data for users within their respective territories.

II The above amendment shall take effect on 1 January 2012.

RESOLUTION ON
AMENDMENTS TO THE METEOSAT IMPLEMENTING RULES ON
DATA POLICY – ACCESS TO METEOSAT MDD MATERIAL
AND DCP CHANNELS

Adopted at the 72nd Meeting of the EUMETSAT Council
on 28-29 June 2011

The EUMETSAT Member States,

RECALLING that the current consolidated Meteosat Implementing Rules to the EUMETSAT principles on Data Policy – Access to Meteosat MDD Material and DCP Channels adopted by Council at its 70th meeting in June 2010 through Council Resolution EUM/C/70/10/Res. V,

CONSIDERING the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

CONSIDERING that the DCP mission can provide additional benefits to the user community by including DCP stations that measure environmental parameters which are used to model climate changes and also help to protect human life and property,

RECOGNISING the importance of the EUMETSAT contribution to the global response that is being coordinated to meet the challenges of climate change,

TAKING INTO ACCOUNT that the objective of this policy is to ensure a correct use of the Meteosat DCP Channels in line with the spirit of WMO Resolution 40 (Cg-XII),

AGREE to abolish Council Resolution EUM/C/70/10/Res. V and to replace it as follows:

- I** the Implementing Rules on Access to Meteosat MDD Material and DCP Channels as defined in Resolution EUM/C/70/10/Res. V shall be replaced by the Implementing Rules on Access to Meteosat MDD Material and DCP Channels attached to this Resolution.
- II** The attached Implementing Rules on Access to Meteosat MDD Material and DCP Channels shall take effect on 1 July 2011.

IMPLEMENTING RULES TO THE EUMETSAT PRINCIPLES ON DATA POLICY – ACCESS TO METEOSAT MDD MATERIAL AND DCP CHANNELS

1. DEFINITIONS

The following definitions apply in addition to the relevant definitions contained in Annex I of Resolution EUM/C/98/Res. IV:

“Meteosat DCP”: Data Collection Platform for the use of Meteosat DCP Channels.

“Meteosat MDD Material”: Meteorological information and charts disseminated to the National Meteorological Services of WMO Member States.

“Meteosat DCP Channels”: Dedicated Meteosat Channels of communication operating at a radio frequency reserved for meteorological data collection.

2. OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

1. EUMETSAT holds the full ownership and utilisation rights to the Meteosat DCP Channels and has full control over access to these Channels.
2. Ownership and Intellectual Property Rights to the MDD Material and to the data transmitted by the Meteosat DCP Channels are deemed to remain with the originator of the material or data.

3. ACCESS TO MDD MATERIAL

1. The NMSs of WMO Member States will have access to Meteosat MDD Material at no cost except for the cost of decryption key units.
2. ECMWF will have access to Meteosat MDD Material at no cost except for the cost of decryption key units.
3. Third parties which provide EUMETSAT with MDD Material will be given access to MDD Material on a quid pro quo basis, as decided by the EUMETSAT Council.
4. MDD Material is not available to any other users.
5. The use of MDD Material is subject to any conditions that may have been placed on its use by the originator of the material in accordance with WMO Resolution 40 (Cg-XII).

4. ACCESS TO METEOSAT DCP CHANNELS

1. Meteosat DCP Channels are available at no cost to NMSs of Member States for their Official Duty use, provided their messages are also made available through the Global Telecommunication System and discoverable in the WMO Information System (WIS).
2. Meteosat DCP Channels are also available at no cost for meteorological, geophysical and hydrological messages by NMSs of non-Member States, WMO and ECMWF provided they are also made available through the Global Telecommunication System and discoverable in the WMO Information System (WIS).

5. FINANCIAL MATTERS

EUMETSAT shall not be liable for the cost of the technical equipment of any user necessary to have access to the Meteosat MDD Material and DCP Channels. All users shall be required to reimburse EUMETSAT for the cost of providing them with decryption key units for the reception of Meteosat MDD transmissions.

RESOLUTION ON

**THE EUMETSAT POLAR SYSTEM SECOND GENERATION
PREPARATORY PROGRAMME (EPS-SG PP)**

**Presented for adoption at the 73rd Meeting of the EUMETSAT Council
on 5 October 2011 and adopted on 15 November 2012**

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT programmes are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the Low Earth orbit, the first satellite of a second generation of the EUMETSAT Polar System (EPS-SG) should be available for a launch in 2019,

TAKING INTO ACCOUNT the approach and planning for the Phase A of the EPS-SG Programme submitted to the 68th meeting of the EUMETSAT Council (EUM/C/68/09/DOC/03),

BEARING IN MIND that the potential accommodation of the GMES Sentinel 5 payload on EPS-SG will be considered by the EUMETSAT Council in due course on the assumption that this accommodation is feasible within the EPS-SG System design margins and at no additional cost to EUMETSAT, in accordance with the Approach to implementation of Sentinel 4 and 5 on MTG and Post-EPS adopted by Council at its 64th meeting (EUM/C/64/08/DOC/08),

TAKING INTO ACCOUNT the Council Resolution EUM/C/70/10/Res. I on the Preparation of the EPS Second Generation in which Council inter alia agreed that the satellite configuration to be targeted in the Phase A activities of EPS-SG should be a two satellites configuration,

NOTING the progress of the Phase A studies for the establishment of the EPS-SG System,

RECALLING that the EUMETSAT EPS-SG activities are covered through the General Budget until completion of Phase A activities, and that there is a need to ensure the continued funding of EPS-SG activities from beginning of Phase B,

FOLLOWING the revised roadmap for the approval of the EPS-SG Programme submitted to the 73rd Council meeting (EUM/C/73/11/DOC/01),

IN ACCORDANCE WITH the Programme Proposal for the EPS-SG Preparatory Programme contained in document EUM/C/72/11/DOC/08 Rev.2,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention,

AGREE:

- I** To establish a Preparatory Programme for a EUMETSAT Polar System Second Generation (EPS-SG) commencing in May 2012 and lasting until the completion of all Phase B activities and the start of the full EPS-SG Programme, expected to be no later than end 2014.
- II** That the mission objectives, system description and Preparatory Programme content shall be as described in the EUMETSAT EPS-SG Preparatory Programme Definition attached to this Resolution.
- III** That the financial envelope of the Preparatory Programme shall amount to 40.91 MEUR at 2011 economic conditions, with an indicative payment profile of 5.92 MEUR in 2012, 17.30 MEUR in 2013, and 17.69 MEUR in 2014.
- IV** That, in order to improve value for money of the EPS-SG Programme, every effort should be made to ensure that the design lifetime of the satellites is optimised, and that overall flexibility regarding the schedule of launches is preserved.
- V** To make every effort to preserve flexibility to the extent possible in order to respond to potential departures from the currently foreseen payload or satellite configuration, such that the impact on the EPS-SG Programme is minimised.
- VI** To task the Director-General to exercise every effort to reduce cost for the full EPS-SG Programme.
- VII** To task the Director-General to maintain close contact with ESA with a view to ensuring a coordinated approval process of the EPS-SG Programme by both organisations and their respective Delegate Bodies.
- VIII** To task the Director-General with the preparation of the necessary cooperation agreements with the international partners ESA, NOAA, DLR and CNES to be submitted to Council for initial review in early 2012, and to be finalised in the context of the full EPS-SG Programme approval.
- IX** To task the Director-General with elaborating a Programme Proposal for the full EPS-SG Programme and related Resolution, and to submit them for Council consideration no later than autumn 2013.

EUMETSAT POLAR SYSTEM SECOND GENERATION

PREPARATORY PROGRAMME DEFINITION

1. GENERAL

The EUMETSAT Polar System (EPS) is Europe's first polar orbiting operational meteorological satellite system, and with its Metop satellites it is the European contribution to the Initial Joint Polar-Orbiting Operational Satellite System (IJPS). EPS started routine operation services in May 2007, and the series of three Metop satellites are expected to deliver observations and services until 2021. According to availability analyses, the first in-orbit element of the EUMETSAT Polar System Second Generation (EPS-SG) needs to be available in 2019 to ensure continuity to EPS.

The EPS-SG preparatory activities started in 2005 with the user consultation process established with Member States, aimed at capturing the needs of EUMETSAT users in the 2020-2035 timeframe and conducted in cooperation with the European Space Agency (ESA) as part of the Phase 0. Following the endorsement by the EUMETSAT Council of the Application Expert Groups Position Papers as outcome of the user consultation in 2006, the process led to the definition of the mission requirements for the EPS-SG candidate missions that were endorsed by Council in June 2009. Iterations with EUMETSAT's international partners ESA, NOAA, DLR and CNES on the definition of cooperation in the EPS-SG Programme have been ongoing since 2008.

2. MISSION OBJECTIVES AND CANDIDATE MISSIONS

The EPS-SG mission requirements baseline for the Phase A which started in January 2010 is the result of the user consultation process, the Mission Definition Review in autumn 2009 which closed the Phase 0, and the requirements de-scoping undertaken with the EPS-SG Mission Experts Team (PMET) until mid of 2010.

The selected mission concept for the EPS-SG Phase A encompasses a total of nine candidate observation missions, which are:

- **Infrared Atmospheric Sounding (IAS)** mission, providing hyper-spectral infrared sounding with a spectral resolution of 0.125 cm^{-1} within the spectral range from 645 to 2760 cm^{-1} at an average spatial sampling distance of 25 km ;
- **Visible/Infrared Imaging (VII)** mission, providing moderate-resolution optical imaging in >20 spectral channels ranging from 0.443 to $13.345 \text{ }\mu\text{m}$ with a spatial sampling of 250 to 500 m ;
- **MicroWave Sounding (MWS)** mission, providing all-weather microwave sounding in the spectral range from 23.4 to 229 GHz , at a spatial sampling of 10 to 20 km ;
- **SCAtterometry (SCA)** mission, providing back-scattered signals in the 5.9 GHz band at a spatial resolution of 25 km ;
- **Radio Occultation sounding (RO)** mission, providing high vertical resolution, all-weather soundings by tracking GPS (Global Positioning System) and Galileo satellites;

- **MicroWave Imaging (MWI)** mission, providing precipitation and cloud imaging in the spectral range from 18.7 to 668 GHz at a spatial sampling from 8 km (highest frequency) to 12 km (lowest frequency);
- **Nadir-viewing Ultra-violet Visible Near-infrared shortwave infrared Sounding (UVNS)** mission, providing hyper-spectral sounding with a spectral resolution from 0.05 to 1 nm within the spectral range from 0.27 to 2.4 μm at a spatial sampling of 15 km;
- **Multi-viewing Multi-channel Multi-polarisation imaging mission (3MI)**, providing moderate resolution aerosol imaging in the spectral region ranging from ultra-violet (0.342 μm) to short-wave infrared (2.13 μm), at a spatial sampling of 2 to 4 km;
- **Radiant Energy Radiometry mission (RER)**, providing earth radiation budget measurements in three bands of the solar and terrestrial spectral domains with a spatial sampling of 10 km.

A priority ranking has been assigned to the EPS-SG candidate missions with the rank “very high” for the IAS, VII, MWS and SCA missions, rank “high” for the RO mission, rank “medium” for the MWI, UNVS and 3MI missions, and rank “low” for the RER mission.

3. EPS-SG SYSTEM CONCEPT

The EPS-SG system concept encompasses the following characteristics:

- Designed to constitute the European contribution to the Joint Polar System with the U.S.A. (mid-morning orbit);
- Space Segment based on a two satellites in-orbit configuration;
- Strong heritage from EPS continuity missions;
- Accommodation and operations of GMES Sentinel 5 instruments;
- Satellite development based on maximum reuse of existing technologies;
- Distribution of Ground Segment capabilities, including the assets of the EUMETSAT Satellite Application Facilities (SAF Network);
- Reliance on evolution of available data acquisition capabilities (i.e. Svalbard and Antarctica stations);
- Provision of global and regional downlink capabilities;
- Re-use of EUMETSAT infrastructures, taking into account the EPS heritage and multi-mission reusable elements;
- Compatibility with more than one launcher.

The EPS-SG satellites will fly in a sun synchronous, low earth orbit, at 817 km altitude and 09:30 descending equatorial crossing time (mid-morning orbit). The two satellites will be separated from each other within the orbit of typically 25 minutes, in order to separate visibility periods and perform routine operations from the same ground station(s).

4. PREPARATORY PROGRAMME CONTENT

The EPS-SG Preparatory Programme covers the EUMETSAT activities associated with the EPS-SG Phase B starting in May 2012, up to the completion of the Phase B activities end 2014.

It is assumed that all activities following the PDR will be covered under the full EPS-SG Programme, covering the EPS-SG Phases C/D/E.

Phase B will focus on the consolidation of the requirements for the EPS-SG system, and their justification via their detailed analyses and trade-off, to derive necessary design elements, in line with programmatic constraints (schedule and costs). These activities will allow the system to be subsequently developed, produced, operated and maintained.

During Phase B, an incremental system requirements review process will be conducted at system level and space segment level, taking into account the needs of the ESA Space Segment Phase B, of the EUMETSAT Ground Segment studies, and of the cooperation with the international partners.

The Phase B activities are formally closed by the Preliminary Design Review (PDR).

5. IMPLEMENTATION

The main activities planned during the EPS-SG Preparatory Programme will consist of:

- Preparatory Programme Management:
 - Management
 - Project Control and Planning
- System and Operations Preparation
 - System Management
 - End User Activities
 - System Engineering
 - System Definition and Development
 - Meteorological Products Activities
 - Operations Preparation
 - System Integration and Verification and Validation
 - External Services (Launch Services Activities and LEOP Services Activities)
- Satellites Activities
- Instruments Activities
 - Instruments with Existing Design
 - New Instruments
- Ground Segment Activities
- Quality Assurance

RESOLUTION ON
THE SCOPE OF THE EUMETSAT POLAR SYSTEM
SECOND GENERATION (EPS-SG) SPACE SEGMENT

Adopted at the 75th Meeting of the EUMETSAT Council
on 31 January 2012

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT programmes are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the Low Earth orbit, the first satellite of a second generation of the EUMETSAT Polar System (EPS-SG) should be available for launch end 2020,

TAKING INTO ACCOUNT the approach and planning for the Phase A of the EPS-SG Programme agreed at the 68th meeting of the EUMETSAT Council (EUM/C/68/09/DOC/03),

RECALLING that EPS-SG will be the European contribution to the Joint Polar System to be established with NOAA, whereby EUMETSAT will cover the mid-morning orbit and, in exchange, obtain the data from the US satellites covering the early-morning and afternoon orbits, and that no exchange of instruments is foreseen between EUMETSAT and NOAA,

WELCOMING the offer made by the Space Administration of the German Aerospace Centre (DLR) to provide the METImage instrument as contribution to the EPS-SG Programme,

EXPECTING an offer from the Centre National d'Etudes Spatiales (CNES) to provide the IASI-NG and the Advanced Data Collection System (ARGOS-4) instruments as contributions to the EPS-SG Programme,

BEARING IN MIND that, in accordance with the approach to implementation of GMES Sentinels 4 and 5 on MTG and Post-EPS adopted by Council at its 64th meeting (EUM/C/64/08/DOC/08), Council agreed to consider the accommodation of the Sentinel-5 on EPS-SG in due course on the assumption that this accommodation is feasible within the EPS-SG System design margins and at no additional cost to EUMETSAT,

TAKING INTO ACCOUNT the Council Resolution EUM/C/70/10/Res. I on the Preparation of the EPS Second Generation in which Council inter alia agreed that the satellite configuration to be targeted in the Phase A activities of EPS-SG should be a two satellites configuration (TSC),

TAKING INTO ACCOUNT the Council Resolution EUM/C/73/11/Res.I on the EUMETSAT Polar System Second Generation Preparatory Programme (EPS-SG PP), presented for adoption at the 73rd Council Meeting in October 2011,

FOLLOWING the revised roadmap for the approval of the EPS-SG Programme submitted to the 73rd Council meeting (EUM/C/73/11/DOC/01),

AWARE that the joint roadmap agreed with ESA leading to a coordinated approval of the respective EPS-SG/Metop-SG programmes by both Organisations requires the establishment of a common baseline for the development of the EPS-SG space segment in time for submission of the ESA Metop-SG Programme to the ESA Council meeting at Ministerial level in November 2012,

NOTING the information on the current financial planning provided in document EUM/C/75/12/DOC/03 and the information on the socio-economic benefits expected from the EPS-SG Programme provided in document EUM/C/75/12/DOC/04,

WISHING therefore to define a space segment scope that will preserve the agreed mission priorities and expected benefits of the EPS-SG Programme, whilst addressing the concerns raised by EUMETSAT Member States on affordability,

AGREE:

I To approve the EPS-SG payload complement including the following instruments as baseline for the preparation of the EUMETSAT EPS-SG Programme Proposal, on the understanding that the final decision on the EPS-SG payload complement will only be formalised when approving the EPS-SG Programme.

- Infrared Atmospheric Sounding Instrument, expected to be provided by CNES,
- Visible-infrared Imaging Instrument, to be provided by DLR,
- European Microwave Sounding Instrument,
- Scatterometer,
- Radio Occultation Instruments,
- Microwave Imaging for Precipitation Instrument,
- Multi-viewing, multi-channel, multi-polarisation Imager,
- The GMES Sentinel-5 Instrument, to be provided by ESA,
- Advanced Data Collection System, to be provided by CNES,

II Agree to further consider the Ice Cloud Imager as an additional payload and to decide in this respect at the next ordinary Council meeting in July 2012.

III To confirm the two satellites configuration (TSC) as the baseline for the in-orbit configuration of the EPS-SG space segment.

IV To task the Director-General to carry out the Phase B activities covered under the EPS-SG Preparatory Programme on that basis, targeting a system designed to cover at least 21 years of operational service.

- V** To task the Director-General, in conjunction with the Director-General of ESA, to continue all efforts to achieve any possible cost saving and optimisation of the overall cost and expenditure profile of the EPS-SG Programme and to report on a regular basis to Council on the progress made.
- VI** That, in order to improve the value for money of the EPS-SG Programme, every effort should be made to ensure that the design lifetime of the satellites is maximised, and that overall flexibility regarding the schedule of launches is preserved.
- VII** To task the Director-General with confirming to ESA the intention of EUMETSAT to approve its EPS-SG Programme in the 2014 timeframe.
- VIII** To invite ESA to establish the corresponding Metop-SG Programme, covering the ESA Phases B2 and C/D of the prototype satellites, on the basis of the baseline payload complement as defined in AGREE I and the in-orbit configuration defined in AGREE III.
- IX** To invite ESA Member States to approve the Metop-SG Programme at the ESA Council meeting at ministerial level in November 2012, thereby allowing a start of the ESA Phase B2 industrial activities in the beginning of 2013.
- X** To task the Director-General with continuing all efforts to reach a clear commitment from CNES before the end of April 2012 to provide IASI-NG instruments as a contribution to the EPS-SG Programme, on the understanding that the Director-General will discuss a fallback scenario with ESA should the commitment from CNES not be achieved by this date.
- XI** To task the Director-General with negotiating the necessary cooperation agreements with ESA, DLR, CNES and NOAA, to be submitted to Council for initial review in spring 2012, and to be finalised in the context of the EPS-SG Programme approval.

RESOLUTION ON
MEASURES FOR PLANNING THE EPS-SG PROGRAMME TAKING INTO
ACCOUNT THE EXCEPTIONALLY CRITICAL ECONOMIC SITUATION OF
GREECE

Adopted at the 75th Meeting of the EUMETSAT Council
on 31 January 2012

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECOGNIZING that in accordance with the Convention, EUMETSAT mandatory programmes include the basic programmes required to continue the provision of observations from geostationary and polar orbits, and that this addresses in particular the Meteosat Third Generation (MTG) and the EUMETSAT Polar System Second Generation (EPS-SG) programmes expected to deliver such observations in the 2020-2040 timeframe,

CONSIDERING that the EUMETSAT Council, at its 73rd meeting on 5 October 2011, agreed on the contents of the programme proposal for the EPS Second Generation Preparatory Programme (EPS-SG PP) as contained in document EUM/C/72/11/DOC/08 REV2,

CONSIDERING that the EUMETSAT Council, at its 73rd meeting, agreed to open the voting of Resolution EUM/C/73/11/Res.I on the EPS-SG PP,

NOTING that a large majority of the Member States have already voted in favour of the EPS-SG PP Resolution, thus achieving a programme funding level of almost 84%, and that the approval process is underway in other Member States,

RECOGNISING the need to start activities under the EPS-SG PP as soon as possible in 2012, as required to avoid disruption of critical joint preparatory activities with ESA, additional costs and programme risks,

AWARE of the exceptionally critical economic situation that Greece is facing in the current unprecedented crisis,

NOTING the invitation of Greece that Council considers possible options leading to the implementation of the EPS-SG Programme without participation of Greece,

AWARE of the criticality for all EUMETSAT Member States of providing continuity to observations from polar orbit,

AGREE:

- I** To task the Director-General and the Council Chairman, with the support of a high level Council task force, to explore with the Greek Government possible options for the implementation of the EPS-SG Programme as a mandatory programme as foreseen by the Convention, taking into account the exceptionally critical economic situation in Greece.
- II** To urge the other remaining Member States to complete their approval process of the EPS-SG Preparatory Programme.
- III** To invite the Director-General, on that basis, to report to Council at its next ordinary meeting in July 2012, and to submit relevant proposals for starting the EPS-SG Preparatory Programme activities as early as possible in 2012.

RESOLUTION ON
THE AUTHORISATION TO PROCEED WITH
THE EPS-SG PREPARATORY PROGRAMME

adopted at the 76th Meeting of the EUMETSAT Council
on 5-6 July 2012

The EUMETSAT Member States,

CONSIDERING that the EUMETSAT Council, at its 73rd meeting on 5 October 2011, agreed on the contents of the programme proposal for the EPS Second Generation Preparatory Programme (EPS-SG PP) as contained in document EUM/C/72/11/DOC/08 REV2,

CONSIDERING that the EUMETSAT Council, at its 73rd meeting, agreed to open the voting of Resolution EUM/C/73/11/Res.I on the EPS-SG PP,

NOTING that 24 of the 26 Member States have firmly voted in favour of the EPS-SG PP Resolution, thus achieving a programme funding level of over 90%,

NOTING that Greece and Spain still need to confirm their votes,

NOTING that Spain is expecting to be able to vote yes *ad referendum* in the course of July 2012,

NOTING that the EPS-SG PP Resolution will only formally enter into force upon approval by all Member States,

EXPECTING that the above Delegations will be able to confirm their votes within a short period of time, and that the formal entry into force of the Resolution on the EPS-SG PP will take place by the next ordinary Council meeting in November 2012,

RECOGNISING the need to start the EPS-SG PP activities from July 2012 to avoid disruption of critical joint preparatory work with ESA, additional costs and programme risks,

AGREE:

- I** That the activities under the EPS-SG Preparatory Programme can start as soon as 95% of the programme funding (including *ad referendum* votes) has been reached.
- II** That Greece and Spain will be legally obliged to contribute financially to the Programme only after finalisation of national approval procedures.

- III** That considering the delay in the start of activities, the related postponement of the dedicated recruitments and the impact of the delayed launch of Metop-B on the availability of some existing staff, the EPS-SG PP expenditure budget 2012 shall be reduced to KEUR 1,500, thus reducing significantly the amounts to be called up from those Member States which have agreed unconditionally to contribute to the Programme.
- IV** That in the amended EPS-SG PP Budget 2012 an amount corresponding to the contributions from Greece and Spain remains blocked until the finalisation of national procedures has been notified to the Director-General.
- V** That if Greece and Spain would not be in a position to confirm finalisation of national approval procedures by the next ordinary Council meeting in November 2012 at the latest, those Member States who have agreed unconditionally to contribute to the Programme will decide on the action to be taken.

RESOLUTION ON
A SAVINGS TARGET FOR THE PREPARATION OF
THE EUMETSAT POLAR SYSTEM
SECOND GENERATION (EPS-SG) PROGRAMME

adopted at the 76th Meeting of the EUMETSAT Council
on 5-6 July 2012

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory EUMETSAT programmes are the basic programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the operational commitments of EUMETSAT in the polar orbit, the first satellite of a second generation of the EUMETSAT Polar System (EPS-SG) should be planned for launch end 2020,

BEARING IN MIND that a unanimous Council approval of the EPS-SG Programme will need to take place in 2014,

AWARE of the current economic and financial crisis in Europe and related critical financial situation in some Member States,

TAKING INTO ACCOUNT the Council Resolution EUM/C/70/10/Res.I on the Preparation of the EPS Second Generation in which Council inter alia agreed that the satellite configuration to be targeted in the Phase A activities of EPS-SG should be a two satellites configuration (TSC),

TAKING INTO ACCOUNT the Council Resolution EUM/C/73/11/Res.I on the EUMETSAT Polar System Second Generation Preparatory Programme (EPS-SG PP), presented for adoption at the 73rd Council Meeting in October 2011,

TAKING INTO ACCOUNT the Council Resolution EUM/C/75/12/Res.I on the Scope of the EPS-SG Space Segment, by which Member States approved the EPS-SG payload complement as baseline for the preparation of the EPS-SG Programme Proposal, confirmed the two satellites configuration and agreed to target a system designed to cover at least 21 years of operational service,

TAKING FURTHER INTO ACCOUNT that Resolution EUM/C/75/12/Res.I tasked the Director-General, in conjunction with the Director General of ESA, to continue all efforts to achieve any possible cost saving and optimisation of the overall cost and expenditure profile of the EPS-SG Programme and to report on a regular basis to Council on the progress made,

WISHING to define an EPS-SG Programme that will preserve the agreed mission priorities, operational robustness and expected benefits, in line with Council Resolution EUM/C/75/12/Res.I, whilst addressing the concerns raised by EUMETSAT Member States on affordability,

NOTING the preliminary EPS-SG cost estimates resulting from Phase A activities, as provided in EUM/C/75/12/DOC/01 REV2 CORR1,

NOTING that the Post-EPS Mission Expert Team will continue providing advice to the STG on the assessment of instrument performance requirements leading to possible savings on space segment costs, taking into account the need to preserve high positive impact on Numerical Weather Prediction in the 2020-2040 timeframe,

RECOGNISING that consolidation of cost estimates, including identification of savings, requires urgent start and significant progress of the Phase B activities planned under the EUMETSAT EPS-SG Preparatory Programme and the proposed ESA Metop-SG Programme,

AGREE:

- I** To task the Director-General, in conjunction with the Director General of ESA, to carry out the Phase B activities covered by the EPS-SG Preparatory Programme and the ESA Metop-SG Programme, with the target of achieving savings of 5% with regard to the estimates provided in document EUM/C/75/12/DOC/01 REV2 CORR1 for the envelope of the EPS-SG Programme, and to assess risks associated with possible saving options.
- II** To task the Director-General to consider options for the extension of satellite and instrument life, assessing potential savings and associated risks to service.
- III** To task the Director-General to report to Delegate Bodies on possible saving options and associated risks when preparing the EPS-SG Programme Proposal.

RESOLUTION ON
THE PREPARATION OF A JASON CONTINUITY OF SERVICE (JASON-CS)
OPTIONAL PROGRAMME

adopted at the 76th Meeting of the EUMETSAT Council
on 5-6 July 2012

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy “EUMETSAT: A global satellite operational agency at the heart of Europe” approved at the 72nd Council meeting foresees, as a strategic objective, to secure new opportunities in areas that are complementary to EUMETSAT’s programmes and meet EUMETSAT Member States requirements. In this context, the transition of the current EUMETSAT Optional Ocean Surface Topography Programme into a fully operational Programme, securing continuity of observations over a long period and building upon the long-lasting cooperation between Europe and the United States, should be addressed in the near future. Within Europe, GMES will represent the main opportunity to develop such an operational Programme,

TAKING INTO ACCOUNT that the EUMETSAT Council, at its 60th meeting, requested the Director-General to carry out a number of activities preparing EUMETSAT for its future role in operational oceanography missions, which included the definition of a EUMETSAT Jason Follow-on Programme,

TAKING INTO ACCOUNT the requirement for satellite ocean altimetry observations expressed by ECMWF, the WMO, the Global Ocean Data Assimilation Experiment (GODAE), the Global Ocean Observing System (GOOS), the Committee for Earth Observation Satellites (CEOS) and the Intergovernmental Panel on Climate Change (IPCC),

BEARING IN MIND that the Topex/Poseidon and Jason-1 missions established by the Centre National d’Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) have proven the value of altimetry observations in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and the monitoring of the climate,

BEARING IN MIND that the requirement to continue these services on a sustained operational basis and the recognition that EUMETSAT is the relevant European operational organisation led to the establishment of the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programmes through Declarations EUM/C/01/Decl.I and EUM/C/67/09/Decl.I,

CONSIDERING that the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme foresees that the Jason-3 Programme should be seen as a first intermediate step towards an operational high precision altimetry Jason-CS Programme to be agreed with ESA and that this Programme would consist of a series of Jason-class satellites based on the Cryosat mission heritage,

CONSIDERING further that the above Declaration tasked the Director-General to prepare with ESA and other international partners for a Jason-CS precise Altimetry Programme providing data continuity in a long term operational perspective on the basis of the EUMETSAT-ESA cooperation model successfully used for operational meteorology,

BEARING IN MIND that the Regulation 911/2010 of the European Parliament and of the European Council of 22 September 2010 on the European Earth monitoring programme (GMES) and its initial operations (2011 to 2013) which recognises that GMES services in the field of the marine environment are important for the support of an integrated European capacity for ocean forecasting and monitoring and the future provision of Essential Climate Variables (ECVs),

TAKING INTO ACCOUNT that the European Union, through this Regulation, further establishes that GMES marine monitoring services shall provide information on the state of physical ocean and marine ecosystems for the global ocean and the European regional areas, and that the application areas of the GMES marine services include maritime safety, the marine environment and coastal regions, marine resources as well as seasonal meteorological forecasting and climate monitoring,

BEARING IN MIND that the complete altimeter system requested by users consists of a Jason-class high precision altimetry mission in non synchronous orbit as well as polar orbiting altimeters,

TAKING INTO ACCOUNT that the GMES Long Term Scenario assumes that the European component of that complete altimeter system is to be realized in the context of GMES, through the combination of the Sentinel 3 mission and a GMES High Precision Ocean Altimetry (HPOA) activity comprising operations of Jason-3 and the follow-on Jason-Continuity Service, in cooperation with the US,

TAKING INTO ACCOUNT the successful launch of the Jason-2 satellite in June 2008 and the expected launch of the Jason-3 satellite in 2014, with operations planned until 2019,

CONSIDERING the requirements to ensure operational continuity to the reference ocean altimetry mission beyond Jason-2 and Jason-3,

AWARE that this continuity requires the availability of the first Jason-CS satellite ready for launch in 2018, and anticipating that the combination of Jason-3 and Jason-CS is intended to provide data continuity until the 2030 timeframe,

HAVING REGARD to the policy principles approved by the 74th EUMETSAT Council in November 2011, which define the boundaries of the EUMETSAT Jason-CS Programme as a contribution to the GMES HPOA activity,

BEARING IN MIND that Article 2 of the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT and agreed as such by Council,

HAVING REGARD to the Preliminary Programme Proposal on Jason Follow-on as an Optional Programme contained in document EUM/C/76/12/DOC/09,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Resolution EUM/C/01/Res.1 on the Approval of Optional Programmes,

AGREES:

- I** That the proposed Jason-CS Programme is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention.
- II** To invite all Member States to express their interest in participating in the proposed Programme, thereby becoming Potential Participating States, on the understanding that this indication will not commit any of these Member States to formally participate in the Jason-CS Programme.
- III** To task the Director-General with drawing up a Programme Declaration and Programme Definition in consultation with Potential Participating States, to be submitted for Council approval in an Enabling Resolution.
- IV** To task the Director-General to identify clear activities to be funded by EUMETSAT Member States and to exercise every effort to reduce cost for the Jason-CS Programme.
- V** To task the Director-General with seeking formal confirmation of the required contributions for Jason-CS from ESA, EC and NOAA as a pre-requisite to the entry into force of the Programme, expected in late 2013.
- VI** To task the Director-General with preparing the necessary cooperation agreements with ESA, EC and NOAA, to be agreed by Council, regarding the respective contributions to the implementation of the Jason-CS mission and the GMES High Precision Ocean Altimetry activity.

RESOLUTION ON

**THE FINANCING OF THE EXTENSION OF THE EUMETSAT HEADQUARTERS
BY A NEW OFFICE BUILDING INCLUDING A CANTEEN**

**adopted at the 76th Meeting of the EUMETSAT Council
on 5-6 July 2012**

The EUMETSAT Council,

RECALLING Resolution EUM/C/67/09/Res.III establishing the fifth ceiling of contributions for the General Budget for the period 2011-2015,

RECALLING Resolution EUM/C/03/Res.VI on the Pre-financing of the Extension of the EUMETSAT Headquarters Building, and Resolution EUM/C/66/08/Res.IV on Pre-Financing of the upgrade of EUMETSAT's Operational Technical Infrastructures,

RECALLING the 71st EUMETSAT Council decision, based on document EUM/C/71/10/DOC/31, to set aside monies to finance future projects and future infrastructure projects,

TAKING INTO ACCOUNT that Council agreed the setting up of a Working Group on the Extension of the EUMETSAT Headquarters by a New Office Building to explore and consider EUMETSAT's requirements at its 74th meeting in November 2011,

TAKING INTO ACCOUNT that the Report of the above Working Group, contained in document EUM/C/76/12/DOC/22, confirms the need for a New Office Building providing space for additional 160 work spaces and for a new Canteen, in accordance with the proposed standards and principles to be applied in design, planning and construction,

TAKING INTO ACCOUNT the Procurement Proposal for Extension of the EUMETSAT Headquarters by a New Office Building including a Canteen in document EUM/C/76/12/DOC/22, recommended for Council approval at the 49th Joint-STG-AFG meeting,

AWARE that the need for the New Office Building was not foreseen at the time when the calculations of the General Budget ceiling for the time period of 2011-2015 were undertaken,

AGREES:

- I** That the ceiling of the General Budget of M€ 90 at 2010 e.c. for the period 2011-2015 shall not be exceeded.
- II** That the amount set aside of approximately M€ 9.9 at 2012 e.c. shall be used to finance the New Office Building.
- III** That an amount, not higher than M€ 1.9 at 2012 economic conditions shall be pre-financed from the EUMETSAT treasury under the cover of the General Budget until Council has identified further sources of revenue, or decided to reimburse it partially or entirely from the ceiling of the General Budget for the period 2016-2020 or from other sources.
- IV** That if Council opts for the reimbursement from General Budget, it shall be carried out in five annual instalments, starting in 2016, unless Council decides otherwise.

RESOLUTION ON
THE UPDATE OF THE ANNUAL FEES APPLICABLE TO NMSs
OF NON-MEMBER STATES

adopted at the 76th Meeting of the EUMETSAT Council
on 5-6 July 2012

The EUMETSAT Member States,

RECALLING that the current EUMETSAT fees for Official Duty Use of Half-Hourly Data and Quarter-Hourly Meteosat Data by NMSs of Non-Member States were adopted in Resolution EUM/C/70/10/Res. VI at the 70th Meeting of the EUMETSAT Council on 21-22 June 2010,

RECALLING that the said Resolution also provides that the threshold is established at the “Upper Middle Income Mean Value” defined by the World Bank,

RECALLING that the threshold and the fee tables shall be revised by EUMETSAT Council every 2 years on the basis of the latest available World Bank statistics.

WISHING to update the threshold and the tables in accordance with the above-mentioned statistics,

AGREE to abolish Council Resolution EUM/C/70/10/Res. VI and to replace it as follows:

- I** EUMETSAT fees for Official Duty Use of Half-Hourly Data and Quarter-Hourly Meteosat Data by NMSs of Non-Member States – Period 2011/2012 – shall be replaced by the version attached to this Resolution which includes the updated threshold and the table of Fees Applicable to NMSs of non-Member States for Official Duty Use – Period 2013/2014.
- II** This Resolution shall take effect on 1 January 2013.

**EUMETSAT FEES FOR OFFICIAL DUTY USE OF HALF-HOURLY AND
QUARTER-HOURLY METEOSAT DATA BY NMSs OF NON-MEMBER STATES**

The attached Tables contain the annual fees applicable to NMSs of non-Member States for Half-hourly HRI Data and Half-hourly and Quarter-hourly High Rate SEVIRI Data for the period 2013-2014.

The fees for Official Duty use of Half-hourly Low Rate SEVIRI Data by NMSs of non-Member States shall be 75% of the corresponding fees for Official Duty use of High Rate SEVIRI Data.

The following applies:

- 1) Official Duty use by NMSs of countries with a GNI per capita below or equal to USD 5,886, derived from World Bank statistics: Without Charge.
- 2) Official Duty use by NMSs of countries with a GNI per capita above USD 5,886: the fees for Half-hourly and Quarter-hourly Meteosat Data are given in the tables attached.
- 3) Review Mechanisms:
 - The tables attached shall be reviewed by Council every 2 years on the basis of the latest available World Bank statistics.
 - Should the figures in the tables attached prove to be erroneous or incomplete, the Director-General shall make appropriate recommendations on a case by case basis.
 - The “Upper Middle Income” value as defined in the World Bank statistics shall establish the threshold for free access to Half-hourly and Quarter-hourly Meteosat Data. This threshold shall be revised by Council every 2 years on the basis of the World Bank statistics.

Fees Applicable to NMSs of non-Member States for Official Duty Use			
Country	GNI/C	½ Hourly Meteosat Data	¼ Hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Afghanistan	410	0	0
Albania	3,960	0	0
Algeria	4,450	0	0
Angola	3,940	0	0
Antigua and Barbuda	13,170	80	100
Argentina	8,620	80	100
Armenia	3,200	0	0
Australia	43,590 a	80	100
Azerbaijan	5,330	0	0
Bahamas, The	20,610 a	80	100
Bahrain	18,730 a	80	100
Bangladesh	700	0	0
Barbados	12,660 a	80	100
Belarus	5,950	80	100
Belize	3,810	0	0
Benin	780	0	0
Bhutan	1,870	0	0
Bolivia (Plurinational State of)	1,810	0	0
Bosnia and Herzegovina	4,770	0	0
Botswana	6,790	80	100
Brazil	9,390	80	100
Brunei Darussalam	31,800 a	80	100
Burkina Faso	550	0	0
Burundi	170	0	0
Cambodia	750	0	0
Cameroon	1,180	0	0
Canada	43,270	80	100
Cape Verde	3,270	0	0
Cayman Islands	... a	80	100
Central African Republic	470	0	0
Chad	620	0	0
Chile	10,120	80	100
China	4,270	0	0
Colombia	5,510	0	0
Comoros	750	0	0
Congo, Dem. Rep.	180	0	0
Congo, Rep.	2,150	0	0
Cook Islands	...	0	0
Costa Rica	6,810	80	100
Cuba	5,520 a	0	0
Cyprus	29,430 c	80	100

Fees Applicable to NMSs of non-Member States for Official Duty Use			
Country	GNI/C	½ Hourly Meteosat Data	¼ Hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Djibouti	1,270 a	0	0
Dominica	6,760	80	100
Dominican Republic	5,030	0	0
Ecuador	3,850	0	0
Egypt, Arab Rep.	2,420	0	0
El Salvador	3,380	0	0
Eritrea	340	0	0
Ethiopia	390	0	0
Fiji	3,630	0	0
Gabon	7,740	80	100
Gambia (the)	450	0	0
Georgia	2,690 d	0	0
Ghana	1,230	0	0
Guatemala	2,740	0	0
Guinea	400	0	0
Guinea-Bissau	590	0	0
Guyana	2,870	0	0
Haiti	670 a	0	0
Honduras	1,870	0	0
Hong Kong SAR, China	32,780	80	100
India	1,330	0	0
Indonesia	2,500	0	0
Iran, Islamic Rep.	4,520 a	0	0
Iraq	2,340	0	0
Israel	27,170	80	100
Ivory Coast	1,160	0	0
Jamaica	4,800	0	0
Japan	41,850	80	100
Jordan	4,340	0	0
Kazakhstan	7,590	80	100
Kenya	790	0	0
Kiribati	2,010	0	0
Korea, Dem. Rep.	k k	0	0
Korea, Rep.	19,890	80	100
Kuwait	... a	80	100
Kyrgyzstan	840	0	0
Lao PDR	1,050	0	0
Lebanon	8,880	80	100
Lesotho	1,040	0	0
Liberia	200	0	0
Libya	12,320 a	80	100

Fees Applicable to NMSs of non-Member States for Official Duty Use			
Country	GNI/C	½ Hourly Meteosat Data	¼ Hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Macao SAR, China	34,880 a	80	100
Madagascar	430	0	0
Malawi	330	0	0
Malaysia	7,760	80	100
Maldives	5,750	0	0
Mali	600	0	0
Malta	19,270	80	100
Mauritania	1,030	0	0
Mauritius	7,750	80	100
Mexico	8,890	80	100
Micronesia, Fed. Sts.	2,730	0	0
Moldova	1,810 f	0	0
Monaco	183,150 a	80	100
Mongolia	1,870	0	0
Montenegro	6,750	80	100
Morocco	2,850 e	0	0
Mozambique	440	0	0
Myanmar	... k	0	0
Namibia	4,500	0	0
Nepal	440	0	0
New Zealand	28,770 a	80	100
Nicaragua	1,110	0	0
Niger	370	0	0
Nigeria	1,180	0	0
Niue	...	0	0
Oman	18,260 a	80	100
Pakistan	1,050	0	0
Panama	6,970	80	100
Papua New Guinea	1,300	0	0
Paraguay	2,710	0	0
Peru	4,700	0	0
Philippines	2,060	0	0
Qatar	... a	80	100
Russian Federation	9,900	80	100
Rwanda	520	0	0
Saint Lucia	6,560	80	100
Samoa	3,000	0	0
São Tomé and Príncipe	1,200	0	0
Saudi Arabia	16,190 a	80	100

Fees Applicable to NMSs of non-Member States for Official Duty Use			
Country	GNI/C	½ Hourly Meteosat Data	¼ Hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Senegal	1,090	0	0
Seychelles	9,760	80	100
Sierra Leone	340	0	0
Singapore	40,070	80	100
Solomon Islands	1,030	0	0
Somalia	... k	0	0
South Africa	6,090	80	100
Sri Lanka	2,240	0	0
Sudan	1,270 g	0	0
Suriname	5,920 a	80	100
Swaziland	2,630	0	0
Syrian Arab Republic	2,750	0	0
Tajikistan	800	0	0
Tanzania, United Republic of	530 h	0	0
Thailand	4,150	0	0
Macedonia, FYR	4,570	0	0
Timor-Leste	2,220	0	0
Togo	490	0	0
Tonga	3,280	0	0
Trinidad and Tobago	15,380	80	100
Tunisia	4,160	0	0
Turkmenistan	3,790	0	0
Uganda	500	0	0
Ukraine	3,000	0	0
United Arab Emirates	41,930 a	80	100
United States of America	47,390	80	100
Uruguay	10,590	80	100
Uzbekistan	1,280	0	0
Vanuatu	2,640	0	0
Venezuela, Bolivarian Republic of	11,590	80	100
Viet Nam	1,160	0	0
Yemen, Rep.	1,070 a	0	0
Zambia	1,070	0	0
Zimbabwe	460	0	0

Footnotes:

... Not available.

a. 2010 data not available; ranking is approximate.

c. Data are for the area controlled by the government of the Republic of Cyprus.

d. Excludes Abkhazia and South Ossetia. e. Includes Former Spanish Sahara.

f. Excludes Transnistria.

g. Includes South Sudan.

h. Covers mainland Tanzania only.

i. Estimated to be upper middle income (\$3,976 to \$12,275).

j. Estimated to be high income (\$12,276 or more).

k. Estimated to be low income (\$1,005 or less).

l. Estimated to be lower middle income (\$1,006 to \$3,975).

RESOLUTION ON
AMENDMENTS TO THE METEOSAT IMPLEMENTING RULES
ON DATA POLICY –
ACCESS TO METEOSAT MDD MATERIAL AND DCP CHANNELS

adopted at the 76th Meeting of the EUMETSAT Council
on 5-6 July 2012

The EUMETSAT Member States,

RECALLING that the current consolidated Meteosat Implementing Rules to the EUMETSAT principles on Data Policy – Access to Meteosat MDD Material and DCP Channels adopted by Council at its 72nd meeting in June 2011 through Council Resolution EUM/C/72/11/Res. IX,

CONSIDERING the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECOGNISING that the Implementing Rules to the EUMETSAT Principles on Data Policy establish the conditions for access to EUMETSAT data and products,

CONSIDERING that the Meteorological Data Dissemination (MDD) is a service by which EUMETSAT disseminates products provided by WMO Member States with the intention of supporting other WMO Members,

WISHING to preserve the existing Data Policy on Access to Meteosat DCP Channels,

AGREE to amend Council Resolution EUM/C/70/10/Res. V as follows:

- I** the Implementing Rules on Access to Meteosat MDD Material and DCP Channels as defined in Resolution EUM/C/72/11/Res. IX shall be amended by the Implementing Rules on Access to Meteosat DCP Channels attached to this Resolution;
- II** This Resolution shall enter into force on the date of its adoption by the EUMETSAT Council.

**IMPLEMENTING RULES TO THE EUMETSAT PRINCIPLES
ON DATA POLICY –
ACCESS TO METEOSAT DCP CHANNELS**

1 DEFINITIONS

The following definitions apply in addition to the relevant definitions contained in Annex I of Resolution EUM/C/98/Res. IV:

“Meteosat DCP”: Data Collection Platform for the use of Meteosat DCP Channels.

“Meteosat DCP Channels”: Dedicated Meteosat Channels of communication operating at a radio frequency reserved for meteorological data collection.

2 OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

1. EUMETSAT holds the full ownership and utilisation rights to the Meteosat DCP Channels and has full control over access to these Channels.
2. Ownership and Intellectual Property Rights to the data transmitted by the Meteosat DCP Channels are deemed to remain with the originator of the data.

3 ACCESS TO METEOSAT DCP CHANNELS

1. Meteosat DCP Channels are available at no cost to NMSs of Member States for their Official Duty use, provided their messages are also made available through the Global Telecommunication System and discoverable in the WMO Information System (WIS).
2. Meteosat DCP Channels are also available at no cost for meteorological, geophysical and hydrological messages by NMSs of non-Member States, WMO and ECMWF provided they are also made available through the Global Telecommunications System (GTS) and discoverable in the WMO Information System (WIS).

4 FINANCIAL MATTERS

EUMETSAT shall not be liable for the cost of the technical equipment of any user necessary to have access to the Meteosat DCP Channels.

RESOLUTION ON
SPECIAL PAYMENT ARRANGEMENTS FOR GREECE

**adopted at the 77th Meeting of the EUMETSAT Council
on 15-16 November 2012**

The EUMETSAT Member States,

HAVING REGARD to the objectives of EUMETSAT, which are to establish, maintain and exploit European systems of operational meteorological satellites, and to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the funding principles of EUMETSAT, in accordance to which each Member State shall pay to EUMETSAT an annual contribution to the General Budget and to the mandatory programmes on the basis of a GNI-based scale,

RECOGNIZING that in accordance with the Convention, EUMETSAT mandatory programmes include the basic programmes required to continue the provision of observations from geostationary and polar orbits, and that this addresses in particular the Meteosat Third Generation (MTG) and the EUMETSAT Polar System Second Generation (EPS-SG) programmes expected to deliver such observations in the 2020-2040 timeframe,

CONSIDERING that the EUMETSAT Council, at its 73rd meeting on 5 October 2011, agreed on the contents of the programme proposal for the EPS Second Generation Preparatory Programme and to open the voting of Resolution EUM/C/73/11/Res.I on the EPS-SG PP,

TAKING INTO ACCOUNT that the EUMETSAT Member States agreed, at the 76th Council meeting on 5-6 July 2012, to Resolution EUM/C/76/12/Res.I on the Authorisation to Proceed with the EPS-SG PP, which authorised a start of activities under the Programme as soon as 95% of the programme funding (including *ad referendum* votes) had been reached,

NOTING that, in application of Resolution EUM/C/76/12/Res.I, the EPS-SG PP activities started on 1 August 2012,

NOTING that all Member States except Greece have already voted in favour of the EPS-SG PP Resolution,

RECOGNIZING the exceptionally critical economic situation that Greece is facing in the current unprecedented crisis,

AWARE of the request made by the Greek authorities to find a mechanism that would allow Greece to continue fulfilling its financial obligations, approve the EPS-SG Preparatory Programme, and in perspective facilitate its participation in the EPS-SG Programme, notwithstanding the present exceptionally difficult circumstances,

AGREE to the special payment arrangements for Greece as described in document EUM/C/77/12/DOC/63 REV1.

RESOLUTION ON
A SIXTH EXTENSION OF THE
METEOSAT TRANSITION PROGRAMME (MTP)

adopted at the 77th Meeting of the EUMETSAT Council
on 15-16 November 2012

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

CONSIDERING that the MTP Programme was set up to ensure a continuous operational service to provide data from geostationary satellites, and to fill the gap between the Meteosat Operational Programme (MOP) and the Meteosat Second Generation Programme (MSG),

NOTING that the MTP Programme, established through Resolution EUM/C/Res.XXVII in November 1990 and extended through Resolutions EUM/C/97/Res. VII, EUM/C/02/Res.I, EUM/C/04/Res. II, EUM/C/62/07/Res.II, and EUM/C/67/09/Res.V will end on 31 December 2014,

TAKING INTO ACCOUNT that nominal operations of the second MSG satellite started in April 2007, and that the full MSG system with its hot backup is providing the full primary EUMETSAT geostationary service from zero degrees longitude,

HAVING REGARD to the very positive impact that the Meteosat Indian Ocean Data Coverage (IODC) Services have had on operational meteorology and on climate monitoring since 1998 and to the significant contribution of the IODC satellites to the initial Indian Ocean Tsunami Warning Service, established following the Sumatra-Andaman Tsunami in December 2004,

BEING AWARE that no IODC-equivalent service, providing a level of quality and availability similar to Meteosat, will exist in the near future,

WISHING to ensure a continuation of the IODC Services until a viable alternative for providing adequate operational data to Member States is established,

BEARING IN MIND that existing space assets from the MTP Programme, and related ground segment infrastructure, allow for extended IODC operations at reduced cost,

BEARING IN MIND that the Special IODC Fee Structure agreed at the 62nd Council meeting in June 2007 has resulted in a revenue to EUMETSAT of 300 KEUR per year from the user community in the IODC coverage region,

WISHING therefore to further extend the MTP Operations,

AGREE:

- I** To extend the MTP Programme until 31 December 2017, in order to cover the extension of the MTP operational service until 31 December 2016, and subsequent close-out activities.
- II** That the extension of the MTP operations shall cover at least the following services:
 - Half-hourly imaging from 57.5°E using Meteosat-7;
 - Half-hourly IODC image data dissemination using EUMETCast & CMACast;
 - Data Collection Platform acquisition support for selected projects;
 - Meteorological products from 57.5°E generated by the MPEF;
 - Archiving and retrieval using the Data Centre.
- III** To increase the MTP Programme Envelope to 301 MEUR at 1989 economic conditions.
- IV** To task the Director-General to propose a strategy for the future of the IODC mission and to continue pursuing all possible avenues to identify a long-term alternative for providing and funding the IODC Services.
- V** To task the Director-General to seek additional contributions from the wealthy non-Member States benefiting from the IODC Services.

RESOLUTION ON
THE EXTENSION OF
THE OPTIONAL JASON-2 ALTIMETRY PROGRAMME

**adopted at the 77th Meeting of the EUMETSAT Council
on 15-16 November 2012**

The Participating States in the Jason-2 Programme,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy foresees continuity of the optional Jason altimetry satellite series,

TAKING INTO ACCOUNT the Declaration EUM/C/01/Decl.I on the Optional EUMETSAT Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT the Declaration EUM/C/67/09/Decl.I on the Optional EUMETSAT Jason-3 Altimetry Programme,

BEARING IN MIND that the Jason-2 satellite is in good health, that the related ground segment infrastructure allow for extended Jason-2 operations and that this is possible without increasing the agreed programme envelope,

AWARE that the planned launch of the Jason-3 satellite has been delayed and is now planned end 2014,

CONSISTENT with the Jason-2 Declaration, in which Participating States agreed to consider a possible extension of EUMETSAT Jason-2 Altimetry Programme operations beyond the 5-year period covered by the Jason-2 Programme Proposal, it being understood that this extension shall require unanimous approval by Participating States,

WISHING to exploit the full operational value of the Jason-2 system to the benefit of Participating States and the international user community,

AGREE:

- I** To extend the Optional Jason-2 Altimetry Programme until 30 June 2015, including EUMETSAT's involvement in the SARAL mission, in order to cover the extension of the Jason-2 operational services.
- II** To limit the funding of the extension of the Optional Jason-2 Altimetry Programme to stay within the overall programme envelope of MEUR 30 at 2001 economic conditions.

RESOLUTION

FOR THE THIRD PARTY PROGRAMME ON EUMETSAT ACTIVITIES IN SUPPORT OF COPERNICUS IN THE PERIOD 2014-2020

**adopted at the 78th Meeting of the EUMETSAT Council
on 25-26 June 2013**

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the strategy “EUMETSAT: A Global Satellite Operational Agency at the Heart of Europe” approved at the 72nd Council meeting in June 2011 foresees a proportionate use of EUMETSAT’s skills and capabilities in support of the definition of some GMES user requirements, the translation of these agreed user requirements into end-to-end system specifications for operational space missions and ground infrastructures needed by GMES and/or, as the operational agency of those GMES satellite missions that are compatible with the EUMETSAT Convention and are of interest to its Member States, and that within GMES the objective of EUMETSAT shall be to develop direct relationships with the European Commission (EC) that result in agreements covering the role that EUMETSAT will play within GMES,

TAKING INTO ACCOUNT that the EUMETSAT Council approved in June 2004 Resolution EUM/C/04/Res. III, in which the EUMETSAT Member States defined the main aims of EUMETSAT’s involvement in GMES, the EUMETSAT contributions to the GMES objectives and to seek specifically for EUMETSAT the role of GMES operational agency,

TAKING INTO ACCOUNT Resolution EUM/C/57/05/Res. II adopted in July 2005, in which the EUMETSAT Member States tasked the Director-General to negotiate a framework agreement with the EC, in line with objectives and fields of cooperation defined by the EUMETSAT Council,

TAKING INTO ACCOUNT the decisions taken at the 64th and 67th EUMETSAT Council meetings in July 2008 and July 2009 to provide free access to all data, products and services from EUMETSAT satellites to the GMES Core Services, in the expectation that access to GMES data will be free of charge, on the understanding that each user within these services will sign a licence with EUMETSAT and subject to commitment from the European Union and national authorities to fund these Core Services on a sustainable basis,

TAKING INTO ACCOUNT that EUMETSAT Member States agreed, at the 64th Council meeting in July 2008, on the approach for implementation of GMES Sentinels 4 and 5 on EUMETSAT satellites, including a contribution by EUMETSAT to accommodate these instruments on EUMETSAT satellites, and also to the EUMETSAT involvement in GMES Sentinel 3 activities,

TAKING INTO ACCOUNT Resolution EUM/C/70/10/Res. VIII, adopted in June 2010, in which the EUMETSAT Member States emphasized the potential benefits from establishing synergies with EUMETSAT in the operational phase of GMES and recalled the detailed list of activities that EUMETSAT could support,

RECALLING the establishment of the GMES Sentinel 3 Third Party Programme with ESA through Council Resolution EUM/C/67/09/Res. II, adopted by the EUMETSAT Council in July 2009,

RECALLING the approval by the 76th Council meeting in July 2012 of the PURE activity, in which EUMETSAT supports the EC in the consolidation of user requirements for the future GMES marine and atmosphere services, and the corresponding conclusion of a dedicated arrangement with the EC,

BEARING IN MIND that Article 2 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties,

AWARE that the EC-proposed EU Regulation (Com(2013) 312 final) establishing the Copernicus Programme as the operational continuation of GMES, foresees that:

- The objectives of the Copernicus Programme are to provide accurate and reliable information in the field of environment and security tailored to the needs of users and to support other EU policies, including cooperation with third parties;
- The Copernicus Programme has a service component, which includes an atmosphere monitoring service, a climate change monitoring service, a marine monitoring service and a land monitoring service, and a space component providing observations to these services, which are fully consistent with EUMETSAT's objectives and activities;
- The data and information produced in the framework of the Copernicus Programme should be made available to the users on a full, open and free-of-charge basis;
- The EU budgetary framework for Copernicus activities in the period 2014-2020 is established;
- The EC should have the overall responsibility for the Copernicus Programme;
- The EC may entrust operational tasks of the Copernicus space component to ESA and to EUMETSAT;
- The operators of the Copernicus Programme should be subject to supervision by the EC, whilst enjoying the necessary autonomy to implement the tasks they are entrusted with,

HAVING REGARD to the Preliminary Programme Proposal for a Third Party Programme on EUMETSAT Activities in Support of Copernicus in the period 2014-2020, contained in document EUM/C/78/13/DOC/73,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

IN CONFORMITY with the Policy Principles for the Involvement of EUMETSAT in GMES Activities as endorsed by the EUMETSAT Council in June 2011,

AGREES:

- I** That the proposed EUMETSAT activities in support of Copernicus in the 2014-2020 period are consistent with EUMETSAT's objectives and should be established and implemented as a Third Party Programme within the framework of the EUMETSAT Convention.
- II** To task the Director-General to negotiate the necessary Delegation Agreement with the EC.
- III** To task the Director-General to draw up a full Programme Proposal, to be submitted for Council approval in due course, together with the concomitant Delegation Agreement negotiated with the EC.

RESOLUTION

THE ACCESSION OF ICELAND TO THE EUMETSAT CONVENTION

adopted at the 78th Meeting of the EUMETSAT Council
on 25-26 June 2013

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that Iceland and EUMETSAT signed a Cooperating State Agreement on 12 December 2005, and that this Agreement entered into force on 12 April 2006,

BEARING IN MIND that Article 7 of this Agreement was formally amended on 30 November 2012 to extend the duration until 31 December 2013,

WELCOMING the formal request by Iceland to become a full member of EUMETSAT, expressed through letter from the Minister for the Environment and Natural Resources of Iceland dated 30 November 2012,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of Iceland to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Iceland with regard to the investments already made for the approved EUMETSAT programmes at EUR 23,000.
- IV** To amend the scale of Member State contributions for mandatory programmes in accordance with Article 10.2 and 16.6 of the EUMETSAT Convention.
- V** That all legal and financial implications of the accession of Iceland will formally enter into force at the date of deposit of the instrument of accession, with effect from 1 January 2014.

DRAFT

AGREEMENT

BETWEEN

THE GOVERNMENT OF

ICELAND

AND

THE EUROPEAN ORGANISATION

FOR THE EXPLOITATION OF METEOROLOGICAL

SATELLITES (EUMETSAT)

CONCERNING

THE ACCESSION OF

ICELAND

TO THE CONVENTION FOR THE ESTABLISHMENT

OF A EUROPEAN ORGANISATION

FOR THE EXPLOITATION OF METEOROLOGICAL

SATELLITES (EUMETSAT)

AND RELATED TERMS AND CONDITIONS

26 March 2013 – Version 2.1

Preamble

The **Government of Iceland**, (hereinafter referred to as "Iceland"),

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a) of the Convention,

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that Iceland and EUMETSAT signed a Cooperating State Agreement on 12 December 2005 and that Article 7 of this Agreement was formally amended on 29 June 2010 to extend the duration until 31 December 2012;

CONSIDERING further that a second Amendment to Article 7 of the Cooperating State Agreement was signed on 30 November 2012 and that this Amendment entered into force on 31 January 2013, extending the duration of the Cooperating State Agreement until 31 December 2013,

FOLLOWING the wish expressed by Iceland to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed through a letter from its Minister for the Environment and Natural Resources dated 30 November 2012,

RECALLING that the EUMETSAT Council at its 78th meeting on 25-26 June 2013 agreed to welcome Iceland as a Member State through adoption of Council Resolution EUM/C/78/12/Res.....,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention, and that it will give Iceland a unique opportunity to fully participate in the Metop Second Generation Programme from the outset,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

Iceland accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

- 1 As from the date of accession, the provisions of the Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all approved EUMETSAT mandatory and optional programmes shall be binding for Iceland.
- 2 As from the date of accession, Iceland shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, Iceland shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
- 3 Iceland shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
- 4 Iceland shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
- 5 Iceland shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

- 1 In accordance with Article 16.5 of the EUMETSAT Convention, Iceland shall make a special payment to EUMETSAT of 23,000 EUR towards the investments already made for the EUMETSAT programmes. This payment shall be made no later than 30 days after the date of deposit of the instrument of accession, but not earlier than 31 January 2014.

Article 4

- 1 Iceland shall with regard to the provision of Article 3 above start to contribute to the EUMETSAT annual budgets as full Member State from 1 January 2014. The rate of contribution by Iceland to the mandatory programme budgets shall be calculated in accordance with Articles 10.2 and 16.5 of the EUMETSAT Convention. The rate of contribution to the approved Optional EUMETSAT Programmes Budgets shall be 0.0738%.
- 2 Iceland shall acquire full voting rights at the EUMETSAT Council from the date of deposit of its instrument of accession.

Article 5

- 1 The present Agreement shall enter into force on the date of deposit of Iceland's instrument of accession with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.
- 2 In accordance with its Article 17.4, the EUMETSAT Convention shall become effective for Iceland on the date referred to in Article 5.1 above.
- 3 In accordance with its Article 24.4, the EUMETSAT Protocol on Privileges and Immunities shall become effective for Iceland thirty days after the date of deposit of Iceland's instrument of acceptance of the Protocol with the Depositary of the EUMETSAT Convention, the Government of the Swiss Confederation.

IN WITNESS WHEREOF, the undersigned being duly authorised, have signed this Agreement.

Done and signed in two originals in English, one for each Party to this Agreement.

For the Government
of Iceland

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Mr. Alain Ratier
Director-General

RESOLUTION ON
THE PARTICIPATION OF ICELAND TO THE OPTIONAL EUMETSAT JASON-2
ALTIMETRY PROGRAMME

adopted by the Participating States at the 78th Meeting of the EUMETSAT Council
on 25-26 June 2013

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/78/13/Res II on the Accession of Iceland to the EUMETSAT Convention, unanimously adopted at the 78th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Iceland will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2014,

WELCOMING the wish expressed by Iceland to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.0738%.

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. IV adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the participation of Iceland to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Iceland for the Optional EUMETSAT Jason-2 Altimetry Programme at EUR 1,000.00.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Iceland shall contribute with a rate of 0.0738% to the annual Jason-2 budgets with effect from 1 January 2014, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.

- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Iceland will participate in the Programme with effect 1 January 2014.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II.

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-2
BELGIUM (BE)	3.0501%
SWITZERLAND (CH)	3.4449%
GERMANY (DE)	26.4735%
DENMARK (DK)	1.9545%
ESTONIA (EE)	0.0861%
SPAIN (ES)	6.6628%
FINLAND (FI)	1.4510%
FRANCE (FR)	17.2446%
UNITED KINGDOM (GB)	10.5125%
GREECE (GR)	0.7207%
CROATIA (HR)	0.2209%
IRELAND (IE)	0.9477%
ICELAND (IS)	0.0738%
ITALY (IT)	13.3751%
LUXEMBOURG (LU)	0.2171%
LATVIA (LV)	0.0958%
NETHERLANDS (NL)	4.5309%
NORWAY (NO)	1.7868%
PORTUGAL (PT)	1.2734%
ROMANIA (RO)	0.5818%
SWEDEN (SE)	2.7441%
SLOVENIA (SI)	0.2323%
TURKEY (TR)	2.3197%
TOTAL	100.0000%

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	3.0501%
SWITZERLAND (CH)	3.4449%
GERMANY (DE)	26.4735%
DENMARK (DK)	1.9545%
ESTONIA (EE)	0.0861%
SPAIN (ES)	6.6628%
FINLAND (FI)	1.4510%
FRANCE (FR)	17.2446%
UNITED KINGDOM (GB)	10.5125%
GREECE (GR)	0.7207%
CROATIA (HR)	0.2209%
IRELAND (IE)	0.9477%
ICELAND (IS)	0.0738%
ITALY (IT)	13.3751%
LUXEMBOURG (LU)	0.2171%
LATVIA (LV)	0.0958%
NETHERLANDS (NL)	4.5309%
NORWAY (NO)	1.7868%
PORTUGAL (PT)	1.2734%
ROMANIA (RO)	0.5818%
SWEDEN (SE)	2.7441%
SLOVENIA (SI)	0.2323%
TURKEY (TR)	2.3197%
TOTAL	100.0000%

RESOLUTION ON
THE PARTICIPATION OF ICELAND TO
THE OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME

**adopted by the Participating States at the 78th Meeting of the EUMETSAT Council
on 25-26 June 2013**

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/78/13/Res. II on the Accession of Iceland to the EUMETSAT Convention, unanimously adopted at the 78th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Iceland will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2014,

WELCOMING the wish expressed by Iceland to become a Participating State to the Optional EUMETSAT Jason-3 Altimetry Programme at the rate of 0.0738%.

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-3 Altimetry Programme,

HAVING REGARD to the Council Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme adopted by Potential Participating States on 1 July 2009 which entered into force on 1 February 2010 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the participation of Iceland to the Optional EUMETSAT Jason-3 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Iceland for the Optional EUMETSAT Jason-3 Altimetry Programme at EUR 22,000.00.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Iceland shall contribute with a rate of 0.0738% to the annual Jason-3 budgets with effect from 1 January 2014, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.

- IV** To amend the Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme to reflect that Iceland will participate in the Programme with effect 1 January 2014.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme as attached to this Resolution in Annexes I and II.

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for the Optional EUMETSAT Jason-3 Altimetry Programme shall be limited to a maximum of M€63.6 at 2009 economic conditions (M€60 at 2007 economic conditions).

The indicative EUMETSAT payment profile, based upon a mid 2013 launch and five years of operations, is:

Year	2010	2011	2012	2013	2014	2015	2016	2017	2018
M€	20.9	26.2	13	3.5	0	0	0	0	0

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-3 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-3
BELGIUM (BE)	2.8770%
SWITZERLAND (CH)	3.0714%
GERMANY (DE)	13.2241%
DENMARK (DK)	1.9861%
ESTONIA (EE)	0.0861%
SPAIN (ES)	8.4453%
FINLAND (FI)	1.5081%
FRANCE (FR)	22.0405%
UNITED KINGDOM (GB)	15.7036%
GREECE (GR)	0.9228%
CROATIA (HR)	0.2763%
IRELAND (IE)	1.3023%
ICELAND (IS)	0.0738%
ITALY (IT)	13.4520%
LUXEMBOURG (LU)	0.0000%
NETHERLANDS (NL)	0.2403%
NORWAY (NO)	0.0000%
PORTUGAL (PT)	1.3737%
ROMANIA (RO)	0.6421%
SWEDEN (SE)	2.8243%
SLOVENIA (SI)	0.2566%
TURKEY (TR)	2.5326%
TOTAL	100.0000%

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	2.8770%
SWITZERLAND (CH)	3.0714%
GERMANY (DE)	13.2241%
DENMARK (DK)	1.9861%
ESTONIA (EE)	0.0861%
SPAIN (ES)	8.4453%
FINLAND (FI)	1.5081%
FRANCE (FR)	22.0405%
UNITED KINGDOM (GB)	15.7036%
GREECE (GR)	0.9228%
CROATIA (HR)	0.2763%
IRELAND (IE)	1.3023%
ICELAND (IS)	0.0738%
ITALY (IT)	13.4520%
LUXEMBOURG (LU)	0.0000%
NETHERLANDS (NL)	0.2403%
NORWAY (NO)	0.0000%
PORTUGAL (PT)	1.3737%
ROMANIA (RO)	0.6421%
SWEDEN (SE)	2.8243%
SLOVENIA (SI)	0.2566%
TURKEY (TR)	2.5326%
TOTAL	100.0000%

**RESOLUTION ON
AMENDMENTS TO THE METEOSAT IMPLEMENTING RULES**

**adopted at the 78th Meeting of the EUMETSAT Council
on 25-26 June 2013**

The EUMETSAT Member States,

RECALLING that the current Meteosat Implementing Rules were adopted by Council at its 70th meeting in June 2010 through Resolution EUM/C/70/10/Res. III,

RECALLING that Annex III of the Meteosat Implementing Rules was most recently amended by Council at its 72nd meeting in June 2011 through Resolution EUM/C/72/11/Res. VII,

TAKING INTO ACCOUNT that one of the objectives of the EUMETSAT Data Policy is to extend the use of Meteosat Data and Products,

CONSIDERING the evolution of the commercial markets and the requests to use Meteosat data via the new technologies available,

AGREE

- I** To abolish Resolution EUM/C/72/11/Res. VII.
- II** That users who wish to disseminate an item from the Meteosat Catalogue or images based on Meteosat Data via “Applications” for fixed or mobile devices shall be considered “Broadcasters” within the meaning of the Meteosat Implementing Rules.
- III** To adopt the definition of “Application” as described in Annex I to this Resolution.
- IV** That the basis for the calculation of the fees for the use of Meteosat data via “Applications” shall be the number of Application downloads as provided by the broadcaster.
- V** That the level of the fees applicable for such use shall be based on the amounts already established in the Meteosat Implementing Rules for other broadcasting activities (TV and Internet) as shown in Annex I to this Resolution.
- VI** To replace Annex III of the Implementing Rules for access to non-essential Meteosat data by commercial and other users with the version attached to this Resolution in Annex I.
- VII** That this Resolution shall take effect on 1 July 2013.
- VIII** That, subject to the above, Resolution EUM/C/70/10/Res. III remains unchanged.

EUMETSAT FEES FOR ACCESS TO NON-ESSENTIAL METEOSAT DATA BY COMMERCIAL AND OTHER USERS

The attached table contains the annual EUMETSAT fees applicable to commercial and other users for non-Essential HRI Data and High Rate SEVIRI Data. These fees will be reviewed by the EUMETSAT Council at regular intervals in light of experience.

The fees for the use of non-Essential Low Rate SEVIRI Data by commercial and other users shall be 75% of the corresponding fees for corresponding use of High Rate SEVIRI Data.

The fees are based on the following considerations:

- All Service Providers shall be charged a basic fee, in accordance with the attached Table.
- In cases where a Service Provider wishes to retransmit Meteosat Data without transformation to End Users, an additional fee shall be charged per end user equivalent to 75% of the End User fee for direct reception in accordance with the attached Table.
- In cases where a Service Provider wishes to broadcast or to supply for broadcasting Meteosat Data or images based on Meteosat Data, an additional fee shall be charged per TV channel or Service Provider or Broadcaster running web site(s) or applications in accordance with the attached Table.
- For Broadcasters procuring Meteosat Data or images based on Meteosat Data from a Service Provider, no fee will be charged to the Broadcaster, as such fee is already included in the fee charged to the Service Provider.
- All Broadcasters receiving Meteosat Data directly shall be charged a basic fee in accordance with the attached Table.
- An additional fee will be charged per medium chosen for broadcasting (TV, Internet, Applications) in accordance with the definitions below and the attached table. Should a Broadcaster be paying the maximum additional fee related to Internet broadcasting, no further fee for the use of Meteosat data via Applications shall be charged.
- Licences to Service Providers will allow redistribution of Meteosat Data to another Service Provider only if this other Service Provider has the appropriate licence with EUMETSAT or one of its Exclusive Licensing Agents.

The following set of definitions shall apply for the implementation of the attached Table:

- Actual audience: the arithmetic average of the total actual audience (total audience except children under 3 years old), based on the full 24-hour period and over a period of approximately 1 year, expressed as average audience per day. The result of this calculation will be rounded up to the next 10,000. Should the audience figures not be available, the maximum fee will apply.

- Application: a software programme that runs on a computer, mobile device or other electronic devices and which displays images based on Meteosat data.
- Application download: transfer of an Application onto a computer, mobile device or other electronic devices from another computer or the Internet. Should the number of downloads not be available, the maximum fee will apply.
- n: the number of end users.
- Page consultation: any single “click” originated from one IP address on a web page containing images based on Meteosat Data. Should the number of page consultations not be available, the maximum fee will apply.
- Turnover (meteorological turnover): the total annual revenue derived from the commercial activity in any way based on meteorological data and products acquired by the Service Provider (excluding revenue derived from services to civil aviation in accordance with the ICAO Convention, Annex III). Should the turnover figures not be available, the maximum fee will apply.

FEES FOR ACCESS TO METEOSAT DATA

Data Frequency	User Categories					
	End User	Broadcaster		Service Provider		
		Basic fee	Additional fee for broadcasting images based on Meteosat Data	Basic fee	Additional fee for the right to re-transmit Meteosat Data without transformation to End Users	Additional fee for broadcasting images based on Meteosat Data or supplying to broadcasters Meteosat Data or images based on Meteosat Data
Full set (1/4 hourly)	6 KEUR	End User fee according to data frequency requested	a) Fee per TV channel: EUR 75 per 10,000 actual audience with a minimum of EUR 250 and a maximum of KEUR 15.	0.5% of Service Provider turnover max. KEUR 18, min. KEUR 6	n x 75% of the relevant end user fee	a) Fee per TV channel: EUR 75 per 10,000 actual audience with a minimum of EUR 250 and a maximum of KEUR 15.
1/2 hourly data	4 KEUR		b) Fee per Broadcaster running web site(s): EUR 75 per 10,000 page consultations accumulated over one year with a minimum of EUR 250 and a maximum of KEUR 30.	0.5% of Service Provider turnover max. KEUR 12, min. KEUR 4		b) Fee per Service Provider or Broadcaster running web site(s): EUR 75 per 10,000 page consultations accumulated over one year with a minimum of EUR 250 and a maximum of KEUR 30.
1 hourly data	2 KEUR		c) Fee per Application: EUR 75 per 10,000 downloads with a minimum of EUR 250 and a maximum of KEUR 30.	0.5% of Service Provider turnover max. KEUR 6, min. KEUR 2		c) Fee per Application: EUR 75 per 10,000 downloads with a minimum of EUR 250 and a maximum of KEUR 30.

NOTE: The fees for access to Low Rate SEVIRI Data shall be 75% of the corresponding fees for High Rate SEVIRI Data according to this table.

RESOLUTION ON
THE ACCESSION OF BULGARIA TO THE EUMETSAT CONVENTION

**adopted at the of the 79th Meeting of the EUMETSAT Council
on 26-27 November 2013, entered into force on ...**

The EUMETSAT Council,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a),

CONSIDERING that Bulgaria and EUMETSAT signed a Cooperating State Agreement on 20 December 2004, and that this Agreement entered into force on 25 May 2005,

BEARING IN MIND that Article 7 of this Agreement was formally amended on 26 July 2012 to extend the duration until 31 December 2013,

WELCOMING the formal request by Bulgaria to become a full member of EUMETSAT, expressed through letter from the Minister of Education and Sciences of Bulgaria dated 19 August 2013,

CONVINCED that this accession will contribute to the achievement of the objectives set out in the EUMETSAT Convention,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

AGREES:

- I** To the accession of Bulgaria to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.
- II** To approve the accession agreement attached to this Resolution as Annex I and to authorise the Director-General to sign it.
- III** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the payment to be made by Bulgaria with regard to the investments already made for the approved EUMETSAT programmes at EUR 1,664,000.
- IV** To amend the scale of Member State contributions for mandatory programmes in accordance with Article 10.2 and 16.6 of the EUMETSAT Convention.
- V** That all legal and financial implications of the accession of Bulgaria will formally enter into force at the date of deposit of the instrument of accession, with effect from 1 January 2014.

DRAFT AGREEMENT
BETWEEN
THE GOVERNMENT OF THE
REPUBLIC OF BULGARIA
AND
THE EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF METEOROLOGICAL
SATELLITES (EUMETSAT)
CONCERNING
THE ACCESSION OF THE
REPUBLIC OF BULGARIA
TO THE CONVENTION FOR THE ESTABLISHMENT
OF A EUROPEAN ORGANISATION
FOR THE EXPLOITATION OF METEOROLOGICAL
SATELLITES (EUMETSAT)
AND RELATED TERMS AND CONDITIONS

Preamble

The **Government of the Republic of Bulgaria**, (hereinafter referred to as "Republic of Bulgaria"),

and

the **European Organisation for the Exploitation of Meteorological Satellites**, established by the Convention opened for signature in Geneva on 24 May 1983 and entered into force on 19 June 1986 (hereinafter referred to as "EUMETSAT"),

TAKING INTO ACCOUNT that the EUMETSAT Council at its 15th meeting on 4 and 5 June 1991 recommended the Members States to accept Amendments to the Convention as proposed in the "Amending Protocol", attached to Resolution EUM/C/Res. XXXVI, and that these Amendments entered into force on 19 November 2000,

CONSIDERING that, according to Article 16 of the EUMETSAT Convention, any State may accede to the said Convention following a decision of the Council taken in conformity with the provisions of Article 5.2(a) of the Convention,

CONSIDERING further that the EUMETSAT Council, at its 34th meeting on 24-26 June 1997, has defined the "Cooperating State" status as an intermediate step for European countries wishing to become full EUMETSAT Member States,

CONSIDERING that the Republic of Bulgaria and EUMETSAT signed a Cooperating State Agreement on 20 December 2004, which entered into force on 25 May 2005 following completion of its national ratification process,

BEARING IN MIND that the above mentioned Agreement was amended in two occasions through Agreements on the Amendments of the Agreement to extend its duration until 31 December 2013,

FOLLOWING the wish expressed by the Republic of Bulgaria to become a EUMETSAT Member State on 1 January 2014, within the framework conditions established by the EUMETSAT Convention, expressed through a letter from its Minister of Education and Science dated 19 August 2013,

RECALLING that the EUMETSAT Council at its meeting on agreed to welcome the Republic of Bulgaria as a full EUMETSAT Member State through adoption of Council Resolution EUM/C/...../Res.....,

HAVING REGARD to Articles 16 and 17 of the EUMETSAT Convention,

HAVE AGREED AS FOLLOWS:

Article 1

The Republic of Bulgaria accedes to the EUMETSAT Convention in accordance with Article 16.3 of the EUMETSAT Convention.

Article 2

1. As from the date of accession, the provisions of the EUMETSAT Convention and all EUMETSAT rules, together with all decisions taken by the Council, including all approved EUMETSAT mandatory and optional programmes shall be binding for the Republic of Bulgaria.
2. As from the date of accession, the Republic of Bulgaria shall be placed in the same situation as the other Member States with regard to decisions, rulings, resolutions or any other acts made by the Council or by any subordinate body and with regard to any Agreement concluded by EUMETSAT. Therefore, the Republic of Bulgaria shall abide by the principles and policies stemming therefrom, and shall whenever necessary take appropriate measures to ensure their full implementation.
3. The Republic of Bulgaria shall at the same time as the accession to the EUMETSAT Convention also accede to the Amending Protocol to the EUMETSAT Convention attached to Resolution EUM/C/Res. XXXVI.
4. The Republic of Bulgaria shall accede to the EUMETSAT Protocol on Privileges and Immunities, which was opened for signature on 1 December 1986 and entered into force on 5 January 1989, at the same time as the accession to the EUMETSAT Convention. This accession to the EUMETSAT Protocol on Privileges and Immunities shall include the editorial amendments as notified to all Member States on 3 December 2002, and which entered into force on 1 January 2004.
5. The Republic of Bulgaria shall take all the appropriate measures to adapt its internal legislation and rules to the rights and obligations resulting from its accession to EUMETSAT.

Article 3

1. In accordance with Article 16.5 of the EUMETSAT Convention, the Republic of Bulgaria shall make a special payment to EUMETSAT of 1,664,000 EUR towards investments already made.
2. The special payment referred to in paragraph 1 above shall be made in four instalments:
416,000 EUR no later than 30 days after the date of deposit of the instrument of accession, but not earlier than 31 January 2014;
416,000 EUR no later than 31 January 2015;
416,000 EUR no later than 31 January 2016;
416,000 EUR no later than 31 January 2017.
3. The payment pattern referred to in paragraph 2 above shall not attract interest for EUMETSAT.

Article 4

1. The Republic of Bulgaria shall with regard to the provision of Article 3 above start to contribute to the EUMETSAT annual budgets as from 1 January 2014. The rate of contribution by the Republic of Bulgaria to the mandatory programme budgets shall be calculated in accordance with Articles 10.2 and 16.6 of the EUMETSAT Convention. The rate of contribution to optional EUMETSAT programme budgets shall be 0.2446%.
2. The Republic of Bulgaria shall acquire full voting rights at the Council from the date of effectiveness of the Convention as foreseen in Article 5.2 below.

Article 5

1. The present Agreement is subject to ratification by the Republic of Bulgaria according to its national legislation and shall enter into force on the day of receipt by EUMETSAT of the formal notification of ratification.
2. The Convention shall become effective for the Republic of Bulgaria in accordance with its Article 17.4, however, not earlier than on 1 January 2014.
3. The EUMETSAT Protocol on Privileges and Immunities shall become effective for the Republic of Bulgaria in accordance with its Article 24.4, however, not earlier than on 1 January 2014.

IN FAITH THEREOF, the undersigned being duly authorised, have signed this Agreement.

Done in, on.....in two originals, in the English and Bulgarian languages, both texts being equally authentic. In case of divergence in interpretation the English shall prevail.

For the Government
of the Republic of Bulgaria

For the European Organisation for the
Exploitation of Meteorological Satellites
(EUMETSAT)

Minister of Education and Science

Mr. Alain Ratier
Director-General

RESOLUTION ON
THE PARTICIPATION OF BULGARIA TO THE OPTIONAL EUMETSAT JASON-2 ALTIMETRY PROGRAMME

adopted by the Participating States at the 79th Meeting of the EUMETSAT Council on 26-27 November 2013

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/79/13/Res I on the Accession of Bulgaria to the EUMETSAT Convention, unanimously adopted at the 79th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Bulgaria will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2014,

WELCOMING the wish expressed by Bulgaria to become a Participating State to the Optional EUMETSAT Jason-2 Altimetry Programme at the rate of 0.2446%.

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-2 Altimetry Programme,

HAVING REGARD to the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme adopted by Potential Participating States on 4-5 December 2001, amended by Resolution EUM/C/02/Res. III adopted on 26-27 November 2002, entered into force on 27 June 2003 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the participation of Bulgaria to the Optional EUMETSAT Jason-2 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Bulgaria for the Optional EUMETSAT Jason-2 Altimetry Programme at EUR 5,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Bulgaria shall contribute with a rate of 0.2446% to the annual Jason-2 budgets with effect from 1 January 2014, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.

- IV** To amend the Declaration EUM/C/01/Decl. I on the Optional EUMETSAT Jason-2 Altimetry Programme to reflect that Bulgaria will participate in the Programme with effect 1 January 2014.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-2 Altimetry Programme as attached to this Resolution in Annexes I and II.

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for EUMETSAT's contribution to the Ocean Surface Topography Mission (OSTM) through the EUMETSAT Jason-2 Altimetry Programme shall be limited to a maximum of 30 MEUR at 2001 economic conditions.

The indicative EUMETSAT payment profile, based upon a 2004 December launch and five years of operations, is:

Year	2003	2004	2005	2006	2007	2008	2009
MEUR	3	4.0	4.6	4.6	4.6	4.6	4.6

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-2 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-2
BELGIUM (BE)	3.0380%
BULGARIA (BG)	0.2446%
SWITZERLAND (CH)	3.4311%
GERMANY (DE)	26.3673%
DENMARK (DK)	1.9466%
ESTONIA (EE)	0.0858%
SPAIN (ES)	6.6360%
FINLAND (FI)	1.4452%
FRANCE (FR)	17.1754%
UNITED KINGDOM (GB)	10.4703%
GREECE (GR)	0.7178%
CROATIA (HR)	0.2201%
IRELAND (IE)	0.9439%
ICELAND (IS)	0.0736%
ITALY (IT)	13.3214%
LITHUANIA (LT)	0.1563%
LUXEMBOURG (LU)	0.2163%
LATVIA (LV)	0.0954%
NETHERLANDS (NL)	4.5127%
NORWAY (NO)	1.7796%
PORTUGAL (PT)	1.2683%
ROMANIA (RO)	0.5795%
SWEDEN (SE)	2.7331%
SLOVENIA (SI)	0.2313%
TURKEY (TR)	2.3104%
TOTAL	100.0000%

EUMETSAT JASON-2 ALTIMETRY OPTIONAL PROGRAMME VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the EUMETSAT Optional Jason-2 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	3.0380%
BULGARIA (BG)	0.2446%
SWITZERLAND (CH)	3.4311%
GERMANY (DE)	26.3673%
DENMARK (DK)	1.9466%
ESTONIA (EE)	0.0858%
SPAIN (ES)	6.6360%
FINLAND (FI)	1.4452%
FRANCE (FR)	17.1754%
UNITED KINGDOM (GB)	10.4703%
GREECE (GR)	0.7178%
CROATIA (HR)	0.2201%
IRELAND (IE)	0.9439%
ICELAND (IS)	0.0736%
ITALY (IT)	13.3214%
LITHUANIA (LT)	0.1563%
LUXEMBOURG (LU)	0.2163%
LATVIA (LV)	0.0954%
NETHERLANDS (NL)	4.5127%
NORWAY (NO)	1.7796%
PORTUGAL (PT)	1.2683%
ROMANIA (RO)	0.5795%
SWEDEN (SE)	2.7331%
SLOVENIA (SI)	0.2313%
TURKEY (TR)	2.3104%
TOTAL	100.0000%

RESOLUTION ON
THE PARTICIPATION OF BULGARIA TO THE OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME

adopted by the Participating States at the 79th Meeting of the EUMETSAT Council on 26-27 November 2013

The Participating States,

TAKING INTO ACCOUNT Resolution EUM/C/79/13/Res. I on the Accession of Bulgaria to the EUMETSAT Convention, unanimously adopted at the 78th Meeting of the EUMETSAT Council,

TAKING INTO ACCOUNT that, in accordance with the above Resolution, Bulgaria will become a Member State of EUMETSAT, subject to ratification, with effect from 1 January 2014,

WELCOMING the wish expressed by Bulgaria to become a Participating State to the Optional EUMETSAT Jason-3 Altimetry Programme at the rate of 0.2446%.

CONVINCED that this accession will contribute to the successful completion of the EUMETSAT Optional Jason-3 Altimetry Programme,

HAVING REGARD to the Council Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme adopted by Potential Participating States on 1 July 2009 which entered into force on 1 February 2010 and reflecting subsequent subscriptions,

HAVING REGARD to Articles 5.3 and 16 of the EUMETSAT Convention,

AGREE:

- I** To the participation of Bulgaria to the Optional EUMETSAT Jason-3 Altimetry Programme.
- II** To fix, in accordance with Article 16.5 of the EUMETSAT Convention, the entry fee to be paid by Bulgaria for the Optional EUMETSAT Jason-3 Altimetry Programme at EUR 114,000.
- III** That in accordance with Article 16.6 of the EUMETSAT Convention, Bulgaria shall contribute with a rate of 0.2446% to the annual Jason-3 budgets with effect from 1 January 2014, and that the rates of contributions of the current Participating States shall be adjusted pro-rata accordingly.

- IV** To amend the Declaration EUM/C/67/09/Dcl. I on the Optional EUMETSAT Jason-3 Altimetry Programme to reflect that Bulgaria will participate in the Programme with effect 1 January 2014.
- V** To amend Annexes II and III of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme as attached to this Resolution in Annexes I and II.

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME FINANCIAL ENVELOPE AND SCALE OF CONTRIBUTIONS

1 FINANCIAL ENVELOPE

The overall envelope for the Optional EUMETSAT Jason-3 Altimetry Programme shall be limited to a maximum of M€63.6 at 2009 economic conditions (M€60 at 2007 economic conditions).

The indicative EUMETSAT payment profile, based upon a mid 2013 launch and five years of operations, is:

Year	2010	2011	2012	2013	2014	2015	2016	2017	2018
M€	20.9	26.2	13	3.5	0	0	0	0	0

2 SCALE OF CONTRIBUTIONS

The Participating States shall contribute to the EUMETSAT Jason-3 Altimetry Programme in accordance with the following scale of contributions:

MEMBER STATE	Scale Jason-3
BELGIUM (BE)	2.8655%
BULGARIA (BG)	0.2446%
SWITZERLAND (CH)	3.0591%
GERMANY (DE)	13.1710%
DENMARK (DK)	1.9781%
ESTONIA (EE)	0.0858%
SPAIN (ES)	8.4114%
FINLAND (FI)	1.5020%
FRANCE (FR)	21.9525%
UNITED KINGDOM (GB)	15.6406%
GREECE (GR)	0.9191%
CROATIA (HR)	0.2752%
IRELAND (IE)	1.2971%
ICELAND (IS)	0.0736%
ITALY (IT)	13.3980%
LITHUANIA (LT)	0.1563%
LUXEMBOURG (LU)	0.2393%
NETHERLANDS (NL)	4.8766%
NORWAY (NO)	2.2556%
PORTUGAL (PT)	1.3681%
ROMANIA (RO)	0.6395%
SWEDEN (SE)	2.8130%
SLOVENIA (SI)	0.2556%
TURKEY (TR)	2.5224%
TOTAL	100.0000%

OPTIONAL EUMETSAT JASON-3 ALTIMETRY PROGRAMME VOTING COEFFICIENT

Pursuant to the scale of contributions contained in Annex II of the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme, and taking into account Article 5.3 b) of the EUMETSAT Convention, the voting coefficient of Participating States shall be as follows:

MEMBER STATE	Voting Coefficient %
BELGIUM (BE)	2.8655%
BULGARIA (BG)	0.2446%
SWITZERLAND (CH)	3.0591%
GERMANY (DE)	13.1710%
DENMARK (DK)	1.9781%
ESTONIA (EE)	0.0858%
SPAIN (ES)	8.4114%
FINLAND (FI)	1.5020%
FRANCE (FR)	21.9525%
UNITED KINGDOM (GB)	15.6406%
GREECE (GR)	0.9191%
CROATIA (HR)	0.2752%
IRELAND (IE)	1.2971%
ICELAND (IS)	0.0736%
ITALY (IT)	13.3980%
LITHUANIA (LT)	0.1563%
LUXEMBOURG (LU)	0.2393%
NETHERLANDS (NL)	4.8766%
NORWAY (NO)	2.2556%
PORTUGAL (PT)	1.3681%
ROMANIA (RO)	0.6395%
SWEDEN (SE)	2.8130%
SLOVENIA (SI)	0.2556%
TURKEY (TR)	2.5224%
TOTAL	100.0000%

RESOLUTION ON
THE SECOND EXTENSION OF
THE OPTIONAL JASON-2 ALTIMETRY PROGRAMME

**Presented for adoption at the 79th Meeting of the EUMETSAT Council
on 26-27 November 2013, adopted on 15 September 2014.**

The Participating States in the Jason-2 Programme,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy foresees continuity of the optional Jason altimetry satellite series,

TAKING INTO ACCOUNT the Declaration EUM/C/01/Decl.I on the Optional EUMETSAT Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT the Resolution EUM/C/77/12/Res.III on the Extension of the Optional Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT the Declaration EUM/C/67/09/Decl.I on the Optional EUMETSAT Jason-3 Altimetry Programme,

BEARING IN MIND that the Jason-2 satellite is in good health and that the related ground segment infrastructure allow for extended Jason-2 operations,

AWARE that the launch of the Jason-3 satellite is now planned in March 2015,

CONSISTENT with the Jason-2 Declaration, in which Participating States agreed to consider a possible extension of EUMETSAT Jason-2 Altimetry Programme operations beyond the 5-year period covered by the Jason-2 Programme Proposal, it being understood that this extension shall require unanimous approval by Participating States,

WISHING to exploit the full operational value of the Jason-2 system to the benefit of Participating States and the international user community,

AGREE:

- I** To extend the Optional Jason-2 Altimetry Programme for a further period of operations of two and a half years from June 2015 until the end of 2017 including continued EUMETSAT involvement in the SARAL mission, followed by a period of six months for close out activities until mid 2018;
- II** To increase the financial envelope to 31 MEUR at 2001 economic conditions;
- III** That, should the Jason-2 satellite be lost in orbit prematurely before end of 2017, Council and Participating States will be invited to decide whether to continue SARAL arrangements, and remaining programme funds will be returned to Participating States.

RESOLUTION ON
ON THE EUMETSAT POLAR SYSTEM SECOND GENERATION PROGRAMME
(EPS-SG PROGRAMME)

presented for adoption at the 80th Meeting of the EUMETSAT Council
on 1 July 2014, adopted on 22 May 2015 with entry into force on 1 January 2016

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which provides that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory Programmes are the basic Programmes required to continue the provision of observations from geostationary and polar orbits,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the polar orbit, the first satellite of a second generation the EUMETSAT Polar System (EPS-SG) should be available for launch in 2021,

BEARING IN MIND the approach to implementation of Sentinel 4 and 5 on MTG and Post-EPS adopted by Council at its 64th meeting (EUM/C/64/08/DOC/08),

TAKING INTO ACCOUNT the Council Resolution EUM/C/70/10/Res. I on the Preparation of the EPS Second Generation in which Council inter alia agreed that the satellite configuration to be targeted in the Phase A activities of EPS-SG should be a two satellites configuration,

NOTING the Resolution EUM/C/73/11/Res. I on the EPS-SG Preparatory Programme, by which EUMETSAT Member States decided to establish a Preparatory Programme commencing in May 2012 and lasting until the completion of all Phase B activities, and tasked the Director-General with elaborating a Programme Proposal and related Resolution for the full EPS-SG Programme expected to start no later than end 2014,

TAKING INTO ACCOUNT the Council Resolution EUM/C/75/12/Res. I on the Scope of the EPS-SG Space Segment, in which the EUMETSAT Member States approved the baseline payload complement for the preparation of the EPS-SG (Infrared Atmospheric Sounding Instrument – New Generation, Visible-infrared Imaging Instrument, European Microwave Sounding Instrument, Scatterometer, Radio Occultation Instruments, Microwave Imaging for Precipitation Instrument, Multi-viewing, multi-channel, multi-polarisation Imager, the Advanced Data Collection System, and the Copernicus Sentinel-5 instrument), and that Council further agreed to add the Ice Cloud Imager to this baseline payload at its 76th meeting on 5-6 July 2012, on the understanding that the final decision on the EPS-SG payload complement will only be formalised when approving the EPS-SG Programme,

TAKING INTO ACCOUNT EUM/C/76/12/Res. II on a savings target for the preparation of the EPS-SG Programme, the corresponding measures agreed by Council in documents EUM/C/78/13/DOC/06 and EUM/C/79/13/DOC/09 and the resulting achievements reported to Council in EUM/C/80/14/DOC/10.

NOTING that only an EPS-SG programme including two series of three consecutive satellites can ensure 21 years of operations at annualised cost lower than that of the EPS programme,

NOTING the draft agreement with ESA concerning cooperation on the Metop-SG series of satellites,

AWARE that, as a result of the ESA Council at Ministerial level in November 2012 (ESA C-Min-12), the ESA Participating States approved the ESA Declaration on the ESA Metop-SG Programme,

NOTING Regulation (EU) No 377/2014 of 3 April 2014 of the European Parliament and the Council establishing the Copernicus Programme (“Copernicus Regulation”), which aims to develop a portfolio of European operational services relevant to environment and security, and which foresees to entrust delegated activities to EUMETSAT and ESA,

NOTING that the Commission Delegated Regulation (EU) No 1159/2013 of 12 July 2013 establishes that the GMES data and information policy should strongly contribute to the open data policy promoted by the Union, that access to Sentinel data should be free, full and open and that third countries or international organisations contributing to the operations of GMES should have access to GMES data under the same conditions which apply to Member States,

NOTING that the Framework Agreement between EUMETSAT and ESA on GMES approved by Council at its 67th meeting was signed on 20 July 2009,

NOTING the draft Implementing Arrangement with ESA concerning the provision of Sentinel-5 instruments, their accommodation in and their flight on the Metop-SG satellites, which is one of the implementing arrangements established under the GMES Framework Agreement with ESA,

NOTING that the operations of Sentinel-5 will be funded by the EU under the Delegation Agreement between EU and EUMETSAT covering EUMETSAT’s activities in support of Copernicus in the 2014-2020 period and by subsequent agreements under successive EU Multiannual Financial Frameworks.

NOTING the draft agreement with CNES concerning the supply of a new generation of Infrared Atmospheric Sounding Interferometer (IASI-NG),

NOTING the draft agreement with CNES governing the cooperation relative to the implementation of the advanced ARGOS Data Collection System through EPS-SG,

NOTING the draft agreement with DLR concerning the supply of the Visible-infrared-Imaging Instruments (METimage) for the EPS-SG programme,

NOTING the agreement with NOAA on Long Term Cooperation, approved at the 78th Council meeting and signed in August 2013, which foresees continued cooperation on polar-orbiting operational satellite systems through establishment and exploitation of a shared Joint Polar System to provide long-term continuity of observations from polar-orbits,

NOTING the draft cooperation agreement with NOAA on the Joint Polar System (JPS), establishing the EPS-SG Programme as the European contribution to the JPS,

FOLLOWING the roadmap for the approval of the EPS-SG Programme as agreed the 78th Council meeting (EUM/C/78/13/DOC/05),

TAKING INTO ACCOUNT the Programme Proposal on the EPS-SG Programme contained in document EUM/C/80/14/DOC/09,

IN CONFORMITY with Article 3, 5 and 10 of the EUMETSAT Convention,

AGREE:

- I** To establish the EPS-SG Programme with a first satellite planned to be available for launch in 2021, in time to secure the continuity of the observations from the EPS Programme and with operations expected to last for at least 21 years, which can only be assured with a 3 + 3 satellite programme including two parallel series of three successive Metop-SG A and Metop-SG B satellites.
- II** That the mission objectives, system description and Programme content shall be as described in the EUMETSAT EPS-SG Programme Definition attached to this Resolution.
- III** That the financial envelope of the EPS-SG Programme shall amount to MEUR 3,323 at 2012 economic conditions (MEUR 3,495 at 2015 e.c.), with an indicative expenditure profile as described in the Programme Definition.
- IV** That, in order to improve value for money of the EPS-SG Programme, every effort will be made to ensure that the lifetime of the satellites is maximised, whilst complying with applicable space debris mitigation regulations and that overall flexibility regarding the schedule of launches is preserved with a view to a possible extension of the operation period of the programme.

EUMETSAT POLAR SYSTEM SECOND GENERATION PROGRAMME DEFINITION

1. INTRODUCTION

The establishment of the EPS-SG Programme derives from the EUMETSAT Convention, where the primary objective of EUMETSAT to establish, maintain and exploit European systems of operational meteorological satellites is stated, together with the further objective to contribute to the operational monitoring of the climate and the detection of global climatic changes. EPS-SG is the basic Programme required to continue the provision of observations from polar orbit following EUMETSAT Polar System (EPS) and as such is a mandatory Programme.

2. MISSION OBJECTIVES AND EPS-SG MISSION

As the successor of the EPS Programme, the EPS-SG Programme will continue to support and enhance the core services of operational meteorology and climate monitoring from the mid morning polar orbit and will implement the End User Requirements Document approved by Council.

In the frame of the Joint Polar System (JPS) shared with the US National Ocean and Atmosphere Administration (NOAA), it will provide observations from the mid morning orbit supporting a large spectrum of applications at the National Meteorological Services and other operational entities of EUMETSAT Member and Cooperating States, as well as WMO users in general.

In particular, Numerical Weather Prediction at regional and global scales will benefit from the EPS-SG enhanced infra-red, micro-wave, and radio-occultation soundings of temperature and humidity, polar atmospheric motion vectors extracted from optical imagery, novel precipitation and cloud measurements of imagers in the optical, sub-millimetre and micro-wave spectra, and high-resolution ocean surface wind-vector and soil moisture measurements extracted from scatterometer observations.

The imaging and scatterometry missions will also support nowcasting applications at high latitudes where geostationary measurements are not available, as well as operational oceanography through the delivery of ocean surface wind vectors, sea surface temperature, sea ice cover, and other marine products.

Atmospheric composition applications, particularly monitoring and forecasting of air quality, ozone, aerosols and volcanic ash, and surface ultra-violet radiation, will be served with high spectral and spatial resolution soundings and imagery in the spectrum ranging from ultra-violet to the thermal infrared.

Operational hydrology and water management will be served with precipitation, soil moisture and snow measurements.

A number of measurements from the optical imaging mission will be relevant for land surface analysis at large scale in support of land-atmosphere interactions and biosphere applications.

All EPS-SG observation missions will support climate monitoring, based on the production of relevant Climate Data Records involving also heritage observations from the EPS Programme.

2.1. Observation Missions

The nominal EPS-SG system will include a configuration of two satellites (Satellite A and satellite B) carrying different sets of instruments to maximise synergy among the observations.

Satellite A will carry six instruments to fulfil the sounding and optical imaging missions:

- The Infrared Atmospheric Sounding mission (**IAS**), provides hyper-spectral infrared soundings of temperature, water vapour, and trace gases with a spectral resolution of 0.25 cm^{-1} within the spectral range from 645 to 2760 cm^{-1} at an average spatial sampling distance of 25 km;
- The Visible/Infrared Imaging mission (**VII**), provides moderate-resolution optical imaging of clouds, aerosols, and surface variables in 20 spectral channels ranging from 0.443 to $13.345 \text{ }\mu\text{m}$ with a spatial sampling of 250 to 500 m;
- The MicroWave Sounding mission (**MWS**), provides all-weather microwave sounding of atmospheric temperature and humidity in the frequency range from 23.4 to 229 GHz, at a spatial resolution of 17 to 40 km;
- The Radio Occultation sounding mission (**RO**), provides high vertical resolution, all-weather soundings of atmospheric temperature and water vapour by tracking GPS (Global Positioning System), Galileo and optionally GLONASS, and Compass-Beidou satellites;
- The Multi-viewing Multi-channel Multi-polarisation Imaging mission (**3MI**), provides moderate resolution aerosol imaging in 12 spectral channels of the spectral region ranging from the visible ($0.41 \text{ }\mu\text{m}$) to the short-wave infrared ($2.13 \text{ }\mu\text{m}$), at a spatial resolution of 4 km;
- The nadir-viewing Ultra-violet Visible Near-infrared Shortwave infrared sounding mission (**UVNS**), implemented by the Copernicus Sentinel-5 instrument, provides hyper-spectral sounding of trace gases with a spectral resolution from 0.05 to 1 nm within the spectral range from 0.27 to $2.385 \text{ }\mu\text{m}$ at a spatial resolution of 7 km.

Satellite B will carry four instruments to fulfil the passive micro-wave and sub-millimetre-wave imaging, scatterometry, and radio occultation sounding missions:

- The Scatterometry mission (**SCA**), provides back-scattered signals in the 5.3 GHz band to measure ocean-surface vector winds and soil moisture of land surfaces at a spatial resolution of 25 km;
- The Micro-Wave Imaging mission (**MWI**), provides precipitation and cloud imaging in 18 channels (8 of which being dual-polarisation) in the frequency range from 18.7 to 183 GHz at a spatial resolution from 10 km (highest frequency) to 50 km (lowest frequency);
- The Ice Cloud Imaging mission (**ICI**) provides ice cloud and snowfall imaging in 11 channels (2 of which being dual-polarisation) in the frequency range from 183 to 664 GHz at a spatial resolution of 15 km;
- A second RO sounding instrument to complement that on Metop-SG A to provide a higher number of all-weather RO soundings of temperature and water vapour by tracking GPS, Galileo and optionally GLONASS, and Compass-Beidou satellites.

The Metop-SG B satellite also carries an Advanced Data Collection System (A-DCS4) for the collection and transmission of observations and data from surface, buoy, ship, balloon or airborne data collection platforms.

3. EPS-SG SYSTEM DESCRIPTION

3.1 System Architecture

The EPS-SG system consists of the following main elements:

- Space Segment;
- Ground Segment;
- Launch services;
- LEOP services.

3.2 Space Segment

The EPS-SG Space Segment consists of three Metop-SG A satellites and three Metop-SG B satellites equipped with different instrument payload fulfilling the observation missions in synergy. Both Metop-SG A and Metop-SG B types of satellite have large commonalities to facilitate efficient operations.

The space segment also includes all necessary Ground Support Equipment (GSE) for satellite AIV, such as mechanical, electrical and optical GSE's test facilities to support test and qualification of the satellites and specific tools used for system verification and validation, such as the satellite simulators or Radio Frequency (RF) suitcases.

The payloads carried by each type of satellite will be different, with the exception of the Radio Occultation (RO) instrument to be embarked on both A and B satellites.

The mapping between the EPS-SG observation missions and the corresponding instruments to be carried on the Metop-SG satellites is as follows:

Metop-SG A Missions	Instrument (and Provider)
Infrared Atmospheric Sounding (IAS)	IASI-NG (CNES)
Visible-Infrared Imaging (VII)	METImage (DLR)
Microwave Sounding (MWS)	MWS (ESA)
Radio Occultation (RO)	RO (ESA)
Multi-viewing, -channel, -polarisation Imaging (3MI)	3MI (ESA)
UV/VIS/NIR/SWIR Sounding (UVNS)	Sentinel-5 (Copernicus/ ESA)

Metop-SG B Missions	Instrument (and Provider)
Scatterometry (SCA)	SCA (ESA)
Microwave Imaging for Precipitation (MWI)	MWI (ESA)
Ice Cloud Imaging (ICI)	ICI (ESA)
Radio Occultation (RO)	RO (ESA)
Advanced Data Collection (ADCS)	A-DCS4 (CNES)

All instruments will nominally be on and taking measurements continuously, although day/night observations will be different for some instruments, i.e. METImage, Sentinel-5 and 3MI will generate reduced amounts of data at night.

3.3 EPS-SG Ground Segment

The EPS-SG Overall Ground Segment will support all the ground functions required to meet the mission objectives and comprises a set of core functions, supplemented by functions provided by services and partners:

- Mission Control and Operations ;
- Payload Data Acquisition and Processing;
- Multi Mission Elements (MMEs).

SAFs are part of EUMETSAT's multi-mission infrastructure, and contribute to the implementation of the Payload Data Acquisition and Processing function for agreed level-2 products.

The EPS-SG Ground Segment functions will be implemented by physical elements located at the EUMETSAT Headquarters and other sites.

The full complement of sites contributing to the EPS-SG Ground Segment is:

- The Mission Control Centre (MCC) at EUMETSAT Headquarters;
- The Remote Mission Control Centre (RMCC) is located at a remote location and provides capability to command and control the Space Segment in the case of partial or total loss of the MCC;
- The Ground Stations sites for Tracking, Telemetry and Command/Control (TT&C);
- The Ground Station sites for payload data reception, both polar stations for global data, and regional stations. The polar global data reception sites are expected to include NOAA antennas in the McMurdo station in the Antarctic as part of the JPS support;
- The EUMETCast uplink station for data dissemination;
- The Satellite Application Facilities (SAFs) distributed across EUMETSAT Member States;
- The Scatterometer transponders sites.

In addition to these sites, there are also the sites of partners and service providers.

4. EPS-SG IN-ORBIT DEPLOYMENT PLAN

Because the EPS-SG Programme is the follow-on to the EPS Programme and the EUMETSAT contribution to the JPS shared with NOAA, the Metop-SG satellites will be operated in the same mid morning orbit as the Metop satellites.

The baseline in-orbit configuration for the EPS-SG space segment is a dual spacecraft configuration (Metop-SG A and Metop-SG B).

Although the baseline assumption is that each spacecraft in the programme will be launched independently, both satellites of the dual configuration will be operated simultaneously in the same mid morning orbit, at defined relative phases in the orbit. Considering that both types of satellites are required to ensure continuity of EPS observations, the prototype satellites are planned to be launched 18 months apart

The programme foresees a series of three spacecraft of each type, with a 7.5-year design lifetime.

The deployment of the EPS-SG system and the successive Metop-SG satellites is driven by availability and readiness of the prototype satellites and the required duration of the operational services and by the need to ensure the continuity of the services provided by the last Metop satellites of the EPS system.

The foreseen EPS-SG satellite deployment scenario is as follows:

- Nominal launch of Metop-SG A1:	2021
- Nominal launch of Metop-SG B1:	2022
- Nominal launch of Metop-SG A2:	2028
- Nominal launch of Metop-SG B2:	2029
- Nominal launch of Metop-SG A3:	2035
- Nominal launch of Metop-SG B3:	2036

One difference between the EPS and EPS-SG Programmes is the need to comply with space debris mitigation regulations which have evolved considerably over the past 10 years. Therefore, in accordance with applicable debris mitigation regulations, the baseline is to de-orbit the Metop-SG satellites at their end of life, performing a controlled re-entry targeting the open ocean. The choice of the end of life date will be a balance between the maximisation of the scientific data from an in-orbit asset and the need to secure a defined minimum amount of fuel to successfully perform a controlled re-entry.

5. SCOPE OF EUMETSAT PROGRAMME

The scope of the EPS-SG Programme encompasses the following main elements:

- Two series of three successive satellites, termed “Satellite A” and “Satellite B”;
- A fixed financial contribution to the ESA Metop-SG Space Segment Development Programme covering the development of both prototype satellites;
- Procurement of the four recurrent satellites and related activities;
- A fixed contribution to the development by DLR of the METImage instrument and the procurement of two recurrent METImage instruments;
- A fixed contribution to the development by CNES of the IASI-NG instruments and procurement of two recurrent IASI-NG instruments;
- Procurement of six Launch and LEOP services;
- Establishment of a ground segment system to support the operation of the EPS-SG system;
- At least 21 years of operations of each series of satellites, which can only be assured with a 3 + 3 satellite programme including two parallel series of three successive Metop-SG A and Metop-SG B satellites;
- 10 years of continuous development and operations (CDOP) activities of the EUMETSAT SAFs;
- The management of the developments and procurements, and the conditioning of the infrastructure to host components of the system, including back-up services and related systems.

6. IMPLEMENTATION ARRANGEMENTS

6.1 Interaction with Users and Experts

The process for involvement of users and experts established during the initial phases of the EPS-SG activities will continue during the development and operations phases. The EPS-SG Mission Team which has been instrumental to integrate and consolidate the information base and help EUMETSAT.

The EPS-SG End User Requirements Document (EURD), owned by Council, is at the highest level in the EPS-SG specification tree and is the applicable users' reference for the design and the development of EPS-SG at system level and segment levels (space and ground segments). Accordingly, a downward traceability from the EURD to the System requirements Document (SRD) and further down to the segment system requirements documents has been established and is maintained for the Phase B and following Phases.

An initial version of the EURD (EUM/C/78/13/DOC/07) was approved by Council as baseline for EPS-SG Preparatory Programme. The EURD will be updated in the light of results from the Phase B activities and will be presented to EUMETSAT Council for approval.

6.2 Cooperation with ESA

The roles of EUMETSAT and ESA are detailed in a dedicated Agreement with ESA on Metop-SG approved by the EUMETSAT Council, specifying, amongst others, the roles of EUMETSAT and ESA within the EPS-SG, financial liabilities, procurement policy, implementation mechanisms, and ownerships of data.

6.3 Other partner agencies

In addition to cooperation with ESA, EUMETSAT will also cooperate with DLR and CNES for the acquisition of the METImage (DLR), IASI-NG (CNES) and the implementation of the ARGOS (CNES) mission. Dedicated agreements are approved by Council.

EPS-SG will be implemented as the European contributions to the Joint Polar System established in cooperation with NOAA, subject to a dedicated Agreement addressing development and coordinated operations also approved by Council.

6.4 Sentinel-5 Implementation

The implementation of the Sentinel-5 on the Metop-SG satellites will be formalised through the “Draft Implementing Arrangement with ESA on GMES Sentinel-5”, to be signed upon entry into force of the EPS-SG Programme. This Implementing Arrangement is based on the Framework Agreement between EUMETSAT and ESA on the cooperation on GMES signed on 20 July 2009. ESA will develop the Sentinel-5 mission and deliver three instruments, two of which are expected to be funded by the EU Copernicus Programme in compliance with the EPS-SG interfaces and within the capabilities allocated to the satellites to fulfil the Sentinel-5 mission.

The Copernicus Regulation approved by the EU Council and the European Parliament foresees that operations of the Sentinel-5 instruments as part of the EPS-SG system will be funded by the EU under Delegation Agreements between EUMETSAT and the EU covering EUMETSAT’s activities in support of Copernicus in the 2014-2020 period and by subsequent agreements under successive EU Multiannual Financial Frameworks.

7 PROGRAMME ENVELOPE & INDICATIVE EXPENDITURE PROFILE

The proposed EUMETSAT EPS-SG Programme envelope amounts to MEUR 3,323 at 2012 economic conditions. It is equivalent to MEUR 3,495 at 2015 economic conditions.

The following table shows the indicative expenditure profile of the EPS-SG Programme:

Year	2015	2016	2017	2018	2019	2020	2021	2022	2023	2024	2025
MEUR (‘12 e.c.)	26.1	118.3	187.6	246.6	299.8	267.2	236.1	201.5	151.7	97.9	90.6

Year	2026	2027	2028	2029	2030	2031	2032	2033	2034	2035	2036 to 2044
MEUR (‘12 e.c.)	124.1	167.5	145.4	109.3	68.1	65.9	100.0	76.7	134.6	127.5	280.1

RESOLUTION ON
THE EUMETSAT POLAR SYSTEM SECOND GENERATION PROGRAMME
APPROVAL

adopted at the 80th Meeting of the EUMETSAT Council on 1 July 2014

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which provides that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory Programmes are the basic Programmes required to continue the provision of observations from geostationary and polar orbits,

CONSIDERING that the adoption of mandatory Programmes requires a unanimous vote of all the Member States,

BEARING IN MIND that for the accomplishment of the EUMETSAT objectives in the polar orbit, the first satellite of a second generation the EUMETSAT Polar System (EPS-SG) should be available for launch in 2021,

HAVING REGARD to the roadmap for the approval of the EPS-SG Programme as agreed at the 78th meeting of the Council (EUM/C/78/13/DOC/05),

AWARE of the criticality for all EUMETSAT Member States of providing continuity to observations from polar orbit and the urgency in adopting the EPS-SG Programme to avoid cost increases due to delays,

BEARING IN MIND that any delay in adopting the EPS-SG Programme directly impacts users and EUMETSAT's international partners, and in this respect recalling that the Sentinel-5 instrument of the European Union's Copernicus Programme is part of the payload,

CONSIDERING that the EUMETSAT Council, at its 80th meeting, was invited to take the first step towards the approval of the mandatory EPS-SG Programme by approving the EPS-SG Programme Proposal and Programme Resolution, thus freezing the contents of said Programme Proposal and Programme Resolution without committing individual Member States to fund the mandatory EPS-SG Programme ("Vote 1"),

NOTING that Vote 1 must be secured in order to open the second vote on the actual EPS-SG Programme approval, which will allow the individual Member States to commit to fund the mandatory EPS-SG Programme (“Vote 2”),

CONSIDERING that all Member States except Poland have expressed positive votes on Vote 1 at the 80th meeting of the Council and that Poland’s positive vote on Vote 1 is required to enable Vote 2 to be opened to all Member States,

URGE Poland to give its positive vote on Vote 1 as soon as possible, thus enabling all Member States to proceed with Vote 2.

AGREE to task the Director-General and the Council Chairman to write a letter to the Polish Prime Minister addressing the urgency of a positive vote on Vote 1 from Poland and the need to discuss the way forward for the full approval of the mandatory EPS-SG Programme by Poland.

RESOLUTION ON
THE UPDATE OF THE ANNUAL FEES APPLICABLE TO NMSs
OF NON-MEMBER STATES

adopted at the 80th Meeting of the EUMETSAT Council
on 1 July 2014

The EUMETSAT Member States,

RECALLING that the current EUMETSAT fees for Official Duty Use of Half-Hourly Data and Quarter-Hourly Meteosat Data by NMSs of Non-Member States were adopted in Resolution EUM/C/76/12/Res. V at the 76th Meeting of the EUMETSAT Council on 5-6 July 2012,

RECALLING that the said Resolution also provides that the threshold is established at the “Upper Middle Income Mean Value” defined by the World Bank,

RECALLING that the threshold and the fee tables shall be revised by EUMETSAT Council every 2 years on the basis of the latest available World Bank statistics,

WISHING to update the threshold and the tables in accordance with the above-mentioned statistics,

AGREE to abolish Council Resolution EUM/C/76/10/Res. V and to replace it as follows:

- I** EUMETSAT fees for Official Duty Use of Half-Hourly Data and Quarter-Hourly Meteosat Data by NMSs of Non-Member States – Period 2013/2014 – shall be replaced by the version attached to this Resolution which includes the updated threshold and the table of Fees Applicable to NMSs of non-Member States for Official Duty Use – Period 2015/2016.
- II** This Resolution shall take effect on 1 January 2015.

EUMETSAT FEES FOR OFFICIAL DUTY USE OF HALF-HOURLY AND QUARTER-HOURLY METEOSAT DATA BY NMSs OF NON-MEMBER STATES

The attached Tables contain the annual fees applicable to NMSs of non-Member States for Half-hourly HRI Data and Half-hourly and Quarter-hourly High Rate SEVIRI Data for the period 2015-2016.

The fees for Official Duty use of Half-hourly Low Rate SEVIRI Data by NMSs of non-Member States shall be 75% of the corresponding fees for Official Duty use of High Rate SEVIRI Data.

The following applies:

- 1) Official Duty use by NMSs of countries with a GNI per capita below or equal to USD 6,977, derived from World Bank statistics: Without Charge.
- 2) Official Duty use by NMSs of countries with a GNI per capita above USD 6,977: the fees for Half-hourly and Quarter-hourly Meteosat Data are given in the tables attached.
- 3) Review Mechanisms:
 - The tables attached shall be reviewed by Council every 2 years on the basis of the latest available World Bank statistics.
 - Should the figures in the tables attached prove to be erroneous or incomplete, the Director-General shall make appropriate recommendations on a case by case basis.
 - The “Upper Middle Income” value as defined in the World Bank statistics shall establish the threshold for free access to Half-hourly and Quarter-hourly Meteosat Data. This threshold shall be revised by Council every 2 years on the basis of the World Bank statistics.

Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Afghanistan	680	0	0
Albania	4,030	0	0
Algeria	5,020	0	0
Angola	4,580	0	0
Antigua and Barbuda	12,480	80	100
Argentina	i	80	100
Armenia	3,720	0	0
Australia	59,360	80	100
Azerbaijan	6,220	0	0
Bahamas, The	20,600	80	100
Bahrain	14820 a	80	100
Bangladesh	840	0	0
Barbados	15,080	80	100
Belarus	6,530	0	0
Belize	4,490 a	0	0
Benin	750	0	0
Bhutan	2,420	0	0
Bolivia (Plurinational State of)	2,220	0	0
Bosnia and Herzegovina	4,750	0	0
Botswana	7,650	80	100
Brazil	11,630	80	100
Brunei Darussalam	j	80	100
Burkina Faso	670	0	0
Burundi	240	0	0
Cambodia	880	0	0
Cameroon	1,170	0	0
Canada	50,970	80	100
Cape Verde	3,830	0	0
Cayman Islands	... a	80	100
Central African Republic	510	0	0
Chad	770	0	0
Chile	14,310	80	100
China	5,720	0	0
Colombia	7,020	80	100
Comoros	840	0	0
Congo	2,550	0	0
Costa Rica	8,820	80	100
Cuba	5,890 a	0	0
Curaçao and Sint Marteen	j	80	100
Cyprus	26,110 c	80	100
Democratic Republic of Korea	k	0	0
Democratic Republic of Congo	230	0	0
Djibouti	l	0	0
Dominica	6,440	0	0
Dominican Republic	5,470	0	0

Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Ecuador	5,170	0	0
Egypt, Arab Rep.	2,980	0	0
El Salvador	3,590	0	0
Eritrea	450	0	0
Ethiopia	380	0	0
Fiji	4,110	0	0
Gabon	10,040	80	100
Gambia, The	510	0	0
Georgia	3,270 d	0	0
Ghana	1,550	0	0
Guatemala	3,120	0	0
Guinea	440	0	0
Guinea-Bissau	510	0	0
Guyana	3,410	0	0
Haiti	760	0	0
Honduras	2,120	0	0
Hong Kong SAR, China	36,560	80	100
India	1,580	0	0
Indonesia	3,420	0	0
Iran, Islamic Rep.	i	0	0
Iraq	5,870	0	0
Israel	28,380 a	80	100
Ivory Cost	1,220	0	0
Jamaica	5,120	0	0
Japan	47,880	80	100
Jordan	4,670	0	0
Kazakhstan	9,780	80	100
Kenya	860	0	0
Kiribati	2,520	0	0
Kuwait	44,100 a	80	100
Kyrgyzstan	990	0	0
Lao PDR	1,270	0	0
Lebanon	9,190	80	100
Lesotho	1,380	0	0
Liberia	370	0	0
Libya	i	80	100
Macao SAR, China	55,720 a	80	100
Madagascar	430	0	0
Malawi	320	0	0
Malaysia	9,820	80	100
Maldives	5,750	0	0
Mali	660	0	0
Malta	19,760	80	100
Mauritania	1,110	0	0
Mauritius	8,570	80	100
Mexico	9,640	80	100
Micronesia, Fed. Sts.	3,230	0	0
Monaco	.. a	80	100

Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Mongolia	3,160	0	0
Montenegro	7,220	80	100
Morocco	2,960 e	0	0
Mozambique	510	0	0
Myanmar	k	0	0
Namibia	5,610	0	0
Nepal	700	0	0
New Zealand	30,640 a	80	100
Nicaragua	1,650	0	0
Niger	390	0	0
Nigeria	1,440	0	0
Oman	19,110 a	80	100
Pakistan	1,260	0	0
Panama	8,510	80	100
Papua New Guinea	1,790	0	0
Paraguay	3,400	0	0
Peru	6,060	0	0
Philippines	2,500	0	0
Qatar	76,010 a	80	100
Republic of Korea	22,670	80	100
Republic of Moldova	2,070 f	0	0
Russian Federation	12,700	80	100
Rwanda	600	0	0
Saint Lucia	6,890	0	0
Samoa	3,260	0	0
São Tomé and Príncipe	1,310	0	0
Saudi Arabia	21,210 a	80	100
Senegal	1,030	0	0
Seychelles	12,260	80	100
Sierra Leone	580	0	0
Singapore	47,210	80	100
Solomon Islands	1,130	0	0
Somalia	k	0	0
South Africa	7,610	80	100
South Sudan	790	0	0
Sri Lanka	2,920	0	0
Sudan	1,500 g	0	0
Suriname	8,680	80	100
Swaziland	2,860	0	0
Syrian Arab Republic	2,610 a	0	0
Tajikistan	860	0	0
Thailand	5,210	0	0
Macedonia, FYR	4,620	0	0
Timor-Leste	3,620	0	0
Togo	500	0	0
Tonga	4,220	0	0
Trinidad and Tobago	14,710	80	100
Tunisia	4,150	0	0
Turkmenistan	5,410	0	0

Council Resolution EUM/C/80/14/Res. III
Annex I

Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Tuvalu	5,650	0	0
Uganda	440	0	0
Ukraine	3,500	0	0
United Arab Emirates	35,770 a	80	100
United Republic of Tanzania	570 h	0	0
United States of America	52,340	80	100
Uruguay	13,580	80	100
Uzbekistan	1,720	0	0
Vanuatu	3,000	0	0
Venezuela, Bolivarian Republic of	12,460	80	100
Viet Nam	1,550	0	0
Yemen	1,270	0	0
Zambia	1,350	0	0
Zimbabwe	650	0	0

Footnotes:

... Not available.

a. 2012 data not available; ranking is approximate.

c. Data are for the area controlled by the government of the Republic of Cyprus.

d. Excludes Abkhazia and South Ossetia.

e. Includes Former Spanish Sahara.

f. Excludes Transnistria.

g. Excludes South Sudan.

h. Covers mainland Tanzania only.

i. Estimated to be upper middle income (\$4,086 to \$12,615).

j. Estimated to be high income (\$12,616 or more).

k. Estimated to be low income (\$1,035 or less).

l. Estimated to be lower middle income (\$1,036 to \$4,085).

RESOLUTION ON
AMENDMENTS TO THE METEOSAT IMPLEMENTING RULES

adopted at the 80th Meeting of the EUMETSAT Council
on 1 July 2014

The EUMETSAT Member States,

RECALLING that the current consolidated Meteosat Implementing Rules were adopted by Council at its 70th meeting in June 2010 through Council Resolution EUM/C/70/10/Res. III and at its 76th meeting in July 2012 through Council Resolution EUM/C/76/12/Res. V,

RECALLING the recommendations on harmonisation of the ECMWF, EUMETSAT and ECOMET data policy provisions issued by the Joint Harmonisation Group (JHG) to the EUMETSAT Council at its 38th meeting on 1-3 July 1998,

RECALLING that the "harmonised" definitions proposed by the JHG were initially adopted by the EUMETSAT Council at its 38th meeting through Council Resolution EUM/C/98/Res. IV as part of the Implementing Rules to the EUMETSAT Principles on Data Policy,

TAKING INTO ACCOUNT that the ECMWF Council and the ECOMET General Assembly also adopted the recommendations of the JHG into their data policy provisions;

BEARING IN MIND the recommendation of the JHG that the Councils and General Assembly commit themselves to the principle that decisions regarding data policy should always be taken with knowledge of the impact on the other two organisations, and with the principle that decisions should always aim to increase rather than decrease harmonisation;

CONSIDERING the result of the joint review of the current definitions contained in the data policy provisions in the three organisations which took place in June 2013 and which were then presented to the EUMETSAT Council in document EUM/C/80/14/DOC/39,

WISHING to continue the close cooperation between EUMETSAT, ECMWG and ECOMET and in particular to maintain the long standing harmonisation on data policy provisions,

AGREE:

- I** to amend Annex I of Council Resolution EUM/C/70/10/Res. III by replacing the Implementing Rules for Meteosat Data and Products with the updated version attached as Annex I to this Resolution.
- II** that subject to the above, Resolution EUM/C/70/10/Res. III remains unchanged.

1 THE METEOSAT CATALOGUE

For the purpose of distribution, dissemination and commercial application, a list of data, products and services is contained in the Meteosat Catalogue as displayed in the Product Navigator.

2 DEFINITIONS

"Archived Data and Products": image data, older than 24 hours, generated by a Meteosat satellite, hardcopy image prints and other meteorological products stored and/or supplied by EUMETSAT's Archive and Retrieval Facility, as listed in the Meteosat Catalogue.

"Broadcasters": those users who disseminate an item from the Meteosat Catalogue or images based on Meteosat Data through electronic public information systems including, but not limited to, Internet, terrestrial and satellite transmissions.

"Educational Use": any use of an item from the Meteosat Catalogue solely for educational non-commercial purposes, without transmission or redistribution of these data, products and services to any further third party, or use of them to generate a Value Added Service.

"End Users" those users who use an item from the Meteosat Catalogue for their own commercial or industrial purposes and do not pass on such item to any further user or use it to generate a Value Added Service.

"Essential Meteosat Data and Products": Meteosat Data and Products which are declared "Essential" in accordance with WMO Resolution 40 (Cg-XII), as agreed by Council.

"Exclusive Licensing Agent": a NMS of a Member State exclusively representing EUMETSAT within that State for the purpose of licensing Meteosat Data.

"Half-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to each clock hour and 30 minutes after each clock hour (UTC).

"Hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to each clock hour (UTC).

"High Rate SEVIRI Data ": high rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

"HRI Data": high resolution image data generated by a Meteosat First Generation satellite.

"Low Rate SEVIRI Data ": low rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

"Member States": the States which are parties to the Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites.

"Meteosat Catalogue": the list of Meteosat Data and Products and Services attached hereto as Annex II.

"Meteosat Data": all HRI Data and High Rate/Low Rate SEVIRI Data generated by the Meteosat First and Second Generation satellites.

"Meteosat Derived Products": products generated by the EUMETSAT ground segment from Meteosat Data and transmitted to users within 24 hours, as listed in the Meteosat Catalogue.

"Meteosat Internet Service": Certain Meteosat Data and Meteosat Derived Products as defined in the Meteosat Catalogue, retransmitted by EUMETSAT via the Internet.

"National Territory": the national territory of a state, including its internal waters, its archipelagic waters, its territorial sea and its exclusive economic zone, as defined in the United Nations Convention on the Law of the Sea (UNCLOS) signed in Montego Bay on 10 December 1982 and having entered into force on 16 November 1994.

"NMS" (National Meteorological Service): service responsible at national level, in conformity with its legal status, for the gathering, classification and production of meteorological information in the national interest, and responsible at international level for participating in WMO programmes.

"Official Duty": all activities which take place within the organisation of a NMS and external activities of a NMS resulting from legal, governmental or intergovernmental requirements relating to defence, civil aviation and the safety of life and property.

"Personal use": any use of an item from the Meteosat Catalogue solely for personal non-commercial purposes, without transmission or redistribution of these data, products and services to any further third party, or use of them to generate a Value Added Service

"Quarter-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to each clock hour and 15 minutes, 30 minutes and 45 minutes after each clock hour (UTC).

"Rapid Scanning Data": those Meteosat Data acquired by scanning of a certain geographical area within the footprint of a Meteosat satellite in more frequent time intervals than the nominal full disk repeat cycles. For the purposes of access conditions, Rapid Scanning Data shall be provided only in conjunction with the full set of Meteosat Data.

"Research Project": any project organised for non-commercial research purposes only. A necessary condition for the recognition of non-commercial purposes is that all the results obtained are openly available at delivery costs only, without any delay linked to commercial objectives, and that the research itself is submitted for open publication.

"Service Providers": those users who acquire an item from the Meteosat Catalogue in order to supply Value Added Services under specific licence conditions to a third party clearly identified and known to the Service Provider.

"Six-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to the main synoptic hours of 00, 06, 12 and 18 UTC.

"Standard Licence Agreement": the standard terms and conditions pursuant to which items in the Meteosat Catalogue must be licensed to users.

"Subsidiary": any subsidiary of the Licensee which is controlled by the Licensee by means of the Licensee holding the majority of the voting rights (50% plus one vote).

"Third Party": any party external to a licence agreement between EUMETSAT or one of its Exclusive Licensing Agents and a user.

"Three-hourly Meteosat Data": those Meteosat Data referenced by EUMETSAT in time to the synoptic hours of 00, 03, 06, 09, 12, 15, 18 and 21 UTC.

"Value Added Services (VAS)": all meteorological services specifically conceived for the needs of users and made available under specific licence conditions.

"Without Charge": at no more than the cost of reproduction and delivery (including the cost of distribution media, documentation, software licences, transmission, direct labour cost and cost of any decryption key units), but without charge for the data and products themselves.

3 OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

- 1 EUMETSAT holds the full ownership and Intellectual Property Rights to the Meteosat Data and Products.
- 2 The Intellectual Property Rights to images based on Meteosat Data are shared between EUMETSAT and the Service Provider generating the images.
- 3 The Intellectual Property Rights to Value Added Services other than images based on Meteosat Data are considered to be owned by the Service Provider generating the Value Added Service.

4 "ESSENTIAL" METEOSAT DATA AND PRODUCTS

EUMETSAT shall make its Three-hourly and Six-hourly Meteosat Data, the Meteosat Derived Products and the data offered through its Meteosat Internet Service available to all users world-wide on a free and unrestricted basis as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).

5 LICENSING FOR NON-ESSENTIAL METEOSAT DATA AND ARCHIVED DATA AND PRODUCTS

- 1 The NMSs of Member States, acting as Exclusive Licensing Agents on behalf and for the account of EUMETSAT, shall have the responsibility for licensing non-Essential Meteosat Data to users receiving the data within their respective National Territories.
- 2 Acting as EUMETSAT's Exclusive Licensing Agents, the NMSs shall apply the EUMETSAT fees and conditions defined in Rules 8 and 10 below and shall sign licences applying the EUMETSAT standard licensing conditions with their users. The NMSs shall inform EUMETSAT of the signing of such licences.
- 3 The NMSs shall retain 25% of the fees received and allocate the remaining 75% to EUMETSAT.
- 4 Licensing for access to non-Essential Meteosat Data received outside Member States shall always be through a Standard Licence Agreement between the User and EUMETSAT according to the guidelines detailed in Rules 7, 8, 9 and 10 below.
- 5 EUMETSAT shall be responsible for the licensing of Archived Data and Products.

6 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF MEMBER STATES

- 1 The NMSs of Member States will receive non-Essential Meteosat Data for Official Duty use at no cost except for the cost of decryption key units.
- 2 Insofar as required for Official Duty use, the NMSs may grant access to other Departments within their respective National Administrations, subject to arrangements in accordance with national legislation, but all conditions defined in these Rules remain attached to the use of the data. Further distribution and all commercial applications of the Meteosat Data are subject to Rules 8, 10 and 11 below.

7 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF NON-MEMBER STATES

- 1 The NMSs of non-Member States will have access Without Charge to Hourly Meteosat Data for Official Duty use.
- 2 NMSs of non-Member States will have access to Half-hourly and Quarter-hourly Meteosat Data for Official Duty use in accordance with the conditions specified in Annex III.
- 3 NMSs of non-Member States which provide EUMETSAT with equivalent satellite data will be provided data under conditions to be agreed by the EUMETSAT Council on a case by case basis.
- 4 For limited periods, to support the monitoring of disasters or emergencies and in accordance with relevant UN resolutions, the full set of Meteosat Data will be made available Without Charge.
- 5 For Official Duty use by NMSs of non-Member States subject to tropical cyclones, the full set of Meteosat Data will be made available Without Charge.
- 6 Regarding their commercial activities, the NMSs of non-Member States shall be treated in the same way as Service Providers, in accordance with the fees and conditions listed in Annex IV.
- 7 EUMETSAT will inform the NMSs of non-Member States of licences signed with other users receiving non-Essential Meteosat Data within their respective territories.

8 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY RESEARCH PROJECTS AND FOR EDUCATIONAL USE

Research Projects and Educational Users are given access Without Charge to non-Essential Meteosat Data, in accordance with standard EUMETSAT licensing conditions.

9 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY ECMWF

ECMWF is given access Without Charge to non-Essential Meteosat Data for its own use in support of its mission, as defined in the ECMWF Convention. This use shall only cover activities carried out within the ECMWF Secretariat and shall not include retransmission of Meteosat Data to other users, including its Member States.

10 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY COMMERCIAL USERS AND OTHER USERS

Commercial and other users shall be given access to non-Essential Meteosat Data against fees and under the conditions laid down in Annex IV.

11 COMMERCIAL ACTIVITIES OF NMSs OF MEMBER STATES

- 1 The fees and conditions laid down in Annex IV shall apply in the relationship between the commercial activities of the NMSs of Member States and the NMSs when acting as EUMETSAT's Exclusive Licensing Agents.
- 2 In these cases, the NMSs acting as EUMETSAT's Exclusive Licensing Agents, shall be entitled to retain 25% of the fees due and shall allocate the balance to EUMETSAT.
- 3 The originating NMSs of Member States in their commercial activities shall be free to establish the prices to their users when supplying Value Added Services.
- 4 The NMSs of Member States shall in their commercial activities have the right to make their Value Added Services available to users within and outside Member States.

12 CONDITIONS OF ACCESS TO ARCHIVED DATA AND PRODUCTS

- 1 All categories of users will receive Archived Meteosat Data and Products in accordance with this Rule at no cost to such users.
- 2 The volume of Archived Data and Products that may be ordered from the EUMETSAT Archive and Retrieval Facility through a single order or through successive orders is limited to avoid an unmanageable load and a consequential degraded level of service.

13 FINANCIAL MATTERS

- 1 All income arising from the implementation of these Implementing Rules shall be included under a separate budget line into the annual EUMETSAT Budget on the basis of an estimate and shall be treated in accordance with the EUMETSAT Financial Rules.
- 2 EUMETSAT shall not be liable for the cost of procuring the necessary receiving equipment of any user. All users shall be required to reimburse EUMETSAT for the cost of providing them with decryption key units for the reception of non-Essential Meteosat Data.

RESOLUTION

ESTABLISHING A THIRD PARTY PROGRAMME ON EUMETSAT ACTIVITIES IN SUPPORT OF THE IMPLEMENTATION OF THE COPERNICUS PROGRAMME IN THE PERIOD 2014-2021

adopted at the 81st Meeting of the EUMETSAT Council on 15 October 2014

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the strategy “EUMETSAT: A Global Satellite Operational Agency at the Heart of Europe” approved at the 72nd Council meeting in June 2011 foresees to use a proportionate use of EUMETSAT’s skills and capabilities in support of the definition of some GMES user requirements, the translation of these agreed user requirements into end-to-end system specifications for operational space missions and ground infrastructures needed by GMES and/or, as the operational agency of those GMES satellite missions that are compatible with the EUMETSAT Convention and are of interest to its Member States and that within GMES the objective of EUMETSAT shall be to develop direct relationships with the EC that result in agreements covering the role that EUMETSAT will play within GMES,

TAKING INTO ACCOUNT that the EUMETSAT Council approved in June 2004 Resolution EUM/C/04/Res. III, in which the EUMETSAT Member States defined the main aims of EUMETSAT’s involvement in GMES, the EUMETSAT contributions to the GMES objectives and to seek specifically for EUMETSAT the role of GMES operational agency,

TAKING INTO ACCOUNT Resolution EUM/C/57/05/Res. II adopted in July 2005, in which the EUMETSAT Member States tasked the Director-General to negotiate a framework agreement with the EC, in line with objectives and fields of cooperation defined by the EUMETSAT Council,

TAKING INTO ACCOUNT the decisions taken at the 64th and 67th EUMETSAT Council meetings in July 2008 and July 2009 to provide free access to all data, products and services from EUMETSAT satellites to the GMES Core Services, in the expectation that access to GMES data will be free of charge, on the understanding that each user within these services will sign a licence with EUMETSAT and subject to commitment from the European Union and national authorities to fund these Core services on a sustainable basis,

TAKING INTO ACCOUNT that EUMETSAT Member States agreed, at the 64th Council meeting in July 2008, on the approach for implementation of GMES Sentinels 4 and 5 on EUMETSAT satellites, including a contribution by EUMETSAT to accommodate these instruments on EUMETSAT satellites, and also to the EUMETSAT involvement in GMES Sentinel 3 activities,

TAKING INTO ACCOUNT Declaration EUM/C/67/09/Decl.I on the Optional EUMETSAT Jason-3 Altimetry Programme, adopted by Participating States at the 67th Council meeting in July 2009, which foresaw that the EU makes a financial contribution of MEUR 26,5 at 2009 e.c. during the operations phase of the Programme, and that this funding would be provided through the future GMES/Copernicus Programme,

TAKING INTO ACCOUNT Resolution EUM/C/70/10/Res. VIII, adopted in June 2010, in which the EUMETSAT Member States emphasized the potential benefits from establishing synergies with EUMETSAT in the operational phase of GMES and recalled the detailed list of activities that EUMETSAT could support,

RECALLING the establishment of the GMES Sentinel-3 Third Party Programme with ESA through Council Resolution EUM/C/67/09/Res. II, adopted by the EUMETSAT Council in July 2009,

RECALLING the approval by the 76th Council meeting in July 2012 of the PURE activity, in which EUMETSAT supports the EC in the consolidated of user requirements for the future GMES marine and atmosphere services, and the corresponding conclusion of a dedicated arrangement with the EC,

BEARING IN MIND that the EUMETSAT Council, at its 78th meeting in June 2013, unanimously adopted the Initiating Resolution EUM/C/78/13/Res. I for a Third Party Programme on EUMETSAT Activities in Support of Copernicus in the Period 2014-2020, thereby tasking the Director-General to draw up a full programme proposal and to prepare the necessary delegation agreement with the European Union, to be agreed by Council,

TAKING INTO ACCOUNT that the user communities for the Copernicus Services are coherent with the existing EUMETSAT user community and its objectives,

CONSIDERING that the current and planned EUMETSAT missions and facilities will support the implementation of the space component of Copernicus,

BEARING IN MIND that Article 2 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties,

RECALLING that Regulation (EU) No 377/2014 of the European Parliament and of the Council of the European Union of 3 April 2014 establishing the Copernicus Programme foresees that:

- The acronym “GMES” should be replaced by the name “Copernicus” in order to facilitate the communication with the public at large;
- The objective of Copernicus should be to provide accurate and reliable information in the field of environment and security tailored to the needs of users and supporting other Union’s policies, including cooperation with third countries and humanitarian aid;
- Copernicus includes a service component, ensuring delivery of information on atmosphere monitoring, marine environment monitoring, land monitoring and climate change, and a space component providing observations to these services, which are fully consistent with EUMETSAT’s objectives and activities;

- The data and information produced in the framework of the Copernicus programme should be made available to the users on a full, open and free-of-charge basis;
- EU has approved the budgetary framework for Copernicus activities in the period 2014-2020;
- The EC should have the overall responsibility for Copernicus;
- The EC may entrust operational tasks of the Copernicus space component to ESA and to EUMETSAT,

HAVING REGARD to the Programme Proposal for a Third Party Programme on EUMETSAT Activities in support of the implementation of the Copernicus Programme and related Resolution, contained in document EUM/C/81/14/DOC/02 REV3,

HAVING REGARD to the draft Agreement between the European Union and EUMETSAT on the Implementation of the Copernicus Programme Including the Transfer of Ownership of Certain Assets contained in document EUM/C/81/14/DOC/01 REV2,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

IN CONFORMITY with the Policy Principles for the Involvement of EUMETSAT in GMES Activities as endorsed by the EUMETSAT Council in June 2011,

AGREES:

- I** To establish a Copernicus Third Party Programme within the framework of the EUMETSAT Convention as described in the Programme Proposal on a Third Party Programme for EUMETSAT activities in support of the implementation of the Copernicus programme referred to in the Preamble.
- II** That the Copernicus Third Party Programme shall be carried out in accordance with the Agreement between the European Union and EUMETSAT on the Implementation of the Copernicus Programme Including the Transfer of Ownership of Certain Assets referred to in the Preamble.
- III** That activities foreseen by the Copernicus Third Party Programme are split in five Building Blocks, as defined in the Programme Proposal and the Agreement referred to in the Preamble.
- IV** That the maximum financial envelope of the Copernicus Third Party Programme, covering activities under the five Building Blocks, is M€250 at current economic conditions.
- V** That the cost for the implementation of the activities entrusted to EUMETSAT under Building Blocks 1 to 3, as defined in the Programme Proposal and the Agreement referred to in the Preamble, amounts to a maximum of M€229 at current economic conditions, and shall be fully covered by the European Union.

- VI** That the possible implementation by EUMETSAT of activities under Building Blocks 4 and 5, as defined in the Agreement, is subject to a request from the European Commission in accordance with a formal change management process laid down in the Agreement and requires additional funding from the European Union.
- VII** That the Director-General shall be entrusted to conclude exchange of letters as required to cover activities under Building Blocks 4 and 5 within the overall programme envelope of M€250, with the understanding that the direct contribution to the Copernicus Climate Change Monitoring Service foreseen under Building Block 4, as agreed with both the Service Provider (ECMWF) and the European Commission, will be submitted to Council for prior approval.
- VIII** That the Copernicus Third Party Programme shall enter into force upon signature of the Agreement referred to in Agree II.

DECLARATION ON
THE OPTIONAL EUMETSAT JASON-CS PROGRAMME
adopted by the Potential Participating States on 26 November 2014
and entered into force on¹

The Potential Participating States,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the Topex/Poseidon and Jason missions established by the Centre National d'Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) have proven the value of altimetry observations in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and the monitoring of the climate,

BEARING IN MIND that the requirement to continue these observations on a sustained operational basis and the recognition that EUMETSAT is the relevant European operational organisation led to the establishment of the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programmes through Declarations EUM/C/01/Decl.I and EUM/C/67/09/Decl.I,

RECALLING that, of the 30 EUMETSAT Member States, 25 participate in the Optional EUMETSAT Jason-2 Programme and 24 in the Optional EUMETSAT Jason-3 Programme,

CONSIDERING that the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme foresees that the Jason-3 Programme should be seen as a first intermediate step towards an operational high precision altimetry Jason-CS Programme to be agreed with ESA and that this Programme would consist of a series of Jason-class satellites based on the Cryosat mission heritage,

CONSIDERING further that the above Declaration tasked the Director-General to prepare with ESA and other international partners for a Jason-CS precise Altimetry Programme providing data continuity in a long term operational perspective on the basis of the EUMETSAT-ESA cooperation model successfully used for operational meteorology,

RECALLING that the EUMETSAT strategy "EUMETSAT: A global satellite operational agency at the heart of Europe" approved at the 72nd Council meeting foresees, as a strategic objective, to meet additional needs of EUMETSAT Member States for global space-based observations through International Cooperation and that, in this respect, in addition to their JPS Cooperation, EUMETSAT and NOAA shall also continue to work together to secure the continuation of precise ocean surface topography mapping, with the aim of building a sustainable operational satellite observation programme in this area, and that within Europe,

¹ Replaced by EUM/C/83/15/Dcl. I presented for adoption at the 83rd Council meeting on 23-24 June 2015.

appropriate relationships shall be constructed with the GMES initiative, which has now been renamed Copernicus.

RECALLING that the Agreement between the United States National Oceanic and Atmospheric Administration and EUMETSAT on long-term cooperation, signed on 28 August 2013, foresees continued cooperation on Operational Oceanography and preparation for the establishment and exploitation of the Jason Continuity of Services (Jason-CS) satellites (including, but not limited to, contribution to instrument payload, joint operations, sharing of ground infrastructures, common user services), in cooperation with other relevant international partners;

BEARING IN MIND that Regulation 377/2014 of the European Parliament and of the European Council of 3 April 2014 (“Copernicus Regulation”) establishes the European Union Earth observation and monitoring programme called “Copernicus”, thus ensuring continuity with the activities achieved under the Global Monitoring for Environment and Security (GMES) Programme;

TAKING INTO ACCOUNT that the Copernicus Regulation recognises that Copernicus services in the field of marine environment are important for the support of an integrated European capacity for ocean forecasting and monitoring and the future provision of Essential Climate Variables (ECVs) and further establishes that Copernicus marine monitoring service shall provide information on the state and dynamics of physical ocean and marine ecosystems for the global ocean and the European regional areas in support of marine safety, contribution to monitoring of waste flows, marine environmental, coastal and polar regions and of marine resources as well as meteorological forecasting and climate monitoring,

TAKING INTO ACCOUNT the requirement for sustained satellite ocean altimetry observations expressed by ECMWF, the WMO, the Global Ocean Data Assimilation Experiment (GODAE), the Global Ocean Observing System (GOOS), the Committee for Earth Observation Satellites (CEOS), the Intergovernmental Panel on Climate Change (IPCC),

BEARING IN MIND that the complete altimeter system requested by users consists of a Jason-class high precision ocean altimetry (HPOA) mission in non synchronous orbit as well as polar orbiting altimeter missions, forming altogether the Ocean Surface Topography Virtual Constellation of the Committee for Earth Observation Satellites (CEOS), and that the HPOA mission is required as a reference for cross-calibrating all other altimeter missions of the Constellation;

TAKING INTO ACCOUNT that, following the GMES Long Term Scenario, the European component of the complete altimeter system is to be realized in the context of Copernicus, through the combination of the Sentinel-3 marine mission and a Copernicus High Precision Ocean Altimetry (HPOA) activity comprising the operations of a Jason-3 and a Sentinel-6 mission, in cooperation with the US,

HAVING REGARD TO Resolution EUM/C/81/14/Res. I establishing a Third Party Programme on EUMETSAT Activities in Support of the Implementation of the Copernicus Programme in the Period 2014-2021 (“Copernicus Third Party Programme”),

HAVING REGARD TO the Agreement between the European Union and EUMETSAT on the Implementation of the Copernicus Programme Including the Transfer of Ownership of Certain Assets (“Copernicus Agreement”), signed on 7 November 2014 and entered into force on 1 January 2014, through which the EU entrusts to EUMETSAT the task of operating, *inter alia*, the Sentinel-3 marine mission, the Jason-3 mission and the Sentinel-6 mission implemented by two successive Jason-CS satellites

TAKING INTO ACCOUNT the successful launch of the Jason-2 satellite in June 2008 and the expected launch of the Jason-3 satellite in 2015, with operations planned until 2020,

CONSIDERING the requirements to ensure operational continuity to the reference high precision ocean altimetry mission beyond Jason-3,

AWARE that this continuity requires the availability of the first Jason-CS satellite ready for launch in 2020 to start implementing the Sentinel-6 mission, and anticipating that the combination of the Jason-3 and Sentinel-6 missions will provide data continuity until the 2030 timeframe, thus allowing the maximum synergy with the Sentinel-3 marine mission for the benefit of operational oceanography and other applications;

HAVING REGARD to the policy principles approved by the 74th EUMETSAT Council in November 2011, which define the boundaries of the EUMETSAT Jason-CS Programme as a contribution to the GMES HPOA activity,

BEARING IN MIND that Article 2 of the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT and agreed as such by Council,

HAVING REGARD to Resolution EUM/C/76/12/Res. III on the Preparation of a Jason Continuity of Service (Jason-CS) Optional Programme, in which Council agreed that the proposed programme is consistent with EUMETSAT’s objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

TAKING INTO ACCOUNT the Programme Proposal on the Optional EUMETSAT Jason-CS Programme contained in document EUM/C/82/14/DOC/53 REV1,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Resolution EUM/C/01/Res. I on the Approval of Optional Programmes,

AGREE:

- I** To establish an Optional EUMETSAT Jason-CS Programme within the framework of the EUMETSAT Convention as described in the EUMETSAT Jason-CS Programme Proposal referred to in the Preamble.
- II** That the Optional EUMETSAT Jason-CS Programme constitutes EUMETSAT’s direct contribution to the development and implementation of the Sentinel-6 mission, which will be carried out in partnership with ESA through its GMES Segment 3 Programme (CSC-3), the EU through its Copernicus Programme, and NOAA through its planned own Jason-CS programme.

- III** That the objectives of the Sentinel-6 mission, the description of the Sentinel-6/Jason-CS system and the scope of the Optional EUMETSAT Jason-CS Programme shall be as described in the Programme Definition attached as Annex I to this Declaration.
- IV** That the financial envelope for the Optional EUMETSAT Jason-CS Programme amounts to a maximum of MEUR 131.3 at 2015 e.c. (MEUR 125 at 2012 e.c.) and that all efforts shall be made to keep actual expenditure below this figure.
- V** That the Copernicus Third Party Programme and the Copernicus Agreement between the EU and EUMETSAT define the EU's funding for operations build-up and initial operations of the Sentinel-6 mission and that operations are expected to continue through follow-up agreements.
- VI** That EUMETSAT's contribution to the Sentinel-6 mission shall be defined in detail in cooperation agreements with ESA and NOAA.
- VII** That the conclusion of any agreement with the aforementioned partners will require separate approval by the EUMETSAT Council.
- VIII** To participate in the Optional EUMETSAT Jason-CS Programme in accordance with an indicative expenditure profile and the scale of contributions as set out in Annex II to this Declaration.
- IX** To invite the EUMETSAT Member States wishing to participate in this Optional Jason-CS Programme to sign this Declaration as soon as possible and no later than 30 June 2015, thereby becoming Participating States.
- X** To invite EUMETSAT Cooperating States to contribute to the Optional EUMETSAT Jason-CS Programme under terms to be agreed by the EUMETSAT Participating States.

This Declaration has been signed by the following Participating States:

PARTICIPATING STATES	DATE

OPTIONAL EUMETSAT JASON-CS PROGRAMME DEFINITION

1 INTRODUCTION

Capitalising on the success of the Topex-Poseidon and Jason missions on the heritage from the Jason-3, Cryosat-2 and Sentinel 3 programme, the Sentinel 6 mission is expected to continue and enhance the Jason, Jason-2 and Jason-3 missions in providing critical high precision observations of ocean surface topography, until 2030⁺.

In addition, the Sentinel-6 mission will take advantage of the unique time sampling of its non synchronous orbit, to provide radio occultation observations that are complementary to those provided by sun-synchronous missions.

The Sentinel-6 mission will be implemented by two successive Jason-CS satellites and will be developed and exploited in cooperation between Europe and the United States, through a partnership between the EU, ESA, EUMETSAT and the National Ocean and Atmosphere Administration (NOAA).

The overall European contribution to the development and implementation of the mission will be implemented through the combination of the ESA Copernicus Segment 3 programme (CSC-3), this EUMETSAT Jason-CS optional programme and the EU Copernicus programme. The latter will be associated to Delegations Agreements with ESA and EUMETSAT and the Delegation Agreement with EUMETSAT will be implemented through EUMETSAT Third Party Programmes covering contributions of the organisation to the EU Copernicus Programme.

The EUMETSAT optional Jason-CS Programme is the direct EUMETSAT contribution to the development and implementation of the Sentinel-6 mission.

2 SHARING OF RESPONSIBILITIES AND COSTS FOR THE DEVELOPMENT AND IMPLEMENTATION OF THE SENTINEL-6 MISSION

2.1 Sharing of technical responsibilities

The EU, ESA, NOAA and EUMETSAT have agreed the following high level sharing of responsibilities for the development and implementation of the Sentinel-6 mission:

- EUMETSAT is the system authority and is responsible for the Sentinel-6 ground segment development and operations preparation. EUMETSAT will also carry out the operations build up and operations of the Sentinel-6 system including both satellites and delivery of data services to Copernicus Service Providers and users on behalf of the EU;
- ESA is responsible for the development of the first satellite and the instruments prototype processors, for the procurement of the recurrent satellite on behalf of EUMETSAT and the EU, for the delivery of both satellites to orbit, including the LEOP services, and for satellite commissioning and storage of the recurrent spacecraft;

- NOAA delivers US payload instruments for both satellites, ground segment development support, provides both launch services and contributes to operations;
- ESA, EUMETSAT and NOAA share the responsibility of science teams' coordination and Calibration/Validation activities, with EC being involved in the interactions with the science teams.

In recognition of the vast expertise available in NASA and CNES, the partners will seek support from these agencies for system and ground segment activities and in the preparation and release of relevant Research Announcements.

2.2 Detailed EUMETSAT responsibilities

The detailed EUMETSAT responsibilities in the development and implementation of the Sentinel-6 mission are the following:

- Lead the overall Sentinel-6 system engineering with the support of other partners.
- Perform mission management during the lifetime of each satellite with support of other partners.
- Provide the command and control centre for the satellites and the MDA and TT&C European ground station (for command and data acquisition).
- Provide NRT data processing for altimetry data acquired by EUMETSAT ground station.
- Provide offline data processing for Topography and Radio Occultation mission.
- Provide Radio Occultation raw data acquired by the European ground station and any necessary ancillary data to NOAA.
- At the end of the LEOP phase, take over the operational responsibility for the satellites.
- Conduct commissioning and routine operation activities with the support of the partners.
- Exchange with NOAA all necessary data and products to fulfil responsibilities of the partners.
- Develop the operational processor in accordance with specifications and test data (generated by the prototype processor) deliver by ESA
- Deliver to NOAA the operational processors to support NOAA provision of NRT topography products.
- Provide dissemination of all NRT data (NOAA and EUMETSAT) and offline products.
- Provide a long-term archive of all NRT and offline data including telemetry, orbital and auxiliary data sets;
- Contribute together with the other partners to:
 - Ensuring the mission performance and related Calibration and Validation activities;
 - Support interactions with the scientific community and coordination of the science support activities, e.g. in the context of the international OSTST and of the Science Advisory Group to be established on the European side by ESA and EUMETSAT in coordination with the EC;
 - Support the preparation and release of relevant Research Announcements and the selection and coordination of Investigators.

2.3 Sharing of costs

As regards funding, the following has been agreed:

- ESA funds the development of the first Jason-CS satellite (JCS-A) implementing the Sentinel-6 mission, the related In Orbit Commissioning, LEOP service and instrument prototype processors delivered to EUMETSAT;
- EUMETSAT funds a fixed financial contribution to the ESA development of the first Jason-CS satellite (JCS-A), the development of the European part of the Sentinel-6 overall ground segment and operations preparation, and co-funds the procurement of the recurrent spacecraft with the EU;
- The EU funds the build-up of operations and operations for both spacecraft, the LEOP service and the storage for the recurrent spacecraft, and co-funds the recurrent spacecraft with EUMETSAT;
- NOAA funds both launch services and all US payload instruments, ground segment support and the US contribution to operations preparation and operations.

3 SENTINEL-6 MISSION: OBJECTIVES AND BENEFITS

3.1 Sentinel-6 mission objectives and data services

The primary observation mission of Sentinel-6 is high precision ocean altimetry (HPOA) aimed at monitoring sea surface height (SSH), significant wave height (SWH) and wind speed at the ocean surface.

The Sentinel 6 HPOA products shall be of sufficient accuracy and quality for Sentinel-6 to serve as the reference altimeter mission against which all altimeter missions coordinated under the Ocean Surface Topography Virtual Constellation of the Committee for Earth Observation Satellites (CEOS), e.g. Sentinel 3, SARAL/AltiKa, HY-2) can be cross-calibrated, such that their observations can be combined for monitoring the broadest possible spectrum of ocean variability and to provide inputs to operational ocean prediction models.

Furthermore, the Sentinel-3 and Sentinel-6 altimeter missions altogether need to sample mesoscale and sub-mesoscale ocean circulation features through the use altimeter SAR² mode capabilities, to fulfil the requirements of important applications in operational oceanography.

The highest quality of products is also needed for monitoring sea level rise at global and regional scales in our changing climate. This requires flying the same non-synchronous orbit as the Jason missions and places demanding requirements for extensive calibration and validation activities involving support from the radar altimetry science community. This also calls for high quality off-line products including highly accurate corrections that cannot be generated in near real time.

² Synthetic Aperture Radar

The Sentinel 6 altimeter mission shall also contribute to marine meteorology by providing significant wave height and wind speed products in near real-time.

These objectives of the Sentinel-6 altimeter mission will be fulfilled by three basic data services:

- Near Real Time service (NRT), with an end-to-end timeliness of 3 hours;
- Short Time Critical service (STC), with an end-to-end timeliness of 36 hours;
- Non-Time Critical service (NTC), with an end-to-end timeliness of 60 days.

As a secondary objective, the Sentinel 6 mission will support a radio occultation observation mission contributing to climate change monitoring and weather forecasting. This observation mission will provide unique coverage and sampling in space and time from the non-synchronous orbit that are not accessible from sun-synchronous orbits providing observations at fixed local solar times.

To maximise the number of occultations per day and thus contribute to the fulfilment of requirements expressed e.g. in the EGOS-IP³, the GNSS-RO instrument of Sentinel-6 needs to allow tracking of several GNSS constellations. Related products shall include bending angle, refractivity, and higher level profiles to infer information on atmospheric temperature and humidity.

For radio occultation, three services will be established:

- Near Real Time service (NRT), with an end-to-end timeliness of 3 hours.
- Two independent Non-Time Critical services (NTC), with an end-to-end timeliness of 60 days, for Climate applications and data quality monitoring (one US and one European NTC service).

The Sentinel 6 mission shall be operational, meaning that it shall meet the requirements of the operational Copernicus Marine Monitoring services and of other operational weather, marine and climate services. This leads to stringent requirements on availability, reliability, timely distribution of data products, support to the operational downstream information service providers, including reprocessing capabilities.

3.2 Expected benefits

The benefits of *operational oceanography* in the areas of marine safety, shipping, fisheries, off shore industry, marine renewable energy, management of marine environment and resources, represent a fraction of the “blue” economy which in the European Union represents a gross added value of around €500 billion per year and involves 5.4 million jobs.

With its Copernicus Programme, the European Union has taken the leadership in the development of operational oceanography in Europe, through the implementation of the Copernicus Marine Service via the MyOcean projects, and the implementation of Sentinel space missions required to feed these services with observations from space. In this regard, the contribution of the Sentinel 6 mission will be decisive, as the unique reference mission for

³ Implementation Plan for the Evolution of Global Observing Systems (EGOS-IP), WMO Integrated Global Observing System, Technical Report No. 2013 – 4

the virtual constellation of altimeter missions: it will not only deliver invaluable observations but also provide the basis for unified products that are needed by operational ocean models, thus leveraging substantial benefits for EU and EUMETSAT Member States, far beyond those of its capabilities considered in isolation.

The simultaneous observations of surface wind speed, sea state and surface currents delivered by Sentinel 6 will also benefit the increasing integration of real time operational oceanography and *marine meteorology*. In addition, the high resolution of the pioneering interleaved radar altimeter mode of Sentinel-6 will give access to sub-mesoscale features (small eddies) associated with the most energetic ocean currents.

This will enhance the benefits of both the marine forecasts delivered by the National Meteorological Services of the “marine” Member States of EUMETSAT and the ocean forecasts delivered by Copernicus.

In the area of *climate services* taken in the broadest sense, socio-economic benefits will first accrue from the sea level monitoring service delivered by Sentinel 6, through the extension up to 2030+ of the unique Climate Data Record accumulated since 1992 by the Topex-Poseidon and Jason missions. Also from a climate monitoring perspective, the Sentinel 6 radio occultation measurements will contribute to the assessment of the rate of the expected warming in the troposphere and cooling in the stratosphere.

4 SENTINEL-6/JASON-CS SYSTEM DESCRIPTION

The Sentinel 6 system consists of the following main elements:

- Space Segment;
- Overall Ground Segment;
- Launch service;
- LEOP.

4.1 Space Segment

The Sentinel 6 Space Segment consists of two successive Jason-CS satellites (A and B), based on the CryoSat-2 heritage platform, with some tailoring to specific needs of the Sentinel 6 mission.

The platforms will include the following subsystems:

- The structure;
- The thermal control subsystem;
- The propulsion subsystem;
- The attitude and control system (AOCS);
- The power subsystem;
- The data handling subsystem;
- The communications subsystem.

The Telemetry, Tracking & Command (TT&C) part of the communication subsystem will use S-band for uplink of telecommands and downlink of telemetry, while the payload data downlink will be in X band, as required to accommodate the data rate generated by the instrument payload.

The Jason-CS satellites will embark the following payload instruments:

- For the altimeter observation mission:
 - o A Ku/C band altimeter (Poseidon-4) developed and procured by ESA;
 - o A microwave radiometer (AMR-C) provided by NOAA;
 - o A GNSS receiver (GNSS-POD) developed and procured by ESA;
 - o A DORIS instrument developed and procured by ESA;
 - o A Laser Retroreflector Array (LRA) provided by NOAA
- For the radio-occultation observation mission:
 - o a radio occultation instrument (GNSS-RO) provided by NOAA.

The Jason-CS satellites will be designed for launch on a Falcon 9-class launcher and to be technically compatible with three potential US launch vehicles (Falcon-9, Atlas-4 and Antares).

The Space Segment also includes all necessary Ground Support Equipment (GSE) for satellite AIV, such as mechanical and electrical GSE's test facilities to support test and qualification of the satellites and specific tools used for system verification and validation, such as Radio Frequency suitcase.

4.2 Overall Ground Segment

The Sentinel 6 Overall Ground Segment (OGS) shared between EUMETSAT and NOAA will support all the ground functions required to meet the mission objectives and will be capable of supporting two Jason-CS satellites (A and B) in orbit.

The OGS include the following main components:

- Mission Control and Operations (MCO);
- Payload Data Acquisition and Processing (PDAP);
- Multi Mission Elements (MMEs).

The Mission Control and Operations system implements the following main functions:

- Spacecraft M&C;
- Flight Dynamics;
- Mission Planning.

The MCO will be supported by TT&C Stations, operating in S-band providing visibility of the satellites on average twice per day for reception of telemetry and commanding.

For *data acquisition*, the PDAP will include two Mission Data Acquisition (MDA) Stations receiving in X-band on-board recorded payload data once per orbit and forwarding data to the EUMETSAT MCC for processing and distribution.

For *processing*, the PDAP system will implement eight main functions:

- Ingest and Distribute Data;
- Extract and Consolidate Payload Data;
- Generate Level 0 (L0) Products;
- Generate Level 1 (L1) Products;
- Generate Level 2 Products;
- Aggregate and Reformat Data;
- Manage Processing;
- Monitor Production.

The overall PDAP will be supported on the European side by Precise Orbit Determination and production of Level 2P and Global Level 3 Products delivered as services by CNES and by the ROM SAF for L2 NTC product processing of radio occultation data and on the US side by NASA provided services.

The Multi Mission Elements (MMEs) are EUMETSAT operational facilities and common infrastructure already used by existing programmes, split in four groups:

- The Infrastructure (MME-INF) comprises building infrastructure in the Technical Infrastructure Building, control rooms in the main building, networks and storage systems.
- The Ground Segment Monitoring and Control (MME-MON) system provides a set of tools for monitoring the Ground Segment hardware and services, including analysis, reporting and product quality monitoring;
- The EUMETSAT Data Centre (MME-DAC) receives and archives data and products and provides data retrieval services, including on-line access, and user support functions;
- The Dissemination (MME-DISS) system provides a secure file transfer service through external network interfaces, and includes EUMETCast as the prime EUMETSAT near real time delivery service to end users;

In most cases, the re-use of the MMEs will require little modification other than to increase bandwidth and storage capacity.

The Sentinel 6 OGS functions will be implemented by physical elements located at different sites:

- The Mission Control Centre (MCC) at EUMETSAT Headquarters will host:
 - all Mission Control and Operations systems;
 - the main PDAP processing system for all L0, L1 and L2 products, except the processing of Level-2 NTC products provided by the ROM SAF;
- The Remote Mission Control Centre (RMCC), collocated with the EPS/EPS-SG RMCC will host a back up instance all Mission Control and Operations systems;
- The NOAA SOCC will host the US contributions to the Mission Control and Operations, a system for the Near Real Time processing of US-acquired data dumps and multi-mission facilities and services for delivering data and products to users in the US;
- The US Fairbanks site will host the NOAA Mission Data Acquisition antenna, and one of two NOAA Tracking, Telemetry and Command/Control antennas;

- The US Wallops site will host the second NOAA Tracking, Telemetry and Command/Control antenna;
- One high latitude site in Europe will host both the European Mission Data Acquisition antenna and the European Tracking, Telemetry and Command/Control antenna;
- CNES will host the altimeter product quality monitoring service, the POD service and Level 2P/Level 3 processing services;
- NASA/JPL will host the Performance monitoring service for US instruments;
- One TBD site will host the altimeter transponder service;
- UCAR/NOAA will host the Radio Occultation NRT service and one of the two independent NTC processing service;
- The Radio Occultation Meteorology Satellite Application Facility (ROM SAF) will host the Level -2 processing service supporting the second radio-occultation NTC service. As part of the future CDOPs, ROM-SAF may also provide other possible contributions including Level 4 gridded products for Climate monitoring.

4.3 Launch Services

The launch services are under the responsibility of NOAA and are inclusive, i.e. cover also launch site facilities and logistic services.

4.4 Launch and Early Operations Phase (LEOP)

ESA performs Launch and Early Orbit Phase (LEOP) operations for each satellite, until the handover to EUMETSAT.

5 DEPLOYMENT

Assuming a design lifetime of 5.5 years for each Jason-CS satellite - with consumables for another 2 years - both Jason-CS satellites will be launched in sequence:

- Jason-CS A end of 2020;
- Jason-CS B early 2026.

This will ensure that the Jason-3 and Sentinel-6 HPOA missions, combined, will have the same lifespan as the Sentinel 3 marine mission, thus enabling the combined use of their data by the marine user community.

6 SCOPE OF THE EUMETSAT JASON-CS PROGRAMME

The EUMETSAT optional Jason-CS Programme covers all activities contributing to the development and implementation of the Sentinel-6 mission that are under the direct responsibility of EUMETSAT, and/or funded by EUMETSAT.

From a technical and managerial point of view this covers mainly:

- Overall coordination with technical partners and with the European Commission;
- The role of System authority;

- System level activities, including system AIT and preparation of operations;
- The development of the European part of the Sentinel-6 overall ground segment, including related procurements and upgrades of existing EUMETSAT facilities;
- Support to ESA for space segment development, LEOP services and in orbit commissioning;
- Contributions to interactions with the user communities and the altimeter science community during the design and development phase of the Sentinel-6/Jason-CS system.

This excludes the build-up of operations and routine operations activities that are outside of the scope of the Optional EUMETSAT Jason-CS Programme.

From a financial perspective the programme covers funding of:

- The aforementioned technical and managerial activities;
- A fixed financial contribution to the ESA space development programme;
- Funding of the recurrent European instrument and the associated Data Handling system procured by ESA;
- Contribution to the funding of ESA internal costs related to its role of procurement agent for these recurrent elements;
- A management margin covering the risks associated to all activities within the scope of the Optional Jason-CS Programme.

EUMETSAT's fixed contribution to the development of the first satellite is MEUR 18.8 at 2015 e.c (MEUR 18 at 2012 e.c.).

The EUMETSAT contribution to cost of the recurrent satellite is MEUR 59.6 at 2015 e.c (MEUR 57 at 2012 e.c.) and covers:

- o The full industrial procurement cost of the European payload instruments and the related Data Handling unit;
- o A proportionate contribution to the ESA internal costs associated to its role of procurement agent for recurrent space segment elements.

The operations build up and routine operations activities that are outside the scope of the Jason-CS Programme will be performed as tasks entrusted by the EU to EUMETSAT under relevant Third Party Programmes funded by the EU Copernicus Programme under successive Multi-annual Financial Frameworks.

7 IMPLEMENTATION ARRANGEMENTS

7.1 Interactions with users and experts

The international Ocean Surface Topography Science Team will continue to serve as an international user to requirements for altimeter missions in general and related science matters.

A European Science Advisory Group will be established by ESA and EUMETSAT to support the development and implementation of the Sentinel-6 HPOA mission and European participation in the OSTST.

For the radio-occultation secondary mission, mechanisms will be established with UCAR and the SAF-ROM for the provision of appropriate science support.

EUMETSAT will address Sentinel-6 - relevant interactions with its user community through its Delegate Bodies, and support interactions with the relevant Copernicus Service Providers and users through the appropriate fora and mechanisms established by the European Commission.

7.2 Further decisions by Council

The MOU and Agreements foreseen in section 7.3 hereafter will be submitted for approval to Council, as foreseen by the Convention.

Proposed changes to the EURD and later on to the Operational Service Specification will be processed in coordination with the partners and the EC and submitted for approval by EUMETSAT Delegate Bodies.

Council will also make any decision required for the implementation of the Jason-CS Optional Programme, in particular foreseen EUMETSAT procurements, in line with the Convention.

7.3 Cooperation Framework

7.3.1 Three-partner MOU

A three-partner Memorandum of Understanding (MoU) between EUMETSAT, ESA and NOAA will be established to capture the respective responsibilities.

This MOU will inter alia establish the Joint Steering Group and the Project Plan integrating all contributions into a joint, unified high level planning and management framework addressing inter alia the Sentinel-6/Jason-CS development logic, detailed planning, review milestones, deliverables across partners, coordinated baseline documentation and joint management mechanisms. The MOU will capture applicable rules and legal arrangements applicable across the partners, and confirm the free and open data policy.

The European Commission, representing the EU, will be associated to the deliberations of the Joint Steering Group during the development phase and will become a full member in the operations phase.

The parties will use reasonable efforts to carry out their respective responsibilities in accordance with Project Plan, and to avoid changes that will have a negative effect on the other party with regard to scientific return, implementation approach, cost, and/or schedule. Where changes cannot be avoided they will be planned to minimise any negative effects, and all changes to the Project Plan that may impact costs, mission performance and schedule will require the approval of the JSG.

The MOU will not foresee any exchange of funds between the partners. EUMETSAT will ensure that it does not assume any financial liability for elements provided by other partners.

7.3.2 Cooperation with ESA

Considering the major roles of ESA at space segment level and EUMETSAT at system and overall ground segment levels, and the foreseen exchange of funds with ESA, a dedicated Cooperation agreement will be established.

As regards EUMETSAT's financial contributions, the Agreement will be based on principles similar to those adopted for cooperation on mandatory programmes, but will limit the financial contributions and liability of EUMETSAT to the cost of procurement of European recurrent instruments and the related Data Handling Unit.

This Agreement will refer to a Programme Implementation Plan addressing all detailed implementation arrangements between both organisations.

7.3.3 Cooperation with other partners

An agreement will be concluded between EUMETSAT and CNES for the provision of system level expertise support, as appropriate during the development phase, and for the integration of the services in the Sentinel-6 system and related support to EUMETSAT IV&V activities.

The provision of these services during the operations phase will also be secured by this agreement.

The agreement will also cover CNES participation in science support activities, including the preparation, release and implementation of relevant Research Announcements in cooperation with NASA.

8 DATA POLICY

The data policy for the Sentinel-6 mission shall be free and open, with no restriction, as is the case for the Jason-2 and Jason-3 missions.

**OPTIONAL EUMETSAT JASON-CS PROGRAMME FINANCIAL ENVELOPE,
SCALE OF CONTRIBUTIONS AND VOTING COEFFICIENT**

1 FINANCIAL ENVELOPE & INDICATIVE EXPENDITURE PROFILE

The financial envelope of the EUMETSAT Jason-CS Programme is estimated at MEUR 131.3 at 2015 e.c. (or MEUR 125 at 2012 e.c.) with the following indicative expenditure profile (in KEUR at 2015 e.c.):

2015	2016	2017	2018	2019	2020	2021	2022	2023	2024	2025	2026
100	24,650	36,940	25,380	23,600	12,400	2,240	880	900	1,650	1,960	600

2 SCALE OF CONTRIBUTIONS AND VOTING COEFFICIENT

The Participating States shall contribute to the EUMETSAT Jason-CS Programme in accordance with the scale of contributions indicated in the table below. This table also lays down the voting coefficient of each Participating State, pursuant to the scale of contributions, and taking into account Article 5.3(b) of the EUMETSAT Convention.

PARTICIPATING STATE	CONTRIBUTION %	VOTING COEFFICIENT
AUSTRIA (AU)		
BELGIUM (BE)		
CROATIA (HR)		
DENMARK (DK)		
FINLAND (FI)		
FRANCE (FR)		
GERMANY (DE)		
ITALY (IT)		
LUXEMBOURG (LU)		
THE NETHERLANDS (NL)		
NORWAY (NO)		
PORTUGAL (PT)		
SLOVAKIA (SK)		
SLOVENIA (SI)		
SWEDEN (SE)		
TURKEY (TR)		
SWITZERLAND (CH)		
UNITED KINGDOM (UK)		
TOTAL	100	100

RESOLUTION ON
THE AUTHORISATION TO PROCEED WITH THE EPS-SG PROGRAMME

adopted at the 82nd Meeting of the EUMETSAT Council on 26 November 2014

The EUMETSAT Member States,

CONSIDERING that the EUMETSAT Council, at its 80th meeting on 1 July 2014, agreed on the contents of the programme proposal for the EUMETSAT Polar System Second Generation (EPS-SG) as contained in document EUM/C/80/14/DOC/09,

CONSIDERING that the EUMETSAT Council, at its 80th meeting, agreed to open the voting of Resolution EUM/C/80/14/Res.I on the EPS-SG Programme,

NOTING that, although 23 of the 30 Member States have voted in favour of the EPS-SG Programme Resolution unconditionally, thus achieving a programme funding level of 72.93%, the votes of Belgium, Lithuania, Portugal, Romania, Slovenia, Spain and the United Kingdom are still to be confirmed,

NOTING that, due to the mandatory nature of the programme, the EPS-SG Programme Resolution will only formally enter into force upon approval by all Member States,

ANTICIPATING that the above Delegations expect to be able to confirm their votes within a short period of time,

RECOGNISING the need to start the full EPS-SG Programme activities from beginning of 2015 to avoid additional costs and programme risks,

AGREE:

- I** That the activities under the EPS-SG Programme can start as soon as 95% of the programme funding has been reached.
- II** That Belgium, Lithuania, Portugal, Romania, Slovenia, Spain and the United Kingdom will be legally obliged to contribute financially to the EPS-SG Programme only after finalisation of national approval procedures, and that their contributions will only become due 30 days after notification thereof.
- III** That in the EPS-SG Programme Budget 2015 an amount corresponding to the contributions from Belgium, Lithuania, Portugal, Romania, Slovenia, Spain and the United Kingdom remains blocked until the finalisation of national procedures has been notified to the Director-General.

- IV** To urge Belgium, Lithuania, Portugal, Romania, Slovenia, Spain and the United Kingdom to complete their respective national approval process as soon as possible, and at the latest by 30 June 2015.
- V** That if, contrary to expectations, Belgium, Lithuania, Portugal, Romania, Slovenia, Spain and the United Kingdom would not be in a position to confirm finalisation of national approval procedures by 30 June 2015 at the latest, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken.
- VI** To authorise the Director-General to provisionally apply the provisions of the Cooperation Agreements related to EPS-SG with ESA, NOAA, CNES and DLR approved by Council at its 80th meeting, pending signature of these Agreements after the EPS-SG Programme formally enters into force.

ENABLING RESOLUTION

ON THE OPTIONAL EUMETSAT JASON-CS PROGRAMME

adopted at the 82nd Meeting of the EUMETSAT Council on 26 November 2014⁴

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT agreed as such by Council,

HAVING REGARD to Resolution EUM/C/76/12/Res. III on the Preparation of a Jason Continuity of Services (Jason-CS) Optional Programme, in which Council agreed that the proposed Programme is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

HAVING REGARD to the Declaration EUM/C/82/14/Dcl. I and attached Programme Definition on the Optional EUMETSAT Jason-CS Programme adopted by interested Member States on 26 November 2014,

NOTING that any Member States shall have the opportunity to become a Participating State of the Optional EUMETSAT Jason-CS Programme through signature of the Declaration within the timeframe set out therein,

AWARE that the Optional EUMETSAT Jason-CS Programme will take effect once at least one third of all EUMETSAT Member States have declared their participation by signing the Declaration within the timeframe set out and the subscriptions of these Participating States have reached 90% of the total financial envelope,

IN CONFORMITY WITH Articles 3, 5 and 10 of the EUMETSAT Convention and with EUMETSAT Council Resolution EUM/C/01/Res. I on the Approval of Optional Programmes,

⁴ Replaced by EUM/C/83/15/Res. I adopted at the 83rd Council meeting on 23-24 June 2015.

AGREES:

- I** To approve the execution, within the framework of the EUMETSAT Convention, of the Optional EUMETSAT Jason-CS Programme on the basis of the Declaration and Programme Definition attached thereto referred to in paragraph four of the Preamble of this Resolution.
- II** To invite Participating States to sign the Declaration within the timeframe set out therein.
- III** To task the Director-General to prepare the necessary cooperation agreements with the international partners contributing to the overall Jason-CS/Sentinel-6 mission, to be submitted for Council approval.
- IV** To task the Director-General to execute the Optional EUMETSAT Jason-CS Programme in accordance with EUMETSAT's Rules and Procedures.

RESOLUTION ON
THE CEILING OF THE GENERAL BUDGET 2016-2020
adopted at the 82nd Meeting of the EUMETSAT Council on 26 November 2014

The EUMETSAT Member States,

HAVING REGARD to Article 2.3 of the EUMETSAT Convention, which establishes that the General Budget comprises activities not linked to a specific programme. They shall represent the basic technical and administrative infrastructure of EUMETSAT including core staff, buildings and equipment as well as preliminary activities authorised by the Council in preparation of future programmes, not yet approved,

RECALLING EUM/C/Res. XVIII establishing the first General Budget, a ceiling for the years 1990-1995 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/95/Res. VI establishing the second General Budget, a ceiling for the years 1996-2000 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/99/Res. V establishing the third General Budget, a ceiling for the years 2001-2005 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/57/05/Res. I establishing the fourth General Budget, a ceiling for the years 2006-2010 and contributions based on a GNI scale of contributions,

RECALLING EUM/C/67/09/Res. III establishing the fifth General Budget, a ceiling for the years 2011-2015 and contributions based on a GNI scale of contributions,

EXPRESSING the need to establish a new ceiling

AGREE:

- I** To fix a new ceiling of the General Budget for the years 2016-2020,
- II** To link this ceiling to contributions from Member States on a GNI scale,
- III** To limit these contributions to M€ 85.4 at 2015 economic conditions, including a Copernicus Risk Margin of M€ 1.0.

DECLARATION ON
THE OPTIONAL EUMETSAT JASON-CS PROGRAMME

adopted by the Potential Participating States on 23-24 June 2015
at the 83^d Meeting of EUMETSAT Council

The Potential Participating States,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the Topex/Poseidon and Jason missions established by the Centre National d'Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) have proven the value of altimetry observations in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and the monitoring of the climate,

BEARING IN MIND that the requirement to continue these observations on a sustained operational basis and the recognition that EUMETSAT is the relevant European operational organisation led to the establishment of the Optional EUMETSAT Jason-2 and Jason-3 Altimetry Programmes through Declarations EUM/C/01/Decl.I and EUM/C/67/09/Decl.I,

RECALLING that, of the 30 EUMETSAT Member States, 25 participate in the Optional EUMETSAT Jason-2 Programme and 24 in the Optional EUMETSAT Jason-3 Programme,

CONSIDERING that the Declaration on the Optional EUMETSAT Jason-3 Altimetry Programme foresees that the Jason-3 Programme should be seen as a first intermediate step towards an operational high precision altimetry Jason-CS Programme to be agreed with ESA and that this Programme would consist of a series of Jason-class satellites based on the Cryosat mission heritage,

CONSIDERING further that the above Declaration tasked the Director-General to prepare with ESA and other international partners for a Jason-CS precise Altimetry Programme providing data continuity in a long term operational perspective on the basis of the EUMETSAT-ESA cooperation model successfully used for operational meteorology,

RECALLING that the EUMETSAT strategy "EUMETSAT: A global satellite operational agency at the heart of Europe" approved at the 72nd Council meeting foresees, as a strategic objective, to meet additional needs of EUMETSAT Member States for global space-based observations through International Cooperation and that, in this respect, in addition to their JPS Cooperation, EUMETSAT and NOAA shall also continue to work together to secure the continuation of precise ocean surface topography mapping, with the aim of building a sustainable operational satellite observation programme in this area, and that within Europe, appropriate relationships shall be constructed with the GMES initiative, which has now been renamed Copernicus,

RECALLING that the Agreement between the United States National Oceanic and Atmospheric Administration and EUMETSAT on long-term cooperation, signed on 28 August 2013, foresees continued cooperation on Operational Oceanography and preparation for the establishment and exploitation of the Jason Continuity of Services (Jason-CS) satellites (including, but not limited to, contribution to instrument payload, joint operations, sharing of ground infrastructures, common user services), in cooperation with other relevant international partners,

BEARING IN MIND that Regulation 377/2014 of the European Parliament and of the European Council of 3 April 2014 (“Copernicus Regulation”) establishes the European Union Earth observation and monitoring programme called “Copernicus”, thus ensuring continuity with the activities achieved under the Global Monitoring for Environment and Security (GMES) Programme,

TAKING INTO ACCOUNT that the Copernicus Regulation recognises that Copernicus services in the field of marine environment are important for the support of an integrated European capacity for ocean forecasting and monitoring and the future provision of Essential Climate Variables (ECVs) and further establishes that Copernicus marine monitoring service shall provide information on the state and dynamics of physical ocean and marine ecosystems for the global ocean and the European regional areas in support of marine safety, contribution to monitoring of waste flows, marine environmental, coastal and polar regions and of marine resources as well as meteorological forecasting and climate monitoring,

TAKING INTO ACCOUNT the requirement for sustained satellite ocean altimetry observations expressed by ECMWF, the WMO, the Global Ocean Data Assimilation Experiment (GODAE), the Global Ocean Observing System (GOOS), the Committee for Earth Observation Satellites (CEOS), the Intergovernmental Panel on Climate Change (IPCC),

BEARING IN MIND that the complete altimeter system requested by users consists of a Jason-class high precision ocean altimetry (HPOA) mission in non synchronous orbit as well as polar orbiting altimeter missions, forming altogether the Ocean Surface Topography Virtual Constellation of the Committee for Earth Observation Satellites (CEOS), and that the HPOA mission is required as a reference for cross-calibrating all other altimeter missions of the Constellation,

TAKING INTO ACCOUNT that, following the GMES Long Term Scenario, the European component of the complete altimeter system is to be realized in the context of Copernicus, through the combination of the Sentinel-3 marine mission and a Copernicus High Precision Ocean Altimetry (HPOA) activity comprising the operations of a Jason-3 and a Sentinel-6 mission, in cooperation with the US,

HAVING REGARD TO Resolution EUM/C/81/14/Res. I establishing a Third Party Programme on EUMETSAT Activities in Support of the Implementation of the Copernicus Programme in the Period 2014-2021 (“Copernicus Third Party Programme”),

HAVING REGARD TO the Agreement between the European Union and EUMETSAT on the Implementation of the Copernicus Programme Including the Transfer of Ownership of Certain Assets (“Copernicus Agreement”), signed on 7 November 2014 and entered into force on 1 January 2014, through which the EU entrusts to EUMETSAT the task of operating, *inter alia*, the Sentinel-3 marine mission, the Jason-3 mission and the Sentinel-6 mission implemented by two successive Jason-CS satellites,

TAKING INTO ACCOUNT the successful launch of the Jason-2 satellite in June 2008 and the expected launch of the Jason-3 satellite in 2015, with operations planned until 2020,

CONSIDERING the requirements to ensure operational continuity to the reference high precision ocean altimetry mission beyond Jason-3,

AWARE that this continuity requires the availability of the first Jason-CS satellite ready for launch in 2020 to start implementing the Sentinel-6 mission, and anticipating that the combination of the Jason-3 and Sentinel-6 missions will provide data continuity until the 2030 timeframe, thus allowing the maximum synergy with the Sentinel-3 marine mission for the benefit of operational oceanography and other applications,

HAVING REGARD to the policy principles approved by the 74th EUMETSAT Council in November 2011, which define the boundaries of the EUMETSAT Jason-CS Programme as a contribution to the GMES HPOA activity,

BEARING IN MIND that Article 2 of the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT and agreed as such by Council,

HAVING REGARD to Resolution EUM/C/76/12/Res. III on the Preparation of a Jason Continuity of Service (Jason-CS) Optional Programme, in which Council agreed that the proposed programme is consistent with EUMETSAT’s objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

TAKING INTO ACCOUNT the Programme Proposal on the Optional EUMETSAT Jason-CS Programme contained in document EUM/C/82/14/DOC/53 REV4,

IN CONFORMITY with Articles 3, 5 and 10 of the EUMETSAT Convention, and with EUMETSAT Resolution EUM/C/01/Res. I on the Approval of Optional Programmes,

AGREE:

- I** To establish an Optional EUMETSAT Jason-CS Programme within the framework of the EUMETSAT Convention as described in the EUMETSAT Jason-CS Programme Proposal referred to in the Preamble.
- II** That the Optional EUMETSAT Jason-CS Programme constitutes EUMETSAT’s direct contribution to the development and implementation of the Sentinel-6 mission, which will be carried out in partnership with ESA through its GMES Space Component Programme Segment 3 (GSC-3), the EU through its Copernicus Programme, and NASA through its planned own Jason-CS programme.

- III** That the objectives of the Sentinel-6 mission, the description of the Sentinel-6/Jason-CS system and the scope of the Optional EUMETSAT Jason-CS Programme shall be as described in the Programme Definition attached as Annex I to this Declaration.
- IV** That the financial envelope for the Optional EUMETSAT Jason-CS Programme amounts to a maximum of MEUR 111.0 at 2015 e.c. (MEUR 104.6 at 2012 e.c.) and that all efforts shall be made to keep actual expenditure below this figure.
- V** That the Copernicus Third Party Programme and the Copernicus Agreement between the EU and EUMETSAT define the EU's funding for operations build-up and initial operations of the Sentinel-6 mission and that operations are expected to continue through follow-up agreements.
- VI** That EUMETSAT's contribution to the Sentinel-6 mission shall be defined in detail in cooperation agreements with ESA and NASA.
- VII** That the conclusion of any agreement with the aforementioned partners will require separate approval by the EUMETSAT Council.
- VIII** To participate in the Optional EUMETSAT Jason-CS Programme in accordance with an indicative expenditure profile and the scale of contributions as set out in Annex II to this Declaration.
- IX** To invite the EUMETSAT Member States wishing to participate in this Optional Jason-CS Programme to sign this Declaration as soon as possible and no later than 10 September 2015, thereby becoming Participating States.
- X** To invite EUMETSAT Cooperating States to contribute to the Optional EUMETSAT Jason-CS Programme under terms to be agreed by the EUMETSAT Participating States.
- XI** To replace the Declaration on the Optional EUMETSAT Jason-CS Programme (EUM/C/82/14/Dcl.I) and the associated Programme Definition annexed thereto, unanimously adopted by Potential Participating States at the 82nd Council meeting on 26 November 2014, with the present Declaration and associated Programme Definition.

This Declaration has been signed by the following Participating States:

PARTICIPATING STATES	DATE

OPTIONAL EUMETSAT JASON-CS PROGRAMME DEFINITION

1 INTRODUCTION

Capitalising on the success of the Topex-Poseidon and Jason missions on the heritage from the Jason-3, Cryosat-2 and Sentinel-3 programme, the Sentinel-6 mission is expected to continue and enhance the Jason, Jason-2 and Jason-3 missions in providing critical high precision observations of ocean surface topography, until 2030⁺.

In addition, the Sentinel-6 mission will take advantage of the unique time sampling of its non synchronous orbit, to provide radio occultation observations that are complementary to those provided by sun-synchronous missions.

The Sentinel-6 mission will be implemented by two successive Jason-CS satellites and will be developed and exploited in cooperation between Europe and the United States, through a partnership between the EU, ESA, EUMETSAT and the National Aeronautics and Space Administration (NASA).

The overall European contribution to the development and implementation of the mission will be implemented through the combination of the ESA GMES Space Component Programme Segment 3 (GSC-3), this EUMETSAT Optional Jason-CS Programme and the EU Copernicus programme. The latter will be associated to Delegations Agreements with ESA and EUMETSAT. The Delegation Agreement with EUMETSAT will be implemented through EUMETSAT Third Party Programmes covering contributions of the organisation to the EU Copernicus Programme.

The EUMETSAT Optional Jason-CS Programme is the direct EUMETSAT contribution to the development and implementation of the Sentinel-6 mission.

2 SHARING OF RESPONSIBILITIES AND COSTS FOR THE DEVELOPMENT AND IMPLEMENTATION OF THE SENTINEL-6 MISSION

2.1 Sharing of technical responsibilities

The EU, ESA, NASA and EUMETSAT have agreed the following high level sharing of responsibilities for the development and implementation of the Sentinel-6 mission:

- EUMETSAT is the system authority and is responsible for the Sentinel-6 ground segment development and operations preparation. EUMETSAT will also carry out the operations build up and operations of the Sentinel-6 system including both satellites and delivery of data services to Copernicus Service Providers and users on behalf of the EU;
- ESA is responsible for the development of the first satellite and the instruments prototype processors, for the procurement of the recurrent satellite on behalf of EUMETSAT and the EU, for the delivery of both satellites to orbit, including the LEOP services, and for satellite commissioning and storage of the recurrent spacecraft;

- NASA delivers US payload instruments for both satellites, ground segment development support, provides both launch services and contributes to operations;
- ESA, EUMETSAT and NASA share the responsibility of science teams' coordination and Calibration/Validation activities, with EC being involved in the interactions with the science teams.

In recognition of the vast expertise available in CNES, the partners will seek support from CNES for system and ground segment activities and in the preparation and release of relevant Research Announcements.

2.2 Detailed EUMETSAT responsibilities

The detailed EUMETSAT responsibilities in the development and implementation of the Sentinel-6 mission are the following:

- Lead the overall Sentinel-6 system engineering with the support of other partners.
- Perform mission management during the lifetime of each satellite with support of other partners.
- Provide the command and control centre for the satellites and the MDA and TT&C European ground station (for command and data acquisition).
- Provide NRT data processing for altimetry data acquired by EUMETSAT ground station.
- Provide offline data processing for Topography and Radio Occultation mission.
- Provide Radio Occultation raw data acquired by the European ground station and any necessary ancillary data to NASA/NOAA.
- At the end of the LEOP phase, take over the operational responsibility for the satellites.
- Conduct commissioning and routine operation activities with the support of the partners.
- Exchange with NASA all necessary data and products to fulfil responsibilities of the partners.
- Develop the operational processor in accordance with specifications and test data (generated by the prototype processor) deliver by ESA
- Deliver to NASA the operational processors to support NOAA provision of NRT topography products.
- Provide dissemination of all NRT data (NOAA and EUMETSAT) and offline products.
- Provide a long-term archive of all NRT and offline data including telemetry, orbital and auxiliary data sets;
- Contribute together with the other partners to:
 - Ensuring the mission performance and related Calibration and Validation activities;
 - Support interactions with the scientific community and coordination of the science support activities, e.g. in the context of the international OSTST and of the Science Advisory Group to be established on the European side by ESA and EUMETSAT in coordination with the EC;
 - Support the preparation and release of relevant Research Announcements and the selection and coordination of Investigators.

2.3 Sharing of costs

As regards funding, the following has been agreed:

- ESA funds the development of the first Jason-CS satellite (JCS-A) implementing the Sentinel-6 mission, the related In Orbit Commissioning, LEOP service and instrument prototype processors delivered to EUMETSAT;
- EUMETSAT funds a fixed financial contribution to the ESA development of the first Jason-CS satellite (JCS-A), the development of the European part of the Sentinel-6 overall ground segment and operations preparation, and co-funds the procurement of the recurrent spacecraft with the EU;
- The EU funds the build-up of operations and operations for both spacecraft, the LEOP service and the storage for the recurrent spacecraft, and co-funds the recurrent spacecraft with EUMETSAT;
- NASA funds both launch services and all US payload instruments, ground segment support and the US contribution to operations preparation and operations.

3 SENTINEL-6 MISSION: OBJECTIVES AND BENEFITS

3.1 Sentinel-6 mission objectives and data services

The primary observation mission of Sentinel-6 is high precision ocean altimetry (HPOA) aimed at monitoring sea surface height (SSH), significant wave height (SWH) and wind speed at the ocean surface.

The Sentinel-6 HPOA products shall be of sufficient accuracy and quality for Sentinel-6 to serve as the reference altimeter mission against which all altimeter missions coordinated under the Ocean Surface Topography Virtual Constellation of the Committee for Earth Observation Satellites (CEOS), e.g. Sentinel-3, SARAL/AltiKa, HY-2) can be cross-calibrated, such that their observations can be combined for monitoring the broadest possible spectrum of ocean variability and to provide inputs to operational ocean prediction models.

Furthermore, the Sentinel-3 and Sentinel-6 altimeter missions altogether need to sample mesoscale and sub-mesoscale ocean circulation features through the use altimeter SAR¹ mode capabilities, to fulfil the requirements of important applications in operational oceanography.

The highest quality of products is also needed for monitoring sea level rise at global and regional scales in our changing climate. This requires flying the same non-synchronous orbit as the Jason missions and places demanding requirements for extensive calibration and validation activities involving support from the radar altimetry science community. This also calls for high quality off-line products including highly accurate corrections that cannot be generated in near real time.

¹ Synthetic Aperture Radar

The Sentinel-6 altimeter mission shall also contribute to marine meteorology by providing significant wave height and wind speed products in near real-time.

These objectives of the Sentinel-6 altimeter mission will be fulfilled by three basic data services:

- Near Real Time service (NRT), with an end-to-end timeliness of 3 hours;
- Short Time Critical service (STC), with an end-to-end timeliness of 36 hours;
- Non-Time Critical service (NTC), with an end-to-end timeliness of 60 days.

As a secondary objective, the Sentinel-6 mission will support a radio occultation observation mission contributing to climate change monitoring and weather forecasting. This observation mission will provide unique coverage and sampling in space and time from the non-synchronous orbit that are not accessible from sun-synchronous orbits providing observations at fixed local solar times.

To maximise the number of occultations per day and thus contribute to the fulfilment of requirements expressed e.g. in the EGOS-IP², the GNSS-RO instrument of Sentinel-6 needs to allow tracking of several GNSS constellations. Related products shall include bending angle, refractivity, and higher level profiles to infer information on atmospheric temperature and humidity.

For radio occultation, three services will be established:

- Near Real Time service (NRT), with an end-to-end timeliness of 3 hours.
- Two independent Non-Time Critical services (NTC), with an end-to-end timeliness of 60 days, for Climate applications and data quality monitoring (one US and one European NTC service).

The Sentinel-6 mission shall be operational, meaning that it shall meet the requirements of the operational Copernicus Marine Monitoring services and of other operational weather, marine and climate services. This leads to stringent requirements on availability, reliability, timely distribution of data products, support to the operational downstream information service providers, including reprocessing capabilities.

3.2 Expected benefits

The benefits of *operational oceanography* in the areas of marine safety, shipping, fisheries, off shore industry, marine renewable energy, management of marine environment and resources, represent a fraction of the “blue” economy which in the European Union represents a gross added value of around €500 billion per year and involves 5.4 million jobs.

With its Copernicus Programme, the European Union has taken the leadership in the development of operational oceanography in Europe, through the implementation of the Copernicus Marine Service via the MyOcean projects, and the implementation of Sentinel space missions required to feed these services with observations from space. In this regard, the contribution of the Sentinel-6 mission will be decisive, as the unique reference mission for

² Implementation Plan for the Evolution of Global Observing Systems (EGOS-IP), WMO Integrated Global Observing System, Technical Report No. 2013 – 4

the virtual constellation of altimeter missions: it will not only deliver invaluable observations but also provide the basis for unified products that are needed by operational ocean models, thus leveraging substantial benefits for EU and EUMETSAT Member States, far beyond those of its capabilities considered in isolation.

The simultaneous observations of surface wind speed, sea state and surface currents delivered by Sentinel-6 will also benefit the increasing integration of real time operational oceanography and *marine meteorology*. In addition, the high resolution of the pioneering interleaved radar altimeter mode of Sentinel-6 will give access to sub-mesoscale features (small eddies) associated with the most energetic ocean currents.

This will enhance the benefits of both the marine forecasts delivered by the National Meteorological Services of the “marine” Member States of EUMETSAT and the ocean forecasts delivered by Copernicus.

In the area of *climate services* taken in the broadest sense, socio-economic benefits will first accrue from the sea level monitoring service delivered by Sentinel-6, through the extension up to 2030+ of the unique Climate Data Record accumulated since 1992 by the Topex-Poseidon and Jason missions. Also from a climate monitoring perspective, the Sentinel-6 radio occultation measurements will contribute to the assessment of the rate of the expected warming in the troposphere and cooling in the stratosphere.

4 SENTINEL-6/JASON-CS SYSTEM DESCRIPTION

The Sentinel-6 system consists of the following main elements:

- Space Segment;
- Overall Ground Segment;
- Launch service;
- LEOP.

4.1 Space Segment

The Sentinel-6 Space Segment consists of two successive Jason-CS satellites (A and B), based on the CryoSat-2 heritage platform, with some tailoring to specific needs of the Sentinel-6 mission.

The platforms will include the following subsystems:

- The structure;
- The thermal control subsystem;
- The propulsion subsystem;
- The attitude and control system (AOCS);
- The power subsystem;
- The data handling subsystem;
- The communications subsystem.

The Telemetry, Tracking & Command (TT&C) part of the communication subsystem will use S-band for uplink of telecommands and downlink of telemetry, while the payload data downlink will be in X band, as required to accommodate the data rate generated by the instrument payload.

The Jason-CS satellites will embark the following payload instruments:

- For the altimeter observation mission:
 - o A Ku/C band altimeter (Poseidon-4) developed and procured by ESA;
 - o A microwave radiometer (AMR-C) provided by NASA;
 - o A GNSS receiver (GNSS-POD) developed and procured by ESA;
 - o A DORIS instrument developed and procured by ESA;
 - o A Laser Retroreflector Array (LRA) provided by NASA
- For the radio-occultation observation mission:
 - o a radio occultation instrument (GNSS-RO) provided by NASA.

The Jason-CS satellites will be designed for launch on a Falcon 9-class launcher and to be technically compatible with three potential US launch vehicles (Falcon-9, Atlas-4 and Antares).

The Space Segment also includes all necessary Ground Support Equipment (GSE) for satellite AIV, such as mechanical and electrical GSE's test facilities to support test and qualification of the satellites and specific tools used for system verification and validation, such as Radio Frequency suitcase.

4.2 Overall Ground Segment

The Sentinel-6 Overall Ground Segment (OGS) shared between EUMETSAT and NASA/NOAA will support all the ground functions required to meet the mission objectives and will be capable of supporting two Jason-CS satellites (A and B) in orbit.

The OGS include the following main components:

- Mission Control and Operations (MCO);
- Payload Data Acquisition and Processing (PDAP);
- Multi Mission Elements (MMEs).

The Mission Control and Operations system implements the following main functions:

- Spacecraft M&C;
- Flight Dynamics;
- Mission Planning.

The MCO will be supported by TT&C Stations, operating in S-band providing visibility of the satellites on average twice per day for reception of telemetry and commanding.

For *data acquisition*, the PDAP will include two Mission Data Acquisition (MDA) Stations receiving in X-band on-board recorded payload data once per orbit and forwarding data to the EUMETSAT MCC for processing and distribution.

For *processing*, the PDAP system will implement eight main functions:

- Ingest and Distribute Data;
- Extract and Consolidate Payload Data;
- Generate Level 0 (L0) Products;
- Generate Level 1 (L1) Products;
- Generate Level 2 Products;
- Aggregate and Reformat Data;
- Manage Processing;
- Monitor Production.

The overall PDAP will be supported on the European side by Precise Orbit Determination and production of Level 2P and Global Level 3 Products delivered as services by CNES and by the ROM SAF for L2 NTC product processing of radio occultation data and on the US side by NASA provided services.

The Multi Mission Elements (MMEs) are EUMETSAT operational facilities and common infrastructure already used by existing programmes, split in four groups:

- The Infrastructure (MME-INF) comprises building infrastructure in the Technical Infrastructure Building, control rooms in the main building, networks and storage systems;
- The Ground Segment Monitoring and Control (MME-MON) system provides a set of tools for monitoring the Ground Segment hardware and services, including analysis, reporting and product quality monitoring;
- The EUMETSAT Data Centre (MME-DAC) receives and archives data and products and provides data retrieval services, including on-line access, and user support functions;
- The Dissemination (MME-DISS) system provides a secure file transfer service through external network interfaces, and includes EUMETCast as the prime EUMETSAT near real time delivery service to end users.

In most cases, the re-use of the MMEs will require little modification other than to increase bandwidth and storage capacity.

The Sentinel-6 OGS functions will be implemented by physical elements located at different sites:

- The Mission Control Centre (MCC) at EUMETSAT Headquarters will host:
 - all Mission Control and Operations systems;
 - the main PDAP processing system for all L0, L1 and L2 products, except the processing of Level-2 NTC products provided by the ROM SAF;
- The Remote Mission Control Centre (RMCC), collocated with the EPS/EPS-SG RMCC will host a back up instance all Mission Control and Operations systems;
- The NOAA SOCC will host the US contributions to the Mission Control and Operations, a system for the Near Real Time processing of US-acquired data dumps and multi-mission facilities and services for delivering data and products to users in the US;
- The US Fairbanks site will host the NOAA Mission Data Acquisition antenna, and one of two NOAA Tracking, Telemetry and Command/Control antennas;

- The US Wallops site will host the second NOAA Tracking, Telemetry and Command/Control antenna;
- One high latitude site in Europe will host both the European Mission Data Acquisition antenna and the European Tracking, Telemetry and Command/Control antenna;
- CNES will host the altimeter product quality monitoring service, the POD service and Level 2P/Level 3 processing services;
- NASA/JPL will host the Performance monitoring service for US instruments;
- One TBD site will host the altimeter transponder service;
- UCAR/NOAA will host the Radio Occultation NRT service and one of the two independent NTC processing service;
- The Radio Occultation Meteorology Satellite Application Facility (ROM SAF) will host the Level-2 processing service supporting the second radio-occultation NTC service. As part of the future CDOPs, ROM-SAF may also provide other possible contributions including Level 4 gridded products for Climate monitoring.

4.3 Launch Services

The launch services are under the responsibility of NASA and are inclusive, i.e. cover also launch site facilities and logistic services.

4.4 Launch and Early Operations Phase (LEOP)

ESA performs Launch and Early Orbit Phase (LEOP) operations for each satellite, until the handover to EUMETSAT.

5 DEPLOYMENT

Assuming a design lifetime of 5.5 years for each Jason-CS satellite - with consumables for another 2 years - both Jason-CS satellites will be launched in sequence:

- Jason-CS A end of 2020;
- Jason-CS B early 2026.

This will ensure that the Jason-3 and Sentinel-6 HPOA missions, combined, will have the same lifespan as the Sentinel 3 marine mission, thus enabling the combined use of their data by the marine user community.

6 SCOPE OF THE EUMETSAT OPTIONAL JASON-CS PROGRAMME

The EUMETSAT Optional Jason-CS Programme covers all activities contributing to the development and implementation of the Sentinel-6 mission that are under the direct responsibility of EUMETSAT, and/or funded by EUMETSAT.

From a technical and managerial point of view this covers mainly:

- Overall coordination with technical partners and with the European Commission;
- The role of System authority;
- System level activities, including system AIT and preparation of operations;

- The development of the European part of the Sentinel-6 overall ground segment, including related procurements and upgrades of existing EUMETSAT facilities;
- Support to ESA for space segment development, LEOP services and in orbit commissioning;
- Contributions to interactions with the user communities and the altimeter science community during the design and development phase of the Sentinel-6/Jason-CS system.

This excludes the build-up of operations and routine operations activities that are outside of the scope of the EUMETSAT Optional Jason-CS Programme.

From a financial perspective the Programme covers funding of:

- The aforementioned technical and managerial activities;
- A fixed financial contribution to the ESA space development programme;
- Funding of the recurrent altimeter and Doris instruments procured by ESA;
- Contribution to the funding of ESA internal costs related to its role of procurement agent for the recurrent altimeter and Doris instruments;
- A management margin covering the risks associated to all activities within the scope of the Optional Jason-CS Programme.

EUMETSAT's fixed contribution to the development of the first satellite is MEUR 18.8 at 2015 e.c (MEUR 18 at 2012 e.c.).

The EUMETSAT contribution to the cost of the recurrent satellite is MEUR 40.3 at 2015 e.c (MEUR 37.5 at 2012 e.c.) and covers:

- o The full industrial procurement cost of the recurrent altimeter and Doris instruments;
- o A proportionate contribution to the ESA internal costs associated to its role of procurement agent for the recurrent altimeter and Doris instruments.

The operations build up and routine operations activities that are outside the scope of the Jason-CS Programme will be performed as tasks entrusted by the EU to EUMETSAT under relevant Third Party Programmes funded by the EU Copernicus Programme under successive Multi-annual Financial Frameworks.

7 IMPLEMENTATION ARRANGEMENTS

7.1 Interactions with users and experts

The international Ocean Surface Topography Science Team will continue to serve as an international user to requirements for altimeter missions in general and related science matters.

A European Science Advisory Group will be established by ESA and EUMETSAT to support the development and implementation of the Sentinel-6 HPOA mission and European participation in the OSTST.

For the radio-occultation secondary mission, mechanisms will be established with UCAR and the SAF-ROM for the provision of appropriate science support.

EUMETSAT will address Sentinel-6 - relevant interactions with its user community through its Delegate Bodies, and support interactions with the relevant Copernicus Service Providers and users through the appropriate fora and mechanisms established by the European Commission.

7.2 Further decisions by Council

The MOU and Agreements foreseen in section 7.3 hereafter will be submitted for approval to Council, as foreseen by the Convention.

Proposed changes to the EURD and later on to the Operational Service Specification will be processed in coordination with the partners and the EC and submitted for approval by EUMETSAT Delegate Bodies.

Council will also make any decision required for the implementation of the Optional Jason-CS Programme, in particular foreseen EUMETSAT procurements, in line with the Convention.

7.3 Cooperation Framework

7.3.1 Three-partner MOU

A three-partner Memorandum of Understanding (MoU) between EUMETSAT, ESA and NASA will be established to capture the respective responsibilities.

This MOU will inter alia establish the Joint Steering Group (JSG) and the Project Plan integrating all contributions into a joint, unified high level planning and management framework addressing inter alia the Sentinel-6/Jason-CS development logic, detailed planning, review milestones, deliverables across partners, coordinated baseline documentation and joint management mechanisms. The MOU will capture applicable rules and legal arrangements applicable across the partners, and confirm the free and open data policy.

The European Commission, representing the EU, will be associated to the deliberations of the JSG during the development phase and will become a full member in the operations phase.

The parties will use reasonable efforts to carry out their respective responsibilities in accordance with Project Plan, and to avoid changes that will have a negative effect on the other party with regard to scientific return, implementation approach, cost, and/or schedule. Where changes cannot be avoided they will be planned to minimise any negative effects, and all changes to the Project Plan that may impact costs, mission performance and schedule will require the approval of the JSG.

The MOU will not foresee any exchange of funds between the partners. EUMETSAT will ensure that it does not assume any financial liability for elements provided by other partners.

7.3.2 Cooperation with ESA

Considering the major roles of ESA at space segment level and EUMETSAT at system and overall ground segment levels, and the foreseen exchange of funds with ESA, a dedicated Cooperation agreement will be established.

As regards EUMETSAT's financial contributions, the Agreement will be based on principles similar to those adopted for cooperation on mandatory programmes, but will limit the financial contributions and liability of EUMETSAT to the cost of the full procurement of the recurrent altimeter and Doris instruments.

This Agreement will refer to a Programme Implementation Plan addressing all detailed implementation arrangements between both organisations.

7.3.3 Cooperation with other partners

An agreement will be concluded between EUMETSAT and CNES for the provision of system level expertise support, as appropriate during the development phase, and for the integration of the services in the Sentinel-6 system and related support to EUMETSAT IV&V activities.

The provision of these services during the operations phase will also be secured by this agreement.

The agreement will also cover CNES participation in science support activities, including the preparation, release and implementation of relevant Research Announcements in cooperation with NASA.

8 DATA POLICY

The data policy for the Sentinel-6 mission shall be free and open, with no restriction, as is the case for the Jason-2 and Jason-3 missions.

**OPTIONAL EUMETSAT JASON-CS PROGRAMME FINANCIAL ENVELOPE,
SCALE OF CONTRIBUTIONS AND VOTING COEFFICIENT**

1 FINANCIAL ENVELOPE & INDICATIVE EXPENDITURE PROFILE

The financial envelope of the EUMETSAT Jason-CS Programme is estimated at MEUR 111.0 at 2015 e.c. (or MEUR 104.6 at 2012 e.c.) with the following indicative expenditure profile (in KEUR at 2015 e.c.):

2015	2016	2017	2018	2019	2020	2021	2022	2023	2024	2025	2026
100	16,533	28,596	23,315	22,246	12,436	2,246	880	900	1,380	1,772	596

9 SCALE OF CONTRIBUTIONS AND VOTING COEFFICIENT

The Participating States shall contribute to the EUMETSAT Jason-CS Programme in accordance with the scale of contributions indicated in the table below. This table also lays down the voting coefficient of each Participating State, pursuant to the scale of contributions, and taking into account Article 5.3(b) of the EUMETSAT Convention.

PARTICIPATING STATE	CONTRIBUTION %	VOTING COEFFICIENT %
AUSTRIA (AU)		
CROATIA (HR)		
DENMARK (DK)		
FRANCE (FR)		
GERMANY (DE)		
ICELAND (IS)		
ITALY (IT)		
LUXEMBOURG (LU)		
THE NETHERLANDS (NL)		
NORWAY (NO)		
PORTUGAL (PT)		
SWEDEN (SE)		
SWITZERLAND (CH)		
TURKEY (TR)		
UNITED KINGDOM (UK)		
TOTAL	100%	100%

**RESOLUTION ON
FLEXIBILITY FOR THE TRANSFER OF APPROPRIATIONS
BETWEEN EPS-SG BUDGET ARTICLES**

adopted at the 83rd Meeting of the EUMETSAT Council on 23-24 June 2015

The EUMETSAT Members States,

HAVING REGARD to the EUMETSAT Financial Rules, in particular its Article 9.2,

CONSIDERING the complexity of the EPS-SG programme and its numerous external interfaces,

TAKING INTO ACCOUNT Council Resolution EUM/C/98/Res. XIV, in which EUMETSAT Member States agreed *inter alia* to authorise the Director-General to make transfers of appropriations in the context of the EPS programme,

RECOGNISING the need for the Director-General to make timely and optimum decisions on unforeseen, necessary changes across the various components of the EPS-SG system in order to minimise schedule impacts and cost consequences,

AGREE:

- I** That the Director-General shall be authorised to transfer Commitment Appropriations and Payment Appropriations between articles 4000 (Cost of contract with ESA) and 4100 (Other expenditure) of the EPS-SG budget without restriction.
- II** That Council, in its regular meetings, shall be informed of any Payment Appropriations transferred between budget articles pursuant to Agree I.

ENABLING RESOLUTION
ON THE OPTIONAL EUMETSAT JASON-CS PROGRAMME

adopted at the 83rd Meeting of the EUMETSAT Council on 23-24 June 2015

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the EUMETSAT Convention defines Optional Programmes as programmes within the objectives of EUMETSAT agreed as such by Council,

HAVING REGARD to Resolution EUM/C/76/12/Res. III on the Preparation of a Jason Continuity of Services (Jason-CS) Optional Programme, in which Council agreed that the proposed Programme is consistent with EUMETSAT's objectives and should be established and implemented as an Optional Programme within the framework of the EUMETSAT Convention,

HAVING REGARD to the Declaration EUM/C/83/15/Dcl. I and attached Programme Definition on the Optional EUMETSAT Jason-CS Programme adopted by interested Member States on 24 June 2015,

NOTING that any Member State shall have the opportunity to become a Participating State of the Optional EUMETSAT Jason-CS Programme through signature of the Declaration within the timeframe set out therein,

AWARE that the Optional EUMETSAT Jason-CS Programme will take effect once at least one third of all EUMETSAT Member States have declared their participation by signing the Declaration within the timeframe set out and the subscriptions of these Participating States have reached 90% of the total financial envelope,

IN CONFORMITY WITH Articles 3, 5 and 10 of the EUMETSAT Convention and with EUMETSAT Council Resolution EUM/C/01/Res. I on the Approval of Optional Programmes,

AGREES:

- I** To approve the execution, within the framework of the EUMETSAT Convention, of the Optional EUMETSAT Jason-CS Programme on the basis of the Declaration and Programme Definition attached thereto referred to in paragraph four of the Preamble of this Resolution.
- II** To invite Participating States to sign the Declaration within the timeframe set out therein.
- III** To task the Director-General to prepare the necessary cooperation agreements with the international partners contributing to the development and implementation of the Sentinel-6 mission, to be submitted for Council approval.
- IV** To task the Director-General to execute the Optional EUMETSAT Jason-CS Programme in accordance with EUMETSAT's Rules and Procedures.
- V** To replace the Enabling Resolution EUM/C/82/14/Res. II on the Optional EUMETSAT Jason- CS Programme adopted by Council at its 82nd meeting on 26 November 2014 with the present Resolution.

RESOLUTION ON

**THE IMMEDIATE ACCESSION OF MEMBER STATES TO THE OPTIONAL
EUMETSAT JASON-CS PROGRAMME UPON SUBSCRIPTION**

adopted at the 84th Meeting of the EUMETSAT Council on 1-2 December 2015

THE PARTICIPATING STATES,

HAVING REGARD to Declaration EUM/C/83/15/Decl. I on the Optional EUMETSAT Jason-CS Programme adopted by Potential Participating States on 24 June 2015 and entered into force on 9 September 2015,

NOTING that the subscription level to the Optional EUMETSAT Jason-CS Programme currently stands at 90.01% of the MEUR 111.0 programme envelope at 2015 economic conditions,

TAKING INTO ACCOUNT that the current Participating States have already made their utmost efforts to increase their rate of contributions to achieve a 90.01% subscription level, and that they will not be able to increase their contributions further to fulfil the requirements of Article 10.5 EUMETSAT Convention,

REQUIRING therefore that the shortfall of 9.99% be covered through accession of further Member States as Participating States by 8 September 2016,

WELCOMING, beyond the coverage of the shortfall, the accession of any further Member State as Participating State to the Optional EUMETSAT Jason-CS Programme to ensure maximum participation, thereby stressing the solidarity principle,

HAVING REGARD to Article 5.3 and Article 10 of the EUMETSAT Convention

UNANIMOUSLY AGREE:

- I** To continue accepting, until 8 September 2016, the accession of Member States to the Optional EUMETSAT Jason-CS Programme with immediate effect upon their notification of subscription to the Programme, with related pro-rata adjustments of the scale of contributions and voting coefficients laid down in Declaration EUM/C/83/15/Decl. I, as applicable.
- II** To review the funding situation of the Programme at the latest one year after the date at which it took effect, i.e. 8 September 2016.

- III** To request the Director-General to continue his efforts in addressing the contribution to this Programme by those Member States that have not yet subscribed, with the support of the Working Group established by the 83rd Council.
- IV** To continue accepting new accessions of Member States to the Programme beyond 8 September 2016, subject to relevant arrangements related to investments already effected towards the Programme.

RESOLUTION ON
THE UPDATE OF THE ANNUAL FEES APPLICABLE TO NMSs
OF NON-MEMBER STATES

adopted at the 85th Meeting of the EUMETSAT Council on 28-29 June 2016

The EUMETSAT Member States,

RECALLING that the current EUMETSAT fees for Official Duty Use of Half-Hourly Data and Quarter-Hourly Meteosat Data by NMSs of Non-Member States were adopted in Resolution EUM/C/80/14/Res. III at the 80th Meeting of the EUMETSAT Council on 1-2 July 2014,

RECALLING that the Annex I of the said Resolution also provides that the threshold is established at the “Upper Middle Income Value” defined by the World Bank,

RECALLING that the threshold and the fee tables shall be updated by EUMETSAT Council every 2 years on the basis of the latest available World Bank statistics,

WISHING to update the threshold and the tables in accordance with the above-mentioned statistics,

AGREE to abolish Council Resolution EUM/C/80/14/Res. III and to replace it as follows:

- I** EUMETSAT fees for Official Duty Use of Half-Hourly Data and Quarter-Hourly Meteosat Data by NMSs of Non-Member States – Period 2015/2016 – shall be replaced by the version attached to this Resolution which includes the updated threshold and the table of Fees Applicable to NMSs of non-Member States for Official Duty Use – Period 2017/2018.
- II** This Resolution shall take effect on 1 January 2017.

EUMETSAT FEES FOR OFFICIAL DUTY USE (OFD) OF HALF-HOURLY AND QUARTER-HOURLY METEOSAT DATA BY NMSs OF NON-MEMBER STATES

The attached Table contains the annual fees for Official Duty use applicable to NMSs of non-Member States for Half-hourly and Quarter-hourly High Rate SEVIRI Data for the period 2017-2018.

The fees for Official Duty use of Half-hourly Low Rate SEVIRI Data by NMSs of non-Member States shall be 75% of the corresponding fees for Official Duty use of High Rate SEVIRI Data.

The following applies:

- 1) Official Duty use by NMSs of countries with a GNI per capita below or equal to USD 7,901, derived from World Bank statistics: Without Charge.
- 2) Official Duty use by NMSs of countries with a GNI per capita above USD 7,901: the fees for Half-hourly and Quarter-hourly Meteosat Data are given in the table attached.
- 3) Review Mechanisms:
 - The table attached shall be updated by Council every 2 years on the basis of the latest available World Bank statistics.
 - Should the figures in the table attached prove to be erroneous or incomplete, the Director-General shall make appropriate recommendations on a case by case basis.
 - The “Upper Middle Income” value as defined in the World Bank statistics shall establish the threshold for free access to Half-hourly and Quarter-hourly Meteosat Data. This threshold shall be updated by Council every 2 years on the basis of the World Bank statistics.

Council Resolution EUM/C/85/16/Res. I
Annex I

EUMETSAT FEES FOR NMSs OF NON-MEMBER STATES FOR OFD			
Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Afghanistan	680	0	0
Albania	4,450	0	0
Algeria	5,490	0	0
Angola	k	0	0
Antigua and Barbuda	13,300	80	100
Argentina	13,480 d	80	100
Armenia	4,020	0	0
Australia	64,540	80	100
Azerbaijan	7,590	0	0
Bahamas, The	20,980	80	100
Bahrain	21,060 a	80	100
Bangladesh	1,080	0	0
Barbados	15,310 a	80	100
Belarus	7,340	0	0
Belize	4,350 a	0	0
Benin	890	0	0
Bhutan	2,370	0	0
Bolivia	2,870	0	0
Bosnia and Herzegovina	4,760	0	0
Botswana	7,240	0	0
Brazil	11,530	80	100
Brunei Darussalam	37,320 a	80	100
Burkina Faso	700	0	0
Burundi	270	0	0
Cabo Verde	3,450	0	0
Cambodia	1,020	0	0
Cameroon	1,350	0	0
Canada	51,630	80	100
Cayman Islands	.. a	80	100
Central African Republic	320	0	0
Chad	980	0	0
Chile	14,910	80	100
China	7,400	0	0
Colombia	7,970	80	100
Comoros	790	0	0
Congo, Dem. Rep.	380	0	0
Congo, Rep.	2,720	0	0
Costa Rica	10,120	80	100
Côte d'Ivoire	1,450	0	0
Cuba	k	0	0
Curaçao and Sint Maarten	l	80	100
Cyprus	26,370 b	80	100
Djibouti	m	0	0
Dominica	6,930	0	0
Dominican Republic	6,040	0	0
Ecuador	6,090	0	0
Egypt, Arab Rep.	3,050	0	0
El Salvador	3,920	0	0
Eritrea	m	0	0

EUMETSAT FEES FOR NMSs OF NON-MEMBER STATES FOR OFD			
Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Ethiopia	550	0	0
Fiji	4,870	0	0
FYR Macedonia	5,150	0	0
French Polynesia	1	0	0
Gabon	9,720	80	100
Gambia, The	500 a	0	0
Georgia	3,720 g	0	0
Ghana	1,590	0	0
Grenada	7,910	80	100
Guatemala	3,430	0	0
Guinea	470	0	0
Guinea-Bissau	550	0	0
Guyana	3,940 a	0	0
Haiti	820	0	0
Honduras	2,270	0	0
Hong Kong SAR, China	40,320	80	100
India	1,570	0	0
Indonesia	3,630	0	0
Iran, Islamic Rep.	7,120 a	0	0
Iraq	6,500	0	0
Israel	35,320	80	100
Jamaica	5,150	0	0
Japan	42,000	80	100
Jordan	5,160	0	0
Kazakhstan	11,850	80	100
Kenya	1,290	0	0
Kiribati	2,950	0	0
Korea, Dem. Rep.	m	0	0
Korea, Rep.	27,090	80	100
Kuwait	49,300	80	100
Kyrgyz Republic	1,250	0	0
Lao PDR	1,660	0	0
Lebanon	10,030	80	100
Lesotho	1,330	0	0
Liberia	370	0	0
Libya	7,820	0	0
Macao SAR, China	76,270	80	100
Madagascar	440	0	0
Malawi	250	0	0
Malaysia	11,120	80	100
Maldives	6,410	0	0
Mali	650	0	0
Malta	21,000 a	80	100
Mauritania	1,270	0	0
Mauritius	9,630	80	100
Mexico	9,870	80	100
Micronesia, Fed. Sts.	3,200	0	0
Moldova	2,560 i	0	0
Monaco	a	80	100

Council Resolution EUM/C/85/16/Res. I
Annex I

EUMETSAT FEES FOR NMSs OF NON-MEMBER STATES FOR OFD			
Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Mongolia	4,280	0	0
Montenegro	7,320	0	0
Morocco	3,070 h	0	0
Mozambique	600	0	0
Myanmar	1,270	0	0
Namibia	5,630	0	0
Nepal	730	0	0
New Caledonia	l	0	0
New Zealand	l	80	100
Nicaragua	1,870	0	0
Niger	410	0	0
Nigeria	2,970	0	0
Oman	16,870 a	80	100
Pakistan	1,400	0	0
Panama	11,130	80	100
Papua New Guinea	2,240	0	0
Paraguay	4,400	0	0
Peru	6,360	0	0
Philippines	3,500	0	0
Qatar	92,200	80	100
Russian Federation	13,220 e	80	100
Rwanda	700	0	0
Saint Kitts and Nevis	l	80	100
Saint Lucia	7,260	0	0
Saint Vincent and the Grenadines	6,610	0	0
Samoa	4,060	0	0
São Tomé and Príncipe	1,670	0	0
Saudi Arabia	25,140 a	80	100
Senegal	1,050	0	0
Seychelles	14,100	80	100
Sierra Leone	700	0	0
Singapore	55,150	80	100
Solomon Islands	1,830	0	0
Somalia	m	0	0
South Africa	6,800	0	0
South Sudan	970	0	0
Sri Lanka	3,460	0	0
Sudan	1,710	0	0
Suriname	9,950	80	100
Swaziland	3,550	0	0
Syrian Arab Republic	n	0	0
Tajikistan	1,080	0	0
Tanzania	920 j	0	0
Thailand	5,780	0	0
Timor-Leste	2,680	0	0
Togo	570	0	0
Tonga	4,260	0	0
Trinidad and Tobago	20,070	80	100
Tunisia	4,230	0	0

EUMETSAT FEES FOR NMSs OF NON-MEMBER STATES FOR OFD			
Country	GNI/C	1/2 hourly Meteosat Data	1/4 hourly Meteosat Data
		Annual Fee KEUR	Annual Fee KEUR
Turkmenistan	8,020	80	100
Turks and Caicos	1	80	100
Tuvalu	5,720	0	0
Uganda	670	0	0
Ukraine	3,560 e	0	0
United Arab Emirates	44,600	80	100
United States of America	55,200	80	100
Uruguay	16,350	80	100
Uzbekistan	2,090	0	0
Vanuatu	3,160	0	0
Venezuela, RB	12,500 a, f	80	100
Vietnam	1,890	0	0
Yemen, Rep.	1,300 a	0	0
Zambia	1,680	0	0
Zimbabwe	840	0	0

Footnotes:

- a. 2014 data not available; ranking is approximate.
- b. Data are for the area controlled by the government of Cyprus.
- c. Based on regression; other PPP figures are extrapolated from the 2011 International Comparison Program benchmark estimates.
- d. Based on data officially reported by the National Statistics and Censuses Institute of Argentina. The International Monetary Fund (IMF) has called on Argentina to adopt measures to address the quality of official GDP and consumer price index data, and issued an updated statement on Argentina's progress on June 3, 2015: <http://www.imf.org/external/np/sec/pr/2015/pr15252.htm>.
- e. Based on data from official statistics of Ukraine and Russian Federation; by relying on these data, the World Bank does not intend to make any judgment on the legal or other status of the territories concerned or to prejudice the final determination of the parties' claims.
- f. Based on official exchange rates.
- g. Excludes Abkhazia and South Ossetia.
- h. Includes Former Spanish Sahara.
- i. Excludes Transnistria.
- j. Covers mainland Tanzania only.
- k. Estimated to be upper middle income (\$4,126 to \$12,735).
- l. Estimated to be high income (\$12,736 or more).
- m. Estimated to be low income (\$1,045 or less).
- n. Estimated to be lower middle income (\$1,046 to \$4,125).

RESOLUTION ON
AMENDMENTS TO THE DATA POLICY METEOSAT AND METOP
IMPLEMENTING RULES

adopted at the 85th Meeting of the EUMETSAT Council on 28-29 June 2016

The EUMETSAT Member States,

TAKING INTO ACCOUNT the WMO Policy and Practice for the Exchange of Meteorological and Related Data and Products including Guidelines on Relationships in Commercial Meteorological Activities, as laid down in WMO Resolution 40 (Cg XII),

ACCORDING TO principle IV of the EUMETSAT Data Policy which establishes that a set of data, products and services to be determined by Council will be available on a free and unrestricted basis as “Essential” data and products in accordance with WMO Resolution 40 (Cg-XII),

RECALLING that the current consolidated Meteosat Implementing Rules were adopted by Council at its 70th meeting in June 2010 through Council Resolution EUM/C/70/10/Res. III and at its 80th meeting in July 2014 through Council Resolution EUM/C/80/14/Res. IV,

RECALLING that the Metop Implementing Rules were adopted by Council on the basis of detailed documents approved at its 55th, 58th, 59th and 80th meetings in 2004, 2005, 2006 and 2014 respectively,

BEARING IN MIND the Roadmap of pathfinder projects for future EUMETSAT data services, adopted by Council at its 86th meeting in 28-29 June 2016,

WISHING to ensure that data defined by Council as “Essential” remain accessible by users without licence regardless of when and how it is made available, in particular when it becomes available for retrieval from the archive.

AGREE:

- I** to amend the current Meteosat Implementing Rules as shown in Annex I to this Resolution.
- II** to amend the current Metop Implementing Rules as shown in Annex II to this Resolution
- III** that all other provisions in the Meteosat and Metop Implementing Rules remain unchanged.

IMPLEMENTING RULES FOR METEOSAT DATA AND PRODUCTS

Current text	Proposed text
DEFINITIONS	
"Essential Meteosat Data and Products": Meteosat Data and Products which are declared "Essential" in accordance with WMO Resolution 40 (Cg-XII), as agreed by Council.	"Essential Meteosat Data and Products": Meteosat Data and Products which are declared "Essential" in accordance with WMO Resolution 40 (Cg-XII), as agreed by Council regardless of when and how these are made available to the user.
4 "ESSENTIAL" METEOSAT DATA AND PRODUCTS	
EUMETSAT shall make its Three-hourly and Six-hourly Meteosat Data, the Meteosat Derived Products and the data offered through its Meteosat Internet Service available to all users world-wide on a free and unrestricted basis, as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).	EUMETSAT shall make its Three-hourly and Six-hourly Meteosat Data, the Meteosat Derived Products and the data offered through its Meteosat Internet Service available to all users world-wide on a free and unrestricted basis, regardless of when and how these are made available to the user, as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).
5 LICENSING FOR NON-ESSENTIAL METEOSAT DATA AND ARCHIVED DATA AND PRODUCTS	
5 EUMETSAT shall be responsible for the licensing of Archived Data and Products.	5 EUMETSAT shall be responsible for the licensing of non-Essential Archived Data and Products.

IMPLEMENTING RULES FOR METOP DATA AND PRODUCTS

Current text	Proposed text
3 CONDITIONS OF ACCESS TO METOP DATA AND PRODUCTS	
3.1 Essential Metop Data and Products	
All Metop data and products that are described below are “essential” in accordance with the WMO Resolution 40 (Cg-XII). This means that access to these data and products is granted to all users without licence, without charge ¹ and without conditions on use.	All Metop data and products that are described below are “essential” in accordance with the WMO Resolution 40 (Cg-XII). This means that access to these data and products is granted to all users without licence, without charge ¹ and without conditions on use regardless of when and how these are made available to the user.
3.3 Archived and offline Metop Data and Products	
Access to archived and offline Metop data and products is granted to all users without charge, without conditions on use, against the signature of a licence agreement.	Access to non-Essential archived and offline Metop data and products is granted to all users without charge, without conditions on use, against the signature of a licence agreement.

¹ “Without Charge” means that these Metop data and products are available at no more than the cost of reproduction and delivery (including the cost of distribution, media, documentation, software licences, transmission, direct labour cost of any decryption key units), but without charge for the data and products themselves.

RESOLUTION ON

**THE EXTENSION OF THE PERIOD OF SUBSCRIPTION TO THE
EUMETSAT JASON-CS OPTIONAL PROGRAMME**

adopted at the 85th Meeting of the EUMETSAT Council on 28-29 June 2016

THE PARTICIPATING STATES,

HAVING REGARD to Declaration EUM/C/83/15/Decl. I on the Optional EUMETSAT Jason-CS Programme adopted by Potential Participating States on 24 June 2015 and entered into force on 9 September 2015,

HAVING REGARD to Resolution EUM/C/84/15/Res. I on the immediate accession of Member States to the Optional EUMETSAT Jason-CS Programme upon subscription,

NOTING that the subscription level to the EUMETSAT Jason-CS Programme currently stands at 96.29% of the MEUR 111.0 programme envelope at 2015 economic conditions,

AWARE that the one-year period of subscription to the EUMETSAT Jason-CS Programme currently runs until 8 September 2016 and that Article 10.5 of the Convention foresees any deficit to be distributed pro rata among the existing Participating States unless these Participating States agree unanimously on a different solution,

TAKING INTO ACCOUNT that the current Participating States have already made their utmost efforts to increase their rate of contributions to achieve a 96.29% subscription level, and that they should not be expected to increase their contributions further to fulfil the requirements of Article 10.5 EUMETSAT Convention,

REQUIRING therefore that the shortfall of 3.71% be covered through accession of further Member States as Participating States,

AWARE that several Member States are currently in national discussions and approval procedures regarding their participation in the EUMETSAT Jason-CS Programme and that it is unlikely that some of them will be in a position to subscribe to said Programme prior to the subscription deadline of 8 September 2016,

WELCOMING, beyond the coverage of the shortfall, the accession of any further Member State as Participating State to the EUMETSAT Jason-CS Programme to ensure maximum participation, thereby stressing the solidarity principle,

HAVING REGARD to Article 5.3 and Article 10 of the EUMETSAT Convention,

UNANIMOUSLY AGREE:

- I** exceptionally, to extend the subscription deadline until 30 June 2017 to allow Member States to complete their national approval procedures on their participation in the EUMETSAT Jason-CS Programme and to subscribe to said Programme to cover the shortfall.
- II** to keep the current blocking of appropriations in the Jason-CS Budget 2016 that corresponds to the percentage of the shortfall and to introduce a similar blocking in the Jason-CS Budget 2017, in order to ensure that cumulative commitment appropriations in the years 2016 and 2017 do not exceed the actual subscribed percentage of the Jason-CS Programme envelope.
- III** that the blocking of appropriations in the Jason-CS Budgets 2016 and 2017 can be assigned to the most appropriate Articles in said Budgets, and can be re-allocated over the course of the year in order to grant the necessary flexibility in the budget implementation and to enable EUMETSAT to fulfil its obligation towards ESA, as far as possible.
- IV** to request the Director-General to continue his efforts in supporting Member States' approval of their participation in the Programme.
- V** to review the funding situation of the Programme again by the Council meeting in June 2017.

RESOLUTION ON
THE THIRD EXTENSION OF
THE OPTIONAL JASON-2 ALTIMETRY PROGRAMME

presented for adoption at the 86th Meeting of the EUMETSAT Council
on 6-7 December 2016

adopted on 11 July 2017

The Participating States in the Jason-2 Programme,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy foresees continuity of the optional Jason altimetry satellite series,

TAKING INTO ACCOUNT the Declaration EUM/C/01/Decl.I on the Optional EUMETSAT Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT the Resolution EUM/C/77/12/Res.III on the Extension of the Optional Jason-2 Altimetry Programme and Resolution EUM/C/79/13/Res.IV on the Second Extension of the Optional Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT the Declaration EUM/C/67/09/Decl.I on the Optional EUMETSAT Jason-3 Altimetry Programme as well as Declaration EUM/C/83/15/Dcl.I on the Optional EUMETSAT Jason-CS Programme,

BEARING IN MIND that the Jason-2 satellite is in good health and that the related ground segment infrastructure allows for extended Jason-2 operations,

TAKING INTO ACCOUNT the successful launch and commissioning of the Jason-3 satellite, and the decision to move the Jason-2 satellite in October 2016 to an “interleaved” orbit to improve the sampling of the ocean by high precision ocean altimetry measurements,

CONSIDERING the value of Jason-2 measurements to operational oceanography and climate monitoring in synergy with Jason-3 and Sentinel-3 missions,

CONSISTENT with the Jason-2 Declaration, in which Participating States agreed to consider a possible extension of EUMETSAT Jason-2 Altimetry Programme operations beyond the 5-year period covered by the Jason-2 Programme Proposal, it being understood that this extension shall require unanimous approval by Participating States,

WISHING to exploit the full operational value of the Jason-2 system to the benefit of Participating States and the international user community,

AGREE:

- I** To amend the Optional Jason-2 Altimetry Programme Declaration to extend the duration of the Programme to cover Jason-2 operations for a further two-year period from 1 January 2018 until the end of 2019, including continued EUMETSAT involvement in the SARAL mission, followed by a six-month period for close-out activities until mid-2020;
- II** To increase the financial envelope to MEUR 31.7 at 2001 economic conditions;
- III** That, should the Jason-2 satellite be lost in orbit prematurely before end of 2019 and the SARAL satellite continue to deliver useful altimetry data, Council and Participating States will be invited to decide whether to continue SARAL arrangements, and remaining Programme funds will be returned to Participating States.

RESOLUTION ON
THE EXTENSION OF THE PERIOD OF SUBSCRIPTION TO THE
EUMETSAT JASON-CS OPTIONAL PROGRAMME

presented for adoption at the 87th Meeting of the EUMETSAT Council on 27 June 2017

adopted on 30 June 2017

The Participating States,

HAVING REGARD to Declaration EUM/C/83/15/Decl. I on the Optional EUMETSAT Jason-CS Programme adopted by Potential Participating States on 24 June 2015 and entered into force on 9 September 2015,

HAVING REGARD to Resolution EUM/C/84/15/Res. I on the immediate accession of Member States to the Optional EUMETSAT Jason-CS Programme upon subscription adopted by Participating States at the 84th meeting of the EUMETSAT Council on 1-2 December 2015,

HAVING REGARD to Resolution EUM/C/85/16/Res. III on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States at the 85th meeting of the EUMETSAT Council on 28-29 June 2016,

NOTING that the subscription level to the EUMETSAT Jason-CS Programme currently stands at 97.24% of the MEUR 111.0 programme envelope at 2015 economic conditions,

AWARE that the subscription period to the EUMETSAT Jason-CS Programme runs until 30 June 2017 and that Article 10.5 of the EUMETSAT Convention foresees any deficit to be distributed pro rata among the existing Participating States unless these Participating States agree unanimously on a different solution,

TAKING INTO ACCOUNT that the current Participating States have already made their utmost efforts to increase their rate of contributions to achieve a 97.24% subscription level, and that they should not be expected to increase their contributions further to fulfil the requirements of Article 10.5 EUMETSAT Convention,

REQUIRING therefore that the shortfall of 2.76% be covered through accession of further Member States as Participating States,

AWARE that several Member States are currently in national discussions and approval procedures regarding their participation in the EUMETSAT Jason-CS Programme and that it is unlikely that some of them will be in a position to subscribe to said Programme prior to the subscription deadline of 30 June 2017,

WELCOMING, beyond the coverage of the shortfall, the accession of any further Member State as Participating State to the EUMETSAT Jason-CS Programme to ensure maximum participation, thereby stressing the solidarity principle,

HAVING REGARD to Article 5.3 and Article 10 of the EUMETSAT Convention,

UNANIMOUSLY AGREE:

- I** exceptionally, to extend the subscription deadline until the Council meeting in December 2017 to allow Member States to complete their national approval procedures on their participation in the EUMETSAT Jason-CS Programme and to subscribe to said Programme to cover the shortfall.
- II** to keep the current blocking of appropriations in the Jason-CS Budget 2017 that corresponds to the percentage of the shortfall, in order to ensure that cumulative commitment appropriations in the year 2017 do not exceed the actual subscribed percentage of the Jason-CS Programme envelope.
- III** that the blocking of appropriations in the Jason-CS Budget 2017, currently assigned to Article 4100, may be reallocated over the course of the year in order to grant the necessary flexibility in the budget implementation and to enable EUMETSAT to fulfil its obligation towards ESA, as far as possible.
- IV** to request the Director-General to continue his efforts in supporting Member States' approval of their participation in the Programme.
- V** to review the funding situation of the Programme again by the Council meeting in December 2017.

RESOLUTION ON
AMENDMENTS TO THE IMPLEMENTING RULES FOR METEOSAT DATA AND
PRODUCTS

adopted at the 87th Meeting of the EUMETSAT Council on 27 June 2017

The EUMETSAT Member States,

RECALLING that the consolidated Meteosat Implementing Rules were adopted by Council at its 70th meeting in June 2010 through Council Resolution EUM/C/70/10/Res. III thereafter amended by Council Resolutions EUM/C/80/14/Res. IV and EUM/C/85/16/Res. II,

RECALLING the recommendations on harmonisation of the ECMWF, EUMETSAT and ECOMET data policy provisions issued by the Joint Harmonisation Group (JHG) to the EUMETSAT Council at its 38th meeting on 1-3 July 1998,

RECALLING that the harmonised definitions proposed by the JHG were initially adopted by the EUMETSAT Council at its 38th meeting through Council Resolution EUM/C/98/Res. IV as part of the Implementing Rules to the EUMETSAT Principles on Data Policy,

TAKING INTO ACCOUNT that the ECMWF Council and the ECOMET General Assembly also adopted the recommendations of the JHG to include the relevant harmonised definitions in their data policy provisions;

BEARING IN MIND the recommendation of the JHG that the Councils and General Assembly commit themselves to the principle that decisions regarding data policy should always be taken with knowledge of the impact on the other two organisations, and with the principle that decisions should always aim to increase rather than decrease harmonisation;

CONSIDERING the result of the joint review of the current definitions contained in the data policy provisions in the three organisations which took place in June 2013 and which were approved by Council at its 80th meeting in Resolution EUM/C/80/14/Res. IV,

HAVING REGARD to the amendments to definitions used in the ECMWF data policy agreed at the 88th ECMWF Council in December 2016, in particular that of “Value Added Service”

WISHING to continue the close cooperation between EUMETSAT, ECMWF and ECOMET and in particular to maintain the long standing harmonisation of their data policy provisions,

AGREE:

- I** to amend the Implementing Rules for Meteosat Data and Products replacing the current definition of “Value Added Services (VAS)” by the following definition:

“all meteorological services which are derived from Meteosat data or products, specifically conceived for the needs of users and made available under specific licence conditions.”

RESOLUTION ON
THE EXTENSION OF THE DURATION OF THE EPS PROGRAMME

**adopted at the 88th Meeting of the EUMETSAT Council
on 5-6 December 2017**

The EUMETSAT Member States

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/96/Res.V establishing the EUMETSAT Polar System (EPS) Programme as a mandatory EUMETSAT programme, adopted at the 42nd meeting of the EUMETSAT Council on 22-24 June 1999 (“EPS Programme Resolution”),

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

RECALLING that the EPS Programme consists of a series of three polar-orbiting Metop satellites, to be flown successively, and the relevant ground facilities,

NOTING that Metop-A was launched on 19 October 2006, that Metop-B was launched on 17 September 2012 and that Metop-C launch is planned before the end of 2018,

AWARE that, according to the EPS Programme Resolution, the EPS Programme covers 14 years of operations, which corresponds to the end of 2020,

TAKING INTO ACCOUNT that, according to the detailed scenario for the end-of-life of Metop-A approved by the 86th meeting of the EUMETSAT Council on 6 December 2016 (EUM/C/86/16/DOC/11), the Metop-A operational lifetime is expected to last at least until the end of 2021,

NOTING WITH SATISFACTION the good health, and quality of satellite data, of Metop-A and Metop-B and furthermore that the operational lifetime for the three Metop satellites may last until 2033/2034, assuming that the Metop-A end-of-life scenario will be achievable also for Metop-B and Metop-C,

HAVING REGARD to the EUMETSAT Polar System Second Generation Programme (EPS-SG Programme), established by Resolution EUM/C/80/14/Res. I and consisting of two, parallel series of satellites, the first each of which are currently planned for launch in September 2021 (Metop-SG A1) and end-2022 (Metop-SG B1),

RECALLING the EUMETSAT Strategy “Challenge 2025” (EUM/C/85/16/DOC/05 REV1), approved by the EUMETSAT Council at its 85th meeting on 28-29 June 2016, and in particular the strategic objective to maximise the lifetime of current satellite systems to ensure the best return on Member States’ investments and a safe transition to the next generation system,

CONSIDER that, in view of the above, the duration of the EPS Programme should not be limited to 14 years of operations by way of a Resolution, and should instead be determined by the operational status of the Metop satellites, which depends foremost on the health and quality of service of each satellite and decisions of Member States on the scope of the financial envelope of the EPS Programme,

AGREE:

- I** That the EPS Programme shall remain in force until all three Metop satellites are decommissioned and related close-out activities are completed, or as otherwise agreed by Council.
- II** That all other elements of the EPS Programme Resolution shall remain valid and in force.

RESOLUTION ON
AN INCREASE OF THE FINANCIAL ENVELOPE OF THE EPS PROGRAMME

**presented for adoption at the 88th Meeting of the EUMETSAT Council
on 5-6 December 2017 and adopted on 10 February 2020**

The EUMETSAT Member States

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/96/Res. V establishing the EUMETSAT Polar System (EPS) Programme as a mandatory programme, adopted at the 42nd meeting of the EUMETSAT Council on 22-24 June 1999 (“EPS Programme Resolution”),

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

TAKING INTO ACCOUNT that all Member States contribute to the EPS Programme on the basis of a GNI-based scale of contributions,

HAVING REGARD to Resolution EUM/C/04/Res. I on the financial envelope of the EPS Programme, adopted at the 55th meeting of the EUMETSAT Council on 22-23 June 2004,

HAVING REGARD to Resolution EUM/C/67/09/Res. I on an increase of the financial envelope of the EPS Programme by 10%, adopted at the 67th meeting of the EUMETSAT Council on 30 June-1 July 2009,

HAVING REGARD to Resolution EUM/C/88/17/Res. I on the extension of the duration of the EPS Programme, adopted at the 88th meeting of the EUMETSAT Council on 5-6 December 2017,

NOTING WITH SATISFACTION the good health, and quality of satellite data, of Metop-A and Metop-B and furthermore that the operational lifetime for the three Metop satellites may last until 2033/2034, assuming that the Metop-A end-of-life scenario will be achievable also for Metop-B and Metop-C,

AWARE that the detailed review of the technical status and financial situation of the EPS Programme as contained in document EUM/C/88/17/DOC/07 has confirmed that the financial envelope needs to be increased to cover operations as from 1 January 2021,

HAVING REGARD to the EUMETSAT Polar System Second Generation Programme (EPS-SG Programme), established by Resolution EUM/C/80/14/Res. I and consisting of two parallel series of satellites, the first satellite of each series currently planned for launch in September 2021 (Metop-SG A1) and end-2022 (Metop-SG B1),

RECALLING the EUMETSAT Strategy “Challenge 2025” (EUM/C/85/16/DOC/05 REV1), approved by the EUMETSAT Council at its 85th meeting on 28-29 June 2016, and in particular the strategic objective to maximise the lifetime of current satellite systems to ensure the best return on Member States’ investments and a safe transition to the next generation system,

CONVINCED therefore that the financial envelope of the EPS Programme should be increased to secure operations of the EUMETSAT Polar System until approximately 2027, which would correspond to when the EPS-SG system is planned to be fully deployed and in routine operations,

IN CONFORMITY WITH Article 5.2(a)(x) of the EUMETSAT Convention, which establishes that Member States may approve cost overruns of more than 10% of the original programme envelope by a unanimous vote of all Member States,

AGREE:

- I** That the overall EPS Programme financial envelope shall be increased from MEUR 1,610.4 at 1994 economic conditions to MEUR 1,705.0 at 1994 economic conditions, to cover operations until approximately the end of 2027.
- II** That all other elements of the EPS Programme Resolution shall remain valid and in force.

RESOLUTION ON
AN INCREASE OF THE FINANCIAL ENVELOPE OF THE MSG PROGRAMME

**presented for adoption at the 88th Meeting of the EUMETSAT Council
on 5-6 December 2017 and adopted on 10 February 2020**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/92/Res. VI establishing the Meteosat Second Generation (MSG) Programme as a mandatory programme, adopted at the 25th meeting of the EUMETSAT Council on 22-24 June 1994 (“MSG Programme Resolution”),

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

TAKING INTO ACCOUNT that all Member States contribute to the MSG Programme on the basis of a GNI-based scale of contributions,

HAVING REGARD to Resolution EUM/C/03/Res. I on the extension of the MSG Programme to, inter alia, cover an additional MSG-4 satellite, extend MSG operations and maintenance until at least 2018 and increase the overall MSG Programme financial envelope, adopted at the 55th meeting of the EUMETSAT Council on 22-23 June 2004,

NOTING WITH SATISFACTION the good health, and quality of satellite data, of the MSG satellites and furthermore that the operational lifetime of the MSG system may last until up to 2033,

AWARE that the detailed review of the technical status and financial situation of the MSG Programme as contained in document EUM/C/88/17/DOC/03 has confirmed that the financial envelope is not sufficient to cover operational activities beyond Q3-2023,

HAVING REGARD to the Meteosat Third Generation (MTG) Programme, established by Resolution EUM/C/69/10/Res. I and consisting of four imaging and two sounding satellites,

CONSIDERING that the launches of the first MTG imaging satellite and of the first MTG sounding satellite, initially planned for December 2016 and June 2018, respectively, are now planned for the third quarter of 2021 and the first quarter of 2023, respectively,

RECALLING the EUMETSAT Strategy “Challenge 2025” (EUM/C/85/16/DOC/05 REV1), approved by the EUMETSAT Council at its 85th meeting on 28-29 June 2016, and in particular the strategic objective to maximise the lifetime of current satellite systems to ensure the best return on Member States’ investments and a safe transition to the next generation system,

CONVINCED therefore that the financial envelope of the MSG Programme should be increased to secure operational activities relating to the MSG satellites until approximately 2030,

IN CONFORMITY WITH Article 5.2(a)(x) of the EUMETSAT Convention, which establishes that Member States may approve cost overruns of more than 10% of the original programme envelope by a unanimous vote of all Member States,

AGREE:

- I** That the overall MSG Programme financial envelope shall be increased from MEUR 1,330 at 1992 economic conditions to MEUR 1,394.2 at 1992 economic conditions.
- II** That all other elements of the MSG Programme Resolution shall remain valid and in force.

RESOLUTION ON
THE EXTENSION OF THE PERIOD OF SUBSCRIPTION TO THE
EUMETSAT JASON-CS OPTIONAL PROGRAMME

adopted at the 88th Meeting of the EUMETSAT Council
on 5-6 December 2017

The Participating States,

HAVING REGARD to Declaration EUM/C/83/15/Decl. I on the Optional EUMETSAT Jason-CS Programme adopted by Potential Participating States on 24 June 2015 and entered into force on 9 September 2015,

HAVING REGARD to Resolution EUM/C/84/15/Res. I on the immediate accession of Member States to the Optional EUMETSAT Jason-CS Programme upon subscription adopted by Participating States at the 84th meeting of the EUMETSAT Council on 1-2 December 2015,

HAVING REGARD to Resolution EUM/C/85/16/Res. III on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States at the 85th meeting of the EUMETSAT Council on 28-29 June 2016,

HAVING REGARD to Resolution EUM/C/87/17/Res. I on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States on 30 June 2017,

NOTING that the subscription level to the EUMETSAT Jason-CS Programme currently stands at 97.24% of the MEUR 111.0 programme envelope at 2015 economic conditions,

AWARE that the subscription period to the EUMETSAT Jason-CS Programme runs until the 88th Council meeting on 5-6 December 2017 and that Article 10.5 of the EUMETSAT Convention foresees any deficit to be distributed pro rata among the existing Participating States unless these Participating States agree unanimously on a different solution,

TAKING INTO ACCOUNT that the current Participating States have already made their utmost efforts to increase their rate of contributions to achieve a 97.24% subscription level, and that they should not be expected to increase their contributions further to fulfil the requirements of Article 10.5 EUMETSAT Convention,

REQUIRING therefore that the shortfall of 2.76% be covered through accession of further Member States as Participating States,

AWARE that several Member States are currently in national discussions and approval procedures regarding their participation in the EUMETSAT Jason-CS Programme and have not been in a position to subscribe to said Programme prior to the subscription deadline of the 88th Council meeting on 5-6 December 2017,

WELCOMING, beyond the coverage of the shortfall, the accession of any further Member State as Participating State to the EUMETSAT Jason-CS Programme to ensure maximum participation, thereby stressing the solidarity principle,

HAVING REGARD to Article 5.3 and Article 10 of the EUMETSAT Convention,

UNANIMOUSLY AGREE:

- I** Exceptionally, to extend the subscription deadline until the Council meeting in July 2018 to allow Member States to complete their national approval procedures on their participation in the EUMETSAT Jason-CS Programme and to subscribe to said Programme to cover the shortfall.
- II** To keep the current blocking of appropriations in the Jason-CS Budget 2017 that corresponds to the percentage of the shortfall and to introduce a similar blocking in the Jason-CS Budget 2018, in order to ensure that cumulative commitment appropriations in the years 2017 and 2018 do not exceed the actual subscribed percentage of the Jason-CS Programme envelope.
- III** That the blocking of appropriations in the Jason-CS Budgets 2017 and 2018, currently assigned to Article 4100, may be reallocated over the course of the year in order to grant the necessary flexibility in the budget implementation and to enable EUMETSAT to fulfil its obligation towards ESA, as far as possible.
- IV** To request the Director-General to continue his efforts in supporting Member States' approval of their participation in the Programme.
- V** To review the funding situation of the Programme again by the Council meeting in July 2018.

RESOLUTION ON
CONTINUED ACCESS TO EUMETSAT DATA
BY SERBIA DURING THE ACCESSION PROCESS IN 2018

adopted at the 88th Meeting of the EUMETSAT Council on 5-6 December 2017

The EUMETSAT Council,

CONSIDERING the Cooperating State Agreement (CSA) signed between EUMETSAT and the then Federal Republic of Yugoslavia (FRY) on 11 July 2002, as amended to recognise the Republic of Serbia as the legal successor of the FRY on 27 January 2009,

CONSIDERING that the CSA and its amendment were ratified by the Republic of Serbia on 23 November 2009 and remained in force until 22 November 2014,

RECALLING the second amendment to the CSA, which entered into force on 16 December 2014, to extend its duration until 31 December 2017,

FOLLOWING the wish expressed by Serbia to become a EUMETSAT Member State within the framework conditions established by the EUMETSAT Convention, expressed in Article 7.2 of the CSA,

NOTING that, however, despite extensive efforts made by EUMETSAT to receive confirmation from the government of Serbia, no formal signal from the government of Serbia was received on its intention to become a full EUMETSAT Member State,

NOTING that there are significant delays in the finalisation of the accession process of Serbia to EUMETSAT,

NOTING that the EUMETSAT Council at its 88th meeting on 5-6 December 2017 nevertheless agreed to the accession of Serbia as a Member State through adoption of Council Resolution EUM/C/88/17/Res. V, on the expectation that the government of Serbia will formally confirm its intention to EUMETSAT by 28 February 2018 at the latest,

RECALLING that the EUMETSAT Data Policy establishes that the National Meteorological Services (“NMSs”) of the Member States receive all EUMETSAT data, products and services for their Official Duty use at no cost except for the cost of decryption key units,

RECALLING that, as a Cooperating State, Serbia has the same rights and obligations as EUMETSAT Member States concerning access, utilisation and distribution of EUMETSAT data, products and services in accordance with Article 1.1 of the CSA,

HAVING REGARD that the CSA will expire on 31 December 2017, depriving Serbia of access to EUMETSAT data for Official Duty use,

AGREES:

- I** To provide continued access by Serbia to all EUMETSAT data and products for Official Duty use, from the expiry of the CSA on 31 December 2017 until the signature of the Accession Agreement to become a EUMETSAT Member State in 2018 on the expectation that the government of the Republic of Serbia will formally confirm its intention to EUMETSAT by 28 February 2018 at the latest.
- II** To interrupt access by Serbia to EUMETSAT data and products on 1 March 2018, should EUMETSAT not receive said formal confirmation from the government of the Republic of Serbia by 28 February 2018.
- III** That, in case said formal confirmation is received from the government on or before 28 February 2018, to interrupt access to EUMETSAT data should accession negotiations not be successfully completed with the signature of the Accession Agreement by the next ordinary Council meeting in July 2018.

RESOLUTION ON
THE EXTENSION OF THE PERIOD OF SUBSCRIPTION TO THE
EUMETSAT JASON-CS OPTIONAL PROGRAMME

adopted at the 89th Meeting of the EUMETSAT Council on 3-4 July 2018

The Participating States,

HAVING REGARD to Declaration EUM/C/83/15/Decl. I on the Optional EUMETSAT Jason-CS Programme adopted by Potential Participating States on 24 June 2015 and entered into force on 9 September 2015,

HAVING REGARD to Resolution EUM/C/84/15/Res. I on the immediate accession of Member States to the Optional EUMETSAT Jason-CS Programme upon subscription adopted by Participating States at the 84th meeting of the EUMETSAT Council on 1-2 December 2015,

HAVING REGARD to Resolution EUM/C/85/16/Res. III on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States at the 85th meeting of the EUMETSAT Council on 28-29 June 2016,

HAVING REGARD to Resolution EUM/C/87/17/Res. I on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States on 30 June 2017,

HAVING REGARD to Resolution EUM/C/88/17/Res. IV on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States at the 88th meeting of the EUMETSAT Council on 5-6 December 2017,

NOTING that the subscription level to the EUMETSAT Jason-CS Programme currently stands at 97.2370% of the MEUR 111.0 programme envelope at 2015 economic conditions,

AWARE that the subscription period to the EUMETSAT Jason-CS Programme runs until the 89th Council meeting on 3-4 July 2018 and that Article 10.5 of the EUMETSAT Convention foresees any deficit to be distributed pro rata among the existing Participating States unless these Participating States agree unanimously on a different solution,

TAKING INTO ACCOUNT that the current Participating States have already made their utmost efforts to increase their rate of contributions to achieve a 97.2370% subscription level, and that they should not be expected to increase their contributions further to fulfil the requirements of Article 10.5 EUMETSAT Convention,

REQUIRING therefore that the shortfall of 2.7630% be covered through accession of further Member States as Participating States,

AWARE that several Member States are currently in national discussions and approval procedures regarding their participation in the EUMETSAT Jason-CS Programme and have not been in a position to subscribe to said Programme prior to the subscription deadline of the 89th Council meeting on 3-4 July 2018,

WELCOMING, beyond the coverage of the shortfall, the accession of any further Member State as Participating State to the EUMETSAT Jason-CS Programme to ensure maximum participation, thereby stressing the solidarity principle,

HAVING REGARD to Article 5.3 and Article 10 of the EUMETSAT Convention,

UNANIMOUSLY AGREE:

- I** exceptionally, to extend the subscription deadline until the Council meeting in December 2018 to allow Member States to complete their national approval procedures on their participation in the EUMETSAT Jason-CS Programme and to subscribe to said Programme to cover the shortfall.
- II** to keep the current blocking of appropriations in the Jason-CS Budget 2018 that corresponds to the percentage of the shortfall in order to ensure that cumulative commitment appropriations in the year 2018 do not exceed the actual subscribed percentage of the Jason-CS Programme envelope.
- III** that the blocking of appropriations in the Jason-CS Budget 2018, currently assigned to Article 4100, may be reallocated over the course of the year in order to grant the necessary flexibility in the budget implementation and to enable EUMETSAT to fulfil its obligation towards ESA, as far as possible.
- IV** to request the Director-General to continue his efforts in supporting Member States' approval of their participation in the Programme.
- V** to review the funding situation of the Programme again by the Council meeting in December 2018.

RESOLUTION ON
AMENDMENTS TO THE DATA POLICY IMPLEMENTING RULES IN
RECONCILIATION WITH THE OBJECTIVES OF THE PATHFINDER PROJECTS

adopted at the 89th Meeting of the EUMETSAT Council on 3-4 July 2018

The EUMETSAT Member States,

TAKING INTO ACCOUNT the WMO Policy and Practice for the Exchange of Meteorological and Related Data and Products including Guidelines on Relationships in Commercial Meteorological Activities, as laid down in WMO Resolution 40 (Cg XII),

RECALLING that the current consolidated Meteosat Implementing Rules were originally adopted by Council as Annex I of Resolutions EUM/C/98/Res. IV and EUM/C/99/Res. VI, amended in Annex I of Resolution EUM/C/70/10/Res. III, EUM/C/80/14/Res. IV and EUM/C/85/16/Res. II and in EUM/C/87/17/Res. I,

RECALLING that the current Meteosat Catalogue was originally adopted as Annex II of Resolutions EUM/C/98/Res. IV and EUM/C/99/Res. VI and last amended in Annex II of Resolution EUM/C/70/10/Res. III,

RECALLING that the EUMETSAT fees for access to non-essential Meteosat data by commercial and other users were originally adopted in Annex IV of Resolutions EUM/C/98/Res. IV and EUM/C/99/Res. VI and amended by Resolutions EUM/C/70/10/Res. IV, EUM/C/72/11/Res. VII and EUM/C/78/13/Res. V,

RECALLING that the special IODC fee structure was agreed at 62nd EUMETSAT Council meeting on 26-27 June 2007, amended by Council Resolution EUM/C/67/09/Res. V, Council Resolution EUM/C/70/10/Res. III and Council Resolution EUM/C/77/12/Res. II and last amended by the adoption of the document EUM/C/85/16/DOC/03 by Council at its 85th meeting in July 2016,

RECALLING that the Implementing Rules for SAF deliverables were agreed at 54th EUMETSAT Council meeting in November 2003,

RECALLING that the Metop Implementing Rules were adopted by Council on the basis of detailed documents approved at its 55th, 58th, 59th, and 85th meetings in 2004, 2005, 2006 and 2016 respectively, amended thereafter at its 85th meeting in June 2016 through Council Resolution EUM/C/85/16/Res. II.

BEARING IN MIND the Roadmap of pathfinder projects for future EUMETSAT data services, adopted by Council at its 85th meeting in 28-29 June 2016,

BEARING IN MIND the simplifications to the EUMETSAT data and services policy endorsed by Council, endorsed by Council at its 88th meeting in 6-7 December 2017,

WISHING to ensure that all the benefits of the big data solutions deployed by Pathfinder Projects can be fully exploited.

AGREE:

- I** to amend the current Meteosat Implementing Rules for Meteosat data and products as shown in Annex I to this Resolution.
- II** to amend the current Meteosat Catalogue as shown in Annex II to this Resolution.
- III** to amend the current Special IODC fee structure as shown in Annex III to this Resolution.
- IV** to amend the current Metop Implementing Rules as shown in Annex IV to this Resolution.
- V** to amend the current Implementing Rules for Operational SAF deliverables as shown in Annex V to this Resolution.
- VI** to delete the EUMETSAT fees for access to non-essential Meteosat data by commercial and other users originally adopted in Annex IV of Resolutions EUM/C/98/Res. IV and EUM/C/99/Res. VI and amended by Resolutions EUM/C/70/10/Res. IV, EUM/C/72/11/Res. VII and EUM/C/78/13/Res. V.
- VII** that this Resolution shall take effect on 1 January 2019.
- VIII** that all other provisions in the Data Policy Implementing Rules remain unchanged.

IMPLEMENTING RULES FOR METEOSAT DATA AND PRODUCTS

1 THE METEOSAT CATALOGUE

For the purpose of distribution, dissemination and commercial application, a list of data, products and services is contained in the Meteosat Catalogue as displayed in the EUMETSAT Product Navigator and the EO Portal on the website at www.eumetsat.int.

2 DEFINITIONS

For the purpose of these Implementing Rules, the following definitions shall apply:

“Advanced Image Product”: the combination of different channels allocating a colour to each channel (i.e. RGB) or the mathematical blending of several image layers. These products do not contain the original numerical data.

"Archived Data and Products": Meteosat data, Advanced Image Products and derived products from EUMETSAT's satellites stored in any format in EUMETSAT's data archive system.

"Broadcasters": those users who disseminate an item from the Meteosat Catalogue or images based on Meteosat Data through electronic public information systems including, but not limited to, Internet, terrestrial and satellite transmissions.

"Educational Use": any use of an item from the Meteosat Catalogue solely for educational non-commercial purposes, without transmission or redistribution of these data, products and services to any further third party, or use of them to generate a Value Added Service.

"End Users": those users who use an item from the Meteosat Catalogue for their own commercial or industrial purposes and do not pass on such item to any further user or use it to generate a Value Added Service.

"Essential Data and Products": EUMETSAT Data and Products which are declared "Essential" in accordance with WMO Resolution 40 (Cg-XII), as agreed by Council regardless of when and how these are made available to the user.

"Exclusive Licensing Agent": a NMS of a Member State exclusively representing EUMETSAT within that State for the purpose of licensing Meteosat Data.

"Hourly Meteosat Data": those nominal full disk repeat cycles of Meteosat Data referenced by EUMETSAT in time to each clock hour (UTC).

"High Rate SEVIRI Data ": high rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

“HRI Data”: high resolution image data generated by a Meteosat First Generation satellite.

“Latency”: the difference between the time reference attached by EUMETSAT to Meteosat Data or Product and its availability for user access under a given service.

"Low Rate SEVIRI Data ": low rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

"Member States": the States which are parties to the Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites.

"Meteosat Catalogue": the list of Meteosat Data, Products, and Services provided in the EO Portal and the EUMETSAT Product Navigator.

“Meteosat Data”: all HRI Data and High Rate/Low Rate SEVIRI Data generated by the Meteosat First and Second Generation satellites.

"Meteosat Derived Products": products derived from level 1.5 Meteosat Data and disseminated to users in formats corresponding to WMO coding requirements that represent full spatial coverage. This includes products generated by the EUMETSAT ground segment and the EUMETSAT Satellite Application Facilities (SAFs).

"National Territory": the national territory of a state, including its internal waters, its archipelagic waters, its territorial sea and its exclusive economic zone, as defined in the United Nations Convention on the Law of the Sea (UNCLOS) signed in Montego Bay on 10 December 1982 and having entered into force on 16 November 1994.

"NMS" (National Meteorological Service): service responsible at national level, in conformity with its legal status, for the gathering, classification and production of meteorological information in the national interest, and responsible at international level for participating in WMO programmes.

"Official Duty": all activities which take place within the organisation of a NMS and external activities of a NMS resulting from legal, governmental or intergovernmental requirements relating to defence, civil aviation and the safety of life and property.

"Personal Use": any use of an item from the Meteosat Catalogue solely for personal non-commercial purposes, without transmission or redistribution of these data, products and services to any further third party, or use of them to generate a Value Added Service.

"Rapid Scanning Data": those Meteosat Data acquired by scanning of a certain geographical area within the footprint of a Meteosat satellite in more frequent time intervals than the nominal full disk repeat cycles.

"Research Project": any project organised for non-commercial research purposes only. A necessary condition for the recognition of non-commercial purposes is that all the results obtained are openly available at delivery costs only, without any delay linked to commercial objectives, and that the research itself is submitted for open publication.

"Service Providers": those users who acquire an item from the Meteosat Catalogue in order to supply Value Added Services under specific licence conditions to a third party clearly identified and known to the Service Provider.

"Standard Licence Agreement": the standard terms and conditions pursuant to which items in the Meteosat Catalogue must be licensed to users.

"Subsidiary": a company which is controlled by the Licensee by means of the Licensee holding the majority of the voting rights (50% plus one vote).

"Third Party": any party external to a licence agreement between EUMETSAT or one of its Exclusive Licensing Agents and a user.

"Value Added Services (VAS)": all meteorological services which are derived from Meteosat data or products, specifically conceived for the needs of users and made available under specific licence conditions.

"Web Map Service": a EUMETSAT internet service that makes certain Meteosat Data, Advanced Image Products and Meteosat Derived Products defined in the Meteosat Catalogue accessible for visualisation via the Internet, but with no provision of access to original numerical data.

"Without Charge": at no more than the cost of reproduction and delivery (including the cost of distribution media, documentation, software licences, transmission and direct labour cost but without charge for the data and products themselves.

3 OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

- 1 EUMETSAT holds the full ownership and Intellectual Property Rights to the Meteosat Data and Products.
- 2 The Intellectual Property Rights to images based on Meteosat Data are shared between EUMETSAT and the Service Provider generating the images.
- 3 The Intellectual Property Rights to Value Added Services other than images based on Meteosat Data are considered to be owned by the Service Provider generating the Value Added Service.

4 "ESSENTIAL" METEOSAT DATA AND PRODUCTS

EUMETSAT shall make its Hourly Meteosat Data, all Derived Products and Advanced Image Products available to all users world-wide on a free and unrestricted basis, regardless of when and how these are made available to the user, as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).

5 LICENSING FOR NON-ESSENTIAL METEOSAT DATA

- 1 All Meteosat data and products not defined as "Essential" in Rule 4 above are classified as non-Essential.
- 2 The NMSs of Member States, acting as Exclusive Licensing Agents on behalf and for the account of EUMETSAT, shall have the responsibility for licensing non-Essential Meteosat Data to users receiving the data within their respective National Territories.
- 3 Acting as EUMETSAT's Exclusive Licensing Agents, the NMSs shall apply the EUMETSAT fees and conditions defined in Rules 8 and 10 below and shall sign licences applying the EUMETSAT standard licensing conditions with their users. The NMSs shall inform EUMETSAT of the signing of such licences.
- 4 The NMSs shall retain 25% of the fees received and allocate the remaining 75% to EUMETSAT.
- 5 Licensing for access to non-Essential Meteosat Data received outside Member States shall always be through a Standard Licence Agreement between the User and EUMETSAT according to the guidelines detailed in Rules 7, 8, 9 and 10 below.
- 6 EUMETSAT shall be responsible for the licensing of access to non-Essential data accessed via all types of EUMETSAT data access services (e.g.: Archive Data Service, Web Services...).

6 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF MEMBER STATES

- 1 The NMSs of Member States will receive non-Essential Meteosat Data for Official Duty use without charge.
- 2 Insofar as required for Official Duty use, the NMSs may grant access to other Departments within their respective National Administrations, subject to arrangements in accordance with national legislation, but all conditions defined in these Rules remain attached to the use of the data. Further distribution and all commercial applications of the Meteosat Data are subject to Rules 8, 10 and 11 below.

7 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF NON-MEMBER STATES

- 1 NMSs of non-Member States will have access to non-Essential Meteosat Data with a latency of more than 3 hours without charge upon acceptance of terms and conditions. Redistribution of the original numerical data to third parties is prohibited.
- 2 NMSs of non-Member States will have access to non-Essential Meteosat Data with a latency of less than 3 hours for Official Duty use in accordance with the conditions specified in Resolution EUM/C/85/16/Res. I.
- 3 NMSs of non-Member States which provide EUMETSAT with equivalent satellite data will be provided data under conditions to be agreed by the EUMETSAT Council on a case by case basis.
- 4 For limited periods, to support the monitoring of disasters or emergencies and in accordance with relevant UN resolutions, the full set of Meteosat Data will be made available without Charge.
- 5 For Official Duty use by NMSs of non-Member States subject to tropical cyclones, all non-Essential Meteosat Data will be made available Without Charge.
- 6 Regarding their commercial activities, the NMSs of non-Member States shall be treated in the same way as Service Providers, in accordance with the fees and conditions listed in Rule 10.
- 7 EUMETSAT will inform the NMSs of non-Member States of licences signed with other users receiving non-Essential Meteosat Data within their respective territories.

8 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY RESEARCH PROJECTS AND FOR EDUCATIONAL OR PERSONAL USE

Research Projects and Educational Users are given access Without Charge to non-Essential Meteosat Data in accordance with standard EUMETSAT licensing conditions.

9 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY ECMWF

ECMWF is given access Without Charge to non-Essential Meteosat Data for its own use in support of its mission, as defined in the ECMWF Convention. This use shall only cover activities carried out within the ECMWF Secretariat and shall not include retransmission of Meteosat Data to other users, including its Member States.

ECMWF will have access to non-Essential Meteosat Data with a latency of more than 3 hours without charge for any use, subject to non-redistribution of the original numerical data.

10 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY COMMERCIAL USERS AND OTHER USERS

- 1 Commercial and other users will have access to non-Essential Meteosat Data with a latency of more than 3 hours without charge. Redistribution of the original numerical data to third parties is prohibited.
- 2 Commercial and other users will have access to non-Essential Meteosat Data with a latency of less than 3 hours against the fees and under the conditions specified below.
- 3 All End Users receiving Meteosat Data directly shall be charged an annual flat fee of EUR 4,000. Redistribution of the original numerical data is prohibited.
- 4 Service Providers and Broadcasters licensed for access to non-Essential Meteosat Data with a latency of less than 3 hours shall be charged an annual flat fee of EUR 8,000. Licences to Service Providers will allow redistribution of Meteosat Data to another Service Provider only if this other Service Provider has the appropriate licence with EUMETSAT or one of its Exclusive Licensing Agents. Otherwise, redistribution of the original numerical data is prohibited.
- 5 Fees will be reviewed by the EUMETSAT Council at regular intervals in light of experience.
- 6 Commercial and other users shall be free to establish prices when supplying Value Added Services to their users and have the right to make their Value Added Services available to users without territorial restriction.

11 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA FOR COMMERCIAL ACTIVITIES OF NMSs OF MEMBER STATES

- 1 The fees and conditions laid down in Rule 10 above shall apply in the relationship between the commercial activities of the NMSs of Member States and the NMSs when acting as EUMETSAT's Exclusive Licensing Agents.
- 2 In these cases, the NMSs acting as EUMETSAT's Exclusive Licensing Agents, shall be entitled to retain 25% of the fees due and shall allocate the balance to EUMETSAT.

12 CONDITIONS OF ACCESS TO ARCHIVED DATA AND PRODUCTS

- 1 All users world-wide will have access to Essential Meteosat Data and Products on a free and unrestricted basis, regardless of when and how these are made available to the user, as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).
- 2 All users will have access to non-Essential Meteosat Data and Products with a latency of more than 3 hours without charge for any use and upon acceptance of terms and conditions. Redistribution of the original numerical data is prohibited.
- 3 All users will have access to non-Essential Meteosat Data with a latency of less than 3 hours in accordance with the conditions laid down in Rules 6, 7, 8, 9, 10 and 11 above.
- 4 The volume of Archived Data and Products that may be ordered from the EUMETSAT Archive and Retrieval Facility through a single order or through successive orders is limited to avoid an unmanageable load and a consequential degraded level of service.

13 FINANCIAL MATTERS

- 1 All income arising from the implementation of these Implementing Rules shall be included under a separate budget line into the annual EUMETSAT Budgets on the basis of an estimate and shall be treated in accordance with the EUMETSAT Financial Rules.
- 2 EUMETSAT shall not be liable for the cost of procuring the necessary receiving equipment of any user. Decryption key units may be provided by EUMETSAT without costs. Users may be required to reimburse EUMETSAT for the cost of providing them with more than one of the decryption key units that may be required for the reception of non-Essential Meteosat Data, at the discretion of the Director-General. The number of decryption key units may be limited to avoid an unmanageable load and a consequential degraded level of service.

SPECIAL IODC FEE STRUCTURE

The original concepts of the Special IODC Fee Structure for access the EUMETSAT IODC services outside cooperation agreements signed with international partners, are as follows:

- 1 Access to all “Essential data” is provided without restriction;
- 2 The NMSs of countries below the threshold established in the EUMETSAT Data Policy shall have access to all data of the EUMETSAT IODC service without charge;
- 3 The NMSs of countries above the threshold (“wealthy countries”) shall pay a yearly fee of EUR 300,000. This fee would cover access to any EUMETSAT data more frequent than Hourly data and with latency less than 3 hours. No reductions shall apply for less frequent data.
- 4 Free access shall be provided temporarily to monitor disasters or emergencies, as foreseen in the general EUMETSAT Data Policy;
- 5 As an exception to the general policy, wealthy countries subject to tropical cyclones shall not be automatically entitled to a free licence. Any permanent waiver of licence fees would be considered exceptional and subject to Council decision on a case by case basis.
- 6 The Rules on commercial use shall remain unchanged;
- 7 The special IODC fee structure applies since 1 January 2017 and is subject to any decision taken by Member States in relation to EUMETSAT’s continued contribution to the IODC services.

It is understood that the fee level referred to in point 3) above shall continue to be applicable to any wealthy non-Member State wishing to receive Meteosat Second Generation IODC data, regardless of its geographical location. Those wealthy non-Member States wishing to receive all data from all EUMETSAT missions shall pay the IODC fee of EUR 300,000, or shall decide to receive data from other EUMETSAT missions for Official Duty use at the standard fee of EUR 100,000, but only essential data from the IODC service.

This fee structure is neither aimed at amending the general EUMETSAT Data Policy Principles, nor at changing the current Rules for access to Meteosat Data available from the EUMETSAT core mission.

IMPLEMENTING RULES FOR METOP DATA AND PRODUCTS

1 THE EUMETSAT POLAR SYSTEM (EPS)

The EPS system consists of a series of Metop satellites comprising instruments of EUMETSAT and the U.S. National Oceanic and Atmospheric Administration (NOAA).

The EUMETSAT instruments include the Microwave Humidity Sounder (MHS), Infrared Atmospheric Sounding Interferometer (IASI), Advanced Scatterometer (ASCAT), Global Ozone Monitoring Experiment-2 (GOME-2) and the Global Navigation Satellite System Receiver for Atmospheric Sounding (GRAS).

The NOAA meteorological instruments include the Advanced Very High Resolution Radiometer (AVHRR), Advanced Microwave Sounding Unit-A (AMSU-A) and the High Resolution Infrared Radiation Sounder (HIRS).

In accordance with the Agreement between EUMETSAT and NOAA on the Initial Joint Polar System (IJPS), EUMETSAT is entitled to establish access conditions for all data from the Metop satellites. However, EUMETSAT will not control access to the data from the NOAA instruments on the Metop satellites, unless in cases of data denial, as requested by NOAA (see below).

2 OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

EUMETSAT holds the full ownership and Intellectual Property Rights to those Metop data and products that are generated by the above EUMETSAT instruments and the EUMETSAT Ground Segment.

3 CONDITIONS OF ACCESS TO METOP DATA AND PRODUCTS

3.1 Essential Metop Data and Products

All Metop data and products that are described below are “essential” in accordance with the WMO Resolution 40 (Cg-XII). This means that access to these data and products is granted to all users without licence, without charge and without conditions on use regardless of when and how these are made available to the user.

3.1.1 Real-time Metop Data (Direct Readout service)

- *Advanced High Rate Picture Transmission (AHRPT) Data*

The AHRPT service includes all local raw data generated by all instruments on-board Metop, transmitted by a Metop satellite in full resolution and in real-time.

3.1.2 Near Real-time Global and Regional Products

- *Global and Regional Level 1 Products*

These include all global and regional level 1 MHS products, generated by the Core Ground Segment.

- *Global and Regional Level 2 Products*

These include global and regional level 2 products generated by the Core Ground Segment and/or the EUMETSAT Satellite Application Facilities (SAFs) and distributed in near real-time.

For a complete list of the near real-time global and regional level 1 and level 2 Metop products, please turn to the EUMETSAT website.

3.2 Non-Essential Metop Data and Products

Non-Essential Metop Data and Products include all global and regional level 1 products of the IASI, ASCAT, GRAS and GOME-2 instruments that are generated by the Core Ground Segment.

Access to the above products is granted to all users without charge, and against the signature of a licence agreement³. They may not be redistributed without transformation.

3.3 Metop Archive

All Metop data and products stored in the EUMETSAT Archive and off –line products generated by the EUMETSAT Satellite Application Facilities (SAFs) are distributed on request via the associated operational service.

For the complete list of the Archived Metop Data and Products users have to turn to the EUMETSAT EO Portal and the EUMETSAT Product Navigator on the website.

4 DATA DENIAL

Data denial means that in case of a crisis or war situation, EUMETSAT may be requested by NOAA to deny access to direct-readout NOAA instrument data or global/regional products derived from the US instruments on the Metop satellites.

In these situations, only authorised users will continue to receive these data. During data denial, re-distribution by authorised users of data from NOAA instruments to any unauthorised third party is prohibited. In principle, data denial will not be implemented for more than 120 days, unless explicitly extended.

³ Except for a subset, agreed by the EUMETSAT Council, for distribution via the Global Telecommunications System (GTS) of the World Meteorological Organization (WMO) as “essential” products.

5 FINANCIAL MATTERS

EUMETSAT shall not be liable for the cost of procuring the necessary receiving equipment of any user. Decryption key units may be provided by EUMETSAT without costs. Users may be required to reimburse EUMETSAT for the cost of providing them with more than one of the decryption key units that may be required, at the discretion of the Director-General. The number of decryption key units may be limited to avoid an unmanageable load and a consequential degraded level of service.

IMPLEMENTING RULES FOR OPERATIONAL SAF DELIVERABLES

1 THE EUMETSAT SATELLITE APPLICATION FACILITIES (SAFs)

The SAFs are dedicated centres of excellence for processing satellite data and form an integral part of the distributed EUMETSAT Application Ground Segment. Each SAF consists of a consortium, headed by a SAF Host and a number of Cooperating Entities. The SAFs use data from meteorological satellites both in geostationary and polar orbit to generate near real-time products, offline products, and software products.

There are eight SAFs providing products and software for distribution to users on an operational basis:

- Nowcasting and Very Short Range Forecasting (NWC SAF)
- Ocean and Sea Ice (OSI SAF)
- Climate Monitoring (CM SAF)
- Numerical Weather Prediction (NWP SAF)
- Land Surface Analysis (LSA SAF)
- Atmospheric Composition (AC SAF)
- Radio-Occultation Meteorology (ROM SAF)
- Support to Operational Hydrology and Water Management (H SAF)

2 OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

EUMETSAT holds the full ownership and Intellectual Property Rights to those operational SAF deliverables that are generated by the above SAFs under cooperation with EUMETSAT and as specified in the EUMETSAT website. The ownership of pre-existing software and third party software, re-used in each of the SAF software packages, remains with the originator of this software.

3 CONDITIONS OF ACCESS TO THE SAF DELIVERABLES

3.1 ESSENTIAL SAF PRODUCTS

The SAF products that are mentioned below are “essential” in accordance with the WMO Resolution 40 (Cg-XII). This means that access to these SAF products is granted to all users without a licence, without charge and without conditions on use.

These include near-real-time level 2 products generated by the Ocean and Sea Ice SAF, the Ozone and Atmospheric Chemistry Monitoring SAF, the GRAS Meteorology SAF and by the Land Surface Analysis SAF.

For a complete list of the SAF near real-time products, please turn to the EUMETSAT website.

3.2 SAF SOFTWARE

These include software packages created by the SAF on Support to Nowcasting and Very Short Range Forecasting, the Numerical Weather Prediction SAF and by the GRAS Meteorology SAF.

Access to these SAF software packages is granted to all users without charge, and against the signature of a licence agreement. They may not be redistributed. The SAF Host generating a SAF software will licence the use of the relevant software package on behalf of EUMETSAT.

For a complete list of the SAF software packages and the relevant SAF Host licensing the respective software package, please turn to the EUMETSAT website.

3.3 SAF ARCHIVE AND OFFLINE SAF PRODUCTS

All SAF products stored in the EUMETSAT Archive and off –line products generated by the EUMETSAT Satellite Application Facilities (SAFs) are distributed on request via the associated operational service.

For the complete list of the Archived SAF Products users have to turn to the EUMETSAT EO Portal and the EUMETSAT Product Navigator on the website. SAF products, which are archived at the relevant EUMETSAT Satellite Application Facilities (SAFs) and which can be ordered via the EUMETSAT Data Archive are included.

For a complete list of the archived/offline SAF products, please turn to the EUMETSAT website.

3.4 FINANCIAL MATTERS

EUMETSAT shall not be liable for the cost of procuring the necessary receiving equipment of any user. Decryption key units may be provided by EUMETSAT without costs. Users may be required to reimburse EUMETSAT for the cost of providing them with more than one of the decryption key units that may be required, at the discretion of the Director-General. The number of decryption key units may be limited to avoid an unmanageable load and a consequential degraded level of service

RESOLUTION ON

**THE UPDATE OF THE ANNUAL FEES APPLICABLE TO NMSs
OF NON-MEMBER STATES**

adopted at the 89th Meeting of the EUMETSAT Council on 3-4 July 2018

The EUMETSAT Member States,

RECALLING that the current EUMETSAT fees for Official Duty Use of Half-Hourly Data and Quarter-Hourly Meteosat Data by NMSs of Non-Member States were adopted in Resolution EUM/C/85/16/Res. I at the 85th Meeting of the EUMETSAT Council on 28-29 June 2016,

NOTING that Council at its 88th meeting endorsed the proposal to move from time sampling to latency criteria applied to Meteosat data and to provide access to non-Essential data with a latency of more than three hours free of charge,

NOTING that Council at its 88th meeting decided to declare Hourly Meteosat Data Essential,

RECALLING that the Annex I of the said Resolution also provides that the threshold is established at the “Upper Middle Income Value” defined by the World Bank,

RECALLING that the threshold and the fee tables shall be updated by the EUMETSAT Council every 2 years on the basis of the latest available World Bank statistics,

WISHING to update the threshold and the tables in accordance with the above-mentioned statistics,

AGREE to abolish Council Resolution EUM/C/85/16/Res. I and to replace it as follows:

- I** EUMETSAT fees for Official Duty Use of non-Essential Meteosat Data with a latency of less than three hours by NMSs of Non-Member States – Period 2017/2018 – shall be replaced by the version attached to this Resolution which includes the updated threshold and the table of Fees Applicable to NMSs of non-Member States for Official Duty Use – Period 2019/2020.
- II** This Resolution shall take effect on 1 January 2019.

**EUMETSAT FEES FOR OFFICIAL DUTY USE (OFD) OF NON-ESSENTIAL
METEOSAT DATA WITH A LATENCY OF LESS THAN THREE HOURS BY NMSs
OF NON-MEMBER STATES**

The attached Table contains the annual fees applicable to NMSs of non-Member States for access to non-Essential Meteosat data with a latency of less than three hours for Official Duty use. This table is valid for the period 2019-2020.

The following applies:

- 1) Official Duty use by NMSs of countries with a GNI per capita below or equal to USD 8,177, derived from World Bank statistics: Without Charge.
- 2) Official Duty use by NMSs of countries with a GNI per capita above USD 8,177: the fees are given in the table attached.
- 3) Review Mechanisms:
 - The table attached shall be updated by Council every 2 years on the basis of the latest available World Bank statistics.
 - Should the figures in the table attached prove to be erroneous or incomplete, the Director-General shall make appropriate recommendations on a case by case basis.
 - The “Upper Middle Income” value as defined in the World Bank statistics shall establish the threshold for free access to Half-hourly and Quarter-hourly Meteosat Data. This threshold shall be updated by Council every 2 years on the basis of the World Bank statistics.

EUMETSAT FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES		
Country	GNI/C	Non-Essential Meteosat data with a latency of less than three hours
		Annual Fee KEUR
Afghanistan	570	0
Albania	4,180	0
Algeria	4,220	0
Angola	3,450	0
Antigua and Barbuda	13,560	100
Argentina	11,970 d	100
Armenia	3,770	0
Australia	54,420	100
Azerbaijan	4,760	0
Bahamas	26,490	100
Bahrain	22,660 a	100
Bangladesh	1,330	0
Barbados	15,210	100
Belarus	5,590	0
Belize	4,360	0
Benin	820	0
Bhutan	2,510	0
Bolivia	3,070	0
Bosnia and Herzegovina	4,940	0
Botswana	6,750	0
Brazil	8,840	100
Brunei Darussalam	32,860	100
Burkina Faso	620	0
Burundi	280	0
Cabo Verde	2,970	0
Cambodia	1,140	0
Cameroon	1,400	0
Canada	43,660	100
Cayman Islands	a	100
Central African Republic	370	0
Chad	720	0
Chile	13,540	100
China	8,250	100
Colombia	6,310	0
Comoros	770	0
Congo	1,710	0
Congo, Dem. Rep.	430	0
Costa Rica	10,840	100
Côte d'Ivoire	1,520	0
Cuba	j	0
Curaçao and Sint Maarten	k	100
Cyprus	23,680 b	100
Djibouti	m	0
Dominica	7,110	0
Dominican Republic	6,390	0
Ecuador	5,800	0

EUMETSAT FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES		
Country	GNI/C	Non-Essential Meteosat data with a latency of less than three hours
		Annual Fee KEUR
Egypt	3,410	0
El Salvador	3,920	0
Eritrea	1	0
Ethiopia	660	0
Fiji	4,780	0
FYR of Macedonia	4,980	0
French Polynesia	.. k	0
Gabon	7,210	0
Gambia	430	0
Georgia	3,830 f	0
Ghana	1,380	0
Grenada	9,100	100
Guatemala	3,790	0
Guinea	670	0
Guinea-Bissau	600	0
Guyana	4,240	0
Haiti	780	0
Honduras	2,150	0
Hong Kong, China	43,240	100
India	1,670	0
Indonesia	3,400	0
Iran	5,470	0
Iraq	5,420	0
Israel	36,240	100
Jamaica	4,630	0
Japan	37,930	100
Jordan	3,920	0
Kazakhstan	8,810	100
Kenya	1,380	0
Kiribati	2,270	0
Korea, Dem. People's Rep.	1	0
Korea, Rep.	27,600	100
Kuwait	34,890	100
Kyrgyzstan	1,100	0
Lao People's Dem. Rep.	2,150	0
Lebanon	7,980	0
Lesotho	1,270	0
Liberia	370	0
Libya	j	0
Macao, China	64,580 a	100
Madagascar	400	0
Malawi	320	0
Malaysia	9,860	100
Maldives	10,630	100
Mali	770	0
Malta	24,210	100
Mauritania	1,130	0

EUMETSAT FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES		
Country	GNI/C	Non-Essential Meteosat data with a latency of less than three hours
		Annual Fee KEUR
Mauritius	9,770	100
Mexico	9,040	100
Micronesia	3,550	0
Moldova	2,120 h	0
Monaco	a	100
Mongolia	3,590	0
Montenegro	7,120	0
Morocco	2,850 g	0
Mozambique	480	0
Myanmar	1,190	0
Namibia	4,640	0
Nepal	730	0
New Caledonia	.. k	0
New Zealand	38,750	100
Nicaragua	2,100	0
Niger	370	0
Nigeria	2,450	0
Oman	18,080 a	100
Pakistan	1,500	0
Panama	12,140	100
Papua New Guinea	2,680 m	0
Paraguay	4,060	0
Peru	5,950	0
Philippines	3,580	0
Qatar	75,660 a	100
Russian Federation	9,720 e	100
Rwanda	700	0
St. Kitts and Nevis	15,690	100
Saint Lucia	8,400	100
St. Vincent and the Grenadines	6,770	0
Samoa	4,120	0
Sao Tome and Principe	1,720	0
Saudi Arabia	21,720	100
Senegal	950	0
Serbia	5,310	0
Seychelles	15,410	100
Sierra Leone	490	0
Singapore	51,880	100
Solomon Islands	1,880	0
Somalia	l	0
South Africa	5,490	0
South Sudan	820 a	0
Sri Lanka	3,780	0
Sudan	2,140	0
Suriname	6,990	0
Swaziland	2,960	0
Syrian Arab Republic	m	0

EUMETSAT FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES		
Country	GNI/C	Non-Essential Meteosat data with a latency of less than three hours
		Annual Fee KEUR
Tajikistan	1,110	0
Tanzania	900 i	0
Thailand	5,640	0
Timor-Leste	2,060	0
Togo	540	0
Tonga	4,060	0
Trinidad and Tobago	16,240	100
Tunisia	3,690	0
Turkmenistan	6,670	0
Turks and Caicos Islands	.. k	100
Tuvalu	5,090	0
Uganda	630	0
Ukraine	2,310 e	0
United Arab Emirates	40,480	100
United States of America	56,810	100
Uruguay	15,230	100
Uzbekistan	2,220	0
Vanuatu	3,170 a	0
Venezuela	j	0
Viet Nam	2,100	0
Yemen	1,040	0
Zambia	1,360	0
Zimbabwe	890	0

Footnotes:

- a. 2016 data not available; ranking is approximate.
- b. Data are for the area controlled by the government of Cyprus.
- c. Based on regression; other PPP figures are extrapolated from the 2011 International Comparison Program benchmark estimates.
- d. Based on data officially reported by the National Statistics and Censuses Institute of Argentina. The International Monetary Fund (IMF) has called on Argentina to adopt measures to address the quality of official GDP and consumer price index data, and issued an updated statement on Argentina's progress on August 31, 2016: <http://www.imf.org/en/News/Articles/2016/08/31/PR16389-Statement-by-the-IMF-Executive-Board-on-Argentina>. The World Bank systematically assesses the appropriateness of official exchange rates as conversion factors. For Argentina, an alternative conversion factor has been calculated using a weighted average method for the period from 2012 to 2015.
- e. Based on data from official statistics of Ukraine and Russian Federation; by relying on these data, the World Bank does not intend to make any judgment on the legal or other status of the territories concerned or to prejudice the final determination of the parties' claims.
- f. Excludes Abkhazia and South Ossetia.
- g. Includes Former Spanish Sahara.
- h. Excludes Transnistria.
- i. Covers mainland Tanzania only.
- j. Estimated to be upper middle income (\$3,956 to \$12,235).
- k. Estimated to be high income (\$12,236 or more).
- l. Estimated to be low income (\$1,005 or less).
- m. Estimated to be lower middle income (\$1,006 to \$3,995).

RESOLUTION

AMENDING THE THIRD PARTY PROGRAMME ON EUMETSAT ACTIVITIES IN SUPPORT OF THE IMPLEMENTATION OF THE COPERNICUS PROGRAMME IN THE PERIOD 2014-2021

**adopted at the 90th Meeting of the EUMETSAT Council
on 6-7 December 2018**

The EUMETSAT Council,

RECALLING Council Resolution EUM/C/81/14/Res. I Establishing a Third party Programme on EUMETSAT Activities in Support of the Implementation of the Copernicus Programme in the Period 2014-2021,

RECALLING the Agreement between the European Union, represented by the European Commission and EUMETSAT on the Implementation of the Copernicus Programme including the Transfer of Ownership of Certain assets (Copernicus Agreement) signed by the Parties on 14 November 2014,

RECALLING that, in accordance with Council Resolution EUM/C/81/14/Res. I the Copernicus Third Party Programme entered into force upon the signature of the Copernicus Agreement,

RECALLING the successful implementation of the Copernicus Third Party Programme and the efficient implementation by EUMETSAT of the tasks entrusted to it by the European Commission in accordance with the Copernicus Agreement,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

IN CONFORMITY with the Policy Principles for the Involvement of EUMETSAT in GMES Activities as endorsed by the EUMETSAT Council in June 2011,

AGREES:

- I** That the maximum financial envelope of the Copernicus Third party Programme, covering activities under the five Building Blocks, is M€ 254 at current economic conditions.
- II** That the cost for the implementation of the activities entrusted to EUMETSAT under Building Blocks 1 to 3, as defined in the Programme Proposal and the Agreement referred to in the Preamble, amounts to a maximum of M€ 254 at current economic conditions, and shall be fully covered by the European Union.

RESOLUTION ON
THE EXTENSION OF THE PERIOD OF SUBSCRIPTION TO THE
EUMETSAT JASON-CS OPTIONAL PROGRAMME

adopted at the 90th Meeting of the EUMETSAT Council
on 6-7 December 2018

The Participating States,

HAVING REGARD to Declaration EUM/C/83/15/Decl. I on the Optional EUMETSAT Jason-CS Programme adopted by Potential Participating States on 24 June 2015 and entered into force on 9 September 2015,

HAVING REGARD to Resolution EUM/C/84/15/Res. I on the immediate accession of Member States to the Optional EUMETSAT Jason-CS Programme upon subscription adopted by Participating States at the 84th meeting of the EUMETSAT Council on 1-2 December 2015,

HAVING REGARD to Resolution EUM/C/85/16/Res. III on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States at the 85th meeting of the EUMETSAT Council on 28-29 June 2016,

HAVING REGARD to Resolution EUM/C/87/17/Res. I on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States on 30 June 2017,

HAVING REGARD to Resolution EUM/C/88/17/Res. IV on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States at the 88th meeting of the EUMETSAT Council on 5-6 December 2017,

HAVING REGARD to Resolution EUM/C/89/18/Res. I on the extension of the period of subscription to the EUMETSAT Jason-CS Optional Programme adopted by Participating States at the 89th meeting of the EUMETSAT Council on 3-4 July 2018,

NOTING that the subscription level to the EUMETSAT Jason-CS Programme currently stands at 97.2370% of the MEUR 111.0 programme envelope at 2015 economic conditions,

AWARE that the subscription period to the EUMETSAT Jason-CS Programme runs until the 90th Council meeting on 6-7 December 2018 and that Article 10.5 of the EUMETSAT Convention foresees any deficit to be distributed pro rata among the existing Participating States unless these Participating States agree unanimously on a different solution,

TAKING INTO ACCOUNT that the current Participating States have already made their utmost efforts to increase their rate of contributions to achieve a 97.2370% subscription level, and that they should not be expected to increase their contributions further to fulfil the requirements of Article 10.5 EUMETSAT Convention,

REQUIRING therefore that the shortfall of 2.7630% be covered through accession of further Member States as Participating States,

AWARE that several Member States are currently in national discussions and approval procedures regarding their participation in the EUMETSAT Jason-CS Programme and have not been in a position to subscribe to said Programme prior to the subscription deadline of the 90th Council meeting on 6-7 December 2018,

WELCOMING, beyond the coverage of the shortfall, the accession of any further Member State as Participating State to the EUMETSAT Jason-CS Programme to ensure maximum participation, thereby stressing the solidarity principle,

HAVING REGARD to Article 5.3 and Article 10 of the EUMETSAT Convention,

UNANIMOUSLY AGREE:

- I** exceptionally, to extend the subscription deadline until the end of January 2019 to allow Member States to complete their national approval procedures on their participation in the EUMETSAT Jason-CS Programme and to subscribe to said Programme to cover the shortfall.
- II** to keep the current blocking of appropriations in the Jason-CS Budget 2018 that corresponds to the percentage of the shortfall and to introduce a similar blocking in the Jason-CS Budget 2019, in order to ensure that cumulative commitment appropriations in the year 2018 and 2019 do not exceed the actual subscribed percentage of the Jason-CS Programme envelope.
- III** that the blocking of appropriations in the Jason-CS Budget 2018 and 2019 currently assigned to Article 4100, may be reallocated over the course of the year in order to grant the necessary flexibility in the budget implementation and to enable EUMETSAT to fulfil its obligation towards ESA, as far as possible.
- IV** to request the Director-General to continue his efforts in supporting Member States' approval of their participation in the Programme.

RESOLUTION ON
AMENDMENTS TO THE METEOSAT IMPLEMENTING RULES
adopted at the 91st Meeting of the EUMETSAT Council on 25-26 June 2019

The EUMETSAT Member States,

TAKING INTO ACCOUNT the WMO Policy and Practice for the Exchange of Meteorological and Related Data and Products including Guidelines on Relationships in Commercial Meteorological Activities, as laid down in WMO Resolution 40 (Cg XII),

RECALLING that the current Meteosat Implementing Rules were originally adopted by Council as Annex I of Resolutions EUM/C/98/Res. IV and EUM/C/99/Res. VI, amended in Annex I of Resolution EUM/C/70/10/Res. III, EUM/C/80/14/Res. IV and EUM/C/85/16/Res. II, EUM/C/87/17/Res. I and in EUM/C/89/18/Res. II,

BEARING IN MIND the Roadmap of the Pathfinder Projects for future EUMETSAT data services, adopted by Council at its 85th meeting on 28-29 June 2016,

BEARING IN MIND the implementation of the simplifications to the EUMETSAT data and services policy adopted by Council Resolution EUM/C/89/18/Res. II on Amendments to the Data Policy Implementing Rules in reconciliation with the objectives of the Pathfinder Projects,

WHISHING to optimise the implementation of the fast track licensing,

AGREE:

- I** to amend Rule 5.2 of the current Meteosat Implementing Rules for Meteosat data and products.
- II** that the proposed amendments shown in Annex I to this Resolution shall take effect on 1 January 2020.
- III** that all other provisions in the Meteosat Implementing Rules and special IODC fee structure remain unchanged.

IMPLEMENTING RULES FOR METEOSAT DATA AND PRODUCTS

1 THE METEOSAT CATALOGUE

For the purpose of distribution, dissemination and commercial application, a list of data, products and services is contained in the Meteosat Catalogue as displayed in the EUMETSAT Product Navigator and the EO Portal on the website at www.eumetsat.int.

2 DEFINITIONS

For the purpose of these Implementing Rules, the following definitions shall apply:

"Advanced Image Product": the combination of different channels allocating a colour to each channel (i.e. RGB) or the mathematical blending of several image layers. These products do not contain the original numerical data.

"Archived Data and Products": Meteosat Data, Advanced Image Products and Derived Products from EUMETSAT's satellites stored in any format in EUMETSAT's data archive system.

"Broadcasters": those users who disseminate an item from the Meteosat Catalogue or images based on Meteosat Data through electronic public information systems including, but not limited to, Internet, terrestrial and satellite transmissions.

"Educational Use": any use of an item from the Meteosat Catalogue solely for educational non-commercial purposes, without transmission or redistribution of these data, products and services to any further third party, or use of them to generate a Value Added Service.

"End Users": those users who use an item from the Meteosat Catalogue for their own commercial or industrial purposes and do not pass on such item to any further user or use it to generate a Value Added Service.

"Essential Data and Products": EUMETSAT Data and Products which are declared "Essential" in accordance with WMO Resolution 40 (Cg-XII), as agreed by Council regardless of when and how these are made available to the user.

"Exclusive Licensing Agent": a NMS of a Member State exclusively representing EUMETSAT within that State for the purpose of licensing Meteosat Data.

"Hourly Meteosat Data": those nominal full disk repeat cycles of Meteosat Data referenced by EUMETSAT in time to each clock hour (UTC).

"High Rate SEVIRI Data ": high rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

"HRI Data": high resolution image data generated by a Meteosat First Generation satellite.

"Latency": the difference between the time reference attached by EUMETSAT to Meteosat Data or Product and its availability for user access under a given service.

"Low Rate SEVIRI Data ": low rate image data from the SEVIRI instrument of a Meteosat Second Generation satellite, processed to level 1.5 by the EUMETSAT Ground Segment.

"Member States": the States which are parties to the Convention for the Establishment of a European Organisation for the Exploitation of Meteorological Satellites.

"Meteosat Catalogue": the list of Meteosat Data, Products and Services provided in the EO Portal and the EUMETSAT Product Navigator.

“Meteosat Data”: all HRI Data and High Rate/Low Rate SEVIRI Data generated by the Meteosat First and Second Generation satellites.

"Meteosat Derived Products": products derived from level 1.5 Meteosat Data and disseminated to users in formats corresponding to WMO coding requirements that represent full spatial coverage. This includes products generated by the EUMETSAT ground segment and the EUMETSAT Satellite Application Facilities (SAFs).

"National Territory": the national territory of a state, including its internal waters, its archipelagic waters, its territorial sea and its exclusive economic zone, as defined in the United Nations Convention on the Law of the Sea (UNCLOS) signed in Montego Bay on 10 December 1982 and having entered into force on 16 November 1994.

"NMS" (National Meteorological Service): service responsible at national level, in conformity with its legal status, for the gathering, classification and production of meteorological information in the national interest, and responsible at international level for participating in WMO programmes.

"Official Duty": all activities which take place within the organisation of a NMS and external activities of a NMS resulting from legal, governmental or intergovernmental requirements relating to defence, civil aviation and the safety of life and property.

“Personal Use”: any use of an item from the Meteosat Catalogue solely for personal non-commercial purposes, without transmission or redistribution of these data, products and services to any further third party, or use of them to generate a Value Added Service.

“Rapid Scanning Data”: those Meteosat Data acquired by scanning of a certain geographical area within the footprint of a Meteosat satellite in more frequent time intervals than the nominal full disk repeat cycles.

"Research Project": any project organised for non-commercial research purposes only. A necessary condition for the recognition of non-commercial purposes is that all the results obtained are openly available at delivery costs only, without any delay linked to commercial objectives, and that the research itself is submitted for open publication.

"Service Providers": those users who acquire an item from the Meteosat Catalogue in order to supply Value Added Services under specific licence conditions to a third party clearly identified and known to the Service Provider.

"Standard Licence Agreement": the standard terms and conditions pursuant to which items in the Meteosat Catalogue must be licensed to users.

“Subsidiary”: a company which is controlled by the Licensee by means of the Licensee holding the majority of the voting rights (50% plus one vote).

"Third Party": any party external to a licence agreement between EUMETSAT or one of its Exclusive Licensing Agents and a user.

"Value Added Services (VAS)": all meteorological services which are derived from Meteosat data or products, specifically conceived for the needs of users and made available under specific licence conditions.

“Web Map Service”: a EUMETSAT Internet service that makes certain Meteosat Data, Advanced Image Products and Meteosat Derived Products defined in the Meteosat Catalogue accessible for visualisation via the Internet, but with no provision of access to original numerical data.

"Without Charge": at no more than the cost of reproduction and delivery (including the cost of distribution media, documentation, software licences, transmission and direct labour cost), but without charge for the data and products themselves.

3 OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

- 1 EUMETSAT holds the full ownership and Intellectual Property Rights to the Meteosat Data and Products.
- 2 The Intellectual Property Rights to images based on Meteosat Data are shared between EUMETSAT and the Service Provider generating the images.
- 3 The Intellectual Property Rights to Value Added Services other than images based on Meteosat Data are considered to be owned by the Service Provider generating the Value Added Service.

4 "ESSENTIAL" METEOSAT DATA AND PRODUCTS

EUMETSAT shall make its Hourly Meteosat Data, all Derived Products and Advance Image Products available to all users world-wide on a free and unrestricted basis, regardless of when and how these are made available to the user, as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).

5 LICENSING FOR NON-ESSENTIAL METEOSAT DATA

- 1 All Meteosat data and products not defined as "Essential" in Rule 4 above are classified as non-Essential.
- 2 The NMSs of Member States, acting as Exclusive Licensing Agents on behalf and for the account of EUMETSAT, shall have the responsibility for licensing non-Essential Meteosat Data with a latency of less than 3 hours to End users, Broadcasters and Service Providers ~~to users~~ receiving the data within their respective National Territories.
- 3 Acting as EUMETSAT's Exclusive Licensing Agents, the NMSs shall apply the EUMETSAT fees and conditions defined in Rules 8 and 10 below and shall sign licences applying the EUMETSAT standard licensing conditions with their users. The NMSs shall inform EUMETSAT of the signing of such licences.
- 4 The NMSs shall retain 25% of the fees received and allocate the remaining 75% to EUMETSAT.
- 5 Licensing for access to non-Essential Meteosat Data received outside Member States shall always be through a Standard Licence Agreement between the User and EUMETSAT according to the guidelines detailed in Rules 7, 8, 9 and 10 below.
- 6 EUMETSAT shall be responsible for the licensing of access to non-Essential data accessed via all types of EUMETSAT data access services (e.g.: Archive Data Service, Web Services...).

6 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF MEMBER STATES

- 1 The NMSs of Member States will receive non-Essential Meteosat Data for Official Duty use without charge.
- 2 Insofar as required for Official Duty use, the NMSs may grant access to other Departments within their respective National Administrations, subject to arrangements in accordance with national legislation, but all conditions defined in these Rules remain attached to the use of the data. Further distribution and all commercial applications of the Meteosat Data are subject to Rules 8, 10 and 11 below.

7 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY NMSs OF NON-MEMBER STATES

- 1 NMSs of non-Member States will have access to non-Essential Meteosat Data with a latency of more than 3 hours without charge upon acceptance of terms and conditions. Redistribution of the original numerical data to third parties is prohibited.
- 2 NMSs of non-Member States will have access to non-Essential Meteosat Data with a latency of less than 3 hours for Official Duty use in accordance with the conditions specified in Resolution EUM/C/89/18/Res. III.
- 3 NMSs of non-Member States which provide EUMETSAT with equivalent satellite data will be provided data under conditions to be agreed by the EUMETSAT Council on a case by case basis.
- 4 For limited periods, to support the monitoring of disasters or emergencies and in accordance with relevant UN resolutions, the full set of Meteosat Data will be made available Without Charge.
- 5 For Official Duty use by NMSs of non-Member States subject to tropical cyclones, all non-essential Meteosat Data will be made available Without Charge.
- 6 Regarding their commercial activities, the NMSs of non-Member States shall be treated in the same way as Service Providers, in accordance with the fees and conditions listed in Rule 10.
- 7 EUMETSAT will inform the NMSs of non-Member States of licences signed with other users receiving non-Essential Meteosat Data within their respective territories.

8 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY RESEARCH PROJECTS AND FOR EDUCATIONAL OR PERSONAL USE

Research Projects and Educational Users are given access Without Charge to non-Essential Meteosat Data, in accordance with standard EUMETSAT licensing conditions.

9 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY ECMWF

ECMWF is given access Without Charge to non-Essential Meteosat Data for its own use in support of its mission, as defined in the ECMWF Convention. This use shall only cover activities carried out within the ECMWF Secretariat and shall not include retransmission of Meteosat Data to other users, including its Member States.

ECMWF will have access to non-Essential Meteosat Data with a latency of more than 3 hours without charge for any use, subject to non-redistribution of the original numerical data.

10 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA BY COMMERCIAL USERS AND OTHER USERS

- 1 Commercial and other users will have access to non-Essential Meteosat Data with a latency of more than 3 hours without charge. Redistribution of the original numerical data to third parties is prohibited.
- 2 Commercial and other users will have access to non-Essential Meteosat Data with a latency of less than 3 hours against the fees and under the conditions specified below.
- 3 All End Users receiving non-Essential Meteosat Data directly with a latency of less than 3 hours shall be charged an annual flat fee of EUR 4,000. Redistribution of the original numerical data is prohibited.
- 4 Service Providers and Broadcasters licensed for access to non-Essential Meteosat Data with a latency of less than 3 hours shall be charged an annual flat fee of EUR 8,000. Licences to Service Providers will allow redistribution of Meteosat Data to another Service Provider only if this other Service Provider has the appropriate licence with EUMETSAT or one of its Exclusive Licensing Agents. Otherwise, redistribution of the original numerical data is prohibited.
- 5 Fees will be reviewed by the EUMETSAT Council at regular intervals in light of experience.
- 6 Commercial and other users shall be free to establish prices when supplying Value Added Services to their users and have the right to make their Value Added Services available to users without territorial restriction.

11 CONDITIONS OF ACCESS TO NON-ESSENTIAL METEOSAT DATA FOR COMMERCIAL ACTIVITIES OF NMSs OF MEMBER STATES

- 1 The fees and conditions laid down in Rule 10 above shall apply in the relationship between the commercial activities of the NMSs of Member States and the NMSs when acting as EUMETSAT's Exclusive Licensing Agents.
- 2 In these cases, the NMSs acting as EUMETSAT's Exclusive Licensing Agents, shall be entitled to retain 25% of the fees due and shall allocate the balance to EUMETSAT.

12 CONDITIONS OF ACCESS TO ARCHIVED DATA AND PRODUCTS

- 1 All users world-wide will have access to Essential Meteosat Data and Products on a free and unrestricted basis, regardless of when and how these are made available to the user, as "Essential" Data and Products in accordance with WMO Resolution 40 (Cg-XII).
- 2 All users will have access to non-Essential Meteosat Data and Products with a latency of more than 3 hours without charge for any use and upon acceptance of terms and conditions. Redistribution of the original numerical data is prohibited.
- 3 All users will have access to non-Essential Meteosat Data with a latency of less than 3 hours in accordance with the conditions laid down in Rules 6, 7, 8, 9, 10 and 11 above.
- 4 The volume of Archived Data and Products that may be ordered from the EUMETSAT Archive and Retrieval Facility through a single order or through successive orders is limited to avoid an unmanageable load and a consequential degraded level of service.

13 FINANCIAL MATTERS

- 1 All income arising from the implementation of these Implementing Rules shall be included under a separate budget line into the annual EUMETSAT Budget on the basis of an estimate and shall be treated in accordance with the EUMETSAT Financial Rules.
- 2 EUMETSAT shall not be liable for the cost of procuring the necessary receiving equipment of any user. Decryption key units may be provided by EUMETSAT without costs. Users may be required to reimburse EUMETSAT for the cost of providing them with more than one of the decryption key units that may be required for the reception of non-Essential Meteosat Data, at the discretion of the Director-General. The number of decryption key units may be limited to avoid an unmanageable load and a consequential degraded level of service.

RESOLUTION ON
THE APPROVAL OF THE INCREASE OF
THE FINANCIAL ENVELOPE OF THE EPS PROGRAMME

presented for adoption at the 91st Meeting of the EUMETSAT Council
on 25-26 June 2019

adopted on 26 June 2019

The EUMETSAT Member States,

CONSIDERING that the EUMETSAT Council, at its 88th meeting on 5-6 December 2017 unanimously adopted Resolution EUM/C/88/17/Res. I on the extension of the duration of the EPS Programme,

CONSIDERING that the EUMETSAT Council, also at its 88th meeting, opened the voting of Resolution EUM/C/88/17/Res. II on an increase of the financial envelope of the EPS Programme,

NOTING that 29 of the 30 Member States have firmly voted in favour of Resolution EUM/C/88/17/Res. II,

NOTING that Portugal still needs to confirm its positive vote on Resolution EUM/C/88/17/Res. II,

RECALLING that Resolution EUM/C/88/17/Res. II will only formally enter into force upon approval by all Member States,

NOTING that the Portuguese Government, by Resolution n° 32/2015, has authorised the participation and financial contributions of Portugal to the EPS programme until the end of 2024,

EXPECTING that Portugal will be able to lift the *ad referendum* attached to its positive vote within a short period of time, and that the formal entry into force of Resolution EUM/C/88/17/Res. II will take place before the next ordinary Council meeting in December 2019,

AGREE to authorise the Director-General to commit funds for EPS operations up until the end of 2024,

URGE Portugal to complete as soon as possible the national approval process for its contributions to the increase of the financial envelope of the EPS programme beyond 2024.

RESOLUTION ON
THE FOURTH EXTENSION OF
THE OPTIONAL JASON-2 ALTIMETRY PROGRAMME

**presented for adoption at the 91st Meeting of the EUMETSAT Council
on 25-26 June 2019, withdrawn at the 92nd Meeting of the EUMETSAT Council on
3-4 December 2019**

The Participating States in the Jason-2 Programme,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy foresees continuity of the optional Jason altimetry satellite series,

TAKING INTO ACCOUNT the Declaration EUM/C/01/Decl.I on the Optional EUMETSAT Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT the Resolution EUM/C/77/12/Res.III on the Extension of the Optional Jason-2 Altimetry Programme, Resolution EUM/C/79/13/Res.IV on the Second Extension of the Optional Jason-2 Altimetry Programme and Resolution EUM/C/86/16/Res.III on the Third Extension of the Optional Jason-2 Altimetry Programme,

TAKING INTO ACCOUNT the Declaration EUM/C/67/09/Decl.I on the Optional EUMETSAT Jason-3 Altimetry Programme as well as Declaration EUM/C/83/15/Dcl.I on the Optional EUMETSAT Jason-CS Programme,

BEARING IN MIND the status of the Jason-2 satellite and the related ground segment infrastructure,

CONSIDERING that the first satellite of the future Sentinel-6 altimetry reference mission is currently planned for launch in mid-November 2020 and, following a commissioning period lasting approximately twelve months, will be declared operational towards the end of 2021,

CONSIDERING the value of continued Jason-2 measurements to operational oceanography and climate monitoring in synergy with Jason-3, Sentinel-3 and Sentinel-6 missions,

WISHING to seize the opportunity to use the Jason-2 satellite for two more years, until end of 2021, to increase the accuracy and/or the spatial resolution of the map of mean sea surface already produced by Jason-2 at 4 km resolution, for the benefit of all future altimeter missions,

CONSISTENT with the Jason-2 Declaration, in which Participating States agreed to consider a possible extension of EUMETSAT Jason-2 Altimetry Programme operations beyond the 5-year period covered by the Jason-2 Programme Proposal, it being understood that this extension shall require unanimous approval by Participating States,

WISHING to exploit the full operational value of the Jason-2 system to the benefit of Participating States and the international user community,

AGREE:

- I** To amend the Optional Jason-2 Altimetry Programme Declaration to extend the duration of the Programme to cover Jason-2 operations for a further two-year period from 1 January 2020 until the end of 2021, followed by a six-month period for close-out activities until mid-2022, and including continued EUMETSAT involvement in the SARAL mission;
- II** To increase the financial envelope to MEUR 32.35 at 2001 economic conditions;
- III** That, should the Jason-2 satellite be lost in orbit prematurely before end of 2021 and the SARAL satellite continue to deliver useful altimetry data, Council and Participating States will be invited to decide whether to continue SARAL arrangements, and remaining Programme funds will be returned to Participating States.

**RESOLUTION ON
CEILING OF THE GENERAL BUDGET 2021-2025**

**adopted at the 92nd Meeting of the EUMETSAT Council
on 3-4 December 2019**

The EUMETSAT Member States,

HAVING REGARD to Article 2.5 of the EUMETSAT Convention, which establishes that the General Budget comprises activities not linked to a specific programme,

CONSIDERING that these activities shall represent the basic technical and administrative infrastructure of EUMETSAT including basic staff, buildings and equipment as well as preliminary activities authorised by the Council in preparation of future programmes, not yet approved,

RECALLING EUM/C/Res. XVIII establishing the first General Budget, a ceiling for the years 1990-1995 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/95/Res. VI establishing the second General Budget, a ceiling for the years 1996-2000 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/99/Res. V establishing the third General Budget, a ceiling for the years 2001-2005 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/57/05/Res. I establishing the fourth General Budget, a ceiling for the years 2006-2010 and contributions based on a GNI scale of contributions,

RECALLING EUM/C/67/09/Res. III establishing the fifth General Budget, a ceiling for the years 2011-2015 and contributions based on a GNI scale of contributions,

RECALLING EUM/C/82/14/Res. III establishing the sixth General Budget, a ceiling for the years 2016-2020 and contributions based on a GNI scale of contributions,

EXPRESSING the need to establish a new ceiling,

AGREE:

- I** To fix a new ceiling of the General Budget for the years 2021-2025,
- II** To link this ceiling to contributions from Member States on a GNI scale,
- III** To limit these contributions to M€ 103.2 at 2020 economic conditions, including M€ 13.5 for the East Building Extension & Parking with related budgetary provisions blocked until relevant decision by Council, and M€ 4.0 as Copernicus Risk Margin.

**RESOLUTION ON
THE EXTENSION OF THE JASON-3 OPTIONAL PROGRAMME**

**adopted at the 93rd Meeting of the EUMETSAT Council
on 30 June 2020**

The Participating States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT strategy foresees continuity of the Jason altimetry satellites series,

TAKING INTO ACCOUNT Declaration EUM/C/67/09/Decl. I on the EUMETSAT Jason-3 Optional Programme as well as Declaration EUM/C/83/15/Decl. I on the EUMETSAT Jason-CS Optional Programme,

HAVING REGARD to the Copernicus Third Party Programme, unanimously approved by Member States and implemented through the Copernicus Agreement between the EU and EUMETSAT, forming the legal and financial framework for the funding of EUMETSAT Jason-3 operations,

BEARING IN MIND that the Jason-3 satellite, currently the reference high precision ocean altimetry mission, is in very good health and that the related ground segment infrastructure allows for extended Jason-3 operations,

CONSIDERING that the Sentinel-6 Michael Freilich satellite of the future Sentinel-6/Jason-CS mission altimetry reference mission is currently planned for launch in November 2020 and, following a commissioning period lasting approximately twelve months, will be declared operational towards the end of 2021,

CONSIDERING the value of Jason-3 measurements to operational oceanography and climate monitoring in synergy with the Sentinel-3 and Sentinel-6/Jason-CS missions,

CONSISTENT with the Jason-3 Declaration, in which Participating States agreed to consider a possible extension of EUMETSAT Jason-3 Programme operations beyond the 5-year period covered by the Jason-3 Programme Proposal, it being understood that this extension requires unanimous approval by Participating States,

CONSISTENT with EUMETSAT's commitment towards the EU under the Copernicus Agreement and considering that Jason-3 operations and related funding are expected to continue through follow-up agreements with the EU in the context of the Copernicus element of the EU Space Programme

AGREE to extend the Jason-3 Optional Programme for such time as operations and maintenance activities are funded by the EU, in the context of approved EUMETSAT Third Party Copernicus Programmes, and by the US programme partners, following unanimous recommendations of the Jason-3 Joint Steering Group to extend routine operations.

RESOLUTION ON
THE UPDATE OF THE ANNUAL FEES APPLICABLE TO NMSs
OF NON-EUMETSAT MEMBER STATES FOR OFFICIAL DUTY USE OF
NON-ESSENTIAL METEOSAT DATA WITH A LATENCY OF LESS THAN
THREE HOURS FOR THE PERIOD 2021-2022

adopted at the 93rd Meeting of the EUMETSAT Council
on 30 June 2020

The EUMETSAT Member States,

RECALLING that the current EUMETSAT fees for Official Duty Use of non-Essential Meteosat Data with a latency of less than three hours by NMSs of Non-Member States were adopted in Resolution EUM/C/89/18/Res. III at the 89th Meeting of the EUMETSAT Council on 3-4 July 2018,

RECALLING that Annex I of Resolution EUM/C/89/18/Res. III provides that the threshold is established at the “Upper Middle Income Value” defined by the World Bank,

RECALLING that the threshold and the fee tables shall be updated by the EUMETSAT Council every 2 years on the basis of the latest available World Bank statistics,

WISHING to update the threshold and the fee tables in accordance with the World Bank report of 23 December 2019 entitled “Gross national income per capita ranking table based on the World Bank Atlas method and purchasing power parity (PPP)”,

AGREE:

- I** To abolish Council Resolution EUM/C/89/18/Res. III.
- II** To apply the Annual Fees Applicable to NMSs of Non-EUMETSAT Member States for Official Duty Use of Non-Essential Meteosat Data with a Latency of Less than Three Hours, as set out in Annex I to this Resolution, for the period 1 January 2021 to 31 December 2022.
- III** That this Resolution shall take effect on 1 January 2021.

**ANNUAL FEES APPLICABLE TO NMSs OF NON-EUMETSAT MEMBER STATES
FOR OFFICIAL DUTY USE OF NON-ESSENTIAL METEOSAT DATA WITH A
LATENCY OF LESS THAN THREE HOURS FOR THE PERIOD 2021-2022**

The following table contains the annual fees applicable to NMSs of non-EUMETSAT Member States for Official Duty Use of non-Essential Meteosat Data with a latency of less than three hours. This table is valid for the period 2021-2022.

The following applies:

- 1) Official Duty use by NMSs of countries with a GNI per capita below or equal to USD 8,869, derived from World Bank statistics: Without Charge.
- 2) Official Duty use by NMSs of countries with a GNI per capita above USD 8,869: the fees are given in the table attached.
- 3) Review Mechanisms:
 - The table shall be updated by Council every 2 years on the basis of the latest available World Bank statistics.
 - Should the figures in the table prove to be erroneous or incomplete, the Director-General shall make appropriate recommendations on a case-by-case basis.
 - The “Upper Middle Income” value as defined in the World Bank statistics shall establish the threshold for free access to non-Essential Meteosat Data with a latency of less than three hours for Official Duty Use. This threshold shall be updated by Council every 2 years on the basis of the World Bank statistics.

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
Afghanistan	550	0	0
Albania	4,860	0	0
Algeria	3,920	0	0
Andorra	.. j	100	300
Angola	3,370	0	0
Antigua and Barbuda	15,890	100	300
Argentina	12,390 c	100	300
Armenia	4,230	0	0
Australia	53,230	100	300
Azerbaijan	4,050	0	0
Bahamas	30,520	100	300
Bahrain	21,890	100	300
Bangladesh	1,750	0	0
Barbados	15,410	100	300
Belarus	5,670	0	0
Belize	4,470	0	0
Benin	870	0	0
Bhutan	3,080	0	0
Bolivia	3,370	0	0
Bosnia and Herzegovina	5,740	0	0
Botswana	7,750	0	0
Brazil	9,140	100	300
British Virgin Islands	.. j	100	300
Brunei Darussalam	29,660	100	300
Burkina Faso	670	0	0
Burundi	280	0	0
Cabo Verde	3,420	0	0
Cambodia	1,390	0	0
Cameroon	1,440	0	0
Canada	44,940	100	300
Cayman Islands	.. j	100	300
Central African Republic	490	0	0
Chad	670	0	0
Chile	14,670	100	300
China	9,460	100	300
Colombia	6,180	0	0
Comoros	1,380	0	0
Congo, Dem. Rep.	490	0	0
Congo, Rep.	1,640	0	0
Costa Rica	11,520	100	300
Côte d'Ivoire	1,600	0	0
Cuba	.. i	0	0
Curaçao and Sint Maarten	19,070	100	300
Cyprus	26,300 a	100	300

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
Djibouti	3,190	0	0
Dominica	7,090	0	0
Dominican Republic	7,760	0	0
Ecuador	6,110	0	0
Egypt	2,800	0	0
El Salvador	3,820	0	0
Eritrea	.. k	0	0
Eswatini	3,930	0	0
Ethiopia	790	0	0
Fiji	5,860	0	0
French Polynesia	.. j	100	300
Gabon	6,830	0	0
Gambia	710	0	0
Georgia	4,440 e	0	0
Ghana	2,130	0	0
Guatemala	4,400	0	0
Guinea	850	0	0
Guinea-Bissau	750	0	0
Guyana	4,770	0	0
Haiti	800	0	0
Honduras	2,350	0	0
Hong Kong SAR, China	50,300	100	300
India	2,020	0	0
Indonesia	3,840	0	0
Iran	5,470	0	0
Iraq	5,040	0	0
Israel	40,920	100	300
Jamaica	4,970	0	0
Japan	41,310	100	300
Jordan	4,200	0	0
Kazakhstan	8,070	0	0
Kenya	1,620	0	0
Kiribati	3,140	0	0
Korea, Dem. People's Rep.	.. k	0	0
Korea, Rep.	30,600	100	300
Kuwait	34,290	100	300
Kyrgyzstan	1,220	0	0
Lao PDR	2,450	0	0
Lebanon	7,920	0	0
Lesotho	1,390	0	0
Liberia	610	0	0
Libya	6,400	0	0
Macao SAR, China	79,110	100	300
Madagascar	510	0	0
Malawi	360	0	0

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
Malaysia	10,590	100	300
Maldives	9,280	100	300
Mali	840	0	0
Malta	26,480	100	300
Mauritania	1,160	0	0
Mauritius	12,050	100	300
Mexico	9,180	100	300
Micronesia	3,400	0	0
Moldova	2,980 g	0	0
Monaco	.. j	100	300
Mongolia	3,660	0	0
Montenegro	8,430	0	0
Morocco	3,090 f	0	0
Mozambique	460	0	0
Myanmar	1,310	0	0
Namibia	5,220	0	0
Nauru	12,060	100	300
Nepal	970	0	0
New Caledonia	.. j	100	300
New Zealand	40,640	100	300
Nicaragua	2,030	0	0
Niger	390	0	0
Nigeria	1,960	0	0
North Macedonia	5,450	0	0
Oman	15,140	100	300
Pakistan	1,590	0	0
Panama	14,370	100	300
Papua New Guinea	2,570	0	0
Paraguay	5,670	0	0
Peru	6,470	0	0
Philippines	3,830	0	0
Qatar	61,150	100	300
Russian Federation	10,230 d	100	300
Rwanda	780	0	0
Saint Lucia	9,560	100	300
Samoa	4,020	0	0
São Tomé and Príncipe	1,890	0	0
Saudi Arabia	21,600	100	300
Senegal	1,410	0	0
Serbia	6,390	0	0
Seychelles	15,600	100	300
Sierra Leone	490	0	0
Singapore	58,770	100	300
Solomon Islands	2,020	0	0
Somalia	.. k	0	0

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
South Africa	5,750	0	0
South Sudan	.. k	0	0
Sri Lanka	4,060	0	0
Sudan	1,560	0	0
Suriname	5,210	0	0
Syria	.. l	0	0
Tajikistan	1,010	0	0
Tanzania	1,020 h	0	0
Thailand	6,610	0	0
Timor-Leste	1,820	0	0
Togo	660	0	0
Tonga	4,300	0	0
Trinidad and Tobago	15,950	100	300
Tunisia	3,500	0	0
Turkmenistan	6,740	0	0
Turks and Caicos Islands	26,740	100	300
Tuvalu	5,430	0	0
Uganda	620	0	0
Ukraine	2,660 d	0	0
United Arab Emirates	40,880	100	300
United States of America	63,080	100	300
Uruguay	15,650	100	300
Uzbekistan	2,020	0	0
Vanuatu	3,130	0	0
Venezuela	.. i	100	300
Vietnam	2,360	0	0
Yemen, Rep.	.. k	0	0
Zambia	1,430	0	0
Zimbabwe	1,790	0	0

Footnotes:

- Data are for the area controlled by the government of Cyprus.
- Based on regression; other PPP figures are extrapolated from the 2011 International Comparison Program benchmark estimates.
- Based on data officially reported by the National Statistics and Censuses Institute of Argentina. The International Monetary Fund (IMF) has called on Argentina to adopt measures to address the quality of official GDP and consumer price index data, and issued an updated statement on Argentina's progress on August 31, 2016: <http://www.imf.org/en/News/Articles/2016/08/31/PR16389-Statement-by-the-IMF-Executive-Board-on-Argentina>. The World Bank systematically assesses the appropriateness of official exchange rates as conversion factors. For Argentina, an alternative conversion factor has been calculated using a weighted average method for the period from 2012 to 2015.
- Based on data from official statistics of Ukraine and Russian Federation; by relying on these data, the World Bank does not intend to make any judgment on the legal or other status of the territories concerned or to prejudice the final determination of the parties' claims.
- Excludes Abkhazia and South Ossetia.
- Includes Former Spanish Sahara.
- Excludes Transnistria.
- Covers mainland Tanzania only.
- Estimated to be upper middle income (\$3,996 to \$12,375).
- Estimated to be high income (\$12,376 or more).
- Estimated to be low income (\$1,025 or less).
- Estimated to be lower middle income (\$1,026 to \$3,995).

RESOLUTION
FOR THE
THIRD PARTY PROGRAMME
ON EUMETSAT ACTIVITIES IN SUPPORT OF COPERNICUS IN THE PERIOD
2021-2027

adopted at the 94th Meeting of the EUMETSAT Council
on 22 October 2020

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT Strategy “Challenge 2025” approved at the 85th Council meeting in June 2016 foresees to use a proportionate share of EUMETSAT’s overall resources to support EU programmes that provide benefits to both its Member States and the EU,

TAKING INTO ACCOUNT the decisions taken at the 64th and 67th EUMETSAT Council meetings in July 2008 and July 2009 to provide free access to all data, products and services from EUMETSAT satellites to the GMES Core Services, in the expectation that access to GMES data will be free of charge, on the understanding that each user within these services will sign a licence with EUMETSAT and subject to commitment from the European Union and national authorities to fund these Core Services on a sustainable basis,

TAKING INTO ACCOUNT that EUMETSAT Member States agreed, at the 64th Council meeting in July 2008, on the approach for implementation of GMES Sentinels 4 and 5 on EUMETSAT satellites, including a contribution by EUMETSAT to accommodate these instruments on EUMETSAT satellites, and also to the EUMETSAT involvement in GMES Sentinel 3 activities,

RECALLING the establishment of the GMES Sentinel-3 Third Party Programme with ESA through Council Resolution EUM/C/67/09/Res. II, adopted by the EUMETSAT Council in July 2009,

BEARING IN MIND that Article 2.9 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties,

RECALLING the establishment of the Third Party Programme on EUMETSAT Activities in Support of Copernicus in the Period 2014-2021 through Council Resolution EUM/C/81/14/Res. I, adopted by the EUMETSAT Council in October 2014 and amended by Council Resolution EUM/C/90/18/Res. I,

RECALLING the successful cooperation with the European Union in the implementation of the first phase of the EU Copernicus Programme, and the benefits accrued for EU and EUMETSAT Member States,

WISHING to capitalize on this successful cooperation and on the synergies between Copernicus and EUMETSAT satellite missions, including the implementation of the Copernicus Sentinel-4 and Sentinel-5 missions as part of the EUMETSAT Meteosat Third Generation and EPS-Second Generation systems, respectively, to leverage further mutual benefits in the second phase of the EU Copernicus Programme;

AWARE that the EU Space Programme Regulation (COM(2018) 447 final) proposed by the European Commission foresees that:

- The objectives of the Copernicus Programme are to deliver accurate and reliable Earth Observation data and information, supplied on a long-term basis, to support the implementation and monitoring of the Union and its Member States' policies in the fields of the environment, climate change, agriculture and rural development, civil protection, safety and security, as well as the digital economy;
- The Copernicus Programme has a service component, which includes an atmosphere monitoring service, a climate change monitoring service, a marine monitoring service and a land monitoring service, and a space component providing observations to these services, which are fully consistent with EUMETSAT's objectives and activities;
- The Copernicus Programme shall deliver data and information pursuing a full, free and open data policy;
- The European Commission should have the overall responsibility for the Space Programme;
- In the implementation of the Copernicus Programme, the European Commission should rely on EUMETSAT for the operation of dedicated missions in accordance with the latter's expertise and mandate.

HAVING REGARD to the Preliminary Programme Proposal for a Third Party Programme on EUMETSAT Activities in Support of Copernicus in the period 2021-2027, contained in document EUM/C/94/20/DOC/01,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

AGREES:

- I** That the proposed EUMETSAT Activities in Support of Copernicus in the 2021-2027 period are consistent with EUMETSAT's objectives and should be established and implemented as a Third Party Programme within the framework of the EUMETSAT Convention.
- II** To task the Director-General to negotiate the necessary Contribution Agreement with the European Commission.
- III** To task the Director-General to draw up a full Programme Proposal, to be submitted for Council approval in due course, together with the concomitant Contribution Agreement negotiated with the European Commission.

RESOLUTION
ON THE
FINANCIAL ENVELOPE OF THE MTG PROGRAMME
adopted at the 95th Meeting of the EUMETSAT Council
on 1-2 December 2020

The EUMETSAT Member States

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, and that a further objective is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Resolution EUM/C/69/10/Res. I establishing the METEOSAT Third Generation (MTG) Programme, formally adopted at the 69th Meeting of the EUMETSAT Council on 26 March 2010,

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

TAKING INTO ACCOUNT that MTG is a mandatory EUMETSAT programme to which all Member States contribute on the basis of a GNI based scale of contributions,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/95/20/DOC/13, have materialised and that the financial envelope defined in the MTG Programme Definition attached to Resolution EUM/C/69/10/Res. I establishing the MTG Programme will not be sufficient to complete all activities of the approved MTG Programme,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/95/20/DOC/13 remain to be resolved and that, therefore, the final amount necessary to complete all activities of the approved MTG programme cannot be established fully today,

RECOGNISING the need to continue and complete the activities of the MTG Programme, including the operations of the MTG System and Ground Segment and the Satellite Applications Facilities as required to deliver agreed data and products to users and to introduce improvements in response to evolving needs of Member States,

STRESSING THE NEED to implement cost-effective solutions and to ensure that the MTG Programme represents best value for money for the users,

RECALLING the EUMETSAT Convention Article 5.2 (c) (iv), which establishes that Members States may approve, by a vote representing at least two-thirds of the total amount of contributions and one half of the Member States present and voting, measures relating to mandatory programmes having a financial impact on the Organisation,

RECALLING the EUMETSAT convention Article 5 Paragraph 2 (c) ii, which establishes that Member States may approve, by a vote representing at least two-thirds of the total amount of contributions and one half of the Member States present and voting, cost overruns of up to 10% thereby increasing the original financial envelope or ceiling,

AGREE:

- I** That the overall MTG Programme financial envelope of M€ 2,369 at 2008 economic conditions as reflected in the MTG Programme Definition attached as Annex 1 to Resolution EUM/C/69/10/Res. I establishing the MTG Programme will be insufficient to deliver all agreed outputs of the Programme;
- II** To authorise the Director-General to reassign an amount of up to M€ 90 at 2008 economic conditions, presently assigned to the funding of MTG routine operations, to cover known cost overruns and unresolved risks in the MTG development programme;
- III** To task the Director-General to report on the actual and projected use of the reassigned amounts in the context of the presentation of the annual Draft Budgets to Delegate Bodies;
- IV** That the Director-General shall, once operational status of the first MTG-I and MTG-S satellites is achieved, review the technical and financial situation of the MTG Programme and bring to the Council a proposal to extend the Programme Envelope by the minimum necessary amount to cover for the deployment of the full MTG system and 20 years of routine operations.

RESOLUTION
ESTABLISHING A THIRD PARTY PROGRAMME ON EUMETSAT ACTIVITIES
IN SUPPORT OF THE IMPLEMENTATION OF THE COPERNICUS COMPONENT
OF THE SPACE PROGRAMME OF THE EUROPEAN UNION
IN THE PERIOD 2021-2028

adopted at the 97th Meeting of the EUMETSAT Council on 1-2 July 2021

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT Strategy “Destination 2030” approved at the 97th Council meeting in July 2021 foresees EUMETSAT supporting EU programmes that provide benefits to its Member States, whilst mobilising a proportionate share of its overall resources,

TAKING INTO ACCOUNT the decisions taken at the 64th and 67th EUMETSAT Council meetings in July 2008 and July 2009 to provide free access to all data, products and services from EUMETSAT satellites to the GMES Core Services, in the expectation that access to GMES data will be free of charge, on the understanding that each user within these services will sign a licence with EUMETSAT and subject to commitment from the European Union and national authorities to fund these Core services on a sustainable basis,

TAKING INTO ACCOUNT that EUMETSAT Member States agreed, at the 64th Council meeting in July 2008, on the approach for implementation of GMES Sentinels 4 and 5 on EUMETSAT satellites, including a contribution by EUMETSAT to accommodate these instruments on EUMETSAT satellites, and also to the EUMETSAT involvement in GMES Sentinel 3 activities,

EMPHASISING that it is due to the substantial past, current and future contributions of all 30 EUMETSAT Member States (including also non-EU Member States) that EUMETSAT has the necessary infrastructure and skills that enable the European Union to use EUMETSAT as an entrusted entity for the implementation of the EU Copernicus Programme,

RECALLING the establishment of the GMES Sentinel-3 Third Party Programme with ESA through Council Resolution EUM/C/67/09/Res. II, adopted by the EUMETSAT Council in July 2009,

BEARING IN MIND that Article 2 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties,

RECALLING the establishment of the Third Party Programme on EUMETSAT Activities in Support of Copernicus in the Period 2014-2021 through Council Resolution EUM/C/81/14/Res. I, adopted by the EUMETSAT Council in October 2014 and amended by Council Resolution EUM/C/90/18/Res. I,

RECALLING the successful cooperation with the European Union in the implementation of the first phase of the Copernicus Programme, and the benefits accrued for European Union and EUMETSAT Member States,

WISHING to capitalize on this successful cooperation and on the synergies between Copernicus and EUMETSAT satellite missions, including the implementation of the Copernicus Sentinel-4 and Sentinel-5 missions as part of the EUMETSAT Meteosat Third Generation and EPS-Second Generation systems, respectively, to leverage further mutual benefits in the second phase of the EU Copernicus Programme;

BEARING IN MIND that the EUMETSAT Council, at its 94th meeting in October 2020, unanimously adopted the Initiating Resolution EUM/C/94/20/Res. I for a Third Party Programme on EUMETSAT Activities in Support of Copernicus in the Period 2021-2027, thereby tasking the Director-General to draw up a full programme proposal and to prepare the necessary contribution agreement with the European Union, to be agreed by Council,

CONSIDERING that the current and planned EUMETSAT missions and facilities will continue to support the implementation of the space component of Copernicus,

RECALLING that Regulation (EU, Euratom) No 2021/696 of the European Parliament and of the Council of 28 April 2021 establishing the Space Programme of the Union and the European Union Agency for the Space Programme and repealing Regulations (EU) No 912/2010, (EU) No 1285/2013, (EU) No 377/2014 and Decision 541/2014/EU foresees that:

- The objectives of the Copernicus Programme are to deliver accurate and reliable Earth Observation data and information, supplied on a long-term basis, to support the implementation and monitoring of the Union and its Member States' policies in the fields of the environment, climate change, agriculture and rural development, civil protection, safety and security, as well as the digital economy;
- The Copernicus Programme has a service component, which includes an atmosphere monitoring service, a climate change monitoring service, a marine monitoring service and a land monitoring service, and a space component providing observations to these services, which are fully consistent with EUMETSAT's objectives and activities;
- The Copernicus Programme shall deliver data and information pursuing a full, free and open data policy;
- The European Commission should have the overall responsibility for the Space Programme;
- In the implementation of the Copernicus Programme, the European Commission should rely on EUMETSAT for the operation of dedicated missions in accordance with the latter's expertise and mandate.

HAVING REGARD to the Programme Proposal on a Third Party Programme for EUMETSAT activities in support of the implementation of the Copernicus component of the European Union's Space Programme and related Resolution, contained in document EUM/C/97/21/DOC/07 REV1,

HAVING REGARD to the draft Agreement between the European Union and EUMETSAT on the Implementation of the Copernicus Component of the Space Programme of the European Union contained in document EUM/C/97/21/DOC/08 REV1,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

AGREES:

- I** To establish a Copernicus Third Party Programme within the framework of the EUMETSAT Convention as described in the Programme Proposal on a Third Party Programme for EUMETSAT activities in support of the implementation of the Copernicus component of the European Union's Space Programme, as referred to in the Preamble.
- II** That the Copernicus Third Party Programme shall be carried out in accordance with the Contribution Agreement between the European Union and EUMETSAT on the Implementation of the Copernicus Component of the Space Programme of the European Union referred to in the Preamble.
- III** That the maximum financial envelope of the Copernicus Third Party Programme is M€735 at current economic conditions, estimated to cover the implementation of the entrusted tasks until 31 December 2027, on the understanding that the activities to be carried out during 2028 to ensure the transition into the following Copernicus Programme will be subject to an amendment to this Resolution and the Contribution Agreement.
- IV** That the Copernicus Third Party Programme shall enter into force upon signature of the Agreement referred to in Agree II.

RESOLUTION

ON

AMENDMENTS TO THE IMPLEMENTING RULES FOR METEOSAT DATA AND PRODUCTS

adopted at the 97th Meeting of the EUMETSAT Council on 1-2 July 2021

RECALLING that the consolidated Meteosat Implementing Rules were adopted by Council at its 70th meeting in June 2010 through Council Resolution EUM/C/70/10/Res. III thereafter amended by Council Resolutions EUM/C/80/14/Res. IV, EUM/C/85/16/Res. II, EUM/C/87/17/Res. II, EUM/C/89/18/Res. II, EUM/C/91/19/Res. I and by Council document EUM/C/92/19/DOC/23,

RECALLING the recommendations on harmonisation of the ECMWF, EUMETSAT and ECOMET data policy provisions issued by the Joint Harmonisation Group (JHG) to the EUMETSAT Council at its 38th meeting on 1-3 July 1998,

RECALLING that the harmonised definitions proposed by the JHG were initially adopted by the EUMETSAT Council at its 38th meeting through Council Resolution EUM/C/98/Res. IV as part of the Implementing Rules to the EUMETSAT Principles on Data Policy,

TAKING INTO ACCOUNT that the ECMWF Council and the ECOMET General Assembly also adopted the recommendations of the JHG to include the relevant harmonised definitions in their data policy provisions;

BEARING IN MIND the recommendation of the JHG that the Councils and General Assembly commit themselves to the principle that decisions regarding data policy should always be taken with knowledge of the impact on the other two organisations, and with the principle that decisions should always aim to increase rather than decrease harmonisation;

CONSIDERING the result of the joint review of the current definitions contained in the data policy provisions in the three organisations which took place in June 2013 and which were approved by Council at its 80th meeting in Resolution EUM/C/80/14/Res. IV,

HAVING REGARD to the amendments to definitions used in the ECMWF data policy agreed at the 96th ECMWF Council in June 2020 and at the ECOMET General Assembly in November 2020, in particular that of “Subsidiary”,

WISHING to continue the close cooperation between EUMETSAT, ECMWF and ECOMET and in particular to maintain the long-standing harmonisation of their data policy provisions,

CONSIDERING additionally the discontinuation of the production and distribution of the Low Rate SEVIRI Data, which have never been archived,

AGREE:

- I** to amend the Implementing Rules for Meteosat Data and Products by replacing the current definition of “Subsidiary” by the following definition:

“any subsidiary of the Licensee which is directly controlled by the Licensee by means of the Licensee holding the majority of the voting rights (50% plus one vote)”;
- II** to remove references to Low Rate SEVIRI Data from the Implementing Rules for Meteosat Data and Products.

RESOLUTION
ESTABLISHING A THIRD PARTY PROGRAMME
ON EUMETSAT ACTIVITIES IN SUPPORT OF THE IMPLEMENTATION OF THE
DESTINATION EARTH INITIATIVE OF THE EUROPEAN UNION
IN THE PERIOD 2021-2027

adopted at the 98th Meeting of the EUMETSAT Council on 2 November 2021

The EUMETSAT Council,

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

RECALLING that the EUMETSAT Strategy “Horizon 2030” approved at the 97th Council meeting in July 2021 foresees to use a proportionate share of EUMETSAT’s overall resources to support EU programmes that provide benefits to both its Member States and the EU,

RECALLING that in the context of the updated EUMETSAT strategy “Horizon 2030”, Council agreed that a new strategic objective is to “establish and exploit a federative European Weather Cloud infrastructure in partnership with ECMWF and European National Meteorological and Hydrological Services”, and that this new strategic objective places EUMETSAT at the centre of the digital strategy of its Member States, through its own big data services, through the European Weather Cloud and its contribution to Copernicus, which Destination Earth will support,

EMPHASISING that it is due to the substantial past, current and future contributions of all 30 EUMETSAT Member States (including also non-EU Member States) that EUMETSAT has the necessary infrastructure and skills that enable the European Union to use EUMETSAT as an entrusted entity for the implementation of the Destination Earth Programme,

BEARING IN MIND that Article 2.9 of the EUMETSAT Convention foresees that EUMETSAT may carry out activities not in conflict with its objectives requested and funded by third parties,

RECALLING the successful cooperation with the European Union in the implementation of the first and second phases of the EU Copernicus Programme, and the benefits accrued for EU and EUMETSAT Member States,

NOTING that the objective of the European Commission Destination Earth initiative is to deploy highly accurate thematic digital replicas of the Earth to monitor and simulate natural and human activities as well as their interactions, to develop and test scenarios that would enable more sustainable developments and support corresponding European policies,

NOTING the expectation that Destination Earth will unlock the potential of observation, digital modelling and simulation of the Earth's physical components and related phenomena such as climate change and extremes events from global to local scale to support the green transition, including the implementation of the Green Deal, to help manage environmental degradation and disasters and to develop effective mitigation strategies,

BEARING IN MIND that the EUMETSAT Council, at its 96th meeting in May 2021, unanimously adopted the Initiating Resolution EUM/C/96/21/Res. I for a Third Party Programme on EUMETSAT Activities in Support of Destination Earth in the Period 2021-2027, thereby tasking the Director-General to draw up a full programme proposal and to prepare the necessary agreements with the European Union, ESA and ECMWF, to be agreed by Council,

RECALLING Regulation (EU) 2021/694 of the European Parliament and of the Council of 29 April 2021 establishing the Digital Europe Programme and repealing Decision (EU) 2015/2240,

HAVING REGARD to the Programme Proposal for a Third Party Programme on EUMETSAT Activities in support of the implementation of the European Union's Destination Earth Initiative and related Resolution, contained in document EUM/C/98/21/DOC/01,

HAVING REGARD to the draft Agreement between the European Union and EUMETSAT on the Implementation of the Destination Earth Initiative under the Digital Europe Programme of the European Union contained in document EUM/C/98/21/DOC/02,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

AGREES:

- I** To establish a Third Party Programme within the framework of the EUMETSAT Convention, as described in the Programme Proposal on a Third Party Programme for EUMETSAT activities in support of the implementation of the European Union's Destination Earth Initiative referred to in the Preamble.
- II** That the Destination Earth Third Party Programme shall be carried out in accordance with the Contribution Agreement between the European Union and EUMETSAT on the Implementation of the Destination Earth Initiative under the Digital Europe Programme of the European Union referred to in the Preamble.
- III** That the maximum financial envelope for Phase I of the Destination Earth Third Party Programme is M€35 at current economic conditions.
- IV** That the financial envelopes for each subsequent phase of the Destination Earth Third Party Programme shall be approved by Council by way of an amendment to this Resolution and to the Contribution Agreement referred to in Agree II in due time.
- V** That the Destination Earth Third Party Programme shall enter into force upon signature of the Agreement referred to in Agree II.

REQUESTS the Director General:

- I** To continue to explore possibilities to enable participation of all EUMETSAT Member States in Phase I as well as to renegotiate the participation of all Member States for the following phase(s).
- II** To request Council approval and prepare programme proposals for all subsequent programme phases of DestinE.

RESOLUTION EUM/C/101/22/RES. I**ON****AMENDMENTS TO THE IMPLEMENTING RULES FOR METEOSAT DATA AND PRODUCTS****adopted at the 101st Meeting of the EUMETSAT Council on 30 June - 1 July 2022****The EUMETSAT Member States,**

RECALLING that the consolidated Meteosat Implementing Rules were adopted by Council at its 70th meeting in June 2010 through Council Resolution EUM/C/70/10/Res. III thereafter amended by Council Resolutions EUM/C/80/14/Res. IV, EUM/C/85/16/Res. II, EUM/C/87/17/Res. II, EUM/C/89/18/Res. II, EUM/C/91/19/Res. I, EUM/C/97/21/RES/II and by Council document EUM/C/92/19/DOC/23,

RECALLING the recommendations on harmonisation of the ECMWF, EUMETSAT and ECOMET data policy provisions issued by the Joint Harmonisation Group (JHG) to the EUMETSAT Council at its 38th meeting on 1-3 July 1998,

RECALLING that the harmonised definitions proposed by the JHG were initially adopted by the EUMETSAT Council at its 38th meeting through Council Resolution EUM/C/98/Res. IV as part of the Implementing Rules to the EUMETSAT Principles on Data Policy,

TAKING INTO ACCOUNT that the ECMWF Council and the ECOMET General Assembly also adopted the recommendations of the JHG to include the relevant harmonised definitions in their data policy provisions;

BEARING IN MIND the recommendation of the JHG that the Councils and General Assembly commit themselves to the principle that decisions regarding data policy should always be taken with knowledge of the impact on the other two organisations, and with the principle that decisions should always aim to increase rather than decrease harmonisation;

CONSIDERING the result of the joint review of the current definitions contained in the data policy provisions in the three organisations which took place in June 2013 and which were approved by Council at its 80th meeting in Resolution EUM/C/80/14/Res. IV,

HAVING REGARD to the amendments to definitions used in the ECMWF data policy agreed at the 100th ECMWF Council in June 2021, in particular that of “Research Project”,

WISHING to continue the close cooperation between EUMETSAT, ECMWF and ECOMET and in particular to maintain the long-standing harmonisation of their data policy provisions,

AGREE to amend the Implementing Rules for Meteosat Data and Products by replacing the current definition of “Research Project” by the following definition:

“any time-bound project organised for non-commercial research purposes only. A necessary condition for the recognition of non-commercial purposes is that all the results obtained are openly available at delivery costs only, without any delay linked to commercial objectives, and that the research itself is submitted for open publication”.

RESOLUTION EUM/C/101/22/RES. II**ON****UPDATE OF THE ANNUAL FEES APPLICABLE TO NMSs
OF NON-EUMETSAT MEMBER STATES FOR OFFICIAL DUTY USE OF
NON-ESSENTIAL METEOSAT DATA WITH A LATENCY OF LESS THAN
THREE HOURS FOR THE PERIOD 2023-2024****adopted at the 101st Meeting of the EUMETSAT Council on 30 June - 1 July 2022****The EUMETSAT Member States,**

RECALLING that the current EUMETSAT fees for Official Duty Use of non-Essential Meteosat Data with a latency of less than three hours by NMSs of Non-Member States were adopted in Resolution EUM/C/93/20/Res. II at the 93^d Meeting of the EUMETSAT Council on 30 June - 1 July 2020,

RECALLING that Annex I of Resolution EUM/C/93/20/Res. II provides that the threshold is established at the “Upper Middle Income Value” defined by the World Bank,

RECALLING that the threshold and the fee tables shall be updated by the EUMETSAT Council every 2 years on the basis of the latest available World Bank statistics,

WISHING to update the threshold and the fee tables in accordance with the data on “GNI per capita, Atlas method (current US\$)” in 2020 available in <https://databank.worldbank.org/> and last updated on 15 February 2022,

AGREE:

- I** To abolish Council Resolution EUM/C/93/20/Res. II.
- II** To apply the Annual Fees Applicable to NMSs of Non-EUMETSAT Member States for Official Duty Use of Non-Essential Meteosat Data with a Latency of Less than Three Hours, as set out in Annex I to this Resolution, for the period 1 January 2023 to 31 December 2024.
- III** That this Resolution shall take effect on 1 January 2023.

Annex I to RESOLUTION EUM/C/101/22/RES. II**ANNUAL FEES APPLICABLE TO NMSs OF NON-EUMETSAT MEMBER STATES
FOR OFFICIAL DUTY USE OF NON-ESSENTIAL METEOSAT DATA WITH A
LATENCY OF LESS THAN THREE HOURS FOR THE PERIOD 2023-2024**

The following table contains the annual fees applicable to NMSs of non-EUMETSAT Member States for Official Duty Use of non-Essential Meteosat Data with a latency of less than three hours. This table is valid for the period 2023-2024.

The following applies:

- 1) Official Duty use by NMSs of countries with a GNI per capita below or equal to USD 9,412, derived from World Bank statistics: Without Charge.
- 2) Official Duty use by NMSs of countries with a GNI per capita above USD 9,412: the fees are given in the table attached.
- 3) Review Mechanisms:
 - The table shall be updated by Council every 2 years on the basis of the latest available World Bank statistics.
 - Should the figures in the table prove to be erroneous or incomplete, the Director-General shall make appropriate recommendations on a case-by-case basis.
 - The “Upper Middle Income” value as defined in the World Bank statistics shall establish the threshold for free access to non-Essential Meteosat Data with a latency of less than three hours for Official Duty Use. This threshold shall be updated by Council every 2 years on the basis of the World Bank statistics.

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
Afghanistan	500	0	0
Albania	5210	0	0
Algeria	3570	0	0
Andorra	estimated to be high income	100	300
Angola	2140	0	0
Antigua and Barbuda	13750	100	300
Argentina	9070	0	0
Armenia	4220	0	0
Australia	53690	100	300
Azerbaijan	4480	0	0
Bahamas, The	26070	100	300
Bahrain	19900	100	300
Bangladesh	2030	0	0
Barbados	14350	100	300
Belarus	6360	0	0
Belize	4110	0	0
Benin	1280	0	0
Bhutan	2840	0	0
Bolivia	3180	0	0
Bosnia and Herzegovina	6080	0	0
Botswana	6640	0	0
Brazil	7850	0	0
British Virgin Islands	estimated to be high income	100	300
Brunei Darussalam	31510	100	300
Burkina Faso	770	0	0
Burundi	230	0	0
Cabo Verde	3060	0	0
Cambodia	1500	0	0
Cameroon	1520	0	0
Canada	43580	100	300
Cayman Islands	64000	100	300
Central African Republic	500	0	0
Chad	630	0	0
Chile	13470	100	300
China	10550	100	300
Colombia	5790	0	0
Comoros	1400	0	0
Congo, Dem. Rep.	550	0	0
Congo, Rep.	1770	0	0
Costa Rica	11530	100	300
Cote d'Ivoire	2280	0	0
Cuba	estimated to be upper middle income	0	0
Curacao	17140	100	300
Cyprus	26440	100	300
Djibouti	3310	0	0
Dominica	7270	0	0
Dominican Republic	7260	0	0

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
Ecuador	5530	0	0
Egypt	3000	0	0
El Salvador	3630	0	0
Eritrea	estimated to be low income	0	0
Eswatini	3410	0	0
Ethiopia	890	0	0
Fiji	4890	0	0
Gabon	7030	0	0
Gambia, The	750	0	0
Georgia	4270	0	0
Ghana	2340	0	0
Guatemala	4490	0	0
Guinea	1020	0	0
Guinea-Bissau	760	0	0
Guyana	7130	0	0
Haiti	1320	0	0
Honduras	2180	0	0
Hong Kong SAR, China	48630	100	300
India	1920	0	0
Indonesia	3870	0	0
Iran	2960	0	0
Iraq	4680	0	0
Israel	42600	100	300
Jamaica	4670	0	0
Japan	40360	100	300
Jordan	4310	0	0
Kazakhstan	8710	0	0
Kenya	1840	0	0
Kiribati	2960	0	0
Korea, Dem. People's Rep.	estimated to be low income	0	0
Korea, Rep.	32960	100	300
Kuwait	estimated to be high income	100	300
Kyrgyz Republic	1160	0	0
Lao PDR	2520	0	0
Lebanon	5370	0	0
Lesotho	1100	0	0
Liberia	570	0	0
Libya	4960	0	0
Macao SAR, China	estimated to be high income	100	300
Madagascar	470	0	0
Malawi	580	0	0
Malaysia	10570	100	300
Maldives	6490	0	0
Mali	830	0	0
Malta	25370	100	300
Mauritania	1670	0	0
Mauritius	10230	100	300

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
Mexico	8480	0	0
Micronesia	3950	0	0
Moldova	4560	0	0
Monaco	estimated to be high income	100	300
Mongolia	3740	0	0
Montenegro	7900	0	0
Morocco	3020	0	0
Mozambique	460	0	0
Myanmar	1350	0	0
Namibia	4500	0	0
Nauru	15990	100	300
Nepal	1190	0	0
New Zealand	41550	100	300
Nicaragua	1850	0	0
Niger	550	0	0
Nigeria	2000	0	0
North Macedonia	5750	0	0
Oman	15030	100	300
Pakistan	1270	0	0
Panama	12420	100	300
Papua New Guinea	2720	0	0
Paraguay	5180	0	0
Peru	6030	0	0
Philippines	3430	0	0
Qatar	55990	100	300
Russian Federation	10690	100	300
Rwanda	780	0	0
Samoa	4050	0	0
Sao Tome and Principe	2060	0	0
Saudi Arabia	21930	100	300
Senegal	1430	0	0
Serbia	7420	0	0
Seychelles	12200	100	300
Sierra Leone	510	0	0
Singapore	54920	100	300
Solomon Islands	2300	0	0
Somalia	420	0	0
South Africa	6010	0	0
South Sudan	estimated to be low income	0	0
Sri Lanka	3720	0	0
Sudan	530	0	0
Suriname	4620	0	0
Syria	estimated to be low income	0	0
Tajikistan	1060	0	0
Tanzania	1080	0	0
Thailand	7040	0	0
Timor-Leste	1990	0	0
Togo	920	0	0

ANNUAL FEES FOR OFFICIAL DUTY USE BY NMSs OF NON-MEMBER STATES			
Country	GNI/C	Annual Fee in KEUR for non-Essential Meteosat Data with a latency of less than three hours	
		excluding IODC mission data	including IODC mission data
Tonga	5190	0	0
Trinidad and Tobago	15420	100	300
Tunisia	3300	0	0
Turkmenistan	estimated to be upper middle income	0	0
Turks and Caicos Islands	estimated to be high income	100	300
Tuvalu	5820	0	0
Uganda	800	0	0
Ukraine	3570	0	0
United Arab Emirates	39410	100	300
United States	64530	100	300
Uruguay	15790	100	300
Uzbekistan	1740	0	0
Vanuatu	3190	0	0
Venezuela	...	100	300
Vietnam	2650	0	0
Yemen	estimated to be low income	0	0
Zambia	1160	0	0
Zimbabwe	1140	0	0

RESOLUTION EUM/C/102/22/RES. I**AMENDING****THE CEILING OF THE GENERAL BUDGET 2021-2025**

**presented for adoption at the 102nd Meeting of the EUMETSAT Council
on 6-7 December 2022**

adopted on 29 November 2023

The EUMETSAT Member States,

HAVING REGARD to Article 2.5 of the EUMETSAT Convention, which establishes that the General Budget comprises activities not linked to a specific programme,

CONSIDERING that these activities shall represent the basic technical and administrative infrastructure of EUMETSAT including basic staff, buildings and equipment as well as preliminary activities authorised by the Council in preparation of future programmes, not yet approved,

RECALLING EUM/C/92/19/Res. I establishing the seventh General Budget, a ceiling of M€ 103.2 at 2020 economic conditions for the years 2021-2025 and contributions based on a GNI scale of contributions,

EXPRESSING the need to increase the ceiling of the General Budget to include the funding required for Phase B activities of EPS-Aeolus and EPS-Sterna in the 2023-2025 period,

UNDERLINING that Member States' approval of the Preparatory Phase of EPS-Aeolus and EPS-Sterna is distinct from that of the related full programmes, which will require a separate decision of the Member States in the 2025 timeframe,

NOTING that the Secretariat plans to provide elements of the EPS-Aeolus and EPS-Sterna Programme Proposals to delegates in Spring 2023,

AGREE:

- I** To increase the ceiling of the General Budget for the years 2021-2025 by M€ 24.5 at 2020 economic conditions, i.e. to a total of M€ 127.7 at 2020 economic conditions, for the purposes of funding the Phase B activities of EPS-Aeolus and EPS-Sterna in the 2023-2025 period.

RESOLUTION EUM/C/102/22/RES. II**ON****THE AUTHORISATION TO PROCEED WITH
THE PHASE B ACTIVITIES OF EPS-STERNA AND EPS-AEOLUS****adopted at the 102nd Meeting of the EUMETSAT Council
on 6-7 December 2022****The EUMETSAT Member States,**

HAVING REGARD to the description of the Preparatory Phase of EPS-Aeolus and EPS-Sterna, in particular Phase B activities, in document EUM/C/101/22/DOC/04,

CONSIDERING that the EUMETSAT Council, at its 102nd meeting, agreed to open the voting on Resolution EUM/C/102/22/Res. I on Amending the Ceiling of the General Budget 2021-2025 (“Amending General Budget Ceiling Resolution”), which seeks to increase the ceiling of the General Budget to include the funding required for Phase B activities of EPS-Aeolus and EPS-Sterna in the 2023-2025 period,

NOTING that 27 of the 30 Member States have firmly voted in favour of the Amending General Budget Ceiling Resolution, thus achieving a funding level of the Phase B activities of 96.8%,

NOTING that Bulgaria, Denmark and Portugal still need to confirm their votes,

NOTING that the Amending General Budget Ceiling Resolution will only formally enter into force upon approval by all Member States,

EXPECTING that the above Delegations will be able to confirm their votes within a short period of time, and that the formal entry into force of the Amending General Budget Ceiling Resolution will take place by the next ordinary Council meeting in July 2023 at the latest,

RECOGNISING the need to start the Phase B activities of EPS-Aeolus and EPS-Sterna to ensure continued synchronisation with critical space segment activities performed by ESA and avoid additional costs and programmatic risks,

AGREE:

- I** That the Phase B activities of EPS-Sterna and EPS-Aeolus can start on 1 January 2023.
- II** That Bulgaria, Denmark and Portugal will be legally obliged to contribute financially to the Phase B activities of EPS-Sterna and EPS-Aeolus only after firmly voting in favour of the Amending General Budget Ceiling Resolution.
- III** That an amount corresponding to the contributions from Bulgaria, Denmark and Portugal remains blocked in the General Budget 2023 until these Member States have notified the Director-General that they firmly vote in favour of the Amending General Budget Ceiling Resolution.
- IV** To urge Bulgaria, Denmark and Portugal to complete their respective national approval procedures as soon as possible, and at the latest by the next ordinary Council meeting in July 2023.
- V** That if Bulgaria, Denmark and Portugal are not in a position to confirm finalisation of their respective national approval procedures by the next ordinary Council meeting in July 2023 at the latest, those Member States who have agreed unconditionally to contribute to the Phase B activities of EPS-Sterna and EPS-Aeolus by having firmly voted in favour of the Amending General Budget Ceiling Resolution will decide on the action to be taken.

RESOLUTION EUM/C/102/22/RES. III**ON****THE MANDATORY NATURE OF A FUTURE ALTIMETRY PROGRAMME****adopted at the 102nd Meeting of the EUMETSAT Council
on 6-7 December 2022****The EUMETSAT Council,**

RECALLING that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization, and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

BEARING IN MIND that the Topex/Poseidon and Jason missions established by the Centre National d'Etudes Spatiales (CNES) and the United States National Aeronautics and Space Administration (NASA) have proven the value of altimetry observations in support of operational activities such as marine meteorology, seasonal forecasting, oceanographic services and climate monitoring,

BEARING IN MIND that the requirement to continue these observations on a sustained operational basis and the recognition of EUMETSAT as the relevant European operational organisation led to the establishment of the EUMETSAT Optional Jason-2, Jason-3 and Jason-CS programmes, which have benefited all Member States,

TAKING INTO ACCOUNT the requirement from sustained satellite ocean altimetry observations expressed by the European Union, ECMWF, the WMO, the Global Ocean Data Assimilation Experiment (GODAE), the Global Ocean Observing System (GOOS), the Committee for Earth Observation Satellites (CEOS), and the Intergovernmental Panel on Climate Change (IPCC),

EMPHASISING the importance of continued ocean altimetry observations for EUMETSAT and all of its Member States, considering the growing portfolio of applications expected from future ocean altimetry missions in areas such as operational oceanography, marine meteorology, hydrology, seasonal forecasting and monitoring of changes in our climate, by providing data of critical scientific value in both operational and research contexts,

RECALLING that Member States, by approving the updated EUMETSAT Strategy "Destination 2030" at the 97th Council meeting in June 2021, agreed that EUMETSAT will continue to participate in the international high-precision ocean altimetry mission and that EUMETSAT will contribute to the definition and development and prepare for the timely deployment of the Sentinel-3 and Jason/Sentinel-6 Next Generation missions,

HAVING REGARD to the Agreement between the European Union and EUMETSAT on the Implementation of the Copernicus Component of the Space Programme of the European Union, signed and entered into force on 22 July 2021, through which the EU entrusts to EUMETSAT the task of continuing operating, *inter alia*, Sentinel-3, Jason-3 and Sentinel-6 as well as preparing for the next generation of altimetry missions, and provides the related EU funding to EUMETSAT,

RECOGNIZING that the continued participation of EUMETSAT in Sentinel-6 as well as Sentinel-3 Next Generation Topography will prepare for the next phase of the reference high precision ocean altimetry mission, i.e. Sentinel-6 Next Generation, with EUMETSAT's role being to establish an integrated ground segment to efficiently sustain in the long term common services for operational altimetry at EUMETSAT,

CONVINCED of the significant benefits to all Member States of EUMETSAT's participation in past, current and future altimetry activities,

NOTING the scope of the future EUMETSAT altimetry programme as outlined in document EUM/C/102/22/DOC/05, including the planned contributions of longstanding international partners,

CONVINCED that the establishment of a future altimetry programme as a mandatory EUMETSAT Programme will ensure a fair distribution of responsibilities and funding amongst all Member States which is commensurate to the benefits received by all Member States and which is based on the principle of solidarity,

HAVING REGARD to the EUMETSAT Convention, and in particular to its provisions concerning the purpose, scope and approval of mandatory programmes,

AGREES:

- I** that the future EUMETSAT altimetry programme should be presented for Council approval in the form of a mandatory programme, which does not prejudice a separate decision still to be taken by Member States on the actual funding of this programme together with the related programme proposal;
- II** to task the Director-General to prepare the programme proposal and related programme Resolution for submission to Council in 2024.

RESOLUTION EUM/C/102/22/RES. IV**ON****THE CATEGORISATION OF EUMETSAT DATA AND PRODUCTS FROM
THE METEOSAT AND METOP SATELLITE SERIES****adopted at the 102nd Meeting of the EUMETSAT Council
on 6-7 December 2022****The EUMETSAT Member States,**

HAVING REGARD to the EUMETSAT Data Policy, which defines the policy applicable to data from instruments flying on, *inter alia*, EUMETSAT's Meteosat Second Generation and Metop satellites,

NOTING the planned launches of the first satellite of the EUMETSAT Meteosat Third Generation (MTG) series at the end of 2022 and of the Metop Second Generation (Metop-SG) series at the end of 2024,

TAKING INTO ACCOUNT the guiding principles agreed by Council on evolutions of the EUMETSAT Data Policy in 2017 (EUM/C/88/17/DOC/10),

HAVING REGARD to the EUMETSAT Strategy "Destination 2030" (EUM/C/97/21/DOC/03), which specifically addresses the future of the EUMETSAT Data Policy,

HAVING REGARD to the *WMO Unified Policy for the International Exchange of Earth System Data* ("Resolution 1"), adopted in 2021 and introducing new terminology of "Core Data" and "Recommended Data", thereby replacing the former notions of "Essential Data" and "Other Data" in WMO Resolution 40,

WISHING to broaden further the scope of data and products provided free of charge to users in line with the Oslo Declaration, with due regard to the ongoing development of data services,

UNDERLINING the wish of Member States to promote continuity and harmonisation of the EUMETSAT Data Policy across generations of satellites, as proposed in EUM/C/102/22/DOC/07,

AGREE:

- I** That for the purposes of increasing the volume of data provided to all users free of charge, the data latency threshold for all Level 1 Meteosat series data shall be reduced from 3 hours to 1 hour;
- II** That data and products from EUMETSAT's instruments flying on the Meteosat and Metop series shall be categorised as "Core" or "Recommended" data and products, in line with the new terminology introduced by WMO Resolution 1 and as shown in the table below:

	<i>"Core" Data and Products</i> <i>(formerly referred to as "Essential"</i> <i>in the EUMETSAT Data Policy)</i> <i>(Free and open)</i>	<i>"Recommended" Data and Products</i> <i>(formerly referred to as "Non-Essential"</i> <i>in the EUMETSAT Data Policy)</i> <i>(Licensed—no redistribution without transformation)</i>
Meteosat series	– Level 1 Hourly SEVIRI, FCI and IRS data – All SEVIRI, FCI, IRS and LI Derived Products (including Level 2) – All SEVIRI, FCI, IRS and LI Advanced Image Products (including Level 2)	– Level 1 SEVIRI, FCI, IRS and LI data with a latency of more than 1 hour (free of charge) – Level 1 SEVIRI, FCI, IRS and LI data with a latency of less than 1 hour (may be subject to fees)
Metop series	– Advanced High Rate Picture Transmission (AHRPT) Data – Global and regional Level 1 MHS, GRAS, RO, GOME-2, MWS and METimage products – Global and regional Level 2 products from all instruments on Metop and Metop-SG	– Global and regional Level 1 products from: – ASCAT } Metop – IASI } – SCA } Metop-SG – IASI-NG } – MWI } – 3MI } – ICI } (free of charge)

- III** To task the Secretariat with submitting the detailed implementation of Agree I and Agree II in the EUMETSAT Data Policy to Council for approval in 2023.

RESOLUTION EUM/C/103/23/Res. I**ON****THE EXTENSION OF THE AUTHORISATION TO PROCEED WITH
THE PHASE B ACTIVITIES OF EPS-STERNA AND EPS-AEOLUS****adopted at the 103rd Meeting of the EUMETSAT Council
on 4-5 July 2023****The EUMETSAT Member States,**

HAVING REGARD to Resolution EUM/C/102/22/Res. I on Amending the Ceiling of the General Budget 2021-2025 (“Amending General Budget Ceiling Resolution”), which was opened for vote at the 102nd Council and seeks to increase the ceiling of the General Budget to include the funding required for Phase B activities of EPS-Aeolus and EPS-Sterna in the 2023-2025 period,

NOTING that 27 of the 30 Member States have firmly voted in favour of the Amending General Budget Ceiling Resolution, thus achieving a funding level of the Phase B activities of 96.8%,

NOTING that the Amending General Budget Ceiling Resolution will only formally enter into force upon approval by all Member States,

HAVING REGARD to Resolution EUM/C/102/22/Res. II on the Authorisation to Proceed with the Phase B Activities of EPS-STERNA and EPS-AEOLUS, which was unanimously adopted by the Member States at the 102nd Council and authorised Phase B activities to commence on 1 January 2023 pending unanimous approval of the Amending General Budget Ceiling Resolution to ensure continued synchronisation with critical space segment activities performed by ESA and avoid additional costs and programmatic risks,

NOTING that Bulgaria, Denmark and Portugal still need to cast their positive vote on the Amending General Budget Ceiling Resolution,

EXPECTING that the above Delegations will be able to complete their respective national approval procedures within a short period of time, and that the formal entry into force of the Amending General Budget Ceiling Resolution will take place by the next ordinary Council meeting on 28-29 November 2023 at the latest,

AGREE:

- I** That the Phase B activities of EPS-Sterna and EPS-Aeolus can continue pending the formal entry into force of the Amending General Budget Ceiling Resolution, expected before the next ordinary Council meeting on 28-29 November 2023.
- II** That Bulgaria, Denmark and Portugal will be legally obliged to contribute financially to the Phase B activities of EPS-Sterna and EPS-Aeolus only after firmly voting in favour of the Amending General Budget Ceiling Resolution.
- III** That an amount corresponding to the contributions from Bulgaria, Denmark and Portugal remains blocked in the General Budget 2023 until these Member States have notified the Director-General that they firmly vote in favour of the Amending General Budget Ceiling Resolution.
- IV** To urge Bulgaria, Denmark and Portugal to complete their respective national approval procedures as soon as possible, and at the latest by the next ordinary Council meeting on 28-29 November 2023.
- V** That if Bulgaria, Denmark and Portugal are not in a position to confirm finalisation of their respective national approval procedures by the next ordinary Council meeting on 28-29 November 2023 at the latest, those Member States who have agreed unconditionally to contribute to the Phase B activities of EPS-Sterna and EPS-Aeolus by having firmly voted in favour of the Amending General Budget Ceiling Resolution will decide on the action to be taken.

RESOLUTION EUM/C/104/23/Res. I
ON
THE FINANCIAL ENVELOPE OF
THE EUMETSAT METEOSAT THIRD GENERATION PROGRAMME

**adopted at the 104th Meeting of the EUMETSAT Council
on 28-29 November 2023**

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention which states that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites, taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

HAVING REGARD to Resolution EUM/C/69/10/Res. I establishing the METEOSAT Third Generation (MTG) Programme, formally adopted at the 69th Meeting of the EUMETSAT Council on 26 March 2010,

TAKING INTO ACCOUNT that MTG is a mandatory EUMETSAT programme to which all Member States contribute on the basis of a GNI based scale of contributions,

HAVING REGARD to Resolution EUM/C/95/20/Res. I, authorising the Director-General to reassign an amount of up to M€ 90 at 2008 economic conditions, originally assigned to the funding of MTG routine operations, to cover known cost overruns and unresolved risks in the MTG development programme, adopted at the 95th Meeting of the EUMETSAT Council on 2 November 2020 and tasking the Director-General to report on the actual and projected use on the reassigned amounts in the context of the presentation of the annual Draft Budgets to Delegate Bodies,

RECALLING the successful launch of the MTG I1 Satellite on 13 December 2022,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/104/23/DOC/04, have materialised and that the financial envelope defined in the MTG Programme Resolution EUM/C/69/10/Res. I will not be sufficient to complete all activities of the approved MTG Programme,

TAKING INTO ACCOUNT that the need for an extension of the MTG Programme Financial Envelope will likely be higher than 10% of the MTG Programme Financial Envelope approved in 2011,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/104/23/DOC/04 remain to be resolved and that, therefore, the final amount necessary to complete all activities of the approved MTG programme cannot be established fully today,

RECOGNISING the need to continue and complete the activities of the MTG Programme, including the operations of the MTG System and Ground Segment and the Satellite Applications Facilities as required to deliver agreed data and products to users and to introduce improvements in response to evolving needs of Member States,

STRESSING THE NEED to implement cost-effective solutions and to ensure that the MTG Programme represents best value for money for the users,

NOTING that de-phasing the mandatory programmes will come at a cost for the extension of the storage period of the MTG recurrent satellites and additional operations cost with the benefit of 4.4 additional years of operations, resulting in an overall period of operations of 24.4 years,

WISHING to change the approach to report on the status of the MTG programme financial envelope from the previous approach of a “loan” from the operations sub-envelope to express the exceeding cost as notionally uncovered years of operations and to thereby provide consistency in the reporting on the financial envelopes of the mandatory EPS-SG Programme and the mandatory MTG Programme.

RECALLING the EUMETSAT Convention Article 5.2 (c) (iv), which establishes that Members States may approve, by a vote representing at least two-thirds of the total amount of contributions and one half of the Member States present and voting, measures relating to mandatory programmes having a financial impact on the Organisation,

RECALLING the EUMETSAT Convention Article 5.2 (a) (x), which establishes that Member States may approve, by a unanimous vote of all Member States, cost overruns of more than 10% thereby increasing the original financial envelope or ceiling of mandatory programmes,

AGREE:

- I** That the MTG Programme Financial Envelope of MEUR 2,369 in 2008 economic conditions as reflected in the MTG Programme Resolution EUM/C/69/10/Res. I (MEUR 3,059 in 2024 e.c.) will be insufficient and that additional funds in the range of MEUR 463 in 2008 economic conditions (MEUR 662 in 2024 e.c.) in excess of the original envelope, will be required to cover materialised and remaining development risks, launch delays and underestimated operations costs to carry out all activities foreseen within the scope of the approved MTG Programme.
- II** That an additional amount of approximately MEUR 181 in 2008 economic conditions (MEUR 259 in 2024 e.c.) will be necessary to extend the lifetime of the MTG satellites and to extend the programme scope by approximately 4.4 additional years of operations, resulting in an overall period of operations of 24.4 years.
- III** To task the Director General to report in the context of the presentation of the annual Draft Budget to Delegate Bodies the actual total amount of exceeding costs with regard to the initially approved MTG Financial Envelope, expressed both in absolute value and in terms of notionally uncovered years of operations.
- IV** To task the Director-General to do everything possible to keep the overall programme costs at a minimum and to exercise cost control by demonstrating the measures taken to reduce risk of over-costing the contributions to the MTG programme, while maintaining options available to effectively manage risks and uncertainties in the long-term.
- V** That an extension of the MTG Programme Financial Envelope will be presented for formal vote by Member States at the earliest in the 2027-2028 timeframe, when the full development costs are known, the first full set of MTG satellites will be in place and more information on operations costs after the first years of routine operations is available, with the understanding that the updated annualised cost will be provided to support this request.
- VI** That this Resolution supersedes Council Resolution EUM/C/95/20 Res. I.

RESOLUTION EUM/C/104/23/Res. II**ON****THE FINANCIAL ENVELOPE OF
THE EUMETSAT POLAR SYSTEM SECOND GENERATION PROGRAMME****adopted at the 104th Meeting of the EUMETSAT Council
on 28-29 November 2023****The EUMETSAT Member States,**

HAVING REGARD to the EUMETSAT Convention, which provides that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites taking into account as far as possible the recommendations of the World Meteorological Organization (WMO), and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to Article 2 of the EUMETSAT Convention, which defines mandatory programmes as the basic programmes required to continue the provision of observations from geostationary and polar orbits,

HAVING REGARD to Council Resolution EUM/C/80/14/Res. I establishing the EPS-SG Programme as a mandatory EUMETSAT Programme, which entered into force in 2016 following the full approval of the Resolution EUM/C/80/14/Res. I,

NOTING Council Resolution EUM/C/83/15/Res. I on the Flexibility for the Transfer of Appropriations between EPS-SG Budget Articles,

TAKING INTO ACCOUNT that EPS-SG is a mandatory EUMETSAT programme to which all Member States contribute on the basis of a GNI based scale of contributions,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/104/23/DOC/06, have materialized and that the financial envelope defined in the EPS-SG Programme Resolution EUM/C/80/14/Res. I will not be sufficient to complete all activities of the approved EPS-SG Programme,

TAKING INTO ACCOUNT that the need for an extension of the EPS-SG Programme Financial Envelope will likely be higher than 10% of the EPS-SG Programme Financial Envelope approved in 2016,

TAKING INTO ACCOUNT that a number of risks, described in document EUM/C/104/23/DOC/06 remain to be resolved and that, therefore, the final amount necessary to complete all activities of the approved EPS-SG Programme cannot be established fully today,

RECOGNISING the need to continue and complete the activities of the EPS-SG Programme, including the operations of the EPS-SG System and Ground Segment and the Satellite Applications Facilities as required to deliver agreed data and products to users and to introduce improvements in response to evolving needs of Member States,

STRESSING THE NEED to implement cost-effective solutions and to ensure that the EPS-SG Programme represents best value for money for the users,

NOTING that de-phasing the mandatory programmes will imply one additional year of operations of EPS-SG satellites, increasing the overall period of operations to 22 years instead of the initially foreseen 21 years,

RECALLING the EUMETSAT Convention Article 5.2. (c) (iv), which establishes that Member States may approve, by a vote representing at least two-thirds of the total amount of contributions and one half of the Member States present and voting, measures relating to mandatory programmes having a financial impact on the Organisation,

RECALLING the EUMETSAT Convention Article 5.2 (a) (x), which establishes that Member States may approve, by a unanimous vote of all Member States, cost overruns of more than 10% thereby increasing the original financial envelope or ceiling of mandatory programmes,

AGREE:

- I** That the EPS-SG Programme Financial Envelope of MEUR 3,323 in 2012 economic conditions reflected in the EPS-SG Programme Resolution EUM/C/80/14/Res. I (MEUR 4,074.7 in 2024 e.c.) will be insufficient and that additional funds in the range of MEUR 501.8 in 2012 economic conditions (MEUR 678.1 in 2024 e.c.) in excess of the original envelope will be required to cover materialized and remaining development risks, launch delays and underestimated operations costs to carry out all activities foreseen within the scope of the approved EPS-SG Programme.
- II** That an additional amount of approximately MEUR 44.5 in 2012 economic conditions (MEUR 60.1 in 2024 e.c.) will be necessary to extend the lifetime of the EPS-SG satellites and to extend the programme duration by approximately one additional year of operations, resulting in an overall period of operations of 22 years.
- III** To task the Director General to report in the context of the presentation of the annual Draft Budget to Delegate Bodies the actual amount of exceeding costs with regard to the initially approved EPS-SG Financial Envelope, expressed both in absolute value and in terms of notionally uncovered years of operations.
- IV** To task the Director-General to do everything possible to keep the overall programme costs at a minimum and to exercise cost control by demonstrating the measures taken to reduce risk of over-costing the contributions to the EPS-SG programme, while maintaining options available to effectively manage risks and uncertainties in the long-term.
- V** That an extension of the EPS-SG Programme Financial Envelope will be presented for formal vote by the Member States at the earliest in the 2027-2028 timeframe, when the full development costs are known, the first two satellites will be in orbit and more information on operations costs after the first years of routine operations is available, with the understanding that updated annualised costs will be provided to support this request.

RESOLUTION EUM/C/104/23/Res. III**ON****THE DESTINATION EARTH THIRD PARTY PROGRAMME
IN THE PERIOD 2021-2027****adopted at the 104th Meeting of the EUMETSAT Council
on 28-29 November 2023****The EUMETSAT Council,**

HAVING REGARD to the legal framework on EUMETSAT's participation in the European Union's Destination Earth initiative established by the 98th Council in November 2021 through the unanimous adoption of Resolution EUM/C/98/21/Res. I on Establishing a Third Party Programme on EUMETSAT Activities in Support of the Implementation of the Destination Earth Initiative of the European Union in the Period 2021-2027, as well as the unanimous approval of the Third Party Programme Proposal (EUM/C/98/21/DOC/01) and related Contribution Agreement (EUM/C/98/21/DOC/02),

NOTING that the DestinE Third Party Programme package adopted by the 98th Council focused primarily on implementing Phase I of the Destination Earth initiative and now needs to be updated in order to incorporate Phase II activities and related EU funding,

REEMPHASISING that it is due to the substantial past, current and future contributions of all 30 EUMETSAT Member States (including also non-EU Member States) that EUMETSAT has the necessary infrastructure and skills that enable the European Union to use EUMETSAT as an entrusted entity for the implementation of the Destination Earth Programme,

HAVING REGARD to the updated Programme Proposal for a Third Party Programme on EUMETSAT Activities in support of the implementation of the European Union's Destination Earth Initiative and related Resolution, contained in document EUM/C/104/23/DOC/15,

HAVING REGARD to the draft amended and restated Contribution Agreement between the European Union and EUMETSAT on the Implementation of the Destination Earth Initiative under the Digital Europe Programme of the European Union contained in document EUM/C/104/23/DOC/16 REV.1,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

AGREES:

- I** To amend the Third Party Programme established under Resolution EUM/C/98/21/Res. I, as described in the updated Programme Proposal.
- II** That the Destination Earth Third Party Programme shall be carried out in accordance with the amended and restated Contribution Agreement between the European Union and EUMETSAT on the Implementation of the Destination Earth Initiative under the Digital Europe Programme of the European Union.
- III** That the financial envelope for the Destination Earth Third Party Programme is M€127 at current economic conditions, estimated to cover the implementation of the baseline entrusted tasks and potential optional activities as defined in the Technical Annex of the aforementioned Contribution Agreement until 31 December 2027.
- IV** That the Director-General shall seek Council's approval of changes to the legal framework of this Third Party Programme, as described in section 7.2 of the updated Programme Proposal.
- V** That the updated Destination Earth Third Party Programme shall enter into force upon signature of the amended and restated Contribution Agreement.

REQUESTS the Director-General:

- I** To continue to explore possibilities to enable participation of all EUMETSAT Member States in the EUMETSAT activities on DestinE.
- II** To request Council approval and prepare programme proposals for all subsequent programme phases of DestinE.

RESOLUTION EUM/C/105/24/Res. I**ON THE****EUMETSAT POLAR SYSTEM STERNA PROGRAMME
(EPS-STERNA PROGRAMME)**

**presented for adoption at the 105th Meeting of the EUMETSAT Council
on 26-27 June 2024,**

and adopted on 19 January 2026

The EUMETSAT Member States,

HAVING REGARD to the EUMETSAT Convention, which provides that the primary objective of EUMETSAT is to establish, maintain and exploit European systems of operational meteorological satellites and that a further objective of EUMETSAT is to contribute to the operational monitoring of the climate and the detection of global climatic changes,

HAVING REGARD to the EUMETSAT Convention, which establishes that mandatory Programmes are the basic Programmes required to continue the provision of observations from geostationary and polar orbits,

RECALLING the successful development of the EPS-SG Programme and the expected first launch of the first Metop-SG satellite in the second half of 2025,

RECALLING that EPS-Sterna also addresses user requirements already expressed in the context of EPS-SG for microwave sounding measurements, offering new observations which have the highest impact on NWP, and that EPS-Sterna will thus be complementary to the EPS-SG mandatory programme,

RECALLING the evolution of observation infrastructures and related opportunities presented to Council in 2018 (EUM/C/90/18/DOC/44) and the Opportunities related to evolution of observation infrastructures: update and planning presented to Council in 2019 (EUM/C/99/21/DOC/03), including the roadmap for the planned activities,

NOTING the decision taken by the ESA Space19+ Council at ministerial level in November 2019 to adopt an Arctic Weather Satellite (AWS) Earth Watch Element programme, covering the development of a micro-satellite equipped with a small microwave sounder designed to be compatible with a potential follow-on constellation,

NOTING the successful development of the protoflight demonstrator developed under the ESA Arctic Weather Satellite (AWS) Element of the European Earth Watch Programme, which serves as the prototype for the further development of the EPS-Sterna Satellites forming the EPS-Sterna System,

RECOGNIZING the European heritage built by capitalizing on the investments made by ESA Member States to the Arctic Weather Satellite Element, demonstrating also the value of systems,

NOTING the successful cooperation between ESA and EUMETSAT on the Arctic Weather Satellite between 2019 and 2025 as defined in the Exchange of Letters between EUMETSAT and ESA on ESA-EUMETSAT Cooperation Regarding the Arctic Weather Satellite signed in December 2020,

NOTING the decision of the EUMETSAT Council at its 101st meeting to name the previously called AWS Constellation Programme the “EPS-Sterna Programme” (EUM/C/101/22/DOC/38),

TAKING INTO ACCOUNT the Council Resolution on the increase of the ceiling of the General Budget to fund the phase B activities of both the EPS-Aeolus and EPS-Sterna Programmes (EUM/C/102/22/Res. I), allowing for an approval of the programmes in 2025 as an expansion of the mandatory EPS-SG Programme,

NOTING that the EPS-Sterna Programme is a European contribution to the fulfilment of the 2040 WMO Vision for the Global Observing System (WIGOS 2040), and as also reflected in the EUMETSAT strategy: Destination 2030,

EMPHASISING the positive results of the socio-economic benefits study performed in 2022-2023 and as presented to Council on 28 November 2023,

NOTING the draft Agreement with ESA Concerning Cooperation on the EPS-Sterna Programme (EUM/C/105/24/DOC/17),

FOLLOWING the roadmap for the approval of the EPS-Sterna Programme as agreed at the 99th Council meeting (EUM/C/99/21/DOC/03),

TAKING INTO ACCOUNT the Programme Proposal on the EPS-Sterna Programme contained in document EUM/C/105/24/DOC/16,

BEARING IN MIND that for the further accomplishment of the EUMETSAT objectives in the polar orbit, the first six satellites of EPS-Sterna Programme should be available for launch in 2029,

IN CONFORMITY with Article 2, 3, 5 and 10 of the EUMETSAT Convention,

AGREE:

- I** To establish the EPS-Sterna Programme as a mandatory programme and as an expansion of the EPS-SG Programme with an initial Constellation of six EPS-Sterna Satellites and a total of 20 Satellites, to achieve a nominal lifetime of the Constellation of thirteen years.
- II** That the mission objectives, system description and Programme content shall be as described in the EUMETSAT EPS-Sterna Programme Definition attached to this Resolution.
- III** That the financial envelope of the EPS-Sterna Programme shall amount to M€ 858.5 in 2024 economic conditions, with an indicative expenditure profile as described in the Programme Definition.

ANNEX I TO RESOLUTION EUM/C/105/24/RES. I

EPS-STERNA PROGRAMME DEFINITION

1. INTRODUCTION

The establishment of the EPS-Sterna Programme derives from the EUMETSAT Convention, where the primary objective of EUMETSAT to establish, maintain and exploit European systems of operational meteorological satellites is stated, together with the further objective to contribute to the operational monitoring of the climate and the detection of global climatic changes. The EPS-Sterna Programme will complement and expand on the mandatory EPS and EPS-SG Programmes and as such is a mandatory Programme.

2. EPS-STERNA MISSION OBJECTIVES

The EPS-Sterna mission will continue and expand the number of observations from the EUMETSAT microwave missions namely EPS (i.e. MHS and AMSU-A/B) and EPS-SG (i.e. MWS), and allow the generation of similar products, as the EPS-Sterna observational requirements have been derived from the EPS-SG MWS ones. Furthermore, the EPS-Sterna mission will contribute to the long time series of microwave temperature and humidity sounding data which started with the United States Microwave Sounding Unit (MSU) in 1978, and continued with AMSU-A/B and ATMS as well as SSM/T, SSM/T2 and SSMIS, and the comparable Chinese instrument series of MWTS and MWHS since 2008.

EPS-Sterna will expand the EPS-SG microwave sounding capacity with a constellation of micro-satellites, which will have significant positive impacts on the accuracy of Numerical Weather Prediction (NWP) providing frequent observations for Nowcasting especially at high latitudes which are not well covered by MTG.

The high-level EPS-Sterna objectives are:

- To expand and complement the microwave sounding observations from the Metop-SG and NOAA JPSS polar-orbiting, meteorological satellites;
- To improve accuracy of global Numerical Weather Prediction models by increasing the number of microwave sounding observations;
- To contribute to Nowcasting applications at high latitudes through an increase in the frequency of microwave observations;
- To contribute to climate monitoring by improving global reanalysis based on NWP models and by adding to the record of upper tropospheric humidity with increased spatiotemporal sampling.

The primary objective of the EPS-Sterna mission is to support Numerical Weather Prediction (NWP) at regional and global scales, through the provision of spectral radiance measurements with information on:

- Water-vapour profile;
- Temperature profile;
- Earth surface emissivity;
- Cloud liquid water;
- Cloud ice.

The availability of EPS-Sterna radiances can also support climate-monitoring by integration into the microwave sounding Fundamental Data Record starting with the United States MSU instrument in 1978 that is essential for global reanalysis as produced by ECMWF for the Copernicus Climate Change Service.

3. EPS-STERNA MISSION

The EPS-Sterna system consists of the following main elements:

- Space Segment;
- Ground Segment;
- Launch Services.

3.1. EPS-Sterna Space Segment

The EPS-Sterna space segment consists of a Constellation of nominally 6 active satellites flying in the Constellation. During the mission lifetime, a total of up to twenty satellites will be launched. Satellites whose instrument has degraded may be kept operational for a while if the quality of the data is considered useful or to gain experience on the evolution of the instrument.

Each satellite of the constellation will be equipped with a cross-track self-calibrating microwave radiometer that will feature 19 different channels allowing the retrieval of the above products. These channels are mostly based on heritage from MWS on EPS-SG and AMSU and MHS on EPS with the exception of the new sub-mm channels at 325 GHz which are used to better exploit the water vapour sounding information in all-sky conditions, support climate modelling (in synergy with ICI on EPS-SG) and nowcasting at high latitudes.

The space segment also includes all necessary Ground Support Equipment (GSE) for satellite AIV, such as mechanical, electrical and optical GSE's test facilities to support test and qualification of the satellites.

Specific tools used for system verification and validation and linked to the space segment will also be needed, such as for instance Network and Data Interface Unit (NDIU) used for Satellite System Validation Tests (SSVT).

The satellites' configuration will vary according to the orbital plane of destination; in particular, the position of the thermal radiators, star trackers as well as the position and size of the solar arrays, will change to cope with the different solar illumination conditions expected on the three different orbital planes.

3.2. EPS-Sterna Ground Segment

The EPS-Sterna ground segment will support all the ground functions required to meet the mission objectives. It comprises a set of core functions, supplemented by functions provided by services in particular:

- Mission Control and Operations;
- Telemetry Acquisition, Telecommand Uplink;
- Payload Data Acquisition;
- Payload Data Processing;
- Data Distribution, Archiving, Monitoring and Reprocessing.

The EPS-Sterna ground segment functions will be implemented by physical elements located at the EUMETSAT Headquarters and other sites. The full complement of sites contributing to the EPS-Sterna ground segment is:

- The Mission Control Centre (MCC) at EUMETSAT HQ, comprising:
 - o Mission Control and Operation (MCO) sub-segment;
 - o Payload Data Processing (PDP) sub-segment;
 - o Multi Mission Elements (MMEs) as part of the EUMETSAT Internal Services.
- The Remote Mission Control Centre (RMCC) is located at a remote location and provide capability to monitor and control the Space Segment in the case of partial or total loss of the MCC;
- The Ground Stations sites for:
 - o Tracking, Telemetry and Command/Control (TT&C), located in Svalbard and other sites;
 - o The Ground Station sites for payload data reception, both polar stations for global data, and regional stations.

The EPS-Sterna Ground Segment will deliver Level 1 data while the Satellite Application Facilities (SAFs), which are distributed across EUMETSAT Member States, will perform Level 2 data processing.

3.3. Launch Services

The launch services are inclusive, i.e. they cover also facilities and logistic services needed to support the transportation of the satellite, equipment and teams to the launch site; to perform the satellite checkout and assembly of the satellites with the launch vehicles; to perform the pre-launch tests; and to perform the launch and monitor the launcher until the separation of the satellite from the launch vehicle. Launch services will be procured to launch up to 20 satellites. Small dedicated launchers will be used for EPS-Sterna. Rideshares may also be considered for both phases, but only when the uncertainty on the designated orbital plane is acceptable with respect to the required EPS-Sterna mission performances.

4. EPS-STERNA IN-ORBIT DEPLOYMENT PLAN

The initial nominal configuration will consist of a total of six satellites in three orbital planes with two satellites per each plane, flying at an altitude of about 595 km.

The EPS-Sterna satellites will be deployed in three different sun-synchronous orbital planes, chosen to be complementary to EPS-SG and JPSS satellites (LTDN 03:30, 07:30, 11:30) as well as to maximise the constellation performance in terms of “time to achieve 90% global coverage”.

The constellation launch and replenishment strategy foresees two main phases:

- The initial deployment phase (first six satellites in 3 orbital planes);
- The replenishment phase.

The initial deployment phase will consist in establishing the constellation by launching the first batch of six satellites in the three designated orbital planes. Either single or dual launches are considered for this phase which means to select a launcher service for either three (i.e. one per orbital plane) or six launches.

The replenishment phase will ensure the required system performances throughout at least the thirteen years of operational lifetime by replenishing orbital planes in case of satellite and launcher failures or when the satellites have exceeded their nominal lifetime. Single dedicated small launchers services are considered for this phase, which will require a maximum of fourteen launches.

The nominal satellite lifetime will be 5 years. The launch and replenishment strategy is designed to maximise the probability of mission success by ensuring the availability of at least four operational satellites in three orbital planes as the minimum configuration to meet the constellation performance.

Two spare satellites are necessary to cope with satellite or launcher failures increasing the number of replenishments from 12 to 14 satellites.

5. SCOPE OF EUMETSAT PROGRAMME

The scope of the EPS-Sterna Programme encompasses the following main elements:

- Constellation of six satellites, to be replenished successively by up to 14 satellites (in total up to 20 satellites);
- Full funding of the EPS-Sterna Programme in the amount of M€ 858.5 at 2024 economic conditions;
- Procurement of 20 EPS-Sterna satellites;
- Procurement of launch services for 20 satellites;
- Establishment of a ground segment system to support operations of the EPS-Sterna system;
- Thirteen years of nominal lifetime of the mission;
- SAF activities in charge of level 2 products.

6. IMPLEMENTATION ARRANGEMENTS

6.1. Interaction with Users and Experts

The process for involvement of users, experts and mission teams established during the initial phases of the EPS-Sterna activities will continue during the development and operations phases to ensure that the EPS-Sterna, as a whole, will fully meet the mission objectives. The EPS-Sterna End User Requirements Document (EUM/C/104/23/DOC/13), owned by Council, is at the highest level in the EPS-Sterna specification tree and is the applicable user's reference for the design and the development of EPS-Sterna at system level and segment levels (space and ground segments).

Accordingly, a downward traceability from the EURD to the System requirements Document (SRD) and further down to the lower level requirements documents has been established and is maintained.

6.2. Cooperation with ESA

The roles of EUMETSAT and ESA are detailed in a dedicated Agreement with ESA on EPS-Sterna approved by the EUMETSAT Council EUM/C/105/24/DOC/17, specifying, amongst others, the roles of EUMETSAT and ESA within the EPS-Sterna Programme, financial liabilities, procurement policy, implementation mechanism, and ownership of data.

7. PROGRAMME ENVELOPE AND INDICATIVE EXPENDITURE PROFILE

The proposed EUMETSAT EPS-Sterna Programme Envelope amounts to M€ 858.5 at 2024 economic condition.

The following table shows the indicative expenditure profile of the EPS-Sterna Programme:

Year	2025	2026	2027	2028	2029	2030	2031	2032	2033	2034 to 2042
MEUR in 2024 e.c.	29.48	88.93	99.30	71.83	78.63	58.28	61.13	57.72	48.39	264.81

RESOLUTION EUM/C/106/24/Res. I**ON THE****CEILING OF THE GENERAL BUDGET 2026-2030**

**adopted at the 106th meeting of the EUMETSAT Council
on 3-4 December 2024**

The EUMETSAT Member States,

HAVING REGARD to Article 2.5 of the EUMETSAT Convention, which establishes that the General Budget comprises activities not linked to a specific programme,

CONSIDERING that these activities shall represent the basic technical and administrative infrastructure of EUMETSAT including basic staff, buildings and equipment as well as preliminary activities authorised by the Council in preparation of future programmes, not yet approved,

RECALLING EUM/C/Res. XVIII establishing the first General Budget, a ceiling for the years 1990-1995 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/95/Res. VI establishing the second General Budget, a ceiling for the years 1996-2000 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/99/Res. V establishing the third General Budget, a ceiling for the years 2001-2005 and contributions based on a GNP scale of contributions,

RECALLING EUM/C/57/05/Res. I establishing the fourth General Budget, a ceiling for the years 2006-2010 and contributions based on a GNI scale of contributions,

RECALLING EUM/C/67/09/Res. III establishing the fifth General Budget, a ceiling for the years 2011-2015 and contributions based on a GNI scale of contributions,

RECALLING EUM/C/82/14/Res. III establishing the sixth General Budget, a ceiling for the years 2016-2020 and contributions based on a GNI scale of contributions,

RECALLING EUM/C/92/19/Res. I establishing the seventh General Budget, a ceiling for the years 2021-2025 and contributions based on a GNI scale of contributions,

EXPRESSING the need to establish a new ceiling,

AGREE:

- I** To fix a new ceiling of the General Budget for the years 2026-2030.
- II** To link this ceiling to contributions from Member States on a GNI scale.
- III** To limit these contributions to a total amount of M€ 141.4 at 2025 economic conditions, comprising M€ 86.3 for Core Activities, M€ 9.0 as Third Party Programmes' Risk Margin, M€ 16.0 for Infrastructure Sustainability Investments, M€ 13.1 for the Prospective activities, and M€ 17.0 for EPS-Aeolus Phase B.

RESOLUTION EUM/C/108/25/RES. I**ON****THE AUTHORISATION TO PROCEED WITH THE EPS-STERNA PROGRAMME**

**presented at the 108th Meeting of the EUMETSAT Council on 1-2 July 2025
and adopted on 9 July 2025**

The EUMETSAT Member States,

CONSIDERING that the EUMETSAT Council, at its 105th meeting on 27 June 2024, agreed on the contents of the programme proposal for the EPS-Sterna Programme as contained in document EUM/C/105/24/DOC/16,

CONSIDERING that the EUMETSAT Council, at its 105th meeting, agreed to open the voting of Resolution EUM/C/105/24/Res.I on the EPS-Sterna Programme,

NOTING that, although 25 of the 30 Member States have voted in favour of the EPS-Sterna Programme Resolution unconditionally, thus achieving a programme funding level of 81.6916 %, the votes of Belgium, France, Greece, Hungary and Lithuania are still to be confirmed,

NOTING that, due to the mandatory nature of the programme, the EPS-Sterna Programme Resolution will only formally enter into force upon approval by all Member States,

ANTICIPATING that the above Delegations expect to be able to confirm their votes within a short period of time,

RECOGNISING the need to start the full EPS-Sterna Programme activities from 2 July 2025 to avoid additional costs and programme risks,

AGREE:

- I** That the activities under the EPS-Sterna Programme can start as of 2 July 2025 within a limit of liability of 13.4 MEUR at 2024 economic conditions.
- II** That Belgium, France, Greece, Hungary and Lithuania will be legally obliged to contribute financially to the EPS-Sterna Programme only after finalisation of national approval procedures, and that their contributions will only become due 30 days after notification thereof.
- III** That in the EPS-Sterna Programme Budget 2025 an amount corresponding to the contributions from Belgium, France, Greece, Hungary and Lithuania remains blocked until the finalisation of national procedures has been notified to the Director-General.

- IV** To urge Belgium, France, Greece, Hungary and Lithuania to complete their respective national approval process as soon as possible, and at the latest by 1 October 2025.
- V** That if, contrary to expectations, Belgium, France, Greece, Hungary and Lithuania would not be in a position to confirm finalisation of national approval procedures by 1 October 2025 at the latest, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken at a dedicated Council meeting.
- VI** To authorise the Director-General to already sign the Cooperation Agreement with ESA on EPS-Sterna approved by Council at its 105th meeting, prior to the EPS-Sterna Programme formally entering into force.

AMENDING RESOLUTION EUM/C/109/25/RES. I**ON****THE AUTHORISATION TO PROCEED WITH THE EPS-STERNA PROGRAMME****adopted at the 109th Meeting of the EUMETSAT Council on 2 September 2025****The EUMETSAT Member States,**

CONSIDERING that the EUMETSAT Council, at its 105th meeting on 27 June 2024, agreed on the contents of the programme proposal for the EPS-Sterna Programme as contained in document EUM/C/105/24/DOC/16,

CONSIDERING that the EUMETSAT Council, at its 105th meeting, agreed to open the voting of Resolution EUM/C/105/24/Res. I on the EPS-Sterna Programme,

NOTING that, although 25 of the 30 Member States have voted in favour of the EPS-Sterna Programme Resolution unconditionally, thus achieving a programme funding level of 81.6916 %, the votes of Belgium, France, Greece, Hungary and Lithuania are still to be confirmed,

NOTING that, due to the mandatory nature of the programme, the EPS-Sterna Programme Resolution will only formally enter into force upon approval by all Member States,

ANTICIPATING that the above Delegations expect to be able to confirm their votes within a short period of time,

NOTING Resolution EUM/C/108/25/Res. I on the Authorisation to Proceed with the EPS-Sterna Programme approved by Council at its 108th on 2 July and to start programme activities with a limit of financial liability of 13.4 MEUR at 2024 economic conditions applicable until 1 October 2025, in view of the need to avoid cost and programme risks,

RECOGNISING the need to further continue the EPS-Sterna Programme activities beyond October 2025 to avoid additional costs and programme risks,

AGREE:

- I** To add “impacting the budgets 2025 and 2026” at the end of the sentence of AGREE I of Resolution EUM/C/108/25/Res. I.
- II** To replace the date of 1 October 2025 reflected in AGREE IV and V of Resolution EUM/C/108/25/Res. I by the date of 25 November 2025 and to remove the reference to a dedicated Council meeting in AGREE V.

RESOLUTION EUM/C/110/25/RES. I**ON****THE AUTHORISATION TO PROCEED WITH THE EPS-STERNA PROGRAMME**

**presented for adoption at the 110th Meeting of the EUMETSAT Council
on 24-25 November 2025**

and adopted on 9 January 2026

The EUMETSAT Member States,

CONSIDERING that the EUMETSAT Council, at its 105th meeting on 27 June 2024, agreed on the contents of the programme proposal for the EPS-Sterna Programme as contained in document EUM/C/105/24/DOC/16,

CONSIDERING that the EUMETSAT Council, at its 105th meeting, agreed to open the voting of Resolution EUM/C/105/24/Res. I on the EPS-Sterna Programme,

NOTING that 29 of the 30 Member States have voted in favour of the EPS-Sterna Programme Resolution, thus achieving a programme funding level of 99.2164 %, including the yes *ad referendum* votes from Belgium and France,

NOTING that Belgium and France expect to be able to confirm their votes by the end of 2025,

NOTING that Hungary expects to be able to cast its vote by the end of 2025,

NOTING that, due to the mandatory nature of the programme, the EPS-Sterna Programme Resolution will only formally enter into force upon approval by all Member States,

NOTING Resolution EUM/C/108/25/Res. I on the Authorisation to Proceed with the EPS-Sterna Programme adopted by Council on 9 July 2025, which, in view of the need to avoid additional costs and programme risks, authorised programme activities to start with a limit of financial liability of 13.4 MEUR at 2024 economic conditions applicable until 1 October 2025, and authorised the Director-General to already sign the Cooperation Agreement with ESA on EPS-Sterna approved by Council at its 105th meeting, prior to the EPS-Sterna Programme formally entering into force,

NOTING the Amending Resolution EUM/C/109/25/Res. I on the Authorisation to Proceed with the EPS-Sterna Programme adopted by Council at its 109th meeting on 2 September 2025, which extended the duration of Resolution EUM/C/108/25/Res. I to 25 November 2025, in view of the need to avoid additional costs and programme risks,

RECOGNISING the need to continue the EPS-Sterna Programme activities beyond 25 November 2025 to avoid additional costs and programme risks,

AGREE:

- I** That the activities under the EPS-Sterna Programme can continue within the financial envelope defined in Resolution EUM/C/105/24/Res. I.
- II** That Belgium, France and Hungary will be legally obliged to contribute financially after finalisation of national approval procedures, and that their contributions will only become due 30 days after notification thereof.
- III** That an amount corresponding to the contributions from Belgium, France and Hungary remains blocked in the EPS-Sterna Programme Budgets 2025 and 2026 until the finalisation of national procedures has been notified to the Director-General.
- IV** To urge Belgium, France and Hungary to complete their respective national approval process before the end of 2025.
- V** That this Resolution will only enter into force when 90% of the programme funding has been unconditionally reached and that if, contrary to expectations, this condition is not fulfilled by the end of 2025, those Member States who have agreed unconditionally to contribute to the programme will decide on the action to be taken.

AMENDING RESOLUTION EUM/C/110/25/RES. II**ON****THE AUTHORISATION TO PROCEED WITH THE EPS-STERNA PROGRAMME****adopted at the 110th Meeting of the EUMETSAT Council
on 24-25 November 2025****The EUMETSAT Member States,**

CONSIDERING that the EUMETSAT Council, at its 105th meeting on 27 June 2024, agreed on the contents of the programme proposal for the EPS-Sterna Programme as contained in document EUM/C/105/24/DOC/16,

CONSIDERING that the EUMETSAT Council, at its 105th meeting, agreed to open the voting of Resolution EUM/C/105/24/Res. I on the EPS-Sterna Programme,

NOTING that 29 of the 30 Member States have voted in favour of the EPS-Sterna Programme Resolution, thus achieving a programme funding level of 99.2164 %, including the yes *ad referendum* votes from Belgium and France,

NOTING that Belgium and France expect to be able to confirm their votes by the end of 2025,

NOTING that Hungary expects to be able to cast its vote by the end of 2025,

NOTING that, due to the mandatory nature of the programme, the EPS-Sterna Programme Resolution will only formally enter into force upon approval by all Member States,

NOTING Resolution EUM/C/108/25/Res. I on the Authorisation to Proceed with the EPS-Sterna Programme adopted by Council on 9 July 2025, which, in view of the need to avoid additional costs and programme risks, authorised programme activities to start with a limit of financial liability of 13.4 MEUR at 2024 economic conditions applicable until 1 October 2025, and authorised the Director-General to already sign the Cooperation Agreement with ESA on EPS-Sterna approved by Council at its 105th meeting, prior to the EPS-Sterna Programme formally entering into force,

NOTING the Amending Resolution EUM/C/109/25/Res. I on the Authorisation to Proceed with the EPS-Sterna Programme adopted by Council at its 109th meeting on 2 September 2025, which extended the duration of Resolution EUM/C/108/25/Res. I to 25 November 2025, in view of the need to avoid additional costs and programme risks,

NOTING Resolution EUM/C/110/25/Res. I on the Authorisation to Proceed with the EPS-Sterna Programme adopted by Council at its 110th meeting on 25 November 2025, which authorises programme activities to continue within the financial envelope defined in Resolution EUM/C/105/25/Res. I once 90 % of the programme funding has been unconditionally reached,

RECOGNISING the need to continue the EPS-Sterna Programme activities beyond 25 November 2025 and until 90% of the programme funding has been unconditionally reached to avoid additional costs and programme risks,

AGREE:

- I** To further amend Resolution EUM/C/108/25/Res. I on the Authorisation to Proceed with the EPS-Sterna Programme, approved by Council at its 108th meeting on 2 July 2025 and amended by Resolution EUM/C/109/25/Res. I, by:
- removing Greece and Lithuania from AGREE II, III, IV and V;
 - replacing “urge” by “encourage” in AGREE IV;
 - replacing the date of 25 November 2025 in AGREE IV and V by “end of 2025”;
 - adding “at an extraordinary Council meeting in February/March 2026” at the end of the sentence of AGREE V;
 - adding a new AGREE VII as follows: “To authorise the Director-General to use the available funds from the EPS-Sterna Budget 2025 that have already been called up”;
 - adding a new AGREE VIII as follows: “That this Resolution will remain in force until either Resolution EUM/C/105/24/Res. I or Resolution EUM/C/110/25/Res. I has entered into force, or the funds under the limit of liability defined in AGREE I above have been exhausted, whichever event occurs first.”

RESOLUTION EUM/C/110/25/RES. III**ON****THE DESTINATION EARTH THIRD PARTY PROGRAMME
IN THE PERIOD 2021-2028****adopted at the 110th Meeting of the EUMETSAT Council
on 24-25 November 2025****The EUMETSAT Council,**

HAVING REGARD to the legal framework on EUMETSAT's participation in the European Union's Destination Earth initiative established by the 98th Council in November 2021 and superseded by the 104th Council in November 2023 through the unanimous adoption of Resolution EUM/C/104/23/Res. III on the Destination Earth Third Party Programme in the Period 2021-2027, as well as the unanimous approval of the Third Party Programme Proposal (EUM/C/104/23/DOC/15) and related Amended and Restated Contribution Agreement (EUM/C/104/23/DOC/16 Rev 1),

NOTING that the DestinE Third Party Programme package adopted by the 104th Council focused primarily on the implementation of Phase I and Phase II of the Destination Earth initiative and now needs to be updated in order to incorporate Phase III activities and related EU funding,

REEMPHASISING that it is due to the substantial past, current and future contributions of all 30 EUMETSAT Member States (including also non-EU Member States) that EUMETSAT has the necessary infrastructure and skills that enable the European Union to use EUMETSAT as an entrusted entity for the implementation of the Destination Earth Programme,

HAVING REGARD to the updated Programme Proposal for a Third Party Programme on EUMETSAT Activities in support of the implementation of the European Union's Destination Earth Initiative and related Resolution, contained in document EUM/C/110/25/DOC/24,

HAVING REGARD to the draft Second Amended and Restated Contribution Agreement between the European Union and EUMETSAT on the Implementation of the Destination Earth Initiative under the Digital Europe Programme of the European Union contained in document EUM/C/110/25/DOC/25,

IN CONFORMITY with Resolution EUM/C/66/08/Res. II on the Approval of Third Party Programmes and with the Third Party Programme Procedures approved by the EUMETSAT Council in December 2008,

AGREES:

- I** To amend the Third Party Programme established under Resolution EUM/C/104/23/Res. III, as described in the updated Programme Proposal (reference EUM/C/110/25/DOC/24).
- II** That the Destination Earth Third Party Programme shall be carried out in accordance with the Second Amended and Restated Contribution Agreement between the European Union and EUMETSAT on the Implementation of the Destination Earth Initiative under the Digital Europe Programme of the European Union (reference EUM/C/110/25/DOC/25).
- III** That the financial envelope for the Destination Earth Third Party Programme is M€148 at current economic conditions, estimated to cover the implementation of the baseline entrusted tasks and potential optional activities as defined in the Technical Annex of the aforementioned Contribution Agreement until 14 June 2028.
- IV** That the Director-General shall seek Council's approval of changes to the legal framework of this Third Party Programme, as described in section 7.2 of the updated Programme Proposal.
- V** That the updated Destination Earth Third Party Programme shall enter into force upon signature of the aforementioned Contribution Agreement.

REQUESTS the Director-General:

- I** To continue to explore possibilities to enable the participation of all EUMETSAT Member States in the EUMETSAT activities on DestinE.
- II** To maintain a close and timely dialogue with the European Commission on the future of DestinE beyond the multiannual financial framework 2021-2027, including the tasks likely to be entrusted to EUMETSAT and the associated level of funding, and to keep Member States informed accordingly.

RESOLUTION EUM/C/110/25/RES. IV**ON****THE RECATEGORISATION OF IASI AND IASI-NG LEVEL 1 DATA AS “CORE”****adopted at the 110th Meeting of the EUMETSAT Council
on 24-25 November 2025****The EUMETSAT Member States,**

HAVING REGARD to the EUMETSAT Data Policy, which defines the policy applicable to data from instruments flying on, *inter alia*, EUMETSAT’s Meteosat and Metop satellites,

HAVING REGARD to Council Resolution EUM/C/102/22/Res. IV on the Categorisation of EUMETSAT Data and Products from the Meteosat and Metop Satellite Series,

TAKING INTO ACCOUNT the guiding principles agreed by Council on evolutions of the EUMETSAT Data Policy in 2017 (EUM/C/88/17/DOC/10),

HAVING REGARD to the EUMETSAT Strategy “Destination 2030” (EUM/C/97/21/DOC/03), which specifically addresses the future of the EUMETSAT Data Policy,

HAVING REGARD to the WMO Unified Policy for the International Exchange of Earth System Data (Cg-Ext(2021)),

WISHING to broaden further the scope of data and products provided free of charge to users in line with the Oslo Declaration, with due regard to the ongoing development of data services,

UNDERLINING the wish of Member States to promote continuity and harmonisation of the EUMETSAT Data Policy across generations of satellites,

AGREE:

- I** To recategorise Level 1 data from EUMETSAT’s IASI and IASI-NG instruments flying on the Metop series as “Core”.